

# WARREN COMMISSION

INVESTIGATION OF  
THE ASSASSINATION OF  
PRESIDENT JOHN F. KENNEDY

## HEARINGS

Before the President's Commission  
on the Assassination  
of President Kennedy

## Volume XIII

1964

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**INVESTIGATION OF  
THE ASSASSINATION OF PRESIDENT JOHN  
F. KENNEDY**

# **HEARINGS**

## **Before the President's Commission**

### **on the Assassination**

### **of President Kennedy**

PURSUANT TO EXECUTIVE ORDER 11130, an Executive order creating a Commission to ascertain, evaluate, and report upon the facts relating to the assassination of the late President John F. Kennedy and the subsequent violent death of the man charged with the assassination and S.J. RES. 137, 88TH CONGRESS, a concurrent resolution conferring upon the Commission the power to administer oaths and affirmations, examine witnesses, receive evidence, and issue subpoenas

*Volume*  
**XIII**

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**PRESIDENT'S COMMISSION  
ON THE  
ASSASSINATION OF PRESIDENT KENNEDY**

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HOWARD P. WILLENS<sup>A</sup>

<sup>A</sup>Mr. Willens also acted as liaison between the Commission and the Department of Justice.



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ALFREDDA SCOBAY  
CHARLES N. SHAFFER, Jr.

Biographical information on the Commissioners and the staff can be found in the Commission's *Report*.

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## Preface

The testimony of the following witnesses is contained in volume XIII: L. C. Graves, James Robert Leavelle, L. D. Montgomery, Thomas Donald McMillon, and Forrest V. Sorrels, who participated in the arrest and questioning of Jack L. Ruby; Dr. Fred A. Bieberdorf, Frances Cason, Michael Hardin, and C. E. Hulse, who testified concerning the time at which Lee Harvey Oswald was shot; Ira Jefferson Beers, Jr., Robert Leonard Hankal, Robert S. Huffaker, Jr., George R. Phenix, and Jim Turner, news media personnel who observed the shooting of Oswald; Harold R. Fuqua, Edward Kelly, Louis McKinzie, Edward E. Pierce, Alfreadia Riggs, and John Olridge Servance, janitorial employees of the Dallas Municipal Building who gave testimony relating to the manner in which Ruby may have entered the building; A. M. Eberhardt, Sidney Evans, Jr., Bruce Ray Carlin, Karen Bennett Carlin, Doyle E. Lane, Elnora Pitts, Hal Priddy, Jr., Huey Reeves, Warren E. Richey, Malcolm R. Slaughter, Vernon S. Smart, John Allison Smith, Jesse M. Strong, and Ira N. Walker, Jr., all of whom saw Ruby for brief times during the period November 22–24, 1963, prior to the shooting of Oswald; John L. Daniels and Theodore Jackson, attendants at parking lots near the point at which Ruby's car was parked on November 24, 1963; and Andrew Armstrong, Jr., Bertha Cheek, and Curtis La Verne Crafard, who were acquainted with Ruby prior to November 22, 1963.

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**Hearings Before the President's  
Commission  
on the  
Assassination of President Kennedy**

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## TESTIMONY OF L. C. GRAVES

The testimony of L. C. Graves was taken at 10:30 a.m., on March 24, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. I am a member of the advisory staff of the General Counsel of the President's Commission on the Assassination of President Kennedy. The Commission has been given authority under a congressional resolution to investigate the facts surrounding the death of President Kennedy and the killing of Lee Harvey Oswald, and, other related events.

We are interested particularly, in calling you, in the events that surrounded the death of Lee Harvey Oswald. We are also interested in everything that you may know and so, you can consider relevant any question having to do with the complete scope of the investigation. Now, you have the right to receive, by mail, the notice 3 days in advance before the taking your testimony, and I want to ask you at this time whether you waive that notice?

Mr. GRAVES. Yes; I waive that notice.

Mr. GRIFFIN. Now, you also have a right to be present here with an attorney, and, of course, you are not represented by counsel. If you would like the opportunity to get an attorney, we'll afford you that chance.

Mr. GRAVES. No; I don't think that is necessary.

Mr. GRIFFIN. Would you state for the record your name?

Mr. GRAVES. My name is L. C. Graves [spelling] G-r-a-v-e-s.

Mr. GRIFFIN. Where do you live, Mr. Graves?

Mr. GRAVES. I live at 7811 Maxwell Avenue, Dallas, Tex.

Mr. GRIFFIN. And where are you employed?

Mr. GRAVES. I am employed with the Dallas Police Department, as a detective in the homicide and robbery bureau.

Mr. GRIFFIN. How long have you been with the Dallas Police Department?

Mr. GRAVES. 14 years, the 31st day of October last.

Mr. GRIFFIN. Where were you born?

Mr. GRAVES. October 8, 1918, at Camp County.

Mr. GRIFFIN. Texas?

Mr. GRAVES. Texas.

Mr. GRIFFIN. Have you been interviewed by me previous to this deposition which we are now taking?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Would you state for the record when it was that you and I talked?

Mr. GRAVES. Oh, approximately 30 minutes ago.

Mr. GRIFFIN. We have been talking almost continuously since that?

Mr. GRAVES. Yes.

Mr. GRIFFIN. All right, now, I will indicate for the record that we have been discussing the—your experiences from the time President Kennedy was shot until you arrived for work on Sunday morning, November 24, and I believe you told me while I was interviewing you that on Sunday morning you drove to work, and that you parked your car somewhere along the side of the police department building, and it is your recollection that you walked from the Commerce Street side through the basement hall that leads to the records room?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Now, I asked you in the interview whether you remember just—remembered just as you walked down from the Commerce Street—down the steps to the door which leads into the building, whether as you got inside the building you noticed the placement of TV cables in relationship

to the engineroom, or that door that goes back down into the subbasement. Do you have any recollection of how the TV cables were spread out there?

Mr. GRAVES. Vaguely. I think the cables did go through that door. I couldn't be sure.

Mr. GRIFFIN. Which door are you talking about?

Mr. GRAVES. Through the engineroom door.

Mr. GRIFFIN. When you got inside the building, where did you go?

Mr. GRAVES. I went to the homicide and robbery bureau on the third floor, room 317.

Mr. GRIFFIN. When you got up into the hallway on the third floor, can you describe the condition of the hallway?

Mr. GRAVES. Well, of course, it was cluttered up with camera equipment and cables and newspeople, cameramen.

Mr. GRIFFIN. Do you remember when you arrived there on the third floor, whether the TV cameras were manned?

Mr. GRAVES. Reasonably sure they were. There were men standing around with earphones on and the light.

Mr. GRIFFIN. Now, do you recall about what time it was that you got up there to the third floor?

Mr. GRAVES. Approximately 8 o'clock, I think or——

Mr. GRIFFIN. That is in the morning?

Mr. GRAVES. Yes.

Mr. GRIFFIN. What did you do when you got to the homicide bureau?

Mr. GRAVES. Well, I went in, of course, and started answering the telephones and talking to people that were calling about various things.

Mr. GRIFFIN. Was anybody else there when you arrived?

Mr. GRAVES. Yes; just about everyone, I think, that worked in the homicide bureau were there.

Mr. GRIFFIN. Who would that be?

Mr. GRAVES. Oh, of course, my partner, L. D. Montgomery——

Mr. GRIFFIN. Montgomery.

Mr. GRAVES. E. R. Beck, C. N. Dhority, J. R. Leavelle, C. W. Brown, Lieutenant Wells, those are the ones that I remember right now at the moment.

Mr. GRIFFIN. Do you remember if Captain Fritz was there?

Mr. GRAVES. Well, yes; he was there.

Mr. GRIFFIN. Do you remember whether or not, Lee Oswald was there?

Mr. GRAVES. He wasn't there when I first got there in the room.

Mr. GRIFFIN. When you got into the room, do you remember talking with anybody?

Mr. GRAVES. I don't remember who I talked with first, when I got there.

Mr. GRIFFIN. Do you remember having any conversation with anyone regardless of who it might have been, after you got up there, shortly after you arrived?

Mr. GRAVES. Well, the only conversation I recall actually, is when we were told to bring him down, Oswald down to the captain's office. Now, the rest was routine stuff.

Mr. GRIFFIN. How long after you arrived would be your best estimate that you were told to bring Oswald down to the captain's office.

Mr. GRAVES. Well, let's see, we would have a thing to show the exact time that I signed him out. At somewhere shortly before 10 o'clock, which would be something over an hour, better part of 2 hours——

Mr. GRIFFIN. In this period from approximately 8 o'clock until shortly before 10, did you have any conversations about the movement of Lee Oswald from the city jail to the county jail?

Mr. GRAVES. Well, the captain told us that he would be transferred in a car.

Mr. GRIFFIN. Captain Fritz told you that?

Mr. GRAVES. Yes; and at first he wanted to talk to him some more, so, we brought him down to the office so he could be interviewed.

Mr. GRIFFIN. Did Captain Fritz tell you what kind of a car he was going to be transferred in?

Mr. GRAVES. Yes; we understood it was going to be a regular police car like we use, plain cars.

Mr. GRIFFIN. How long before you got Oswald down did you get this information?

Mr. GRAVES. Oh, it couldn't have been but a few minutes, at least.

Mr. GRIFFIN. Where were you told this?

Mr. GRAVES. In the hallway, or office there.

Mr. GRIFFIN. Do you recall now whether you were in that homicide office or in the hallway?

Mr. GRAVES. I believe I was in the hallway when I heard it.

Mr. GRIFFIN. How many other officers were standing around at that time?

Mr. GRAVES. Oh, I don't remember really. Probably two or three or four.

Mr. GRIFFIN. How close was Captain Fritz to you when you heard this?

Mr. GRAVES. As close as you and I are.

Mr. GRIFFIN. We have a table separating us.

Mr. GRAVES. Yes.

Mr. GRIFFIN. 6-foot, about a 6-foot table, isn't it? Was he talking only to you, or talking to the other officers?

Mr. GRAVES. Generally to all of us.

Mr. GRIFFIN. Now, at this time, were there newspaper people in the area?

Mr. GRAVES. I don't believe. At the moment, I don't believe any newsmen were in there at the time.

Mr. GRIFFIN. This is not in the hallway?

Mr. GRAVES. No, I mean this little hallway in our bureau—comes from the front entrance. You know, you have been there.

Mr. GRIFFIN. Yes, I have.

Mr. GRAVES. See, there is a little hallway that comes around——

Mr. GRIFFIN. You are talking about the hallway that, as you open the door off the third floor hallway?

Mr. GRAVES. No, I am talking about the hallway between the little office and captain's office.

Mr. GRIFFIN. For the record, about how far were you from the third floor hallway when this conversation took place?

Mr. GRAVES. 25 feet, approximately.

Mr. GRIFFIN. And do you remember the other officers who were standing around at the time?

Mr. GRAVES. Well, Leavelle and Montgomery for sure. I don't know who else right now. Beck—Dhority and Beck both could have been in there. I am not sure about that.

Mr. GRIFFIN. How long did this conversation with Captain Fritz last?

Mr. GRAVES. Just long enough to say that—"We are going to get him down and talk to him, and get the car ready in the basement." Told Dhority and Brown what to do about the cars, also Beck, and so, we went up and got him and brought him down.

Mr. GRIFFIN. At the time that you were instructed to go up and bring down Oswald, were Dhority and Brown given instructions by Fritz about the automobiles?

Mr. GRAVES. I'm going to have to say that I am not sure whether it was at that moment, or after we brought him down, and I kind of believe that it was then that they got the cars ready and put them in the basement, and that at the last minute just before we took him down, we were instructed to move that car up there to the entrance exit of the jail office, and I am pretty sure that that is the way that went.



Mr. GRIFFIN. Well, now, just directing your attention to the time that you were instructed to go up and bring Oswald down for interrogation, what other conversation do you remember taking place with Fritz?

Mr. GRAVES. Well, that was all that was said to me at that time.

Mr. GRIFFIN. Who went up with you?

Mr. GRAVES. Leavelle and Dhority.

Mr. GRIFFIN. And did you talk with Lee Oswald on your way down?

Mr. GRAVES. No, didn't say anything to him.

Mr. GRIFFIN. What did you do after you brought Oswald down to the homicide bureau?

Mr. GRAVES. Brought him in the office with Captain Fritz and the other people that were in there.

Mr. GRIFFIN. Now, what did you do when you——

Mr. GRAVES. I went back outside and started answering phones, or doing whatever it was to be done for a while, but I didn't go back in the office until just before we were ready to move him.

Mr. GRIFFIN. While you were out there answering telephones and so forth, did you hear any more about the movement of Oswald to the county jail?

Mr. GRAVES. Not while I was outside, no.

Mr. GRIFFIN. Did you see Chief Curry come in?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Did he say anything that you heard about the movement of Oswald?

Mr. GRAVES. Not where I could hear him. He went in the office and this—presumably discussed something with Captain Fritz. I believe he made a number of trips there during the time that he was being interviewed.

Mr. GRIFFIN. Were there any rumors circulating in the homicide bureau about how Oswald would be transferred?

Mr. GRAVES. Not to my knowledge.

Mr. GRIFFIN. All right. Well, then, when was the next time that you got any information about moving Lee Oswald?

Mr. GRAVES. Immediately after, just a few minutes before the interview was completed, I went in the office, and we were instructed that we were to take him down, and he would be taken in the car.

Mr. GRIFFIN. Who was in the office when you walked in?

Mr. GRAVES. Well, Mr. Sorrels and Mr. Holmes.

Mr. GRIFFIN. Sorrels is from the Secret Service?

Mr. GRAVES. Mr. Holmes is from the Postal Department—I believe it is the Postal Department, and I can't think of the other man's name now.

Mr. GRIFFIN. Man from the FBI?

Mr. GRAVES. Yes; I have that in the little report that I wrote, but I can't think of his name right now. It is a simple name, too, but I can't think of it.

Mr. GRIFFIN. Was it Hall?

Mr. GRAVES. Who?

Mr. GRIFFIN. Hall?

Mr. GRAVES. No.

Mr. GRIFFIN. Well, that is all right. We can get that.

Mr. GRAVES. It wasn't him. Oh, let's see——

Mr. GRIFFIN. Any other police officers in the office?

Mr. GRAVES. Let's see. Leavelle. I believe Montgomery was in there, too.

Mr. GRIFFIN. Now, what was said when you came in?

Mr. GRAVES. Well, I walked in and asked—last thing I heard was—Oswald say was that—“Well, people will soon forget that the President was shot.” And then—Chief Curry, incidentally, was in there at that time, too, and he was around over behind the desk by Captain Fritz. Between he and Mr. Sorrels, and something was discussed about an armored car, but they decided that they would send an armored car on as a decoy, because it couldn't get down into the basement.

Mr. GRIFFIN. You had heard a conversation about that?

Mr. GRAVES. I heard that discussed just briefly, the armored car was there, but——

Mr. GRIFFIN. Well, did you hear the discussion about a decoy?

Mr. GRAVES. Well, Captain Fritz turned back to me and Leavelle, told us that the armored car would go ahead, and that we would leave out in the regular car; so, he told Leavelle to handcuff himself to Oswald. Can I tell you something off the record?

Mr. GRIFFIN. Sure.

(Discussion off the record.)

Mr. GRIFFIN. All right.

Mr. GRAVES. I expect it doesn't matter. I thought about it later. It doesn't mean anything, I don't suppose, unless it has some sentimental value to him.

Mr. GRIFFIN. Did you hear Oswald say anything, or any other conversation with Oswald before you took him down?

Mr. GRAVES. I heard some other conversation, but I am vague on what it was. Discussion between he and—I wish I could remember that man's name. I want to say, "O'Malley." Seems like it was an Irish name. He was asking him something about his stay in Russia and some of his activities down in Mexico and—but just what his answer was, I am vague on it. He discussed something with him, and I wasn't paying too much attention at the time. Some answers that he gave.

Mr. GRIFFIN. Tell us what happened when Oswald went to get something?

Mr. GRAVES. We asked him if he would like to put on something. He just had on this white T-shirt, see, and asked him if he would like to put on something. So, when we got these clothes off the rack and started to give him a light-colored jacket or shirt, and said, "If it is all the same to you"—said, "I'd rather wear that black sweater."

Mr. GRIFFIN. Whose black sweater was that?

Mr. GRAVES. Well, his, presumably. So, we let him put it on.

Mr. GRIFFIN. Where were the clothes?

Mr. GRAVES. They were in the captain's office back there in the back, and brought them in there so he could pick out something to wear.

Mr. GRIFFIN. Were they all his?

Mr. GRAVES. Yes, yes; they were. Then——

Mr. GRIFFIN. Did you help him put his——

Mr. GRAVES. I assisted him in putting this on. Then, we, of course, started on out with him. Went on to the elevator, down the hall to what they call the jail office elevator.

Mr. GRIFFIN. Were you given any instructions as to how you should guard him?

Mr. GRAVES. As I said, I was—told to hold to the arm and walk close to him and Montgomery was to walk behind us and Captain Fritz, and Lieutenant Swain in front of us and that is the way we started out to the elevator, and out of the elevator door over to the jail office.

Mr. GRIFFIN. Was there any discussion about staying close to Oswald?

Mr. GRAVES. We were instructed to stay close to him; yes.

Mr. GRIFFIN. All right, now, was there any discussion about protecting Oswald from other people who'd like to get at him?

Mr. GRAVES. Well, to come down and tell us to do that would be elementary, actually, because, I mean, we just know to do that, and our captain knows that we know to do that. So, actually, we weren't specifically told, "Now, you just watch this man and don't let anybody touch him." Or anything like that. We were told that the way would be open and nobody would be interfering with us. Wouldn't be anybody there. All we would have to do was walk to the car.

Mr. GRIFFIN. Was there any fear that somebody might come right up in front of him and do something to him?

Mr. GRAVES. We didn't have any fear of that because as I said, that—we were told that the security was so that no one would be there but newsmen

and officers.

Mr. GRIFFIN. Now, prior to taking Oswald down to the basement, had you learned anything about the threatening telephone calls which the police department had received?

Mr. GRAVES. I had not. At that time I didn't know that there had been any threatening calls.

Mr. GRIFFIN. Did you subsequently learn?

Mr. GRAVES. Yes; learned later that the FBI had a call to that effect, but I learned that our office had had similar calls, too.

Mr. GRIFFIN. What route did you follow when you left Captain Fritz' office with Oswald?

Mr. GRAVES. Of course, went out our door and turned left, which would be—south.

Mr. GRIFFIN. Went into the third floor hallway?

Mr. GRAVES. Third floor hallway; yes, sir; and went to a solid door which leads us into the jail elevator.

Mr. GRIFFIN. As you walked out, were there news people out in the hallway?

Mr. GRAVES. Yes, lots of them.

Mr. GRIFFIN. Were there TV cameras up in the hallway?

Mr. GRAVES. Yes; all kinds of cameras.

Mr. GRIFFIN. Now, how long a period of time lapsed from the time you stopped answering the telephone calls until you got out on the third floor hallway with Oswald?

Mr. GRAVES. Ten or 15 minutes, I guess, approximately.

Mr. GRIFFIN. Now, when you stopped answering the telephone calls to go into Captain Fritz' office, were you aware that you were going in there for the purpose of getting ready to move Oswald out?

Mr. GRAVES. Yes.

Mr. GRIFFIN. How did you become aware of that?

Mr. GRAVES. We were told that we were going to move him.

Mr. GRIFFIN. Who told you that?

Mr. GRAVES. Captain Fritz.

Mr. GRIFFIN. He told you?

Mr. GRAVES. Yes; I don't know whether he walked out and told me. You know, in the process, the door was opened and he talked to some of us at the door and so forth.

Mr. GRIFFIN. Now, prior to the time that you actually went out there in the hallway with Oswald, did you have any information as to whether the people who were members of the press were aware that Oswald was about to be brought out?

Mr. GRAVES. I—it was my understanding they knew that he was to be transferred at 10 o'clock.

Mr. GRIFFIN. Well, I mean——

Mr. GRAVES. Well, no, no; we—if you mean if we—told them when we were leaving with him, we didn't do that. We just walked out with him.

Mr. GRIFFIN. But what about a sharp newsman who was keeping his eyes and ears open? Could he see through the door? Could he see the activity?

Mr. GRAVES. Could he see the preparation——

Mr. GRIFFIN. For bringing out——

Mr. GRAVES. Yes.

Mr. GRIFFIN. Could one see Oswald putting on his sweater, for example?

Mr. GRAVES. Maybe not that, but he could have seen us pass it over to him. I believe those blinds were open there on—coming out to the secretary's office there. I believe they were. I'm not sure about that, but if they were open they could have seen from the front door standing at the hallway at an angle. They could have seen that sweater or clothes changing hands. I don't believe where Oswald was standing he could see him from

that angle, but I—like I said, a good, sharp newsman knowing the activity, he could see and naturally know that something was fixing to happen.

Mr. GRIFFIN. When you arrived at the elevators on the third floor, was the elevator there waiting for you?

Mr. GRAVES. I think it was waiting right there for us.

Mr. GRIFFIN. Now, which elevator did you come down in?

Mr. GRAVES. It is called the inside jail elevator, which is used only for the transfer of prisoners from one floor to the other and basement.

Mr. GRIFFIN. And who went into the elevator with you?

Mr. GRAVES. Well, it was Leavelle, Montgomery, Swain, and Captain Fritz and myself and, of course, Oswald.

Mr. GRIFFIN. Where was Chief Curry at that time?

Mr. GRAVES. I don't know. He left just before we did and I don't know where he went.

Mr. GRIFFIN. How long would you estimate Chief Curry left before you people walked out of the homicide bureau with Oswald?

Mr. GRAVES. You know, I couldn't tell you. I—I—actually, the chief could have been standing in there somewhere and I wouldn't know it—because when we were given the final go to get him ready or get his sweater on him, I didn't pay any attention to who else was in there or what happened. They told me to get him ready and walked out with him. He could have left a few minutes ahead of us; I don't know, it would be a guess, because I really don't know.

Mr. GRIFFIN. All right. Now, what happened when you got to the basement?

Mr. GRAVES. Well, we got down to the basement. We hesitated on the elevator until Captain Fritz and Lieutenant Swain stepped out. Then we followed them around the outside exit door into the hallway which leads to the ramp and then hesitated there a little bit with Oswald so they could check out there and see that everything was all right, and when we got the go ahead sign that everything was all right we walked out with him.

Mr. GRIFFIN. And how many steps did you take before something happened?

Mr. GRAVES. You mean after we walked out in the hallway?

Mr. GRIFFIN. Yes.

Mr. GRAVES. It is approximately 15 feet from where I was to the jail house door where we came out into the hallway, roughly 15 feet.

Mr. GRIFFIN. Did you see Jack Ruby move out of the crowd?

Mr. GRAVES. No; I didn't see Jack Ruby move out of the crowd.

Mr. GRIFFIN. When was the first time that you noticed Jack Ruby?

Mr. GRAVES. I estimated before I saw the film it was a split second before he pulled that trigger and actually, he was taking a step and coming down like so [indicating]. I caught him out of the corner of my eye and I thought that I started reaching for him at that moment, which the film indicates that I did, which happened quickly, as you know.

Mr. GRIFFIN. Yes.

Mr. GRAVES. Just a matter of simultaneous movement. You just move when you see something like that.

Mr. GRIFFIN. Did you actually see the gun before you heard it—heard the shots fired?

Mr. GRAVES. Yes; in fact, that is the first thing I saw coming that way, and I just started after it, I guess, automatically, nothing else to do, that I could see.

Mr. GRIFFIN. Did you see how the newsmen were spread out as you walked out of that hallway?

Mr. GRAVES. I saw how they weren't spread out. I was under the impression there wouldn't be any news media inside that rampway, that they would be behind that area over there, but they were in the way.

Mr. GRIFFIN. How did you get that impression?

Mr. GRAVES. Well, Chief Curry told Captain Fritz that the security was taken care of, that there wouldn't be nobody in that ramp. Anyway, that



cameras would be over behind that rail of that ramp. So, what we expected to find was our officers along the side there, but we found newsmen inside that ramp, in fact, in the way of that car. Now, we—Captain Fritz sent Dhority and Brown and Beck on down to the basement in plenty of time to get that car up there for us, and when they got down there and run into mass confusion of pressmen, we almost backed over some of them to get up there.

Mr. GRIFFIN. Now, after Fritz sent Dhority and Brown down, did they send word back up to Fritz' office that everything was ready in the basement?

Mr. GRAVES. Somebody did. I believe Baker called—Lieutenant Baker called down from our office to check with the jail downstairs and see that everything was ready. Somebody gave them the word. I don't know whether it was Lieutenant Wiggins or who told them that it was all right. Everything was in order.

Mr. GRIFFIN. You say you were quite surprised when you saw these news people?

Mr. GRAVES. I was surprised that they were rubbing my elbow. You know, if you saw that film, you saw one of them with a mike in his hand. He actually rubbed my elbow. We were in a slight turn when this thing happened, and my attention had been called to that car door, and this joker was standing there with a microphone in his hand, and others that—I don't know if they were newsmen—they weren't officers—had cameras around their necks and everything.

Mr. GRIFFIN. As you looked up at that line of news people, from your left over to the TV cameras, how many lines deep is it your recollection that they were?

Mr. GRAVES. Well, I would say two or three deep until they crossed that ramp and went down the side. Might not have been more than one deep there. Might not have been much room, because the car was trying to come in there. Might have been two deep. I know there was a line of men there, and how deep I don't know. I saw through the corner of my eye a movement over there of men.

Mr. GRIFFIN. As you walked out, did you notice any police officers that you recognized?

Mr. GRAVES. Oh, yes; I recognized officers standing around the walls there.

Mr. GRIFFIN. As you walked out, did you see Officer Harrison?

Mr. GRAVES. No; I didn't see him. Matter of fact, I never did see him until it was all over. You are talking about "Blackie"?

Mr. GRIFFIN. "Blackie" Harrison; W. J. Harrison.

Mr. GRAVES. I didn't see him until it was all over.

Mr. GRIFFIN. When you saw Jack come forward with the gun in his hand, did you hear anybody say anything?

Mr. GRAVES. I heard noise. There was a racing of a motor and noises, talking going on. As I say, my attention had been directed to that car, and we had already turned, looked in that direction and something could have been said, but as I said, I heard noises but just exactly what was said I wasn't able to determine.

Mr. GRIFFIN. What do you remember doing when Jack came forward with the gun?

Mr. GRAVES. I remember going after the gun. Just the moment I saw him, that is what I actually did, was go for the gun.

Mr. GRIFFIN. And did you wrestle with him? With Jack?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Will you tell us what you remember Jack Ruby doing from the time you saw him and while you wrestled with him and so forth?

Mr. GRAVES. Well, I grabbed his arm by the wrist with my left hand, and grabbed right over the gun with my right hand simultaneously.

Mr. GRIFFIN. You grabbed the arm holding the gun?

Mr. GRAVES. Yes; and jerked it down and across my leg and turned my back to him, and, of course, he was trying to pull back, and was squeezing on that trigger like so [indicating].

I had his wrist here [indicating], and I could feel it, and I remember saying, “turn it loose. Turn it loose.” You know, like that.

Mr. GRIFFIN. Now, you are making a motion like you are twisting his arm?

Mr. GRAVES. Yes; I was. See, I had it like this, and I had got that arm and then twisted that gun like that [indicating], right out of his hand, see.

Mr. GRIFFIN. Let me indicate for the record that you have shown that you twisted his arm 180°.

Mr. GRAVES. Until he released it.

Mr. GRIFFIN. Until he released the gun?

Mr. GRAVES. Yes.

Mr. GRIFFIN. How long was it from the time you released—grabbed his arm until he released the gun?

Mr. GRAVES. Just a matter of seconds.

Mr. GRIFFIN. It was not a long struggle?

Mr. GRAVES. No.

Mr. GRIFFIN. Fairly easy to wrestle the gun away?

Mr. GRAVES. Put it this way. It wasn't easy because he had a grip on the gun, but the way I took it, he had to turn it loose. I had his arm—kind of hard to explain—take your arm and bend it over my leg like that and twist down on it like that [indicating]. You have got to give.

Mr. GRIFFIN. You are bending the arm over your leg?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Now, did Jack say anything?

Mr. GRAVES. He didn't say anything to me. I understand that he said something, that is, some things to the officer that took him in. I——

Mr. GRIFFIN. I mean, as you were struggling with him?

Mr. GRAVES. No; not to me. I had his arm over and my back to him and, of course, officers were covering him up, and when I got the gun loose from

him, of course, they snatched him away from me, and by the time I got straightened up to check that gun and see if the hammer was back or not, they had already taken him into the jail office.

Mr. GRIFFIN. What did you do there? You were standing there or lying?

Mr. GRAVES. I was standing. I never did go down.

Mr. GRIFFIN. Standing with the gun in your hand, what did you do at that point?

Mr. GRAVES. Put the gun in my pocket and went on inside the jail office.

Mr. GRIFFIN. When you arrived inside the jail office, where was Ruby?

Mr. GRAVES. Ruby was, I believe, to my right; just to my right, to the right of the jail office door. Of course, there were men around there and Oswald was back——

Mr. GRIFFIN. How long did you remain there?

Mr. GRAVES. I didn't remain with Ruby at all. Just kind of hesitated and looked over and went on. I believe Montgomery asked me if I got the gun and I said, "Yes," and kept on.

Mr. GRIFFIN. Where did you walk?

Mr. GRAVES. Walked back to where Oswald was.

Mr. GRIFFIN. Did you hear him say anything?

Mr. GRAVES. I didn't hear him say anything.

Mr. GRIFFIN. What did you do when you got back to where Oswald was?

Mr. GRAVES. Stood there and watched the doctor work with him until the ambulance came.

Mr. GRIFFIN. Then what did you do?

Mr. GRAVES. Well, they put him in the ambulance and I got in the ambulance with him and went to Parkland Hospital and got off there and took him right into emergency and worked with him a few minutes. And got him prepared for the operating room, and, so, we caught the elevator with him and with the doctors and nurses and went on up to the second floor, and

I changed into one of those scrub uniforms and crepe-soled shoes and went over to the door of the operating room, where I stayed until such time as he was pronounced dead.

Mr. GRIFFIN. Outside of the operating room?

Mr. GRAVES. Yes.

Mr. GRIFFIN. As you were standing outside of the operating room, did you hear discussion about how Ruby got into the building?

Mr. GRAVES. No; I didn't—an FBI man came up there a little later and stood with me.

Mr. GRIFFIN. To go back just a minute, you have already told me this before in an earlier interview, but I want to make this clear for the record. You knew Ruby before this occasion when you saw him shoot Oswald?

Mr. GRAVES. I will tell you how I knew Ruby. He opened a joint, a dancehall down on South Ervay called the Silver Spur something like 10 years ago, approximately. That is where I first knew Jack Ruby existed. Since that time I have just known about Jack Ruby——

Mr. GRIFFIN. How did you know him down there?

Mr. GRAVES. Well, as a joint operator, you know, when you work in a uniform that is part of the business, to know who runs places.

Mr. GRIFFIN. What bureau were you in at that time?

Mr. GRAVES. I was in the radio patrol bureau at that time.

Mr. GRIFFIN. I see.

Mr. GRAVES. And later I learned that he opened a place out on Oak Lawn called The Vegas Club.

Mr. GRIFFIN. Did you see Ruby in the police department over the years before that?

Mr. GRAVES. I have never in my entire time at that police station seen Jack Ruby in the police station. Now, it is possible Jack was down there. I know he has been in jail, but to say that he, like some people do hang around the police station, I have never seen him do that, and I have worked all hours. That still doesn't mean that he couldn't have been coming in

there. However, with someone that worked opposite hours to me—and I wouldn't see him, but during the time that I have been there I have never seen him hanging around the police station. You know, speculation is, is that he is a friend of the police and so forth. He might have done some policeman some favor, I don't know that to be true, so, it would be speculating on my part to say that he was.

Mr. GRIFFIN. How long did you remain at Parkland Hospital?

Mr. GRAVES. Oh, I'd hate to say this for the record, not seeing my report. Until he died. This in the basement happened about 11:10, or 11:19, and we reached Parkland a few minutes after. He was pronounced dead at 1 something.

Mr. GRIFFIN. I don't really care about the exact time. We are going to get the time records and check it out there but what I am trying to establish is when you learned that he was dead, what did you do?

Mr. GRAVES. Well, of course, we made arrangements to get the pathologist up there and maintaining guards over him, even during the time he was in the morgue. We discussed that, and then Clardy and Brown were charged with that responsibility, and I changed clothes and me and Leavelle, I believe me and Leavelle came back to city hall with Officer Burgess.

Mr. GRIFFIN. About what time would you say he got back to the city hall?

Mr. GRAVES. Well, again, I wouldn't want to say definitely. I think somewhere around 2:30 or 3:45, somewhere in that vicinity.

Mr. GRIFFIN. Up to the time that you got back to city hall, had you heard anything about how Ruby might have gotten into the basement?

Mr. GRAVES. No; I hadn't, sure hadn't. Of course, everyone was wondering at that point how it happened and how he got in there, but I hadn't heard anything at that point. Hadn't seen or been around anybody except those that I went out there with and they didn't know any more than I did.

Mr. GRIFFIN. When you got back to the police department, what did you do?

Mr. GRAVES. I went back to the office, of course.

Mr. GRIFFIN. Homicide bureau?

Mr. GRAVES. Homicide bureau.

Mr. GRIFFIN. Who was there at the time?

Mr. GRAVES. Well, frankly, I don't remember who all were in the office. I know Jack Ruby was in Captain Fritz' office talking with him.

Mr. GRIFFIN. Who else was in Captain Fritz' office at the time?

Mr. GRAVES. I don't know, frankly. That window blind was open there and I could see Jack Ruby, and I could see Captain Fritz and some other people were in there, but just who, I don't know.

Mr. GRIFFIN. Now, was Jack Ruby fully clothed at the time?

Mr. GRAVES. I believe they had already put some white clothes on him, jail clothes, taken his suit off of him.

Mr. GRIFFIN. Now, did you go into Captain Fritz' office?

Mr. GRAVES. No; I didn't. I didn't see Jack Ruby anymore until they transferred him to the county.

Mr. GRIFFIN. Did you talk to any police officer that day about how Ruby got into the jail?

Mr. GRAVES. As I say, I just heard rumors going around, and at this point I don't really remember who related it to me, but—there was rumors that he——

Mr. GRIFFIN. Do you remember as you got back there what the first rumor was that you heard circulating?

Mr. GRAVES. Yes; that he slipped in the basement by a squad car when they drove out the north ramp.

Mr. GRIFFIN. You heard this when you got back to the——

Mr. GRAVES. Sometime after I got back. Just exactly when, I don't know, but that got around shortly after. It could have been 2 or 3 hours later, I don't know.

Mr. GRIFFIN. What was the next rumor that you heard?

Mr. GRAVES. Well, I don't know. I heard that Chief Batchelor and a couple of the detectives had walked down the ramp and Ruby walked in with them, and I heard that he probably had a pass.

Mr. GRIFFIN. And——

Mr. GRAVES. Press pass, and he used that on one of the officers at the door to get in. You can hear everything.

Mr. GRIFFIN. When did you first hear the rumor that he had walked down the Main Street ramp?

Mr. GRAVES. Well, I can't remember. Just some time that day after we got back there from the hospital.

Mr. GRIFFIN. Did you hear it before or after the other rumors that you are relating?

Mr. GRAVES. That was the first one that I heard, really.

Mr. GRIFFIN. That he walked down the Main Street ramp?

Mr. GRAVES. That he walked down the ramp when that squad car drove out.

Mr. GRIFFIN. And people came out of Captain Fritz' office, who had been talking with Ruby, did you hear anything coming out of Captain Fritz' office as to how Ruby got in?

Mr. GRAVES. No; sure didn't.

Mr. GRIFFIN. Did you ever learn from any of the detectives who had been talking to Ruby in Captain Fritz' office how Ruby got into the jail basement?

Mr. GRAVES. Well, let's see. I don't know who it was, that told me how he (Ruby) got in. Now, Captain Fritz later told us that he asked Ruby how he got in there and he told him, I believe it was, at that time that he would rather not discuss that.

Mr. GRIFFIN. All right. And did Captain Fritz tell you this shortly after this interview that Fritz was having with Ruby?

Mr. GRAVES. It was some time after the interview. And I don't remember exactly when, but it was some time after he had talked with him.



Maybe the second time, I don't know, but it was some time after he had told him, and they told——

Mr. GRIFFIN. Now, at the time that Ruby—at the time that you learned from Fritz that Ruby didn't want to talk about how he got in this basement, had you already heard that Ruby came down the ramp?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Had you already heard the other rumors which you have related?

Mr. GRAVES. Yes.

Mr. GRIFFIN. Did you later hear from Captain Fritz, or any other police officer that he had talked with Ruby and Ruby had said something about how he got in——

Mr. GRAVES. I didn't hear that from Captain Fritz that I know of.

Mr. GRIFFIN. But, from any other police officer?

Mr. GRAVES. Something to the effect that he told somebody how he got in there, but I never did find out the straight of that. They had started a full scale investigation in terms of what happened in the basement at that time. Nobody was telling anybody anything so I just dropped it.

Mr. GRIFFIN. About what time did they——

Mr. GRAVES. I don't know exactly when they started that, but, they started trying to find out what happened, and I am sure, immediately.

Mr. GRIFFIN. Did you ever talk with Officer Dean, as far as you can remember?

Mr. GRAVES. I didn't discuss it with Officer Dean at all.

Mr. GRIFFIN. Did you ever talk with Officer McMillon?

Mr. GRAVES. No.

Mr. GRIFFIN. Or Officer Clardy?

Mr. GRAVES. Can we go off the record?

Mr. GRIFFIN. Yes.

(Discussion off the record.)

Mr. GRIFFIN. On the record for this. Is there anything that we haven't covered in connection with the murder of Lee Oswald, including how Ruby got into the basement, or things that might shed some light upon Ruby's motive or possible associates that he might have had that you could tell the Commission?

Mr. GRAVES. No, and I wish that there was. Listen, as I said, we have heard a lot of things but we have never been able to prove anything, so, again, what I have heard is just speculation, and just talk. I have heard that he was connected with any number of people. Trying to prove that—telling us—but there is nothing concrete in terms of evidence to prove that he was connected with them in any way, so far as I know. Somebody may know something that I don't know.

Mr. GRIFFIN. Do you know anything of your own knowledge that you think might bear light one way or the other?

Mr. GRAVES. No, I don't; again, like I say, I wish that there was something, but, of course, I am sure that everybody is like me and listen to everybody and everything and try to make sense out of this thing to the best of their ability by checking everything.

Mr. GRIFFIN. I'm going to mark for identification here—we are going to call this, "Dallas, Tex., Detective Graves, March 24, 1964. Exhibit No. 5003." And I'm going to mark these pages 5003-A and 5003-B and 5003-C. Now, these are copies of FBI reports which purport to be interviews that were had by the FBI agents, with you. Exhibit 5003-A is a report of an interview on November 24, taken by Special Agent Bookhout and Agent Rabidoux. Do you remember approximately when these gentlemen talked with you?

Mr. GRAVES. To the best of my recollection, it was in the evening part of the day, but just exactly when, I don't know.

Mr. GRIFFIN. Now, Exhibit 5003-B, and Exhibit 5003-C, consists of one interview with you by Special Agent Bookhout, Jim Bookhout.

Mr. GRAVES. Yes.

Mr. GRIFFIN. And that was dated on November 24. Do you remember approximately what time of day that was?

Mr. GRAVES. That was pretty soon after this thing happened, after I got back from the hospital, so, you can say roughly, I guess, around 3 o'clock, 3 or 4 o'clock. That is just—that is an approximate time. He was the first one I talked to. There was something in there that I want to call your attention to, though.

Mr. GRIFFIN. Let me hand these to you and let you examine Exhibits 5003-A, 5003-B and C, and tell us if there is anything in there that you would want to amplify or correct or change in any manner?

Mr. GRAVES. Let me see. I will have to find it now.

Mr. GRIFFIN. Just take your time.

(Discussion off the record.)

Mr. GRAVES. This right here says, "Captain Fritz was in the lead and was standing at the edge of the ramp waiting to get into the front seat of the car," actually, he was at the rear of that car door, fixing to open it, if he didn't already have it open.

Mr. GRIFFIN. What exhibit number are you referring to, sir?

Mr. GRAVES. 5003-B. No; that's right here. "Graves and Leavelle stopped momentarily for the car to back up," that is a bad choice of phrasing in that situation. We, actually can't say that we were stopped, we were still in motion when this thing happened. It was a momentary glance to the right and a slight turn in that direction, but we were still in motion.

Mr. GRIFFIN. Did you make this correction as a result of having viewed the movies, or something that you remember independently of the movies?

Mr. GRAVES. I remembered that later. Of course, I saw it also on the movies later which verified it, but after I had gotten this thing and read it over then, I realized that we actually hadn't stopped.

Mr. GRIFFIN. I recall that I have neglected to administer an oath to you in the course of this deposition, Mr. Graves. I wonder if you would raise your right hand. Do you solemnly swear that everything that you have said here today is the truth, the whole truth and nothing but the truth?

Mr. GRAVES. I do.

Mr. GRIFFIN. Is there anything more that you have to tell us?

Mr. GRAVES. I can't think of anything at this time. Except for those little things, I believe those are basically true and correct.

Mr. GRIFFIN. We certainly appreciate your coming here today.

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## **TESTIMONY OF L. C. GRAVES RESUMED**

The testimony of L. C. Graves was taken at 10:55 a.m., on April 17, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is a continuation of the deposition of Mr. L. C. Graves of the Dallas Police Department.

Mr. Graves, as you know, my name is Leon Hubert, and I am one of the staff members of the Commission.

Previously, to wit, on March 24, 1964, you gave a deposition through which Mr. Burt Griffin appeared as a staff member. He cited to you at that time the authority under which he was acting, and also I think you took an oath at that time?

Mr. GRAVES. Yes.

Mr. HUBERT. Are you willing to consider this morning's continuation as a part of that deposition given on March 24, 1964, in the sense that I am acting under the same authority and have the same authority as Mr. Griffin had?

Mr. GRAVES. Yes.

Mr. HUBERT. Are you willing to consider also that you are under the same oath that you took at the earlier time for this later time?

Mr. GRAVES. Yes.

Mr. HUBERT. And that this is just a continuation?

Mr. GRAVES. That's right.

Mr. HUBERT. As though it were the next day instead of 3 weeks later?

Mr. GRAVES. Yes.

Mr. HUBERT. The purpose of asking you to come back is to clarify something which appears on pages 67 and 68 of your deposition on March 24, 1964. At line 17 on page 67, you asked Mr. Griffin as follows:

“Can I tell you something off the record?” And he answered in line 18, “Sure.” Then, the record at line 19 indicates that there was a discussion off the record. Now, you give an answer between lines 21 and 24 as follows, to wit:

“I expect it doesn’t matter. I thought about it later. It doesn’t mean anything, I don’t suppose, unless it has some sentimental value to him.” Now, the next sentence and the next few lines which go over to page 68, do not seem to refer to the matter which in that quoted sentence you designated as “having some sentimental value.” Now, I invite your attention to lines 15 through 22 on page 68 and ask you to read those lines.

Mr. GRAVES. Starting with Mr. Griffin?

Mr. HUBERT. No; starting with your answer.

Mr. GRAVES. “We asked him——”

Mr. HUBERT. No; don’t read them out loud, just read them to yourself.

Mr. GRAVES. [Read deposition as requested by Counsel Hubert.]

Mr. HUBERT. Now, I ask you if the thought contained in your testimony at page 68 between lines 15 and 22 does not relate to the matter which you had characterized as something having a sentimental value to him on lines 22 thru 24 on page 67?

Mr. GRAVES. That’s what I had reference to.

Mr. HUBERT. Would it be fair to say, then, that there was no more to the conversation off the record than the subject of something that had a sentimental value, and that the thing that did have sentimental value was explained by you in your answer on page 68 between lines 15 and 22?

Mr. GRAVES. Not only would it be fair, but it would be truthful, because that’s exactly what happened.

Mr. HUBERT. That’s exactly what happened and nothing more?

Mr. GRAVES. And nothing more or nothing less.

Mr. HUBERT. Thank you very much.

Mr. GRAVES. That's all?

Mr. HUBERT. Yes; that's all. I hate to bring you down for something like this, but we had to do it to get it clear.

Mr. GRAVES. That's all right—that's all right.

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## **TESTIMONY OF JAMES ROBERT LEAVELLE**

The testimony of James Robert Leavelle was taken at 3:30 p.m., on March 25, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of James R. Leavelle, with the Dallas Police Department. Mr. Leavelle, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel on the President's Commission. Under the provisions of the Executive Order 11130, dated November 29, 1963, and Joint Resolution of Congress No. 137 and the rules of procedure adopted by the Commission in accordance with the Executive order and the joint resolution, I have been authorized to take a sworn deposition from you, Mr. Leavelle. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relevant to the assassination of President Kennedy and subsequent violent death of Lee H. Oswald. In particular to you, Mr. Leavelle, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry.

Mr. Leavelle, you have appeared today by virtue of a general request made to Chief Curry by Mr. J. Lee Rankin, the general counsel of the staff of the President's Commission, and also, under the rules of the Commission, you are entitled to a 3-day written notice prior to the taking of the deposition, but the rules also provide that a witness may waive this 3-day notice, if he wishes to do so. Now, you have not had that 3-day notice, and so, I wish to know if you would like to waive the 3-day notice?

Mr. LEAVELLE. Yes.



Mr. HUBERT. All right, then, would you—I think you said you would waive that notice, didn't you?

Mr. LEAVELLE. Yes.

Mr. HUBERT. Would you stand and raise your right hand so that I can swear you in?

Do you solemnly swear that you will tell the truth, the whole truth and nothing but the truth, so help you God?

Mr. LEAVELLE. I do.

Mr. HUBERT. Will you please state your full name?

Mr. LEAVELLE. James Robert Leavelle.

Mr. HUBERT. Your age?

Mr. LEAVELLE. Forty——

Mr. HUBERT. Your residence?

Mr. LEAVELLE. Wait. Forty-three.

Mr. HUBERT. Your residence?

Mr. LEAVELLE. 7703 Rilla Avenue, Dallas, Tex.

Mr. HUBERT. What is your occupation, sir?

Mr. LEAVELLE. Police officer.

Mr. HUBERT. Dallas Police Department?

Mr. LEAVELLE. That's right.

Mr. HUBERT. How long have you been so occupied?

Mr. LEAVELLE. Fourteen years, approximately.

Mr. HUBERT. How long have you held the position you now hold?

Mr. LEAVELLE. About 8 years.

Mr. HUBERT. What is that position?

Mr. LEAVELLE. A detective.

Mr. HUBERT. Any particular part of the department?

Mr. LEAVELLE. I work at the present time in the homicide and robbery bureau.

Mr. HUBERT. Who is your immediate superior there?

Mr. LEAVELLE. Capt. Will Fritz.

Mr. HUBERT. And who is above him?

Mr. LEAVELLE. Chief Stevenson.

Mr. HUBERT. Who answers, in turn, to Chief Curry?

Mr. LEAVELLE. Yes.

Mr. HUBERT. Now I pass to you two documents which you have read, and which I now want to identify, by marking them as follows: The first document, which purports to be a report by FBI Agent Bookhout, of an interview with you on November 24, I am marking as follows: "Dallas, Tex., March 25, 1964, Exhibit No. 5088. Deposition of J. R. Leavelle." I am signing my name below that, and marking the second page with my initials, in the lower right-hand corner. The second document I am also marking, "Dallas, Tex., March 25, 1964. Exhibit 5089, deposition of J. R. Leavelle," and signing my name also and placing my initials in the lower right-hand corner of the second page of that document. The second document, 5089, purports to be an FBI report of an interview with you by Special Agents Bramblett and Logan. Now, addressing myself first to the document which is marked 5088, I will ask you if you have read that document?

Mr. LEAVELLE. Yes.

Mr. HUBERT. And whether or not it states substantially the truth?

Mr. LEAVELLE. Substantially so.

Mr. HUBERT. Now, did you find any errors in it?

Mr. LEAVELLE. No; I think that is all right.

Mr. HUBERT. Do you wish to delete or add anything to it?

Mr. LEAVELLE. No; let it stand.

Mr. HUBERT. With that, would you, please, sign your name below mine, if you wish, and initial the second page below my initials. Now, I hand you

the document that I have marked for identification as Exhibit 5089, and ask you the same questions with respect to that document.

Mr. LEAVELLE. Yes; I think this is the one that had the article in there about the short interview, if it makes any difference.

Mr. HUBERT. Well, would you point out what paragraph you are talking about?

Mr. LEAVELLE. Let me see if I can find it here. I am sure it was on this one rather than the other one. There was one right here on the—on the one Bookhout took. Now, let me see that again.

Mr. HUBERT. Here.

Mr. LEAVELLE. It is the contents of the last paragraph on the second page, Mr. Hubert.

Mr. HUBERT. I think you are speaking of the third sentence of the last paragraph on the second page, a sentence which reads as follows, to wit: "He was never present while Oswald was being interviewed, nor was he present while Ruby was being interviewed by the Dallas Police officers." I think you wish to comment upon that, do you not?

Mr. LEAVELLE. Correct that to read, "With the exception of possibly 15 minutes prior to the actual transfer began on the 24th."

Mr. HUBERT. That is to say, after you had been selected as an officer to whom——

Mr. LEAVELLE. Would handle the transfer.

Mr. HUBERT. You were directed to go to Captain Fritz' office, and you did so, is that right?

Mr. LEAVELLE. Of course, I was directed to go there early in the morning. I have that. What I am referring to, of course, once I got Oswald out of jail I stayed with him up to the end.

Mr. HUBERT. When did you get him out of jail?

Mr. LEAVELLE. I got him out of jail at, oh, I don't remember the exact time, but it was—it was between 9:30 that morning that I was instructed to

go get him by Captain Fritz from the jail, and bring him to his office, which I did, and I went into his cell and put the handcuffs on him inside the cell.

Mr. HUBERT. And you brought him down to——

Mr. LEAVELLE. Brought him down, and I remained with him, or in the office from then on up until the actual transfer took place.

Mr. HUBERT. Well, during that period, was there interviewing going on only 15 minutes?

Mr. LEAVELLE. Well, I made a note here, “at 9:30,” but I could be in error on that time. They may have talked—I am sure that my note is in error here. It would probably be between 10:30 and 11, probably an hour off of that. However, there is a transfer sign out which would show the correct time.

Mr. HUBERT. That is what you call a—“tempo”?

Mr. LEAVELLE. The “tempo,” yes, which shows the correct time.

Mr. HUBERT. Anyway, you were with Oswald at all times from the time of the “tempo,” until he was actually shot?

Mr. LEAVELLE. Yes.

Mr. HUBERT. And any interviewing that happened in that period you were present at?

Mr. LEAVELLE. Yes, sir.

Mr. HUBERT. So that you want to modify Exhibit 5089, in the sentence that I read in that respect?

Mr. LEAVELLE. Yes, sir.

Mr. HUBERT. Do you know Jack Ruby, sir?

Mr. LEAVELLE. Yes, I had known him. I have—I had previously stated I met him back in 1951, or thereabouts, when I was working the area that his Silver Spur was located in on South Ervay, and became acquainted with him.

Mr. HUBERT. I understand that some time in 1963, you received an anonymous call that there was going to be a hijacking of his club. What

does that mean, a “hijacking”?

Mr. LEAVELLE. That means that someone is going to use a pistol and take the money from the cashier, or whoever had custody of it.

Mr. HUBERT. In other words, a robbery, or burglary?

Mr. LEAVELLE. Armed robbery is what it amounts to.

Mr. HUBERT. So, in order to guard against that, you and a fellow officer went down to——

Mr. LEAVELLE. Yes.

Mr. HUBERT. Down to the club and stayed there watching for it?

Mr. LEAVELLE. We stayed there until closing time. I think they stopped the people from coming in, I believe.

Mr. HUBERT. You did not tell Ruby what was going on?

Mr. LEAVELLE. Yes; we told—of course, Ruby was not there. This was the Carousel Club on Oak Lawn, which was operated by his sister, Eva Grant, and we told her what the situation was, and she gave us a—use of a booth near the door where we could get there in the booth and observe anyone coming in or out.

Mr. HUBERT. That was the Vegas Club on Ervay?

Mr. LEAVELLE. No, sir; on Oak Lawn. That is the Carousel on Commerce Street.

Mr. HUBERT. The Silver Spur?

Mr. LEAVELLE. The Silver Spur, it has long since been out of existence.

Mr. HUBERT. So, you told his sister what the situation was?

Mr. LEAVELLE. Yes.

Mr. HUBERT. And Ruby came in later?

Mr. LEAVELLE. He came in just about closing time, and she probably had called him, because he already knew that we were out here. Of course, I just am assuming she had probably already called him. He didn't seem particular perturbed about it at that time.

Mr. HUBERT. Did you recognize Ruby right away when he came out of the crowd?

Mr. LEAVELLE. I recognized him as someone that I knew, but I was unable to call his name.

Mr. HUBERT. Just describe in your own words how the whole thing happened, what you saw from the time you left the jail door?

Mr. LEAVELLE. From the time we left the jail door?

Mr. HUBERT. Yes; push it back a little further. From the time you left the jail cell.

Mr. LEAVELLE. All right, when we left the jail cell, we proceeded down to the booking desk there, up to the door leading out into the basement, and I purposely told Mr. Graves to hold it a minute while Captain Fritz checked the area outside. I don't know why I did that, because we had not made any plans to do so, but I said, "Let's hold it a minute and let him see if everything is in order." Because we had been given to understand that the car would be across the passageway.

Mr. HUBERT. Of the jail corridor?

Mr. LEAVELLE. And that—and we would have nothing to do but walk straight from the door, approximately 13 or 14 feet to the car and then Captain Fritz—when we asked him to give us the high sign on it he said, "Everything is all set."

Mr. HUBERT. Did you notice what time it was?

Mr. LEAVELLE. No; I did not. That is the only error that I can see. The captain should have known that the car was not in the position it should be, and I was surprised when I walked to the door and the car was not in the spot it should have been, but I could see it was in back, and backing into position, but had it been in position where we were told it would be, that would have eliminated a lot of the area in which anyone would have access to him, because it would have been blocked by the car. In fact, if the car had been sitting where we were told it was going to be, see—it would have been sitting directly upon the spot where Ruby was standing when he fired the shot.

Mr. HUBERT. Of course, in that case the television cameras would have been blocked out?

Mr. LEAVELLE. That's true.

Mr. HUBERT. The car was not pulled back because pulling it back would block the——

Mr. LEAVELLE. That, I don't know. Of course, you are—according to one of my previous reports I earlier suggested to Captain Fritz that we make the suggestion to the chief that we take him out to the first floor and put him out at Main Street to a car and proceed to the county jail that way and leave them waiting in the basement and on Commerce Street, and we could be to the county jail before anyone knew what was taking place.

Mr. HUBERT. What time did you make that suggestion, sir?

Mr. LEAVELLE. That was either just before or just after—probably just after I had gone there and got Oswald and we were talking about the transfer.

Mr. HUBERT. Who did you make that suggestion to?

Mr. LEAVELLE. I made it to Captain Fritz.

Mr. HUBERT. What answer did you receive from him?

Mr. LEAVELLE. Said he didn't think the chief would go for it.

Mr. HUBERT. Did he say why?

Mr. LEAVELLE. Because, he said, the chief had given his word to the press that they would transfer him at a time when they could make pictures.

Mr. HUBERT. Did you convey that same idea to the chief, himself, or to anyone other than Fritz?

Mr. LEAVELLE. Other than to Mr. Beck and Brown, Mr. Clardy that was there—Mr. Graves rather. They probably heard me make the suggestion. In fact, Mr. Beck made the suggestion at the same time that we could—I know that he was there, because he made the suggestion at the time, same time, said well, that we could either—instead of going out the Commerce Street, in front of all the people lined up, go out the basement in the opposite direction.

Mr. HUBERT. You mean even if you are going to use the basement, use the Main Street instead of Commerce Street?

Mr. LEAVELLE. That's right; and he made that suggestion. Of course, Chief Curry had already given his word to the newsmen that they would transfer him and let them get the pictures, and I have just assumed since that the reason that the car wasn't in position like it was supposed to be was so that they could get the pictures, and the reason for not holding to the schedule previously outlined.

Mr. HUBERT. Have you spoken to the chief about that since?

Mr. LEAVELLE. No; I have not.

Mr. HUBERT. Have you spoken to anybody about it, sir?

Mr. LEAVELLE. No; I haven't spoke to anyone other than possibly just some of the officers making a remark, "If he had used my suggestion, that we would probably have made it."

Mr. HUBERT. You said that you had reported making that suggestion in one of the reports that you made?

Mr. LEAVELLE. Yes; I think it is in this one right here, I believe.

Mr. HUBERT. Do you have a copy of that?

Mr. LEAVELLE. Yes—that is another one.

Mr. HUBERT. Off the record.

(Discussion off the record.)

Mr. HUBERT. Well, now, you have made reference to another report which appears on page 63, Commission's Document No. 81-A, entitled "Investigation of the operational security involving the transfer of Lee Harvey Oswald, November 24, 1963," prepared by the Dallas Police Department. I am not going to take that page 63, which is in two parts of the bound Commission Document 81-A, but I am going to identify it by marking on it, to-wit, as follows: "Dallas, Texas, March 25, 1964. Exhibit 5090, deposition of J. R. Leavelle," signing my name below that endorsement, and placing my initial on the second page in the lower right-hand corner. Who prepared this document, 5090?



Mr. LEAVELLE. I prepared it. It was typed by our secretary up here.

Mr. HUBERT. Was it signed by you?

Mr. LEAVELLE. No; it was not—well, wait a minute now. I believe there was one copy which was, but probably the original that—now, this looks like a mimeographed——

Mr. HUBERT. Mimeographed or photographed—one of those. Have you read it?

Mr. LEAVELLE. Yes, sir; I have read it. In fact, here is a copy of it.

Mr. HUBERT. Do you have a copy in your possession right now?

Mr. LEAVELLE. Yes.

Mr. HUBERT. Is it correct?

Mr. LEAVELLE. Yes.

Mr. HUBERT. Now, I notice the fourth paragraph on the first page, when you state that you had suggested the transfer be via the first floor of the Main Street door, and that is a recordation of that thought made—when was this dictated?

Mr. LEAVELLE. When was this dictated?

Mr. HUBERT. Yes.

Mr. LEAVELLE. It was, what you might say, some 2 or 3 days after that, after the shooting. I don't recall the exact date.

Mr. HUBERT. Well, would you——

Mr. LEAVELLE. In from 2 or 3 days afterward.

Mr. HUBERT. Would you complete the identification of this document by placing your signature directly below mine on the first page and your initials below mine on the second page? Did you state that fact to the FBI, sir?

Mr. LEAVELLE. I don't recall whether I did or not.

Mr. HUBERT. I don't believe it is in either of the other two documents of the FBI that I have here, 5088, or 5089. Is there any reason why you didn't?

Mr. LEAVELLE. Well, to the best of my knowledge it seems as though I might have made that suggestion, made the reference to that, but whether whoever was taking it said that they didn't need it in their report. I'm sure that's—now, of course, I can't swear to this, but I think that is correct because I know I—I am not able to recall at this time exactly what the conversation was between myself and the agent—I—in this, in its entirety, I do know there was one or two things that I told them about, which they did say that they didn't think was necessary for their report, so, they did not put it in there. Now, whether that was one of them or not, I do not recall.

Mr. HUBERT. On the occasion that you think that you might have stated that to the FBI agent, was there one agent interviewing you, or two?

Mr. LEAVELLE. I believe at one time the two were interviewing me.

Mr. HUBERT. How many interviews have you had with the FBI?

Mr. LEAVELLE. Twice. Mr. Bookhout was out, and then Mr. Bookhout interviewed me on the morning after the shooting, I believe. Is that correct?

Mr. HUBERT. Dated November 24.

Mr. LEAVELLE. Twenty-fourth.

Mr. HUBERT. That would be the day of the shooting?

Mr. LEAVELLE. Yes, that is what I mean, and then the other one was sometime after or with the two agents?

Mr. HUBERT. And you think it was during the interrogation by the two agents on December 10, 1963, that you mentioned about your suggestion that the route should be through the first floor of the Main Street entrance of the municipal building coming out the Main Street door?

Mr. LEAVELLE. That's right.

Mr. HUBERT. But, that those agents told you that that was not important?

Mr. LEAVELLE. They didn't need it for that particular form.

Mr. HUBERT. I see.

Mr. LEAVELLE. To the best of my knowledge, of course, my reason for double-crossing—my reasons for wanting to handle it the other way, I thought it would be done quicker and easier and I was fed up to my chin, in

a way, with these news people, and they—as soon as we could get rid of them the better, was my sentiments, and I didn't have any desire to parade through them with the prisoner in tow. However, I can understand why the chief wanted to let them take the pictures.

Mr. HUBERT. Had it been your decision you wouldn't have done it that way, is that it?

Mr. LEAVELLE. Either as I suggested, or at a different hour.

Mr. HUBERT. Say move him in the morning early?

Mr. LEAVELLE. Yes, I brought Ruby down in safety and I don't think there was any—as long as it was successful, I don't think you can argue with success.

Mr. HUBERT. Did you transfer Ruby?

Mr. LEAVELLE. Yes, I did.

Mr. HUBERT. It was done at an unannounced hour?

Mr. LEAVELLE. Well, sir; it was so unannounced that the chief didn't know about it and neither did Sheriff Decker. I don't know whether they will admit that or not, but no one knew it but Captain Fritz and myself and three or four officers directly involved.

Mr. HUBERT. You all just decided to do it, and that was it?

Mr. LEAVELLE. Well, the captain called me and asked me about it and told me what he was thinking about doing and he wanted to know if I thought it would work and I said, "Yes, I think it will the way it has been set up," and he said, "I haven't asked the chief about it," and I said, "All you can do is get a bawling out, but a bawling out is better than losing a prisoner."

Mr. HUBERT. Did you get bawled out about it?

Mr. LEAVELLE. I didn't. I did not know whether he did or not. I doubt it. Because I am sure the chief was relieved to be rid of the responsibility.

Mr. HUBERT. How was Ruby removed, then, just for the record?

Mr. LEAVELLE. Well, this would be on Monday morning, I guess, the next Monday morning around 11, around the same hour that Oswald was

transferred. The captain had not showed up and I—he called on the telephone and asked for me and his secretary called me to the phone, and I was in the squad room where several officers were, and asked me if I was in a position where I could talk, and I said, “No, not really,” and he said, “Well —” told me to go into his office and take the phone in there, which I did, and he said, “I am down at the Greyhound Bus Station, and I have Officers Graves and Montgomery with me.”

He had run into them on the street. Said, “We have cased the jail and it looks clear. I am going to make a suggestion to you, and if you don’t think it will work I want you to tell me.”

Said—he said, “We’ll pull through the basement of the city hall,” said, “You go get Ruby out of the jail anyway you want to, on a “tempo” or whatever you think best, and bring him down to me, down in the elevator and we’ll pull through the basement at some given time, and we’ll load him up and whisk him right on down and let another squad follow us and we will take him right on down to the county jail.”

Said, “The sheriff—I haven’t called Decker or the chief about it, either.” Said, “Do you think it will work?”

I said, “Yes.” Said, “How many men—got enough there to help you with him?”

I said, “Yes, there is three or four here I can get.”

“Don’t tell anybody where you are going. Just get them like you are going after coffee and get downstairs or somewhere and tell them what you are going to do.”

So, I went into the squad room (Captain Fritz had called) Lieutenant Wells, and told him not to let the officers out of the office because he wanted us when he got in there so I just walked out and motioned to Mr. Brown and Dhority and Mr. Beck and told them to follow me, and didn’t say a word to anyone, and walked downstairs, and, of course, they are curious, and when I got downstairs I outlined the deal to them and told Beck and Brown to get the car—get the other car in the basement and have it in position to go out, and Dhority and I went up and got the prisoner and brought him down.

Mr. HUBERT. Brought him down the jail elevator?

Mr. LEAVELLE. Down the jail elevator.

Mr. HUBERT. Were any newsmen down in the station?

Mr. LEAVELLE. Beg your pardon?

Mr. HUBERT. Were there any newsmen down in the basement?

Mr. LEAVELLE. In fact, when I walked out one of the newspapermen asked me when we were going to transfer Ruby and I said, "Oh, I don't know." And just like that, and walked on.

Mr. HUBERT. You had Ruby with you?

Mr. LEAVELLE. You mean—oh, no; the officers and I walking down. When we brought Ruby down in the jail elevator, that elevator is never in view of the public. It is an inside elevator. Never in view of the public, so, anyway, after talking to the captain, I set my watch with his and said, "Be there at exactly 11:15."

So, he set his watch with mine and we brought Ruby down. That is the reason—I got down there about a minute and a half, 2 minutes early to the basement and told the lieutenant on duty, told everybody not to ring for the elevator that we would have it tied up, just held him in the elevator.

Mr. HUBERT. Kept Ruby in the elevator?

Mr. LEAVELLE. Kept Ruby in the elevator. Mr. Brown standing outside of the jail office, Mr. Beck had his car, his motor running in the parking basement, and Mr. Brown was standing there talking to one of the men in the jail office just as though he was passing the time of day, and he was to give me the nod as soon as the captain's car pulled in on the ramp, which he did.

Mr. HUBERT. Which side did he pull in on?

Mr. LEAVELLE. Just came off the Main Street ramp and parked across the opening and when he saw him pull in, gave me the high sign and we took Ruby and told him, I said, "I don't want to have to push you or shove you. I want you to move." Of course, Ruby was scared, so, he almost outran me to the car. He ran and got in the back seat of the car with Graves, who was already in the back seat, and Montgomery was driving and Mr. Beck,

Dhority, and Brown got to the other car and followed us. We proceeded directly to the county jail.

Mr. HUBERT. Up Commerce?

Mr. LEAVELLE. We went up Commerce to the expressway and cut back on the expressway to Main Street, and came down Main Street to Houston Street where the jail is located, and around the corner on Houston Street, to the entrance of the county jail.

Mr. HUBERT. Did you have any trouble with the traffic going down Main Street?

Mr. LEAVELLE. We caught every light green going down. Didn't have to stop.

Mr. HUBERT. Did you have the sirens going?

Mr. LEAVELLE. No, we did not. We drove through there at a good little step faster than normal, but so happened we caught every light. I don't think we even missed a light. When we reached the jail, the officers in the car behind us bailed out and covered the entrance to the jail, and we were—had him inside in a matter of 20 seconds, from the time the car stopped.

Mr. HUBERT. All right, sir. Is there anything else you want to add about anything we have talked about?

Mr. LEAVELLE. I can't think of anything else that would be pertinent to it.

Mr. HUBERT. All right. Thank you. One more thing on this. You have not been previously interviewed by me, or any other members of the Commission's staff, have you, sir?

Mr. LEAVELLE. No, sir; I have not.

Mr. HUBERT. Okay. That's all.

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## **TESTIMONY OF DETECTIVE L. D. MONTGOMERY**

The testimony of Detective L. D. Montgomery was taken at 4 p.m., on March 24, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

MR. GRIFFIN. Before I administer the oath to you, I want to state for the record, and for your information, what this whole proceeding is all about, and I will introduce myself for the record. My name is Burt W. Griffin, and I'm a member of the advisory staff of the General Counsel's Office of the President's Commission to investigate the assassination of President Kennedy. Now, the Commission consists of seven men, Chief Justice Warren, Senator Cooper, Senator Russell, Congressman Ford of Michigan, and Congressman Hale Boggs of Louisiana, and Allen Dulles, and John McCloy. That is it. And this Commission has an investigatory staff, and that is us. Now, the Commission was appointed under what is known as Executive Order 11130, dated November 29, 1963, and also under a joint resolution of Congress, 137, and we have also prescribed, pursuant to this order and resolution, a set of rules and procedures which have been adopted by the Commission, and I have been authorized, pursuant to all those orders to take your sworn deposition. Now, a letter has been sent to Chief Curry indicating that I do have this authority to inquire and ascertain and evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent death of Lee Harvey Oswald. In particular to you, Mr. Montgomery, the nature of the inquiry today is to determine what facts you know about the death of Oswald, but also to develop any other pertinent facts that you may know about the general inquiry, but our central focus in this deposition is going to be on things connected with Ruby's killing of Oswald. Now, you have appeared here today on the basis of a request which

was made by the General Counsel of the Commission. Naturally, under the rules of the Commission you have a right to receive a 3 days' written notice prior to the taking of your deposition. We can be required to send you a letter in writing. Now I will ask you if, at this point, if you would desire that notice, or if you are willing to waive the notice?

Mr. MONTGOMERY. Waive it.

Mr. GRIFFIN. Okay. Also, I should tell you that you are entitled to have an attorney here if you want, and many of the witnesses have appeared with attorneys, and if you indicate to me that you would like to have your deposition postponed until you could talk with an attorney, I will be happy to do that also.

Mr. MONTGOMERY. I don't know any reason why I would need to consult with one.

Mr. GRIFFIN. Okay. Do you want to raise your right hand? Do you solemnly swear that the testimony you are going to give will be the truth, the whole truth, and nothing but the truth?

Mr. MONTGOMERY. I do.

Mr. GRIFFIN. All right, will you state for the record your full name?

Mr. MONTGOMERY. Leslie Dell [spelling] D-e-l-l Montgomery.

Mr. GRIFFIN. How old are you, Mr. Montgomery?

Mr. MONTGOMERY. 30.

Mr. GRIFFIN. Where do you live?

Mr. MONTGOMERY. 9043 Anaconda, here in Dallas.

Mr. GRIFFIN. What is your occupation?

Mr. MONTGOMERY. Police officer.

Mr. GRIFFIN. How long have you been so employed as a police officer?

Mr. MONTGOMERY. About 9 years.

Mr. GRIFFIN. Do you have a particular rank in the police department?

Mr. MONTGOMERY. Detective.



Mr. GRIFFIN. Are you assigned to a particular bureau?

Mr. MONTGOMERY. Homicide and robbery bureau.

Mr. GRIFFIN. How long have you been a detective?

Mr. MONTGOMERY. 4 years.

Mr. GRIFFIN. How long have you been assigned to homicide and robbery?

Mr. MONTGOMERY. 4 years.

Mr. GRIFFIN. Have you been interviewed by me prior to this deposition?

Mr. MONTGOMERY. That little deal—that earlier?

Mr. GRIFFIN. I talked to you of what? Approximately an hour, hour and a half ago in my office?

Mr. MONTGOMERY. About an hour ago.

Mr. GRIFFIN. And how long did we talk?

Mr. MONTGOMERY. About 15 or 20 minutes.

Mr. GRIFFIN. Now, have you been interviewed by any other members of the Commission's staff?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. How about FBI agents or other Federal agents?

Mr. MONTGOMERY. I have been interviewed by the FBI; yes.

Mr. GRIFFIN. Now, I believe that when you and I were talking in my office you indicated to me that you worked on Friday and Saturday, and that in particular on Saturday you left work about 9:30 in the evening?

Mr. MONTGOMERY. That's right.

Mr. GRIFFIN. Now, I have gone over this with you in the interview, but so that we have continuity here, I want to start at this point. Prior to the time that you went home Saturday night, did you hear anything from a police officer, or bystander or newspaperman or what have you, with respect to the proposed movement or a proposed movement of Lee Harvey Oswald to the county jail?

Mr. MONTGOMERY. I don't recall hearing it; no.

Mr. GRIFFIN. Did you hear any discussion at all or any rumors, or anything about that?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. All right. Now, what time did you return to work?

Mr. MONTGOMERY. Well, supposed to be there at 8. I was about 10 minutes late, I guess.

Mr. GRIFFIN. Now, before you arrived at the police department on Sunday morning——

Mr. MONTGOMERY. Yes.

Mr. GRIFFIN. Did you hear anything about the proposed movement of Lee Harvey Oswald?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. Didn't get any telephone calls with respect to it?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. Hear anything over the radio or TV?

Mr. MONTGOMERY. No. [Yes.]

Mr. GRIFFIN. Do you recall now how you got to work that Sunday morning?

Mr. MONTGOMERY. Drove my car.

Mr. GRIFFIN. And did you come in with anybody?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. Do you recall where you parked the car?

Mr. MONTGOMERY. Not offhand, I don't.

Mr. GRIFFIN. Do you recall entering the building?

Mr. MONTGOMERY. The city hall?

Mr. GRIFFIN. Yes; police department building.

Mr. MONTGOMERY. Yes.

Mr. GRIFFIN. Do you recall what entrance you came through?

Mr. MONTGOMERY. Basement.

Mr. GRIFFIN. Well, there are a number of entrances to the basement.

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. Do you remember which of the entrances to the basement you came through?

Mr. MONTGOMERY. I was trying to think. The East Commerce Street side, coming down to the basement area.

Mr. GRIFFIN. Now, there are a set of steps——

Mr. MONTGOMERY. I used the steps, not the ramp.

Mr. GRIFFIN. Now, does that refresh your memory in any way in terms of where you parked your automobile?

Mr. MONTGOMERY. I parked in the vicinity of our garage over there, on Young and Central, that is where I always park.

Mr. GRIFFIN. There is a police garage at Young and Central?

Mr. MONTGOMERY. Yes, sir; we usually park on the street out there around it.

Mr. GRIFFIN. Now, as you walked to work from your car, did you have occasion to go up Commerce Street?

Mr. MONTGOMERY. I came up Commerce.

Mr. GRIFFIN. Do you recall, as you came to work, whether or not there were people outside the building or newsmen?

Mr. MONTGOMERY. Yes; at that time I didn't think much of them out there, no.

Mr. GRIFFIN. Did you see any vans parked around there, TV vans?

Mr. MONTGOMERY. Had a big old TV bus looking thing out there.

Mr. GRIFFIN. Do you recall where it was parked?

Mr. MONTGOMERY. It was on Harwood, between Commerce and Main. That would be the east side of Commerce.

Mr. GRIFFIN. I am a little lost on the east side. You mean the east side of Harwood?

Mr. MONTGOMERY. I'm sorry. I meant Harwood. Did I say Commerce?

Mr. GRIFFIN. Yes.

Mr. MONTGOMERY. East side of Harwood there.

Mr. GRIFFIN. Did you walk up Harwood part way?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. How did you happen to see that on the east side of Harwood?

Mr. MONTGOMERY. Of course, you can see the thing sticking out there, right there in the intersection I guess, about 15-foot from the Commerce curb line there.

And, of course, it had been there for 2 or 3 days prior to that.

Mr. GRIFFIN. Do you know what TV station that van was?

Mr. MONTGOMERY. No, I don't for sure. I can make a wild guess, but it wouldn't be any good.

Mr. GRIFFIN. Well, are you familiar with a Bell Telephone Co. van that was located on Harwood Street?

Mr. MONTGOMERY. No. I—at different times there was a couple of them there. I didn't pay that much attention to them, what stations they was with, or anything like that.

Mr. GRIFFIN. When you walked down those steps, do you remember anything about whether there were any TV cables?

Mr. MONTGOMERY. There was cables there; yes.

Mr. GRIFFIN. Now, you know, there are three or four doors. As you get down to the bottom of the steps one goes into the hallway that leads into the records room, the other one, which almost faces that door and actually faces—leads towards Commerce Street, goes down into a subbasement, and then

there is a third door which leads into the engineroom, and that third door is off to the right as you walk down the steps. Are you familiar with those three doors?

Mr. MONTGOMERY. I knew there was one that went down to the engineroom and one that goes to the city hall. I don't recall the other being there. There very well could be. I just haven't paid much attention.

Mr. GRIFFIN. As you walked in did you notice whether there were any TV lines?

Mr. MONTGOMERY. Lines?

Mr. GRIFFIN. Cables?

Mr. MONTGOMERY. There were some cables there. I just don't——

Mr. GRIFFIN. Do you remember the door, or the door they were strung to?

Mr. MONTGOMERY. Go to the city hall, there is a double door that goes into the city hall——

Mr. GRIFFIN. That is the one that goes in that hallway?

Mr. MONTGOMERY. Yes.

Mr. GRIFFIN. How about the engineroom door?

Mr. MONTGOMERY. I didn't pay that much attention to it to say yea or nay.

Mr. GRIFFIN. When you walked in there, where did you go when you got into the hallway?

Mr. MONTGOMERY. Just went to the elevator.

Mr. GRIFFIN. That's right by the record——

Mr. MONTGOMERY. Yes, sir.

Mr. GRIFFIN. Did you see anybody that you knew in the area of the basement, other than police officers?

Mr. MONTGOMERY. Anybody I knew?

Mr. GRIFFIN. Yes.

Mr. MONTGOMERY. Other than police, I think just several civilians behind the desk over there, just the records clerk.

Mr. GRIFFIN. From there did you go to the homicide bureau?

Mr. MONTGOMERY. Yes, sir.

Mr. GRIFFIN. What time do you estimate you arrived at the homicide bureau?

Mr. MONTGOMERY. Probably about 10 after 8 when I got there.

Mr. GRIFFIN. Who was there when you arrived?

Mr. MONTGOMERY. Oh, Captain Fritz and Dhority, Leavelle and Graves, and I believe Mr. Beck and Brown was there.

Mr. GRIFFIN. All right; did you talk to any of them when you came in?

Mr. MONTGOMERY. Oh, I'm sure I passed the time of day with them.

Mr. GRIFFIN. Do you remember anything about any conversation you might have had with them?

Mr. MONTGOMERY. No; nothing outstanding.

Mr. GRIFFIN. What did you do when you arrived there? What sort of work did you start to do when you arrived at the homicide bureau?

Mr. MONTGOMERY. As soon as I walked in they walked out for coffee.

Mr. GRIFFIN. And you went out for coffee with them?

Mr. MONTGOMERY. No; I stayed there. Of course, I had just gotten there, so, I stayed and answered the telephones while they went out and had coffee.

Mr. GRIFFIN. How long did you continue to answer the phone?

Mr. MONTGOMERY. Of course when they went and drank coffee and came right back; I guess for probably 30 minutes.

Mr. GRIFFIN. What did you do when they got back?

Mr. MONTGOMERY. When they got back, of course, captain told us at that time that he was going to transfer Oswald later on and I think he said about 10, or something like that; so he sent two of the officers out to get Oswald

and bring him down. Wanted to talk to him. I was trying to remember what two went up after him. Anyway, two of them went up and brought him down. I don't remember which two it was.

Mr. GRIFFIN. When Fritz came out and talked about this, where were you standing?

Mr. MONTGOMERY. What's that?

Mr. GRIFFIN. When he sent these two men up.

Mr. MONTGOMERY. Yes; told them to go up and get him.

Mr. GRIFFIN. Where were you standing?

Mr. MONTGOMERY. Just outside of the office door.

Mr. GRIFFIN. And Fritz was outside of the office door?

Mr. MONTGOMERY. Stepped up to the door there.

Mr. GRIFFIN. Did he give you any instructions?

Mr. MONTGOMERY. No; didn't tell me anything in particular right then.

Mr. GRIFFIN. What is your estimate of what time that was?

Mr. MONTGOMERY. Let's see, approximately around 9 o'clock, somewhere around 9.

Mr. GRIFFIN. When, between the time you arrived and the time Fritz came out, did you talk with anybody about the possible movement of Oswald to the county jail?

Mr. MONTGOMERY. I was trying to think. No—let's see, I don't believe I did.

Mr. GRIFFIN. Was there any conversation in the office during that period?

Mr. MONTGOMERY. While they were gone out?

Mr. GRIFFIN. While you were there, conversation that you didn't participate in, necessarily, but other people were talking about the movement of Oswald to the county jail?

Mr. MONTGOMERY. No, sir.

Mr. GRIFFIN. Prior to the time that Fritz asked that these two officers bring Oswald downstairs, had you heard anything about the movement of Oswald?

Mr. MONTGOMERY. I think right before they told them to go up, said, "We are going to transfer him here around 10 o'clock." I think is what he said, and that is when he sent a couple of officers to, you know, to get him and bring him down.

Mr. GRIFFIN. What was your understanding as to what was going to be done when Oswald was brought down?

Mr. MONTGOMERY. Going to talk to him a little bit and transfer him, you know, down to the county.

Mr. GRIFFIN. Up to this time, had you heard anything about a threat that may have been made in connection with his transfer?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. Did you hear anything up to that point about how he was going to be moved?

Mr. MONTGOMERY. No; huh-uh.

Mr. GRIFFIN. Did you learn anything about what route might be used?

Mr. MONTGOMERY. No; up until the captain talked to us; no.

Mr. GRIFFIN. Do you remember anything else the captain told you at that time other than that they were going to bring him down and get him ready to move?

Mr. MONTGOMERY. No; said we was going to transfer him is all.

Mr. GRIFFIN. What did you do while these two officers were bringing Oswald down to Fritz' office?

Mr. MONTGOMERY. I didn't do anything outstanding. Must have been just answer the telephone.

Mr. GRIFFIN. Now, were the telephone calls that you were getting the same kind of calls that you had been getting?

Mr. MONTGOMERY. Yes.



Mr. GRIFFIN. Any useful information come out of these calls?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. What did you do after Oswald was brought down and while he was in Fritz' office?

Mr. MONTGOMERY. Well, when they brought him down we stepped into this office there and there was a—I was standing up there listening to the interview——

Mr. GRIFFIN. Did you remain in Fritz' office while he interviewed Oswald?

Mr. MONTGOMERY. Yes.

Mr. GRIFFIN. Who was in Fritz' office at that time?

Mr. MONTGOMERY. At that time, there was, of course, Captain Fritz, and there was Oswald, and I was there, Leavelle was there and Graves.

Mr. GRIFFIN. Was he in Fritz' office?

Mr. MONTGOMERY. Sir?

Mr. GRIFFIN. Was Graves in Fritz' office?

Mr. MONTGOMERY. Uh-huh; I believe, Dhority, I believe Dhority was in there. I am not sure, but Dhority was another one of our officers. I believe he was in there and, of course, he had Inspector Holmes.

Mr. GRIFFIN. Is he the postal inspector?

Mr. MONTGOMERY. Yes. Inspector Holmes, and I forget the man's name for—from the Secret Service.

Mr. GRIFFIN. Mr. Sorrels?

Mr. MONTGOMERY. Mr. Sorrels was there, yes; and a—one other man name—was what—who was that——

Mr. GRIFFIN. Were there any FBI agents there?

Mr. MONTGOMERY. I was trying to think if Mr. Bookhout was there, but I can't remember if he was inside.

Mr. GRIFFIN. Do you remember about what Oswald said and what was said to Oswald during that period?

Mr. MONTGOMERY. I remember they asked him why he shot the President, and, of course, he said he didn't do it.

Mr. GRIFFIN. Uh-huh.

Mr. MONTGOMERY. And, I don't recall the exact questions. Just asked him several questions there.

Mr. GRIFFIN. How long did this questioning last?

Mr. MONTGOMERY. Seemed like it was about 25 minutes or an hour that he was in there.

Mr. GRIFFIN. All right.

Mr. MONTGOMERY. Captain Fritz, you know, asking him questions, and he would ask Inspector Holmes or Mr. Sorrels if they would like to ask him a question, and, of course, they would ask him one.

Mr. GRIFFIN. Had you been present at any of the earlier interrogations of Oswald?

Mr. MONTGOMERY. No; I wasn't.

Mr. GRIFFIN. Why was it you happened to be present at this interview?

Mr. MONTGOMERY. I think I just got lost in the office. I was in there talking to the captain when they brought Oswald in, and, of course, the captain said, shut the door there, and some of the officers shut the door.

Mr. GRIFFIN. What did you happen to be talking to Fritz about?

Mr. MONTGOMERY. I don't recall. I know I was in his office when they brought Oswald down there.

Mr. GRIFFIN. You were there for the entire period of the interrogation of Oswald?

Mr. MONTGOMERY. That morning; yes, sir.

Mr. GRIFFIN. Do you remember during that period anybody coming into the office with respect to the movement of Oswald down to the county jail?

Mr. MONTGOMERY. The chief came in.

Mr. GRIFFIN. How many times do you recall the chief coming in?

Mr. MONTGOMERY. Just recall one time.

Mr. GRIFFIN. How long before the end of the interrogation was it?

Mr. MONTGOMERY. I imagine it was about—well, it was right there at the end, you know, when they was still talking, and the chief came in and wanted to know if we were ready to move him.

Mr. GRIFFIN. Did you hear Chief Curry say anything about the movement?

Mr. MONTGOMERY. No; I didn't hear the chief say anything, because he was talking to the captain, and when the chief and the captain talk—they were kind of talking low, and I wasn't straining my ears to hear, because I know if there was anything they wanted me to do, I know they would tell me.

Mr. GRIFFIN. How big a room is that?

Mr. MONTGOMERY. Not very big.

Mr. GRIFFIN. After this was over, did you hear anything?

Mr. MONTGOMERY. Of course, captain told us what we were going to do.

Mr. GRIFFIN. Where did he tell you what to do?

Mr. MONTGOMERY. In the office there.

Mr. GRIFFIN. Was Oswald there?

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. What did he tell you?

Mr. MONTGOMERY. He told us we was going to, you know, transfer him to the county jail.

Mr. GRIFFIN. Did he tell you how you were going to go?

Mr. MONTGOMERY. Told us we were going to use his car, the captain's car. Said he had an armored car down there, but they wasn't going to use it.

Mr. GRIFFIN. Did he tell you why he wasn't going to use it?

Mr. MONTGOMERY. I think he said it was too big and bulky.

Mr. GRIFFIN. Did he tell you what route you were going to take?

Mr. MONTGOMERY. Going to leave the basement, Commerce, Central, right straight up Main.

Mr. GRIFFIN. Were you aware of an earlier plan to take him by way of Elm Street rather than Main?

Mr. MONTGOMERY. He said that the armored car was supposed to go up Elm Street and act as a decoy.

Mr. GRIFFIN. What else did he tell you about how he was going to be moved?

Mr. MONTGOMERY. Of course, he said, no; he wanted Graves on one side and Leavelle on the other, and wanted Leavelle to handcuff himself to Oswald there so he wouldn't get away, and said, "I'll lead the way out." And told me, said, "I want you to follow behind Oswald," which I did.

Mr. GRIFFIN. Did he tell you what you were supposed to do?

Mr. MONTGOMERY. Huh?

Mr. GRIFFIN. Did he tell you what you were supposed to do?

Mr. MONTGOMERY. Make sure he didn't get away.

Mr. GRIFFIN. Was there some concern that Oswald might try to get away? Was this actually discussed, the possibility that Oswald might try to escape?

Mr. MONTGOMERY. I don't know that there was anything actually discussed about him trying to get away. No.

Mr. GRIFFIN. But you have the feeling that he might try to break away?

Mr. MONTGOMERY. No; I didn't have a feeling that he would try, but he just said to stay there with him and make sure he doesn't.

Mr. GRIFFIN. Well, did you feel that your reason, your primary reason for being behind him was to prevent him from getting away rather than to prevent somebody from getting to him?

Mr. MONTGOMERY. Keep him from getting away.

Mr. GRIFFIN. Did anybody explain to you before you went downstairs what the press setup was going to be in the basement?

Mr. MONTGOMERY. Well, they explained to me—no; because they told me what I was supposed to do, and that is all. They didn't say anything about the press. I heard the captain say that the big cameras was supposed to be back behind the rail there.

Mr. GRIFFIN. Did you hear anything said about where news personnel was supposed to be?

Mr. MONTGOMERY. No; I remember they said the news media were down there. No one was down there except news media and officers.

Mr. GRIFFIN. Now, do you remember any preparation that you made up in the office to take Oswald down to the basement?

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. Tell us about that.

Mr. MONTGOMERY. Well, he put on a black sweater. I think he changed shirts, changed shirts, and put on a black sweater. The captain asked him about something, if he wanted to wear a hat, and he said, "No." And, of course, they handcuffed him and handcuffed Leavelle to him. Now, other than that that is all I remember about it.

Mr. GRIFFIN. Now, as you walked out of the homicide office you went into the hallway on the third floor?

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. And there were news people out there, or were there?

Mr. MONTGOMERY. I don't recall seeing any out there.

Mr. GRIFFIN. Uh-huh. How about TV people? Do you recall seeing any TV people in the hallway?

Mr. MONTGOMERY. Didn't see any there.

Mr. GRIFFIN. All right. You got in the hallway, then did you turn left?

Mr. MONTGOMERY. Turned left; yes.

Mr. GRIFFIN. And you went to the area where it is sort of a foyer near the public elevators?

Mr. MONTGOMERY. No; a prisoner elevator we went down on.

Mr. GRIFFIN. You walked down the hallway to the left, and then you turned——

Mr. MONTGOMERY. Went inside the jail elevator door.

Mr. GRIFFIN. I see.

Mr. MONTGOMERY. That is only, I guess, about—I guess about 20 foot from the homicide office to that door, or something like that.

Mr. GRIFFIN. Did you have to wait for the elevator?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. What did you do?

Mr. MONTGOMERY. I unlocked the door and go inside and locked the door behind you and—on that particular occasion, I believe the elevator was waiting on us.

Mr. GRIFFIN. What happened when you got down in the basement?

Mr. MONTGOMERY. Well, we got off the elevator and walked around in front of the booking desk there. You want me to show you?

Mr. GRIFFIN. Let me get a—I'm going to mark this "Dallas, Texas, March 24, Detective L. D. Montgomery's deposition. March 24, 1964, Exhibit 5004." Now, I want to show you what has been marked as Exhibit 5004, which is a diagram of the basement area of the Police and Courts Building. Would you want to explain to us what you did there? Let me give you this pen.

Mr. MONTGOMERY. This is, of course—it shows the jail elevator. This is the elevator we came down on.

Mr. GRIFFIN. Came down in the jail elevator.

Mr. MONTGOMERY. Uh-huh, and of course, we came on the elevator here and I was of the first out of the elevator, because I was last, one of the last on, so, of course, I just stepped back here to the back and waited for all of

them to get out, and when they got out I took my position right in behind Oswald. Of course, we came around to the left here [indicating]. Around to this door here [indicating]. Out—went out into the——

Mr. GRIFFIN. Now, let me state for the record that you are indicating on the map that you walked around in front of the counter of the jail office.

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. To the jail office doors which lead to the hallway just before you get to the ramps in the basement.

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. Okay; what happened when you got to that door?

Mr. MONTGOMERY. When we got to the door, Captain Fritz told us to stop. He was going to check one more time the security.

Mr. GRIFFIN. Let me interrupt you here. Before you left the homicide bureau, did anybody notify you that the area was secured?

Mr. MONTGOMERY. The chief—well, they didn't notify—Captain Fritz told me that—told all of us that he had been advised that it was secure down there and they was ready for us to come down.

Mr. GRIFFIN. Did he tell you who told him that?

Mr. MONTGOMERY. No; he didn't say for sure.

Mr. GRIFFIN. Where was Chief Curry at the time that you people got that notice up in the homicide bureau, if you know?

Mr. MONTGOMERY. Now, I don't know whether—where he was at. He left there. He left our office.

Mr. GRIFFIN. How long before you got that notice did Chief Curry leave?

Mr. MONTGOMERY. How long before we got the notice did he leave?

Mr. GRIFFIN. Yes.

Mr. MONTGOMERY. Oh, I would say probably 5 or 10 minutes, because I know after he left they went ahead and put the sweater and shirt on Oswald and handcuffed him and everything, so, I imagine at least 5 or 10 minutes.

Mr. GRIFFIN. When you approached the jail office door, what happened?

Mr. MONTGOMERY. Captain Fritz stepped out into this door leading out to the ramp, and, of course, I didn't—I could not hear who he was talking to or what he said, but just stepped back and told us, "Come on."

Mr. GRIFFIN. And then what happened?

Mr. MONTGOMERY. Then we walked out the door there to—well, walked out to where—well, where the shooting happened, and we had to stop, because our car wasn't in position.

Mr. GRIFFIN. Did you actually stop or did you slow up?

Mr. MONTGOMERY. No—well, we may have just slowed up, I guess. We just slowed up because it was only things like just there a second.

Mr. GRIFFIN. Now, as you slowed up, did you get a look at the news media?

Mr. MONTGOMERY. Didn't get much of a look at anything.

Mr. GRIFFIN. Were you able to tell where the TV cameras were located?

Mr. MONTGOMERY. I assume they were over here, because all you could see was a glare of lights. You couldn't see anything.

Mr. GRIFFIN. Now, over to your left as the Main Street ramp comes down, were you able to tell how many rows deep the newspaper people were?

Mr. MONTGOMERY. No; I couldn't tell about how many rows there were.

Mr. GRIFFIN. All right; now, what happened after you slowed up?

Mr. MONTGOMERY. Well, can I back up here just a second.

Mr. GRIFFIN. Yes.

Mr. MONTGOMERY. Coming out this door here—[indicating] evidently several news media over in this area here [indicating].

Mr. GRIFFIN. Now, you are pointing to the area on the map——

Mr. MONTGOMERY. Be the north wall here [indicating]——



Mr. GRIFFIN. Would you place “X’s” on the map where you think you saw newspaper people.

Mr. MONTGOMERY. Looked to me all along right in here [indicating] because as soon as we came out this door, well, the—this bunch here just moved in on us.

Mr. GRIFFIN. I see. You want to—will you put those “X’s”? You want to make a little note, “Newspapermen,” or “news”——

Mr. MONTGOMERY. Like I say, they moved in towards us and had those long-looking microphones and cramming them over there in Oswald’s face.

Mr. GRIFFIN. Were there any police officers at the point where you have marked those “X’s”, holding them back?

Mr. MONTGOMERY. It could have been. I didn’t recognize them. Very well could have been.

Mr. GRIFFIN. Go ahead.

Mr. MONTGOMERY. Like I say, we came out there. They crammed those mikes over there, and we had to slow up for just a second, because they was backing this car into position. It was supposed to have been in position when we got there, but it wasn’t there, so, we had to pause, or slow down for the car to come on back. And, of course, this pause there—Captain Fritz opened the door of the car. He walked up to the door there. I don’t say he opened the door or not. I didn’t see him open the door. He just walked up to it and then I saw a blur or something and I couldn’t tell what it was. I couldn’t tell, and I heard what sounded like a shot.

Mr. GRIFFIN. And——

Mr. MONTGOMERY. And then——

Mr. GRIFFIN. Did you hear anybody say anything?

Mr. MONTGOMERY. There was—just fixing to say there was just kind of a roar, you know, people hollering and everything.

Mr. GRIFFIN. Before you heard this shot, did you hear anybody say anything?

Mr. MONTGOMERY. All these newspaper reporters were hollering, “Why did you shoot the President?” And all that stuff.

Mr. GRIFFIN. Off the record.

(Discussion off the record.)

Mr. GRIFFIN. Back on the record. Now, what did you say happened when you heard the shot?

Mr. MONTGOMERY. Well, Officer Graves was on Oswald’s left and I went around Officer Graves to try to help get—and, of course, when I got around there several officers had hold of him, and I grabbed him around the throat, and was applying a choke hold on him, and, of course, we drug him off to one side over on the cement there on the ramp.

Mr. GRIFFIN. What kind of struggle was he putting up?

Mr. MONTGOMERY. He was putting up a struggle—with so many officers on him, it wasn’t too much, could have—couldn’t have been too much.

First time we put him down it was right here [indicating].

Mr. GRIFFIN. Well, don’t put an “X” there. Block that “X” off. Make a circle, or something. You want to put a little arrow to that and say it was Ruby?

Mr. MONTGOMERY. Right here [indicating].

Mr. GRIFFIN. Okay; now, what did you do when you got him down on the cement at that spot?

Mr. MONTGOMERY. As soon as we got him down here we made a—I didn’t—some of the other officers was making a search for the pistol, and “Blackie” Harrison was standing there and we had—held him down on the ground, and I told Ruby—not Ruby—told “Blackie” Harrison, “Better get him inside the jail office.” At which time we all picked him up and brought him inside the jail office.

Mr. GRIFFIN. Did you hear “Blackie” say anything either before or after the shooting, or during the struggle?

Mr. MONTGOMERY. Not that I recall, no.

Mr. GRIFFIN. All right. Then you all took him inside the——

Mr. MONTGOMERY. Uh-huh. Brought him right in here. Laid him down on the floor just inside the door there.

Mr. GRIFFIN. What was he doing at that point? Still putting up a struggle or——

Mr. MONTGOMERY. We laid him down on the floor there. He hollered and said, “You all know me. I’m Jack Ruby.”

Mr. GRIFFIN. Do you know how he happened to yell that?

Mr. MONTGOMERY. Do I know that?

Mr. GRIFFIN. Yes; did you hear anybody holler anything to him at that time?

Mr. MONTGOMERY. I don’t remember hearing anything. Hollered—says, “You all know me. I’m Jack Ruby.” And then we let him down there and was looking for the pistol.

Mr. GRIFFIN. Uh-huh.

Mr. MONTGOMERY. I said—I said, “Where is the pistol at?” And Officer—Detective Graves walked up to where I was and said, “I have got the pistol right here.” And pulled it out of his pocket and showed it to me.

Mr. GRIFFIN. Did you search him?

Mr. MONTGOMERY. I did not.

Mr. GRIFFIN. Well, was he searched while he was in there?

Mr. MONTGOMERY. Well, everybody’s hands were going all over him; so, I am sure they were searching.

Mr. GRIFFIN. Were his pockets turned out?

Mr. MONTGOMERY. No; they didn’t actually turn them wrong side out; no, because everything would have fell out.

Mr. GRIFFIN. What did you do at that point?

Mr. MONTGOMERY. Well, after Graves showed us where the pistol was, of course, we knew that he didn’t have it on him then. Then Chief Batchelor walked by here. Chief Batchelor is our assistant chief of police, and I asked if he wanted Ruby—to get Ruby in the jail, and he said, “Yes.”

We then picked up Ruby and came around the corner here to the jail office. I mean the jail elevator there, and they took him upstairs to the jail, and I returned over to where Captain Fritz and Graves, Leavelle were with Oswald.

Mr. GRIFFIN. Who was “they” that took him upstairs?

Mr. MONTGOMERY. Well, “Blackie” Harrison and Archer, McMillon.

Mr. GRIFFIN. Was Clardy with them?

Mr. MONTGOMERY. Clardy was down there if he wasn’t with them—I just don’t know. I know there was four or five of them there that went up, Cutchshaw, Lowery.

Mr. GRIFFIN. What did you do after——

Mr. MONTGOMERY. Well, we went back over to where Oswald was. The ambulance came in and we—of course, they picked up the stretcher that he was on and took it to the ambulance.

Mr. GRIFFIN. Uh-huh.

Mr. MONTGOMERY. And several of the detectives got inside the ambulance and went with the ambulance to Parkland. I went over and got in Captain Fritz’ car, Beck and Captain Fritz and Brown and myself went out to Parkland Hospital.

Mr. GRIFFIN. What did you do when you got to Parkland Hospital?

Mr. MONTGOMERY. Well, first got there, of course, we went into the emergency room and they took Oswald back to one of the emergency treatment rooms, and we—or some captain told us to watch the doors, you know, make sure no one came in or went out other than doctors and nurses, which we did that until they transferred him up to the operating room.

Mr. GRIFFIN. Now, at Parkland Hospital did you hear any rumors about how Ruby got into the station.

Mr. MONTGOMERY. Well, I don’t know if I heard it out there or where.

Mr. GRIFFIN. Now——

Mr. MONTGOMERY. I guess I did. I probably heard it out at Parkland.

Mr. GRIFFIN. I take it that what you are about to talk about is the first rumor that you heard?

Mr. MONTGOMERY. About the only one I ever heard.

Mr. GRIFFIN. All right.

Mr. MONTGOMERY. He just walked down there as one of the officers was backing the car out. There was a car down there that had to back out the Main Street ramp. As they were backing it out, the officers that were lined up here on the ramp right here [indicating] as security, were assisting this car out, because the ramp was coming, you know, the wrong way there. And they were assisting that car out. Evidently went down there then.

Mr. GRIFFIN. There were a number of rumors that were circulating. Did you ever hear the rumor that he got in with the press pass?

Mr. MONTGOMERY. No; I—not press pass.

Mr. GRIFFIN. Did you hear any rumor that he got out of a police car?

Mr. MONTGOMERY. No; I hadn't heard that one.

Mr. GRIFFIN. Did you ever hear the rumor that he came in with some TV cameras?

Mr. MONTGOMERY. Yes; I heard that he picked up one and brought it down there. That's right.

Mr. GRIFFIN. Now, trying to probe your memory, try to tell us exactly as you can just what you knew, or what rumors you heard at Parkland Hospital and if you don't really have an accurate memory about it at all, I would like to know when you feel most certain that you knew something about how Ruby got into the jail.

Mr. MONTGOMERY. I don't recall exactly when I heard the rumor; how he got down there.

Mr. GRIFFIN. How long did you remain in Parkland Hospital?

Mr. MONTGOMERY. I guess an hour. We were there an hour.

Mr. GRIFFIN. Well, now, when you left, of course, you—you knew Ruby, you had known him for some time, so, when you left the jail, of course you knew who the guy was who had shot Oswald?

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. Now, when you got out to Parkland Hospital, do you remember anybody who was out there asking questions about any other officers, or asking questions about who it was that shot Oswald?

Mr. MONTGOMERY. No; I don't remember anybody asking me anything about it.

Mr. GRIFFIN. Did you hear conversation out at Parkland Hospital that would have identified Ruby as the person who shot Oswald?

Mr. MONTGOMERY. No; I didn't hear anybody out there saying, you know, that Ruby shot Oswald.

Mr. GRIFFIN. Did you talk to any reserve officers out there at Parkland Hospital?

Mr. MONTGOMERY. No; I don't believe I did.

Mr. GRIFFIN. As you took Oswald out to Parkland Hospital, was it generally known among all the people who were escorting Oswald to Parkland that Ruby had been the guy?

Mr. MONTGOMERY. Well, of course, I was in the car with Captain Fritz, Beck, and Brown, and as far as any ambulance, where Oswald was, I don't know if it——

Mr. GRIFFIN. All the people in your car knew it was Ruby?

Mr. MONTGOMERY. No; Captain Fritz didn't know who it was. They didn't know each other.

Mr. GRIFFIN. He knew the name of the man who had shot Oswald was Ruby at that time, didn't he?

Mr. MONTGOMERY. Yes, he knew that. We discussed it there in the car that—going out to the hospital—that Jack Ruby shot him.

Mr. GRIFFIN. Now, you took Oswald into Parkland Hospital—were there people asking you who shot him?

Mr. MONTGOMERY. No, because I didn't go in with the body—I say, “the body”—Oswald. Of course when the ambulance—beat us to the hospital.

Mr. GRIFFIN. As you people went into the hospital, were there people asking you who shot——

Mr. MONTGOMERY. People doing a lot of talking. I don't know if they were asking questions or what, because we weren't paying a lot of attention to them.

Mr. GRIFFIN. If somebody had asked you who shot Oswald, might you have said Ruby did it?

Mr. MONTGOMERY. No; I wouldn't have.

Mr. GRIFFIN. I might explain to you what I am getting at. We know that somewhere along the line somebody was out at Parkland Hospital who was a newspaperman at——

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. Learned that Ruby was the person. This started a rumor to the effect that his informant must have had something to do with it, and I am really asking you this question to see if it isn't possible that you guys, as you guys got out to Parkland, somebody had said Ruby was the guy and just by dropping the words, you know, that would spread like wildfire out there.

Mr. MONTGOMERY. No; I didn't say anything about who it was that done the shooting, out there.

Mr. GRIFFIN. What time did you arrive back at the homicide bureau?

Mr. MONTGOMERY. What time?

Mr. GRIFFIN. Yes.

Mr. MONTGOMERY. Approximately 1:30.

Mr. GRIFFIN. And when you got back to the homicide bureau, do you remember having any conversation with anybody about how Ruby got into the building?

Mr. MONTGOMERY. Well, no; I didn't talk to anybody. Just, you know—I guess we was all standing out asking each other how in the world did he get in.

Mr. GRIFFIN. After Ruby shot Oswald on the 24th, did you see Ruby at any time the rest of that day?

Mr. MONTGOMERY. Yes, sir; we brought him down for the captain to talk to.

Mr. GRIFFIN. About what time was that?

Mr. MONTGOMERY. Probably around 2, because we had been there at the hospital—I mean office, about 30 minutes, went up and brought him down.

Mr. GRIFFIN. How long did he stay down here?

Mr. MONTGOMERY. I didn't carry him back, so, I don't know for sure.

Mr. GRIFFIN. Were you present during any of that interrogation?

Mr. MONTGOMERY. Not with Ruby; no.

Mr. GRIFFIN. At the time you brought him down, did you know how Ruby got into the basement or had you been told?

Mr. MONTGOMERY. I still don't know how he got down there.

Mr. GRIFFIN. But, had you heard, put it this way, had you heard at that point that Ruby had told somebody how he got into the basement?

Mr. MONTGOMERY. I don't think so. I don't think I would have been aware of it then.

Mr. GRIFFIN. Did you remain in the office with Ruby and Fritz for any length of time?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. All right. Who brought Ruby down with you?

Mr. MONTGOMERY. Let's see, it was Detectives Boyd and Hall. They sat in on the interrogation there.

Mr. GRIFFIN. When you got up to see Ruby, how was Ruby dressed?

Mr. MONTGOMERY. Up in the jail?

Mr. GRIFFIN. Yes.

Mr. MONTGOMERY. He had on his shirt, and his skivvies.

Mr. GRIFFIN. And what other officers were there?



Mr. MONTGOMERY. I can't say for sure but it seems like Archer was there, but I couldn't say for sure. I don't know. There was an FBI agent there, too.

Mr. GRIFFIN. Do you know which agent that was?

Mr. MONTGOMERY. Oh, Agent Hall?

Mr. GRIFFIN. I think—I don't—you are giving your answer. I think you are right.

Mr. MONTGOMERY. I think that is who it was. I don't know if they have got an agent named Hall, but seemed to me like that is what it was.

Mr. GRIFFIN. Was Sergeant Dean there?

Mr. MONTGOMERY. Well, there again, I couldn't say, "yea or nay," because I don't recall who was there exactly. I remember an FBI agent there, and Archer—I believe Archer was there. Dean could have been there. He could have been in there.

Mr. GRIFFIN. Is it your best recollection that there was more than one? That there was somebody else in that cell there besides Hall, Ruby, and Archer?

Mr. MONTGOMERY. I believe there was. I believe there was a jail guard there.

Mr. GRIFFIN. Anybody else?

Mr. MONTGOMERY. No, but——

Mr. GRIFFIN. Are you indicating that you just don't remember?

Mr. MONTGOMERY. I just don't remember for sure how many was in there.

Mr. GRIFFIN. Was anything said to you by any of the people with Ruby when you went up to the jail to get him?

Mr. MONTGOMERY. No; they didn't say anything to me.

Mr. GRIFFIN. Did they pass on any information about anything Ruby had said?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. No; did you people talk at all with Ruby as you brought him downstairs?

Mr. MONTGOMERY. I'm sure we did, and I am trying to remember what we said. Let's see.

Mr. GRIFFIN. Well, now, you knew Ruby. Did you try to get him to open up on the way down?

Mr. MONTGOMERY. No; I didn't. Usually when we are bringing a prisoner down I don't try to talk to them too much. I don't want to upset anything, you know, any plans he has to talk to him.

Mr. GRIFFIN. Now, did Captain Fritz know that you were acquainted with Ruby?

Mr. MONTGOMERY. He knew when I told him; yes.

Mr. GRIFFIN. When did you tell him that?

Mr. MONTGOMERY. As we was going out to Parkland Hospital. He kept saying, "Who is Jack Ruby?" And I told him, "He is a man that runs the Club Vegas out on Oak Lawn."

Asked me did I know him, I said, "Yes; I used to have a district for about 4 years out there."

Mr. GRIFFIN. Did you feel that if you would talk to Ruby, that Ruby might have been willing to give you any information?

Mr. MONTGOMERY. No; because Ruby and I, first of all, weren't that close or anything. As a matter of fact, I don't guess he even remembers my name or face, either.

Mr. GRIFFIN. Uh-huh.

Mr. MONTGOMERY. But he was used to seeing officers come in his place. I don't imagine he would remember one any more than others—another.

Mr. GRIFFIN. Did any of the officers up there at the jail cell with Ruby when you went up there to get him come down on the elevator with you?

Mr. MONTGOMERY. I believe Hall, FBI Agent Hall.

Mr. GRIFFIN. And did Hall go into Captain Fritz' office?

Mr. MONTGOMERY. Now, our Detective Hall rather than Agent Hall did. I just don't know, because I couldn't say for sure.

Mr. GRIFFIN. Who do you remember being in Fritz' office the first time, or—on this occasion when Ruby was brought down by you?

Mr. MONTGOMERY. Well, I know that Captain Fritz, Ruby, and, of course, Detectives Hall and Boyd—Detective M. G. Hall. I know they were there for sure, and who else was there I couldn't swear, because I just saw them walk up to the door to Captain Fritz' office. And they went in, of course, the blinds were drawn in Fritz' office, so, I couldn't see who was in there.

Mr. GRIFFIN. What did you do after they took Ruby into Fritz' office?

Mr. MONTGOMERY. Well, I sat down and answered some more of them phone calls.

Mr. GRIFFIN. How long did you do that?

Mr. MONTGOMERY. I don't recall anything outstanding from then on. I know I didn't get off until, have to look at my notebook again. Yes; seemed to me about 10.

Mr. GRIFFIN. Did you take Ruby back upstairs?

Mr. MONTGOMERY. No; I didn't take him back upstairs.

Mr. GRIFFIN. No?

Mr. MONTGOMERY. No; I didn't take him back upstairs.

Mr. GRIFFIN. Did you see him taken back upstairs?

Mr. MONTGOMERY. No; I, evidently, was in the squad room at the time he was taken back.

Mr. GRIFFIN. Did you see Ruby brought back down a second time?

Mr. MONTGOMERY. No; I didn't, not that day; no.

Mr. GRIFFIN. Were you in the homicide bureau the entire time?

Mr. MONTGOMERY. In and out.

Mr. GRIFFIN. Were you out for any period as long as 10 or 15 minutes?

Mr. MONTGOMERY. Well, I talked to one witness back for, I guess for about 20 or 30 minutes. The way our office is set up they could have carried him in and taken him back out without some of them sitting back in the squad room ever seeing him come in or go out.

Mr. GRIFFIN. This first occasion when you brought Ruby down, was Agent Sorrels of the Secret Service in Fritz' office?

Mr. MONTGOMERY. I couldn't say for sure, because those blinds were drawn to the captain's office, and I couldn't see who all was in there. I walked up to the door. I could see Captain Fritz, and Hall and Boyd stepped on inside.

Mr. GRIFFIN. Okay. Go ahead.

Mr. MONTGOMERY. At 10:30—I left at 10:30 Sunday night.

Mr. GRIFFIN. Prior to 10:30, I take it you answered; you didn't see Ruby again?

Mr. MONTGOMERY. Not that Sunday; no.

Mr. GRIFFIN. All right. Did you talk—did you see Archer again on that Sunday?

Mr. MONTGOMERY. Archer and them, let's see, were in our office, when we got back from the hospital—Archer and Harrison, Cutchshaw and Lowery were all in the office when we got back.

Mr. GRIFFIN. Was there any discussion in there about how Ruby got into the basement?

Mr. MONTGOMERY. I think there was some—somebody say, "How did he get down here?"

Mr. GRIFFIN. And what was said?

Mr. MONTGOMERY. Well, of course, nobody knew for sure. Said, "Well, no telling how he got in."

Mr. GRIFFIN. Did you see Archer after that other than when you saw him up in the jail cell?

Mr. MONTGOMERY. Not that day. I don't believe Archer was in our office. I know Harrison and Cutchshaw and Lowery were in there, and

McMillon was upstairs with Archer, because I remember now in the scuffle down here in apprehending Jack Ruby, McMillon lost his hat, and, of course, I thought it was Ruby's hat, so, I was hanging onto it, you know, and on the way to Parkland I looked inside and T. D. McMillon's initials were in it, so, upon our arrival back from Parkland Hospital to the office, I went down to McMillon's office and left his hat.

Mr. GRIFFIN. Did you talk with Harrison at all about how Ruby got in, Blackie Harrison?

Mr. MONTGOMERY. I don't believe I did.

Mr. GRIFFIN. Did you talk with Lowery at all about it?

Mr. MONTGOMERY. Well, like I say, we were all back there in that squad room, and somebody said, "How did he get down there?" And I don't know who said—well, I don't know.

Mr. GRIFFIN. Didn't Lowery say at that point that he thought Ruby pushed a TV camera in?

Mr. MONTGOMERY. I couldn't swear that he did or didn't.

Mr. GRIFFIN. How long did you, Cutchshaw, Lowery, and Harrison remain in the homicide office?

Mr. MONTGOMERY. Didn't stay there but just a few minutes. I know when we left they were in there writing out a report of some kind. Didn't even ask them what they was writing. Sitting there writing something. Anyway, after I talked to them just as—just a second, I went back to where Captain Fritz was, and that was when they sent us back upstairs to get Ruby.

Mr. GRIFFIN. Hall, Harrison, Cutchshaw and Lowery are all from the juvenile bureau?

Mr. MONTGOMERY. Yes.

Mr. GRIFFIN. Now, did you talk with Dean at all on Sunday after the——

Mr. MONTGOMERY. Gene?

Mr. GRIFFIN. Dean. Officer Dean.

Mr. MONTGOMERY. No.

Mr. GRIFFIN. Did you talk with Officer McMillon at all after the shooting?

Mr. MONTGOMERY. Seemed like I talked to him later on that night and told him about his hat.

Mr. GRIFFIN. Do you recall him telling you anything about how Ruby got in?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. Now, you knew that McMillon had been up there in this jail cell with Ruby?

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. Did you ask him anything about what Ruby was saying?

Mr. MONTGOMERY. No; I didn't.

Mr. GRIFFIN. Did he tell you anything about what Ruby was saying?

Mr. MONTGOMERY. No.

Mr. GRIFFIN. How about Archer? Did you see him?

Mr. MONTGOMERY. I don't believe—I don't recall seeing Archer any more after they left the——

Mr. GRIFFIN. Uh-huh.

Mr. MONTGOMERY. Jail.

Mr. GRIFFIN. Okay. I want you to take the pen back from me.

Mr. MONTGOMERY. All right.

Mr. GRIFFIN. And I want to mark these two documents for identification.

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. And I am going to mark this one Exhibit 5005, and the second one Exhibit 5006.

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. And each of them, "Dallas, Texas, Detective Montgomery's deposition. 3-24-64". These are copies of FBI reports?

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. And they represent, of course——

Mr. MONTGOMERY. Their interview with me.

Mr. GRIFFIN. Their interview with you; yes. Now, I am going to ask you to look at 5005. This purports to be an interview that was made on December 4, 1963.

Mr. MONTGOMERY. Uh-huh.

Mr. GRIFFIN. By James Kennedy and Leo Robertson of the——

Mr. MONTGOMERY. With who?

Mr. GRIFFIN. With you.

Mr. MONTGOMERY. I didn't talk to no two. I talked to one. I talked to Mr. Bookhout and one other agent is all. Let's see. Maybe I had better read this before I start talking. Let's see.

Mr. GRIFFIN. Look it over and tell me if you remember that interview?

Mr. MONTGOMERY. "Stated they had known Ruby for several years." That must mean "he."

Mr. GRIFFIN. Tell you what. Let's take a break here and let Officer Montgomery read this over, and then I want to know whether you feel that there should be any additions or corrections made in it.

(Discussion off the record.)

Mr. GRIFFIN. I will hand you what has been marked as Exhibit 5005 and 5006. Have you had a chance to look those over, Mr. Montgomery?

Mr. MONTGOMERY. Yes.

Mr. GRIFFIN. Is there anything you want to add to those statements that you haven't told us already?

Mr. MONTGOMERY. No; not that I know of.

Mr. GRIFFIN. Do you want to make any corrections in those statements, in light of what you have said today?

Mr. MONTGOMERY. Well, on this one right here, Mr. Griffin, it said, "He states they had known Ruby for several years." I don't know who "they" would be. See on that second paragraph where it says, "He stated they——"

Mr. GRIFFIN. You want to change that to "he"?

Mr. MONTGOMERY. Uh-huh. That is the only thing I see in there.

Mr. GRIFFIN. Okay. Let me look it over for just a second. I notice in here that you stated that you felt that you hadn't seen Ruby for at least 2 years prior to the time of the shooting.

Mr. MONTGOMERY. That is what I was thinking about. Anywhere from a year, year and a half, to 2 years.

Mr. GRIFFIN. Your best recollection is for a year, or year and a half?

Mr. MONTGOMERY. Probably was a year and a half. My partner—after I gave that to the agent there, this partner advised me that one night we were driving down Commerce Street and Jack pulled up beside of us and spoke to us in his car. I don't recall seeing him, but my partner told me he—that we had seen him there. That shouldn't have been too long before all this happened. I guess two or three——

Mr. GRIFFIN. Who was your partner that told you that?

Mr. MONTGOMERY. It was Mr. Johnson.

Mr. GRIFFIN. What's his first name?

Mr. MONTGOMERY. Marvin Johnson, but I don't recall seeing Ruby then, at that time.

Mr. GRIFFIN. You stated in here, I think it is 5006—at least it's reported that as you "brought Oswald down into the jail area the two officers with Oswald between them and Montgomery hesitated before going into this corridor while Capt. J. W. Fritz checked with Chief—to see if the area was clear." Agent Bookhout hasn't indicated here what chief that was. Are you able to fill in that blank?



Mr. MONTGOMERY. Well, actually what that was was I told him, “Chief,” say who did the captain talk to when he stepped out that door. I couldn’t see. I just told him I thought it was the chief. I didn’t know. I didn’t—maybe it wasn’t even a chief that he talked to. It was some lieutenant out there that told him, that is why I say at that particular time I was hesitant on this. This “chief” business then.

Mr. GRIFFIN. Do you have anything else that you want to tell us that we haven’t already covered that you think might be of use to the Commission?

Mr. MONTGOMERY. Oh, well, I don’t know of anything. Looks like you all have covered it pretty well, and, of course, these reports here have it, too. One thing they say is not in here either. It is not—I haven’t told you yet, is when we had Ruby down on the floor inside the jail office there, that while we had him down and was holding him on the floor there he said he hoped he killed the s.o.b.

Mr. GRIFFIN. You heard him say that?

Mr. MONTGOMERY. Yes; of course, there were other officers that heard it, too. We was all standing right there. That is the one thing that wasn’t in this report here. I don’t recall seeing it, do you?

Mr. GRIFFIN. Now, did you testify in the Jack Ruby trial?

Mr. MONTGOMERY. No; I never did testify.

Mr. GRIFFIN. I think maybe one last thing. If you would look over this map, now, and if you feel that the marks that we’ve put on here are accurate on the basis of what we have done before, I would like you to sign it.

Mr. MONTGOMERY. Right here, let me put “news media,” right below that so that I will know as well as someone else might know.

Mr. GRIFFIN. Okay. Sign it, if you would.

Mr. MONTGOMERY. Over here?

Mr. GRIFFIN. That would be fine.

Mr. MONTGOMERY. You want me to date it or anything?

Mr. GRIFFIN. No; that’s all right. We have got it on the record here. “The reporter will say witness signs an exhibit.”

All right. Okay. That concludes our interview, and thank you.

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## **TESTIMONY OF THOMAS DONALD McMILLON**

The testimony of Thomas Donald McMillon was taken at 10:30 a.m., on March 25, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. How are you? Sit down over here, Tom. I want to explain to you what we are doing here. Like I said, my name is Burt Griffin and I am a member of the advisory staff to the General Counsel of the President's Commission investigating the assassination of President Kennedy. This Commission has been set up by virtue of an order of President Johnson, Executive Order 11130, dated November 29, 1963, and also under Joint Resolution of Congress 137. Pursuant to these documents, there have been a series of rules of procedure enacted, and pursuant to those rules of procedure, I have been authorized to take a sworn deposition from Officer McMillon here. I want to say initially that the general nature of the Commission's inquiry is to ascertain, evaluate, report upon the facts that relate to the assassination of President Kennedy, also, of course, the subsequent death of Lee Harvey Oswald. As far as you are concerned, Mr. McMillon, we are primarily concerned here with the death of Oswald; although, if there is any other information that you have that you think would be pertinent to this inquiry, we would certainly appreciate your coming forward with it. Now, we have asked you to come here today through a general request, which was made by the General Counsel of the President's Commission, addressed in a letter to Chief Curry. Actually, under the rules adopted by the Commission, you are entitled to have a 3-day written notice of any appearance for this purpose, and, however, there is also a provision that you may waive this written notice if you want to, and I ask you right now if you would prefer to have us give you a written notice.

Mr. McMILLON. No.

Mr. GRIFFIN. Or do you want to waive it?

Mr. McMILLON. No; I will waive that. It is okay.

Mr. GRIFFIN. Now, you are also permitted to be represented by counsel here, and I assume, since you haven't come with an attorney, that it is your desire not to have one, but if you do desire one, tell me at this point. Tell me.

Mr. McMILLON. I don't feel like I need an attorney here present now, but I want to reserve the right to have counsel if I feel like I need it.

Mr. GRIFFIN. Certainly you have that right at that time, and I mean to cover that. I also mean to tell you that this is not—we are not involved in a trial, we have no authority to prosecute anybody for any crime. All of that is to be handled by the State of Texas. The only crime that can be committed in connection with this investigation is perjury, and it is very, very important that we find out all of the facts that surround this and find them out truthfully. This investigation is more important, I think, than anybody can really realize to the national security, and if there is any way that I can impress upon you the importance of this, that our interest is getting the truth for this purpose and our interest is not in going out and trying to put anybody in jail or anything like that.

Mr. McMILLON. All right.

Mr. GRIFFIN. If you are willing to be sworn to testify, I would appreciate your raising your right hand.

Mr. McMILLON. Right.

Mr. GRIFFIN. Do you solemnly swear that the testimony you are about to give is the truth, the whole truth, and nothing but the truth?

Mr. McMILLON. I do.

Mr. GRIFFIN. Will you give us your full name?

Mr. McMILLON. Thomas Donald McMillon. It is [spelling] M-c-M-i-l-l-o-n.

Mr. GRIFFIN. When were you born?

Mr. McMILLON. One April 1935.

Mr. GRIFFIN. Where do you live now?

Mr. McMILLON. 4929 Reiger Street, Apartment 109.

Mr. GRIFFIN. Is that Dallas?

Mr. McMILLON. Dallas, Tex.

Mr. GRIFFIN. All right. What is your occupation?

Mr. McMILLON. I am a police officer for the city of Dallas, Tex.

Mr. GRIFFIN. Are you in any particular division?

Mr. McMILLON. Yes; I am a detective assigned to the auto theft investigation bureau.

Mr. GRIFFIN. And do you have any particular rank?

Mr. McMILLON. Detective.

Mr. GRIFFIN. How long have you been in the auto theft bureau?

Mr. McMILLON. Nearly 11 months.

Mr. GRIFFIN. Have you been in any other bureaus?

Mr. McMILLON. Patrol division prior to that.

Mr. GRIFFIN. And when you were in the patrol division, whom did you work under?

Mr. McMILLON. My last captain of patrol was Capt. C. E. Talbert, I believe it is, Talbert.

Mr. GRIFFIN. Talbert. And, at that time, whose direct supervision were you under?

Mr. McMILLON. My last sergeant was Sgt. H. A. Amos.

Mr. GRIFFIN. Did you ever work under Sergeant Dean?

Mr. McMILLON. Yes, sir.

Mr. GRIFFIN. When did you work under Sergeant Dean?

Mr. McMILLON. The exact dates, I don't recall, but I did work the downtown area while he was the supervisor in that area, in that zone.

Mr. GRIFFIN. I see. And in connection with that employment, did you become acquainted with Jack Ruby?

Mr. McMILLON. I have seen Jack in the downtown area. I believe that I have probably answered calls to this Carousel Club down here. I knew him prior to that, not personally, but I had answered calls at the Vegas Club when he ran that.

Mr. GRIFFIN. I see. Do you recall when it was that you worked out at the Vegas Club area?

Mr. McMILLON. Some in 1957 and probably 1958. I am not exactly sure on those dates, but it should have been in that time.

Mr. GRIFFIN. Did you know Eva Grant when you were out there in the Vegas Club area?

Mr. McMILLON. I have seen her. I don't know her personally. I believe I have seen her in the Vegas Club.

Mr. GRIFFIN. How about Pauline Hall?

Mr. McMILLON. No. I don't know Pauline Hall.

Mr. GRIFFIN. Now, when you worked the downtown area, did you know George Senator?

Mr. McMILLON. I don't know George Senator.

Mr. GRIFFIN. Well, did you know the bartender at the Carousel Club?

Mr. McMILLON. No.

Mr. GRIFFIN. When was the last time that you worked the downtown area?

Mr. McMILLON. Most all of my time in patrol was spent, or the majority of it, was spent in the downtown area. I believe about 8 or 9 or maybe 10 months before I was promoted to a detective, I worked an area of the downtown—one of the downtown districts. I believe in August of 1962, the first of August 1962, I went to what we refer to kindly of a South Dallas beat. Actually, it is on the edge of downtown.

Mr. GRIFFIN. Uh-huh.

Mr. McMILLON. And most of my time spent on patrol was downtown or in the downtown area or near by.

Mr. GRIFFIN. Were you on duty Friday, November 22?

Mr. McMILLON. No, sir.

Mr. GRIFFIN. Where were you at the time you learned that President Kennedy had been shot?

Mr. McMILLON. Home, in bed, asleep.

Mr. GRIFFIN. Well, you weren't sleeping. Did somebody wake you up to tell you that the President had been shot? Did somebody wake you up?

Mr. McMILLON. Yes. Phone call.

Mr. GRIFFIN. Who called you?

Mr. McMILLON. A friend of mine did.

Mr. GRIFFIN. What did you do?

Mr. McMILLON. He came to my house.

Mr. GRIFFIN. Who was that?

Mr. McMILLON. Mickey Fuller.

Mr. GRIFFIN. Did you stay home all day Friday?

Mr. McMILLON. Except probably maybe to go out to eat. I was there most of the day.

Mr. GRIFFIN. Are you married?

Mr. McMILLON. No.

Mr. GRIFFIN. Did you report—did you report for work on Friday?

Mr. McMILLON. No, no.

Mr. GRIFFIN. Was that your regular day off?

Mr. McMILLON. Yes.

Mr. GRIFFIN. How about Saturday?

Mr. McMILLON. I reported at 7 a.m. Saturday.

Mr. GRIFFIN. Did you go down to the police department at any time on Friday?

Mr. McMILLON. No.

Mr. GRIFFIN. Do you recall, did you visit the scene, did you visit the School Book Depository or any particular places on the 22d, other than your home, that you can recall?

Mr. McMILLON. No; I didn't go down near that Depository——

Mr. GRIFFIN. All right.

Mr. McMILLON. Or down near the police station or anything.

Mr. GRIFFIN. Uh-huh. Did you see anything on the 22d that might be of value to the Commission?

Mr. McMILLON. The only thing that I saw was what events that I saw on television.

Mr. GRIFFIN. Now, on the 23d, when you arrived at work, where did you go?

Mr. McMILLON. To the auto theft bureau.

Mr. GRIFFIN. Did you work in the auto theft bureau all day Saturday?

Mr. McMILLON. Yes; until 3 p.m.

Mr. GRIFFIN. What I mean to say is, did you go out of the building?

Mr. McMILLON. I don't recall if I did or not. Maybe I might have gone out for coffee. It seemed to me like I had lunch in the locker room that day. I am not sure.

Mr. GRIFFIN. Is that on the third floor of the police department building?

Mr. McMILLON. The locker room?

Mr. GRIFFIN. No, no; the auto theft bureau.

Mr. McMILLON. Yes.

Mr. GRIFFIN. Did you see anybody in the police department that day who was—who you recognized as not being a police officer or a newsman



or somebody who was there visiting your department on official business?

Mr. McMILLON. Well, I don't know how to answer that. There were a lot of people there. Some of them were in and out. People at first started out during that day coming to our office to get automobiles released from the pound.

Mr. GRIFFIN. Yes.

Mr. McMILLON. People in and out like that, and I saw a number of people that I didn't know, and I didn't see identification on them and didn't recognize them as probably being newsmen or with the press or some news media.

Mr. GRIFFIN. Was your office in the auto theft bureau used by the news people for any purposes?

Mr. McMILLON. Yes. They used our phones quite often.

Mr. GRIFFIN. Did this cause you problems?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Can you give some idea of what kind of problems these news people were causing you?

Mr. McMILLON. Well, our phones were pretty well tied up. There seemed to be quite a commotion in and around and about the office. It made it difficult to work.

Mr. GRIFFIN. Uh-huh. Did you people attempt to make any effort to get these news people out?

Mr. McMILLON. We were cooperative with them. If they asked to use a phone and if there was a phone available, we extended them every courtesy along that line.

Mr. GRIFFIN. Uh-huh. Did you see Jack Ruby at any time on Friday or Saturday?

Mr. McMILLON. No.

Mr. GRIFFIN. And, as I understand, you left work on Saturday about 3 in the afternoon?

Mr. McMILLON. Right.

Mr. GRIFFIN. When you left work on Saturday, did you have any idea that Lee Harvey Oswald would be moved from the county jail the next day—to the county jail the next day?

Mr. McMILLON. No. I may or may not have heard any rumors, I don't remember, but I didn't know when he would be moved. I had heard some rumors, I believe, but I didn't know when he would be moved.

Mr. GRIFFIN. After work that night, did you have any occasion to be around the police department?

Mr. McMILLON. No.

Mr. GRIFFIN. What did you do Saturday night?

Mr. McMILLON. I don't recall. The best I remember, it seemed to me like I stayed home and watched television. I may have gone out, but I think I stayed home.

Mr. GRIFFIN. What time did you report for work on Sunday morning?

Mr. McMILLON. 7 a.m.

Mr. GRIFFIN. Do you remember where you parked your car Sunday morning?

Mr. McMILLON. I am sure it is the same parking lot that I always park on. I park on a pay lot at the corner of Main and Pearl.

Mr. GRIFFIN. When you parked, which corner did you park on?

Mr. McMILLON. It would be the southeast corner of Main and Pearl.

Mr. GRIFFIN. That is actually between Main and Commerce, isn't it?

Mr. McMILLON. Huh-uh. Well, you might consider it that way. Can I use some paper here to show you what I mean?

Mr. GRIFFIN. Yes. Take this.

Mr. McMILLON. Okay. This would be Pearl Expressway, the directions, your north and south.

Mr. GRIFFIN. Yes.

Mr. McMILLON. Main Street running—okay. This was actually the way the streets were running.

Mr. GRIFFIN. Yes.

Mr. McMILLON. Main running east and west, Commerce running east and west, and, of course, here is Pearl going south.

Mr. GRIFFIN. All right. On here, will you mark a mark?

Mr. McMILLON. Right over here, right in here is where I parked my car, this parking lot.

Mr. GRIFFIN. Okay. Where you just placed an “X”? I am going to mark this, if I can, mark this “Dallas, Tex., Detective T. D. McMillon.” That is [spelling] M-i-l-l-o-n, right?

Mr. McMILLON. Right.

Mr. GRIFFIN. 3-25-64, Exhibit 5015. At the time you arrived for work, was there a police officer stationed at the corner of Main and Pearl?

Mr. McMILLON. I don’t recall whether there was or wasn’t.

Mr. GRIFFIN. Now, from that parking lot, Mr. McMillon, how did you get into the police department? Did you walk down Main or Commerce?

Mr. McMILLON. Down Main.

Mr. GRIFFIN. And did you—how did you go, in the Main Street ramp?

Mr. McMILLON. No. I probably took the first floor elevator, elevator, first floor. I usually do. That particular day, I recall I walked down this ramp, but I don’t recall whether I took the steps and went up to the first floor and went up the elevator. That is the way I usually go in.

Mr. GRIFFIN. You go into the city hall, as opposed to the municipal building, there is a set of steps going up into the police building?

Mr. McMILLON. Yes.

Mr. GRIFFIN. And then, when you arrived, were there any people congregated around the Main Street ramp?

Mr. McMILLON. Not that I recall. I don’t know if there was or not. I don’t recall there being any there.

Mr. GRIFFIN. Were there any other cars parked in the parking lot when you arrived?

Mr. McMILLON. Yes; I am sure there was. I don't know whose or which ones.

Mr. GRIFFIN. Would you recognize Jack Ruby's car?

Mr. McMILLON. I haven't seen Jack's car.

Mr. GRIFFIN. What did you do when you got up to the auto theft bureau?

Mr. McMILLON. I don't know. Probably the first thing I did, probably take my coat off and go get a cup of coffee, bring it back out of the machine. That is my normal habit or routine.

Mr. GRIFFIN. Is there a machine up on the third floor?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Is it just in the auto theft bureau or is it accessible?

Mr. McMILLON. No. There is a little lounge that is accessible to the public.

Mr. GRIFFIN. And do the police officers normally take a coffee break in there?

Mr. McMILLON. Not normally, but you may occasionally see some in there.

Mr. GRIFFIN. Where do the police officers normally go?

Mr. McMILLON. Martin's or the Majestic. Of course, Martin's wouldn't be open on Sunday, I don't think. Wherever you can go. You might possibly go to the locker room, if you wanted to. There is a coffee machine down there.

Mr. GRIFFIN. Uh-huh. Do you remember what you did up until the time that you were asked to go down into the basement?

Mr. McMILLON. I tried to work on some of my cases, the best I could. I don't remember whether I was trying to contact some complainants by phone or whether I had checked some prisoners out of the jail, was working out on prisoners, exactly what I was doing. I know I was working in the

office when Lieutenant Smart came through and said, “Don’t anybody leave.”

Mr. GRIFFIN. Do you remember any of the cases that you worked on that day?

Mr. McMILLON. Huh-uh.

Mr. GRIFFIN. Were you busy answering telephone calls from people?

Mr. McMILLON. Yes; I answered some phone calls from people. Yes, sir; I sure did.

Mr. GRIFFIN. Did you get any phone calls in connection with the murder of the President?

Mr. McMILLON. Not that I recall.

Mr. GRIFFIN. You didn’t get any of these crank calls?

Mr. McMILLON. No; I didn’t take any crank calls. I sure didn’t.

Mr. GRIFFIN. When you got up there, what other officers were on duty in the auto theft bureau?

Mr. McMILLON. Well, now, let’s see. I recall I was on duty, Lieutenant Smart, Detective Clardy. That is my partner. Detective Rivers was working at the desk, what we call the desk. I was working in the auto theft. He is the one that was making out the assignments.

Mr. GRIFFIN. Was it Clardy?

Mr. McMILLON. No; it wasn’t Clardy.

Mr. GRIFFIN. Who was it?

Mr. McMILLON. Ed Rivers. Archer and Greeson were on duty.

Mr. GRIFFIN. How do you spell that?

Mr. McMILLON. I believe that boy spells it [spelling] G-r-e-e-s-o-n, and then I don’t recall if they were there, but they were on duty this day. Detective Watson, Detective Dawson, and I don’t remember who the others were.

Mr. GRIFFIN. Now, when you arrived for duty, did you know that Jack Ruby was—did you know that Lee Oswald might be moved that day?

Mr. McMILLON. No. I personally felt that he might, but I didn't know that he would.

Mr. GRIFFIN. Now, when you arrived for duty, at any time after you arrived and before Oswald was shot, did you hear that someone had called during the night and threatened to get Oswald?

Mr. McMILLON. No; not that I recall.

Mr. GRIFFIN. Did you people in the auto theft bureau, did you talk about the expected movement of Oswald that day?

Mr. McMILLON. Yes; the best I remember, we probably did, theories and opinions, probably. I don't recall how the conversation went.

Mr. GRIFFIN. Do you recall whether at any time prior to the time that Lieutenant Smart asked you to go downstairs there was any discussion as to when Ruby—Oswald would be moved?

Mr. McMILLON. I don't recall any discussions. After he told us that, I still continued busy at something, and I remember that I was the last one out of the office when we all started to leave to go down there.

Mr. GRIFFIN. When you arrived down in the office, when you walked out of your office, did you see any police officers in the hall that you recognized?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Who did you see out there?

Mr. McMILLON. I don't recall who they were. You are speaking of the third floor?

Mr. GRIFFIN. Yes, yes.

Mr. McMILLON. I don't recall who they were. I would have known most of those men, but I recall seeing some that I recognized. Right now, I don't recall who they were, but I remember seeing them and recognizing them.

Mr. GRIFFIN. Do you remember who you went down on the elevator with?

Mr. McMILLON. I believe most of them were the men from my office and some more, the best I remember.

Mr. GRIFFIN. Do you remember if you went down with men from the other bureaus?

Mr. McMILLON. Yes; there probably were some detectives from the other bureaus. I don't recall who they were now.

Mr. GRIFFIN. I see. Now, was there anybody in charge of this general movement going downstairs, was there one man going around rounding everybody up?

Mr. McMILLON. I don't know. I felt like I was under the supervision of Lieutenant Smart until I later learned that there was a man ranking to him down there who was giving orders.

Mr. GRIFFIN. Now, when you got downstairs, where did you go?

Mr. McMILLON. From the—I got off of the elevator and walked straight through two swinging doors and just outside of the jail office.

Mr. GRIFFIN. So you were between the swinging doors and the ramp?

Mr. McMILLON. Right.

Mr. GRIFFIN. Now, were all of the police officers sort of out there waiting or were they spread out on both sides of those swinging doors?

Mr. McMILLON. Well, we later had spread out on both sides of the doors.

Mr. GRIFFIN. Well, at the time that you came down, was there a general meeting held outside of the swinging doors?

Mr. McMILLON. There seemed to be to me, and a few minutes later, Captain Jones told us what he wanted done.

Mr. GRIFFIN. I see. But when you congregated outside of those swinging doors, it was everybody sort of milling around, nobody giving instructions?

Mr. McMILLON. It was right at first.

Mr. GRIFFIN. Now, did you see W. J. Harrison down there when you were outside of the swinging doors?

Mr. McMILLON. At what point?

Mr. GRIFFIN. At that point.

Mr. McMILLON. I don't recall if I saw him at that point or not, but I saw him down there.

Mr. GRIFFIN. Do you recall anybody that you saw down there as you congregated?

Mr. McMILLON. When we first arrived down there?

Mr. GRIFFIN. Yes.

Mr. McMILLON. I don't know who all was down there. I know we were from the auto theft bureau. I recall Captain Jones being there.

Mr. GRIFFIN. Now, from the time that you got down there and taking the time that you were milling around in front of the swinging doors, how long was it from then until Lee Oswald was brought down?

Mr. McMILLON. I would say about 20 minutes.

Mr. GRIFFIN. Had the armored car been brought in?

Mr. McMILLON. I have to assume that the armored car was in the position that it was, since I have since learned what I have. As I recall, I never did see the armored car.

Mr. GRIFFIN. You just don't have any recollection of seeing it at all that day?

Mr. McMILLON. I don't remember seeing that armored car at all. I may have, but I sure don't remember.

Mr. GRIFFIN. Were the TV cameras moved while you were down there?

Mr. McMILLON. There was some TV cameras placed in position while we were there.

Mr. GRIFFIN. Were they moved out of one position to another while you were there?

Mr. McMILLON. I think I know what you mean. We had those people move back over kind of in the mouthway to this deal, which would have been in my position that I finally took up, just moments before the shooting, the position that I was in then. Anyway, we had moved or had instructed those people to move back over, which would have been to my right. I will correct that. Left. This is my left hand.



Mr. GRIFFIN. Okay. Now, let me ask you this. When you walked—went down there and were waiting before anybody gave you any instructions, did you see a TV camera on the jail office side of the railing, anywhere between the railing and the jail office?

Mr. McMILLON. It seems to me like I did, but I can't be sure.

Mr. GRIFFIN. Well, do you remember whether a camera was moved from a position somewhere near the swinging doors back away across the ramp and behind the railing?

Mr. McMILLON. Yes; it seems to me like I do, but I wasn't paying any attention, because it seemed to me like there was cameras everywhere.

Mr. GRIFFIN. All right. Now, there finally came a time when somebody gave you some instructions?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Who was that?

Mr. McMILLON. Captain Jones, and, of course, Lieutenant Smart was assisting him, but Captain Jones explained to us that, when they brought the prisoner out, that he wanted two lines formed and we were to keep these two lines formed, you know, a barrier on either side of them, kind of an aisle. We were kind of to make an aisle for them to walk through, and when they came down this aisle, we were to keep this line intact and move along with them until the man was placed in the car.

Mr. GRIFFIN. So you were sort of supposed to pick him up as a flanker?

Mr. McMILLON. That was my understanding.

Mr. GRIFFIN. Uh-huh. Now, did—were you assigned to any position, to take up any particular position?

Mr. McMILLON. No; the man told us what he wanted and everybody just set it up.

Mr. GRIFFIN. Now, was Detective Harrison or Blackie Harrison, was he present when Jones gave these instructions?

Mr. McMILLON. I am sure that he was. I don't know if he was or not.

Mr. GRIFFIN. And how about Detective L. D. Miller, was he present at that time?

Mr. McMILLON. I don't know at what point Miller had got there. I am sure that he was, because Miller had taken up the position. When we set up, Miller had taken up the position on my right.

Mr. GRIFFIN. How long did you remain—well, let me ask you this: After Jones finished giving instructions, where did you go?

Mr. McMILLON. I was there in that area, and I took my position outside of the jail office door there.

Mr. GRIFFIN. Did you immediately take up the position that you had when Oswald was shot or did you move around?

Mr. McMILLON. No; I believe I had a different position there for a minute, and I saw that the space over here needed another officer in it, so I got over there.

Mr. GRIFFIN. How long did you remain in that position before Oswald came down?

Mr. McMILLON. It seemed to me like about 10 minutes. I am not sure of the time. It was possibly somewhere in that neighborhood.

Mr. GRIFFIN. All right. Now, was Detective Miller in his position when you came—when you took your position, took up your position?

Mr. McMILLON. I don't recall if he was already in position or if he moved in after I did.

Mr. GRIFFIN. How much of the time that you were in your position would be your best estimate that Miller was also there?

Mr. McMILLON. Five to 10 minutes.

Mr. GRIFFIN. Did you see Miller leave that position at any time?

Mr. McMILLON. If he did, I don't remember it.

Mr. GRIFFIN. Now, Miller was on your right, is that correct?

Mr. McMILLON. Uh-huh.

Mr. GRIFFIN. Now, would you—I am going to mark this map first of all. This is a diagram of the jail basement area, and I am going to write on here, “Dallas, Texas, Detective T. D. McMillon, 3-27-64, Exhibit 5016.” Now, let me see if we can get a place where you can—let me clear this off. Now, would you take this and take that pencil and would you mark on there where you were standing when you took up what you call your position?

Mr. McMILLON. These are the swinging doors that we come out of, right?

Mr. GRIFFIN. Yes; they are.

Mr. McMILLON. Right along in here.

Mr. GRIFFIN. All right. Would you write out in here, put an arrow or something and put your name?

Mr. McMILLON. The full name or just the initials?

Mr. GRIFFIN. Just something. The “T. D.” That is all right. Now, would you put down where Miller was standing?

Mr. McMILLON. Right along in here.

Mr. GRIFFIN. You want to do something to mark that that is Miller?

Mr. McMILLON. Okay.

Mr. GRIFFIN. Okay; was there anybody on your left?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Who was that?

Mr. McMILLON. I believe it was Detective Watson.

Mr. GRIFFIN. I see.

Mr. McMILLON. Right along in here somewhere.

Mr. GRIFFIN. How is it that you—you seem to have a better recollection of Miller than Watson, is that correct?

Mr. McMILLON. There was some more people down this line. I believe I talked to Miller—I don’t know what we talked about—just prior to the shooting. I know that Watson was along there and “Blackie” Harrison, was along over this way.

Mr. GRIFFIN. This is the position, say, 10 minutes before Oswald was brought down, is that right, 5 or 10 minutes before?

Mr. McMILLON. Yes.

Mr. GRIFFIN. All right. Did you see Rio Pierce or Sam Pierce's car pull out?

Mr. McMILLON. Yes.

Mr. GRIFFIN. And did you see anybody get out of the car?

Mr. McMILLON. Yes; seemed to me like a sergeant got out of that car.

Mr. GRIFFIN. Did you see anybody attempt to clear away the crowd?

Mr. McMILLON. I believe that is what this sergeant was doing.

Mr. GRIFFIN. Now, as you looked over there at the car, how many lines deep, if there was more than one line, were the news people across the Main Street ramp?

Mr. McMILLON. I don't know. Those people were right along in this area along in here.

Mr. GRIFFIN. Now, you are indicating the area behind the railing——

Mr. McMILLON. Yes.

Mr. GRIFFIN. Or just in front of it?

Mr. McMILLON. Part of them were behind this railing and some of them were over in here and along in here like that.

Mr. GRIFFIN. So most of the news people were strung out along the railing extending toward the armored car, is that right, or toward the Commerce Street ramp?

Mr. McMILLON. It seemed to me like that most of them was in an area something similar to this.

Mr. GRIFFIN. All right. You want to put some sort of a mark where they were?

Mr. McMILLON. It seemed to me like they were in there. Of course, there were some along in here. Of course, they weren't orderly.

Mr. GRIFFIN. As they never are. Would you write in there "News Media" or something to that effect? Okay. That has been marked "Press." Now, can you describe how thickly the people were congregated from the west wall of the Main Street ramp across?

Mr. McMILLON. This is the west wall?

Mr. GRIFFIN. Yes, sir; how thickly were they congregated across to the railing?

Mr. McMILLON. I don't know, but there were some officers lined up across this way to some point.

Mr. GRIFFIN. Do you remember where any of those officers were?

Mr. McMILLON. Yes; I think "Blackie" Harrison was along in here. I don't remember who else was along in here.

Mr. GRIFFIN. Would you put a mark where Harrison was?

Mr. McMILLON. Seems to me like he was along in here.

Mr. GRIFFIN. Would you put his name where Harrison was?

Mr. McMILLON. What did you say his initials are?

Mr. GRIFFIN. W. J.

Mr. McMILLON. W. J.

Mr. GRIFFIN. Now, you put an "X" there where you think Harrison was?

Mr. McMILLON. Yes. He was along in here. He was on out past this deal, past this.

Mr. GRIFFIN. Did you see him there, oh, 5 minutes before Oswald was brought down?

Mr. McMILLON. I don't recall. I am sure that he was.

Mr. GRIFFIN. Do you have any recollection as to whether or not he took up a position and generally held it in the same spot?

Mr. McMILLON. I am sure that he did because we had the line. It seemed to me like it was a pretty orderly line of officers, in other words, seemed to be pretty straight, in other words, this flank.

Mr. GRIFFIN. Uh-huh. Now, when Rio Pierce's car went up the ramp, what did you see happen?

Mr. McMILLON. Well, they had the red lights on.

Mr. GRIFFIN. And how far did you see him go up the ramp?

Mr. McMILLON. Well, I couldn't see very far. I could see him right here just starting up the deal, swinging up this way and starting up this way. I can see him go up the ramp, but standing here, you can't see up very far.

Mr. GRIFFIN. Did you move out at all to see the car go?

Mr. McMILLON. No. I may have done like that to see who it was.

Mr. GRIFFIN. Looked around the corner?

Mr. McMILLON. But you can't see from there up the ramp.

Mr. GRIFFIN. I see. Now, between the time that Pierce's car went out and Oswald was brought down, where did you look, what were you looking at?

Mr. McMILLON. I was looking straight ahead, and I think I heard somebody say, "Here he comes," and naturally you become a little bit more attentive or a little bit more rigid, I will say, but they hadn't left very long before they started bringing Oswald out.

Mr. GRIFFIN. Now, is it your understanding that you believed that the three men, who you have marked here, Miller, you and——

Mr. McMILLON. Watson.

Mr. GRIFFIN. Watson were supposed, as Oswald got to them, to move out sort of on the flank and move with them to the armored car?

Mr. McMILLON. Yes, just like, the way I had done, you know, just kind of make, say, a left face and the ones on that side were doing the same thing, and he would be walking between us. That——

Mr. GRIFFIN. I see.

Mr. McMILLON. That was my understanding.

Mr. GRIFFIN. Now, do you remember anybody specifically telling you this?

Mr. McMILLON. Captain Jones told us, you know, to form two lines on both sides of him, form the barrier. The exact wording, I don't know, but form the barrier until they got the man in the car, and keep those people away from him.

Mr. GRIFFIN. Now, did you see anybody come down into the basement at any time while you were down there and ask if everything was all ready?

Mr. McMILLON. Come down that ramp?

Mr. GRIFFIN. No, no. Did anyone come down into the basement area to determine if things were set up properly?

Mr. McMILLON. Well, the fact of what I know, the man that I heard came right by me. I don't know if he was speaking directly to me or not, but I answered, "Yes, sir," something to that effect. Still don't know if he was speaking directly to me or not, but it was Captain Fritz coming out of the jail office followed by Leavelle, Graves, and Oswald.

Mr. GRIFFIN. When Captain Fritz spoke in your direction, that was the first time, was it, that anybody that you can recall inquired as to whether things were all set up?

Mr. McMILLON. Uh-huh.

Mr. GRIFFIN. Now, when Fritz—when Oswald emerged from that door, what did Watson do?

Mr. McMILLON. I don't know.

Mr. GRIFFIN. What did you do?

Mr. McMILLON. When Oswald came out of the door?

Mr. GRIFFIN. Yes.

Mr. McMILLON. Well, I was standing kind of like this.

Mr. GRIFFIN. You are standing——

Mr. McMILLON. Fritz comes right on by me.

Mr. GRIFFIN. You are standing with your back to the wall?

Mr. McMILLON. Right. They come out of the deal, right by me. Captain Fritz, he had gone on by. Leavelle, he had gotten over to me. I glanced over

here.

Mr. GRIFFIN. You glanced to your right?

Mr. McMILLON. Yes. They had gotten slightly past me. I started pulling out of my part of the barrier when they had gotten past. L. D. Montgomery, detective in Homicide, was following Oswald and the two detectives.

Mr. GRIFFIN. Now, do you remember why it was that you waited until Oswald got ahead of you until you moved out?

Mr. McMILLON. I imagine that it was because there was still some people who I recognized as part of his escort from the homicide bureau. Montgomery, say for instance, he was guarding the rear of Oswald.

Mr. GRIFFIN. Well, was it your understanding that you were supposed to be alongside of Oswald or were you supposed to wait until Oswald got past you? Did you have any understanding?

Mr. McMILLON. My understanding was that, as they came on out and got by us, we would form the two lines and keep the two lines intact until he was placed in the car.

Mr. GRIFFIN. Was it your understanding——

Mr. McMILLON. Of course, I had to look to see if all of the procession was through coming out.

Mr. GRIFFIN. Was it your understanding that this line that was forming on the side of Oswald, was it your understanding that there was supposed to be somebody up ahead of Oswald as well as behind him?

Mr. McMILLON. I didn't know who from homicide would be with him.

Mr. GRIFFIN. You people, who were on the side, you flankers, so to speak, were there any of you flankers supposed to be in front?

Mr. McMILLON. Not that I know of.

Mr. GRIFFIN. Were there any specific instructions that you were supposed to be in front or behind?

Mr. McMILLON. Not that I know of.



Mr. GRIFFIN. Was there anybody that was supposed to be the leader in this, that was supposed to turn and you were supposed to follow him?

Mr. McMILLON. Not that I know of.

Mr. GRIFFIN. I think maybe we can go most easily from here if I break in a second. I am going to hand you a series of documents and——

Mr. McMILLON. All right.

Mr. GRIFFIN. And I am going to ask you to just go out into the hall and read them.

(Recess.)

Mr. GRIFFIN. I am going to mark for the purposes of identification as Exhibit 5017 a document, which is a copy of a report of an interview held by FBI Agents Allen H. Smith and Tom E. Chapoton [spelling] C-h-a-p-o-t-o-n, with you, Officer McMillon, on December 4, 1963. Have you had a chance to read this?

Mr. McMILLON. Yes, I read it out in the hall a while ago.

Mr. GRIFFIN. Now, is there—are there any corrections or additions that you would like to make in that interview?

Mr. McMILLON. No.

Mr. GRIFFIN. All right. Would you then sign on the page there that I have marked the exhibit and date it, sign any place that it is convenient?

Mr. McMILLON. Today is the 25th?

Mr. GRIFFIN. Yes, sir. Okay. Now, I am going to mark for the purposes of identification a letter dated November 27, 1963, from you to Chief Curry—this is a copy of a typewritten letter—and mark that, “Exhibit 5018, Dallas, Texas, Detective McMillon, 3-25-64.” Have you had a chance to read that?

Mr. McMILLON. Yes.

Mr. GRIFFIN. And is that a true and accurate copy of a letter which you sent to Chief Curry on that date?

Mr. McMILLON. I have corrected this letter. It was written on the 24th. It was typed, apparently, on the 27th. I don't recall that date. I am sure that is right, but it was written on the 24th, and at a departmental interview, I gave a statement correcting two or three points in this deal. Here where it says I recognized Detective Leavelle on the prisoner's left——

Mr. GRIFFIN. Yes.

Mr. McMILLON. I believe that is incorrect. He was on the prisoner's right, his left hand, in other words.

Mr. GRIFFIN. You want to draw a line? I will draw a line here through the word "left." I will draw a line out.

Mr. McMILLON. Okay.

Mr. GRIFFIN. I will draw a line out to the corner. Would you put in "right," and then would you indicate in parentheses, would you indicate in parentheses that this was corrected in a later interview with whomever it was?

Mr. McMILLON. Uh-huh.

Mr. GRIFFIN. If you would, put it out in the margin right after. Now——

Mr. McMILLON. Just one second.

Mr. GRIFFIN. Okay.

Mr. McMILLON. Okay. Now, this is correct. This is the way that I wrote it on that date.

Mr. GRIFFIN. Now, let me ask you a few questions, Detective McMillon, about this letter.

Mr. McMILLON. All right.

Mr. GRIFFIN. When did you first learn that you were going to have——going to be asked to write a letter like this?

Mr. McMILLON. It was between 3:30 and 4 o'clock, Captain Nichols, my bureau commander, instructed everybody from the automobile theft bureau, who was on duty in the basement at the time, to write the special report, and that is when I wrote this, which is this.

Mr. GRIFFIN. I see. You have here what appears to be a copy——

Mr. McMILLON. This is typed.

Mr. GRIFFIN. Of a handwritten? Now, would you indicate, then, on this typed copy, which we have, where the date is, would you cross—was the actual copy of the letter dated November 27?

Mr. McMILLON. I wrote it on the, 24th, and apparently this is when the girl typed it, on the 27th.

Mr. GRIFFIN. Would you circle that date, “27th,” and indicate on there that it was actually written by hand on the 24th?

Mr. McMILLON. All right, sir.

Mr. GRIFFIN. Detective McMillon, you have been good enough to bring here with you a copy of this original handwritten letter. Can the commission have this copy?

Mr. McMILLON. Not that one, but I am sure that it will be available to you.

Mr. GRIFFIN. If we made a copy of this, had this copied and gave it back to you, could we then retain it?

Mr. McMILLON. No. I would rather you get that from the department. That is Captain Nichols’, a copy that he had in his office, but I am sure he will give it to you.

Mr. GRIFFIN. I see. You don’t even want to let us copy it without getting his permission?

Mr. McMILLON. Yes.

Mr. GRIFFIN. All right. Will you call him before you leave here and ask him if we can copy this?

Mr. McMILLON. Sure. You can call him right now.

Mr. GRIFFIN. No. Let’s get on with it.

Mr. McMILLON. I want any permission to come from them. I don’t want the responsibility of giving out departmental stuff.

Mr. GRIFFIN. I understand. You say that Captain Nichols told you to prepare a report of what happened?

Mr. McMILLON. He instructed everybody to.

Mr. GRIFFIN. Now, have you—has any information come into your possession or did you know at the time whether Captain Nichols was acting on his own or whether other department heads had been instructed?

Mr. McMILLON. I didn't know at the time when he instructed us if that was his own or if he had been instructed to have us do same.

Mr. GRIFFIN. Now, is Captain Nichols the head of the auto theft bureau?

Mr. McMILLON. Yes, he is.

(Discussion off of the record.)

Mr. GRIFFIN. That was Assistant Chief Batchelor, and I asked him if I could have permission to copy it, and he said "Okay." Is that good enough for you?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Let me do this right now. Let me take the copy of it and give it to one of our girls and ask her to take it and get a copy of it. Excuse me. Do you know, Detective McMillon, if people in any of the other bureaus were asked to make reports on the 24th?

Mr. McMILLON. I don't know. I am sure some of them were.

Mr. GRIFFIN. Uh-huh. Now, let me mark for identification a document which purports to be the report of an interview conducted with you by Special Agents George W. H. Carlson and Paul H. Scott of the Federal Bureau of Investigation. I will mark this, "Dallas, Texas, Detective McMillon, 3-25-64," and this will be Exhibit 5019. Have you had a chance, to read over what is marked Exhibit 5019?

Mr. McMILLON. Yes, I have.

Mr. GRIFFIN. And do you have any additions or corrections you want to make in that?

Mr. McMILLON. No.

Mr. GRIFFIN. All right. Would you take these three exhibits? You have signed the first one. Would you sign and date Exhibit 5018 and Exhibit 5019?

Mr. McMILLON. Where do you want them signed?

Mr. GRIFFIN. Any appropriate place where you have got space.

Mr. McMILLON. The reason I am looking through this—one second.

Mr. GRIFFIN. Yes.

Mr. McMILLON. See, there are two FBI reports, is that right?

Mr. GRIFFIN. Right.

Mr. McMILLON. And then the copy.

Mr. GRIFFIN. Of your report?

Mr. McMILLON. Yes. You are missing one copy, one other statement that I made.

Mr. GRIFFIN. I am? Now, can you get a copy of that for us?

Mr. McMILLON. I don't know if I can or not. The department has it. I am sure it is available to us, because they had it during the trial.

Mr. GRIFFIN. Uh-huh.

Mr. McMILLON. It is in this statement that I corrected this other stuff here in my original report.

Mr. GRIFFIN. It would be easier for us if you would go back to whoever has custody of those, whoever has the responsibility for it, and then ask if you can get a copy of it and ask if you can send it to us.

Mr. McMILLON. I will.

Mr. GRIFFIN. I am sure that you won't have any difficulty getting it.

Mr. McMILLON. I don't think so. I thought probably you would have it attached to it. I am sure they probably still have that typed in court. It is a typewritten report that I made to two lieutenants, department. The third was wrote out; the second one was the two FBI agents; the third one was the one you are missing; the fourth one is this FBI report that you have.

Mr. GRIFFIN. I want to move away from the reports, go back to what happened on the 24th. As I understand it from the reports that I have marked here for identification, you remained with Ruby from the time that he was brought into the jail office until about 3:30 in the afternoon. Is that correct?

Mr. McMILLON. I was with Ruby from the time that I first grabbed an arm out there and the scuffle followed; I was with him from that point until about 3:30 in the afternoon, and during this time that I was with him on the fifth floor until 3:30 in the afternoon, I was away at different times for short intervals.

Mr. GRIFFIN. Now, when you got Ruby up to the fifth floor, was he dressed?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Now, did there come a time when you searched him thoroughly and undressed him?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Were you present during that time?

Mr. McMILLON. During part of that time.

Mr. GRIFFIN. Do you recall who else was present?

Mr. McMILLON. Detective Archer, Detective Clardy, some of the jail personnel.

Mr. GRIFFIN. Now, were you present when his pockets were emptied out?

Mr. McMILLON. I believe that I was. I am not sure.

Mr. GRIFFIN. Do you recall whether or not he had a wallet on him at that time or not?

Mr. McMILLON. I don't recall definitely, but I don't believe that he did.

Mr. GRIFFIN. Try to think as best you can, now. What was—what do you remember being taken off of his person at that time?

Mr. McMILLON. I know that there was some money. You mean in addition to the clothing?

Mr. GRIFFIN. Yes, sir.

Mr. McMILLON. I know that he had some money on him; I know that he had two post card deals on him, in his property at the jail, that had these "Impeach Earl Warren" deals on them.

Mr. GRIFFIN. Two post cards?

Mr. McMILLON. Two pieces of paper. The best I remember, they were pieces of paper.

Mr. GRIFFIN. Could they have been photographs?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Did you talk to him or did you hear anybody talk to him about these photographs?

Mr. McMILLON. It came out later on in the conversation up in the jail, I believe that he had gone out and photographed them, I believe, but anyway he mentioned this Bernard Weissman, something that he had read about a derogatory article that he had read in the paper, he had tried to run that down.

Mr. GRIFFIN. Now, let me ask you this. Were you present when Agent Hall of the FBI interviewed him?

Mr. McMILLON. Yes, part of the time. I was in and out for some short intervals. Phone calls, we will say, rest room, away for things like that.

Mr. GRIFFIN. Yes. Now, I don't want you to tell me about anything that happened right this moment while Hall was conducting the interview. Now, were you also present when Sorrels——

Mr. McMILLON. When he first came up?

Mr. GRIFFIN. Yes.

Mr. McMILLON. Yes.

Mr. GRIFFIN. Now, I don't want you to tell me anything right at this point about what was said when Sorrels was there.

Mr. McMILLON. All right.

Mr. GRIFFIN. Were you there all of the time that agent—not agent but Sergeant Dean was there?

Mr. McMILLON. No. I was away during one of those intervals. I was there part of the time. I was there when Sorrels brought Dean up there.

Mr. GRIFFIN. Were you there when Dean left?

Mr. McMILLON. I am sure I was.

Mr. GRIFFIN. Were you there when Sorrels left?

Mr. McMILLON. Yes, I believe so.

Mr. GRIFFIN. Between the time that Sorrels left and the time Dean left, did you leave at any time?

Mr. McMILLON. Yes. I was away during the time that Sorrels and Dean were there with him. I had gone around to attend to some other little detail. I didn't hear what it was. I didn't hear all of their conversation. I heard part of it.

Mr. GRIFFIN. Did Dean and Sorrels leave together?

Mr. McMILLON. I don't know whether they did or not.

Mr. GRIFFIN. I don't want you to tell me anything that was said when Dean was there or when Sorrels was there. Now, with reference to these pictures and the Bernard Weissman statement, was that made—did you hear him talk about that at any time when Hall, Dean or Sorrels were not there? In other words, when was it that you heard them talked about?

Mr. McMILLON. I don't know at what point during the day that it was. There was so much conversation, I don't remember at what point during the day that that was.

Mr. GRIFFIN. All right. When his pockets were emptied, did people immediately begin to question him about these items that were found in his pockets?

Mr. McMILLON. We didn't attempt to question the man or to interrogate him at all; it was more in the line of conversation. What Clardy or Archer or I had to say to him, it wasn't in the form of interrogation, it was in the form



of conversation. We knew that it wasn't our business or place to try to. We felt we were there strictly for security.

Mr. GRIFFIN. Now, did you three, Archer, Clardy, and you, were you the ones that stripped his clothes and took the property out of his pockets?

Mr. McMILLON. We assisted in it. There was some jailers assisting us, too.

Mr. GRIFFIN. Now, when you removed the contents of his pockets, what did you do with that material?

Mr. McMILLON. As best I remember, we gave it to a jailer. I recall that a hat was sent up to the jail. I had lost mine during the scuffle. A hat was sent up to the jail. They thought it was mine. I recall seeing some of that property placed in his hat, but I can't remember for sure. I know it was turned over to authorized jail personnel.

Mr. GRIFFIN. It was turned over to some jailer?

Mr. McMILLON. Uh-huh.

Mr. GRIFFIN. Now, is that the normal procedure, when a man is stripped, to turn it over to a jailer?

Mr. McMILLON. His property?

Mr. GRIFFIN. Yes.

Mr. McMILLON. Oh, yes.

Mr. GRIFFIN. Now, whose responsibility was it to fill out an inventory at that point?

Mr. McMILLON. It would have been the jailer's, and it was.

Mr. GRIFFIN. And you didn't fill out an inventory on it?

Mr. McMILLON. No.

Mr. GRIFFIN. Do you remember if any keys were taken out of his pocket?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Did you examine those keys?

Mr. McMILLON. Not at this particular point. I can explain that right now, if you want me to go into it.

Mr. GRIFFIN. Yes, I would.

Mr. McMILLON. Okay. Later in the afternoon, one of the lieutenants, I believe it was, instructed me to take the keys from his property, to meet, I believe, Lieutenant Smart and Lieutenant Swain with those keys so they could get into his car. I took those keys and went to where they had told me that I would find them. I believe it was on the parking lot in front of the Western Union. I walked down there, and I couldn't find them. I returned to the jail, and I was later able to determine that they had already gotten the car and had impounded it and had taken care of that, so the keys weren't needed, so I took the keys back.

Mr. GRIFFIN. The keys that you had, was it clear to you that this key chain had a car key on it?

Mr. McMILLON. Yes, I believe so. I am not sure, but I mean I am sure that it was, whether I took it for granted or what, but I assumed that there was a key on it that fit the car.

Mr. GRIFFIN. Did you talk with Ruby about whether there was a key on it that fit the car?

Mr. McMILLON. I don't recall. Possibly may have.

Mr. GRIFFIN. Did you have any information at the time you got a hold of these keys as to whether the car was locked or unlocked?

Mr. McMILLON. I don't remember that. It had come up in the conversation some way that he had a dog in the car.

Mr. GRIFFIN. Now, how did that come up?

Mr. McMILLON. I don't remember that, but maybe Jack asked us to take care of his dog or something like that. I don't know. I made no note of it after I had found that they had impounded the car, that that matter had been taken care of, and I felt like that ended our responsibility or it was someone else's responsibility, other than the three of us remaining there as security there.

Mr. GRIFFIN. All right. Now, during the time that Dean and Sorrels were present, was at least one of the other three of you, Archer, Clardy, and you, present with Ruby?

Mr. McMILLON. Yes, I believe so, probably most of the time and probably it would have been Archer more, because I was running about the jail taking care of some of the details. I was away for short periods of time, so I didn't hear all of the conversation.

Mr. GRIFFIN. Now, when you—by the time Dean and Sorrels left, what information did you have as to how Ruby had gotten into the basement?

Mr. McMILLON. They had already come out by then and had just walked right straight down the ramp.

Mr. GRIFFIN. How did that come to your attention?

Mr. McMILLON. Let me see. Let me see those notes there. I believe I have it in them. Refresh my——

Mr. GRIFFIN. That is a statement that you made on December 4?

Mr. McMILLON. That is the second.

Mr. GRIFFIN. Why don't you look at your statement of the 24th?

Mr. McMILLON. We are still missing that fourth report. I believe it was covered in there.

Mr. GRIFFIN. Well, now, that is a later report, but on the date of the 24th, when these things were fresh in your mind at 3:30, you didn't mention anything in your report, did you, about how Ruby got down the ramp?

Mr. McMILLON. Just a second. No, sir; I didn't mention it then.

Mr. GRIFFIN. Why was that?

Mr. McMILLON. Well, I couldn't possibly have mentioned everything that I knew about the deal here. I just didn't mention it.

Mr. GRIFFIN. But you knew that was important, didn't you?

Mr. McMILLON. No, sir; I didn't think anything about it being important at all at the time. I gave that information, I believe—this report was written

on Sunday—I gave it to them on Saturday, I believe, during the departmental investigation.

Mr. GRIFFIN. In the meantime, had you talked with Dean?

Mr. McMILLON. With Dean?

Mr. GRIFFIN. Yes.

Mr. McMILLON. I don't recall if I had or not. I don't remember whether I had seen him or not.

Mr. GRIFFIN. In the meantime, had you talked with Archer or Clardy?

Mr. McMILLON. Oh, yes; sure had.

Mr. GRIFFIN. There came a time, didn't there, when Dean was under a lot of pressure from the people in the police department?

Mr. McMILLON. I don't know anything about that. Probably no more than the rest of us. I don't know. I think that Dean got misquoted or something in the paper.

Mr. GRIFFIN. And the department conducted—directed particular attention to that in part of their investigation, didn't they?

Mr. McMILLON. I don't know that that was what the investigation was over or not.

Mr. GRIFFIN. Didn't you know somewhere along the line that Dean might possibly be in trouble?

Mr. McMILLON. No, sir; this article in the paper, I had heard all different kinds of rumors. I had heard that the officer, who was supposed to be the one that saw him milling around outside, was an ex-police officer, the article in the paper.

Mr. GRIFFIN. There was an article in the paper that particularly quoted Dean?

Mr. McMILLON. I haven't seen the article. I understand that there was.

Mr. GRIFFIN. That is right. Now, were you present when Agent Hall questioned Ruby?

Mr. McMILLON. Part of the time.

Mr. GRIFFIN. Were you there when Agent Hall questioned Ruby about how he got down the Main Street ramp?

Mr. McMILLON. I may or may not have been. I don't know. It seemed to me like most of his conversation I recall Hall asking him there, I am sure I already knew or had been told, but it seemed to me like Hall was running a background information, background check. His questioning seemed to be along that line.

Mr. GRIFFIN. Do you recall Hall asking Ruby how he got down the ramp?

Mr. McMILLON. I don't recall.

Mr. GRIFFIN. Or how Ruby got in the basement?

Mr. McMILLON. I don't recall Hall asking him that.

Mr. GRIFFIN. Let me say this. If you had heard this and Ruby gave information to Hall that you say was different from what you say you heard Dean get out of Ruby, you would have brought that to Hall's attention, wouldn't you?

Mr. McMILLON. I probably would have, had I heard it.

Mr. GRIFFIN. If you had heard him say something different, you would have brought it to his attention?

Mr. McMILLON. I am sure that I would.

Mr. GRIFFIN. In fact, any police officer would have done that, don't you think so?

Mr. McMILLON. Yes; I think so.

Mr. GRIFFIN. Now, isn't it true that, as late as—well, strike this—did you sign the typed copy, the original typed copy of Exhibit 5018?

Mr. McMILLON. Did I sign it?

Mr. GRIFFIN. Yes, sir.

Mr. McMILLON. Yes, sir.

Mr. GRIFFIN. So you saw that original typed copy after it had been typed?

Mr. McMILLON. Yes, sir.

Mr. GRIFFIN. Now, on November 27 or——

Mr. McMILLON. Let's back up just a second. You said did I sign the original typed copy?

Mr. GRIFFIN. Yes, sir.

Mr. McMILLON. I am sure that I did. I thought you were referring to the original handwritten, the one that I had written out in hand.

Mr. GRIFFIN. No.

Mr. McMILLON. I am pretty sure that I signed it.

Mr. GRIFFIN. It indicates that.

Mr. McMILLON. Yes.

Mr. GRIFFIN. Did you read it over before you signed it?

Mr. McMILLON. Oh, sure.

Mr. GRIFFIN. At the time that you signed that report, did you know that there was an investigation being conducted in the police department as to how Ruby got into the basement?

Mr. McMILLON. Sure did. I had already been interviewed by the FBI when I signed this departmental report.

Mr. GRIFFIN. Now, if—and did you feel that the information, which you say that you got, that you heard Ruby give Dean, did you feel on November 27 that that was important information?

Mr. McMILLON. What was that again, sir?

Mr. GRIFFIN. I believe you stated before that you heard Ruby tell Dean that he came down the ramp?

Mr. McMILLON. Yes, I heard Jack say that he came down the ramp.

Mr. GRIFFIN. All right. Now, at the time that you signed this report on November the 27th, did you realize that such a statement from Ruby was a matter of concern to the police department?

Mr. McMILLON. At the time that I signed those reports was just like all of the rest of them. I realized that anything that I might know or that I can remember might be of some value or of some significance to anybody who was investigating it.

Mr. GRIFFIN. You certainly knew that any statement that Ruby made about how he got down into that basement would be something that somebody might want to know?

Mr. McMILLON. Yes.

Mr. GRIFFIN. You read that report over?

Mr. McMILLON. Yes.

Mr. GRIFFIN. And there is nothing in that report about Ruby having made such a statement, is there?

Mr. McMILLON. This first one here?

Mr. GRIFFIN. Yes.

Mr. McMILLON. Let's see. I don't believe so. No, sir; I don't see anything.

Mr. GRIFFIN. All right. Now, you have had a chance to look over Exhibit 5019, haven't you?

Mr. McMILLON. Yes, I have looked it over.

Mr. GRIFFIN. Now, did you tell the Secret Service agents, who interviewed you at that time, about the statement——

Mr. McMILLON. I was never interviewed by anybody who was identified as Secret Service agents.

Mr. GRIFFIN. I am sorry. FBI agents. Did you tell those FBI agents anything about Ruby's statement to Dean?

Mr. McMILLON. I told them about how he said he got into the basement. I don't believe they asked me about Dean, that Ruby told him down the ramp.

Mr. GRIFFIN. What time did this interview take place?

Mr. McMILLON. Let's see the date on this. This is the two agents that came to see me on the 25th, that is on Monday?

Mr. GRIFFIN. Yes; do you remember what time of the day?

Mr. McMILLON. Yes; in the afternoon.

Mr. GRIFFIN. In the afternoon?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Had you talked to Dean between the time he left you and that afternoon, the time you made that statement?

Mr. McMILLON. I don't recall that I had, but I don't believe that I did.

Mr. GRIFFIN. Did you know by the time you made this statement that Dean had reported to somebody in the police department that he saw the man come down the——

Mr. McMILLON. No; I didn't know that at that time. I didn't know that Dean had allegedly said anything of that stuff then. People had told me, after I had got off duty, this, that and the other. I heard somewhere that Dean had been on an interview somewhere on television or something, and that is as much as I knew. I don't know. I don't believe that this article was out at the time. It possibly may have been. I think this article came out a week or two later where Dean is supposed to have said that he seen him. I believe it was some time later after this, a week or so later after this.

Mr. GRIFFIN. Did you talk with either Archer or Clardy or anybody else in the police department about this statement that Ruby made to you between the time that Ruby made it and the time you gave that interview with the FBI?

Mr. McMILLON. I don't recall what the conversation was. Archer, Clardy, and several more of us discussed the case, but Captain Nichols, about the time we got in from the jail about 3:30, when we started writing that report over there——

Mr. GRIFFIN. Yes, sir.

Mr. McMILLON. Captain Nichols' instructions were for each of us to write what we had been doing.



Mr. GRIFFIN. Uh-huh.

Mr. McMILLON. What we had been doing, facts about it, instructed us not to talk to any other man about it, that he wanted each man's own report, which I wrote my own report. After I had written my report and turned it in, there has been a lot of conversation about it. I have discussed it with numerous people.

Mr. GRIFFIN. Did anybody from the homicide bureau question you about the statement that Ruby made?

Mr. McMILLON. May have been, but I don't remember when. Something about I was supposed to sign an affidavit to them or something, but I don't believe I ever signed any affidavit to them, some fact that I was——

Mr. GRIFFIN. How soon after you heard this statement from Ruby were you questioned by homicide detectives concerning that statement?

Mr. McMILLON. I don't think I was ever to the point where we could say questioned by them. It seems to me like one of them asked me in the hall, "Did you hear him say so and so, did you hear this, that and the other, could you testify to this, that and the other, did you hear it?" It came up in a couple of days, but, as far as I know, I didn't sign an affidavit.

Mr. GRIFFIN. Did you testify at the trial?

Mr. McMILLON. Yes.

Mr. GRIFFIN. Did you testify about having heard this statement?

Mr. McMILLON. How he entered the basement?

Mr. GRIFFIN. Yes.

Mr. McMILLON. Okay. I believe you are going to be a little more briefed on it when you get the fourth report. It is covered.

Mr. GRIFFIN. All right.

Mr. McMILLON. There is four reports, he only has three, but anyway that is the statement that I made at this departmental investigation.

Mr. GRIFFIN. Let me hand you an exhibit marked 5015. That is something you prepared, diagram, Commerce, Main, Pearl, and

Expressway. Would you sign that and date it? Let me hand you what has been marked as Exhibit 5020, which is a copy of a copy, which you provided us of your original handwritten statement of November 24 to Chief Curry. Would you look that over so you are certain that that is a true and accurate copy and then, if you feel it is true and accurate, would you sign it and date it? Would you prefer to do that out in the hall?

Mr. McMILLON. It won't be but just a minute here.

Mr. GRIFFIN. Okay.

Mr. McMILLON. Okay.

Mr. GRIFFIN. Listen, Tom. I appreciate your coming up here.

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## **TESTIMONY OF FORREST V. SORRELS**

The testimony of Forrest V. Sorrels was taken at 1 p.m., on May 6, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin, Leon D. Hubert, Jr., and Samuel A. Stern, assistant counsel of the President's Commission. Fred B. Smith, Deputy General Counsel, U.S. Treasury Department was present.

Mr. HUBERT. Mr. Sorrels, my name is Leon Hubert. I will be taking your deposition this afternoon, and so will Mr. Samuel Stern. We are both members of the advisory staff of the General Counsel of the President's Commission, that is to say Mr. Rankin.

Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress, No. 137, and rules of procedure adopted by the Commission in conformance with that Executive order and that joint resolution, both Mr. Stern and I have been authorized to take a sworn deposition from you, Mr. Sorrels. Of course you will take an oath a little later on. Is it understood between us that this statement of my authority and of Mr. Stern's authority is sufficient to carry for both depositions—in other words, it will be really a continuation of the deposition by Mr. Stern on another area. Is that understood?

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Is it understood also that the oath you are going to take will be applicable to the testimony elicited from you by me, as well as that elicited from you by Mr. Stern?

Mr. SORRELS. Yes, sir.

Mr. HUBERT. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent

violent death of Lee Harvey Oswald. In particular as to you, Mr. Sorrels, the nature of the inquiry today is to determine what facts you know about the death of Oswald and other pertinent facts which you may know about the general inquiry.

Mr. Sorrels, you have appeared today by virtue of a verbal request made by us at the direction of the General Counsel. Under the rules adopted by the Commission, all witnesses are entitled to a 3-day written notice prior to the taking of their deposition. But the rules also provide that a witness may waive this notice. I ask you now if you are willing to waive the 3-day written notice provided for by the rules of the Commission.

Mr. SORRELS. Yes, sir.

Mr. HUBERT. All right. Then I will ask you to stand and be sworn. Do you solemnly swear that the testimony you are about to give in this matter will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. SORRELS. I do.

Mr. HUBERT. Will you state your full name.

Mr. SORRELS. Forrest V. Sorrels.

Mr. HUBERT. How old are you, Mr. Sorrels?

Mr. SORRELS. Sixty-three.

Mr. HUBERT. Where do you reside now?

Mr. SORRELS. 3319 Hanover, Dallas, Tex.

Mr. HUBERT. What is your occupation?

Mr. SORRELS. Special agent in charge of the Dallas district of the United States Secret Service.

Mr. HUBERT. Now, before I go any further, I should like the record to show that Mr. Fred B. Smith——

Mr. SMITH. Deputy General Counsel, United States Treasury Department.

Mr. HUBERT. Is present—in what capacity?

Mr. SMITH. I guess observer on behalf of the Secretary of Treasury.

Mr. HUBERT. And Mr. Burt Griffin, also a member of the staff of the General Counsel of the President's Commission, is also present.

Now, Mr. Sorrels, I would like for you to state to us the general background, your history, sort of a biographical sketch, if you will, starting off with your education and on to date.

Mr. SORRELS. I was born in Red River County, Tex., on a farm, September 16, 1901; later moved to a little town nearby called Bogata, Tex. I lived there until 1916, when my family moved to El Paso, Tex. I resided there until 1935.

I went to El Paso High School and after graduation attended Draughon's Business College, taking typing and shorthand and bookkeeping. I then went to work for a small wholesale grocery, worked there for only a short time, and then went to work for a brick company, worked there a very short time, and then obtained employment as a clerk in the office of Bureau of Narcotics, Treasury Department, in El Paso, Texas.

Mr. HUBERT. What year was that, sir?

Mr. SORRELS. That was in 1922. I worked there for about a year and went back to the brick company. I was only there a short time when I learned of a clerical position in the office of the United States Secret Service at El Paso. I later was employed in that position on July 6, 1923. That was a two-man office, and I began very shortly after employment there assisting and helping in investigative work.

In 1926, the special agent in charge was transferred from there, and prior to that time I had been appointed as what was known at that time as an operative, which is comparable to our special agent of today. He transferred from there to Dallas about July of 1926, and I was left as acting agent in charge of that office. In October that "acting" was removed, and I continued there in the capacity of agent in charge until 1935, when I was transferred to Dallas as special agent in charge there. In 1936 I was transferred to New Orleans as acting supervising agent of a newly created setup whereby the States of Texas, Louisiana, and Mississippi were in what was known at that time as the Tenth District.

In 1938, the headquarters office was moved from New Orleans to Houston. In 1941 it was moved from Houston to Dallas. Subsequent to that time, the organization of the 15 supervising agents was abandoned, and each office reported direct into the headquarters office in Washington, excepting a very few that were known as resident agency officers.

I have continued in that capacity as special agent in charge of the Dallas district, and am so employed at the present time.

Mr. HUBERT. So that you have been special agent in charge actually of the Dallas district since 1938.

Mr. SORRELS. Actually—it was in my territory since 1935, but the office was moved back there in 1941, and I have been there ever since.

Mr. HUBERT. And you have lived there.

Mr. SORRELS. Yes, sir.

Mr. HUBERT. What does the Dallas territory now, under your jurisdiction, and control, consist of?

Mr. SORRELS. Roughly it consists of the northern half of Texas, exclusive of the territory west of the Pecos River. We have in the Dallas district the entire northern judicial district of Texas, the Waco division of the western district of Texas, the Tyler, Jefferson, Texarkana, Parris, and Sherman divisions of the eastern district of Texas.

Mr. HUBERT. By divisions, you mean divisions in the United States court system?

Mr. SORRELS. That's right.

Mr. HUBERT. How many men do you have?

Mr. SORRELS. At the present time we have six special agents besides myself.

Mr. HUBERT. They all work out of Dallas?

Mr. SORRELS. Yes, sir. One special agent actually headquarters, so to speak, in Fort Worth. He remains in that section most of the time.

Mr. HUBERT. Would you tell us something about your family.

Mr. SORRELS. I am married.

Mr. HUBERT. How long have you been married?

Mr. SORRELS. I have a daughter 16 years of age and a younger daughter 7 years of age. I have 2 children by a former marriage, a son who is a captain in the United States Army and a daughter who is married to an employee of the IBM Company in New York City.

Mr. HUBERT. How long have you been married to your present wife?

Mr. SORRELS. Since 1946.

Mr. HUBERT. Mr. Sorrels, Mr. Stern is going to take a deposition with respect to security measures and other matters, I think, in regard to the President. I am going to depose you with reference to a number of matters concerning principally the security of Oswald after he was arrested and until his death, and your activities with reference to Ruby after he had shot Oswald.

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Now, getting into the first matter, can you tell us what you observed yourself of the security measures which were in effect and actually operating with reference to Oswald after his arrest.

Mr. SORRELS. The first time that I saw Oswald was on the afternoon of November 22 as he was coming out of Capt. Will Fritz' office in the Dallas Police Department on the third floor.

Mr. HUBERT. About what time was that?

Mr. SORRELS. The exact time I cannot give you, because I had been working at a frantic pace. It was some time probably past the middle of the afternoon. I had previously been informed by my office that Captain Fritz had endeavored to locate me because he had a suspect in custody. And when I arrived there, Captain Fritz was in his office, apparently talking to the suspect, whom I determined to be Lee Harvey Oswald.

As he was being removed from the office, I told Captain Fritz that I would like to talk to this man when an opportunity was afforded, and he remarked "You can talk to him right now—just go right around the corner there by the side of the office," which I did.

Oswald was brought around and was seated there. There were a number of other officers present, detectives, I think possibly some FBI agents, and maybe some of my agents had come in in the meantime.

I started to——

Mr. HUBERT. Before you go into that, would you tell us about the security measures that you observed with reference to protecting the person of Oswald from the time you first saw him, say up until the time you have reached now.

Mr. SORRELS. As far as I know, there was no one except authorized officers in that particular area at that time. I did not see anyone that I recognized to be other than an officer.

Mr. HUBERT. No news people in the corridor of the third floor?

Mr. SORRELS. I am talking about inside the office now. In the corridor, that was an entirely different situation because there were cameras set up, tripods, still photographers, photographers with cameras in their hands, and newspapermen in large numbers in the hallways.

Mr. HUBERT. Well, now, for example, when Captain Fritz afforded you an opportunity to speak to Oswald and indicated that you could do so at a little office around the corner, did that mean that you had to pass Oswald out of Fritz' office, and through this third floor corridor, where all the newsmen were gathered?

Mr. SORRELS. No, sir.

Mr. HUBERT. That was still within Fritz' office?

Mr. SORRELS. Yes, sir; in other words, there was an office there, and Captain Fritz had an office built within that office—just merely to take him out of the door and right around the corner of his inside office there.

Mr. HUBERT. Then you did interview Oswald.

Mr. SORRELS. I talked to him, started asking him questions, and he was belligerent and arrogant in his attitude and he said to me, "I don't know who you fellows are, a bunch of cops."

Mr. HUBERT. How long did you speak to him?



Mr. SORRELS. Not very long.

Mr. HUBERT. In point of time.

Mr. SORRELS. Not over—I don't think over 10 minutes at the most.

Mr. HUBERT. Do you know what happened to him after that?

Mr. SORRELS. As far as I know, he was taken back to the jail.

Mr. HUBERT. Now, taking him back to the jail would involve passing him out of Fritz' office, through the corridor, and to the jail elevator, is that correct?

Mr. SORRELS. That is correct; yes, sir.

Mr. HUBERT. Can you tell us what security precautions you observed with reference to his person after he was out of Fritz' office?

Mr. SORRELS. They of course had him handcuffed when they removed him, and several detectives accompanied him as they left out, in front—someone went ahead. And as I recall it there was at least one on the side, and then some brought up the rear.

Mr. HUBERT. You did not go up to the jail?

Mr. SORRELS. No, sir; I did not.

Mr. HUBERT. Did you observe any system of identification of the people who were on the third floor?

Mr. SORRELS. As I recall it, when I first went down there I had no particular difficulty getting in, because most of the officers there know me, from my years of being in that city. But subsequent to that time I would have to identify myself many times. This was to uniformed police officers that were on duty. And I would have to show my commission book in order to get into Captain Fritz' office, or else get into the executive offices there, where the chief of police and the deputy chief offices were located.

Mr. HUBERT. Did you observe any officers posted at the entrances to the area, to the third floor area?

Mr. SORRELS. Yes.

Mr. HUBERT. Where were they?

Mr. SORRELS. By the elevator, and then there were uniformed officers at Captain Fritz' door.

Mr. HUBERT. Did you observe them requiring identification by other persons? I mean you described how they required you to identify yourself. Did you notice whether they did so with other people, and if so, what did they do?

Mr. SORRELS. I cannot say that I did, because usually when I get through identifying myself, I either went to the executive suite, where the chief's office was, or right direct to Captain Fritz' office. But on a number of occasions, the officers that were on duty there, before I can get my commission book out, some of the newsmen or photographers there that knew me would say, "He is Sorrels of the Secret Service." I, upon being recognized and identifying myself, would be admitted. Some of the officers on duty there of course after the second or third time they would recognize me, and I would have no difficulty getting in. But I cannot say that I saw anyone else being required to identify themselves, because I did not hang around the places where the officers were.

Mr. HUBERT. Would you say that the security conditions that you just described were in effect for the entire period of November 22 through November 24—that is, on the third floor?

Mr. SORRELS. Captain Fritz' office definitely yes—going into his office. I do not recall having to identify myself to get onto the third floor on the 22d when I first got down there. But subsequent to that time, I do recall having to identify myself almost every time I went up there.

Mr. HUBERT. What was the general condition of the third floor area from point of personnel, equipment, and so forth?

Mr. SORRELS. I guess you could term it more or less deplorable, because of the fact that they had so many cameras with tripods and cables and wires and photographers and reporters that you would have to step over tripods and wires and almost elbow your way to get in and out of the place. And every time you would come out of it—Captain Fritz' office—they would turn on those bright lights, and you would have to shield your eyes almost to keep from being temporarily blinded.

Mr. HUBERT. Do you mean—that last condition you described took place when anybody came out of Fritz' office, or when they came out with Oswald?

Mr. SORRELS. No—I would not say just anybody, but many times when I would start out, the minute they would see anyone coming out of the door, they would turn the lights on, I guess to be prepared in case Oswald or anyone else that they wished to photograph would come out.

Mr. HUBERT. During the period that we are talking about, that is, say, from the arrest of Oswald the first time you saw him until the 24th, I take it that you observed Oswald being moved from Captain Fritz' office to the jail elevator at least quite a number of times.

Mr. SORRELS. I can only recall two times, I believe. The first time is when he was taken out of Captain Fritz' office on the afternoon of the 22d. Then there were two other occasions I knew of when he was brought back into Captain Fritz' office and when he was taken out. I remember that many times. In other words, about three going out and two coming in I can definitely recall.

Mr. HUBERT. Well, do you recall that while he was being so moved on any one of those occasions, that he was addressed by the press or questions asked him, or remarks made to him?

Mr. SORRELS. No, because the time that I saw him he was in Captain Fritz' office or being removed from his office. I never saw him in the hallway that I can recall.

Mr. HUBERT. Well, I thought you had mentioned a little while ago that on the first occasion you did observe him—after you had interviewed him for about 10 minutes—you did observe him move out of Fritz' office and go to the elevator.

Mr. SORRELS. I think your question, as I understand it, sir, was that he was removed from Captain Fritz' office to the elevator. I did not see him taken down the hallway.

Mr. HUBERT. I see; I did misunderstand you.

Mr. SORRELS. Sorry.

Mr. HUBERT. So you do not know really whether or not any news media or any other people asked him questions and made remarks to him while he was going from Fritz' office to the elevator.

Mr. SORRELS. Not of my personal knowledge; no, sir.

Mr. HUBERT. Could those news people see into Fritz' office from the hallway?

Mr. SORRELS. They could see into the outer office, but they could not very well see into his office unless they actually came inside the office within which his office is located. You have got one door that faces on the west side of the office, and then Captain Fritz' there faces north. So that it would be a question of someone might see just a corner portion of his office from the hallway door, which is glass at the top, but they would not be able to see anyone sitting, for example, where Oswald would have been sitting at the time that I saw him in Captain Fritz' office.

Mr. HUBERT. In other words, there was a glass door to what might be called the outer office of Captain Fritz' office.

Mr. SORRELS. That's right.

Mr. HUBERT. But the inner office, while it had a glass door, it did not face on an area in which the press was located.

Mr. SORRELS. That's right. It also had Venetian-type blinds on the doors, and the other part of his office was glass from the upper part.

Mr. HUBERT. While you were up there at any time during the period we are talking about, did you ever observe anyone known to you to be a civilian who was not either a police officer or connected with the news media in some way?

Mr. SORRELS. No; I do not; well, I will take that back. You are talking about when Oswald was around?

Mr. HUBERT. Well, yes. But also I want to broaden it to any time.

Mr. SORRELS. The reason I asked that question is that Jack Ruby's sister was in his office with another lady after Ruby was in custody, and at that time they were in there with Mr. Jim Underwood from radio station KRLD

who was trying to make arrangements for Ruby's sister to get up in the jail to see him. But prior to that, I do not know, sir.

Mr. HUBERT. Now, were you present at a meeting at which the news media were present and Oswald was brought into an assembly room, in which the news media were assembled?

Mr. SORRELS. I was present when Oswald was brought into what is called the lineup room, which is also the assembly room. They have the lineup section at one end of it. That was on the evening of November 22. At that time it was my request, because a witness who had been interviewed by me, and who had seen the person fire the third shot from the window of the Book Depository Building, I had gotten in touch with him through one of our agents, and he was brought down there for the specific purpose of being able to see Oswald, because when he was first interviewed by me he stated that he thought he could identify him.

Mr. HUBERT. That was in fact, however, a true lineup for the purpose of identification.

Mr. SORRELS. I am sorry—I did not understand the question.

Mr. HUBERT. I said that was a true lineup for the purpose of identification.

Mr. SORRELS. Yes, sir.

Mr. HUBERT. I was speaking of another meeting where the assembly room usually used for the lineup was used to give the press an opportunity to see Oswald.

Mr. SORRELS. I was not present. That is the only time I saw Oswald in the lineup.

Mr. HUBERT. Were you aware at any time on the 22d of the concern expressed by Mr. J. Edgar Hoover in regard to the security of Oswald, and allegedly transmitted to the Dallas people?

Mr. SORRELS. No, sir.

Mr. HUBERT. Did you become aware of that later?

Mr. SORRELS. I do not recall ever having heard anything to that effect.

Mr. HUBERT. Even now you do not?

Mr. SORRELS. No, sir.

Mr. HUBERT. Did you know Jack Ruby at all?

Mr. SORRELS. Not before this incident took place; no, sir.

Mr. HUBERT. You did not even know he existed?

Mr. SORRELS. No, sir. As a matter of fact, when I first heard Oswald had been shot, I understood the name to be Jack Rubin, and in my first report to my headquarters office I gave them the name of Jack Rubin—R-u-b-i-n, an operator of a nightclub. That is the first information I got. I just misunderstood the pronunciation of the last word.

Mr. HUBERT. I think I have already asked this question in a general way—that is to say, you have covered the area in a general way. But I think for the record I should make it more specific.

You have now come to know a man by the name of Jack Ruby, to the extent that you could recognize him, I suppose.

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Can you tell us whether you saw him in or about the police department building at any time after the President was shot, and until Ruby shot Oswald?

Mr. SORRELS. I have no recollection of having seen a man whom I know now to be Jack Ruby before I saw him in the Dallas City Jail on the fifth floor.

Mr. HUBERT. Now, we can pass, I think, for my purposes—and mind you, Mr. Stern might cover some of these areas again, but this is the way this is being handled.

You did see Oswald, I think, on Sunday morning, November 24?

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Could you tell us where and at what time?

Mr. SORRELS. That was in the office of Capt. Will Fritz of the homicide division of the Dallas Police Department. It was somewhere around 11

o'clock in the morning, and he was removed from Captain Fritz' office at approximately I guess about 11:15.

Mr. HUBERT. What was the purpose of your interviewing him that morning?

Mr. SORRELS. We, of course, were interested in any statement that Oswald might make relating to any phase of the assassination of the President. Particularly, I was interested in trying to obtain an admission from him that he had used the name of A. Hidell as an alias, because information had been developed that he had purchased the rifle which was found on the sixth floor of the Book Depository under the name of A. Hidell.

There was a change of address card which he had filed in New Orleans, as I recall it, on which it was shown that persons to receive mail at the address given, the name of A. Hidell appeared. And after Captain Fritz got through questioning him on the morning of November 24, he asked if any of the officers present in the room desired to ask him any questions. And I said, "Yes; I would like to ask him a question."

In the meantime, Chief of Police Jesse Curry had come to Captain Fritz' office, and inquired about the delay in moving him out. And Captain Fritz informed that he was still talking to him.

Mr. HUBERT. Captain Fritz informed——

Mr. SORRELS. Informed Chief Curry——

Mr. HUBERT. That he was or you were?

Mr. SORRELS. That he was. And a very short time after that is when I had an opportunity to ask Oswald some questions. I showed Oswald the change of address card——

Mr. HUBERT. Let me ask you this: Was your interrogation of him cut off, as it were, by the transfer?

Mr. SORRELS. By the transfer?

Mr. HUBERT. Yes.

Mr. SORRELS. No.

Mr. HUBERT. Had you finished with him?

Mr. SORRELS. I had finished——

Mr. HUBERT. As to that point?

Mr. SORRELS. As to that point; yes, sir.

Mr. HUBERT. As a matter of fact, you would have had access to him, I think, at the county jail, anyhow, would you not?

Mr. SORRELS. I had certainly planned on having access to him, and I am sure I would have. As a matter of fact, I had in my mind to start talking to him that afternoon.

Mr. HUBERT. What I wanted to clarify is whether or not your effort to interrogate him was interrupted. But I gather that it was not.

Mr. SORRELS. No, I would say not. Possibly, had he remained there, I might have attempted to ask him more questions. But he was not giving out much information.

Mr. HUBERT. Well, now, during the whole time that Oswald was in custody of the Dallas Police Department, did you find that any obstacles or hindrances were put in your way of examining him?

Mr. SORRELS. No, sir; except had he been in our own custody, there would have been a chance to have questioned him without others being present, or so many others being present.

Mr. HUBERT. At the time that you were in Fritz' office, on November 24, did you hear any plans discussed for the transfer of Oswald?

Mr. SORRELS. No; I did not say that I heard anything about any plans. I do recall that Oswald requested to have some of his clothes brought down there, because his shirt that he had on when he was arrested had been taken from him, I think, for laboratory examination. And Captain Fritz sent and got some of his clothes, and he selected kind of a sweater-type——

Mr. HUBERT. But you did not hear the officers of the Dallas police force discussing the method of transportation and the security measures that they had planned and put into operation?



Mr. SORRELS. Yes; I did hear a part of it, I recall now. There was some suggestion about transporting him in an armored car. Captain Fritz objected to that because of—one reason that I recall was what effect it might have in his trial, that that might prejudice the prosecution by him being transported in an armored car, which is not of course ordinarily used in the transportation of prisoners in that area.

Another thing that I recall is that Captain Fritz thought that the armored car would be a bit cumbersome and it would not be able to maneuver as easily as a car. And it was his desire to take him in a police car with escorts.

Mr. HUBERT. Did you hear anyone suggest that the plan then proposed, and ultimately carried out in part, at least, should be changed so as to bypass the press, as it were?

Mr. SORRELS. No; I did not. At that time there was no way to bypass them, because they were out in the hall. As I had come to the building, I even noticed cameras down in the basement of the city hall there.

Mr. SMITH. Could I interrupt just a second, sir. I may be completely wrong about this, but wasn't there something about the time of transporting him?

Mr. SORRELS. Yes. As I understand it, some of the reporters had inquired of Chief Jesse Curry as to whether or not he was going to transport him to the county jail on the night of November 23.

Now, this is hearsay, that the reporters wanted to be relieved so they could get some sleep if he was not going to be transported that night—they would go home and get some rest.

Chief Curry himself told me that he had said something to this effect, "Go on home and get your sleep, there won't be anything doing before 10 o'clock tomorrow morning."

As I recall, I think the newspapers then published the fact that he would be moved at 10 o'clock in the morning, or words to that effect.

Mr. SMITH. I just wanted to get the full story, because I remembered him having mentioned something about this. I do not know whether it is important.

Mr. HUBERT. Well, in that connection, had you heard that the FBI had received an anonymous phone call from someone advising that an effort, by a group of men, would be made to kill Oswald?

Mr. SORRELS. I do not recall that I had heard any such report at that time. I did hear that there had been an anonymous call come into the police department that someone would try to kill him when they removed him, or words to that effect. But that, I believe, was subsequent to the time he was actually shot. I do not recall that morning of having heard anything about that. And I definitely did not hear anything about a group. I remembered something about it later on, but I never heard anything about it at that time.

Mr. HUBERT. Did you hear of any plans made as to the actual route that would be followed in transporting Oswald?

Mr. SORRELS. Not before Oswald was shot.

Mr. HUBERT. Do you know why, from anything you knew then, or have learned since, the cameramen and so forth were all congregated in the basement area?

Mr. SORRELS. Would you read that question again?

Mr. HUBERT. What I am trying to get at is this: You testified a moment ago that when you came in you saw all the press people with their cameras and so forth in the basement area.

Mr. SORRELS. Not all of them. I said I saw some down there.

Mr. HUBERT. Which would indicate that they either had guessed or had somehow become aware that—that would indicate that they either had guessed or had somehow become aware that that would be a point on the route to be taken at which they could get pictures. And I was wondering if you had heard anything prior to that time about the route, or had you heard that these people had been informed of the route?

Mr. SORRELS. No; nothing about the route. The basement is used by the police generally. They have a passageway which comes from Main Street down into the basement, and then the exit continues on out to Commerce Street, and the police cars that bring prisoners in use the basement. In other words, they drive the car right down to the basement, and the actual receiving office, the receiving office for the jail is on the basement floor.

Mr. HUBERT. Do you recall ever having spoken to either Curry or some other member of the police department about the possibility of moving Oswald in a way other than that which was planned?

Mr. SORRELS. When I heard that they were supposed to take him out at 10 o'clock—that was the announcement and so forth on the radio and in the papers—I remarked to Captain Fritz that if I were he, I would not remove Oswald from the city hall or city jail to the county jail at an announced time; that I would take him out at 3 or 4 o'clock in the morning when there was no one around.

Mr. HUBERT. Do you know when you told that to Fritz?

Mr. SORRELS. That was on the Sunday morning, before he was removed.

Mr. HUBERT. Did you tell that to any other person?

Mr. SORRELS. No.

Mr. HUBERT. Was any other person present when you told that to Fritz?

Mr. SORRELS. No; not that I recall.

Mr. HUBERT. What caused you to give that advice to Captain Fritz?

Mr. SORRELS. The importance of the prisoner, to my mind, was such that in order to remove the opportunity for some crackpot or anyone who might feel inclined to try to kill the prisoner, if the removal was made more or less unannounced or in secret, that those opportunities would have been at least lessened to a great degree.

Captain Fritz said that Chief Curry did not want to—let's reverse that just a bit—that Chief Curry wanted to go along with the press and not try to put anything over on them; or words to that effect.

Mr. HUBERT. Did you gather from what Fritz told you that the reason why your suggestion was not acceptable was that Fritz at least thought that captain—that Chief Curry did not want to break his word, as it were, to the press?

Mr. SORRELS. I didn't consider it so much as breaking his word as I would that he did not want to tell them one thing, or in other words, move him out without the press being aware of the fact—let's put it that way. That was my impression.

Mr. HUBERT. What time was it, about, do you know, that you made that suggestion?

Mr. SORRELS. That was pretty close to 11:15 in the morning, just a short time before they got ready to move him.

Mr. HUBERT. You do not know, do you, whether he conveyed your thought to Chief Curry?

Mr. SORRELS. No; I do not. I doubt that he did, because Chief Curry had left Fritz' office at that time, as I recall it.

Mr. HUBERT. Do you remember about what time it was when the Oswald move began from Fritz' office?

Mr. SORRELS. It was shortly after 11:15 in the morning, as I recall it. In other words——

Mr. HUBERT. Did you go down with the party carrying him down?

Mr. SORRELS. No, sir; I did not. Inspector Kelley and I went to the office of Chief Batchelor, which is also on the third floor, and on the south side of the building, on the Commerce Street side, and we were observing the people across the street from the city hall, as apparently they had been moved over there by officers on duty down below. And we just saw several people over there that were apparently waiting for an opportunity to see them take the prisoner out.

Mr. HUBERT. When you arrived at Chief Batchelor's office, at the point you have just described, to wit, the windows looking out on Commerce Street, do you know whether Oswald had been shot?

Mr. SORRELS. No; I don't think so, because that was immediately—in other words, when they took Oswald out, I went right on down to the chief's office, that is right on the same floor. And we were there for a few minutes before we heard that he had been shot.

Mr. HUBERT. But the Oswald party left Fritz' office before you and Mr. Kelley did?

Mr. SORRELS. I am rather positive that he was taken out before I left, yes; because I remember about bringing the clothes in there, and Oswald selecting, I think, a sweater or something like that. I actually have no

independent recollection of seeing him going through the door or anything like that. He could have been there when we walked out. But it is my impression that he was taken out and shortly thereafter Mr. Kelley and I went to Chief Batchelor's office.

Mr. HUBERT. Did that involve walking a distance on the same floor of about how many feet?

Mr. SORRELS. Oh, possibly a 100 feet, 110, something like that. Captain Fritz' office is not at the entirely opposite end of the building, but Chief Batchelor's office is. You go into the executive area there, and you cut over to the left-hand corner, and Chief Batchelor's office is in the corner.

Mr. HUBERT. How did you first learn that Ruby had shot Oswald?

Mr. SORRELS. One of the police officers that was on duty in the executive area there told us that Oswald had been shot in the basement—in the stomach, as I recall it.

Mr. HUBERT. You were still in Batchelor's office at the time you were told that?

Mr. SORRELS. I think we were right outside the office, in the area there. I do not believe we were actually in his office at that particular time. I think we had stepped outside there. And that I do not think was over, oh, I would say a maximum of possibly 10 minutes, from the time we left Captain Fritz' office to go to Chief Batchelor's office.

Mr. HUBERT. Prior to the time that this policeman advised you that Oswald had been shot, did you notice any commotion or anything to indicate something wrong going on on Commerce Street?

Mr. SORRELS. No, sir.

Mr. HUBERT. Well, you were standing at the window looking down, as I understand it, on the scene on Commerce Street, waiting actually to see the procession go out. But this officer told you this at the entrance to Batchelor's office?

Mr. SORRELS. Yes. I was not at the window at that time.

Mr. HUBERT. You had moved away?

Mr. SORRELS. We had walked away from the window, I think, just killing time, I guess. And we were actually in the—outside of Batchelor's office, but in that area there.

Mr. HUBERT. All right. What did you do?

Mr. SORRELS. I immediately rushed down to the basement.

Mr. HUBERT. How did you go—by what route?

Mr. SORRELS. I grabbed an elevator, as I recall it.

Mr. HUBERT. Public elevator or the jail elevator?

Mr. SORRELS. No; a public elevator—and got down to the basement floor, and I headed right into the jailer's office. And at that time Oswald was laying on the floor and someone was giving him artificial respiration.

Mr. HUBERT. By mechanical means?

Mr. SORRELS. No; by hand. I recall seeing his stomach was uncovered, his shirt was pulled up like that, and the man apparently was over him giving him artificial respiration by his hands.

I went to a telephone, which is in the jail office there, up against the wall, and called my headquarters office and told Deputy Chief Paterni that Oswald had been shot by a man named Jack Rubin—that is how I understood it at that time—who operated a nightclub, and that was all the information I had at that time.

Mr. HUBERT. Now, Mr. Paterni was in Washington?

Mr. SORRELS. Yes.

Mr. HUBERT. That was a long-distance call?

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Do you know what time the call was made, did you use a direct line?

Mr. SORRELS. No; I called it on the security phone, which we use in connection with matters pertaining to the protection of prisoners. In other words, the Signal Corps—

(Witness provided telephone number.)

Mr. HUBERT. And you can use that on any telephone?

Mr. SORRELS. Yes.

Mr. HUBERT. Is that a security matter?

Mr. SORRELS. I beg your pardon?

Mr. HUBERT. Is that a security matter, that telephone number?

Mr. SORRELS. Yes—Signal Corps.

Mr. HUBERT. I think the record should show that the witness stated the number that was called, but that we are not going to have it as a part of the record because it is a security matter.

You, Mr. Reporter, will delete the number from the transcript.

What I was trying to get at is have you ascertained at what time that call was made?

Mr. SORRELS. No; I have not.

Mr. HUBERT. Would it be possible to do so?

Mr. SORRELS. I could not answer that question, because I do not know what records are kept.

Mr. HUBERT. Does it go as a long-distance call?

Mr. SORRELS. A long-distance call collect; yes.

Mr. HUBERT. Then the telephone company probably would have a record of it?

Mr. SORRELS. Possibly so. It is my understanding that at that time they were not actually making any record of calls—they were coming in so fast, the employees of the telephone company told me those calls—they put people through and were not concerned about time.

Mr. HUBERT. Was this done by direct dialing or through the operator?

Mr. SORRELS. Through the operator.

Mr. HUBERT. And it was a collect call?

Mr. SORRELS. Yes.

Mr. HUBERT. It would have to be charged to the government?

Mr. SORRELS. If it was recorded; yes, it would be, to that particular phone.

Mr. HUBERT. I wonder if you would be so kind as to undertake to ascertain for us if there exists a record on that point, because, as you know, we are interested in very narrow areas of time here.

Mr. SORRELS. I would say this—that the time can be established within a matter of a very few minutes, because Oswald was still on the floor and had not been removed to the hospital at the time.

Mr. HUBERT. That is right.

But you see, I have estimates of time from other people, and I want to see how it conforms. And therefore, to tie it in, could you give us your estimate of how many minutes or parts of minutes elapsed between the time you made your call, you initiated it, and the time that Oswald actually moved out?

Mr. SORRELS. That I cannot tell you, because I was not there when he was moved out. I left then that area as soon as I made that call.

Mr. HUBERT. He was still in the area when you made the call?

Mr. SORRELS. Yes, sir.

The call went through very quickly. And I left that area then and went back to Captain Fritz' office, because I was interested in talking to the man who had shot Oswald as quickly as possible.

Mr. HUBERT. Now, when you went down there to the jail office and saw Oswald, as you testified, and made the call, was Jack Ruby there?

Mr. SORRELS. I did not see him.

Mr. HUBERT. You did not?

Mr. SORRELS. No, sir.

Mr. HUBERT. To your knowledge, he had already been removed?

Mr. SORRELS. That is correct; yes, sir.

Mr. HUBERT. Now, how did you get up to Fritz' office?



Mr. SORRELS. I went back up the elevator, the regular public elevator, and went to his office and inquired of Captain Fritz, and I was informed that he was not there, that he had gone to the hospital. I then asked him where was Jack Rubin.

Mr. HUBERT. That is to say, you had been informed at that time that the last name of Jack Ruby was Rubin, R-u-b-i-n?

Mr. SORRELS. I still—as far as I knew, it was R-u-b-i-n, because that is the way I gave it. I asked him where he was, and they said he was on the fifth floor. And I said I would like to talk to him. And——

Mr. HUBERT. Who did you say that to?

Mr. SORRELS. I do not recall who it was—some of the detectives down there.

Mr. HUBERT. In Fritz' office?

Mr. SORRELS. In Captain Fritz' office; yes. And Officer Dean was instructed to take me up to where he was.

Mr. HUBERT. Who instructed Dean to do that?

Mr. SORRELS. The same officer I was talking to—I don't remember who it was, but someone apparently——

Mr. HUBERT. Did you know Dean prior to that time?

Mr. SORRELS. No; I cannot say that I did. So——

Mr. HUBERT. Where was Dean?

Mr. SORRELS. That was in the detective office, Captain Fritz——

Mr. HUBERT. What was he doing?

Mr. SORRELS. I don't know what he was doing.

Mr. HUBERT. In any case, the same officer to whom you made inquiry concerning where Captain Fritz was and where Ruby was, that officer directed Dean, who was in Fritz' office, to take you up?

Mr. SORRELS. That is right.

And we walked out then in the hallway to the jail elevator. Now, that is a different one from the one I came to Fritz' office in. And I was taken to

the fifth floor, and there I saw Ruby, whom I later found out to be Ruby, standing there with, as I recall it, two uniformed police officers. And I introduced myself to him, showed him my credentials, and told him that I would like to ask him some questions.

Mr. HUBERT. Now, was this a cell, or what sort of a room was it?

Mr. SORRELS. It wasn't what you would call a cell, but the elevator—you had to open up a door with bars on it to get into the area there. And——

Mr. HUBERT. How large a room was that?

Mr. SORRELS. It wasn't very large, as I recall it.

Mr. HUBERT. Can you give us something by way of dimensions in feet?

Mr. SORRELS. I would say in width it was probably about, oh, 6 or 7 feet wide. Now, as to length, I would not be able to say exactly how long it was, because I was not interested in the size of the room or anything at that time, and I paid no attention to it.

Mr. HUBERT. Were there tables and furniture and chairs in it?

Mr. SORRELS. No; nothing.

Mr. HUBERT. Nothing at all?

Mr. SORRELS. No; nothing. He was standing there. He only had his shorts on. His clothes had been removed.

Mr. HUBERT. Did Dean go into that room with you?

Mr. SORRELS. Yes.

Mr. HUBERT. So that there were you and Dean and Ruby in the room?

Mr. SORRELS. Yes.

Mr. HUBERT. And you mentioned there were two other officers?

Mr. SORRELS. As I recall it, there were two uniformed police officers there.

Mr. HUBERT. Do you know who they were?

Mr. SORRELS. No; I do not.

Mr. HUBERT. Now, to get it clear—I do not mean if you knew who they were at the time, but do you now know who they were?

Mr. SORRELS. No; I do not know who they are now.

Mr. HUBERT. And there were only those two?

Mr. SORRELS. There were possibly some other officers came in. I do not recall that they were there at the time we got there, but there might have been others came in. As I recall, there was somebody behind me. I wasn't interested in them. I was only interested in talking to this man as quickly as I could.

Mr. HUBERT. Before we get into the details, can you tell us how long this interview with Ruby lasted?

Mr. SORRELS. I would say possibly not over 5 to 7 minutes, not very long.

Mr. HUBERT. What brought it to an end?

Mr. SORRELS. I had gotten the information that I desired at that time, and was anxious to get it back into Washington, because I had been asked to get as much information as I could quickly, and get it back to them up there, something about his background, who he was and so forth.

Mr. HUBERT. So that during that interview, which lasted approximately 5 to 7 minutes, your thought is—you know that there was Dean and yourself and Ruby, and you also know that there were two other officers whose names you do not know even now, and you think that there might have been one or more others who came in?

Mr. SORRELS. Yes—in plainclothes. I don't recall any other uniformed officers there.

Mr. HUBERT. And you do not recall, I suppose, or do not know now the names of any of those other people who might have come in?

Mr. SORRELS. No; I could not tell you who they were at all.

Mr. HUBERT. Now, I think you have made a report of that interview, and a later one, and we will offer that in evidence a little later.

But I would like to ask you now if Ruby made any statement to your knowledge at that time, and that is the first interview you had with him, concerning whether he had been in the assembly room on the night of the 22d when Oswald was brought in so that the press could observe him?

Mr. SORRELS. Not at that time; no, sir. He did later.

Mr. HUBERT. Did he at that time, the first interview, indicate anything, or say anything which would indicate what his motive or reason for his act was?

Mr. SORRELS. Yes; and I might say that it was at that time that I found out his name was Ruby in place of Rubin, and he informed me his name had formerly been Rubinstein, and that he had had his name changed in Dallas.

I asked him—after I identified myself, I told him I would like to ask him some questions.

He said, “For newspapers or magazines?”

I said, “No; for myself.”

He appeared to be considering whether or not he was going to answer my questions, and I told him that I had just come from the third floor, and had been looking out of the window, and that I had seen Honest Joe, who is a Jewish merchant there, who operates a second-hand loan pawn shop, so to speak, specializing in tools, on Elm Street, and who is more or less known in the area because of the fact that he takes advantage of any opportunity to get free advertising. He at that time had an Edsel car, which is somewhat a rarity now, all painted up with “Honest Joe” on there. He wears jackets with “Honest Joe” on the back. He gets writeups in the paper, free advertising about different things he loans money on, like artificial limbs and things like that. And I had noticed Honest Joe across the street when I was looking out of Chief Batchelor’s office.

So I remarked to Jack Ruby, I said, “I just saw Honest Joe across the street over there, and I know a number of Jewish merchants here that you know.”

And Ruby said, “That is good enough for me. What is it you want to know?”

And I said these two words, “Jack—why?”

He said, “When this thing happened”—referring to the assassination, that he was in a newspaper office placing an ad for his business. That when he heard about the assassination, he had canceled his ad and had closed his business, and he had not done any business for 3 days. That he had been grieving about this thing. That on the Friday night he had gone to the synagogue and had heard a eulogy on the President. That his sister had recently been operated on, and that she has been hysterical. That when he saw that Mrs. Kennedy was going to have to appear for the trial, he thought to himself, why should she have to go through this ordeal for this no-good so-and-so.

Mr. HUBERT. Did he use any words or did he say “no-good so-and-so”?

Mr. SORRELS. He used the word “son-of-a-bitch,” as I recall.

Mr. HUBERT. All right.

Mr. SORRELS. That he had heard about the letter to little Caroline, as I recall he mentioned. That he had been to the Western Union office to send a telegram, and that he guessed he had worked himself into a state of insanity to where he had to do it. And to use his words after that, “I guess I just had to show the world that a Jew has guts.”

I, of course, asked him when he was born. He told me in Chicago, March 25, 1911. That he operated the Carousel Club. And also a Vegas Club.

I asked him if anyone else was involved in this thing besides him, and he said that there was not.

I asked him if he knew Oswald before this thing happened, and he said he did not. He said that he had been a labor organizer years ago.

I asked him if he had ever been convicted of any offense or done any time, and he said no felony, that he had a JP release in 1954—in other words, he had been arrested but released by the JP in 1954.

I asked him what his father’s name was, and he said his name was Joseph Rubenstein.

I asked him where his father was born, and he said Russia.

I asked him if his mother was living, and he said no, that she was deceased, and that she was born in Poland. That he was of the Jewish faith.

I asked him if he had an attorney, and he said he had Stanley Kaufman, a civil attorney, as his attorney. And I recall, I believe that is about—that about terminated the conversation at that time.

Mr. HUBERT. Did you not ask him why he had the gun with him?

Mr. SORRELS. Oh, yes; I did.

I asked him why he had that gun, and he said that he carried a gun because of the fact that he carried large quantities of money from his business, or from the club.

Mr. HUBERT. Do you recall whether he made any comment to you or in your hearing regarding the way he got into the basement area where he shot Oswald?

Mr. SORRELS. At that time, I do not. I do not recall asking him how he got in. I made no notes to that effect.

Mr. HUBERT. Do you remember him saying then anything about that he had intended to shoot Oswald and had formed that intent as early as Friday?

Mr. SORRELS. No; I did not.

Mr. HUBERT. He did not comment at all about his intent?

Mr. SORRELS. No; nothing except his response to my question as to “Jack, why?”, and then his relating as I have told you there a moment ago.

In other words, after I got——

Mr. HUBERT. Did he mention anything about he intended to shoot him three times?

Mr. SORRELS. No; I did not hear that statement.

Mr. HUBERT. In other words, the only comments that you heard him state which bear upon intent are those you have already made—that is to say, somebody had to do it, and also that he wanted to show the world that a Jew had guts?

Mr. SORRELS. No; I did not hear him say that somebody had to do it. I heard him say that he guessed he had worked himself into a state of insanity to where he had to do it, felt he had to do it.

Mr. HUBERT. But he did make the report saying he felt he had to show the world that a Jew had guts?

Mr. SORRELS. Yes; that was very plain.

Mr. HUBERT. Now, when you left, who left with you?

Mr. SORRELS. As I recall, I went by myself, because when I got the information about his background, as I related here, and got his correct name and the information that he was operating alone on this thing, that no one else was involved with him, and he did not know Oswald, I then left in order to telephone that information to my headquarters in Washington.

Mr. HUBERT. Can you state positively, therefore, to us that when you left Dean was in the room?

Mr. SORRELS. I think he must have been, because, as I recall it, I went down on the elevator by myself with the elevator operator.

Mr. HUBERT. And Dean was in the room at all times you were talking to him?

Mr. SORRELS. As far as I know.

Mr. HUBERT. He did not leave with you?

Mr. SORRELS. No, sir; he did not.

Mr. HUBERT. The two other officers who were in uniform I think you said, who were in the room at first, they were there all the time too?

Mr. SORRELS. As far as I know; yes, sir.

Mr. HUBERT. They did not leave when you left?

Mr. SORRELS. No, sir.

Mr. HUBERT. And if anybody else came in afterwards, they did not leave when you left?

Mr. SORRELS. Not that I recall.

As I recall it, I think I went down alone, just the elevator operator and myself. Of course he had my sidearm. I had to get my sidearm from him. If there was anyone else there, I didn't know.

Mr. HUBERT. You had to get your sidearm——

Mr. SORRELS. From the elevator operator.

In other words, you are not permitted to carry a gun inside the jail.

Mr. HUBERT. You saw him again later that day?

Mr. SORRELS. Yes, sir; I did.

Mr. HUBERT. Can you tell us what time, under what circumstances, where, who was present, and so forth?

Mr. SORRELS. I do not remember just exactly the time, but it was some time after that when Jack Ruby was brought to Captain Fritz' office, and Captain Fritz questioned him. I was present at that time and heard Captain Fritz interrogate him and made some notes and wrote them up. And I also at that time asked him a few questions myself, on some points I wanted to clarify.

Mr. HUBERT. Were you there from the beginning of the interview between Ruby and Fritz, or did you arrive when it was already going on?

Mr. SORRELS. No; I was there at the beginning, because I heard Captain Fritz tell him of course he did not have to make a statement and so on and so forth, and Ruby said, "Well, I will answer your questions, but some of them I may not want to answer, and I will tell you so."

Mr. HUBERT. Were you introduced to him?

Mr. SORRELS. No; I had talked to him up in the jail there.

Mr. HUBERT. Were you present during the entire interview?

Mr. SORRELS. As I recall it, I was, on that one interview.

Mr. HUBERT. Can you tell us who else was present?

Mr. SORRELS. No; I do not recall who else was there.

As I recall, there was other officers there in the room with Captain Fritz, but I do not recall who.



Mr. HUBERT. Now, you say you had made notes as Captain Fritz was interrogating him. Do you have those notes?

Mr. SORRELS. Yes; I have the notes here.

Mr. HUBERT. Do you have notes also of the first interview?

Mr. SORRELS. Yes; I read some of the stuff awhile ago from those notes.

Mr. HUBERT. Is there any reason of security or otherwise why we could not get photostats of them for the record?

Mr. SORRELS. Not that I know of.

They may not mean much to anyone else, because it is just something jotted down to refresh my memory. They are not in very good order, or anything like that. And I don't know whether it would mean too much to anyone else.

As far as I know——

Mr. HUBERT. You have no objections?

Mr. SORRELS. No.

Mr. HUBERT. I take it those notes were made contemporaneously with the interviews, as they went on?

Mr. SORRELS. The ones of Ruby were; yes. Now, there is other stuff in here that had nothing to do with that.

Mr. HUBERT. Well, we are interested of course only in the Ruby ones. But you testified a little while ago, and you seemed to be referring to notes, about what Ruby said, and what happened and so forth in the first interview, and then also in the second interview.

The notes that you referred to on both occasions were made contemporaneously with the interview. That is, they were not made at a later date?

Mr. SORRELS. That is correct. Now, there is other stuff in this notebook. Like I went up to the identification bureau to check on his record and so forth, and got his detailed description, and his fingerprint classification—that had nothing to do with the interview.

Mr. GRIFFIN. I think we ought to take that to show what the practice was.

Mr. HUBERT. If you do not mind, we will have them photostated, and after we get the photostats, we will get them an identification number.

Suppose you tell us, then, what occurred at the second interview?

Mr. SORRELS. Continuing with what I started out with a moment ago there, he—incidentally, I have noted here on this page where I made these notations “3:15 p.m.,” I assume that is possibly the time this interrogation took place.

I do have the date, “11-24-63.”

Mr. HUBERT. The beginning of the notes relating to the interview in Captain Fritz’ office?

Mr. SORRELS. That is right.

Mr. HUBERT. It is your testimony now it would be your custom, as I understand it, to put the time at the beginning of the notes.

Mr. SORRELS. Ordinarily we do. In this other one, I did not put the time.

Mr. HUBERT. All right.

Mr. SORRELS. He gave his name as Jack Leon Ruby. He was asked about who his attorneys were, and he said that he was going to get Tom Howard and possibly Fred Brunner, and Stanley Kaufman, a civil attorney, and Jim Arnton. In other words, he was going to consider those and C. A. Droby.

He said that his name was changed in Dallas.

Now, I might put in here as an explanation that these are in response to questions that Captain Fritz was asking him. That he had this gun for 2 or 3 years. That George Senator was a roommate. That he came in the basement—the word “basement” is not shown here—he came in off Main Street, off of the ramp. That he felt that Oswald was a Red, and that he was alone on this assassination. That he saw Oswald in the showup room, or a similar room. That he knew who he was going for. That he did not want to be a martyr. That he had built up—was a buildup of grievance. That he had closed both clubs.

And I have the notation here “Vegas, Oaklawn, 3508, Carousel, 1312½ Commerce.” That he never saw the man before this thing took place, referring to the time that he was down at the police station, or city hall, rather. That he had been in the mail-order business. That he had been a labor organizer. That he was fond of the police department.

And when Police Officer Slick had been killed—that is all I have in the notes, but he said that he grieved about that.

That he had been around Saturday night, that people were laughing, no one was in mourning. That he had seen a eulogy on TV. That he saw the President’s brother, Bobby, on TV. That he guessed that there was created a moment of insanity. That he read about the letter that someone sent to little Caroline. That he knows the police department is wonderful. That his heart was with the police department. That he had hoped that if ever there was an opportunity—that he had hoped there was an opportunity for him to participate in a police battle, and he could be a part of it, meaning on the side of the police.

That his mother and dad were separated for 25 years. That he owes Uncle Sam a big piece of money. That he has love for the city of Dallas—for the city—he did not say Dallas. That his sister was operated on recently, she was hysterical about the President. That he went to the synagogue Friday night, heard a eulogy. And he had been grieving from that time on. That he went over to where the President was shot.

He wanted Captain Fritz to not hate him for what he had done. That when he was with the union, that one of his dear friends was killed, he came to the place where it happened. Leon Cook was the man. That Ruby’s mother told him to leave. That he was in the union Scrap Iron and Junk Dealers Association. That a man by the name of Jim Martin killed Cook. That Martin was political and had affiliations and got out of it.

That his roommate sold postcards. That his politics were Democratic, but he voted for the man.

That Sammy Ruby, a brother, who services washaterias. Another brother, Earl Ruby, in Detroit, who operated a cleaning plant. Another brother, Hyman Rubenstein, in Chicago, a salesman.

That he had also sold twist boards. That he would not think of committing a felony. That Tom O'Grady, a Catholic, formerly with the police department, had called him, that he had called Sims, who is one of the members of the police department, and wanted to bring sandwiches for them, because he knew they were having a tough time, and that Sims said that it wasn't needed.

That he tried to locate—anyway, it was some of the TV people to give them to. And that is when he went to the showup room. And that is the first time that he had even seen anyone like that, referring to Oswald.

That he had seen Henry, meaning Henry Wade, the district attorney, talking to someone. That KLIF, the radio station there, had been good to him. No one else was involved.

That is my notes—"no one else involved"—meaning there was no one else involved with him, Ruby, in connection with the shooting.

Mr. HUBERT. Now, was this a sort of monologue on his part, or response to questions?

Mr. SORRELS. No; as I said a moment ago, that was in response to questions.

Mr. HUBERT. Now, thus far have you covered only the part of the interview which was conducted by Fritz, or was some of that the result of your questioning?

Mr. SORRELS. About the only thing that I recall questioning him about was possibly the correct address on the night club.

Mr. HUBERT. Do you know if anyone asked him how he got in?

I think perhaps you have testified to that already.

Mr. SORRELS. Yes, Captain Fritz asked him that.

Mr. HUBERT. And he said he came in through the ramp, I believe you said.

Mr. SORRELS. That is right.

Mr. HUBERT. Did he state at any time during that interview about any intent to kill Oswald, to shoot him three times, and he is glad he was dead?

Mr. SORRELS. I do not recall that.

Mr. HUBERT. Now, I am going to show you a document which is actually a photostatic copy, or Xerox copy, of Commission Document 354, consisting of four pages. I am going to mark that document for identification as follows, to wit, "Deposition of Forrest Sorrels, Washington, D.C., May 6, 1964," and I am signing my name to that, all of which is on the right margin of the first page. I am placing my initials in the lower right-hand corner of the second, third, and fourth pages. I ask you if you can identify this document, or rather, the photostatic copy? Would you state what it is?

Mr. SORRELS. This is a photocopy of a memorandum report titled "Assassination of President Kennedy," the second line of that caption, "Jack Leon Ruby—slayer of Lee Harvey Oswald, charged with murder of President Kennedy." Submitted by me, Forrest V. Sorrels, on February 3, 1964. And it consists of three full pages and a portion of—about a fifth of the fourth page.

Mr. HUBERT. I think your signature, or, rather, a photostatic copy of your signature is on the front.

Mr. SORRELS. That is correct—on the front.

Mr. HUBERT. That is the report that you submitted to your superiors?

Mr. SORRELS. In Washington.

Mr. HUBERT. Which ultimately, of course, they sent. The report covers the events of November 24, is that right?

Mr. SORRELS. That is right.

Mr. HUBERT. Do you know why it was filed on February 3?

Mr. SORRELS. Why it was written on February 3? I was instructed by Inspector Kelley to write up a memorandum on the interview that I had with Jack Ruby, shortly after Oswald was shot by Ruby, and also the interview that was had with Captain Fritz and Ruby at which I was present on the same date.

Mr. HUBERT. When did you receive those instructions?

Mr. SORRELS. I cannot say exactly when I received them—probably within a day or two, or it could have been longer, because due to the press of other work and things arising out of the assassination, and its duties, the other duties, it was not written as soon as it should have been. And I may have been instructed some time before that to—as quick as I could to get the memorandum prepared.

Mr. HUBERT. What I mean is that normally you would write such a report as this in any case?

Mr. SORRELS. Yes, that is true.

Mr. HUBERT. And normally it would be written sooner——

Mr. SORRELS. Sooner, that is right.

Mr. HUBERT. Than 2 months or so afterwards?

Mr. SORRELS. Yes, sir.

Mr. HUBERT. That is what I am asking—if you can tell us what was the cause of the delay.

Mr. SORRELS. Well, it is just the fact that we were burdened with all the additional work and things brought about by this assassination and investigation and so forth. I guess you could term it, possibly, negligence on my part for not just taking time off and doing it. That is about the only explanation I can give for that. It was not any willful intent to not write it or anything to that effect.

Mr. HUBERT. There is no suggestion as to that.

Mr. SORRELS. I know. But that is just as a matter of explanation.

Mr. HUBERT. Do you think it was written on that date because Mr. Kelley told you shortly before that date, to wit, February 3, that you should write it, or is it your impression that Mr. Kelley had told you long before it was written to write it?

Mr. SORRELS. There is a possibility that he may have told me before. I don't recall it specifically. But I do know that Inspector Kelley had instructed me to write up the report.

Mr. HUBERT. Do you recall having a conversation with Mr. Burt Griffin, the gentleman who is in the office now, concerning what you knew about what Ruby had said in your interviews with him?

Mr. SORRELS. Yes; I do. And that refreshed my memory a bit, because I recall that Inspector Kelley, after I had talked to Mr. Griffin on the telephone—Inspector Kelley told me to get it written up, get it in writing, about the interview, and get it in. I remember that now, since you mention it.

Mr. HUBERT. So that actually the report was written because Inspector Kelley instructed you to do so, and as you recall it he did so because of the conversation with Mr. Griffin?

Mr. SORRELS. I would surmise that, because, as I recall it now, either right after I got through talking to Mr. Griffin or shortly thereafter, Mr. Kelley did instruct me to get the interview, as I recall it, in a report, and get it in to him.

Mr. HUBERT. But normally I think you said this report would have been written anyhow, without any suggestion by Mr. Kelley or anybody else?

Mr. SORRELS. Yes; that is right.

Mr. HUBERT. And it was your intent to write it, you say, but you didn't get around to it?

Mr. SORRELS. That is about the best explanation I know to make on it.

Mr. HUBERT. Now, do you recall a conversation with Chief Curry with respect to what you knew that Ruby had said?

Perhaps I can identify the conversation a bit more by saying to you that it had to do with a suggestion by you as to what the witnesses who were members of the police department might be called in the prosecution.

Mr. SORRELS. Oh, yes; I remember that.

Mr. HUBERT. Can you tell us, first of all, when it was?

Mr. SORRELS. As I recall, it was after the trial of Ruby had started, or along about the time it was beginning to start. I contacted Chief Curry and told him——

Mr. HUBERT. Is this by phone, or was it by personal interview?

Mr. SORRELS. No; as I recall it was by phone—that there were two uniformed police officers that were present when I talked to Ruby on the fifth floor of the city jail on the morning of November 24, and that I had not warned Ruby of his constitutional rights and did not know whether or not the statement that he had made to me would be admissible in a trial in the event that the district attorney wanted to use it.

But——

Mr. HUBERT. Had you been at that time consulted by the district attorney with reference to your being a possible witness?

Mr. SORRELS. I do not recall that I had.

Now, here is something that will establish that. The district attorney, Henry Wade, came to Washington—I don't know whether it was in connection with talking to the Commission or what—but I saw him out at the airport, and he said to me——

Mr. HUBERT. What airport?

Mr. SORRELS. This was before the trial—Love Field, in Dallas.

He was coming to Washington. And he said to me, “I want to talk to you when I get back about this case.”

And I said, “All right.”

And I did not hear anything more from Mr. Wade until the trial was actually in progress. He asked me to come to his office, which I did.

Mr. HUBERT. That is Wade?

Mr. SORRELS. That is Henry Wade; yes, sir, the State district attorney that prosecuted Ruby for the murder of Oswald.

And, at that time, I related to him the conversation I had had with Ruby.

Mr. HUBERT. Did you relate to him in that interview approximately what you have told us today about your interviews with Ruby?



Mr. SORRELS. Only the one up in the jail—I was talking about that. I didn't go into detail about this one where Captain Fritz was interviewing him. That was only there at the jail.

Mr. HUBERT. Is there any reason why one was talked about and not the other?

Mr. SORRELS. No; no particular reason, excepting that I just assumed that Captain Fritz would be the one if there was any testimony as to the second interview—would be the one to testify in that case.

Mr. HUBERT. Did Wade know that you were present at both?

Mr. SORRELS. I would not say positive, but it seems to me that it was mentioned that I was present when we talked, but I am not positive on that.

Mr. HUBERT. Did this interview with Wade occur before or after the telephone conversation with Curry?

Mr. SORRELS. No; that was afterwards. That was after the trial started.

Mr. HUBERT. Well, now, which was afterwards?

Mr. SORRELS. The interview with Mr. Wade.

Mr. HUBERT. That came after the telephone conversation with Curry?

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Did Mr. Wade consider using you as a witness?

Mr. SORRELS. He said if he needed me, he would let me know—in other words, would get in touch with me.

He said, “Now, the defense may subpoena you on this thing.”

And defense attorney—one of them was in on that case—did call me on the telephone. They wanted me to meet with either Tonahill or Belli, or maybe both of them. And I told them I was extremely busy.

He said, “How about having dinner with us?”

I said, “No; I don't even have time to eat big dinners, I just grab a sandwich,” because I didn't want to have dinner with them.

They called me a second time, because there had been a delay from the time they thought they were going to call me—they called me the second

time and that is when they said something about having dinner with them later, and I said, no; I didn't have time.

And at that time I told them I didn't think I could do them any good. I said I can tell you in a short time what I could testify to.

He said, "Over the phone?"

I said, "Yes."

So I told them about the interview with Ruby in the jail up in the jailhouse. I did not go into detail about the other, because I did not consider that my interview.

Mr. HUBERT. You are talking there about the second interview?

Mr. SORRELS. Yes.

Mr. HUBERT. Did you mention you had been present?

Mr. SORRELS. I do not recall that I did.

Mr. HUBERT. Coming back to the Curry matter, what was your motivation in calling Curry?

Mr. SORRELS. I felt that the testimony or the statements, rather, made by Ruby right after he had shot Oswald would be of benefit to the district attorney in the prosecution of this case, the statements that he made as to the fact that he had worked himself into a state of insanity, also the statement that he guessed he had to show the world that a Jew had guts. And I also recall that during the questioning by Captain Fritz during the interview there that Ruby had made the remark, "Well, I would make a good actor, wouldn't I?" to Captain Fritz. And I felt that possibly I could not testify, because of the fact that I had not warned Ruby of his constitutional rights.

I thought of that before I talked to him, but the part that I was interested in, that is, determining whether or not anyone else was involved with him, or whether or not he knew Oswald, I didn't consider—I mean I considered that if I warned him of his constitutional rights on that particular angle, that he might not even tell me that, and that is the reason I did not warn him of his constitutional rights, because I felt it was of paramount interest to our Service to determine whether or not others were involved in this thing

besides Ruby, and of paramount interest to determine whether or not Oswald and Ruby knew each other, or had any connection.

Mr. HUBERT. Is it a custom, rule, or regulation of your Service that you must warn a person of his constitutional rights before you can question him?

Mr. SORRELS. On our investigations; yes, sir.

Mr. HUBERT. And is that a custom, or is it actually a published regulation?

Mr. SORRELS. Well, we know that we are going to get in serious trouble in court if we don't do it, because that is always—the question is always asked, especially by a defense attorney, and so forth.

And we know that we are supposed to do it.

I try to adhere to it as much as I possibly can.

Mr. HUBERT. What I am trying to determine is whether that is your only personal——

Mr. SORRELS. Oh, no.

Mr. HUBERT. Way of doing things, or if it is an established policy of the Service, and if so, how is it established?

Mr. SORRELS. I think it is possibly a bit of both, because it is always my practice to tell these people that we cannot promise them anything—I am talking about the people we handle for prosecution in our investigations. And that, of course, they don't have to tell us anything if they don't want to. We make that known—because if we do not we know if there is a trial in a case, that that question is going to be asked, and we know that under our laws that a person is supposed to be warned of his constitutional rights before he is questioned.

Mr. HUBERT. Is that your version of what the law is?

Mr. SORRELS. Yes.

Mr. HUBERT. Coming back to the policy matter, I don't expect you to be able to quote it to me now, but you have the impression there is something

in writing in some manual of standard operations, instructions, that requires that you warn a person of his constitutional rights?

Mr. SORRELS. I just cannot answer that question, because I just can't recall if there is a specific instruction of that particular thing or not.

But I do know that if we do not warn them of their constitutional rights, that we are—we will be in serious trouble in the trial of a case because if the question is asked, "Did you warn this man of his constitutional rights?" we have to tell the truth, and if we say "No, it wasn't," we would be jeopardizing our case.

Mr. HUBERT. Now, at the time you called Curry, you had not spoken to Wade?

Mr. SORRELS. Not about the actual interview with Ruby at that time.

Mr. HUBERT. At the time you talked to Curry, was that before or after you saw Wade at Love Field?

Mr. SORRELS. I can't say for sure, but I think it was probably afterwards.

Mr. HUBERT. What I am trying to get at is what motivated your call to him.

Mr. SORRELS. I probably didn't make myself plain.

What motivated my call to him was that I figured that if I was called to Mr. Wade's office to explain this thing to him, that the fact that I had not warned Ruby when I approached him to get this information—that I had not warned him of his constitutional rights, that I would not—it would not be good testimony. And my thought is that the two men who were—the two uniformed officers there, who were just standing by and had nothing to do with the questions and so forth, who heard what was said, they might be able to testify to that effect.

Mr. HUBERT. So you wanted to get that information to someone in authority?

Mr. SORRELS. That is right.

Mr. HUBERT. And the information was twofold—that you knew there was someone who could testify as to what Ruby had said, because you had heard Ruby say it in the presence of other people?

Mr. SORRELS. That is right.

Mr. HUBERT. And, secondly, you were doubtful as to whether your testimony as such would be valuable?

Mr. SORRELS. That is right.

Mr. HUBERT. Do you know why you conveyed that information to Curry instead of Wade?

Mr. SORRELS. Because I did not know the names of the two police officers that were there. Two uniformed men.

Mr. HUBERT. Well, was it your thought, then, if you advised Curry he would get the names of the men, and then convey it to Wade? I am trying to get what your motivation was.

Mr. SORRELS. Well, that is all I can recall as to the motivation. In other words, I don't know that I thought that he would convey the information to Wade or not. I just cannot recall whether I had that in mind or not. But I did have in mind that possibly these two fellows, these two uniformed police officers, might be able to testify as to what Ruby said there when I would not be able to do so, because of the fact I had not warned him.

Mr. HUBERT. And this conversation with Curry was in between the time you saw Wade at Love Field and the time you had the interview with him when he came back from Washington?

Mr. SORRELS. As I recall it, it was. I won't be positive about that.

Mr. HUBERT. Now, you told Wade, I think you said, the same thing, about your doubts as to your qualifications.

Mr. SORRELS. I believe that I did, if I recall it correctly, because I think when I was talking to Wade in his office, that that was mentioned.

Mr. HUBERT. Did you make any memo of the conversation you had with Curry?

Mr. SORRELS. No, sir; I did not.

Mr. HUBERT. Did you make any memo of the interview you had with Wade?

Mr. SORRELS. No, sir.

Mr. HUBERT. What did Curry say to you when you told him this information?

Mr. SORRELS. As I recall it, I think he said that he could possibly find out. It seemed to me like I talked to Chief Batchelor about that, also. I am not positive. But, anyway, I figured they would have a way of knowing who it was that was there, and so forth, at that time.

Mr. HUBERT. Is there anyway you could fix for us more definitely the dates of these three occurrences—your meeting with Wade at Love Field, your telephone conversation with Curry, and your interview with Wade?

Mr. SORRELS. I think that I can on the one at Love Field, because, as I recall it, Miss Lynda Johnson was en route to Washington, D.C., and I went to Love Field to be there at the time they arrived in the event that they might need a car or something. I can establish that—February 16, 1964.

Mr. HUBERT. You mean you don't know it now, but you could establish it?

Mr. SORRELS. No; I could establish it.

Mr. HUBERT. I wonder if you would undertake to establish that for us.

Mr. SORRELS. Yes; I would.

Mr. HUBERT. Now, you think there is no other collateral way to establish the dates of the other matters?

Mr. SORRELS. I can—I think I can pretty well establish it. I will tell you why. At the time that I was in Wade's office, and during the course of the time that I talked to him, this officer Dean came into Mr. Wade's office and Mr. Wade asked me about if I was present when Ruby said such and such things—I don't recall what it was now—I think about that he had been thinking for 2 or 3 days about killing this fellow, or words to that effect, and I told him I was not. And it was right after that that Dean testified in that case. And I think I can establish about pretty close to what day it was. He either testified that day or the following day, as I recall it.

Mr. HUBERT. What interval of time would have elapsed between your meeting Wade at the airport and the date of the interview?

Mr. SORRELS. Oh, I think that would have been probably—it is just hard to estimate the time, but it was before the trial of Ruby had ever even begun. It would just be a guess on my part, but I would say it was probably maybe 2 or 3 weeks, or maybe even more.

Mr. HUBERT. Well, can you fix for us—put it this way: Can you fix for us whether the Curry conversation was closer to the time you met Wade at Love Field than it was to the time you interviewed Wade, or Wade interviewed you?

Mr. SORRELS. I just don't believe I can. It seems to me like it was shortly after I had seen Mr. Wade. I may be wrong about that. But I know the thought occurred to me, well, if I am going to be called down on that thing, I don't think they are going to be able to accept my testimony, because of the fact that Ruby wasn't warned. And so it was that time that I thought about maybe getting the names of these other two officers who could possibly remember the conversation, and they were standbys and were not the ones actually in the questioning.

Mr. HUBERT. Do you remember telling Mr. Griffin here that you would call the Dallas Police Department—I think that was in a telephone conversation he had with you—to find out the names of the people?

Mr. SORRELS. It seems that I did mention to Mr. Griffin, when he was talking to me on the phone, that there were others present, and that I could possibly find out their names, and it seems to me that Mr. Griffin said something about, "Well, no; don't do that," or "It is not necessary."

Mr. HUBERT. Well, let me ask you this: Would that have been before you called Curry, or afterwards?

Mr. SORRELS. Let me see now. I think that would have been before.

Mr. HUBERT. Well, perhaps it is this. Perhaps it was that when you had a personal conversation with Mr. Griffin in Dallas that you told him that you had made a call to ascertain the names of these people.

Mr. SORRELS. It could have been.

Mr. HUBERT. Did you make such a call?

Mr. SORRELS. Did I?

Mr. HUBERT. Yes.

Mr. SORRELS. I made a call. I am not sure it was to Chief Curry. It seems to me I remember talking to Chief Batchelor on that. Now, I may have mentioned it to Chief Curry, too. But it seems to me like I remember talking to Chief Batchelor.

Mr. HUBERT. About the existence of some officers?

Mr. SORRELS. To find out who the uniformed officers were who were there.

Mr. HUBERT. Well, now, would that conversation with Chief Batchelor be before the Curry conversation or afterwards?

Mr. SORRELS. I don't recall that I made that conversation to both of them or not. Now, I am just not positive about that. But I do recall having made that call for the specific purpose of getting somebody that was there, those two uniformed officers, that could have heard that conversation, that could have testified in the case down there.

Mr. HUBERT. Is it possible that that aspect of the matter was part of the call to Curry?

Mr. SORRELS. I just don't remember—I just don't remember. But I know that I did talk to either Curry or Chief Batchelor, and I am inclined to think it was Chief Batchelor. Now, when you mentioned awhile ago about the call to Curry, I, of course, said "yes" on that, because I was thinking about the call. But since thinking about it, I am not sure that it was Chief Curry that I talked to at all about that particular angle. But I do know that I talked to Chief Batchelor about it. I know that.

Mr. HUBERT. Well, let's see if we can clarify it. There is no doubt about it that there was one telephone call made to a high police official.

Mr. SORRELS. That is what I recall.

Mr. HUBERT. You are definite that one call was made to Batchelor.

Mr. SORRELS. If my memory serves me right, it seems that I did talk to Batchelor.

Now, whether I talked to Chief Curry on that particular thing or not, I am not too positive.



Mr. HUBERT. So that the matter stands that you are not certain that there was the second telephone call with Curry at all?

Mr. SORRELS. No; I don't—

Mr. HUBERT. Well, would you have covered with Batchelor the material that we have talked about that you say you did cover with Curry?

Mr. SORRELS. Now, what material is that?

Mr. HUBERT. Well, such as that you were doubtful about your ability to testify, and so forth.

Mr. SORRELS. Not necessarily. In other words, if it was Batchelor that I called, then I would have, I think, have explained it to him. If it had been Curry I called, I would explain it to him—as to why I was wanting these names, or given that information to them.

Mr. HUBERT. What I am trying to get at, you see, is whether or not there were two calls.

Mr. SORRELS. I don't recall that there were two calls. I don't.

Mr. HUBERT. And you are positive you spoke to Batchelor?

Mr. SORRELS. It seems that I remember talking to Chief Batchelor about it, because it seems that I can remember that he said, "I am sure that we can find out that information," or words to that effect.

Mr. HUBERT. Well, if there was only one call—that is to say, if you are doubtful about two, and you do remember definitely Batchelor, then the one call would have to be Batchelor, would it not?

Mr. SORRELS. That is correct; yes.

Mr. SMITH. I think there is a lack of meeting of the minds here.

Mr. HUBERT. Would you try to help me out? I would appreciate it.

Mr. SMITH. Let me see if I can clarify this. Was there definitely a conversation with Curry about whether you would be able to testify because of your failure to warn Ruby of his constitutional rights?

Mr. SORRELS. I just cannot say positively that there was. I do know that I made a phone call for the specific purpose of informing them of the fact

that these two uniformed police officers were there and could have heard the conversation that I had with Ruby, and as my memory serves me it seems that was Chief Batchelor. Now, I may have had conversations with Chief Curry. We have talked about this thing from many, many different angles from time to time.

Mr. SMITH. Let me ask it a different way.

Was there one call to obtain the names of the men, uniformed policemen, who were in the room when you interrogated Ruby, and a second call concerning the question of whether you could testify, or were these two subjects covered in one telephone conversation?

Mr. SORRELS. No; as I recall it, there was only one conversation on it at that time.

Mr. SMITH. All right. And you don't know, then, for sure, whether it was to Chief Batchelor or to Chief Curry?

Mr. SORRELS. I would say that, if my memory serves me right, it seems to me like it was Chief Batchelor. There were many, many conversations about this case from many angles. But I know I was concerned when Henry Wade indicated I was going to be called as a witness down there, because I felt that they should know that, and I think as I recall it when he talked to me I told him about those two uniformed officers being there.

Mr. HUBERT. Well, whoever you talked to, did that person, whether it was Curry or Batchelor, indicate that he was not aware of the information you were giving him?

Mr. SORRELS. Now, what information?

Mr. HUBERT. About the statements made by Ruby. And that you had been present.

Mr. SORRELS. No; I don't think so.

Mr. HUBERT. You have already adverted to the telephone call that you had from Mr. Griffin.

Mr. SORRELS. Yes, sir.

Mr. HUBERT. Did you make the telephone call to Curry or Batchelor as a result of the conversation you had with Mr. Griffin?

Mr. SORRELS. No.

Mr. HUBERT. That was independent? You think it was before?

Mr. SORRELS. No; I don't think it was before, because as I recall it, this conversation with Mr. Griffin was quite some time before.

Mr. HUBERT. Mr. Sorrels, I call your attention to the fact that on the exhibit which has been identified as Commission Document 354, as to which you have already testified, there is no mention of the names of the officers who were present, and that is dated February 3, 1964. Does that help you to recollect whether you then got interested in who those people were and called Batchelor or Curry, or both?

Mr. SORRELS. It probably brought it to my mind that there were other people present there, and I think I so informed Mr. Griffin on the telephone. But that is not what prompted me to make the call about the two uniformed officers, because that had no bearing on what I told Mr. Griffin. What he was asking me over the telephone is what I had heard Ruby say. And I told him what I had heard Ruby say. And he had asked me about certain things that I did not recall hearing Ruby say, and I told him so at the time. And when I was in District Attorney Wade's office, the question was asked of me by Mr. Wade as to whether or not certain statements alleged to have been made by Ruby were made to Officer Dean in my presence, and I told him I did not hear anything like that.

Mr. HUBERT. Well, perhaps another approach would be this: You were interested or became interested sometime in finding out the names of these people. Isn't that a fact?

Mr. SORRELS. Yes; but only for that particular purpose.

Mr. HUBERT. And you also wanted to convey the information that you were doubtful whether you would qualify, as you put it, as a witness, because you had failed to warn. And that that thought came into your mind after Wade indicated that you might be a witness.

Mr. SORRELS. That is as I recall it.

Mr. HUBERT. And that, therefore, you called someone. Now, were those two things in the same conversation?

Mr. SORRELS. You mean about——

Mr. HUBERT. The inquiry as to the names, who these people were, and to convey the information that you were worried about your own qualifications if you should be considered.

Mr. SORRELS. That is right.

Mr. HUBERT. You think there were two conversations?

Mr. SORRELS. No.

Mr. HUBERT. Just one?

Mr. SORRELS. As far as I know there would be one. Because that is the only interest I had. As I recall it, I told Mr. Griffin over the telephone that there were others present, and I could possibly find out who they were, and for that purpose that he was trying to bring out on the telephone conversation, and as I recall it he told me, "No; don't do that."

Mr. HUBERT. Did you find out who the two people were?

Mr. SORRELS. No; I could not tell you to this day who they are.

Mr. HUBERT. In other words, whoever you spoke to, Batchelor or Curry, who said they would let you know——

Mr. SORRELS. No; I don't think it was my purpose in finding out who they were for my own benefit. That wasn't the point at all. It was my thought that they should have information for the district attorney—period.

Mr. HUBERT. In other words, you were not interested in knowing who they were yourself? You wanted them to know of the fact that there were two officers there?

Mr. SORRELS. That is right.

Mr. HUBERT. And that you were worried about your own qualifications?

Mr. SORRELS. That is right.

Mr. HUBERT. Can you tell us approximately the lapse of time, if you can remember it, between your conversation with Mr. Griffin and your conversation with either Chief Batchelor or Chief Curry that you have been speaking of?

Mr. SORRELS. Well, I would say it was quite some time afterwards, because this conversation—I don't remember the date I had it with Mr. Griffin, but it was prior to the writing of this memorandum. And it was quite some time after that that the trial ever started. And when Mr. Wade saw me at the airport and said, "I want to see you and talk to you about this case," the trial, of course, had not started at that time. So it was quite some time afterwards.

Mr. HUBERT. Well, what did Curry or Batchelor, whoever it was, tell you when you told him of this?

Mr. SORRELS. As I recall it, they said they could get the information. That is all that I recall that they said.

Mr. HUBERT. Do you remember when speaking to Wade at the interview whether you adverted to the conversation you had had over the telephone with either Batchelor or Wade, or possibly both?

Mr. SORRELS. No; I don't recall that that was mentioned.

Mr. HUBERT. Did you have any other conversation with any officers in the police department? I mean about this aspect that we are talking about now?

Mr. SORRELS. I saw Captain Fritz at the district attorney's office the day that I was down there and talked to him, and I cannot recall about whether or not there was a conversation with him about who was present at that time or not, because I remember discussing with Captain Fritz at that time that I didn't think my testimony would be much benefit to the prosecution on that, or if it would be admissible because of the fact I had not warned Ruby of his constitutional rights.

Mr. HUBERT. When was that conversation?

Mr. SORRELS. That was the same time I was talking to Mr. Wade at his office. This is when the trial of Ruby was actually in progress.

Mr. HUBERT. Was Fritz in the office?

Mr. SORRELS. He was in and out of there. He had walked in and walked out. And I may have mentioned to him that—the fact that there was other officers there besides Dean and myself. And I told Mr. Wade in Dean's presence that certain things that Mr. Wade had asked me about, about Ruby

saying that he had been—I think somebody had been thinking 3 days about shooting this fellow—that I heard no such statement, that I had left when I got the information I wanted. In other words, when I was questioning Ruby, as I recall it, nobody was asking him any questions except me, and when I got through I left.

Mr. HUBERT. When did you find out that Dean and Archer had said or were going to say that they heard Ruby say that he had intended to kill him 3 days before?

Mr. SORRELS. I don't know that Archer said that—I don't remember his name.

Mr. HUBERT. Dean—when did you learn that?

Mr. SORRELS. When Mr. Griffin asked me over the telephone if certain statements were made, and I told him, in conversation with him, the statements that Ruby had made to me, and he asked me if certain other statements were made, and I said not to my knowledge, “I don't remember anything like that,” and one of them was about whether or not Ruby came down the ramp, and I told him at that time I didn't recall that statement having been made, and I didn't believe that statement was made in my presence.

Mr. HUBERT. I thought you said in the interview with Wade you told him you did not hear Ruby say that he had formed the intent to kill Oswald on Friday.

Mr. SORRELS. No, no.

Mr. HUBERT. I am sorry.

Mr. SORRELS. No; I didn't hear that. Ruby didn't say that. I told Wade that.

Mr. HUBERT. You did tell Wade that? Did Wade ask you that?

Mr. SORRELS. He asked me if certain statements were made, and I told him no, not in my presence.

Mr. HUBERT. In other words, you had not heard of that even until Wade brought it to your attention?

Mr. SORRELS. No—not that part. The thing that Mr. Griffin was asking me, I think, as I recall it, was about the ramp.

Mr. HUBERT. Wade asked you did you hear Ruby say, “I intended to kill him since Friday night,” and your answer was “No; I didn’t.”

Mr. SORRELS. No; I didn’t hear it.

Mr. HUBERT. Did Mr. Griffin mention in the telephone conversation he had with you statements allegedly made, or knowledge allegedly in the possession of Dean in regard to what Ruby had said?

Mr. SORRELS. I remember specifically there was a statement about him coming down the ramp. I remember that. And it seems that—I wouldn’t be positive about that, but it seemed like there was something else that Dean was supposed to have said in my presence, and I told him no I didn’t hear anything like that.

Mr. HUBERT. I had thought you said that you told Wade that you had not heard Dean say any such thing. But he asked you?

Mr. SORRELS. He asked me. No—you see, he had talked to Dean beforehand, you see, about this. And I never had talked to Dean. As a matter of fact, I had not seen him.

Mr. SMITH. I might say it was my impression at one time that Mr. Sorrels said or indicated that in his conversation with Mr. Griffin, this question about Ruby having premeditated this for 3 days came out in this conversation with Griffin. At least I got that impression. But do I understand it now to be clarified that that particular point did not come out in your conversation with Griffin?

Mr. SORRELS. I don’t think on the telephone conversation at that time.

Mr. SMITH. It came out in your conversation with——

Mr. SORRELS. With Wade.

Mr. SMITH. With Wade?

Mr. SORRELS. That is right. But I think—can this be off the record?

Mr. HUBERT. I would rather it go on.

Mr. SORRELS. All right. We will have it on the record. I have had other conversations with Mr. Griffin subsequent to that time, and personally when he was there at Dallas, in which I believe that there was some question about that statement. But as I recall it now, the first conversation over the telephone was specifically about the ramp incident. And I remember him emphasizing that. And I recall if such a statement was said I don't remember it, and I just don't believe it was said in my presence.

Mr. HUBERT. In regard to the conversation with Mr. Griffin in Dallas, do you recall a conversation which I think I can specifically state would have been on the morning of Wednesday, March 25—that is to say the morning after Dean had been deposed. And let it be noted that Dean was deposed on the night of March 24. Do you remember a conversation with Mr. Griffin about what Dean had said then, and that you then told Mr. Griffin what your version of it was, and had in fact—he asked you to prepare a memorandum or something for him, so that there would be a record of what he had told him?

Mr. SORRELS. Along about this same thing?

Mr. HUBERT. Yes, about this same matter, revolving around Dean and Dean's testimony about what Ruby had said.

Mr. SORRELS. I remember that there was a conversation. It seems like I do have a recollection. It slipped my mind. But since you mention something about a memo—and you left rather suddenly, Mr. Griffin, as I recall it, right after that.

Mr. HUBERT. That is on the 27th? The question is—you have not written a memo?

Mr. SORRELS. No.

Mr. HUBERT. Was there any reason why?

Mr. SORRELS. No. As a matter of fact, it just slipped my mind, I guess, because I cannot recall now just exactly what the memo was. But since he mentioned that, it seems I do recall something about something I told him, and he said, "Write me a memo about it."

Mr. HUBERT. Was Inspector Kelley present during your interrogation of Oswald on Sunday morning for about 15 or 20 minutes, I think you said?



Mr. SORRELS. I don't believe so. He might have been. But I don't recall that he was there.

Mr. HUBERT. Now, you have already testified that you and Mr. Kelley went to Mr. Batchelor's office after Oswald left on Sunday morning.

Mr. SORRELS. It is my recollection that we did go there together.

Mr. HUBERT. Was anybody else there?

Mr. SORRELS. If we didn't, I met him up there.

Mr. HUBERT. Was anybody else there?

Mr. SORRELS. At the interview?

Mr. HUBERT. No, when you left, when Oswald left to go down to the basement, you testified that you went with somebody, I think it was Tom Kelley—went into Batchelor's office and looked out to watch the scene.

Mr. SORRELS. Yes.

Mr. HUBERT. I think that was Tom Kelley there. Was anyone else there?

Mr. SORRELS. There was a number of officers around there.

I don't recall who all was there. I just don't recall who all was there.

Mr. HUBERT. Do you know how many officers or detectives were in Fritz' office after Ruby had shot Oswald and had been brought up to Fritz' office?

Mr. SORRELS. No, I don't. There was a number of them around there.

Mr. HUBERT. Do you have any recollection that Dean was taken to escort you up to Captain Fritz' office?

Mr. SORRELS. Yes, I remember Dean went up the elevator with me.

Mr. HUBERT. Do you remember any comment that Dean made in Wade's office?

Mr. SORRELS. The only comment that I can remember that he made is when Mr. Wade asked me if certain things were said by Ruby when I was talking to him in the jail on the morning of November 24, when Dean was there, and I told him no, that that statement was not made in my presence, I did not recall any statement like that. And Dean said, "Well, maybe it was,

after you left.” And I said, “Well, if it was—if the statement was made, it would have had to be after I left, because I don’t recall any statement like that.”

Mr. HUBERT. Did you ever find out how Wade or Curry or the police found out about what Dean ultimately said?

Mr. SORRELS. Will you read that question again?

Mr. HUBERT. I said, did you ever find out how Wade and/or the police found out themselves what Dean ultimately testified to?

Mr. SORRELS. No, I don’t know anything about that—unless it is in the court records down there in his testimony at the trial. Now, whether or not they had talked to him before what his testimony would be, I could not say about that, I don’t know.

Mr. HUBERT. Did Wade or anyone else ever ask you to identify the two uniformed officers?

Mr. SORRELS. No.

Mr. HUBERT. Did you ever consult with any of your superior officers in your own service in regard to Wade’s request that you testify?

Mr. SORRELS. I told Inspector Kelley that I might get involved in this thing, and he said, “Well, if you are subpoenaed you will just have to testify what you know about it.”

Mr. HUBERT. You didn’t make a written report?

Mr. SORRELS. No, sir; not that I recall.

Mr. HUBERT. Was FBI Agent Hall present during the Fritz’ interview?

Mr. SORRELS. I couldn’t say. I don’t think I know Agent Hall if he walked in the door. I don’t recall ever having met him.

Mr. HUBERT. Did you ever hear Ruby say, “You all won’t believe this, but I didn’t have this planned, and I couldn’t have done it better if I had planned it,” or something to that effect?

Mr. SORRELS. No.

Mr. HUBERT. Now——

Mr. SORRELS. I don't recall any statement like that.

Mr. HUBERT. Now, Mr. Stern is going to take over, and I am going to ask him to handle the identification of your notes.

(Mr. Hubert left. Mr. Stern requested Mr. Griffin to handle the identification of documents.)

Mr. GRIFFIN. Let me state that for the limited purpose of having Agent Sorrels identify three sets of documents I am going to ask a series of questions of Agent Sorrels.

Mr. Sorrels, I want to hand you a Xerox copy of a document which is a part of our files, and numbered Commission No. 354, and is your Secret Service serial 1,007, consisting of four pages, which you have previously identified, and Mr. Hubert has marked "Deposition of Forrest Sorrels, Washington, D.C., May 6, 1964," and signed Leon D. Hubert.

I have added the additional designation "Exhibit 1," on the first page of this four page exhibit. I want you to look at that and tell me if that is in fact the same exhibit you identified previously as I have described it.

Mr. SORRELS. Yes, sir; it is.

Mr. GRIFFIN. Now, let me hand you what I have marked for the purpose of identification as deposition of Forrest Sorrels, May 6, 1964, Washington, D.C. This exhibit consists of four different pages which I have numbered consecutively Exhibits 2-A, 2-B, 2-C, and 2-D, and purports to be a Xerox copy of notes that you made of the interview that took place with Jack Ruby in Captain Fritz' office at 3:15 on November 24, 1963.

Would you examine Exhibits 2-A, 2-B, 2-C, and 2-D and compare them with the pages of your notebook which you have referred to previously in the deposition, and tell us if that is a true and exact copy of all of the notes that you have that pertain to the 3:15 interview with Jack Ruby?

Mr. SORRELS. Yes, that is correct.

Mr. GRIFFIN. Let me hand you what I have marked for the purpose of identification deposition of Forrest Sorrels, May 6, 1964, Washington, D.C., which is a document consisting of three pages, which I have numbered consecutively Exhibit 3-A, Exhibit 3-B, Exhibit 3-C. This exhibit purports

to be a Xerox copy of notes that you took at an interview with Jack Ruby in the fifth floor jail cell shortly after Ruby shot Lee Oswald on November 24. I want you to compare these exhibits to pages which you have testified to previously are in your notebook, and tell me if Exhibits 3-A, 3-B, and 3-C are true and exact copies of those pages which appear in your notebook?

Mr. SORRELS. Yes, they are. But there is portions that do not pertain to the interview with Ruby in the Dallas City Jail on the morning of November 24, 1963—but certain portions happen to be on the same page as the notes made at that time were made.

Mr. GRIFFIN. Now, directing your attention to Exhibit 3-A, would you tell us if that portion which pertains to Ruby—the Ruby interview in the jail cell, and appears on that page, follows consecutively from some point on that page?

Mr. SORRELS. Yes, from about the center of the page, below a wavy line drawn across it, continuing on the second page, marked Exhibit 3-B, and the third page marked Exhibit 3-C, down to the lower portion ending with “deceased mother.”

Mr. GRIFFIN. All right. Now, directing your attention to Exhibit 3-A, would you read the first two lines on Exhibit 3-A that consist of the notes taken at your interview with Ruby in the fifth floor jail cell?

Mr. SORRELS. “Chicago, 3-25-1911, Jack Ruby (Rubenstein), Entertainment, Carousel Club. Had business closed for 3 days.”

Mr. GRIFFIN. Now, let me hand you again Exhibit No. 1, and ask you if that is a true and accurate copy, to sign your name on the first page of that exhibit.

Mr. SORRELS. Yes, it is.

Mr. GRIFFIN. Would you sign your name, then, on the first page of the exhibit?

Mr. SORRELS. Yes, sir.

Mr. GRIFFIN. Let me hand you what has been marked as Exhibit 2-A, B and C, and D, and ask you if that is a true and accurate copy to sign your name on the first page of Exhibit 2-A.

Mr. SORRELS. Yes.

Mr. GRIFFIN. Let me hand you, Mr. Sorrels, Exhibit 3-A, B, and C, and ask you the same question with respect to that, and ask you to do the same thing.

Mr. SORRELS. Yes, sir.

Mr. GRIFFIN. Now, let the record reflect that I am putting my initials, BWG, on pages 2-A, 2-B, 2-C, and 2-D. Let the record reflect I have done the same thing with pages 3-A, 3-B, and 3-C.

Mr. STERN. Mr. Smith, are there any questions you would like to ask Mr. Sorrels at this stage of his deposition, to clarify any points on the record?

Mr. SMITH. Yes, just with respect to one point.

Mr. STERN. Please go ahead.

Mr. SMITH. Mr. Sorrels, you testified that in your interview with Jack Ruby in the jail, you did not warn him of his constitutional rights. Was this due to oversight on your part?

Mr. SORRELS. No, it was not.

Mr. SMITH. Will you state, then, the reason why you did not do so?

Mr. SORRELS. My purpose in getting to Jack Ruby and talking to him as quickly as I did was to determine whether or not he was involved with anyone else in connection with the shooting of Lee Harvey Oswald, and also to determine whether or not Jack Ruby had any connection or association with Lee Harvey Oswald. I did not warn him of his constitutional rights, because insofar as I was concerned at this particular interview, my conversation with him was not—strike was not—had no bearing insofar as the murder case against Jack Ruby was concerned.

My purpose was trying to obtain information for my service to determine whether or not there were others involved in this case that would be of concern to the Secret Service in connection with their protective duties of the President of the United States and the Vice President.

Mr. STERN. Is there anything else, Mr. Smith, you would like to cover?

Mr. SMITH. No. Thank you.

Mr. STERN. Mr. Sorrels, you have had a lengthy session here today. If it is convenient for you, I would prefer to carry on that part of it that I am interested in tomorrow morning, rather than to try to finish late today. Would that be convenient for you?

Mr. SORRELS. That is satisfactory for me, yes.

Mr. STERN. Fine. Why don't we suspend now and resume in the morning.

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## **TESTIMONY OF DR. FRED A. BIEBERDORF**

The testimony of Dr. Fred A. Bieberdorf was taken at 3:25 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. The deposition of Dr. Fred A. Bieberdorf [spelling] B-i-e-b-e-r-d-o-r-f. Right?

Dr. BIEBERDORF. That's correct.

Mr. HUBERT. Dr. Bieberdorf, my name is Leon Hubert, I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of the Executive Order No. 11130, dated November 29, 1963, Joint Resolution of Congress 137, and rules of procedure adopted by the President's Commission in conformance with the Executive order and joint resolution I have been authorized to take a sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular to you, Dr. Bieberdorf, the nature of the inquiry is to ascertain the facts that you know about the death of Oswald and then any other pertinent facts you may know about the general inquiry. Now, Doctor, I think you have received a letter addressed to you by Mr. J. Lee Rankin, General Counsel for the President's Commission, is that correct?

Dr. BIEBERDORF. Yes.

Mr. HUBERT. Was that letter received by you in excess of 3 days from today?

Dr. BIEBERDORF. Yes.

Mr. HUBERT. All right, you are appearing here as a consequence of that letter?

Dr. BIEBERDORF. That's correct.

Mr. HUBERT. Would you stand and raise your right hand? Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Dr. BIEBERDORF. I do.

Mr. HUBERT. Please state your name, sir.

Dr. BIEBERDORF. Frederick Adolph Bieberdorf.

Mr. HUBERT. Your age?

Dr. BIEBERDORF. Twenty-five.

Mr. HUBERT. Your residence?

Dr. BIEBERDORF. 8603 Midway Road, Dallas.

Mr. HUBERT. What is your occupation?

Dr. BIEBERDORF. At present, fourth-year medical student.

Mr. HUBERT. Where?

Dr. BIEBERDORF. At Southwestern Medical School, University of Texas.

Mr. HUBERT. Did you happen to be in the basement of the jail of the Dallas police, on the morning of November 24, 1963?

Dr. BIEBERDORF. I was.

Mr. HUBERT. In what capacity?

Dr. BIEBERDORF. I was, at that time, employed by the city of Dallas, city health department, as first aid attendant for the—I was employed at that time as first aid attendant by the city of Dallas, city health department. The nature of this job is as follows: Mainly administering first aid and emergency medical care to prisoners within the city jail, or prisoners that they've brought in.

Mr. HUBERT. Had you been doing that sort of work for some time?

Dr. BIEBERDORF. A little bit over a year.



Mr. HUBERT. You say fourth year at the Southwestern University, does that mean that you are a senior?

Dr. BIEBERDORF. That's right. I graduate in June.

Mr. HUBERT. You will receive a M.D. in June?

Dr. BIEBERDORF. Yes.

Mr. HUBERT. In June of 1964?

Dr. BIEBERDORF. Yes; that's correct.

Mr. HUBERT. What time did you go on duty that day?

Dr. BIEBERDORF. I arrived down there about 9:30 in the morning.

Mr. HUBERT. Now, Doctor, I have shown you, and I believe you have read what purports to be a report of an interview of you by FBI Agents Mabey and Hughes on December 5, 1963, which I am now marking for identification on the first page by writing as follows: "Dallas, Tex., March 31, 1964. Exhibit 5123, Deposition of Dr. Fred Bieberdorf." I am signing my own name on the first page; on the second page I am placing my initials in the lower right-hand corner, the same with the third and the same with the fourth and last. In order that the record may show that we are both talking about the same document, I ask you please to sign your name under my signature, or by it, and place your initials also on the subsequent pages. Now, Doctor, addressing ourselves to the exhibit marked now for identification as 5123, I ask you if you have read it?

Dr. BIEBERDORF. I have read it.

Mr. HUBERT. Is it correct and true?

Dr. BIEBERDORF. In the main, it is. There are a few corrections in it and additions that I would like to make.

Mr. HUBERT. Very well. Suppose that we do it this way. If you can identify by page, paragraph and sentence that part which you need to have modified by reading in quotes, as it were, stating then for the record, "quote, unquote," and then make the comment. I think that the record will be better in that way.

Dr. BIEBERDORF. Okay. First of all, throughout this document my last name is misspelled.

Mr. HUBERT. Well, let's see. To get that straight, your last name is [spelling] B-i-e-b-e-r-d-o-r-f?

Dr. BIEBERDORF. And it is spelled "B-e-i," instead of B-i-e.

Mr. HUBERT. I see.

Dr. BIEBERDORF. Okay. And on page 1, paragraph 2, on the second sentence of that paragraph that reads, "He stated he relieved a Bill Hall, former classmate, who had been on duty since noon of the previous day."

Mr. HUBERT. Now, what is the comment you have to make about that?

Dr. BIEBERDORF. Well, he is not a classmate. He is a medical student, but he is not a classmate of mine.

Mr. HUBERT. Otherwise, the sentence is correct?

Dr. BIEBERDORF. Otherwise it is correct. Okay. In that same—on page 1, second paragraph, the sixth sentence, which reads, "He advised that from his position he had an unobstructed view of the basement parking area and that he did not notice if there were any doors between them and the basement area."

The position that they are talking about that has been previously identified, I did not have what you would call an unobstructed view of the area, due to the presence of somewhere around 20, somewhere between 15 and 20 newsmen that were standing between me and the basement parking area.

Mr. HUBERT. Where were you standing?

Does that Exhibit 5123, state?

Dr. BIEBERDORF. It states that I was standing in the basement at an intersection of the hallway beneath the city hall.

Mr. HUBERT. Isn't that correct?

Dr. BIEBERDORF. That is correct, and I suppose that is the only intersection of hallways underneath the city hall to the basement. I can assure you on this [indicating].

Mr. HUBERT. Yes. All right, now, in connection with your explanation of the sentence you have just quoted, I want to ask you what your position was in the jail basement area. Now, you have examined the mockup which is in this room, and in order to make a permanent record of where you pointed out you were, I am marking a chart of the basement as follows: "Dallas, Tex., March 31, 1964. Exhibit 5124. Deposition of Dr. Fred Bieberdorf." I am signing my name, and below that, and in order that the record may show that we are both talking about the same document, I ask you to sign your name below mine, and then correlating the mockup and the chart marked Exhibit 5124, ask you to place an "X" and encircle the "X" as to the position you were standing at the time of the shooting.

Dr. BIEBERDORF. Let me look at this. Yes, that is the exact way. This is accurate [indicating].

Mr. HUBERT. Now, you have marked——

Dr. BIEBERDORF. I drew in another line to represent the wall around the corner.

Mr. HUBERT. You have also placed an "X" in your own handwriting, and I am writing now the following: "Position of Dr. Bieberdorf at the time of shooting."

I am encircling that language and connecting it by a line with the circle drawn by Dr. Bieberdorf. All right. Now, have you any other comments to make about Document Exhibit 5123?

Dr. BIEBERDORF. A few more minor ones. Several more minor ones.

Mr. HUBERT. All right.

Dr. BIEBERDORF. Page 1, second paragraph, the last sentence on that page states "He stated that he then immediately saw Ruby laying faceup in the jail office lobby, approximately 10 feet inside the jail lobby door."

Mr. HUBERT. Now, your comment.

Dr. BIEBERDORF. My comment is that I did see Ruby's feet, at least, but I did not notice whether he was lying faceup or facedown. He was surrounded by a number of police officers.

Mr. HUBERT. Did you know Ruby at the time?

Dr. BIEBERDORF. No, I didn't have any idea who it was, and that is the reason that I got so close there, that I thought that this was Oswald.

Mr. HUBERT. You thought it was the man who had been shot?

Dr. BIEBERDORF. All right. Correction, not Oswald, but the person who had been shot. At the time I did not know who had been shot, if, any shot—if, indeed it had been a shot and I did not get a look at the person to see his face, or even to see whether he was lying faceup or facedown. I could just see him on the floor surrounded by a number of men.

Mr. HUBERT. All right, any other modifications or corrections?

Dr. BIEBERDORF. On page 2, it is actually a continuation of the same sentence that ends on page 1. On page 2, "And he then saw Oswald in the same position."

Well, "same position," refers to "faceup," and indeed, Oswald was faceup, but if this is an amendment where Ruby is no longer faceup, better change this to "faceup."

Mr. HUBERT. All right.

Dr. BIEBERDORF. Okay. On page 2, the first paragraph; about the third sentence there begins, "He noticed that someone had pulled Oswald's shirt up to his chest, and he could see a puncture wound in the left side of Oswald's stomach just below the rib cage."

He did have this puncture wound on his left side, but it wasn't below his rib cage. It was—I'd like to correct that "stomach". Just below the rib cage to the left side of his lower chest. I don't really—I didn't count what rib it was under, but I believe it was between the two ribs, probably down just below the fifth or sixth.

Mr. HUBERT. All right, any others?

Dr. BIEBERDORF. Oh; I skipped one or two. Excuse me. Back on page 1, the second paragraph on page 1, the sentence that begins near the bottom of the page, that begins: "He stated this took him several minutes due to the confusion and by the time he reached the general vicinity of the location —". This "several minutes," I don't believe is accurate. I don't recall whether I said several minutes at the time. I later—well, I think it was a matter of, say, "something like 1 to 2 minutes, rather than several minutes"

and again, in the same paragraph, next to last sentence on the page that begins, “He stated he searched the immediate area for several minutes before proceeding.”

I think this, again, is way too long and had better read, “a few seconds,” than several minutes.

Mr. HUBERT. Any other corrections?

Dr. BIEBERDORF. On page 2, second paragraph, the third sentence which is the last sentence, “He stated the latter two,” referring to the ambulance driver and his assistant, “—ambulance driver and his assistant were riding in the front seat, and the two detectives were in a seat immediately behind the front seat, and Detective Leavelle was sitting immediately to his left in the rear of the ambulance.” The two detectives, and rather than “sitting in the seat in—immediately behind the front seat,” they were behind—just inside the tailgate of the ambulance, about Oswald’s feet, and Officer Leavelle and myself were sitting in the seat directly behind the front seat.

You earlier made the query about when I had left him. It states in here—on page 2, the last sentence of the last paragraph, “He stated 2 minutes after entering the emergency room, also known as the trauma room, Oswald was removed to the operating room.” He was removed to the operating room via an elevator, and at that point that was the point I last saw him.

Mr. HUBERT. Was he alive at that point?

Dr. BIEBERDORF. He was still alive at that time. I am just going by hearsay, now. He was said to have died—well, he was still moving around at that time, so, he was definitely alive.

Mr. HUBERT. You were with him in the ambulance all the way through?

Dr. BIEBERDORF. Yes, sir.

Mr. HUBERT. And when he got to the ambulance you saw signs of life?

Dr. BIEBERDORF. Although, I did not until we got about halfway to Parkland.

Mr. HUBERT. You thought he was dead?

Dr. BIEBERDORF. He—I surmised he was dead until he started moving a little bit.

Mr. HUBERT. Did he make any statement at all?

Dr. BIEBERDORF. He did not utter any sound at all, that I heard.

Mr. HUBERT. Any other corrections?

Dr. BIEBERDORF. Let's see. On page 3, the second paragraph, "Bieberdorf states that he was not acquainted with Jack Ruby, but that he did interview Ruby in the police jail on Sunday, November 24, at about 4 or 5 p.m."

This time—I looked it up at a later date, and it was at exactly 2:05 p.m., rather than my estimation at that time of 4 or 5 p.m.

Mr. HUBERT. All right, have you any other on that document 5123?

Dr. BIEBERDORF. Well, there are a few more.

Mr. HUBERT. Otherwise, it stated correctly the nature of the physical examination that you gave to Ruby and the findings?

Dr. BIEBERDORF. The next sentence that follows that is correct, but then there is another. That same paragraph, the last sentence in this paragraph reads, "Bieberdorf states that he gave Ruby a physical examination at this time in order to insure Ruby had not concealed any weapon on his person."

This is not correct here. Later on in the afternoon of November 24, I was asked by the police or Lieutenant—I believe in charge of the jail at that time, to go upstairs and at the request of detectives and one of the FBI agents, I performed a rectal examination on him to make sure he had not smuggled—or to see if he had brought anything in on his person.

This was at 6 p.m., so, I did see Ruby on two occasions. One at 2:05 and one at 6. I think that report tends to indicate it was only one.

Mr. HUBERT. It really was two, and you have explained it.

Dr. BIEBERDORF. Yes.

Mr. HUBERT. All right.

Dr. BIEBERDORF. Okay, on page 3, the last paragraph, second sentence, "He stated he had no knowledge of security measures in effect in the basement on November 24, 1963, other than the fact that he was asked to remove himself from the basement, and he assumed only police officers and

press men were allowed to remain.” I think that sentence ought to be deleted and changed to something like: “I was asked to remove myself from the basement parking area at—prior to Oswald’s being moved, and was told by police officers at that time that only police personnel were being allowed in the area, and I, of course, later saw that press men were able to gain access to the area by presenting their credentials.”

And that is, I think, the only correction.

Mr. HUBERT. About what time did you move from the first aid——

Dr. BIEBERDORF. 9:45. It states that earlier in here. States that on the first page.

Mr. HUBERT. Did you remain in the position indicated by you on the chart, which has been identified as Exhibit 5124, all that while? In other words, you were told by the police to leave the——

Dr. BIEBERDORF. To leave the parking area, and I left there, and at the time of the shooting I was at that particular spot.

Mr. HUBERT. That is to say, the spot that——

Dr. BIEBERDORF. That I marked on that you have marked the—No. 5124.

Mr. HUBERT. Between the time that you left and the time of the shooting, where were you?

Dr. BIEBERDORF. I was, the majority of the time, down at the subbasement in the locker room. I was no closer to the spot that Oswald was shot—at which Oswald was shot than I was at the time of the shooting, and no time was I—well, with the exception of crossing through about 9:45.

Mr. HUBERT. Now, when you left the first aid room in the bottom floor, did you leave anybody in there? Was there anyone in those rooms at that time?

Dr. BIEBERDORF. There was no one in the room. It was empty. The fellow that I had relieved left the building.

Mr. HUBERT. Were those doors locked?

Dr. BIEBERDORF. Those doors were locked, and I had a key to them. The police officer, just before I left, looked in the rooms, searched them. I

unlocked the rooms for them. Now, I don't know——

Mr. HUBERT. To your knowledge, was there anyone in those rooms at all?

Dr. BIEBERDORF. There was nobody in those rooms, and I had the only key that is commonly used to open those rooms, other than the keys that the janitors have.

Mr. HUBERT. And all doors were locked and you had a key, and as far as you know, you are the only one who does have a key unless there is a general key?

Dr. BIEBERDORF. Well, I am sure there is.

Mr. HUBERT. All right. Any other corrections to be made on that exhibit?

Dr. BIEBERDORF. I don't believe so. I could add, to what Ruby said, or what——

Mr. HUBERT. Well, yes; I should like you to say if there is anything in there that—or if you heard something that Ruby said which is not in your report denominated as Exhibit 5123, I wish you would add that.

Dr. BIEBERDORF. Okay; well, as I stated earlier, I saw him on the two occasions. Once at approximately 2:05, and the second time at approximately 6 p.m., both on November 24.

At the 2:05 time that I saw him, he, as I stated in this document—Well, let me just go through what, as best I can recall, what was said. I identified myself to him. I don't recall that he said who he was or that either the police officer with him or the FBI agent with him at the time identified him to me. I told him that I had been asked to see if he had any complaints or injuries as a result of the earlier scuffle he had in the city hall.

He assured me that he was not injured in any way. He took off his coat, which he had on at the time, and showed me a few bruises on the medial aspect of his right arm, and I also noted a few bruises on his right wrist which appeared to be fresh, but, he assured me these weren't bothering him, and he had no other injuries. He, at that time—oh, I don't recall the exact words he used, but he expressed an admiration for the police officers. And in saying that he had no injuries he stated that the police had just done what they had to do, that they hadn't injured him any more than necessary, than



he would expect in such a scuffle, and again spoke of how the police were doing their job and how they were doing their job well.

At 6 o'clock. Well, excuse me. Delete that 6 o'clock.

He, at that time, did not seem to act—I did not make any observation of his behavior at that time.

Just saw him for a matter of 2 or 3 minutes during that time. I did not attempt to do any mental status observation or examination on him, and really couldn't say anything, hadn't formed any opinion as to the state of mind that he was in at that time.

Mr. HUBERT. Is that last statement of yours true as to both interviews, or only the 6 o'clock one?

Dr. BIEBERDORF. Both interviews. I saw him 2 or 3 minutes at 2 o'clock, or 2:05, and another 2 or 3 minutes at 6 o'clock. Now, the conversation that I mentioned occurred at 2:05.

Mr. HUBERT. No conversation in the evening, in the later call, later visit?

Dr. BIEBERDORF. At that time—6 o'clock when I saw him, I had stated that I had been asked to do additional and rectal examination to make sure he had not smuggled anything into the jail. By this time he had on a pair of white pants and white shirt that apparently, looked like a uniform that cooks in the city jail wear. He had on different clothes than he had on at 2:05, and I explained to him what I had been asked to do and we found a little room just off the main lobby there, and went in there, and he bent over and I performed a rectal examination on him, and he made the comment that this was the worst massage that he had ever had, and that is all the conversation that I recall. The only comment that I recall that he made. That was at the 6 o'clock visit.

Mr. HUBERT. All right. Any other corrections you have to make?

Dr. BIEBERDORF. I believe that is all.

Mr. HUBERT. As to Exhibit 5123?

Dr. BIEBERDORF. That's all.

Mr. HUBERT. Did Ruby, at any time, make any comments as to his motive, or his intent?

Dr. BIEBERDORF. At neither time that I saw him was the shooting brought up. I did not mention it and he did not mention it, and it was all the talk we had.

Mr. HUBERT. Let me put it to you this way; do you consider that taking the FBI report which has been identified as Exhibit 5123, and taking also your deposition today, including your identification on the chart, which is 5124, that there has now been recorded all you know about this matter, completely?

Dr. BIEBERDORF. Yes.

Mr. HUBERT. Now, have you been interviewed by any member of the Commission's staff prior to the time——

Dr. BIEBERDORF. Not by the Commission.

Mr. HUBERT. None of the Commission's staff?

Dr. BIEBERDORF. I mean by the Commission's staff.

Mr. HUBERT. Other than myself?

Dr. BIEBERDORF. Well, not that I know of. I was interviewed, of course, by the FBI man.

Mr. HUBERT. Insofar as our interview is concerned, today, prior to the commencement of this deposition, was there anything in that interview which is inconsistent with your deposition taken after the interview ended?

Dr. BIEBERDORF. I believe not.

Mr. HUBERT. Anything of material nature which was discussed in the interview which has not been brought out in this deposition?

Dr. BIEBERDORF. No.

Mr. HUBERT. All right; I think that is it, sir.

Thank you.

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## TESTIMONY OF MRS. FRANCES CASON

The testimony of Mrs. Frances Cason was taken at 4:10 p.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Mrs. Frances Cason [spelling] F-r-a-n-c-e-s?

Mrs. CASON. Yes, sir.

Mr. HUBERT. Mrs. Cason, my name is Leon Hubert, I am a member of the advisory staff of the General Counsel on the President's Commission. Under the provisions of the Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules and procedure adopted by the Commission in conformance with the Executive order and joint resolution, I have been authorized to take a sworn deposition from you. Mrs. Cason, I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mrs. Cason, the nature of the inquiry today is to determine the facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry.

In particular, with reference to your duties as a dispatcher of the Dallas Police Department.

Now, Mrs. Cason, you have appeared here today by virtue of an informal request made by the General Counsel of the staff of the President's Commission, and under the rules adopted by the Commission you would normally be entitled to a 3-day written notice prior to the taking of your

deposition, but those rules also provide that that 3-day written notice may be waived, and I ask you if you are willing to waive that notice at this time?

Mrs. CASON. Yes, I will.

Mr. HUBERT. All right, stand and raise your right hand, please, Ma'am, so as to be sworn.

Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mrs. CASON. I do.

Mr. HUBERT. State your name, please.

Mrs. CASON. Frances Cason.

Mr. HUBERT. Your age?

Mrs. CASON. Age 26.

Mr. HUBERT. Are you married, Mrs. Cason?

Mrs. CASON. Yes, I am.

Mr. HUBERT. Then I suppose we should have your husband's name?

Mrs. CASON. Jimmy D. Cason.

Mr. HUBERT. What was your name prior to the marriage?

Mrs. CASON. Shanz [spelling] S-h-a-n-z.

Mr. HUBERT. Where do you reside?

Mrs. CASON. 2822 Greene [spelling] G-r-e-e-n-e, in Irving, Tex.

Mr. HUBERT. What is your occupation?

Mrs. CASON. Telephone clerk in the telephone dispatcher's office at the Dallas Police Department.

Mr. HUBERT. How long have you been so employed?

Mrs. CASON. Since September 6, 1963. Before that I had a 6 months' leave of absence and was employed for the police department for 2½ years.

Mr. HUBERT. Were you on duty between the hours of 7 a.m. and 3 p.m., on November 24, 1963?

Mrs. CASON. Yes, I was; actually, it is 6:30 to 3:30.

Mr. HUBERT. Now, Mrs. Cason, I have marked for the purposes of identification a document which is to be found in Commission's report 81-A, which is entitled "Investigation of the Operational Security Involving the Transfer of Lee Harvey Oswald on November 24th, 1963." On page 14, thereof, I have also marked Exhibit EE in that document, the following for the purposes of identification, "Dallas, Texas, April 1, 1964. Exhibit 5135, Deposition of Frances Cason and C. E. Hulse." I have signed my name below that and ask you if you have not signed your name, for the purposes of identification, also on this same document?

Mrs. CASON. Yes; I did.

Mr. HUBERT. Will you state in your own words just exactly what part you had to do with this Exhibit 5135, which you now have before you?

Mrs. CASON. You want me to just go ahead?

Mr. HUBERT. Yes.

Mrs. CASON. At approximately 11:20, or 11:21, I received a call from the basement of city hall there from Officer Slack, who works in the jail office.

Mr. HUBERT. Did you know Officer Slack prior to this time?

Mrs. CASON. Yes; I did.

Mr. HUBERT. Had you spoken to him on the telephone before?

Mrs. CASON. Yes; I have.

Mr. HUBERT. Can you state that you are able to recognize his voice?

Mrs. CASON. Yes; I did.

Mr. HUBERT. Did you recognize the voice then speaking to you as being the voice of Officer Slack?

Mrs. CASON. Yes; I did.

Mr. HUBERT. All right; now, go ahead.

Mrs. CASON. In addition, he told me it was Officer Slack when he called. It is not unusual for them to say, "This is Slack in the jail office." So

he would identify himself and ask to speak to Officer Farr, that is J. G. Farr, who is our corporal.

Mr. HUBERT. How do you spell his last name?

Mrs. CASON. [spelling] F-a-r-r. And he was in charge on that Sunday because we did not have a sergeant there, and he had asked to speak to Farr, and I told him Officer Farr was working channel 2, which is a separate channel that we have, and so he told me, he said, "They just shot Oswald," or "Somebody just shot Oswald," and I told him, "Okay." And placed him on hold and told Farr that he had a red light on 531, and I proceeded to call the ambulance service on the hot line.

Mr. HUBERT. Please describe the hot line?

Mrs. CASON. The hot line is a straight line from our dispatcher office to the ambulance company which requires no dialing. You just lift it up and it rings from our office to theirs.

Mr. HUBERT. So, then, immediately upon getting this information from Slack you passed it on to Farr by word of mouth?

Mrs. CASON. I did not tell Officer Farr that Oswald had just been shot. I felt it was more important to get the ambulance and in time they would know soon enough. I told them he had a red light, and I knew Slack would tell him what happened in the basement.

Mr. HUBERT. So then you flipped the button for the hot line at O'Neal Funeral Home?

Mrs. CASON. Yes; I did.

Mr. HUBERT. Did you get it immediately?

Mrs. CASON. Yes.

Mr. HUBERT. What happened then?

Mrs. CASON. It is just a matter of seconds until they answered, and I told them that someone just shot Oswald in the basement, and we needed a white ambulance, code 3, to the basement.

Mr. HUBERT. What does code 3 mean?

Mrs. CASON. Code 3, red lights and sirens, as fast as possible.

Mr. HUBERT. What did the man on the other end say to you?

Mrs. CASON. He told me he would send ambulance 607, from his office, and I told him, "Okay," and hung up the phone.

Mr. HUBERT. Now, who were you speaking to, do you know?

Mrs. CASON. I do not know. Sometimes they will give their names when they answer, and sometimes they do not, and I do not remember if he did or not.

Mr. HUBERT. He told you that 607, ambulance 607, would answer this call?

Mrs. CASON. Yes; he did.

Mr. HUBERT. And answer it under conditions of code 3, that is to say, as fast as possible, red lights and sirens.

Mrs. CASON. Yes, sir.

Mr. HUBERT. What happened next?

Mrs. CASON. Apparently I must have told Officer C. E. Hulse, who was on the radio, that Oswald had just been shot, and I had ordered an ambulance, and by then I proceeded to make up the call sheet, which is just routine work that we do in the office on every call that we take.

Mr. HUBERT. All right. Now, you have before you Exhibit 5135, which is the call sheet we are talking about, and I notice written in hand, "605 on air," and it seems to be next to the initials, "F.C." Is that language, to wit, "Ambulance 605 on air," in your handwriting?

Mrs. CASON. Yes; it is.

Mr. HUBERT. Are the initials "F.C." your initials?

Mrs. CASON. Yes; they are.

Mr. HUBERT. Now, can you tell us about when you made up that card?

Mrs. CASON. Immediately after ordering the ambulance I made up the call sheet. I did not have to look up the district or any of the information because I knew it all by memory, and we have a lot of calls to city hall, and

normally use 2000 and Main, and I knew, of course, it was district 102, and——

Mr. HUBERT. And the top of the card shows it is district 102?

Mrs. CASON. Yes, sir.

Mr. HUBERT. Now, there is also on that Exhibit 5135, and it appears in blue ink printed by someone in the column entitled, "Ambulance ordered," the following: "C—11:12 a.m., November 24th——"

Mrs. CASON. 11:21, it said——

Mr. HUBERT. "11:21," I beg your pardon. Then the column immediately below that, "Time received," "C—11:21 a.m., November 24th."

Can you explain that to us, please?

Mrs. CASON. Well, the writing was not on the original call sheet. The original call sheet was stamped in the timeclock. The only reason I can see for it is that in the copying of the call sheet, the printed matter did not show up, and it was necessary to write this in in ink.

Mr. HUBERT. In other words, it is your thought that the original of which 5135 is a photostatic copy, has got the time printed, and that someone just simply wrote it in?

Mrs. CASON. I feel like it was stamped; yes, sir. I am almost positive it was.

Mr. HUBERT. This writing in blue ink that I referred to is not in your handwriting?

Mrs. CASON. No, sir; it is not.

Mr. HUBERT. What would have been the normal procedure for stamping the time in those two columns?

Mrs. CASON. Well, ordinarily, we make up the call sheet before we stamp it in complete form. In other words, we don't do part of it and stamp that and then do part of it again and stamp that time. I, myself, always stamp the time that the ambulance is ordered regardless of whether it is on the air or whether it is sent from the office itself. Whereas, some other



telephone clerks may have left the “Ambulance ordered” place blank for the dispatcher to stamp.

That is, if it was an ambulance on the air call.

Mr. HUBERT. You feel certain, therefore, that you, having prepared the card, did put it into the time clock?

Mrs. CASON. Yes, sir. I feel sure I stamped the card twice as to the time. Once for the ambulance and——

Mr. HUBERT. How long would it take you to prepare the card?

Mrs. CASON. Just a few seconds. It is very routine, and it just takes a matter of a few seconds if you are familiar with it.

Mr. HUBERT. What kind of time clocks are these? I don’t mean the make of them, but how do they work? Are they automatic?

Mrs. CASON. Yes; they are. They are all electric clocks, and I believe the name of them is Synchron. They show the time on the face of the clock, and you insert the call sheet on the place marked by a red arrow, and when you place the call sheet in, the weight of it causes the clock to stamp the time.

Mr. HUBERT. You do not have to punch anything down?

Mrs. CASON. The weight of the card causes the clock to stamp the time.

Mr. HUBERT. Now, is that clock checked at any time as to accuracy?

Mrs. CASON. I don’t know how often they are checked. I do know that sometimes we find a discrepancy as to the time on the clock insofar as sometimes when we dispatch—when we sent a call sheet through and the time received may be—it says, this could have been 11:23 on the time I received the call, and when we dispatched it it would have shown 11:22, then we would know that the clocks were off, because we couldn’t—I couldn’t receive a call after we had dispatched it.

Mr. HUBERT. But, the dispatcher would be using a different clock from you?

Mrs. CASON. And when we find these errors in these clocks this way, someone in the office usually adjusts them to where they all are stamping

the same time. It doesn't happen very often that they get out of time, but sometimes they do.

Mr. HUBERT. They are not all tied into a master clock?

Mrs. CASON. No; not as far as I know. I don't really know how the system works, but I don't believe they are. I believe they are all on individual basis.

Mr. HUBERT. I notice that Exhibit 5135 shows an "M.J."; is that in your handwriting?

Mrs. CASON. Yes; it is.

Mr. HUBERT. Well——

Mrs. CASON. These are the initials of Officer M. J. Jackson who was working on the radio with Officer C. E. Hulse at the time the calls were dispatched. The way our radio is set up part of the squads are handled by this officer on one side of the board and part of the squads and the ambulances and APB, which is traffic investigators are handled by the officer on the other side of the radio board, and Mr. Jackson was sitting on the side of the board that would handle a call in the downtown area. That is why I placed his initial on the call sheet, but when it got in there Officer Hulse had already been talking to the ambulance and was dispatching the call rather than Mr. Jackson.

Mr. HUBERT. Have you stated yet whether you conveyed the information about Oswald being shot to Officer Hulse by word of mouth?

Mrs. CASON. No.

Mr. HUBERT. Tell us what happened there?

Mrs. CASON. There is a discrepancy in the number of the ambulance that was on the call sheet and the number of the ambulance that was told to me that would be sent by the ambulance company. I feel that the reason for this is because I called Officer Hulse over the intercom that we have between the telephone clerk's office and the radio dispatcher's office and told him that Oswald had been shot, and I was sending an ambulance, and it is my understanding that ambulance 605 was cleared in the downtown area, and he gave it to ambulance 605, and told me to clear 607 through the

office, so, rather than put 607 on the call sheet, I put ambulance 605 on the air, because he was giving the call on the air.

Mr. HUBERT. Well, Officer Hulse got the information that Oswald was shot and that an ambulance was needed from you?

Mrs. CASON. I do not have total recall about the matter, but I feel like Officer Hulse knew Oswald had been shot. This is my only explanation for it. It was busy that day and things were confusing, and I just feel like this is what must have happened. It's not unusual for us to tell them about things like this on the intercom that is placed there for that reason, like if we have an armed robbery they can tell them the location and they can have a squad practically there before we can make up the call sheet, because it takes longer to make up a call sheet if you have to look up the district, and we do not know all of the districts. I happened to know what district this call was in.

Mr. HUBERT. That is why it was easy and quick for you to make up your call sheet, identified as Exhibit 5135?

Mrs. CASON. Yes, sir.

Mr. HUBERT. Now, is there anything that we have not covered, to your recollection?

Mrs. CASON. I can't think of anything other than that we did not know the exact time that Oswald was to be transferred and I might clarify the matter as to why Officer Farr was on channel 2. Channel 2 was maintained throughout the whole time that President Kennedy was in town and was used for special services such as the—if we have a whole lot of extra traffic men and solo motorcycles and things of this sort to keep them off of channel 1, they set up channel 2, and put all of those people on that channel 2, and I feel sure that this must have been the case this day, because they must have had all sorts of extra people set up for the transfer from the city hall to the county jail and this is probably why Officer Farr was maintaining channel 2.

Mr. HUBERT. But this call went out on channel 1?

Mrs. CASON. This call went out on channel 1, but other than that, I can't think of anything else I know that might have any bearing on this whatsoever.

Mr. HUBERT. Let me ask you this: We did have an interview, didn't we, immediately before the beginning of this deposition?

Mrs. CASON. Yes.

Mr. HUBERT. Can you think of anything that we discussed in the course of that interview which has not been covered in this deposition?

Mrs. CASON. Only pertaining to the squad dispatched, and I believe Officer Hulse can cover that. Other than that, I can't think of anything.

Mr. HUBERT. All right, now, do you perceive any inconsistencies between the interview and the facts brought out in the interview and your deposition now being taken?

Mrs. CASON. No; I don't.

Mr. HUBERT. I think that is all, then. Thank you very much.

Mrs. CASON. Thank you.

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## TESTIMONY OF MICHAEL HARDIN

The testimony of Michael Hardin was taken at 4:30 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of—Michael?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. [Spelling] M-i-c-h-a-e-l? H-a-r-d-e-n?

Mr. HARDIN. -i-n.

Mr. HUBERT. [Spelling] H-a-r-d-i-n?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. My name is Leon D. Hubert, I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of the Executive Order No. 11130, dated November 29, 1963, Joint Resolution of Congress 137, and the rules of procedure adopted by the Commission in conformance with that Executive order and the joint resolution, I have been authorized to take a sworn deposition from you, Mr. Hardin, identified in my authority as the proper representative of the O'Neal Funeral Home. I state to you now that the general nature of the Commission's inquiry, to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and subsequent violent death of Harvey Lee Oswald. In particular to you, Mr. Hardin, the nature of our inquiry today is to determine the facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry including the ambulance call and the documents relative to that of the O'Neal Funeral Home.

Now, Mr. Hardin, I think you have appeared today by virtue of a general request made by Mr. J. Lee Rankin, who is the General Counsel of the Commission's staff. And that general request—rather it was a particular request to the O'Neal Funeral Home to have its representatives come and have their depositions taken and to produce certain documents relative to the matter under inquiry.

Have you received a copy of that letter?

Mr. HARDIN. No, sir; I haven't.

Mr. HUBERT. Well, under the rules adopted by the Commission you would be entitled to a 3-day written notice prior to the taking of this deposition, but the rules also provide that you can waive that 3-day written notice if you so wish. Do you desire to waive it?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. Then, will you raise your right hand so that I may administer the oath. Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth so help you God?

Mr. HARDIN. I do.

Mr. HUBERT. Will you state your full name, please?

Mr. HARDIN. Michael Norfleet Hardin.

Mr. HUBERT. And your age?

Mr. HARDIN. Twenty-three.

Mr. HUBERT. Your residence?

Mr. HARDIN. 1311 Exeter.

Mr. HUBERT. Dallas?

Mr. HARDIN. Yes, sir; it is in Dallas.

Mr. HUBERT. And your occupation?

Mr. HARDIN. I drive one of the city contract emergency ambulances.

Mr. HUBERT. Now, on November 24, what was your occupation?

Mr. HARDIN. City ambulance, or contract emergency ambulance driver.

Mr. HUBERT. What connection have you with O'Neal?

Mr. HARDIN. I drive the ambulance for the funeral home. We are under contract to the city for emergency ambulance service.

Mr. HUBERT. Now, you have produced written records which you have in your hand now. Do you, from your own knowledge, know those records to be the official records of the O'Neal Funeral Home?

Mr. HARDIN. Yes; I do.

Mr. HUBERT. Are those records relied upon by the O'Neal Funeral Home in the course of their ordinary normal business transactions?

Mr. HARDIN. Yes.

Mr. HUBERT. Is it a normal administrative matter to make such records as you now hold in your hand, which you are producing?

Mr. HARDIN. Yes, sir; it is.

Mr. HUBERT. Well, now, we'll mark these various documents for identification, as follows, to wit: And I might add that although you have the originals we have compared the originals, have we not, with these photostatic copies, and, of course, they are identical. Therefore, I am not going to take the original from you, or even mark them for identification, but use, for all purposes the photostatic copies that you have supplied and you may keep the originals, or return them where you got them from. But for the purposes of identification, now, let us mark the documents as follows: There is an ambulance call record which I am identifying as follows:

"Dallas, Tex., March 31, 1964. Exhibit No. 5125, deposition of Michael Hardin," and signing my name on it.

Mr. HARDIN. Okay, sir.

Mr. HUBERT. There is another ambulance call record which I am marking as follows: "Dallas, Tex., March 31, 1964. Exhibit 5126. Deposition of Michael Hardin," and signing my name on it. Finally there is a call ticket bearing number 35127, which I am marking, "Dallas, Tex., March 31, 1964. Exhibit 5127, Deposition of Michael Hardin," and signing my name on the bottom of it, and for the purposes of identification and so

that the record may show that we are both talking about the same documents I will ask you to sign your name near mine, or below on each one of the three.

Mr. HARDIN. All right.

Mr. HUBERT. Now, Mr. Hardin, I hand you the document which has been marked for identification as Exhibit 5125, and ask you to identify that document for the record.

Mr. HARDIN. That is the ambulance call sheet—we—that was the original call sheet from the—made from the call itself, or at the time of the call itself.

Mr. HUBERT. Now, whose handwriting appears on that?

Mr. HARDIN. That is our dispatcher, or Hal Priddy, this is his handwriting.

Mr. HUBERT. That is Harold—Hal Priddy. [Spelling] P-r-i-d-d-y?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. He is outside in the hall right now?

Mr. HARDIN. Yes, sir; he is.

Mr. HUBERT. Do you recognize the handwriting?

Mr. HARDIN. I am not too familiar with it, really.

Mr. HUBERT. That is all right. He will identify it.

Mr. HARDIN. Well——

Mr. HUBERT. I show you a document marked previously for identification as 5126, and ask you to identify that document.

Mr. HARDIN. This is a copy of the call sheet taken from the police dispatcher's tape.

Mr. HUBERT. Whose handwriting appears on that sheet?

Mr. HARDIN. This is my handwriting on this one.

Mr. HUBERT. As I see it, that is sort of a reconstruction, or amendment of the first document, 5125, is that correct?



Mr. HARDIN. Yes, sir; it is.

Mr. HUBERT. There is some data missing from 5125, which is supplied on 5126, is that right?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. And you supplied that missing information by inserting the times, principally, in your own handwriting, which times you obtained from the police tape relevant to this transaction?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. All of that is in your handwriting?

Mr. HARDIN. Yes, sir; it is.

Mr. HUBERT. Do you state now for the record that those times entered on Exhibit 5126, were accurate entries as you gathered them and found out about them from the police log?

Mr. HARDIN. That's right; yes, sir.

Mr. HUBERT. Now, I show you the document marked 5127, and ask you if you can identify that.

Mr. HARDIN. That is the ambulance—the call ticket that was made on the call.

Mr. HUBERT. Whose handwriting is that document written in?

Mr. HARDIN. That is my handwriting.

Mr. HUBERT. When was it written?

Mr. HARDIN. Written at the time of the call, or right after the call was made.

Mr. HUBERT. And before you answered the call?

Mr. HARDIN. No, sir; after we had already answered the call and cleared.

Mr. HUBERT. In other words, after the person had been brought to the hospital?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. You then executed that form. All right. Now, tell us what you know about what happened on November 24, 1963.

Mr. HARDIN. We were en route to the funeral home from veterans hospital, and we were on the Stemmons Freeway, about a quarter of a mile southwest of Industrial Boulevard, and we received a call that—at 11:21 over the police radio on signal 19, which is a shooting in the basement of the city hall.

Mr. HUBERT. Did you have radio equipment in your car?

Mr. HARDIN. Yes, sir; we do. It is police radio equipment. Hooked up directly with the police dispatcher. Just regular police equipment.

Mr. HUBERT. Is it 2-way?

Mr. HARDIN. Yes; 3-way.

Mr. HUBERT. Three-way?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. What is the third way?

Mr. HARDIN. We can talk to the squads and they can talk back to us and we can talk to the dispatcher and he can talk, and we can talk to the squad and the dispatcher.

Mr. HUBERT. I see. It is customary for you to have that radio machine open and operating when you are traveling?

Mr. HARDIN. Yes, sir; it is.

Mr. HUBERT. Well, tell us what you heard.

Mr. HARDIN. Well, a call came out on signal 19, in the basement.

Mr. HUBERT. Did you know what signal 19 meant?

Mr. HARDIN. Yes, sir; it means shooting.

Mr. HUBERT. How is it identified as being a shooting in the basement?

Mr. HARDIN. They gave us the call as signal 19, in the basement. Code 3, which means emergency, red lights and sirens, and at the time I heard them dispatch three squads, I believe it was, to the basement on this call, and at that time they dispatched us to the call and——

Mr. HUBERT. Who dispatched you?

Mr. HARDIN. This police dispatcher. They phoned—the dispatcher phoned our office, O’Neal’s Funeral Home and he gave our dispatcher the call, and our dispatcher in turn told the police dispatcher we were en route back to the office from the veterans hospital and should be close to that vicinity when the call came out, so, he, in turn gave it to us, used our call number, which is 605, and gave it to us.

Mr. HUBERT. Called 605 and you knew that was you?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. You also knew what the signal 19 was, and what the other signal you mentioned——

Mr. HARDIN. Code 3.

Mr. HUBERT. You knew what that was?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. And I think you have explained all these meanings of signals in the record already?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. What did you do then?

Mr. HARDIN. We, as I say, we were on the Freeway about a quarter of a mile—I guess you would call it southwest—of Industrial and we went on the freeway, from there to Ervay Street, north on Ervay to Main, and then east on Main Street to city hall.

Mr. HUBERT. And you came into the city hall, in your ambulance?

Mr. HARDIN. Came off the Main Street entrance to the city hall.

Mr. HUBERT. Describe for the record what you saw and what you did?

Mr. HARDIN. Now remembering coming into the basement, there were police officers standing there guarding the basement to see nobody got out, and let us go into the basement, and when—and boy, the basement was pretty crowded, a bunch of photographers and newsmen down there, and they were moving this van up the Commerce Street side so we could get in

—I mean going up the ramp toward Commerce Street side, best I remember, now, and pulled the ambulance up just south of the—well, I don't—jail office I guess it would be in there, and stopped the ambulance, and when we got out I started around the back of the ambulance to take the stretcher out, and there was a police officer, I don't remember who he was or anything, but he must have not recognized me, kind of pushed me back into the crowd. I guess he thought I was someone just coming through, so, just a few seconds until he did recognize me and let me on through——

Mr. HUBERT. By the way, was there anyone with you then?

Mr. HARDIN. Yes, sir; my rider attendant, was with me.

Mr. HUBERT. Who was that?

Mr. HARDIN. Harold Wayne Wolfe.

Mr. HUBERT. Go ahead.

Mr. HARDIN. And I went around to the back of the ambulance, and my rider opened the back door and took the stretcher out, and went into the police or jail office, and we saw Oswald lying on the floor there, and several men around him, and we picked him up and put him on the stretcher and put him in the ambulance, and then there were two or three men, I don't remember now, got into the back of the ambulance, I believe.

Mr. HUBERT. Do you know who they were?

Mr. HARDIN. I believe they were police officers and I believe one of them was Leavelle.

Mr. HUBERT. Yes.

Mr. HARDIN. I am not sure. And then there was a doctor riding in the seat in the back, there, and then my assistant was in the front seat.

Mr. HUBERT. How did you know the man was a doctor?

Mr. HARDIN. I have seen him at Parkland Hospital several times and city hall, too, and recognized him as being a doctor.

Mr. HUBERT. Do you know his name?

Mr. HARDIN. Sir?

Mr. HUBERT. Do you know his name?

Mr. HARDIN. No, sir; I don't know his name. He was in here just before us.

Mr. HUBERT. Let the record show that Dr. Fred Bieberdorf was in the hall with the witness, Mr. Hardin, and appeared in this room where this deposition is being taken just before Mr. Hardin came in. All right.

Mr. HARDIN. And we got him in the car, or ambulance, they drove the armored truck on out of the basement on the Commerce Street side, and we went out behind the truck. Of course, the truck was there when we left, and then went east on Commerce to the expressway, and north on the expressway to Elm and then west on Elm to Harwood and north on Harwood to Harry Hines, and north on Hines to Parkland.

Mr. HUBERT. And what happened when you got to Parkland?

Mr. HARDIN. When we got to Parkland we went in the emergency entrance, pulled around there, backed up to the dock. Of course, it was pretty crowded there, too. People had, I guess, saw the thing on television and came out there to see us when we came in with him, and as soon as we got—took him out of the car, took him into the emergency room—we got to the hall of the emergency room itself, and they put him on one of their tables from our carriage, and we cleared from the call, but there was a few minutes before we cleared.

We were waiting in the hall because it was so crowded that we couldn't get through, so we waited in the hall and I imagine it was about an hour, from the time we got the call before the time we cleared. I believe it was an hour and 9 minutes, if I am not mistaken.

Mr. HUBERT. Would it help you if you looked at Exhibit No. 5127, to determine the time of the call?

Mr. HARDIN. Well——

Mr. HUBERT. As far as the time of the clearance of the call?

Mr. HARDIN. Yes, sir; the call was at 11:21, and cleared at 12:30, and I believe it took 9 minutes from the time we got the call on the air until we were at Parkland with him.

Mr. HUBERT. How did you determine that the call came in at 11:21?

Mr. HARDIN. That is the time that I believe the call came into our office.

Mr. HUBERT. That is what you have on Exhibit 5127?

Mr. HARDIN. Yes, sir.

Mr. HUBERT. What I mean by that is that Exhibit 5127 was prepared in your handwriting, but insofar as that time is concerned it was taken off Exhibit 5125, was it not?

Mr. HARDIN. Yes, sir; that's correct.

Mr. HUBERT. There is no mechanism there in the ambulance itself which fixes the time of a call?

Mr. HARDIN. No, sir.

Mr. HUBERT. No timeclock or anything?

Mr. HARDIN. No, sir.

Mr. HUBERT. Now, during all the time you were with Oswald, from the moment you saw him until the moment he was taken over by the hospital, did he say anything at all?

Mr. HARDIN. No, sir; not that I could hear.

Mr. HUBERT. Do you remember the name of the patient that you all had delivered to Veterans Hospital?

Mr. HARDIN. No, sir; I don't.

Mr. HUBERT. Where had you taken him from?

Mr. HARDIN. Let's see, I'm trying to think. I don't—we make so many calls that I—just hard to remember exactly where I had picked him up.

Mr. HUBERT. Man or woman?

Mr. HARDIN. It was a man. He was——

Mr. HUBERT. Do you remember where you picked him up from?

Mr. HARDIN. No, sir; that is what I was trying to think.

Mr. HUBERT. Nor do you remember his name?

Mr. HARDIN. No, sir.

Mr. HUBERT. What was the number of the car you were driving?

Mr. HARDIN. 605.

Mr. HUBERT. You don't normally cruise around, do you?

Mr. HARDIN. No, sir; we don't. As soon as we clear from a call we go right back to our station. From the time we received the call until the time we checked out at the city hall, it was just 2 minutes, according to their tape.

Mr. HUBERT. Do you know what the significance of the code 5, code 6 and so forth is on Exhibit 5126?

Mr. HARDIN. Yes, sir. Code 5 means en route to the scene; code 6 means at the location.

Mr. HUBERT. And there is another code on Exhibit 5126, that means time of departure from the jail?

Mr. HARDIN. En route to the hospital.

Mr. HUBERT. And code 6 on to that would be arrival at the hospital?

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Mr. HARDIN. Yes, sir.

Mr. HUBERT. And 13 means is cleared, in the sense is that you were dismissed about an hour later?

Mr. HARDIN. It all was a little while before that. I don't believe we cleared at the hospital. I think I came on back to the funeral home from the hospital without clearing, because if I am not mistaken, I believe those phones were all tied up at the hospital and I couldn't get to one of them.

Mr. HUBERT. Anyhow, from the time you got the call over the radio until the time you got to the hospital, was exactly 10 minutes?

Mr. HARDIN. Let's see. Yes.

Mr. HUBERT. And you got to the jail 3 minutes after you got the call, approximately, right?

Mr. HARDIN. Yes, sir. Well, from the time we got the call until we got to the jail, and—let's see, in 2 minutes, because we actually received the call at 11:21 and the call from the dispatcher to us at 11:22.

Mr. HUBERT. In other words, code 5, on Exhibit 5126, code 5 indicating that 11:22 is the time they put it on the air to you?

Mr. HARDIN. Is the time it was given to us.

Mr. HUBERT. Well, I'll ask you to look at Exhibit 5125, and tell me if you recognize the handwriting on the bottom part of that exhibit by the printed word "oxygen and remarks."

Mr. HARDIN. No, sir; that handwriting, I don't recognize.

Mr. HUBERT. All right. Now, is there anything further you want to add to this?

Mr. HARDIN. No, sir.

Mr. HUBERT. About all you know about it?

Mr. HARDIN. Yes, sir; that's it.

Mr. HUBERT. Have you been interviewed by any member of the Commission other than myself prior to the taking of this deposition?

Mr. HARDIN. No, sir; I haven't.

Mr. HUBERT. Now, during the interview that you had with me immediately prior to the taking of this deposition, was anything brought out material nature which has not been covered in this deposition?

Mr. HARDIN. No, sir; not that I know of, not that I can remember.

Mr. HUBERT. All right. Do you know of any inconsistencies between what you testified here in this deposition and the matter as to which we look about during the interview which proceeded the deposition?

Mr. HARDIN. No, sir.

Mr. HUBERT. All right, thank you very much.



## **TESTIMONY OF C. E. HULSE**

The testimony of C. E. Hulse was taken at 4:30 p.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Officer C. E. Hulse. Mr. Hulse, my name is Leon Hubert, and I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of the Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with this joint resolution and the Executive order, I have been authorized to take the sworn deposition of you. I state to you that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular to you, Mr. Hulse, the nature of the inquiry today is to determine the facts that you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and more particularly, about your actions with respect to putting the radio call on the air and so forth.

Now, you have appeared here by virtue of a general request made by Mr. J. Lee Rankin, General Counsel of the Commission. Under the rules adopted by the Commission, you are normally entitled to a 3-day written notice before you are required to testify, but the rules also provide you can waive that notice if you wish to do so. So, I ask you now if you are willing to waive the 3-day notice that you would normally be entitled to?

Mr. HULSE. I do.

Mr. HUBERT. Will you rise, and raise your right hand so as to be sworn. Do you solemnly swear that the testimony that will be given in this matter will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. HULSE. I do.

Mr. HUBERT. Will you state your name, please.

Mr. HULSE. C. E. Hulse.

Mr. HUBERT. Your age?

Mr. HULSE. Thirty-one.

Mr. HUBERT. Where do you live, sir?

Mr. HULSE. 7825 Gayglen.

Mr. HUBERT. Dallas?

Mr. HULSE. Yes.

Mr. HUBERT. What is your occupation, sir?

Mr. HULSE. Policeman, city of Dallas.

Mr. HUBERT. How long have you been so employed?

Mr. HULSE. Six years.

Mr. HUBERT. On November 24, 1963, were you on duty?

Mr. HULSE. Yes, sir; I was.

Mr. HUBERT. What were your specific duties on that day?

Mr. HULSE. Radio dispatcher.

Mr. HUBERT. What does that mean that you do?

Mr. HULSE. Dispatch all calls in the city of Dallas which come through on the telephone lines.

Mr. HUBERT. In other words, you mean that you can get into radio communication with moving vehicles and other places through special channels?

Mr. HULSE. That's right.

Mr. HUBERT. What channel were you using, do you remember?

Mr. HULSE. Using channel 1.

Mr. HUBERT. Do you know Mrs. Frances Cason?

Mr. HULSE. Yes, I do.

Mr. HUBERT. Who is she?

Mr. HULSE. She is a telephone operator for the city of Dallas Police Department.

Mr. HUBERT. Now, I invite you to look at the document before you which has been marked for identification as: "Dallas, Texas, April 1, 1964. Exhibit 5135, deposition of Frances Cason and C. E. Hulse," and ask you whether or not you have signed it?

Mr. HULSE. Yes, I have.

Mr. HUBERT. Now, would you tell us what part you played with reference to the activities reflected by Exhibit 5135?

Mr. HULSE. I dispatched this shooting call to 118, and also dispatched the same call to ambulance 605, sir.

Mr. HUBERT. Now, can you recall how you got the information, or where you got the information as to the shooting of Oswald?

Mr. HULSE. To the best of my knowledge, I don't remember who told me that that he had been shot. Some other officer, or some other telephone clerk in the dispatcher's office told me that he had been shot.

Mr. HUBERT. Is it possible that Mrs. Cason——

Mr. HULSE. It is quite possible that she did.

Mr. HUBERT. How would she do it? Were you in the same office with her?

Mr. HULSE. No, now, I was in another office which is divided by a plate glass, but we also have an intercom system and it is quite possible she told me through the intercom system that Oswald had been shot.

Mr. HUBERT. When you heard that, what did you do?

Mr. HULSE. I knew that she had already ordered an ambulance. I knew 605 had just cleared from a previous call. Best I can remember I asked her what ambulance was going, what ambulance had been ordered and she told me 607.

Mr. HUBERT. All right.

Mr. HULSE. I knew that 605 would probably be closer to the basement, and I disregarded 607, and ordered 605 on the air.

Mr. HUBERT. All right, now, how did you know that 605 was nearby?

Mr. HULSE. When he heard the call come out on the shooting in the basement, the best I can remember, he told me he was probably closer to the basement than 607.

Mr. HUBERT. That is to say that you were in radio communication with 605?

Mr. HULSE. Yes.

Mr. HUBERT. Ambulance 605?

Mr. HULSE. Yes.

Mr. HUBERT. And he heard the call for ambulance 607?

Mr. HULSE. I am not positive whether he heard—no, he never did dispatch 607 at all. It was handled through the telephone by Mrs. Cason, but he knew that there was an ambulance needed for this shooting victim, and he told me he would probably be closer.

Mr. HUBERT. Than the other?

Mr. HULSE. Than any ambulance. I'm not sure whether he said that he would be closer than 607, but he said closer to the basement than any other ambulance.

Mr. HUBERT. Isn't it a fact that you had heard ambulance 605, on channel 1, announcing to his own company just shortly before this all happened that he was clear and that you remembered that he was clear and was going back towards his company?

Mr. HULSE. Yes; that is correct. He had just cleared from a previous call, and was en route back to the company, which I presume he would be in the

immediate downtown vicinity.

Mr. HUBERT. And isn't that the reason why you then, realized that 605 had just cleared, as you had heard him clear over your radio, and you realized that he was closer, and that is why you called 605?

Mr. HULSE. Yes; plus that he told me that he would probably be closer himself, on the radio.

Mr. HUBERT. I would like you to look at Exhibit 5135 and tell us what portion of that card is written in your hand?

Mr. HULSE. Just the squad number, which I first dispatched to squad 108. He was on another assignment, so I dispatched it then to 118.

Mr. HUBERT. So, that the column, or block which there is printed the word, "Squad assigned is 108," and it appears to be scratched out and immediately above it is "118," is that right?

Mr. HULSE. Yes; that's correct.

Mr. HUBERT. All in your handwriting?

Mr. HULSE. All that.

Mr. HUBERT. Now, I notice that there is printed on that card by what apparently is a timeclock two figures, "time dispatched C-11:22, November 24," would you explain what you had to do with that, if anything?

Mr. HULSE. The time dispatched, the time that it is explained here, 11:22, November 24, is the time that I actually dispatched the call to 108, and then finding out he was on another assignment, I dispatched it also to 118.

Mr. HUBERT. Below there there is a block called, "time clear, 1:49 p.m., November 24," would you explain that, please?

Mr. HULSE. That is the time that squad 118 cleared from the assignment.

Mr. HUBERT. And they advised you of that and you put the card in the timeclock, is that right?

Mr. HULSE. Yes, sir.

Mr. HUBERT. Now, this Exhibit 5135, was actually prepared by Mrs. Cason, was it not?

Mr. HULSE. Yes; it was.

Mr. HUBERT. And she would have had it stamped in this box called "Ambulance ordered," and "time received," isn't that right?

Mr. HULSE. That's right.

Mr. HUBERT. Then after she made up the card and had it stamped, how did it get to you?

Mr. HULSE. It is put on a conveyer belt that runs from one room to the radio room, this conveyor belt, and falls into a box, and I pick it up.

Mr. HUBERT. And your—you have your own timeclock there?

Mr. HULSE. Yes, sir.

Mr. HUBERT. So, as soon as you have done what you said you did, you slip it into a stamp machine and it automatically stamps the time?

Mr. HULSE. That's correct.

Mr. HUBERT. Now, I notice that there is an initial in the column right next to the figure "118," "MJ," which Mrs. Cason advises was put there by her. Do you know who that refers to?

Mr. HULSE. Yes, sir; the other officer that was working on the radio with me. In this—"MJ" M. J. Jackson, his initials, M. J.

Mr. HUBERT. But, as a matter of fact you handled it?

Mr. HULSE. Yes; I actually handled the dispatching of the call and the ambulance.

Mr. HUBERT. Why didn't he do it?

Mr. HULSE. Well, at that time Mr. Jackson was fairly new to the radio dispatcher's office and everything was in such a turmoil there I decided that I would handle all transmissions made on the radio, seeing that he was new to the office and didn't know quite how to handle the calls under the conditions.

Mr. HUBERT. And in any case, you distinctly remember handling the call which is reflected by this Exhibit 5135?

Mr. HULSE. Yes; I do.

Mr. HUBERT. Now, Officer Hulse, we had an interview now, you and I, did we not, immediately before the beginning of this deposition?

Mr. HULSE. Yes; we did.

Mr. HUBERT. Can you recall anything that was covered in that interview which has not been covered in this deposition?

Mr. HULSE. No; I couldn't. I believe all has been covered.

Mr. HUBERT. Can you think of any inconsistencies between what was developed in the course of the interview and what was developed in the course of the deposition?

Mr. HULSE. No.

Mr. HUBERT. Have you any other comments that you would like to make concerning this matter of any nature whatsoever?

Mr. HULSE. No, sir; I have told everything I know about it.

Mr. HUBERT. Thank you, sir.

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## **TESTIMONY OF IRA JEFFERSON “JACK” BEERS, JR.**

The testimony of Ira Jefferson “Jack” Beers, Jr., was taken at 9:15 a.m., on April 14, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President’s Commission.

Mr. GRIFFIN. First of all, let me introduce myself. My name is Burt Griffin, and I am with the advisory staff of the General Counsel staff of the President’s Commission investigating the Assassination of President Kennedy. I want to tell you a little bit about the Commission, what we are authorized to do and so forth before we actually get into the deposition. The Commission was set up pursuant to Executive order of President Johnson on November 30, 1963, and also pursuant to a joint resolution of Congress which was enacted about the same time. Under these two documents, the Executive order and the joint resolution, the Commission has been authorized to promulgate certain rules and regulations, and under those rules and regulations I have been specifically designated to take your sworn deposition.

I want to tell you a little bit about the general nature of our inquiry. The Commission has been set up to inquire into and evaluate and report back to President Johnson upon the facts relating to the assassination of President Kennedy and the subsequent murder of Lee Harvey Oswald, and particularly as to you, Mr. Beers, we are interested in what you know about Jack Ruby and about the events of November 24.

You have been interviewed by the FBI, and we have these interview reports before us, so we have a place to start anyhow in talking about this matter.



You have been asked to appear here by virtue of an oral request which was made by Special Agent Sorrels of the Secret Service. I don't know whether he made it to you personally or to your employer or how it actually happened. Under the rules of the Commission you are entitled to have a 3-day written notice before you are obligated to appear here.

Mr. BEERS. I did.

Mr. GRIFFIN. All right, you got it.

Mr. BEERS. He changed the date and asked me to come this day.

Mr. GRIFFIN. All right; fine. But I did want to make clear to you that if there have been any irregularities or anything that you prefer to have a different time, we could discuss that. But I presume that you are satisfied since you are here?

Mr. BEERS. That is all right.

Mr. GRIFFIN. Fine. Also under the rules of the Commission you are entitled to appear here with an attorney, and we actually encourage people to have attorneys, if they so desire, although many of the people, in fact most of them, don't appear with an attorney. I see you are not here with an attorney, and I take it that is because you don't desire one. But if you do for any reason feel you would like an attorney, please let us know and we can defer your deposition or interrupt it, whatever the case might be. I ask if you have any questions about what is involved here before I ask you to be sworn?

Mr. BEERS. I have no questions whatsoever.

Mr. GRIFFIN. Okay, would you raise your right hand, then.

Do you solemnly swear that the testimony you are about to give is the truth, the whole truth, and nothing but the truth, so help you God?

Mr. BEERS. Yes, sir.

Mr. GRIFFIN. Would you state for the record your full name.

Mr. BEERS. Ira Jefferson Beers, known as Jack.

Mr. GRIFFIN. Can you tell us when you were born, Mr. Beers?

Mr. BEERS. July 14, 1923.

Mr. GRIFFIN. Where do you live presently?

Mr. BEERS. I live at 10913 Joaquin Drive.

Mr. GRIFFIN. Is that here in Dallas?

Mr. BEERS. Dallas.

Mr. GRIFFIN. What is your occupation?

Mr. BEERS. Photographer with the Dallas Morning News.

Mr. GRIFFIN. How long have you been employed with the Dallas Morning News?

Mr. BEERS. A little over 14 years.

Mr. GRIFFIN. I take it you have been a photographer?

Mr. BEERS. Since 1942; yes, sir.

Mr. GRIFFIN. Now I want to hand you a document which I have marked Dallas, Tex., April 14, 1963, Ira J. Beers' Exhibit 5350. This purports to be a copy of an FBI interview report. The interview took place, according to this report, on November 30, 1963, between you and two Special Agents of the FBI, Mr. Pinkston and W. Harlan Brown. I want to hand you this and ask you if you have had a chance to read it?

Mr. BEERS. Yes, sir.

Mr. GRIFFIN. Do you have any additions or corrections that you would want to make in that. What I am referring to here right now in particular is whether you feel that that report accurately reflects everything that you told the bureau on the date of that interview?

Mr. BEERS. With one minor exception. Shall I just read?

Mr. GRIFFIN. Would you read the sentence that you feel is wrong?

Mr. BEERS. "He is acquainted with Ruby both by name and by sight since about 18 months ago. He was assigned as a cameraman with Dale Bayse, a reporter for the Dallas News, on a story Bayse was doing on a stripper school being run by Jack Ruby.

"This story was for a magazine ..."—I would like to make clear this was not an assignment by the Dallas News.

Mr. GRIFFIN. I see.

Mr. BEERS. That is the only thing I think of in this particular report.

Mr. GRIFFIN. Fine. Now I am going to hand you what has been marked Dallas, Tex., April 14, 1963, Ira J. Beers' Exhibit 5351. This is also an FBI interview report. This interview took place on December 3, 1963, here in Dallas, and purports to be a report of an interview between you and two other Special Agents of the FBI, Mr. James C. Kennedy and Will Hayden Griffin. I am going to hand you this Exhibit 5351, and ask you the same question as I asked with respect to 5350?

Mr. BEERS. Yes; I have seen this report.

Mr. GRIFFIN. Are there any additions?

Mr. BEERS. Yes, sir; there is a couple in here. Let me locate them. One, which is probably a minor one, speaking of myself: "He also stated that there were two armored vehicles, one in the basement and one near the driveway from the Commerce side." I think possibly the agent misunderstood what I said there. There was only one armored vehicle. That was in the basement driveway near the Commerce Street side. There was another vehicle, police car, parked in the basement right near the entrance.

Mr. GRIFFIN. Now that is a runover sentence from the first page of the report to the second page of the report, is that right?

Mr. BEERS. Yes; that's correct.

Mr. GRIFFIN. Did you want to correct the sentence?

Mr. BEERS. "Beers did not know Ruby prior to the shooting, nor did he know Oswald ..." et cetera. This is contradictory to the first report that you just handed me a moment ago. Apparently the agent must have misunderstood me or misread his notes or something. I did know who Ruby was prior to this shooting.

Mr. GRIFFIN. I wonder if you would want to make a change in ink in that sentence which would reflect accurately what you said, then initial the change that you make and date it?

Mr. BEERS. Let me ask you a question here. Shall I say this sentence is contradictory to that report, or just change it to that I did know Ruby prior?

Mr. GRIFFIN. Yes.

Mr. BEERS. [Making change.] I have written here "I did know Ruby prior to the shooting, as stated to the FBI in report dated November 30, 1963, Exhibit 5350." Would you like me to initial this?

Mr. GRIFFIN. If you would, please, and then date it?

Mr. BEERS. [Initialing.] This is April 14?

Mr. GRIFFIN. Yes; are there any other additions or corrections?

Mr. BEERS. So far as I can see, there are no further corrections.

Mr. GRIFFIN. Okay. Well if we go along and something occurs to you, we can change it even further. Let me ask you, Mr. Beers, where were you at the time President Kennedy was shot?

Mr. BEERS. I was on Dallas News property between the parking lot probably and my photographic studio.

Mr. GRIFFIN. When you heard that President Kennedy had been shot, what did you do?

Mr. BEERS. I was in my photo lab in the process of finishing films of the arrival at Love Field, and a lab man who works with us told me that the President had been shot, and I immediately thought he was making some sort of joke and I continued to turn out my picture of his arrival at Love Field. And I told the fellow, "Well, go ahead with your joke." And he said, "No; that is right, the President has been shot." And he just turned around and walked out. And I still didn't believe him. In a few minutes our intercom between the city desk came on, and I was told to report to the Texas School Book Depository Building, that they thought they had the man that shot the President in the corner there.

Mr. GRIFFIN. Did you go to the Texas School Book Depository?

Mr. BEERS. A few minutes later, I did. It sort of stunned me. I guess I didn't quite realize. I said, "Okay," and I kept standing there working on my prints. And just a couple or 3 minutes, our city editor came back and he said, "Get the hell out and go over to the Depository." And I arrived at the School Book Depository about 5 minutes later.

Mr. GRIFFIN. What time would you say it was when you got there?

Mr. BEERS. I don't know. It would be shortly after noon sometime. I have lost complete track of time for a good length of time.

Mr. GRIFFIN. About how long would you say it was after you first heard the President had been shot?

Mr. BEERS. Probably 20 minutes.

Mr. GRIFFIN. Now, when you got there, did you go into the building?

Mr. BEERS. No, sir; I did not. As I arrived, there was quite a crowd of people gathered around the building, and so some officers brought a disheveled looking man from the building, and I thought this probably was the person, so I ran over and made a picture, and then went over to the building. This time the building was sealed off and no one was allowed to enter.

Mr. GRIFFIN. How long did you remain there at the School Book Depository?

Mr. BEERS. I remained at the School Book Depository for 2 or 3 minutes, and I heard the report that an officer had been shot in Oak Cliff. I ran back to my car, which was parked on Main Street directly across the street from the county jail building, and notified our office by 2-way radio that there was a report of a shooting, that a police officer had been involved, and asked them if they had any information, or if this would probably be linked to the President's assassination, and they had no information.

I checked the police dispatcher, and the dispatcher didn't have enough information to tell us, so I was told to remain at the Texas School Book Depository, which I did until sometime quite late in the afternoon, at the time the police had finished their investigation there in the building, and then admitted the press to the building, and we were taken to the sixth floor and allowed to photograph the area where the rifle was found, and shown and allowed to photograph the area in and around the window and make pictures from the window where the assassination was supposedly—where the assassin was supposed to have fired shots from.

Mr. GRIFFIN. Can you give us an estimate of what time that would have been when you were up there taking the pictures on the sixth floor?

Mr. BEERS. This would be strictly a guess, an estimate. It would be sometime around the vicinity of 4 o'clock. It was quite late in the afternoon. Probably later.

Mr. GRIFFIN. Now in your pictures that you took, were any of the objects that were allegedly found up there on the sixth floor photographed, such as the position of the rifle and the placement of the boxes and other materials in the window from which the assassin is believed to have shot?

Mr. BEERS. Yes. Prior to admitting us to the building, I made pictures of a sack, very long narrow sack type of affair that was brought down from there, and a pop bottle and some pieces of chicken, and I also made a picture of the rifle which I believe it was Lieutenant Carl Day from the Dallas police crime lab brought that. And upon going in the building, I photographed the area where the rifle was found. I photographed the area around the window from which the assassin was supposedly seated, and I moved into that area and made a picture from the window, supposedly the window from which the bullets were fired, that showed a little corner of the boxes which possibly the rifle rested on. It shows the street down below where the automobile was traveling when the President was killed.

Mr. GRIFFIN. The photographs that you took up there in the window and on the sixth floor would not at that time have shown the rifle on the sack or the pop bottle, or the chicken?

Mr. BEERS. No, sir. That was shown outside the building.

Mr. GRIFFIN. I see. Do you still have copies of the photographs?

Mr. BEERS. I do not have copies of the photographs. The negatives are in custody of the managing editor, Mr. Jack Krueger, managing editor of the Dallas News.

Mr. GRIFFIN. Do you know what the newspaper policy is going to be with respect to retention of those negatives?

Mr. BEERS. We planned to keep them in our permanent file. Not with the ordinary run of the mill day-to-day negatives, but they are filed in and will be filed for how long, I do not know, in the managing editor's office.

Mr. GRIFFIN. I take it from what you have said then, there is perhaps a general file of negatives or photos that were taken on the day of this

assassination and the 2 days thereafter, which are going to be kept in a separate spot in your building?

Mr. BEERS. To the best of my knowledge; yes, sir.

Mr. GRIFFIN. Do you know, for our information, and I don't know whether we are interested in this or not, do you know if the newspaper has any policy with respect to making those available, if it should turn out the Commission would like to see them?

Mr. BEERS. We have made available everything that we have been requested to so far; yes, sir.

Mr. GRIFFIN. Fine. Is my understanding correct, that what you have in that file is negatives and not developed photographs, or do you have both?

Mr. BEERS. Primarily negatives. It is possible there are some photographs that are filed either in our biographical file in the managing editor's department, which we consider to be second prints.

Mr. GRIFFIN. Are these negatives such as they could be easily examined to determine whether they might be of use to us without having to develop them or print them?

Mr. BEERS. That would depend upon whoever examined them; their ability to read negatives.

I am sure, I, or whoever made the pictures, would be glad to sit down and go over and explain to you what is in the negatives and what they show.

Mr. GRIFFIN. After you left the School Book Depository on the 22d, where did you go next?

Mr. BEERS. I returned to the office and turned out my afternoon work.

Mr. GRIFFIN. How long did you remain there?

Mr. BEERS. Until approximately 7. Maybe 8 o'clock that night.

Mr. GRIFFIN. Did you have occasion to perform any more work for the newspaper that day?

Mr. BEERS. No, sir; we had pretty well closed up for the day by then. I believe this was the day—I am not sure—that—no; I am sorry. This was November the 24th that I was thinking about—referring to.

Mr. GRIFFIN. On the 22d, were there any photographers from your newspaper at the police department?

Mr. BEERS. On November the 22d?

Mr. GRIFFIN. Yes; the day that the President was shot?

Mr. BEERS. I believe that night when Mr. Oswald was apprehended, we had a photographer dispatched to the police station to make photographs up there.

Mr. GRIFFIN. Do you know who?

Mr. BEERS. Mr. Bill Wentfre.

Mr. GRIFFIN. Are you and Mr. Wentfre the only news photographers?

Mr. BEERS. No, sir; we have approximately 10 news photographers at the Dallas News.

Mr. GRIFFIN. I take it that all of the photographs that were taken by all 10 of you photographers that day which had anything to with the assassination would either be in the file that is in your managing editor's office, or else the negatives to the photographs would be there?

Mr. BEERS. Yes, sir; to the best of my knowledge, we attempted to collect all of those negatives and control them.

Mr. GRIFFIN. Did you have any photographer who was assigned to the Dallas Police Department on a regular basis during those 3 days, the 22d, 23d, and 24th of November?

Mr. BEERS. No, sir; we have a photographer assigned there most of the time, but it was not any one single photographer.

Mr. GRIFFIN. Did you work on Saturday?

Mr. BEERS. Yes, sir.

Mr. GRIFFIN. The 23d?

Mr. BEERS. Yes, sir.

Mr. GRIFFIN. Do you recall where you were working that day?

Mr. BEERS. Yes, sir; I worked hours 10 to 7 on Saturday, and I received an assignment to go to the city hall, third floor of the city hall near Captain



Fritz' office, homicide bureau, and to stand by there to photograph whatever might take place or whoever might be brought in or maybe any pictures of Mr. Oswald as he was going up and down the hall.

I arrived there roughly at 10:30 and remained there until roughly 1 o'clock, 1 p.m.

Mr. GRIFFIN. In the afternoon?

Mr. BEERS. Yes, sir.

Mr. GRIFFIN. Now, during the period that you were there, did you see Jack Ruby?

Mr. BEERS. No, sir; I didn't.

Mr. GRIFFIN. Did you have occasion to return to the police station that day, Saturday?

Mr. BEERS. No, sir; I did not.

Mr. GRIFFIN. Where did you spend the remainder of Saturday?

Mr. BEERS. I think, I can't remember exactly where I spent the remainder of Saturday, but I think just on general assignments out of the paper there. On Saturday afternoon it is usually rather quiet, and I possibly, I may have had one or more assignments, but I don't think so.

Mr. GRIFFIN. Now, before you left work on Saturday, did you have any instructions as to what you were to do the next day, Sunday?

Mr. BEERS. No; I did not. It was approximately midnight anyway when I left work Saturday night. I had no instructions. And at midnight, I was called to the telephone and told to report to the basement of the city hall Sunday morning at 10 a.m., to photograph the transfer of Lee Harvey Oswald from the city jail to the Dallas County Jail.

Mr. GRIFFIN. What time did you actually arrive there?

Mr. BEERS. I arrived at the city hall just about 9 o'clock.

Mr. GRIFFIN. Where did you go when you came in?

Mr. BEERS. I went to the basement of the city hall, and then on through the basement out into the police parking area in the basement of the city

hall.

Mr. GRIFFIN. Did you station yourself some place in the parking area?

Mr. BEERS. Yes; I did. I went into the parking area and was in general conversation with various and sundry members of the press who were there for a short while, and I discovered that there was an area along a railing which is on the east side of the driveway that goes through the basement of the city hall, next to some television cameras that would permit one cameraman to be in this area without obstructing the view of the television cameras, so I went to this railing and I stayed there, sitting on this railing until the transfer had started.

When I stood up on the railing and made photographs as Mr. Oswald was being transferred, which included the pictures of Mr. Ruby shooting Mr. Oswald.

Then I remained standing on the railing and shot three or four or so further negatives of the scuffle that was going on.

Mr. GRIFFIN. I am going to hand you—I will turn this around—I am going to hand you what is a diagram of the basement area in the municipal building. I have marked this diagram “Dallas, Texas, April 14, 1964, Ira J. Beers’ Exhibit 5352.”

Let me try to explain it a little bit to you. Here is Commerce Street along the right-hand side, and Main Street along the left-hand side, and near the bottom of the page, is a ramp which says, “down ramp leading from Main Street into the basement area,” and following on up towards Commerce Street you see something marked, “up ramp.”

In this area here is the parking area of the garage. Here is the Police Department Building. Here is the jail office. This is the hallway that comes out from the public elevators near Harwood Street so that if you enter from Harwood you come down to this area, and you go up in the elevators here and walk through this hallway through some double doors, and you would be in the ramp area at the bottom of the basement floor.

Now can you, taking your pen, at the time you took your position on the railing, would you show us where the TV cameras were placed? Can you mark that in rectangles of some sort?

Mr. BEERS. [Marking on map.] These were live TV cameras that I have marked on the east side of the railing, and there was a sound on-film cameraman leaning against the railing right there [pointing].

Mr. GRIFFIN. Now this sound on-film camera, is this something that requires a tripod of some sort?

Mr. BEERS. It may or may not.

Mr. GRIFFIN. Do you recall if that one did?

Mr. BEERS. He had a monopod or a unapod, which is a single leg support for the camera.

Mr. GRIFFIN. Do you know who that man was?

Mr. BEERS. Mr. George Phenix with KRLD-TV.

Mr. GRIFFIN. Can you put a figure 1, at the spot on the railing where you stationed yourself first?

Mr. BEERS. Right here. Actually on the railing [marking.]

Mr. GRIFFIN. You have crossed out one mark and you made a big circle which you blacked in, on the railing.

Mr. BEERS. May I draw an arrow to point where I was standing?

Mr. GRIFFIN. Okay.

Mr. BEERS. So it will be much clearer.

Mr. GRIFFIN. What time would you estimate it was when you stationed yourself at point 1?

Mr. BEERS. Probably 9:15 or 9:20.

Mr. GRIFFIN. How long did you remain at that position?

Mr. BEERS. According to the time which we received, and which Mr. Ruby shot Mr. Oswald, which would be somewhere around 11:21, or thereabouts, I probably remained there until about 11:25.

Mr. GRIFFIN. So you remained there right at that spot right up until the shooting?

Mr. BEERS. And through the shooting and for a few moments thereafter.

Mr. GRIFFIN. I see.

Mr. BEERS. A few minutes thereafter.

Mr. GRIFFIN. Do you recall an automobile moving out of the ramp? I mean out of the garage area and going up the Main Street ramp shortly before Mr. Oswald was shot?

Mr. BEERS. Yes; there was an armored car parked in the driveway near the top of the Commerce Street entrance, and there was a black squad car, I believe I am correct, that backed up the ramp to Main Street in the direction of Main Street. I didn't look right up there and see what he did. He never came back down the ramp.

Mr. GRIFFIN. This is a car that you recall driving onto Main Street?

Mr. BEERS. It backed up onto Main Street, sir.

Mr. GRIFFIN. I see.

Mr. BEERS. It backed from the basement and backed up Main Street toward what would be the entrance way to the ramp.

Mr. GRIFFIN. Before that car was moved, was backed up onto the Main Street ramp, do you recall any car driving in a forward direction up the Main Street ramp?

Mr. BEERS. No; I don't.

Mr. GRIFFIN. Do you recall how much traffic there was in and out of the basement while you were stationed there?

Mr. BEERS. There was several police cars that came into the basement and out, and if I remember correctly, after this armored car was stationed there. I don't recall that there were any other squad cars that came into the basement.

The reason I recall them was because they were stopping there just about right where I was standing and looking into the back seats and so forth.

Mr. GRIFFIN. Do you recall a TV camera being wheeled into the basement shortly before Jack Ruby shot Oswald?

Mr. BEERS. No, sir; I don't. A big live camera?

Mr. GRIFFIN. Yes.

Mr. BEERS. I don't recall seeing that. I may have, but I don't recall seeing it.

Mr. GRIFFIN. Now at the time that Oswald was brought out, do you recall how people were, newspeople and policemen, were stationed in the basement? Do you recall roughly how they were spread out?

Mr. BEERS. Roughly, they were asked to get into somewhat of an L-shaped position here, which would be that the news people would be across the driveway like so, and this area here in front of the cameras was more or less open.

There was some people moving back over here in this area just a little bit, and then from approximately right in front of myself to up this ramp, towards the Commerce Street exit was roughly the position that the, this was the position people were asked to get into, that they assumed that, roughly.

Mr. GRIFFIN. Now, do you have any recollection if the people were more densely stationed along the Main Street ramp than along the area in front of the entrance to the garage, or vice versa, or were they more densely stationed in front of the garage than elsewhere?

Mr. BEERS. They were probably a little more concentrated right across the ramp.

Mr. GRIFFIN. Main Street ramp?

Mr. BEERS. Not here. They were fairly well strung out this way [pointing]. I couldn't see too far up this ramp here without leaning out and around and looking up this post, but from my observation, they were fairly well strung out up toward the Commerce Street exit there for a number of feet or yards.

Mr. GRIFFIN. Do you recall how many persons deep the people were that were strung across the Main Street ramp?

Mr. BEERS. I am sure that would vary from two to maybe five.

Mr. GRIFFIN. Well, could there have been as few as 15 people strung across the Main Street ramp?

Mr. BEERS. There was probably more—actually, they came around this corner just a little bit and almost up to this door.

Mr. GRIFFIN. You are pointing towards the entrance of the jail office?

Mr. BEERS. The entrance to the jail office; yes. There were actually a few at the corner there, and strung out across there, and I didn't particularly look over in that area because I was concentrating most of my attention towards the jail office door, because we didn't know exactly what time they would be coming out, and we didn't know what, if any, advance warning we would have, so I didn't dare look around too much. I had already seen everybody I wanted to see, I think.

Mr. GRIFFIN. Did you ever have occasion to look up the Main Street ramp?

Mr. BEERS. I did look up there earlier.

Mr. GRIFFIN. From where you were in the basement, was it possible to see anybody up at the top of the Main Street ramp?

Mr. BEERS. There was a policeman standing up at the top of the ramp up there. Looked like he was out on the sidewalk.

Mr. GRIFFIN. Was the visibility such that his features were distinguishable?

Mr. BEERS. No; it was a silhouette.

Mr. GRIFFIN. Can you tell us what kind of advance warning you had that Oswald was coming down?

Mr. BEERS. I believe there were some of the news media in this hallway which I pointed out, that goes from the elevator to the Harwood Street side of the city hall, and the hallway goes past the jail office and goes into the police parking area.

I believe there were some members of the news media in the hall in front of the window of the jail office, and someone, I think, shouted, "Oh, here he comes."

Then there was just a lot of noise and the door opened and he came in.

Mr. GRIFFIN. You indicated in your interview with the Federal Bureau of Investigation that you felt sure that if you had seen Ruby in the basement you would have recognized him?

Mr. BEERS. Yes, sir; I know his face that well; yes, sir.

Mr. GRIFFIN. I take it from that, that the lighting conditions were such and the people were spread out thinly enough so that you were in a position from where you were to have seen the man?

Mr. BEERS. Television camera had a bank or two banks, I don't remember which, of light, and the lighting was adequate in there.

However, there was a considerable number of people and quite an amount of confusion.

It is possible he could have been in there and I had not seen him, but had I seen him, there was enough light for me to have recognized him.

Mr. GRIFFIN. Were you taking any pictures before it became apparent Oswald was being brought down?

Mr. BEERS. I think I made up earlier, looked up towards the Commerce Street entrance that showed either one or two policemen in silhouette at the top of that ramp there.

I believe I made one negative, and I believe that it was one or two policemen up there. There was at least an officer there.

Mr. GRIFFIN. Now you indicated earlier that you had first met Jack Ruby 18 months before in connection with some freelance work that you were doing. Can you tell us what that was?

Mr. BEERS. Mr. Bayse, Dale Bayse was doing a story, speculating as to being able to sell this story, and needed some photographers to illustrate it.

His information to me was that Mr. Ruby had a stripper school, and that he would like to have some pictures of these, of this school, and these people involved in the school, the supposed instructors and the supposed students, to illustrate this article with.

Mr. GRIFFIN. Did Mr. Bayse ever sell the story?

Mr. BEERS. I believe that story he showed me a copy of Adam Magazine. I believe that was probably December 1962.

Mr. GRIFFIN. How much time did you spend at Jack Ruby's place of business taking photographs?

Mr. BEERS. That particular day, which was the only time I was there in his place, I spent from approximately 11 o'clock until must have been around 7. It was dark when I went outside.

Mr. GRIFFIN. Did you visit only the Carousel Club? Or also the Vegas Club?

Mr. BEERS. Just the Carousel Club; yes, sir.

Mr. GRIFFIN. Do you still have any of the photographs?

Mr. BEERS. Yes, sir; I do. I supplied the FBI with one or two sets of those photographs, and I do have some still available.

I would like to inject here that I was introduced to Mr. Ruby on this particular day, which was my first meeting with him, and—but throughout the day I had little or no conversation with him.

He was negotiating with Mr. Bayse.

Mr. GRIFFIN. Was he actually running the school for strippers or was this a promotion idea?

Mr. BEERS. Mr. Griffin, this is an opinion. I don't think Mr. Ruby actually ran a stripper school.

As I worked throughout the day, it seemed fairly apparent to me that there was no school in operation there, I don't think. That is strictly an opinion.

Mr. Ruby did run an amateur night, and from what information I think I absorbed there, it appeared that these girls must have, part of them practiced in some of his amateur and semiregularly at his place, and it didn't appear to be a school.

Mr. GRIFFIN. Was he running an amateur night at the time you were taking these photographs?

Mr. BEERS. I was not familiar with the club prior to that.



Mr. GRIFFIN. But at the time you took these photographs, did you have the understanding that he had run an amateur night?

Mr. BEERS. I got that impression; yes, sir, that he had some amateur nights there.

Mr. GRIFFIN. During the period of November 22, 23, and 24, were you aware of newspaper people who were operating in the Dallas area on the freelance basis?

Mr. BEERS. You say was I aware that there were some operating on a freelance basis?

Mr. GRIFFIN. Yes; were you aware of any such people?

Mr. BEERS. Not particularly.

I ran into one photographer who was a local man, who I understand was freelancing and had received an assignment from Paris Match, a French magazine, and to the best of my knowledge, I don't recall—I am sure there were some here, but I don't recall meeting any that I absolutely knew were on a freelance basis.

Mr. GRIFFIN. What I am interested in finding out is if there is any practice that a freelance person follows in hooking up with a network, or somebody who can pay him, whether he makes a commitment in advance to work, or whether he is just down there for shooting pictures or trying to gather information and selling it as he gets it?

Are you familiar enough with what the practice generally is for freelance people in a situation, developing news situations such as we had in this period, to be able to state how a freelance photographer or newspapermen would operate?

Mr. BEERS. In instances such as occurred there, as the assassination of the President, there are some photographers in Dallas who operate on a freelance basis, and also some of them, the same people possibly operate on a stringer basis. This is someone who is known in the area by a news agency or a particular magazine or newspaper, and if something occurred in that area, the people by whom he is known, could possibly contact him and tell him to cover this story, either by himself, or until some of their people could arrive on the scene.

I am sure there were some such people operating there. I don't know just exactly who it might be.

Mr. GRIFFIN. I will ask you one final question. Has anything come to your attention having to do with either Jack Ruby or with the assassination of President Kennedy, or anything else that you might think would be of importance to the Commission that you think you should make available to us?

I do want to encourage you in this respect because I don't know that I have covered everything that you might have.

Mr. BEERS. I have tried to insert what I thought, what little information or comments I might have to make. I can't recall that I have learned anything additional since this happened that is not common knowledge to everyone.

Mr. GRIFFIN. I see.

Now, let me also ask you, for the record, whether prior to commencing this deposition you have talked with anybody from the Commission?

I am not talking about the FBI agents, but any staff member of the Commission other than myself?

Mr. BEERS. No; I have had no contact with anyone from the Warren Commission except over the telephone when I was notified and they verified my address so they could mail me a notice to appear here.

I might go back and add, as far as my acquaintance with Jack Ruby is concerned, I met him that particular day, and I have seen him in the halls of the Dallas News in that 18-month period four times probably.

And I think Jack recalled that my first name was Jack, but not until I testified in his change of venue hearing.

I think that he aware that I was Jack Beers.

Mr. GRIFFIN. Were you a prosecution witness or defense witness?

Mr. BEERS. Defense.

Mr. GRIFFIN. I take it that you were called to testify as to the climate in Dallas, whether Jack could get a fair trial in Dallas or not?

Mr. BEERS. More or less; yes, sir.

It was concerned with the change of venue hearing in Judge Brown's court there.

Mr. GRIFFIN. I might add also that I did not interview you prior to taking this deposition?

Mr. BEERS. No, sir.

I have never met you before in my life.

Mr. GRIFFIN. If there is anything else that you think we haven't covered here that comes to your mind after this deposition is concluded, we would appreciate it if you would let us know. And if it is something of importance, we might want to talk to you again.

But I certainly want to thank you for coming here and taking your time. I realize you people are all busy, and it is an imposition to take you away from your work, and we certainly are very grateful that you are willing to take out this time and appear before us and give us this information.

Mr. BEERS. Thank you, Mr. Griffin, you are very welcome.

Mr. GRIFFIN. It is a pleasure to have met you.

Mr. BEERS. I wish I could help you a lot more.

Mr. GRIFFIN. This is rather a methodical process we have to go through talking to people, but you are all finished.

Mr. BEERS. Thank you very much.

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# **TESTIMONY OF ROBERT LEONARD HANKAL**

The testimony of Robert Leonard Hankal was taken at 10:25 a.m., on April 17, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Robert Leonard Hankal.

Mr. Hankal, my name is Leon Hubert. I'm a member of the advisory staff of the general counsel of the President's Commission created under the provisions of Executive Order 11130, dated November 29, 1963, and the Joint Resolution of Congress No. 137, and rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution and I have been authorized to take a sworn deposition from you.

I state to you now Mr. Hankal that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Hankal, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry.

Mr. HANKAL. Yes, sir.

Mr. HUBERT. Mr. Hankal, you are appearing here today as a result of a letter received by you, signed by Mr. J. Lee Rankin, the general counsel for the President's Commission; is that correct?

Mr. HANKAL. That is correct.

Mr. HUBERT. Is it correct that you received that letter more than 3 days from this date?

Mr. HANKAL. That's right.

Mr. HUBERT. Will you stand and raise your right hand and be sworn? Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. HANKAL. I do.

Mr. HUBERT. Will you state your name?

Mr. HANKAL. Robert Leonard Hankal.

Mr. HUBERT. Your age?

Mr. HANKAL. Thirty-two.

Mr. HUBERT. Your residence?

Mr. HANKAL. 3305 McKinney (No. 1).

Mr. HUBERT. And your occupation?

Mr. HANKAL. I am a director of KRLD Television.

Mr. HUBERT. How long have you been so employed?

Mr. HANKAL. I have been at KRLD for around 2 years. I have been a director since January.

Mr. HUBERT. Were you on duty in connection with your occupation at the city hall on November 23, 1963?

Mr. HANKAL. I was.

Mr. HUBERT. And I think you were there also on the 24th of November?

Mr. HANKAL. That's right.

Mr. HUBERT. Now, I have handed you a report of an interview of you by special agents of the FBI Quigley and Dallman, dated December 3, 1963, which I have marked in the right hand margin—endorsed as follows: "Dallas, Tex., April 17, 1964, Exhibit 5337, Deposition of R. L. Hankal." I have signed my name below that and on the second and third pages I have placed my initials in the lower right-hand corner.

Mr. Hankal have you had an opportunity to read this Exhibit 5337?

Mr. HANKAL. I have.

Mr. HUBERT. That would be just a moment ago; is that correct?

Mr. HANKAL. That's right.

Mr. HUBERT. Do you think that this Exhibit 5337 is a fair and correct record of the interview had between you and the FBI agents?

Mr. HANKAL. It is with one exception, if I can make a note of that?

Mr. HUBERT. Yes.

Mr. HANKAL. I did see Jack Ruby shoot him—I didn't know what was happening.

Mr. HUBERT. Now, what sentence are you talking about?

Mr. HANKAL. This one—"The first reaction was that Oswald had grabbed a police officer's gun. He also recalls seeing a man's back directly in front of him obstructing his view of Oswald, and seemed to recall that immediately preceding that he had observed a blur of movement out of the corner of his eye,"—we didn't go into it at the time—they were interested in my activity more than anything else, when this interview was held.

Mr. HUBERT. Let me go into this and get it identified here in the record—you are speaking of this sentence—this is the sentence in the second paragraph on page 2 and the sentence reads as follows: "The first reaction was that Oswald had grabbed the police officer's gun. He also recalled seeing a man's back directly in front of him obstructing his view of Oswald, and seemed to recall that immediately preceding that he had observed a blur of movement out of the corner of his eye."

Mr. HANKAL. This is all correct, but it should be added also—I did see—I know that man I later found out was Jack Ruby shoot Oswald.

Mr. HUBERT. In other words, you saw more than a blur—that's what you have in mind?

Mr. HANKAL. Yes; I saw——

Mr. HUBERT. You saw a blur first?

Mr. HANKAL. And then the action.

Mr. HUBERT. And then your attention was directed to the action by the blur?

Mr. HANKAL. Right.

Mr. HUBERT. So, actually, you saw a man coming?

Mr. HANKAL. Yes.

Mr. HUBERT. Where was he coming from?

Mr. HANKAL. To my right.

Mr. HUBERT. How far away was he?

Mr. HANKAL. I believe since I made that statement it has been paced off and set at about 9 feet.

Mr. HUBERT. Now, in order that we may have a graphic record of the matter, I am showing you a chart of the basement area, and you are now sitting before the FBI mockup of substantially the same area except that it doesn't cover all the parking area.

I have marked that chart as follows: "Dallas, Tex., April 17, 1964, Exhibit 5338, Deposition of R. L. Hankal," and I have signed my name on it.

Now, before we go into positions to be marked on that map, may I ask you how long you had been in the basement area prior to the shooting?

Mr. HANKAL. Somewhere around 2 or 3 hours and the night before.

Mr. HUBERT. Had you ever seen Ruby around at any time?

Mr. HANKAL. Not that I recall.

Mr. HUBERT. Did you know him?

Mr. HANKAL. No; I didn't.

Mr. HUBERT. And when you testified a moment ago that you saw the man Ruby shoot Oswald, is it correct to state that you did not at that time know that the man doing the shooting was Jack Ruby?

Mr. HANKAL. That's correct.

Mr. HUBERT. Well, now, you did assume a position in the basement for some time prior to the actual shooting and it was a rather static position, wasn't it?

Mr. HANKAL. The evening before we were positioned directly across from the jail office door. The next day when we came to work, we moved our camera across the ramp down into the parking area.

Mr. HUBERT. Back of the rail?

Mr. HANKAL. Back of the rail—we were shooting between the rails.

Mr. HUBERT. Where were you, in fact, standing at the moment of the shooting? I ask you to place the spot first on the mockup and I give you the chart to mark a point at which you were standing after you fixed the point on the mockup.

Mr. HANKAL. My camera was here just to the left of this center pole and shooting between the rails—we have a long vertical zoom lens and it stuck out between the rails—I was standing outside of the rail of the ramp to the left of the lens.

Mr. HUBERT. Would you mark on this chart where you were standing?

Mr. HANKAL. I was standing here [indicating and marking on the chart referred to].

Mr. HUBERT. Now, you have marked a place "X". Now, put it in a circle, and I am drawing a line and writing the following "position of Hankal at time of shooting" is that correct?

Mr. HANKAL. That's correct.

Mr. HUBERT. The camera was to your rear and left, is that right?

Mr. HANKAL. To my right.

Mr. HUBERT. To your right or to your left?

Mr. HANKAL. To my right.

Mr. HUBERT. So that the camera would have been approximately like this?

Mr. HANKAL. That's right.



Mr. HUBERT. I am drawing a square in which I am marking an “A” and I am drawing a line out and writing “position of live camera”—it was a live camera?

Mr. HANKAL. Yes, sir.

Mr. HUBERT. What is the station?

Mr. HANKAL. KRLD.

Mr. HUBERT. “KRLD”.

It was there at all pertinent times—right?

Mr. HANKAL. We moved and shot up here after the shots were fired.

Mr. HUBERT. But before the shots were fired, that’s where you were?

Mr. HANKAL. That’s right—before the shots were fired that’s where we were.

Mr. HUBERT. Then, at all pertinent times prior to the shooting you were there?

Mr. HANKAL. Right.

Mr. HUBERT. The camera itself was back of the rail into the parking area—you were in front of the rail on the ramp?

Mr. HANKAL. On the ramp in front of the rail—right.

Mr. HUBERT. Do you know Jim Turner?

Mr. HANKAL. No; I don’t.

Mr. HUBERT. Do you know George Phenix?

Mr. HANKAL. Yes.

Mr. HUBERT. Was he there too?

Mr. HANKAL. Oh, yes.

Mr. HUBERT. What was the relative position between you and George?

Mr. HANKAL. George was to my right, I believe, he was still here.

Mr. HUBERT. Now, I am marking a position which you have designated on the mockup as being approximately where I am putting the letter “P” for

Phenix, is that about right?

Mr. HANKAL. That's as I last saw him before the shooting.

Mr. HUBERT. And I am drawing a line and writing "Phenix position according to Hankal," is that right?

Mr. HANKAL. Correct.

Mr. HUBERT. Do you know a man by the name of Huffaker?

Mr. HANKAL. I do.

Mr. HUBERT. Who is he?

Mr. HANKAL. He is a newsman at KRLD.

Mr. HUBERT. Where was he standing?

Mr. HANKAL. Well, the last time I saw Bob before the shooting, he was just outside and to the left of the jail office door.

Mr. HUBERT. How long before the shooting was that?

Mr. HANKAL. Perhaps 5 or 6 minutes before it.

Mr. HUBERT. You didn't see him at the time of the shooting?

Mr. HANKAL. No; I didn't. After the shooting he came to our camera for instructions.

Mr. HUBERT. When they brought Oswald down, was any announcement made of it at the moment?

Mr. HANKAL. Not outside of just a cry from a newsman that said, "He's coming." That's the only announcement I ever heard.

Mr. HUBERT. And then immediately thereafter the parties escorting him began to come through?

Mr. HANKAL. Appeared at the door and came through.

Mr. HUBERT. Can you tell us what was the reaction at the time Oswald actually appeared into view of the news people and the police and so forth?

Mr. HANKAL. Well, the physical things that happened was there was a stir—some of the movie cameras lights—they need more lights than the television cameras do, some of their lights came on, strobe lights came on

and cameras began to click. It was—at the moment not very noisy as it had been—a little, oh, a hush fell over us.

Mr. HUBERT. Isn't it a fact that prior to the shooting, immediately prior to the shooting there was a general surge forward?

Mr. HANKAL. Just prior to the shooting?

Mr. HUBERT. Yes.

Mr. HANKAL. Yes—I would say.

Mr. HUBERT. I mean that there was a general movement—a step or two forward by each person—that made a surge?

Mr. HANKAL. A moving forward, leaning forward, of all bodies.

Mr. HUBERT. And it was almost immediately thereafter or contemporaneously with it that Jack Ruby brushed through the crowd, is that correct?

Mr. HANKAL. Within the same action.

Mr. HUBERT. You had not seen him standing there before?

Mr. HANKAL. No; I hadn't.

Mr. HUBERT. You don't know how he got in?

Mr. HANKAL. I don't.

Mr. HUBERT. Were you present at the showup of Oswald which took place on the night of November 22 in the assembly room of the police department when the press and other news media representatives were allowed to see Oswald?

Mr. HANKAL. Yes.

Mr. HUBERT. Did you see Jack Ruby in that crowd?

Mr. HANKAL. No; I didn't.

Mr. HUBERT. Did you hear anyone say anything from the rear to Oswald?

Mr. HANKAL. Well, what do you mean?

Mr. HUBERT. Well, specifically——

Mr. HANKAL. There were a lot of questions, a lot of people were asking him questions; yes.

Mr. HUBERT. Were there any answers?

Mr. HANKAL. Yes; he answered some of them—yes—one of them was “I haven’t killed anyone,” was one of his answers, and I didn’t hear that question. I believe the question was, “Did you shoot the President?” But if you are asking me if I heard Jack Ruby say anything to Oswald, I did not.

Mr. HUBERT. Did you see anyone standing on a table toward the rear of the room?

Mr. HANKAL. I did not—well, there were people standing on tables in the back of the room; yes.

Mr. HUBERT. Did you observe them?

Mr. HANKAL. I did see that there were people on tables, but excuse me—I am anticipating your question.

Mr. HUBERT. Can you tell me whether you can say definitely one way or the other that among those people standing on tables was Jack Ruby?

Mr. HANKAL. No; I can’t tell you that I saw him to recognize him. I’m sure I saw him if he was up there, but wherever he was I must have seen him.

Mr. HUBERT. But your point, as I understand it, is that you did see some people standing?

Mr. HANKAL. Right.

Mr. HUBERT. On tables?

Mr. HANKAL. Yes, sir.

Mr. HUBERT. Whether any of those people was Jack Ruby you cannot say one way or the other?

Mr. HANKAL. That’s right, I didn’t know the man.

Mr. HUBERT. And after you got to know him, your recollection doesn’t place him at all?

Mr. HANKAL. It does not.

Mr. HUBERT. Now, have you been interviewed by any other member of the President's Commission prior to this?

Mr. HANKAL. No; I have not.

Mr. HUBERT. I believe that's all. Thank you very much.

Mr. HANKAL. Thank you.

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## **TESTIMONY OF ROBERT S. HUFFAKER, JR.**

The testimony of Robert S. Huffaker, Jr., was taken at 4:25 p.m., on April 16, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Huffaker, my name is Leon Hubert. I'm a member of the advisory staff of the general counsel of the President's Commission. Under the provisions of Executive Order 11130, dated November 29, 1963, and the Joint Resolution of Congress No. 137 and rules of procedure adopted by the Commission in conformance with that Executive order and joint resolution, I have been authorized to take a sworn statement from you.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Huffaker, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and about the activities of one Jack Ruby.

Mr. Huffaker, I think you have appeared here today as a result of a written request addressed to you by Mr. J. Lee Rankin, general counsel of the President's Commission; is that a fact?

Mr. HUFFAKER. Yes.

Mr. HUBERT. Did you receive that written notice more than 3 days from today?

Mr. HUFFAKER. Yes; I did.

Mr. HUBERT. Now, will you rise and be sworn?

Do you solemnly swear the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. HUFFAKER. I do.

Mr. HUBERT. Will you state your name, please?

Mr. HUFFAKER. Robert S. Huffaker, Jr.

Mr. HUBERT. How old are you, sir?

Mr. HUFFAKER. I am 27.

Mr. HUBERT. What is your residence?

Mr. HUFFAKER. My residence is 4700 Eastside Avenue.

Mr. HUBERT. Dallas?

Mr. HUFFAKER. Apartment 121, Dallas, and it has changed since these statements were made.

Mr. HUBERT. What is your occupation, sir?

Mr. HUFFAKER. Radio television newsman.

Mr. HUBERT. How long have you been so occupied?

Mr. HUFFAKER. Well, I have been in radio and television for, excluding a 6 months' term in the Army, for 7 years.

Mr. HUBERT. How long have you been with KRLD?

Mr. HUFFAKER. I have been with KRLD since May 1963.

Mr. HUBERT. Were you with another television or radio station prior to that time?

Mr. HUFFAKER. Yes; I was with KBTX-TV in Bryan.

Mr. HUBERT. Bryan, Tex.?

Mr. HUFFAKER. Yes.

Mr. HUBERT. And how long were you with them?

Mr. HUFFAKER. I was with them for about 2½ years.

Mr. HUBERT. Now, on November 24, 1963, were you on duty with your employer?

Mr. HUFFAKER. Yes, sir; I was.

Mr. HUBERT. Were you in the Dallas police basement?

Mr. HUFFAKER. Yes; I was.

Mr. HUBERT. Now, Mr. Huffaker, I have shown you two documents, the first being a report of an interview with you on November 28, 1963, by FBI Agents Hardin and Rawlings [spelling] R-a-w-l-i-n-g-s, which I have marked for identification as "Dallas, Tex., April 16, 1964, Exhibit 5331, Deposition of R. S. Huffaker," and I have signed my name on it.

Mr. HUFFAKER. Be sure that that's "Jr." because I've got a father with the same name.

Mr. HUBERT. All right, I shall add that, and I have signed my name, and since the document contains two pages, I have placed my initials on the right-hand bottom of the second page.

The other document is also a report of an interview of you by FBI Agents Pinkston [spelling] P-i-n-k-s-t-o-n, and Brown, on November 30, 1963, upon which I have endorsed the following, "Dallas, Tex., April 16, 1964, Exhibit 5332, deposition of R. S. Huffaker, Jr."

I have signed my name below that and on the second page I have placed my initials in the lower right-hand corner.

I now ask you if you have had an opportunity to read both of those exhibits, numbers 5331 and 5332?

Mr. HUFFAKER. Yes, sir; I have.

Mr. HUBERT. Can you tell us whether those two exhibits are correct reports of the interviews had with you by the FBI agents mentioned?

Mr. HUFFAKER. With a few very, very minor exceptions.

Mr. HUBERT. All right, will you take first the exhibit which has been identified as No. 5331 and state what corrections you wish to be made to that statement?



Mr. HUFFAKER. First of all, in the second line as it first appears and in its subsequent appearances the call letters of my station are incorrect. It should be—rather than KLRD—it should be KRLD.

Mr. HUBERT. And that's true throughout the document, if it appears as KLRD it should be KRLD?

Mr. HUFFAKER. Right—that's correct.

Mr. HUBERT. Have you any other changes or corrections to make?

Mr. HUFFAKER. Well, just to be exactly specific, the last sentence in the second paragraph.

Mr. HUBERT. Now, that sentence reads as follows: "He even noted they were checking police automobiles parked in the area." Now, addressing yourself to that sentence, what comment do you wish to make?

Mr. HUFFAKER. Well, it should be—it should have referred to the fact that I did note Sergeant Putnam check a police van which was driven down into the basement.

Mr. HUBERT. And that's the only vehicle that you saw them check?

Mr. HUFFAKER. That's the only one that I saw them check.

Mr. HUBERT. So, that you think that the quoted sentence is too broad in that it intimates you saw them checking several automobiles, whereas, in fact, you had reference there to only one, as you have identified it a moment ago?

Mr. HUFFAKER. That's correct, and to expand a little bit further toward this—I did note that they were checking all over the basement, and I'm sure that they were checking the vehicles down there, but I did not specifically note them doing so.

Mr. HUBERT. Well, perhaps it would be helpful to you if you would explain what you saw which prompts you now to say that they were checking all over the basement, what then were they doing, in fact?

Mr. HUFFAKER. Well, I saw Sergeant Putnam and Sergeant Dean and—oh, a fairly good sized number of uniformed officers who were walking around the basement area from one end to another and they were searching the basement.

Mr. HUBERT. How were they searching, what were they actually doing?

Mr. HUFFAKER. Well, they were just looking—I cannot say definitely that they were looking in cars, because I really didn't pay that close attention, but they were looking in various portions of the basement and I was well aware that they were searching the basement.

Mr. HUBERT. In other words, the impression of their activities you gained was that it was a search party?

Mr. HUFFAKER. Right.

Mr. HUBERT. All right, have you any other comments to make about Exhibit No. 5331?

Mr. HUFFAKER. Let me say just off the record—this sentence here is incorrect [indicating].

Mr. HUBERT. Well, let's stay on the record and let me read the sentence.

“His eyes were focused on Oswald as he approached the automobile which was to transport him to the county jail and when the shot rang out, he looked toward Oswald as the latter fell to the floor.”

What comment have you to make as to that quoted sentence?

Mr. HUFFAKER. My eyes were focused on the automobile which was to transport Oswald to the county jail as it was being backed into position. I had looked at Oswald when he first emerged from the door, but when the car began to back up, then I looked at it.

Mr. HUBERT. Now, when the car began to back up and you looked at it, in what direction did it cause you to look, to your left or to your right?

Mr. HUFFAKER. When I looked at the car?

Mr. HUBERT. Yes.

Mr. HUFFAKER. To my left.

Mr. HUBERT. All right, any other comments?

Mr. HUFFAKER. The remainder of the sentence is correct, because when the shot rang out, then I did look towards Oswald.

Mr. HUBERT. Are there any other corrections to be made as to Exhibit No. 5331?

Mr. HUFFAKER. No, sir; to the best of my knowledge the remainder of it is correct.

Mr. HUBERT. All right. Now, I ask you to look at the document which has been previously identified as Exhibit 5332, and state whether it is a true and correct copy—report on the interview had of you by Special Agents Pinkston and Brown on November 30, 1963?

Mr. HUFFAKER. The first sentence of the second paragraph could be slightly misleading.

Mr. HUBERT. Now, let's identify that sentence—it reads as follows——

Mr. HUFFAKER. I beg your pardon, it's the third paragraph.

Mr. HUBERT. All right, the quote is as follows:

“On the morning of November 24, 1963, he was assigned to get the story of the transfer of Lee Harvey Oswald from the Dallas City Jail to the Dallas County Jail, and went to the Dallas Police and Courts Building for this purpose.”

Do you wish to comment upon that sentence?

Mr. HUFFAKER. Yes; this was not the sole purpose of my being there. I was working at the time for KRLD, my regular employer, and also for CBS News and I was there to report, and the city hall was my assignment from the beginning of the morning of November 23.

Mr. HUBERT. By city hall, do you mean the building in which the Dallas police is housed?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. You are aware that there is another building called the Municipal Building which is a separate building?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. So, that when you say “city hall” you don't mean the Municipal Building, you mean the Dallas Police Department Building?

Mr. HUFFAKER. That's right, and from the morning of November 23, the assignment had been given to me to cover for KRLD and to help CBS cover anything that might happen there, and our interest on this particular day was not necessarily focused on the transfer of Lee Oswald.

Mr. HUBERT. All right.

Mr. HUFFAKER. Let's see—yes; this spelling of the name here of Bob—his last name is not correct.

Mr. HUBERT. That's in the fourth paragraph, the fourth line, and it is shown as Bob Hinkle [spelling] H-i-n-k-l-e. You say that that spelling is wrong?

Mr. HUFFAKER. That the spelling is incorrect.

Mr. HUBERT. What is the correct spelling?

Mr. HUFFAKER. It should be—this was the spelling I gave them, however, on that interview. I have since discovered that it is H-a-n-k-l-e or “e-l”—I'm still not certain.

Mr. HUBERT. I think that the man's name is actually [spelling] H-a-n-k-a-l.

Mr. HUFFAKER. You are right. [Spelling] H-a-n-a-k-a-l is right.

Now, I believe I did notice something in that other statement—I thought perhaps it was in this one.

Mr. HUBERT. Do you want to finish with this one first?

Mr. HUFFAKER. I guess I had better.

Mr. HUBERT. And by this one, we mean No. 5332?

Mr. HUFFAKER. Well, again, it says I “saw them searching the cars”—I saw them searching among the cars.

Mr. HUBERT. Then, I think we can say that Exhibit 5332, with the corrections that have been made is a fair and correct report of the interview of you on November 30, right?

Mr. HUFFAKER. Right, sir; with that change that I saw them searching among the cars, rather than searching the cars themselves.

Mr. HUBERT. All right; that has gone into the record. Now, you want to go back, I think, to Exhibit 5331?

Mr. HUFFAKER. Yes.

Mr. HUBERT. There is something more you wish to say about that one?

Mr. HUFFAKER. That's right.

Mr. HUBERT. Will you tell us what it is?

Mr. HUFFAKER. All right; it refers to this sentence——

Mr. HUBERT. All right; the sentence that the witness is referring to is in the third paragraph—it is the third sentence and it reads as follows:

“He had assumed a station directly in front of the doors leading from the elevator onto the ramp in the basement and had been trying to keep persons out of the line of the KLRD cameras in order that Oswald could be photographed as he left the doors leading from the elevators.”

Now, do you wish to comment about that sentence?

Mr. HUFFAKER. Yes, sir; there are two discrepancies in that one. I had assumed a station directly in front of the doors leading from the interior basement of the Dallas Police Headquarters into the basement parking area, rather than leading from the elevator onto the ramp. And, I had been attempting to keep persons out of the line of the KRLD camera, but this was not in order that Oswald could be photographed, but it was in order that the live camera—the—because this was not a film camera such as that that George Phenix was using, but a live camera—so that it would enable our live cameras to pick him up as he left the door leading from the jail office into the basement, rather than leading from the elevator.

Mr. HUBERT. All right, sir; other than the wording of that, and other than the corrections you have previously made as to Exhibit 5331, do you think it is a fair statement of the interview of you on November 28?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. Now, I have marked for the purpose of identification a chart of the basement which, as you can see on this FBI mockup before you is a chart of the same object except that the map covers some area not covered by the mockup, and for the purpose of identification, I have marked

it as "Dallas, Tex., April 16, 1964, Exhibit No. 5333, Deposition of R. S. Huffaker, Jr."

And I have signed my name below it. Now, I think your statements previously given and identified as Nos. 5331 and 5332 indicate that you had taken up a position approximately one-half an hour before the shooting actually occurred; is that correct?

Mr. HUFFAKER. Approximately; yes, sir.

Mr. HUBERT. Now, I would like you to fix that position by pointing to it on the mockup, and then I will mark it on the chart, and if you agree that it is correctly marked, you may say so, and thus we will have a permanent record of exactly what position you were in?

Mr. HUFFAKER. All right, sir; approximately this position [indicating on the mockup].

Mr. HUBERT. Now, you are fixing a position almost in the middle of the middle segment of the railing, which is divided into three segments, by two horizontal poles, which railing runs from one post on the Commerce Street side of the basement to another post on the Main Street side of the basement; is that correct, sir?

Mr. HUFFAKER. Yes.

Mr. HUBERT. Now, you will note that the chart does not show the vertical poles, but will you agree with me that the black part that I am marking (1) and the black part that I am marking (2), represent on the mockup itself the two main poles?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. Will you agree with me, too, that looking at the mockup, there is a railing which runs between those two posts marked (1) and (2) and that that railing is divided by horizontal poles, approximately equidistant from one another and from the two main posts?

Mr. HUFFAKER. Yes.

Mr. HUBERT. So that I'm going to mark, at a point which may not be mathematically correct, but is intended to be as a number (3), the position of one of the vertical rails of the railing and the other number (4) as the

other vertical rail. Now, as you pointed out the matter to me on the mockup, am I correct in saying that you were at this point?

Mr. HUFFAKER. Let me see—yes, sir; that’s correct.

Mr. HUBERT. I am marking the point with a number (5) in a circle, and I ask you if that is not approximately where you were standing at the time of the shooting and for a period of perhaps 15 to 20 minutes prior thereto?

Mr. HUFFAKER. Well, now, you have the (5) in contact with the railing almost, and I was farther away from the railing, however, its position relation to its distance between point (1) and (2) and point (3) and (4) is correct. However, it was a little farther from the railing.

Mr. HUBERT. How many inches or feet from the railing toward the jail office or jail corridor were you standing, in fact?

Mr. HUFFAKER. Well, to the best of my knowledge, I was probably about—approximately 4 feet from the rail.

Mr. HUBERT. Now, I have written in my own hand and connected it with a line to point (5) the following, “position of R. S. Huffaker, Jr., at the time of shooting, but he was 4 feet from railing.”

Mr. HUFFAKER. Approximately.

Mr. HUBERT. I will add the word “about”—is that correct?

Mr. HUFFAKER. Yes.

Mr. HUBERT. “About 4 feet from railing.”

Mr. HUFFAKER. Yes; that’s correct.

Mr. HUBERT. Now, were you there for about 15 or 20 minutes prior to the shooting?

Mr. HUFFAKER. Oh, I was there for at least a half an hour prior to the shooting. You mean in that stable position?

Mr. HUBERT. Yes.

Mr. HUFFAKER. No, sir; not in that very spot.

Mr. HUBERT. Well, how long were you in that very spot?

Mr. HUFFAKER. Let's see, I could not say for certain, but our video tape which is preserved and in existence will show me taking this position and will be the best evidence of exactly how long I was there.

Mr. HUBERT. Can you give us some idea of the number of people, either police or news media, standing to your right as you stood there?

Mr. HUFFAKER. To my right?

Mr. HUBERT. You were facing the corridor with your back to the parking area and your back to the railing, isn't that correct?

Mr. HUFFAKER. Well, actually, my back was more facing the Main Street ramp than it was to the parking area. My left side was facing the railing.

Mr. HUBERT. You were almost looking up the ramp that goes to Commerce Street?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. Could you tell us who was on your right or what was the condition of the crowd of people there, how many there were?

Mr. HUFFAKER. There was a large number of people and there were, I would say, at least 12 to 15 people lined up across the ramp and at the wall, which is just outside the jail office there.

Mr. HUBERT. Now, would you take my pen and draw the front line of those people, marking the beginning point as number (6) and the end of that line as (7)?

Mr. HUFFAKER [marking the document as requested]. Now, this line went—sometimes it went up into here [indicating] and I could not say for certain whether it was existent at that time, but there were people all the way up into here, but I would make a rough guess it would be this.

Mr. HUBERT. Will you indicate (6) and (7)—in other words, there were people lined up along the line that you have drawn as (6) and (7) at a single point on one end of that line, too, from what I gather from that?

Mr. HUFFAKER. Not exactly—that is, I'm not certain—there could have been some more between me and the rail.



Mr. HUBERT. Now, in the area back of that line and in the direction of Main Street, you say there were approximately 12 to 15 to 18 people?

Mr. HUFFAKER. No, not behind the line, but actually lined up somewhat in a line like that [indicating].

Mr. HUBERT. What about the number of people on the Main Street side of the line which you have designated as (6) to (7)?

Mr. HUFFAKER. I just don't know how many people were back there, but I know there was a line of people from this point to this point [indicating].

Mr. HUBERT. Did you see any officers on the opposite side from where you were standing?

Mr. HUFFAKER. Yes, sir; I did.

Mr. HUBERT. Will you mark another line, curving it if need be, and starting with (8) and going to (9) and showing us roughly the line of people who were standing where you indicated?

Mr. HUFFAKER. Now, this will be to the best of my recollection [drew the line as requested].

Mr. HUBERT. You have drawn a line, one end of which is (8) in a circle and the other end of which is (9) in a circle—there were people standing along there, you say?

Mr. HUFFAKER. Yes.

Mr. HUBERT. Do you know who they were?

Mr. HUFFAKER. Most of them were police officers. I don't know any of them by name, but I was aware that they were police officers. That is, I do not believe that I knew any of them by name.

Mr. HUBERT. Did you see Ruby come out of the crowd?

Mr. HUFFAKER. No, sir; I didn't.

Mr. HUBERT. Did you hear him?

Mr. HUFFAKER. No, sir.

Mr. HUBERT. When did you first observe that something had happened?

Mr. HUFFAKER. When I heard the shot, I recognized it as the sound of a .38, and just as soon as reflexes would do it, I turned and saw Oswald as he fell. I really could not distinguish Ruby from the mass of humanity that was there, but the thing that I saw when I turned around was Oswald falling.

Mr. HUBERT. What distance do you suppose there was between your body and Oswald's body at the time you saw this? You may look, for example, in this room and see. Stay where you are and let me stand away from you—was it this far or farther or closer or what? [Hubert walked distances as indicated by the question.]

Mr. HUFFAKER. Let me see—let me stand up—it was about this far.

Mr. HUBERT. What do you judge, “this distance” to be?

Mr. HUFFAKER. Well, I would say it is about 11 feet.

Mr. HUBERT. All right. Did you hear Ruby say anything?

Mr. HUFFAKER. No, sir; I did not.

Mr. HUBERT. Did you hear anyone else say anything which was distinguishable?

Mr. HUFFAKER. Not distinguishable—that is, not at the moment of the shot. Immediately before or after——

Mr. HUBERT. Did you hear anything at any time after?

Mr. HUFFAKER. Yes, sir; I did, which I could not quote it exactly, but the first thing that I distinguished, the first utterance that I could distinguish, and as I say, I do not recall the exact words, but I heard Police Officer Richard Swain who was—I don't know where he was before the shot was fired, but immediately afterward, he was standing a very short distance from me blocking access of anyone else, and he made—he shouted out for no one to come any further.

Mr. HUBERT. You don't remember the words?

Mr. HUFFAKER. The words, frankly, I think he said, “I'll knock you on your ass,” but I'm not certain exactly what the words were.

Mr. HUBERT. But in any case, in the sense you understood the officer, he was trying to keep anybody from converging there?

Mr. HUFFAKER. And how. Yes; he was.

Mr. HUBERT. There's one other thing I wanted to do by way of position. I'm going to roughly draw a rectangle which will not be in scale but I hope that it will fix the position of the television camera unit of KRLD which you were attached to.

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. In the first place, I understand it was on the other side of the rail from you?

Mr. HUFFAKER. That's correct.

Mr. HUBERT. I understand further that some of its mechanisms, its camera mechanisms were actually sticking out over the rail?

Mr. HUFFAKER. I think actually it protruded through the rail, rather than over the rail, but I really can't say for certain—I think it was through the rail.

Mr. HUBERT. As I understand it, it was to your back and left more or less?

Mr. HUFFAKER. That's correct.

Mr. HUBERT. So that although it is not intended to be accurate, but just to give a general idea of the position of the KRLD camera, I am marking a rectangle in which I am placing a capital A and would you agree that that figure shows, generally speaking, the position of the camera of KRLD?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. In order to make the map self explanatory to some extent, I am writing on it as follows: "Approximate position of KRLD camera."

Mr. HUFFAKER. Well, it might be well to distinguish this camera as the live television camera from the film camera.

Mr. HUBERT. Well, I will put in parentheses "live," is that correct?

Mr. HUFFAKER. Yes, sir.

Mr. HUBERT. Do you think that it is correct to state that anyone who would read your two statements, Exhibits 5331 and 5332 and who would

also read the transcript of the deposition and have available at the time they are reading that, this chart, would have as accurate a story of the facts as you know them as is possible?

Mr. HUFFAKER. Yes, sir; and of course my story could be—sometimes could be fixed by looking at our video tape, and by the way, I am sorry—I was going to look at it before today.

Mr. HUBERT. We have done that.

Mr. HUFFAKER. I'm sure you have, but anyway I was going to look at it to refresh my memory. I didn't ever get a chance to.

Mr. HUBERT. Have you been interviewed by any member of the Commission's staff prior to today?

Mr. HUFFAKER. No; by no member of the Commission's staff.

Mr. HUBERT. Now, you and I spoke a little bit prior to the commencement of this deposition, but do you perceive that we spoke about anything which has not been subsequently brought up and discussed in this deposition?

Mr. HUFFAKER. No; that's correct. We did not discuss anything that has not been brought up in it.

Mr. HUBERT. Thank you very much.

Mr. HUFFAKER. Thank you.

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## **TESTIMONY OF GEORGE R. PHENIX**

The testimony of George R. Phenix was taken at 3:40 p.m., on April 16, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Phenix, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission on the Assassination of President Kennedy. Under the provisions of Executive Order 11130, dated November 29, 1963, and the Joint Resolution of the Congress, No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, I have been authorized to take a sworn deposition from you.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mr. Phenix, the nature of the inquiry today is to determine all the facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry and the activities of Jack Ruby.

Mr. Phenix, I think you appeared here as a result of a written request addressed to you by Mr. J. Lee Rankin, who is the General Counsel of the President's Commission.

Mr. PHENIX. Yes.

Mr. HUBERT. And I ask you now, you received that written request more than 3 days ago?

Mr. PHENIX. Yes.

Mr. HUBERT. Will you rise and be sworn? Do you solemnly swear the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. PHENIX. I do.

Mr. HUBERT. Will you please state your name?

Mr. PHENIX. George R. Phenix.

Mr. HUBERT. And your age?

Mr. PHENIX. Twenty-five.

Mr. HUBERT. Where do you live?

Mr. PHENIX. 2550 Klondike.

Mr. HUBERT. What is your occupation?

Mr. PHENIX. I am a reporter—cameraman.

Mr. HUBERT. What station?

Mr. PHENIX. KRLD.

Mr. HUBERT. That's a Dallas station?

Mr. PHENIX. Right.

Mr. HUBERT. How long have you been so employed?

Mr. PHENIX. Since the middle of October.

Mr. HUBERT. What was your occupation prior to that time?

Mr. PHENIX. Reporter for the magazine Texas Municipal League, an organization of Texas towns and city of the magazine—Austin.

Mr. HUBERT. Are you a college graduate?

Mr. PHENIX. No; doggone it—no. I lack three courses. I have been in college for a long time.

Mr. HUBERT. Where did you study?

Mr. PHENIX. Texas Tech and Texas University—journalism and advertising.

Mr. HUBERT. Were you on duty with KRLD on November 24, 1963?

Mr. PHENIX. Yes, sir.

Mr. HUBERT. What function were you performing on that day with reference to your occupation?

Mr. PHENIX. My assignment was to cover Oswald as they brought him out from the police department, cover him, and just to get film on it.

Mr. HUBERT. In other words, you were to operate a film camera and you had nothing to do with the television part of it at all?

Mr. PHENIX. None at all.

Mr. HUBERT. Did KRLD have television machines down there?

Mr. PHENIX. Right—we had a live camera set up there.

Mr. HUBERT. But your operation was not in connection with that?

Mr. PHENIX. No—there are really two distinct operations—they are a production crew, the same crew that handles a TV show in the studio, and I don't even know how to operate their cameras.

Mr. HUBERT. What you were operating was a hand camera, is that correct?

Mr. PHENIX. Well, it's a little larger than a hand camera but generally it is operated on a battery pack.

Mr. HUBERT. Perhaps for the record you might, if you can, give the technical description of the camera you were using that day.

Mr. PHENIX. Well, it's an Auricon, 16 mm. sound camera and it is equipped with a 400-foot magazine, operated—a hand camera is normally hand wound—this is power driven by a battery, and it had a microphone and it was braced on a unipod, a single pole.

Mr. HUBERT. It is held by the hand and balanced that way?

Mr. PHENIX. By the hand when it is on a unipod. Normally it is usually either on a tripod or a shoulder harness and it weighs about 40 pounds I imagine.

Mr. HUBERT. Well, on the 24th of November how were you operating it—on a tripod?

Mr. PHENIX. On a unipod—on a unipod.

Mr. HUBERT. By that, I take it it is a single stick, is it not?

Mr. PHENIX. Right.

Mr. HUBERT. It is adjustable for distance from the ground?

Mr. PHENIX. Yes, sir—I believe there are three adjustments you can make.

Mr. HUBERT. It serves to steady the camera?

Mr. PHENIX. Right.

Mr. HUBERT. Now, Mr. Phenix, I have shown you two documents which I am now going to mark for identification as follows, to wit: The first one I am marking, “Dallas, Tex., April 16, 1964, as number 5328, Deposition of George R. Phenix,” and I am signing my name below that. That contains one page. It purports to be an interview of you on November 24, 1963, by FBI Agents Lee and Barrett [spelling] B-a-r-r-e-t-t.

I am marking the second document as follows:

“Dallas, Tex., April 16, 1964, as Exhibit 5329, Deposition of George R. Phenix,” and I am signing my name below that. That document also contains only one page and purports to be a report of an interview with FBI Agents Harding and Rawlings. Have you had an opportunity to read the exhibits, which have been identified as Exhibits 5328 and 5329?

Mr. PHENIX. Yes, sir.

Mr. HUBERT. Do you consider that those exhibits represent a true and fair report of the interviews which they purport to cover?

Mr. PHENIX. Yes, sir. Now, the second one updates the first one. The second one is more correct.

Mr. HUBERT. That is to say, the one dated November 28, 1963, identified as Exhibit No. 5329, goes into more detail than the one dated November 24, which has been identified as Exhibit 5328?



Mr. PHENIX. Yes.

Mr. HUBERT. Do you perceive any conflicts between them?

Mr. PHENIX. No—mainly—I don't know if you need this for your record or not. Mainly, there is just a correction in an impression I had. I was located around by the crew and in that first interview, I thought I would have been hit by Ruby since he was in front of me, as he stepped out of the crowd, but then we know—one says we know it wasn't Ruby—that's about it.

Mr. HUBERT. Now, could you more graphically show your position—I have asked you previously to study this FBI mockup of the jail office, showing also the Commerce and Main Street ramps, the ramp from the parking area into the street ramps, and I am going to ask you if you would show us, now, where you were when you first came into the area that this mockup shows, and I will explain the system that I will use.

If you will point to the place on the mockup, we will then agree as to what that point is on the chart and mark it so, and then if you change positions from one to another, we will so indicate, so that any person who reads your testimony with this chart before them can follow it intelligently.

Mr. PHENIX. All right.

Mr. HUBERT. Now, in order that the chart may be properly identified, I am marking it as follows: "Dallas, Tex., April 16, 1964, Exhibit No. 5330, Deposition of George R. Phenix." I will sign my name below that. Now, Mr. Phenix, at what time did you first come down into the basement and into this area?

Mr. PHENIX. It was a little after 9 o'clock, according to that statement, it said 9:10—it was closer to 9 o'clock.

Mr. HUBERT. You remained in the basement area the entire time until the actual shooting?

Mr. PHENIX. Right.

Mr. HUBERT. I guess it is correct to state you didn't stay in one particular spot all that time?

Mr. PHENIX. Oh, I unloaded the gear from the car in the area between the two stop signs at the level portion there where cars normally stop.

Mr. HUBERT. Will you point to that on here?

Mr. PHENIX. Right here [indicating].

Mr. HUBERT. I am marking on Exhibit 5330 the spot where Mr. Phenix has stated that he unloaded the gear with a number one in a circle there and drawing a line from that, and I am writing "Spot where Phenix first unloaded gear at about 9:10 a.m." What was that gear?

Mr. PHENIX. The camera, the unipod, a microphone, and battery pack.

Mr. HUBERT. You unloaded it from a truck?

Mr. PHENIX. The Mobile News Unit—it is a station wagon we normally drive.

Mr. HUBERT. Have I marked the spot correctly?

Mr. PHENIX. Right, and then from there I think I milled around a little bit and said, "Hello," to the newsmen I recognized from the day before on the third floor and all the available spots were taken over here at this corner which were really the best spots.

Mr. HUBERT. Now, when you say "over here at this corner," I am going to put the number 2 with a circle under it and draw a line out and indicate that you have stated that the place that I marked number 2 was the best spot, but already taken.

Mr. PHENIX. By most of the photographers there.

Mr. HUBERT. I am writing in the words "Phenix says this number 2 spot was already taken by other news media"—

Mr. PHENIX. Right.

Mr. HUBERT. "When he arrived." Is that a correct statement?

Mr. PHENIX. Yes.

Mr. HUBERT. All right, now you can go on?

Mr. PHENIX. Then, I picked a spot just inside this rail—I was standing on the curb—I was to the right of our live camera that was set up there.

Mr. HUBERT. Was that on the parking area side of the rail or the ramp side of the rail?

Mr. PHENIX. The ramp side—I was standing on the curb there, leaning against the rail, and the camera, part of the camera sticking out over the rail.

Mr. HUBERT. Now, this chart does not show the rail itself except by a marked line, but it does show two posts and I ask you if it isn't fair to state that what you are talking about is this position that I have here?

Mr. PHENIX. Yes, that's right, because I had a clear view down to the swinging doors.

Mr. HUBERT. Let's put it this way: I'm going to mark a line from two points, one point being number three and the other point number four—that line being the space between the two main posts.

Mr. PHENIX. Okay.

Mr. HUBERT. Looking at the mockup, there is a rail between those two main posts, and that rail is equally divided into three parts, by two vertical posters, is that correct?

Mr. PHENIX. Yes, sir.

Mr. HUBERT. If we call one of the vertical posters point number five and the other one point number six, then as I understand your testimony you were on the ramp side rather than the parking area side of the rail?

Mr. PHENIX. Correct.

Mr. HUBERT. And you were approximately at the point by the post marked on this chart as point number six?

Mr. PHENIX. Yes.

Mr. HUBERT. I am marking point number six as "position of Phenix at the time of shooting."

Mr. PHENIX. Right.

Mr. HUBERT. I think you have testified that immediately to your left there was a TV camera belonging to the same station as your own?

Mr. PHENIX. Yes, sir.

Mr. HUBERT. I'm going to mark without any attempt to do it in scale by a square which I am marking "Square A" and drawing a line out to indicate position of KRLD TV camera.

Mr. PHENIX. You might say live camera.

Mr. HUBERT. Live camera—and that camera was just to your left and a bit back of you, because it was on the other side of the rail, right?

Mr. PHENIX. Yes; the camera itself was behind me, the lens stuck out.

Mr. HUBERT. Over the rail?

Mr. PHENIX. Yes.

Mr. HUBERT. There was another live camera in that area too, wasn't there?

Mr. PHENIX. Right—it was to the left of ours.

Mr. HUBERT. So, again without attempting to draw this to scale, I will draw a rectangular figure, marking it "B" and state that that was the position of the other TV camera.

Mr. PHENIX. I am not sure whose that was.

Mr. HUBERT. It was another live camera, but not a KRLD?

Mr. PHENIX. Right.

Mr. HUBERT. In other words, your testimony is that as to the live camera which we have marked by rectangle with a "B" in the middle of that rectangle, you know it was a live camera and it was not a KRLD camera, but you don't know whose camera it was?

Mr. PHENIX. Right—this might be incidental—I either laid the camera down or had one of our production crew that was with the live camera hold it and I swung my mike over the overhead pipes in this area—it's really not important, but that's part of the milling around I was doing.

Mr. HUBERT. I gather what you wanted to do was to get your mike in a position to catch sound if it was possible to do so?

Mr. PHENIX. Yes; right.

Mr. HUBERT. So, from your position six on this Exhibit 5330, you slung, shall we say, or hung——

Mr. PHENIX. Hung.

Mr. HUBERT. Your wires with the live mike, the end of it, so that it would hang down, I suppose, just as you indicated—just roughly at the position we originally marked number 1?

Mr. PHENIX. Right.

Mr. HUBERT. Which is where you physically were?

Mr. PHENIX. Right.

Mr. HUBERT. So that now position No. 1 has two meanings—it is the position you first came to and the position where your mike was hanging.

Mr. PHENIX. Right.

Mr. HUBERT. Can you tell us something of the number of people to your right and in the ramp going towards Main Street?

Mr. PHENIX. It's a little hard to say—that camera that I was using was such that the eyepiece is on the left and I normally keep it in a ready position on my shoulder so it blocks my vision to the right, but there were maybe 10 or 15 people milling around there—some were news commentators and some were radio men with tape recorders——

Mr. HUBERT. Some policemen?

Mr. PHENIX. Some policemen.

Mr. HUBERT. Would you judge there were 18 to 20 people along in there?

Mr. PHENIX. It could be.

Mr. HUBERT. By the way, how long were you in that position No. 6 prior to the time of the shooting?

Mr. PHENIX. Probably at least an hour—I just didn't want to leave it, and we didn't know at what exact time he was coming down.

Mr. HUBERT. What about the condition of the people and the numbers thereof to your left from position No. 6?

Mr. PHENIX. Well, there were many more—as we got ready to bring Oswald out, policemen lined this wall here and formed a line coming out of the swinging doors, and then the newsmen were back at position two mainly.

Mr. HUBERT. Suppose we mark a line and we will call that line—let's say starting at No. 7 in a circle, and moving and turning towards Commerce Street to point 8, roughly.

Mr. PHENIX. Okay.

Mr. HUBERT. Now, that curving line, which is line 7 to 8 is where police were lined, is that correct?

Mr. PHENIX. Yes.

Mr. HUBERT. Were there police lined elsewhere?

Mr. PHENIX. I believe part of this line coming down the other side were policemen.

Mr. HUBERT. In other words, if we mark a line now, calling it one point of the line nine, and the other one——

Mr. PHENIX. It went straight down this way [indicating].

Mr. HUBERT. Straight into you?

Mr. PHENIX. Yes.

Mr. HUBERT. Which side of you?

Mr. PHENIX. To my right—a little bit.

Mr. HUBERT. Then, we mark a line from 9 to 10, with point 10 being immediately to the right of point 6 where you were standing?

Mr. PHENIX. Yes.

Mr. HUBERT. Then, you say there were policemen along in that line too?

Mr. PHENIX. Yes; police and press.

Mr. HUBERT. Now, take it from there.

Mr. PHENIX. Well, from there I waited until—I believe it was a United Press International movie photographer, Isidore, or something, everybody

called him Izzie—I don't know his last name, came running down from the swinging doors, I think he was the one, and said, "He's coming," meaning Oswald, so we all got ready, and the camera has an eyepiece——

Mr. HUBERT. Your camera?

Mr. PHENIX. Right; that operates through a prism that looks directly through the lens, so I had to have my eyes stuck against the eyepiece in order to see through it. So, from then on, all I saw was Oswald coming down the hallway there, and I didn't actually—I wasn't aware of seeing Ruby step out of the crowd—I knew something had happened and the shot—at the shot somebody came roaring in from my left and almost knocked me down. The unipod was braced on the curb and it slipped down to the main level of the ramp and almost fell, and looking through the eyepiece and over the eyepiece, too, just shooting out of habit really, the camera was running all the time—I followed the action of the policeman wrestling with Ruby—it just happened that they moved to my right.

Mr. HUBERT. Your film, as a matter of fact, is that famous film that catches Ruby moving forward and the wrestling?

Mr. PHENIX. Right; I just saw it once and we were so busy, but I think it was the one where Ruby's hat was in the corner of the opening frame and he steps out.

Mr. HUBERT. You have seen it since, haven't you?

Mr. PHENIX. Oh, yes.

Mr. HUBERT. Did you know Ruby?

Mr. PHENIX. No.

Mr. HUBERT. Had you observed him in the crowd prior to these events?

Mr. PHENIX. I can't remember it. I heard someone say in the crowd after they took Ruby and after Oswald left in the ambulance that it was Jack Ruby, and the name didn't mean a thing to me.

Mr. HUBERT. Did you hear anybody running down the ramp just before the shooting, running down or possibly walking down?

Mr. PHENIX. No, I think if he had been running I would have heard him because the sound just echoes in that basement.

I saw some film, and I'm sure you've seen it too, some of the film that showed Ruby positioned down there, and he looks back where you catch almost a full shot of his face before Oswald comes down, and that anyway—it just looks like he was there for a while.

Mr. HUBERT. Did you hear Ruby say anything?

Mr. PHENIX. No; maybe in the excitement I heard him, but I don't remember hearing this famous quotation about "Jack, you S. O. B."

Mr. HUBERT. You didn't hear anybody; hear anything, including Ruby—anything distinguishable that you now remember?

Mr. PHENIX. The only one I can remember is Bob Huffaker, who is the mike man for our live camera, saying over and over that "He's been shot," and he was calling him "Lee Harold Oswald." I don't know why—and then just in general—a few words.

Mr. HUBERT. You heard him saying, "He's been shot, he's been shot, he's been shot," a number of times?

Mr. PHENIX. Yes, and the policemen telling everybody to stand back.

Mr. HUBERT. What about the security precautions that were in existence, and would you comment about those as far as you observed them?

Mr. PHENIX. Well, as we drove in there were several officers down there, but nobody made any effort, you know, to talk to us as we drove in—we were in the car that had big KRLD letters on it and Wes Wise was known to some of them, but I wasn't; Wes was driving the car.

Mr. HUBERT. There was a guard there that seemed to look you over?

Mr. PHENIX. Now, I don't remember a guard on the Main Street side as we drove in.

Mr. HUBERT. Of course, that was at 9 o'clock?

Mr. PHENIX. Right, and later, I think there was a lieutenant from the Dallas Police Force just walking through the crowds, and I could tell he was looking me over, and stood there about 3 or 4 feet from me a little bit and never said anything.



Mr. HUBERT. Do you know any of the people from WBAP-TV in Fort Worth?

Mr. PHENIX. I know some of their camera men—the reporter-camera men—is that Channel 5?

Mr. HUBERT. I don't know. Do you know Tankersley, a Mr. Tankersley?

Mr. PHENIX. I think I know who he is.

Mr. HUBERT. Do you know Mr. Timmons?

Mr. PHENIX. No.

Mr. HUBERT. Do you know Jim Turner?

Mr. PHENIX. No.

Mr. HUBERT. Did you observe during the time you were standing at your position No. 6, a camera being loaded through the double doors or swinging doors at the jail corridor?

Mr. PHENIX. Yes; there was a live camera also—I don't know whose that was and I don't even know where the camera wound up—the final position.

Mr. HUBERT. Did you observe how many people were pushing it along?

Mr. PHENIX. I didn't really pay any attention to it.

Mr. HUBERT. You don't know even now whose camera it was?

Mr. PHENIX. It was either NBC or ABC—it was a local camera man but they were shooting for one of those two networks.

Mr. HUBERT. How long before the shooting was it that you saw this camera being rolled out from the jail corridor?

Mr. PHENIX. Not—it wasn't too long before the shooting—maybe 20 minutes. We were getting a little edgy from sitting there so long, so it's hard to estimate time, or, I was getting edgy.

Mr. HUBERT. Did you notice a police car come from the parking area up the ramp that goes from the parking area to the level of the basement area and turn right, pass you, and go on up the Main Street ramp?

Mr. PHENIX. You mean come out from here and go out this way?  
[Indicating on markup.]

Mr. HUBERT. Yes; that's right.

Mr. PHENIX. I can't remember, really. I may have and I may not—I just really can't remember. I know there was—I believe there was a paddy wagon that came through earlier. It seems like I remember a car, though, driving out.

Mr. HUBERT. Mr. Phenix, have you ever been interviewed before by any member of the Commission's Staff?

Mr. PHENIX. No.

Mr. HUBERT. And actually, you were not interviewed by me before this deposition began?

Mr. PHENIX. No.

Mr. HUBERT. Is it fair to state that anyone reading the two reports or statements that you have given, identified as Exhibits 5328 and 5329, and following your deposition today, with the chart that has been identified as Exhibit 5330, would have the whole story, as far as you know anything about it?

Mr. PHENIX. Yes; but I would like to say that I believe it is in Exhibit 5329 that I said that no other newsmen were asked for their identification.

Mr. HUBERT. All right.

Mr. PHENIX. Now, that's just as far as I know—I didn't actually see—I couldn't say that absolutely no one was asked.

Mr. HUBERT. All right—that's all right—you are telling me that is a possibility?

Mr. PHENIX. Right.

Mr. HUBERT. All you can say is what you observed?

Mr. PHENIX. Right.

Mr. HUBERT. And from your observation, you didn't see anybody else being asked?

Mr. PHENIX. Right.

Mr. HUBERT. Is there anything else you would like to say about this?

Mr. PHENIX. No; that's all.

Mr. HUBERT. Thank you very much. We appreciate your coming up here.

Mr. PHENIX. All right.

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## TESTIMONY OF JIMMY TURNER

The testimony of Jimmy Turner was taken at 9:45 a.m., on March 25, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. All right, this is the deposition of Mr. James Turner.

Mr. TURNER. Jimmy Turner.

Mr. HUBERT. Jimmy Turner. Fort Worth, Tex. Mr. Turner, my name is Leon D. Hubert, I am a member of the advisory staff of the General Counsel of the President's Commission on the Assassination of President Kennedy. Under the provisions of the President's Executive Order No. 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137 and rules of civil procedure adopted by the Commission in conference with the Executive order and the joint resolution, I have been authorized to take a sworn deposition from you, Mr. Turner.

I state to you that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and to the subsequent violent death of Lee Harvey Oswald. In particular to you, Mr. Turner, the nature of the inquiry today is to determine what perhaps you know about the death of Oswald and any other pertinent facts you may know about the general inquiry. Now, I think you have appeared here today as the result of the receipt of a letter from Mr. Rankin.

Mr. TURNER. That's right, sir.

Mr. HUBERT. When did you get that letter?

Mr. TURNER. It arrived last Monday, which was the 22d of March.

Mr. HUBERT. Now, under the rules of the Commission, you are entitled to a 3-day notice prior to the taking of this deposition. That probably dates from the day the letter was sent, which would be over 3 days, but just to be certain, the rules also provide that you can waive the 3 days on this if you want to. Are you willing to testify now, or do you want to wait until the 3 days have passed?

Mr. TURNER. Well, I might as well, now that I am here.

Mr. HUBERT. Well, you do waive the 3-day notice?

Mr. TURNER. I certainly do.

Mr. HUBERT. Then will you stand and raise your right hand and be sworn. Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. TURNER. I do.

Mr. HUBERT. Will you please state your name?

Mr. TURNER. Jimmy Turner.

Mr. HUBERT. The name "Jimmy," is your correct name? It is not "James"?

Mr. TURNER. That's right, sir.

Mr. HUBERT. Where do you reside?

Mr. TURNER. 3637 Norma Street in Fort Worth, Tex.

Mr. HUBERT. What is your age, please?

Mr. TURNER. I am 38, sir.

Mr. HUBERT. What is your employment?

Mr. TURNER. I am TV director at WBAP-TV at Fort Worth.

Mr. HUBERT. How long have you been so employed?

Mr. TURNER. Twelve and a half years.

Mr. HUBERT. Were you assigned to the visit of the President to Dallas, and to the subsequent events?

Mr. TURNER. I was assigned after the assassination to NBC. I arrived over here approximately 1:15 the day of the assassination, which was November 22, and I remained over here until—through the following Wednesday.

Mr. HUBERT. Now, did you have access during that period to the jail building on Harwood, between Commerce and Main Street?

Mr. TURNER. Yes, sir.

Mr. HUBERT. Was a particular sort of pass or identification given to you?

Mr. TURNER. No; it was not a pass given to us. No identification was ever required. The identification I used was a press card from a Sheraton Hotel, and I was never checked about the authenticity of it or anything.

Mr. HUBERT. But you were asked, in any case, to show that press pass that you have just described?

Mr. TURNER. Yes; we were. We were wearing it on our coat.

Mr. HUBERT. Would you describe that again?

Mr. TURNER. It was a press pass that the Sheraton Dallas Hotel had when they opened the new hotel here in Dallas. It had “Press” on it, the seal of the Sheraton Hotel and my name after it. It was very vague but the only thing we had at the time.

Mr. HUBERT. Were you ever accosted by anyone with respect to checking as to whether you——

Mr. TURNER. No, sir.

Mr. HUBERT. Were connected with news media?

Mr. TURNER. No, sir.

Mr. HUBERT. You felt that simply wearing this on your coat with the word, “Press,” was sufficient to get around as you wanted to?

Mr. TURNER. Correct.

Mr. HUBERT. Did you see them checking any other people?

Mr. TURNER. To my knowledge, up until the following morning after the shooting of Oswald, there was no checking of passes that we ran into. Now,

there was a checking after the shooting when we left the building, but I left the building with the pass, and came back in the building with the pass.

Mr. HUBERT. I am sure that during the 48 hours, approximately, between the President's death and the shooting of Oswald, that you must have had occasion to go in and out of that building a number of times.

Mr. TURNER. I used it at Parkland Hospital. I used it at the city hall also without being stopped, or asked what kind of pass it was.

Mr. HUBERT. Prior to November 24, did you know that man now known as Jack Ruby?

Mr. TURNER. No; I didn't, sir.

Mr. HUBERT. You had never seen him before?

Mr. TURNER. I had never seen him.

Mr. HUBERT. Had you ever heard of him?

Mr. TURNER. I had never heard of him.

Mr. HUBERT. Now, of course, since November 24, you have heard of Jack Ruby. You have seen his picture, I take it?

Mr. TURNER. Yes, sir.

Mr. HUBERT. Have you ever seen him in person?

Mr. TURNER. Yes, sir; I saw him at the trial. At various times when they took him in the courtroom, except the morning of the shooting I saw him.

Mr. HUBERT. You saw him then, too? What I wanted to get at was whether you ever saw the man now known as Jack Ruby, in the police building prior to the time that you saw him immediately before the shooting?

Mr. TURNER. To my knowledge, I had never seen him until then.

Mr. HUBERT. Did you have occasion to go to the assembly on the night of Friday, November 22, at which time Oswald was brought into the assembly room, or lineup room, I think it is in the police building, and as Oswald was shown, I think, by the district attorney to the various reporters who were assembled there?

Mr. TURNER. No, sir; we didn't arrive over until 1 a.m., Saturday morning prior to the shooting, so we did not have access to the lineup room that night.

Mr. HUBERT. Now, on the morning of the 24th, would you tell us what your activities were?

Mr. TURNER. Well, we—I am not sure on the exact time we arrived. I think it was around 7:30, from Fort Worth. We set up our cameras down in the basement. We had one on the third floor and one camera on the truck, on the outside exit way from the jail. The driveway on the Commerce Street side of the jail. We set our cameras up right across from the door in the hallway where they bring the prisoners out to transfer them, or Oswald out, which—and that little hallway is very narrow. Do you have a plan there?

Mr. HUBERT. Just a moment.

(Discussion off the record.)

Mr. HUBERT. I am marking a document as follows to wit: "Dallas, Tex., March 25, 1954. Exhibit 5080, Deposition of Jimmy Turner," and signing it with my name and asking Mr. Turner to sign his name below that. Now, Mr. Turner, using the chart which we have marked now as Exhibit 5080, would you, sir, tell us of your activities on the morning of November 24, using a sequence of numbers placed in a circle as to each stopping point, or object that you testify about.

Mr. TURNER. All right. Now, getting back, we had first placed the camera in "1", where I will mark "1" on this.

Mr. HUBERT. In the circle.

Mr. TURNER. In a circle. Now, this is a camera position. Can I make it a box? We'll keep the camera as a box and the circles as people.

Mr. HUBERT. That's correct, but in each case put a numeral.

Mr. TURNER. Numeral.

Mr. HUBERT. In the circle, or box, and use the numerals in sequence.

Mr. TURNER. "No. 1," would be our camera in our original position before Chief Curry came down and talked to us about not having it in that position. We had——



Mr. HUBERT. What time was that?

Mr. TURNER. Oh, it was approximately 9 to 10, that's all I can say. I have no recollection of the time. All right, and in position No. "1," we had stationed our camera. Chief Curry came out in a period of 9 to 10 and said, "Boys, you can't leave the camera there. It's going to be in the way when they bring him out the door. Now, I want all you boys to get a clean shot of it, so, I will get the cars moved out across the railing." So, we'll number the rail "2."

Mr. HUBERT. Yes. Put that in the circles, too.

Mr. TURNER. All right. No. "2" position here [indicating]. "We'll move the cars out from that location and you can set your cameras there, and I will assure you that you will have a clean shot of the whole thing," meaning that we would have a good angle on him coming out of the jail, and everything, so, we immediately rerun our camera cables across the driveway up above, hung them up in the air conditioning, which is position "3," across—can I keep this "3" all the way through?

Mr. HUBERT. Yes.

Mr. TURNER. And, sir, we ran our camera cables back along the route of No. "3."

Mr. HUBERT. Let me interrupt you for a moment. Prior to this move, your camera cables came down on the Harwood Street side of the ramp leading to the Commerce Street——

Mr. TURNER. Right.

Mr. HUBERT. Right?

Mr. TURNER. In other words—I do not recognize this line here [indicating], this line—this ramp—oh, this is the building. Oh, this is the building overhang. Now, I know what that is. This is the complete building that covers it.

Mr. HUBERT. Yes.

Mr. TURNER. All right.

Mr. HUBERT. Now, when you phoned that your cameras would have to be across the ramp, you ran into the problem of your cables?

Mr. TURNER. That's right.

Mr. HUBERT. And, as I understanding your testimony you solved the problem by placing your cables on the Harwood Street side of that ramp leading to the Commerce Street up until the point "3" that you marked, after you—after which you strung them over——

Mr. TURNER. It may have been back in here [indicating]. I don't think they came completely to this point.

Mr. HUBERT. In any case, you strung them over——

Mr. TURNER. Over the drive.

Mr. HUBERT. Over this drive so that automobiles passing wouldn't pass over the cables?

Mr. TURNER. That's right.

Mr. HUBERT. Then you dropped them down the opposite side from where they had been?

Mr. TURNER. No; we stayed up in the ceiling with them. That's right. We had to stay up in the ceiling because any cars running over the cables—running over them knocked them out.

Mr. HUBERT. So, you strung them along the roof and so forth?

Mr. TURNER. That's right.

Mr. HUBERT. All right, now, where did that camera ultimately come to rest?

Mr. TURNER. From position "1" here, which is marked "1" on this. We moved it to—from—I am now marking "4," in a box and that is our position that we moved it to from where we had our position at one time.

Mr. HUBERT. All right. Now, you were—that camera was left, and remained left——

Mr. TURNER. That's right, sir, it remained left. Slang [phonetic], the director, took it. We had two other cameras working.

Mr. HUBERT. Where were they?

Mr. TURNER. One was up on the third floor of the city jail, around the hallway elevator shaft, and another camera was on top of a remote truck which was parked on Commerce Street on top the remote truck, to pick up when they made the exit with Oswald. We were trying to think ahead.

Mr. HUBERT. You were told then that there would be an exit——

Mr. TURNER. No; they didn't—they didn't say where the exit would be. We never knew that. We were just guessing at that point.

Mr. HUBERT. All right.

Mr. TURNER. We were never told that they were coming out the Commerce Street entrance. We just assumed, since it was the entrance to the jail, he would come out that way, so, we positioned the camera on top of the remote truck to pick up if he did come out that way.

Mr. HUBERT. Why didn't you make your preparation for an exit from the Main Street ramp?

Mr. TURNER. We had only three cameras, and from all—the way that all the cars had been coming out of the jail, they had been coming out the Commerce Street exit. We hadn't given any idea that they would reverse and go out through the Main Street.

Mr. HUBERT. Is it normally that Main Street is the entrance and Commerce is the exit?

Mr. TURNER. That's right, so that gave us our idea that he would be brought out that way, and we would get a shot of him leaving.

Mr. HUBERT. All right. You might do this for us now using that numeral system. Place in boxes the other cameras, TV cameras of other radio stations, if you know where they were.

Mr. TURNER. All right. Then "5" will become a camera for CBS.

Mr. HUBERT. What local station?

Mr. TURNER. KRLD. And they were in position, too, along this rail with us. I think at first they were up here with us. This is very vague. They were hanging the camera up on the other side, which is position—well, I won't position that one.

Mr. HUBERT. But they ultimately had to move down where you were? They were on your right?

Mr. TURNER. They were on our right.

Mr. HUBERT. Were there any other cameras?

Mr. TURNER. There was only two live television cameras in the basement at that time.

Mr. HUBERT. All right. Now, go ahead.

Mr. TURNER. Approximately 10 minutes—very vague on time—when the activity had been completed on the third floor of the jail, we broke a No. “2” camera down, which I will number “6,” entering the door. It came down the elevator. It was completely on the tripod.

Mr. HUBERT. It came down over here? Not the jail elevator?

Mr. TURNER. Not the jail elevator, we never had access to that room, the jail office here. It came down, and as it was entering the two double doors I left my camera in position, which is box “4,” it came over the rails. Let me number this up too. “6” would be our camera coming from the third floor. I immediately left my camera position when I saw them entering, to help get the camera down, and relieve one of the boys which could—which he could go up and get the camera cables to connect his camera up to make it live.

Mr. HUBERT. Now, when that camera became—when that camera began to come through the swinging door in the jail corridor, how many men were pushing it?

Mr. TURNER. Two men.

Mr. HUBERT. Who were they?

Mr. TURNER. Dave Timmons and John Tankersley.

Mr. HUBERT. Did you have to go over and assist them?

Mr. TURNER. After they had come from the door, I ran off my—ran off from my position of “4,” to position “6,” after they came to the door, and helped them to move the camera to where we are putting——

Mr. HUBERT. Before you do that——

Mr. TURNER. Okay.

Mr. HUBERT. Where were you in relation to Tankersley and Timmons?

Mr. TURNER. You mean in pushing the camera?

Mr. HUBERT. Yes.

Mr. TURNER. I came, as you look toward the camera, I came up to the left side of it.

Mr. HUBERT. Who was in the middle? You were on one end?

Mr. TURNER. I'm not sure. I think Mr. Tankersley was.

Mr. HUBERT. And then Timmons?

Mr. TURNER. Timmons was on the other side. Usually the cameraman who is doing the camera work has hold of the center of the camera and whoever helps him will help on the side of the dolly.

Mr. HUBERT. So, you are the third man then on that camera?

Mr. TURNER. That's right.

Mr. HUBERT. All right. Now, go ahead.

Mr. TURNER. All right. We moved from position No. "6" here, which I have labeled "6", down to where I have now labeled "7".

Mr. HUBERT. You are making a box there?

Mr. TURNER. Box. Right. Box for "7".

Mr. HUBERT. Did that camera ever get into operation?

Mr. TURNER. No, it never did, sir; because by the time we got it to "7", they had completely blocked the doors. I think someone said that it was—they were bringing him down and that we couldn't leave it out there at that point or something. This is very vague.

Mr. HUBERT. But, in any case, the thing never got in operation?

Mr. TURNER. Never.

Mr. HUBERT. The second camera never got in operation?

Mr. TURNER. That's right. The second camera hadn't gotten into operation. I then—when I found out they couldn't go back I returned to my position, which is on box "4", and Mr. Tom Pettit of NBC was at circle number "7", which was our newsman from NBC. He was hollering to me, "Tell them in New York to give it to me."

Mr. HUBERT. That is to say that you would go live on the national?

Mr. TURNER. That's right. We'd go live on the national network. So, I was talking on the direct line to him. The police car left out sometime in that excitement, going up the exit the wrong way. I mean the entrance the wrong way.

Mr. HUBERT. Going up towards Main Street?

Mr. TURNER. That's right, which was different from the one, because we had always seen them come down it, and that was the first time we noticed them going out of it.

Mr. HUBERT. Did that car have any difficulty going up?

Mr. TURNER. Come to think of it, I think he did. I remember a lot of wheels spinning or something.

Mr. HUBERT. Were there many people there?

Mr. TURNER. There was quite a few. The reporters had come in at that point, somewhere along in that point, and there was getting to be a group of people.

Mr. HUBERT. Anyway, what you are saying is, that the movement of that car attracted your attention, is that correct?

Mr. TURNER. There was some brakes squealing or tires spinning at that time.

Mr. HUBERT. Did you follow with your eyes?

Mr. TURNER. I followed him as far as I could, now, there was some more commotion started a little before that of them bringing a truck in, backing an armored truck in from the exit side of it, which they were having a difficult job of getting this truck in. Now, this all happened—I can't tell you the exact time, because it is all vague in my mind.

Mr. HUBERT. Let's go back to the police car going up the Main Street ramp towards Main Street, did you follow it with your eyes?

Mr. TURNER. I followed it not only to about a point to where the drive had started up, because it was impossible——

Mr. HUBERT. To the point where the ramp starts to go up?

Mr. TURNER. Uphill, the slope up, which was this column here had sort of blocked our view from——

Mr. HUBERT. Mark the column with a number.

Mr. TURNER. That is number "9".

Mr. HUBERT. With a circle.

Mr. TURNER. And, I was standing up at the front of point "4", on the left side of the camera, which was right next to the column. Jack Beers from the Dallas Morning News, who took the picture before he was shot—not the picture after he shot him, was immediately—I was touching him with my left arm, and I had mentioned to Jack, I said, "Jack, when I swing around for them to load him into the truck up there, well, I'll hit you on the knee, if—and would you get out of the way?"

And Jack said, "Yes." So—this all took place so quick from now on. And then after I got through talking with Jack, I was—Tom was trying to attract my attention. I happened to glance up and this was at the same time the car drove out of the—I'm not sure. I couldn't—that right down where the ramp it hit—the——

Mr. HUBERT. Level part?

Mr. TURNER. Level part. I saw Mr. Ruby coming in.

Mr. HUBERT. Now, had you ever seen him before?

Mr. TURNER. No, sir; I certainly hadn't. Let me mark "10" as the point where I actually saw Mr. Ruby.

Mr. HUBERT. Now, in order to get it right, would you look at the mockup first, and then place it.

Mr. TURNER. I was right here [indicating], and he was somewhere in this locality when—it is beyond the second column.

Mr. HUBERT. Will you mark a line, and mark it “A” and “B” straight across at the beginning on the right?

Mr. TURNER. All right.

Mr. HUBERT. Now, you have marked a line, having compared it with the mockup, and you have marked it “A-B”.

Mr. TURNER. That is the beginning of the——

Mr. HUBERT. Of the rise?

Mr. TURNER. That’s right. I might be a little off there.

Mr. HUBERT. Now, you say you saw Jack Ruby. You had not known him to be Jack Ruby at that time?

Mr. TURNER. No; what set him off from other men was the hat he was wearing.

Mr. HUBERT. What sort of hat was it?

Mr. TURNER. I don’t know the technical name. Could you help me out? It was a felt hat, had a pretty large brim on it, and it was a—round on top, which you seldom see.

Mr. HUBERT. Snap brim?

Mr. TURNER. No; it wasn’t snap brim. It was just a wide brim, and like you say, I didn’t go that far.

Mr. HUBERT. Do you know what color it was?

Mr. TURNER. It seemed to be grey.

Mr. HUBERT. Could you describe any other clothing?

Mr. TURNER. Yes; he was, to my knowledge he was dressed in an overcoat, or long—it could have been a suit coat, but I didn’t notice.

Mr. HUBERT. Did you have a fair look at his face?

Mr. TURNER. At an angle that I do not recognize him now. He seemed to be much heavier then than when I saw him in the Ruby trial.

Mr. HUBERT. Will you mark the position where you saw this man, marking it with the next number?



Mr. TURNER. All right. Let's see. "10."

Mr. HUBERT. Do you think that that man that you saw at position "10", was Jack Ruby?

Mr. TURNER. I certainly do.

Mr. HUBERT. He was coming down the Main Street ramp at that time?

Mr. TURNER. That's right.

Mr. HUBERT. He was moving?

Mr. TURNER. He was moving at that time but this man looks like Ruby, but he seemed to be heavier than I see him now. I don't know whether it is an allusion, being in a dark place——

Mr. HUBERT. Did you see a man come out from the crowd and shoot Oswald?

Mr. TURNER. Yes, sir.

Mr. HUBERT. Was that man the same man that you have——

Mr. TURNER. It was this same man.

Mr. HUBERT. That you have marked as "10"?

Mr. TURNER. As "10". It was the same man, and came out and shot him from "10".

Mr. HUBERT. So, that if it were Jack Ruby who shot Oswald, it was Jack Ruby at place number "10"?

Mr. TURNER. That's right. Right. Right.

Mr. HUBERT. How long before the shooting was it that you saw a man in position number "10" there in a circle on the ramp?

Mr. TURNER. It was not more than 15 to 30 seconds. It was——

Mr. HUBERT. Did you keep your eye on the man, this man?

Mr. TURNER. No; I had just glanced up there, and I had come back—my eye on our reporter, Tom Pettit, and also the door, which is behind Tom Pettit, which I will mark right now as "11", where Oswald made his exit.

Mr. HUBERT. Now, when was the next time you saw the man whom you have previously identified as number “10” and at what position was he then?

Mr. TURNER. The next time I saw him he walked up to Position “12”, which was almost in line with our man, Pettit, which is number “8”, here.

Mr. HUBERT. Now, you saw him then?

Mr. TURNER. Yes, sir.

Mr. HUBERT. Was he at the front row of those people?

Mr. TURNER. Let me mark two more positions here, sir. A policeman was over here to his right, I think, which we’ll mark, “13”, and then there was a reporter, or a man dressed in a suit, I’ll call him the reporter at “14”.

Mr. HUBERT. All right, and my point is, that when you next saw the man who is now identified as Jack Ruby, and therefore I shall refer to him as Jack Ruby from now on out, he was at a position marked as number “12”?

Mr. TURNER. Right.

Mr. HUBERT. Was he standing still there, or moving?

Mr. TURNER. There was only a matter of 4 seconds, or 5 seconds, when he arrived there that—until Oswald reached the point where he was assassinated.

Mr. HUBERT. You saw Ruby arrive at the front?

Mr. TURNER. That’s right. He walked up to—see, this is all in line, from our camera position to our—there were—they were just a little back of the side light from our camera to our newscaster——

Mr. HUBERT. That’s number “8”?

Mr. TURNER. That’s right.

Mr. HUBERT. But you are willing to say that he was standing at the front row of the group of people congregated there for possibly 5 seconds before he moved forward to shoot Oswald?

Mr. TURNER. That’s right, that’s right.

Mr. HUBERT. And you judge that the time that you saw him standing still, 5 seconds before this shooting of Oswald, was approximately 15 to 20 seconds after you first saw him in that position "10"?

Mr. TURNER. I am vague about that time. Ten seconds or 20 seconds. I am very vague. I mean, but I know he was only there a short time, because I saw—we were on guard to try to move the newsmen out of our way, push them out of the way in front of the camera, and you kind of thrash around at the movement of them to keep on your shot, and that is how I come to notice another man up there. These three men are the only ones that I remember on that side except our man Pettit. There could have been more. There was some CBS cameramen over in this locality, but they had already been there, and that wasn't in my mind at all, the ones that were actually stationed there. It was the movement of people at that time that made you look at it.

Mr. HUBERT. All right, let's get a little bit more about this period for Jack Ruby to move from the position you have marked "10", to the position you have marked "12", when he was standing in the front line. Did he have to go through any great mass of people?

Mr. TURNER. No, not to my knowledge, because I didn't see a great number of men up in there.

Mr. HUBERT. Did he have to push, or shoulder his way up there?

Mr. TURNER. No.

Mr. HUBERT. He could just walk up and get into that position?

Mr. TURNER. That's right. There was some more men out there in this area, but I can't connect it at this point.

Mr. HUBERT. What I want to get at, from what you tell me the group was not such that he would have to bulldoze his way through?

Mr. TURNER. No; he just flat walked up.

Mr. HUBERT. Just once, again for the record. There can be no doubt in your mind but the man now identified as Jack Ruby is the man you saw at position "10"?

Mr. TURNER. Correct.

Mr. HUBERT. All right; now, during our interview, immediately preceding the commencement of this deposition you mentioned another person that you had seen around the court building on several occasions, and I should like now—in other words, tell what you know about this person when you first saw him, now, at the numerous occasions on which you saw him until the last time that you saw him?

Mr. TURNER. All right. All right. We arrived from Fort Bliss at approximately 1 a.m. Saturday, the 23d of November, from Fort Worth, to set up our mobile unit inside the jail for a coverage of the assassination of the President, and when we arrived there we—there was this man that resembled John Carradine of the movies quite a lot. He was very thin faced, around 40 to 50, carrying a portfolio, and another little bag with him. Looked like a shaving kit bag, or something of that effect. He—as soon as we got there, it was chilly, and we went inside the open doors on the Commerce Street side, and he was standing inside, and he immediately started talking to us about various things which we passed off as just an average person talking to you, finding out what you were doing and everything, and he talked to us about 15 or 20 minutes. He did mention in his conversation that he had been a school teacher prior to that, about 16 months before.

Mr. HUBERT. Now, did he have a press badge on?

Mr. TURNER. No, he had no badge on. He was wearing a light trenchcoat or topcoat.

Mr. HUBERT. What height was he?

Mr. TURNER. He was approximately 5 feet 8 inches.

Mr. HUBERT. What would you guess his weight to be?

Mr. TURNER. Oh, only around 130 to 140 pounds. Very light in weight; very skinny.

Mr. HUBERT. Did you ever see the clothing he had under the trenchcoat?

Mr. TURNER. No; as far as I know, I never saw him without the trenchcoat on, the whole time.

Mr. HUBERT. All right; go ahead.

Mr. TURNER. He—We went to the cafe down the block to grab a bite to eat at this time, waiting on the truck, and the truck arrived while we were eating, and when we got back there he was still standing there talking, and a Mexican gentleman had come out, had been drinking too heavy, and made some comment about that, just a general line of talk.

Mr. HUBERT. Did he ever mention his name?

Mr. TURNER. He never mentioned his name.

Mr. HUBERT. Did you hear anyone else talk to him?

Mr. TURNER. As long as I was over there the only ones I saw talk to him was the man, Dave Timmons, with our crew, which was up there at the time, and Richard Bice, he was there, which was with the crew, and that is the only ones I ever saw him talk to.

Mr. HUBERT. Did you ever see him talk to any policemen?

Mr. TURNER. Never did, sir.

Mr. HUBERT. All right.

Mr. TURNER. He continually, after they got set up, he kept coming up in the hallway.

Mr. HUBERT. That is on the third floor?

Mr. TURNER. On the third floor, sir. This is while we were still up on the third floor, and waiting to get shots of Oswald being transferred from the elevator door to the questioning room, and he would continually come up and give—say, “They are going to bring him down in about 5 minutes.” And he usually was right, on each one of the tips he gave us. He mingled around in the press room up on the third floor a lot. He—I told Tom Pettit, which was the announcer up on the floor, that Oswald was coming down, and he said, “Where are you learning the information?”

Mr. HUBERT. You asked this of this man?

Mr. TURNER. Well, no; I didn’t ever ask him where he was learning his information, but I told—Tom Pettit asked me where I was getting this information, and I said, “Well, that man back over there,” and I pointed him out and he said, “Who is he?” And I said, “I don’t know who he is, but he is giving us some pretty good tips.” And he said, “Okay, keep using him,

then.” From that point on, we saw him various times the whole, completely on the third.

Mr. HUBERT. How many times do you think you saw him?

Mr. TURNER. Oh, any number of times, 15 or 20. Just pass him in the hall.

Mr. HUBERT. Did he seem to have free movement?

Mr. TURNER. That’s right. He had free movement on that floor. He had free movement in the basement. That was the only two floors we actually ever did see him, but he was on those floors, back to the press room, talking to the other reporters.

Mr. HUBERT. All right, go ahead.

Mr. TURNER. And, he—and then Sunday morning we came over. I ran into him in the restroom, and he seemed to just live there in the jail.

Mr. HUBERT. Still had that trenchcoat?

Mr. TURNER. And still carrying the little bag, same little bag.

Mr. HUBERT. Did it seem to be a camera bag?

Mr. TURNER. No; they were not camera bags. One little, thin portfolio, and I took the assumption he was selling insurance, from just looking at the little—something like an insuranceman might show to a customer, but that could be entirely wrong.

Mr. HUBERT. And then he had another bag besides that?

Mr. TURNER. That’s right. Something like a traveling kit. Somewhere about 2 inches deep. And we came again Sunday morning, and then we went through the shooting of Oswald, he wasn’t in the basement, to my knowledge at this point.

Mr. HUBERT. When did you see him next?

Mr. TURNER. The next time I saw him was approximately 15 minutes after the shooting when I started to our remote truck to pick up a mike line and a camera cable. The doors was being guarded by policemen, who stopped me, and I told them my business; why I wanted to leave the jail, and give them my name and he let me leave.

Mr. HUBERT. That was at the Commerce Street entrance?

Mr. TURNER. Commerce Street entrance. All right, and when I came back in, which was approximately 3 or 4 minutes after, after we got the stuff ready to bring the camera in to take the lineup room, which is in the basement of the jail, well, this officer had him at the door, and he was trying to show him identification from his billfold.

Mr. HUBERT. You don't know who that officer was?

Mr. TURNER. No, sir; I don't. And this man turned to me and said, "That man there can identify me," and I said, "Like hell I can. I don't know who you are or what you are." Or similar to this effect, that I had seen the man, but I didn't know who he was, so, I kept on about my business, because we were pretty rushed at that time, and approximately 15 minutes later I ran onto him in the hallway coming back out the same door, and he said, "Thanks a million," and I said, "Well, I don't know you from anyone." I said, "That's why I didn't identify you." Or something to that effect and from that point on, I have never seen the gentleman again.

Mr. HUBERT. Have you made any effort to ascertain who he was?

Mr. TURNER. I have reported this to the Secret Service, Mr. Carter with the Secret Service, and I figured it wasn't any of my business, from that point on.

Mr. HUBERT. You have never seen him since?

Mr. TURNER. No, sir.

Mr. HUBERT. You were at the Ruby trial?

Mr. TURNER. Yes, sir.

Mr. HUBERT. You never saw that man there?

Mr. TURNER. No, sir.

Mr. HUBERT. Do you know most of the officers of the—top officers, at least—of the Dallas Police Department?

Mr. TURNER. I know several. The chief and several of them, by face. I do not know them personally.

Mr. HUBERT. Well, in any case, as far as you know, this man that you have described looks like John Carradine, with the other aspects of the description you have given, wasn't a police officer that you knew to be a police officer?

Mr. TURNER. That's right, sir—as far as I know. I never saw him talking to a police officer or any of them except the one.

Mr. HUBERT. He wasn't at the Ruby trial?

Mr. TURNER. He was never at the Ruby trial. The one officer at the door was the only contact I ever saw him with a police officer, and that was when he was, to my knowledge, trying to——

Mr. HUBERT. You remember any other facial characteristics about him, for instance, the color of his hair, or the way he wore his hair, or did he need a haircut, or was he——

Mr. TURNER. He was a typical man. I didn't pay much attention to the haircut, but I'm pretty sure it was dark hair, black hair.

Mr. HUBERT. Did he have any scars, or identifiable marks?

Mr. TURNER. He did not have scars, but just wrinkles of age, like Carradine does.

Mr. HUBERT. How old a man would he have been, do you think?

Mr. TURNER. Between 40 and 50, is my guess, but he had some wrinkles on his face. He was thin-jawed like.

Mr. HUBERT. What color eyes?

Mr. TURNER. I don't know. I didn't get that far.

Mr. HUBERT. And he wore this trenchcoat all the time?

Mr. TURNER. That's right.

Mr. HUBERT. And carried the two bags?

Mr. TURNER. That's right, and he was walking around.

Mr. HUBERT. Did he have any sort of accent in his speech?

Mr. TURNER. No; he had a typical Texan speech. I mean like myself, I have one, and he talked like a Texan. He didn't have——



Mr. HUBERT. Didn't have any foreign accent?

Mr. TURNER. And, he did mention he had been a schoolteacher.

Mr. HUBERT. Now, I want to go back for a minute to this matter of the position of Ruby of which you have marked on Exhibit 5080, at position "10."

Mr. TURNER. Correct, sir.

Mr. HUBERT. On the line, "A," "B," now, which shows him at position "10," he was moving, is that correct?

Mr. TURNER. That's right, he was slowly moving.

Mr. HUBERT. And his movement was from what direction?

Mr. TURNER. He was going forward.

Mr. HUBERT. Well, he was coming from what?

Mr. TURNER. From down the ramp.

Mr. HUBERT. Is there any possibility that his movement could have been through the rail at this point that I am marking?

Mr. TURNER. That's right, because it is—here is my opinion——

Mr. HUBERT. At a point——

Mr. TURNER. Let's see. "11," "12," "14," "15."

Mr. HUBERT. Let's say approximately "15," by the rail?

Mr. TURNER. He could have come over the rail, because I didn't see him prior to that point.

Mr. HUBERT. In other words, his movements were such that you couldn't say whether he came down the ramp, or came through the rail?

Mr. TURNER. That's right, sir, because I didn't see him far enough up the ramp to where it was enclosed.

Mr. HUBERT. And when you did see him it was beyond the point where the rail begins?

Mr. TURNER. I think I am too far back according to this. He would have—let's move "A," "B,"——

Mr. HUBERT. Well, let's put the second position that you have mentioned as "C," "D."

Mr. TURNER. According to your mockup, it is half way, approximately.

Mr. HUBERT. Just about.

Mr. TURNER. All right, I am a little——

Mr. HUBERT. Let's mark that "C," "D," so that now on second thought about it and looking at the mockup again, you want to have your previous testimony adjusted so that where you referred to Ruby at position "10," on line "A," "B," previously, you now think it was that he was on position "10," at line "C," "D"?

Mr. TURNER. Correct, sir.

Mr. HUBERT. And you do that because you place him at the point where the ramp begins to go up?

Mr. TURNER. That's right.

Mr. HUBERT. Now, using this scale, which appears on the mockup, I would ask you to verify this with me.

Mr. TURNER. All right.

Mr. HUBERT. That the incline begins almost exactly 13 feet——

Mr. TURNER. Beyond the rail, I mean where the start of the rail is.

Mr. HUBERT. Thirteen feet from the start of the rail on the Main Street ramp?

Mr. TURNER. That's right, sir, this would be our location here where he eventually——

Mr. HUBERT. Therefore, am I correct in saying there was approximately 13 feet of rail through which Ruby could have come prior to the time you saw him at position number "10"?

Mr. TURNER. You are correct.

Mr. HUBERT. Now, going back to that position number "10" on the line, "C," "D". You have placed position number "10" almost in the middle of the ramp. Was he closer to one side or to the other?

Mr. TURNER. He seemed to be closer and—this is hard to say, because it was almost a casual glance, that he was closer to the rail side than he was to the other side.

Mr. HUBERT. You did not see him come over the rail?

Mr. TURNER. No, sir; I did not. I did not come in contact with the man until he was in the position—he was nearly in the center of it when I came in contact, and the man—the hat was the most obvious facial—I mean just glancing at a man you take something that you can pick a man out by and remember his name by it. That is the way I remember people is something they ordinarily wear, and he had the hat on, but I thought he was a—much larger than—by just glancing at him.

Mr. HUBERT. We'll come back to the other point. Is there any doubt in your mind that the man that you saw, however you would identify him at point number "10," was the man that you later saw step forward and shoot Oswald?

Mr. TURNER. No, sir; and without a doubt in my mind, sir.

Mr. HUBERT. Off the record.

(Discussion off the record.)

Mr. HUBERT. Have you anything else you would like to say?

Mr. TURNER. No, I want to say that I hope I have been some help to you.

Mr. HUBERT. Now, let me ask you this: Other than myself, have you been interviewed by any other member of the Commission staff?

Mr. TURNER. Not on the Commission staff, sir.

Mr. HUBERT. Now, there was a little preliminary interview between you and me this morning before your deposition went onto the record.

Mr. TURNER. That's right, sir.

Mr. HUBERT. Can you perceive any inconsistencies between our colloquy in the interview prior to the beginning of the actual taking of this deposition and the matters covered in the deposition?

Mr. TURNER. No, sir; none at all.

Mr. HUBERT. Now, did you tell me anything during the interview which we have not covered in the deposition?

Mr. TURNER. You mean before?

Mr. HUBERT. Yes.

Mr. TURNER. No, we discussed everything.

Mr. HUBERT. We got it all in the deposition?

Mr. TURNER. That's right.

Mr. HUBERT. I certainly thank you very much, sir.

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## TESTIMONY OF HAROLD R. FUQUA

The testimony of Harold R. Fuqua was taken at 3:55 p.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is a deposition of Harold Fuqua [spelling] F-u-q-u-a. Mr. Fuqua, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of the Executive Order 11130, dated November 29, 1963, Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with that Executive order and joint resolution, I have been authorized to take a sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular, as to you, Mr. Fuqua, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry.

Now, I think, Mr. Fuqua, that you have appeared here today by—as a result of an informal request made to the Dallas Public Works Department for whom you work, and I wish to advise you that under the rules of the Commission you would normally be entitled to a 3-day written notice before the taking of this deposition, but the rules of the Commission also provide that a witness may waive that 3-day notice if he wishes to do so, and I ask you now if you are willing to have your deposition taken now and therefore willing to waive the 3-day written notice?

Mr. FUQUA. I'm ready now, sir.

Mr. HUBERT. All right. Will you stand and raise your right hand. Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. FUQUA. I do.

Mr. HUBERT. Will you state your full name?

Mr. FUQUA. Harold Rogers Fuqua.

Mr. HUBERT. And your age?

Mr. FUQUA. Thirty.

Mr. HUBERT. And where do you live, sir?

Mr. FUQUA. 4338 Penelope, Dallas.

Mr. HUBERT. What is your occupation?

Mr. FUQUA. Parking attendant, basement of city hall.

Mr. HUBERT. What?

Mr. FUQUA. Parking attendant in the basement of the city hall.

Mr. HUBERT. How long have you been so employed?

Mr. FUQUA. By the city of Dallas?

Mr. HUBERT. Yes.

Mr. FUQUA. About 6 years.

Mr. HUBERT. Now, were you on duty on the morning of November 24, 1963?

Mr. FUQUA. Yes, sir.

Mr. HUBERT. When you say you were on duty, that means you were on duty in the parking area of the basement?

Mr. FUQUA. Right.

Mr. HUBERT. That basement is partially under the city hall, and partially under the police building, is that correct?

Mr. FUQUA. No, sir; it is under the municipal part of it. The parking basement, because it is right beside the jail part.

Mr. HUBERT. In other words, the parking area in the basement is really under the municipal building?

Mr. FUQUA. That is the way I would think of it.

Mr. HUBERT. And, what—it is all connected up by the two ramps?

Mr. FUQUA. Right.

Mr. HUBERT. That go up to Main Street and Commerce Street?

Mr. FUQUA. Right.

Mr. HUBERT. Also a sort of a corridor that goes into the jail office, isn't that correct?

Mr. FUQUA. Yes, sir.

Mr. HUBERT. Your duties, normally, are just to assist in parking of cars down there?

Mr. FUQUA. Right, and make sure that the right people—in other words, we have people that come down each day to maybe want to park and go get a prisoner out of jail or pay their water bill. We don't permit that.

Mr. HUBERT. In other words, that parking area is used for employees of the city and the municipal building, as well as for police automobiles?

Mr. FUQUA. Right.

Mr. HUBERT. Just not a public parking lot?

Mr. FUQUA. Right.

Mr. HUBERT. And that is your job, to keep them from parking down there?

Mr. FUQUA. Yes; and to assist, too.

Mr. HUBERT. And to assist getting cars out when people come for them?

Mr. FUQUA. Right.

Mr. HUBERT. Now, on the morning of November 24, do you recall being put out of the basement area, I guess you might call it, along with Alfreadia Riggs and others?

Mr. FUQUA. Yes, sir.

Mr. HUBERT. Tell us what happened.

Mr. FUQUA. You said tell you what happened?

Mr. HUBERT. Yes; tell us what happened.

Mr. FUQUA. All right, we were standing along and watching on, and then we went back and sit down over there, you know, at the telephone down where the elevator goes up into the municipal building.

Mr. HUBERT. That is the service elevator?

Mr. FUQUA. Right, and captain and sergeant came over and said—well, said, “I hate to run you off your job”—said, “—but we’d rather for nobody but news reporters and police officers be down here.” At that time they were making a search through the basement there.

Mr. HUBERT. What time was that about?

Mr. FUQUA. About 9:30, somewhere about like that.

Mr. HUBERT. Then what happened next?

Mr. FUQUA. We all loaded on the elevator and went up to the first floor.

Mr. HUBERT. Did you go up with Mr. Pierce or did you come up a little later?

Mr. FUQUA. Seemed to me that we all went up together, or maybe I went up—I don’t know. I know that he made a trip down back. It might have been that I didn’t go up with Mr. Pierce. I don’t——

Mr. HUBERT. And came up a little later?

Mr. FUQUA. Right.

Mr. HUBERT. Was it much later?

Mr. FUQUA. Not too much later, because the time the captain told me he had rather for us to go.

Mr. HUBERT. All right, you went up to the first floor of the municipal building then?

Mr. FUQUA. Yes.



Mr. HUBERT. And that would have been about 9:30, or a quarter of 10:00?

Mr. FUQUA. About 9:30, something like that.

Mr. HUBERT. What happened after that?

Mr. FUQUA. We all were watching the action that was going on out on Commerce Street side and there was a lot of people standing out on the sidewalk with a—those officers were trying to keep them on the far side of the street, on the south side of the street rather than the north side, and when anybody would pass along there to try to maybe enter the building, they would ask them for some type—would appear to me that they would ask—were asking for some type of credentials or something.

Mr. HUBERT. How long did you stay there watching them?

Mr. FUQUA. I guess must have been stayed there—seemed like to me 30 minutes or more stayed there watching them.

Mr. HUBERT. Did you leave?

Mr. FUQUA. Yes, sir.

Mr. HUBERT. Where did you go?

Mr. FUQUA. Riggs and I left together and said, “Let’s see if we can’t go down and watch it on television,” see, so, we went out to the alleyway onto Main Street and walked back, came up the street and went around there by the ramp there, and came on around and came in from the Harwood side, and went down through the basement to the locker room to watch it on television. There was one fellow down there, he said that he didn’t think it would be on television, probably reruns would be on television, so, we came back up, and just about the time we came back up into the basement, that is—I guess that is when we heard the shot and the scrambling. We went on, and we went into the records building, which is right down from the jail office there.

Mr. HUBERT. When you came down in the basement, you don’t mean you came into the ramps, or the parking area?

Mr. FUQUA. No.

Mr. HUBERT. You were there by the records room then?

Mr. FUQUA. Yes; on around right from the Harwood side.

Mr. HUBERT. How did you get out of the municipal building, sir?

Mr. FUQUA. You mean after the——

Mr. HUBERT. No; when you and Riggs left. First of all, what time was it, about, when you left the municipal building to go out and around——

Mr. FUQUA. Seemed to me that it must have been 10 or after.

Mr. HUBERT. Do you think it was as late as 11?

Mr. FUQUA. No; I don't think it was that late.

Mr. HUBERT. Let me put it another way. When you left Servance and Pierce and the others, at the Commerce Street entrance and you and Riggs decided to go and watch on television and you left for the municipal building, how long was it before the shooting.

Mr. FUQUA. Oh, it wasn't over 10 or 15 minutes at the most. I doubt if it was that long, because we walked slowly along the street there and where these two officers were on the Main Street side, and just walked on around slowly, around the Harwood side, and looked down the ramp, and by the time we found out it wasn't—that it wasn't going to be on television and came back——

Mr. HUBERT. And that is about the time the shot was fired?

Mr. FUQUA. Right.

Mr. HUBERT. How long were you in the locker room?

Mr. FUQUA. I think, sir, we were long enough—I think Riggs bought a can of chili and beans or something he bought.

Mr. HUBERT. And he had a chance to eat it?

Mr. FUQUA. He just walked on back up the stairs. We was laughing, we got to wondering what he did with the can when he got back up, because I guess just before he finished it, well, that is what happened.

Mr. HUBERT. Do you know a man by the name of Jack Ruby?

Mr. FUQUA. No.

Mr. HUBERT. You have seen pictures of him in the papers, of course?

Mr. FUQUA. Right.

Mr. HUBERT. When you were walking along Main Street there and past the Main Street ramp, did you see him along Main Street or anywhere in the crowd?

Mr. FUQUA. No, sir. I don't remember him.

Mr. HUBERT. You would have passed there, you think, about 10 minutes before the shooting?

Mr. FUQUA. Something about like that, about 10 minutes before the shooting.

Mr. HUBERT. Now, what door did you use to get out of the municipal building?

Mr. FUQUA. Well, see, the elevator coming—you know, the service elevator, it has got a front and rear door, and we punched it and went through the elevator.

Mr. HUBERT. When you punched it it opened the rear door?

Mr. FUQUA. That's what happened, right.

Mr. HUBERT. So, it made like a little hallway with the elevator being the hall, that is with the two doors of the elevator opened?

Mr. FUQUA. Right. You go straight through, because whenever the elevator is on the first floor lots of people want to use the elevator, they say, "Let me go through the back door."

Mr. HUBERT. In other words, you got into the elevator door and the municipal building side of the elevator was open?

Mr. FUQUA. Yes.

Mr. HUBERT. And you punched the door on the other side of the elevator which opened that door so that you could get to the corridor leading to the alleyway?

Mr. FUQUA. All the controls are on one side.

Mr. HUBERT. But, in any case, you remember that the back door to the elevator, that is, to say, the elevator door on the alleyway side was closed,

and you had to punch a button to open it up?

Mr. FUQUA. Right.

Mr. HUBERT. And then how did you get out of the back door that leads to the alleyway?

Mr. FUQUA. Riggs opened up that door.

Mr. HUBERT. Where did he get a key from? Do you remember?

Mr. FUQUA. Key—see, the key usually hangs up in the elevator there. It is a string of keys on a stick.

Mr. HUBERT. Did he take them with him—put it this way; did he have to use the key to open that door?

Mr. FUQUA. Yes; he would have to use a key.

Mr. HUBERT. Did he lock it back up again?

Mr. FUQUA. Yes; he locked it.

Mr. HUBERT. How do you know?

Mr. FUQUA. You see, lots of times I do work, and I believe I remember him shaking it, you know, shake it to see if it is locked, because it is strict to keep it closed on weekends.

Mr. HUBERT. What did you have to do to close it after you had gone through the door and were standing in the alleyway area? How do you lock it then?

Mr. FUQUA. I don't know whether you exactly—whether you can fix it so it will lock when you pull it.

Mr. HUBERT. Or do you have to turn the key?

Mr. FUQUA. Right. I don't know.

Mr. HUBERT. But, you say you do remember him shaking the door?

Mr. FUQUA. Right.

Mr. HUBERT. After you all had passed through the door?

Mr. FUQUA. Right.

Mr. HUBERT. You didn't try the door yourself?

Mr. FUQUA. No.

Mr. HUBERT. But, from what you were able to see, he was shaking it as a person would do just testing to see if a door is closed?

Mr. FUQUA. Yes.

Mr. HUBERT. And it seemed now to be closed?

Mr. FUQUA. Yes.

Mr. HUBERT. Now, I am showing you a document which purports to be a report of an interview with you by FBI Agent Jack Peden, and I'm marking it for identification as follows: "Dallas, Tex., April 1, 1964, Exhibit 5134, Deposition of Harold Fuqua," and signing my name to it. The document consists of two pages, and I'm putting my initials on the lower right-hand corner of the second page. Now, in order that the record may show that we are both speaking of the same document when you testify in a moment about this document, I would like you to place your signature near mine on the first page, and your initials near mine on the second page, please.

Mr. FUQUA. Now, say this again, now.

Mr. HUBERT. On that first page——

Mr. FUQUA. Just put my first—my signature here?

Mr. HUBERT. Yes; just your signature. I note that you are putting your signature above and to the right of the inscription I have put on there, that is all right. Would you put your initials on the second page, please.

Now have you read that document consisting of two pages and identified as 5134?

Mr. FUQUA. I have read it outside.

Mr. HUBERT. Is that correct?

Mr. FUQUA. Yes, sir; everything that I know that is on here is correct.

Mr. HUBERT. Are you willing to state to us now that between the statement and your deposition which you have just given that you have said

all that you know about this matter altogether?

Mr. FUQUA. Yes, sir.

Mr. HUBERT. And that if the Commission takes that statement, Exhibit 5134, and your deposition that they will have everything you know about this whole matter?

Mr. FUQUA. Yes, sir.

Mr. HUBERT. All right, sir. Have you been interviewed by any member of the Commission, to your knowledge, prior to this?

Mr. FUQUA. No, sir.

Mr. HUBERT. Was there an interview between you and me prior to this?

Mr. FUQUA. Were you the one that called me on the telephone?

Mr. HUBERT. No, sir. Someone called you on the telephone?

Mr. FUQUA. Yes, sir; I guess. Called me on the telephone and told me when to be down here.

Mr. HUBERT. Yes; but that telephone call, whoever it was with, was solely for the purpose of fixing the time of this appointment.

Mr. FUQUA. Right.

Mr. HUBERT. No discussion of any matters.

Mr. FUQUA. No, sir.

Mr. HUBERT. And you and I have not discussed the matter before your deposition began?

Mr. FUQUA. No.

Mr. HUBERT. All right, sir, I think that is all then.

I thank you very much.

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## TESTIMONY OF EDWARD KELLY

The testimony of Edward Kelly was taken at 2:45 p.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is a deposition of Edward Kelly.

Mr. Kelly, my name is Leon Hubert. I am a member of the advisory staff of the general counsel of the President's Commission. Under the provisions of Executive Order 11130, dated November 29, 1963, a Joint Resolution of Congress No. 137, and rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, I have been authorized to take the sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mr. Kelly, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry. Now, Mr. Kelly, you have appeared here today as a result of a request made informally of you to come. I want to advise you that under the rules adopted by the President's Commission you are entitled, if you wish, to have a 3-day written notice before this deposition can be taken. On the other hand the Commission has also provided that if a witness doesn't desire to have the 3-day notice and is willing to testify immediately and without having the notice, and is willing to waive that notice that he may do so.

Are you willing to waive the notice and testify now?

Mr. KELLY. About what?

Mr. HUBERT. About the general inquiry and about the document that I have just shown you?

Mr. KELLY. Oh, yes; I'd rather testify now.

Mr. HUBERT. You'd rather testify. Will you stand so that I may give you the oath?

Will you raise your right hand? Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. KELLY. I do.

Mr. HUBERT. Will you please state your name?

Mr. KELLY. Edward Kelly.

Mr. HUBERT. Your age?

Mr. KELLY. Twenty-one.

Mr. HUBERT. Your residence? Where you live?

Mr. KELLY. 1315 Sanger Avenue.

Mr. HUBERT. 1315 what?

Mr. KELLY. Sanger.

Mr. HUBERT. What is your occupation?

Mr. KELLY. Porter at city hall.

Mr. HUBERT. How long have you been occupied like that?

Mr. KELLY. May 2d, I'll be there 1 year.

Mr. HUBERT. May 2d, of 1964, will be 1 year?

Mr. KELLY. Yes, sir.

Mr. HUBERT. Were you in the basement of the police department on Sunday, November 24th, before Oswald was shot down there?

Mr. KELLY. Yes; I sure was.

Mr. HUBERT. I think you were in the company with Harold Fuqua and Alfreadia Riggs and that's all of those?



Mr. KELLY. Yes, sir.

Mr. HUBERT. I am showing you a document which purports to be a report of an interview with you by FBI Agent Jack Peden, and I am marking it for identification as follows: "Dallas, Tex., April 1, 1964. Exhibit No. 5133, Deposition of Edward Kelly."

Signing my name to it. It consists of one page only, and I ask you if you have read that document?

Mr. KELLY. Yes, sir.

Mr. HUBERT. In order that the record may show that we are both speaking about the same thing, I wonder if you would place your initials on that document. Now, Mr. Kelly, you have put your initials on this document which I have marked 5133, by putting "EK", is that correct?

Mr. KELLY. That's correct.

Mr. HUBERT. Is this document correct, Mr. Kelly?

Mr. KELLY. Yes.

Mr. HUBERT. You have had a chance to read it?

Mr. KELLY. Yes; I have had—I have read it twice. There is nothing wrong about it.

Mr. HUBERT. Anything that should be added to it?

Mr. KELLY. As far as I can remember.

Mr. HUBERT. This conveys all that you know about the matter?

Mr. KELLY. Yes.

Mr. HUBERT. Have you had any interviews with any other members of the President's Commission?

Mr. KELLY. No, sir; besides—I mean, you know, Mr. Peden.

Mr. HUBERT. No; he is an FBI man.

Mr. KELLY. Well, that is the onliest one.

Mr. HUBERT. Where were you when Oswald was shot?

Mr. KELLY. I was up in the—on the first floor on the Commerce exit side.

Mr. HUBERT. You were along with Mr. Pierce and——

Mr. KELLY. Yes, sir.

Mr. HUBERT. And Mr. Servance?

Mr. KELLY. Yes.

Mr. HUBERT. Did you see Alfreadia Riggs and Harold Fuqua there that time, too?

Mr. KELLY. At the same time he was shot?

Mr. HUBERT. Yes.

Mr. KELLY. No, sir.

Mr. HUBERT. Had they been there earlier?

Mr. KELLY. Yes.

Mr. HUBERT. Where did they go, to your knowledge?

Mr. KELLY. I don't know. Didn't know they left.

Mr. HUBERT. But, you knew they left, but you don't know where they went, or how they got there, from your knowledge?

Mr. KELLY. No.

Mr. HUBERT. Thank you very much. I think that is all we need from you.

Mr. KELLY. Okay.

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## **TESTIMONY OF LOUIS McKINZIE**

The testimony of Louis McKinzie was taken at 9 a.m., on March 25, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. McKinzie, my name is Leon Hubert, I am a member of the advisory staff of the general counsel of the President's Commission on the assassination of President Kennedy. Under the provisions of the President's Executive Order 11130, dated November 29, 1963, a Joint Resolution of Congress, No. 137, and the rules of procedure adopted by the Commission in conformance with an Executive order in that resolution, I have been authorized to take a sworn deposition of you, Mr. McKinzie. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Oswald. In particular to you, Mr. McKinzie, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry. Now, Mr. McKinzie, you have appeared here today by virtue of the fact that the members of the Secret Service contacted you to locate you and ask you to come, is that correct?

Mr. McKINZIE. That's correct.

Mr. HUBERT. You have not yet received the letter addressed to you by Mr. J. Lee Rankin, that you would be asked to come here, is that correct?

Mr. McKINZIE. That's correct.

Mr. HUBERT. I see that the copy of the letter that I have was addressed to 321 Harmon Street, Dallas, Tex. That is not your address. Your address was 3321 Harmon, so, they left out one 3 there. There was also a copy of a letter

sent to the Dallas Public Works Department addressed to you that you didn't receive.

Mr. McKINZIE. I didn't receive that.

Mr. HUBERT. Let me say that under the rules adopted by the Commission, you are entitled to a 3-day written notice prior to the taking of this deposition. As I told you, we sent out the letter with the hope that it would be received, but apparently you have not received it. The rules, however, provide that any witness may waive the 3-day notice if he wishes to do so. Are you willing to waive the 3-day notice?

Mr. McKINZIE. Probably, I don't quite understand there what you mean.

Mr. HUBERT. In other words, you could, if you want to say now, "I'll come in when I get the letter."

Mr. McKINZIE. I see. I see. Well, not necessary.

Mr. HUBERT. If you want to. It is just a waiving of nothing else but the notice.

Mr. McKINZIE. In other words, since I am here, I'd just as soon not do that. I mean, I'd just as soon answer your questions.

Mr. HUBERT. You are waiving nothing else but the notice that the rules of procedure adopted by the Commission say that you are entitled to.

Mr. McKINZIE. Yes.

Mr. HUBERT. If you feel that you would just as soon go ahead now and not come back 3 days after you get the letter, then you are willing to waive it, is that correct?

Mr. McKINZIE. That's right.

Mr. HUBERT. Will you stand, please, and raise your right hand so that you may be sworn? Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. McKINZIE. I do.

Mr. HUBERT. Please state your name for me.

Mr. McKINZIE. Louis McKinzie.

Mr. HUBERT. What is your age?

Mr. McKINZIE. Fifty-four.

Mr. HUBERT. Where is your residence, Mr. McKinzie?

Mr. McKINZIE. 3321 Harmon.

Mr. HUBERT. That is Dallas, Tex.?

Mr. McKINZIE. Dallas, Tex.

Mr. HUBERT. What is your occupation?

Mr. McKINZIE. Porter.

Mr. HUBERT. Where?

Mr. McKINZIE. City hall, public works department.

Mr. HUBERT. You are a city employee?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. How long have you been a city hall employee, sir?

Mr. McKINZIE. Exact—this is March and—Oh, I'd say 6 years and 6 months. That would be just about it, correct.

Mr. HUBERT. What was your occupation before that?

Mr. McKINZIE. Well, I did construction work mostly.

Mr. HUBERT. Carpenter?

Mr. McKINZIE. Carpenter's helper.

Mr. HUBERT. Carpenter's helper?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. Have you been living in the Dallas area all your life?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Where did you live before coming to Dallas?

Mr. McKINZIE. I was raised at East Texas, Palestine, Anderson County.

Mr. HUBERT. Are you married?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. Children?

Mr. McKINZIE. Five.

Mr. HUBERT. All grown.

Mr. McKINZIE. All grown.

Mr. HUBERT. What is your particular job with the Dallas Public Works Department?

Mr. McKINZIE. General porter work. I keep the first floor on the public works department and water department and building permit department and general split shift. I work, oh, every day, part-time.

Mr. HUBERT. Now, when you say general porter in the water works department, that is the first floor of the municipal building?

Mr. McKINZIE. Yes; that's right.

Mr. HUBERT. Now, I would like you to describe how you can get into the first floor of the municipal building. All possible ways to get in the first floor?

Mr. McKINZIE. Well, you have got—you have got a door on Main Street that you can come in. You have got a door on Commerce Street that you can come in. Also, have a door on the alley coming from the Western Union that you can come in, and if somebody lets you in, well, I mean, you know it is open to the public through the week, but weekends it is not. In other words, none of the doors open to the public on weekends. Just working days only.

Mr. HUBERT. Those doors are locked on weekends, that is, Friday night?

Mr. McKINZIE. That's right. In other words, after 6:30 in the afternoon all doors are locked and all elevators are canceled but one, which that is what they call the freight elevator. It runs from the basement all the way to the fifth floor, and that is where everybody is supposed to go in and out, through the building at night and on weekends, Saturdays and Sundays and holidays, unless it is maintenance men, they have their own keys.

Mr. HUBERT. Now, is there any passageway between the building known as the jail building, or the police department building and the municipal

building?

Mr. McKINZIE. First floor, second floor and third floor.

Mr. HUBERT. And what?

Mr. McKINZIE. In other words, they have gates there that they close after closing time and lock.

Mr. HUBERT. Sort of a gate made of——

Mr. McKINZIE. Metal.

Mr. HUBERT. Metal across metal, sort of like an accordion.

Mr. McKINZIE. That's right.

Mr. HUBERT. And it locks?

Mr. McKINZIE. They lock that after closing time. Stay locked until 6:30, 7 the next morning.

Mr. HUBERT. And on weekends?

Mr. McKINZIE. No; on weekends it would be locked permanently.

Mr. HUBERT. From 6:30 Friday, in the afternoon until about 7 o'clock Monday morning?

Mr. McKINZIE. Right.

Mr. HUBERT. And that is true of the gates, small gates on the second and third floor, also?

Mr. McKINZIE. First, second and third. That is the only—there is three of them, three floors, first, second and third.

Mr. HUBERT. Now, is it possible to get into the first floor of the municipal building from the basement by using a—the staircase, the fire escape, the fire escape staircase?

Mr. McKINZIE. It is kept locked. They do have a door there.

Mr. HUBERT. There is a double door.

Mr. McKINZIE. No, sir; they have just an ordinary door made like that one there that you go up the stair steps from the basement, but it is locked. It is—well, it is locked at nights, too.

Mr. HUBERT. It is locked. Which side?

Mr. McKINZIE. From the—it would be locked from the outside.

Mr. HUBERT. From the basement side?

Mr. McKINZIE. That's right. You can come out it. You can come down and come out it, but you can't go in it from the basement without a key.

Mr. HUBERT. Now, if a person was on the first floor, could he get to the basement by using the fire escape stairs?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. In other words, the fire escape staircase doors on the first floor of the municipal building are not locked?

Mr. McKINZIE. No, sir.

Mr. HUBERT. So, you can get into that fire escape staircase, as it were, and go one flight down and——

Mr. McKINZIE. That's right.

Mr. HUBERT. And you can open the door down there, that is not locked?

Mr. McKINZIE. It is locked, but you can open it from the inside.

Mr. HUBERT. Okay, open from the staircase side, so, if you got into the staircase, you could get into the basement, is that right?

Mr. McKINZIE. Yes, sir; that's right.

Mr. HUBERT. Now, on the 24th, which was on a Sunday, the Sunday after President Kennedy was killed, were you on duty that day?

Mr. McKINZIE. Yes, sir; I was.

Mr. HUBERT. What time did you come on duty?

Mr. McKINZIE. 7 o'clock, Sunday morning.

Mr. HUBERT. What time did you leave?

Mr. McKINZIE. 3 in the afternoon.

Mr. HUBERT. Now, what was your particular duty that day?

Mr. McKINZIE. I was running the freight elevator.



Mr. HUBERT. Did you operate the elevator all day?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. Did you leave it at any time?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. When?

Mr. McKINZIE. Around 10 o'clock is when I got orders to carry it to the first floor and cut it off and not bring any passengers down to the basement until I got further permission from the police department, and I was off of it then, I was still on the first floor, I just wasn't operating it.

Mr. HUBERT. Did you leave the elevator itself?

Mr. McKINZIE. Sir?

Mr. HUBERT. Did you leave the elevator itself and walk some place else?

Mr. McKINZIE. Just down the hallway.

Mr. HUBERT. Were the doors of the elevator open then?

Mr. McKINZIE. It was open, but it was cut off. I had it automatic, and I had it cut off with the key. Couldn't nobody——

Mr. HUBERT. Now, that really has two doors in it, doesn't it?

Mr. McKINZIE. Back and front.

Mr. HUBERT. That is the front one, I suppose, you designate as the one that opens up into the municipal building?

Mr. McKINZIE. That's right.

Mr. HUBERT. And the back one is the one that opens up into a little hallway that leads to an alleyway?

Mr. McKINZIE. Yes, sir; that's right.

Mr. HUBERT. Does that back door of the elevator also open on other floors?

Mr. McKINZIE. On the second floor of the building.

Mr. HUBERT. Now, when you left the elevator what was the position of both doors?

Mr. McKINZIE. Front was open facing the municipal building. The back was closed.

Mr. HUBERT. It never was open at all?

Mr. McKINZIE. No, sir; never was open.

Mr. HUBERT. Do you recall whether the back of the elevator was open any time during the morning of November 24th, until the shooting?

Mr. McKINZIE. I am sure that I wouldn't be making no mistake if I said it was open several times, because we had some porters down there working that brings trash from the jail department, and I always let them out that door, and they go out the back, and that is where they keep all their trash and the garbage and so forth, and I imagine about 8 or 8:30, that they were open, because that is about the time they carries the trash and stuff out.

Mr. HUBERT. So that the back——

Mr. McKINZIE. There would be one porter probably went out maybe one or two trips.

Mr. HUBERT. How would he get out through that back door leading onto the alleyway? Is that an open door?

Mr. McKINZIE. It is locked.

Mr. HUBERT. Who has the key?

Mr. McKINZIE. They gives them a key to go out that door to carry the trash, and they bring the key back and carry them back down to the basement.

Mr. HUBERT. They don't have a key personally; the key is in the elevator on a ring, is that right?

Mr. McKINZIE. That's right.

Mr. HUBERT. And they have to get that key from the elevator operator?

Mr. McKINZIE. That's right.

Mr. HUBERT. Now, did you give the key to anybody that day, do you remember?

Mr. McKINZIE. Well, I'm sure that I give it to—I don't know which porter was working, just exactly. I think Alfreadia Riggs, or some of them, but I am sure I give them the key to unlock the back door to carry his trash out.

Mr. HUBERT. Does that back door have a latch on it so that you can push it and it will stay open?

Mr. McKINZIE. No, sir.

Mr. HUBERT. That door requires a key all the time, either way?

Mr. McKINZIE. That's right.

Mr. HUBERT. When they go out, how do they get back in?

Mr. McKINZIE. They got to leave it open, or either carry the key to come back in.

Mr. HUBERT. How did they leave it open?

Mr. McKINZIE. They just walk out on the little ramp. The garbage cans is sitting right by the building, and they just, oh, about 4 feet from the door is about all, or 5 feet from the door is all they have to walk. They mostly have that trash in a sack, and just throw it in the corner and right back in the building.

Mr. HUBERT. All right; now, after you had been told not to bring the elevator down to the basement any more, did you follow those orders?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. And you never brought the elevator down at all any more?

Mr. McKINZIE. No, sir; not until—well, I know it was 11:30, probably 12 o'clock.

Mr. HUBERT. It was after the shooting?

Mr. McKINZIE. Yes, sir; it was after the shooting.

Mr. HUBERT. And you want to say now that that elevator never came down to the bottom floor all the time?

Mr. McKINZIE. No, sir; it didn't.

Mr. HUBERT. All right; you also state, so that we can be clear that after you took the elevator to the first floor the doors of the elevator—the front doors of the elevator rather were open, but the back door was not?

Mr. McKINZIE. That back was not.

Mr. HUBERT. And the elevator, any time you left it, was cut off so that it couldn't be operated?

Mr. McKINZIE. That's right.

Mr. HUBERT. It had a key, isn't that correct?

Mr. McKINZIE. That's right.

Mr. HUBERT. And without turning the elevator on with the key, it couldn't move?

Mr. McKINZIE. Couldn't move.

Mr. HUBERT. You had the key in your possession?

Mr. McKINZIE. That's right.

Mr. HUBERT. So, the elevator didn't move unless you knew about it?

Mr. McKINZIE. That's right.

Mr. HUBERT. Did you let any porters out after you had been told not to move the elevator?

Mr. McKINZIE. No, sir; I didn't.

Mr. HUBERT. Out the back door?

Mr. McKINZIE. No, sir.

Mr. HUBERT. And the back door, by the way, was closed?

Mr. McKINZIE. That's right. So, your statement is that from the time you were told not to bring the elevator down any more there was nobody who could have gone out of the door or come into it?

Mr. McKINZIE. That's right.

Mr. HUBERT. Through the elevator door there or that alley door?

Mr. McKINZIE. That's right.

Mr. HUBERT. Nobody asked you for the keys to get out?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Now, do you know—what is his name, Alfreadia Riggs?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. Do you know where he lives?

Mr. McKINZIE. No, sir; I really don't.

Mr. HUBERT. Did you see him that day?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. What was his job?

Mr. McKINZIE. He was a porter.

Mr. HUBERT. Now, do you remember allowing Alfreadia Riggs and Harold Fuqua to go through the back door of the elevator and out of the back door on the alley?

Mr. McKINZIE. No, sir.

Mr. HUBERT. That did not happen?

Mr. McKINZIE. No, sir.

Mr. HUBERT. It didn't happen at any time at all?

Mr. McKINZIE. Well, now, not during the period of the time that I had the elevator cut off.

Mr. HUBERT. Well, did it happen at anytime from the——

Mr. McKINZIE. Well——

Mr. HUBERT. From the time that you were ordered not to bring the elevator down until after the shooting?

Mr. McKINZIE. No, sir; it didn't happen.

Mr. HUBERT. Nobody passed through that door?

Mr. McKINZIE. One lady probably came from—I went to five and got a telephone operator and brought her down to one. I told her I couldn't carry her down to the basement, and she walked down the stairway and she couldn't get the elevator. She walked down, and I carried her back up to one, but outside of that, those two women that I can recall, two women, but I don't know the name, but a telephone operator that got the elevator, one of them on the first floor, and one walked from the first—fifth floor down to the first floor, the—down the stairway and I carried her back in the elevator.

Mr. HUBERT. Up to the fifth?

Mr. McKINZIE. Up to the fifth floor. Outside of that after I got her it was a telephone man came in just as they left—gave me those orders, but they give me orders to carry him to the fifth floor and bring him right back, and he was the last passenger that I carried all the way from the basement to the fifth floor after I got orders to cut the elevator off, to the fifth floor, he went up there and right back.

Mr. HUBERT. Did you see anybody open up either the Commerce Street entrance or the Main Street entrance and go out?

Mr. McKINZIE. Nobody. I say, the engineer man had a key, and him and a bunch of them stood in the Commerce side at the door.

Mr. HUBERT. He opened the door?

Mr. McKINZIE. He opened it one time, but now what I can understand—I don't know, I think they had three policemen at that door, and they wouldn't let him come out.

Mr. HUBERT. That is on the municipal building, first floor, Commerce Street?

Mr. McKINZIE. Commerce Street.

Mr. HUBERT. And they wouldn't let him out?

Mr. McKINZIE. No, sir; give him orders they couldn't let him out. Opened the first door, and walked out into the lobby, you know, got a little lobby. This is as far as they got, that lobby there.

Mr. HUBERT. What about the Main Street entrance?

Mr. McKINZIE. Nobody went to Main Street. Nobody went to that door.

Mr. HUBERT. Who had the key to those doors?

Mr. McKINZIE. Mr. Pierce, the engineer.

Mr. HUBERT. He is the engineer?

Mr. McKINZIE. Yes.

Mr. HUBERT. Where—what is his first name, do you know?

Mr. McKINZIE. I really don't know his first name, but he was on duty that Saturday.

Mr. HUBERT. He is the engineer?

Mr. McKINZIE. Yes.

Mr. HUBERT. He works in the basement?

Mr. McKINZIE. Yes; subbasement.

Mr. HUBERT. Subbasement. That's where all the engineering equipment and air conditioning is located?

Mr. McKINZIE. Yes.

Mr. HUBERT. Is he the only one who has the keys?

Mr. McKINZIE. No, sir; I don't know how many engineers they have down there, but I understand every one of them has keys. Every one.

Mr. HUBERT. Did you have a key?

Mr. McKINZIE. No, sir.

Mr. HUBERT. The keys you had were to the elevator and to the back door facing on the alley, is that right?

Mr. McKINZIE. That's right.

Mr. HUBERT. Do you use any kind of a sign-in and sign-out system?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. Did you do so that day when you let the porters out?

Mr. McKINZIE. The porters don't sign.

Mr. HUBERT. Well, they——

Mr. McKINZIE. No, sir; the porters don't sign.

Mr. HUBERT. Now, what would you say if I'd tell you that both Alfreadia Riggs and Henry—I think it is Harold Fuqua say they did go out of the building?

Mr. McKINZIE. Well——

Mr. HUBERT. Riggs says he went out through the back door, through the back elevator door and through the door and he walked on down Main Street and Fuqua says he went out the Main Street entrance.

Mr. McKINZIE. During the time that I had it cut off?

Mr. HUBERT. Yes, sir.

Mr. McKINZIE. Well, now, it was they went out of that building, I understand, but now, they didn't go out the elevator. What I understand, they went through the building somewhere and went down in the police department, because that is where they got stopped at. At the police department, they got cut off down there.

Mr. HUBERT. They were in the municipal building?

Mr. McKINZIE. Yes; they was in the municipal building.

Mr. HUBERT. And that was after you had been told not to bring anybody down?

Mr. McKINZIE. Yes, sir; I saw them.

Mr. HUBERT. You saw them after that?

Mr. McKINZIE. That's right.

Mr. HUBERT. Therefore, the only way they could get down or out of that building was in one of the methods we have talked about.

Mr. McKINZIE. Yes, sir; that's right.

Mr. HUBERT. On out the Main Street door, going out the Commerce Street door, going through the corridor that goes to the jail.

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. Or going down the steps?



Mr. McKINZIE. That's right.

Mr. HUBERT. Or going to the elevator and into the alleyway?

Mr. McKINZIE. That's right. One of the two.

Mr. HUBERT. Now, do you know how they got out?

Mr. McKINZIE. No, sir; I don't.

Mr. HUBERT. Are you willing to state that they did not get out through the elevator at all?

Mr. McKINZIE. I can't figure how they could unless one of them had a key, and I don't think one of them had a key, because I had the key myself and when I turned it off I took it with me.

Mr. HUBERT. Nobody asked you to take them down?

Mr. McKINZIE. No.

Mr. HUBERT. Or to open the back door?

Mr. McKINZIE. No.

Mr. HUBERT. Is it possible that the back doors of the elevator were open when you had the elevator cut off?

Mr. McKINZIE. I don't think so. It could have been a button might have flew open, but I think when I cut it off, when you mash your button, why, it don't open until you turn your switch.

Mr. HUBERT. You didn't leave the back door open?

Mr. McKINZIE. No; I left it closed.

Mr. HUBERT. Sir, if somebody had to open it——

Mr. McKINZIE. It would have been open when I went back to it. It wouldn't close.

Mr. HUBERT. It wouldn't automatically close?

Mr. McKINZIE. No, sir.

Mr. HUBERT. No way to make it close from the outside?

Mr. McKINZIE. No, sir; when you've got it cut off. When it is on automatic when you cut it off if you leave your doors open they stay open. If you close them up they stay closed.

Mr. HUBERT. And you say they were closed?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. So, even pushing the button wouldn't have opened the back door?

Mr. McKINZIE. No, sir.

Mr. HUBERT. The key to the back door of the building that goes out to the alleyway, was it left in the elevator when you left the elevator?

Mr. McKINZIE. I hang the keys on a ring and hang them up on the wall.

Mr. HUBERT. Those keys were there?

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. So if they had managed to get the elevator door open, they could have used that key to get the back door leading onto the alley open?

Mr. McKINZIE. Oh, yes, sir.

Mr. HUBERT. But, you didn't see anything like that?

Mr. McKINZIE. No, sir.

Mr. HUBERT. You didn't see them go out Main Street?

Mr. McKINZIE. No, sir. Now, which way they went out of that, I really do not know, but I do learn—I heard them say, myself, they believed they would go down to the police department and watch television.

Mr. HUBERT. How would they get to the police department from the main floor of the municipal building?

Mr. McKINZIE. They would have had, at least, to went out Commerce Street and went down and gone down into the basement, or either—or they would have had to went through the screen door, the door between the two swinging, so, they had to go one of two ways. The only way to go to the police department from the municipal building into the police department. After they got in that alley, they had to go right down in the stairways, as I

understand is where they was, they went downstairs, they had to go out through a gate if they went downstairs, and they stopped them over in the police department before they even got over to the televisions. That is where they were stopped at.

Mr. HUBERT. Your thought is that they used the staircase, the fire stairs?

Mr. McKINZIE. No, sir; I think they must have used the door between the two buildings.

Mr. HUBERT. You mean that door that has got two metal doors like an accordion?

Mr. McKINZIE. Yes.

Mr. HUBERT. Did they have a key to that?

Mr. McKINZIE. I don't know whether Riggs had keys or not. He is a truck-driver. He might have keys of his own. He works daytime and I work nights. I don't know too much about it. I don't know too much about it, but I know he drives a truck and porter work, and those head boys, some of them has keys.

Mr. HUBERT. Did you know this man called Jack Ruby?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Never met him before in your life?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Of course, you have seen pictures of him?

Mr. McKINZIE. Yes, sir; that's all.

Mr. HUBERT. Did he come in there that day?

Mr. McKINZIE. I don't know. I didn't see him if he did and I don't think he did. I really don't.

Mr. HUBERT. Now, you are swearing that you didn't see him come in?

Mr. McKINZIE. That's right; that's right.

Mr. HUBERT. Now, since all this happened you must have stopped to think to yourself, "Well, did that man come in through where I was supposed to be?"

Mr. McKINZIE. Oh, yes, sir. I have thought of it, but I know he didn't.

Mr. HUBERT. That is what I want to find out. You have put your mind to it and you have thought about it a great deal——

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. And you are prepared to tell us under oath now, Louis, that this man did not come through, so far as you know, you didn't see him?

Mr. McKINZIE. That's right. That's right. He come in there some other way. He didn't come through that elevator.

Mr. HUBERT. Have you anything else you want to say, Louis, that might help the President's Commission in finding out the truth about this thing?

Mr. McKINZIE. Well, I don't—other words about it, I just don't know anything I could say.

Mr. HUBERT. Well, we certainly don't want you to invent anything. On the other hand, we want you to feel free to say anything that is the truth.

Mr. McKINZIE. Yes, sir; that's right.

Mr. HUBERT. Because this is an important thing.

Mr. McKINZIE. Sure. I realize that.

Mr. HUBERT. Nobody blames you, or anybody. On the other hand, if we could find out the truth it would help us to protect other people and other Presidents in the future.

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. And you have given thought to all that, and you are saying that what you are telling us is the truth?

Mr. McKINZIE. That's right.

Mr. HUBERT. If you should remember sometime something that you haven't told us here this morning, or you haven't told the FBI or the investigating officers, why, I would like very much for you to contact the President's Commission through the U.S. attorney's office there, Mr. Barefoot Sanders, and tell us you have something to say to us that hasn't been said before.

Mr. McKINZIE. Yes, sir.

Mr. HUBERT. And we'll get in touch with you. Now, let me ask you one more thing. Has anybody other than the Government officials, U.S. officials talked to you about this?

Mr. McKINZIE. No.

Mr. HUBERT. The police department didn't talk to you about it at all?

Mr. McKINZIE. No, sir.

Mr. HUBERT. They didn't inquire of you as to whether Ruby had come that way?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Nobody from the Dallas Police Department ever talked to you?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Nobody has threatened you?

Mr. McKINZIE. No, sir.

Mr. HUBERT. They haven't told you not to tell the truth?

Mr. McKINZIE. That's right. Nobody said anything.

Mr. HUBERT. Nobody said anything like that to you? Didn't even speak to you about it?

Mr. McKINZIE. No, sir.

Mr. HUBERT. Nobody ever took a statement from you?

Mr. McKINZIE. Nobody from the police department.

Mr. HUBERT. Now, the FBI, of course.

Mr. McKINZIE. Yes, FBI; that is the only one.

Mr. HUBERT. Now, prior to my speaking to you this morning and taking this deposition, there had been no interviews between you and me, is that correct?

Mr. McKINZIE. That's correct.

Mr. HUBERT. I mean, we haven't spoken about this matter until you came into this room and took your oath?

Mr. MCKINZIE. No, sir.

Mr. HUBERT. All right, Louis. Thank you very much.

Mr. MCKINZIE. Okay. I thank you.

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## **TESTIMONY OF EDWARD E. PIERCE**

The testimony of Edward E. Pierce was taken at 2 p.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Pierce, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel on the President's Commission. Under the provisions of Executive Order 11130, dated November 29, 1963, a joint resolution of Congress No. 137, and the rules of procedure adopted by the President's Commission in conformance with the Executive order and joint resolution, I have been authorized to take a sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon facts relating to the assassination of President Kennedy and the subsequent and violent death of Lee Harvey Oswald.

In particular as to you, Mr. Pierce, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry and the physical setup of the police department and the municipal building.

Mr. PIERCE. All right.

Mr. HUBERT. Now, Mr. Pierce, I think you have appeared here today as a result of an informal request made for you to come here.

Mr. PIERCE. Yes.

Mr. HUBERT. Under the rules of the Commission, you are actually entitled to a 3-day written notice before the taking of this deposition, but the rules also provide that you may waive that if you wish, and I must ask you

first of all, do you waive the 3-day written notice to which you are normally entitled, and——

Mr. PIERCE. Sure.

Mr. HUBERT. You are ready to go ahead right now?

Mr. PIERCE. Sure. Didn't even know that I have a choice. In fact, it is quite fortunate that it came on this day. I am ready, and much prefer, as I expected this was the time I—and to put it another way, I don't need the other 3 days. It is, I understand, for people who have business appointments or other things and maybe they would, but that is not the case.

Mr. HUBERT. Will you stand and raise your right hand. Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. PIERCE. I do.

Mr. HUBERT. Will you tell me your full name?

Mr. PIERCE. Edward Eugene Pierce.

Mr. HUBERT. What is your age, sir?

Mr. PIERCE. 45.

Mr. HUBERT. And your residence?

Mr. PIERCE. Yes, sir.

Mr. HUBERT. What is your residence? Where do you live?

Mr. PIERCE. I thought you said, "Resident," sir. 1726 Michigan.

Mr. HUBERT. What is your occupation, sir?

Mr. PIERCE. Building and maintenance employee at the city hall.

Mr. HUBERT. How long have you been so employed?

Mr. PIERCE. 5 years, almost exactly.

Mr. HUBERT. Now, were you on duty in the city hall and police building on Sunday, November 24?

Mr. PIERCE. That's right.



Mr. HUBERT. What time did you come on duty?

Mr. PIERCE. 7 o'clock.

Mr. HUBERT. What time did you leave?

Mr. PIERCE. Almost exactly 3 o'clock, 5 or 6 or 8 minutes, probably, after 3, because after 3 o'clock I was no more on duty, as far duty, which is 3 o'clock, and as far as my actual building, I wanted to look around and see what was taking place, so, probably 7 or 8 minutes after 3 when I actually drove out of the basement area.

Mr. HUBERT. What were your duties, functions and responsibilities in your position on that day while you were on duty with respect to both buildings, to wit, the municipal building and the police building?

Mr. PIERCE. You covered a lot of ground there. To actually be one-half percent accurate, I would nearly need the civil service breakdown of that job responsibility, because you covered all of it. Well, for all practical purposes, the operation of the city hall and its maintenance is a 24-hour a day operation. Consequently, we have three shifts—and they have to use some of the personnel, too, as building engineers, see. If they want one of us they page the building engineer. Actually, we aren't the building engineers. We are merely responsible for the building maintenance and operation of the two buildings, which are joined together on a 24-hour a day basis.

Mr. HUBERT. So, that on November 24——

Mr. PIERCE. I reported for my——

Mr. HUBERT. You were the man in charge of maintenance and operation of both buildings on the shifts from 7 until 3 that afternoon?

Mr. PIERCE. And I was the only one there. That responsibility is handled by what is called our building operator because of air-conditioning equipment that must be maintained and operated for both buildings, and we are equipment operators, and in building maintenance—also called—that's a step above building maintenance six, technically speaking.

Mr. HUBERT. Now, those two buildings actually join together——

Mr. PIERCE. Right.

Mr. HUBERT. They join, as I understand it, in several ways, and I would like you to explain first of all how a person who is—was on the first floor of the municipal building could get to the other building, the police building?

Mr. PIERCE. On the first floor of the municipal building?

Mr. HUBERT. Right. How could he get through under normal circumstances?

Mr. PIERCE. To the first floor of the police and courts building?

Mr. HUBERT. Or to any part of the police building?

Mr. PIERCE. Police department. Very well, sir; simplest way would be to take the first floor corridor of the municipal building which goes immediately to the police and courts building. On the weekends, however, on this particular day; that is on the normal operation any day of the week they are connected and open, and on the weekends, or after regular municipal building hours in every night there is an expansion type steel gate closes that municipal building off, the corridor.

Mr. HUBERT. Does it lock?

Mr. PIERCE. From the—it remains locked.

Mr. HUBERT. But was it locked that day?

Mr. PIERCE. It was locked.

Mr. HUBERT. Did you test it yourself?

Mr. PIERCE. Possibly I did.

Mr. HUBERT. Could anyone open it but yourself?

Mr. PIERCE. I don't have the only key.

Mr. HUBERT. Did you see that door open?

Mr. PIERCE. To my knowledge, that door was never open the entire day.

Mr. HUBERT. And you did test it to see that it was locked?

Mr. PIERCE. It was locked.

Mr. HUBERT. Did you test it prior to the shooting?

Mr. PIERCE. Not prior to the shooting.

Mr. HUBERT. You——

Mr. PIERCE. I saw that the gate was across the corridor, as it should be. I was on the first floor, a matter of walking about as far as from here, a little further to the wall, and I didn't walk up to it prior to the shooting to see that it was locked, but it was in place and latched.

Mr. HUBERT. Could have been open?

Mr. PIERCE. It was locked. That lock—when that latch was engaged, it was in place, latched.

Mr. HUBERT. From what you could see of it, then—although you didn't come up to it, but came to within a distance, which I suggest to you now from the reference you made a moment ago was about 40 feet, 30 feet?

Mr. PIERCE. 60 foot, probably.

Mr. HUBERT. You came to within 60 feet of it, and you saw that the latch was in?

Mr. PIERCE. In place and latched, and in that position the door is locked.

Mr. HUBERT. It is locked and you would need a key to open it?

Mr. PIERCE. That is my sworn statement.

Mr. HUBERT. Right. And you did not open it?

Mr. PIERCE. I never saw it open at any time.

Mr. HUBERT. And you did not open it yourself?

Mr. PIERCE. No; but like I say; I checked it, but it was after we knew that everything had happened, and all of sudden, security got to be of such an utmost importance, or the urgency of security was such that I pulled on it to see if it was, but when you said, "prior to,"—prior to that time, I hadn't, but I do know it was latched at that time. Was actually locked when I checked it manually to see if for some peculiar reason the latch was open.

Mr. HUBERT. What you are saying, in effect, is that while you actually tugged on the door after the shooting and found it to be locked, that your

check of it prior to the shooting was visual, but that in your opinion it was in a position that it was locked?

Mr. PIERCE. It is impossible for it not to have been locked.

Mr. HUBERT. It is impossible for it not to have been locked, and that was—that check was made prior to the shooting?

Mr. PIERCE. Prior.

Mr. HUBERT. How much prior? Do you know?

Mr. PIERCE. That would be difficult to say just exactly how much prior, but it was—to give an actual time on it, of course, when we went to the main floor, the first floor on the elevator prior to the shooting, in this corridor, that is a four-way corridor there. There is an information desk sits right in the intersection of the two corridors, and the several elevators is in the corridor that leads—that is the reason I say it takes a little describing because it was facing that corridor and that gate when you get off the elevator, and that was 9:30, probably 9:30.

Mr. HUBERT. All right, now, what other way is it possible to go from the first floor of the municipal building into the police building?

Mr. PIERCE. From the first floor to the police building, the only way from the first floor that you can get into the police and courts building is to leave the municipal building first floor, that is the only way you can get to it.

Mr. HUBERT. And go where?

Mr. PIERCE. And go either outside on the—only other way you can get to it is to go outside on either Main Street or Commerce Street and go down to the police and courts building and use one of their entrances, or take the service elevator down to the basement, which you have the model here, and walk across that garage area and the ramp area to the basement. Two ways, but no other way you can get there from the first floor.

Mr. HUBERT. About—what about the fire escape stairs?

Mr. PIERCE. No fire escape.

Mr. HUBERT. Isn't there a fire case where——

Mr. PIERCE. The enter—staircase, you still can't get there. It is impossible to get there, because that staircase is always locked from the municipal building. That stairway is inside the building proper. It is not an outside stairway like this.

Mr. HUBERT. Yes; I understand.

Mr. PIERCE. And the entrance to it is always locked.

Mr. HUBERT. There are two staircases that open onto the main floor of the municipal building, isn't that correct, or three?

Mr. PIERCE. One on Commerce Street. One back in the building, and then another one up on Main Street which goes up into a second floor, but the second floor they are faced also with the same proposition on weekends, which you are speaking of here. That entire building is separated.

Mr. HUBERT. Well, now, as to both of those staircases, is it not a fact that they do not go down into the basement at all. Only one goes down to the basement?

Mr. PIERCE. Only one goes down to the basement?

Mr. HUBERT. And that one is a staircase just off the corridor on the Main Street side?

Mr. PIERCE. Right. That goes down.

Mr. HUBERT. Now, they have doors that—two doors, sort of swinging doors, are they not?

Mr. PIERCE. Not to the first floor; no, sir.

Mr. HUBERT. Can't you at all times use those doors to get into the staircase and go either up or down?

Mr. PIERCE. When you say "those doors," you are referring to the single door on each stairway, of which there are two, or still speaking of a one single door which leads to the stairway which goes down to the basement?

Mr. HUBERT. To the basement, the other two do not go down into the basement. It is the single—that is what I mean, when I said you would have to leave the first floor and go down into the basement, you could take that

stairway, so that a person getting into the main floor, can get to the police basement by using that stairway?

Mr. PIERCE. That's right. He can come down it and go out, but he cannot leave the basement area and go up, because it is always locked. The entrance to the building is locked. That door is always locked.

Mr. HUBERT. But, going the other way, that is to say, from the main building down to the basement via that staircase, you would need no key, and that door is open all the time?

Mr. PIERCE. Right, sir.

Mr. HUBERT. Even on weekends?

Mr. PIERCE. Right, sir. That is one of the other means?

Mr. HUBERT. Well, that leaves, I think, one other entrance to the municipal building, and the entrance in the back on the alleyway. Now, are you familiar with that entrance and that door?

Mr. PIERCE. Yes, sir.

Mr. HUBERT. Will you tell us about that—how that door operates?

Mr. PIERCE. It is a door—double door.

Mr. HUBERT. A double door?

Mr. PIERCE. Comes together and has a lock on it, which when locked is locked both from the inside—you can't get out, and the outside you can't get in.

Mr. HUBERT. So, when locked you need a key to go either way, is that correct?

Mr. PIERCE. That's right.

Mr. HUBERT. All right, now, suppose someone had a key and went out that door, and simply let the door slam behind him, well, would that door be, at that time, locked or unlocked?

Mr. PIERCE. It will be unlocked.

Mr. HUBERT. To lock it you must use a key to turn the lock?

Mr. PIERCE. You have to step outside the door and turn around and use your keys to lock it back.

Mr. HUBERT. And, if you don't do that, it is an open door?

Mr. PIERCE. It is an open door.

Mr. HUBERT. That is to say, it might be closed, but all you'd have to do is turn the knob and go on in?

Mr. PIERCE. That's what I mean. It is open until you take your key and relock yourself out. No one else can get in without a key.

Mr. HUBERT. Now, do you know whether anyone did go through that door from the first floor into the alleyway that day from your own knowledge?

Mr. PIERCE. Not from actually having seen them, but as a matter of my knowledge, I am quite sure that that door was opened and closed probably several times prior to the shooting because the porters work. In their normal assigned work, now, they take out trash and paper sacks and garbage and whatnot. Mr. Servance, the head porter, always has a key to that door for the removal of trash.

Mr. HUBERT. What is the custom with respect to locking or not locking the door when they routinely perform the porter duties?

Mr. PIERCE. The normal custom is to unlock the door and take their trash out, and their receptacle for the trash is immediately on the other side of the door, and as a matter of habit and routine, while they are—they take a garbage can out on four-wheel dollies and leave the door open there until they can set the cans over in there, or as close as from here to that door from the door they have just left open, and they set the full cans off onto the dolly and pick up the four clean cans and set them back on the dolly and push them back into the building, and it is only for that period of time, but they relock it when they come back in.

Mr. HUBERT. But, normally, it is an open door while they are performing——

Mr. PIERCE. While they are performing their duties.

Mr. HUBERT. Do you know whether the Main Street entrance to the municipal building was locked that day?

Mr. PIERCE. It was locked; yes, sir.

Mr. HUBERT. You tested it yourself?

Mr. PIERCE. And I inadvertently did. Not purposely, for any purpose, but I did.

Mr. HUBERT. You say that you inadvertently did?

Mr. PIERCE. And I am glad it happened that way.

Mr. HUBERT. Well, tell us about that, briefly.

Mr. PIERCE. The Main Street door is comprised of a revolving door with two little vestibule-type doors, one each—that is, one on each side of the revolving door and the two vestibule doors and revolving door are all locked, and I do know that they were locked, because for this reason. In the crowd and milling of curiosity seekers and general public that had gone up and down Main Street, as well as Commerce, and in an attempt to get in and see what was going on, a couple—two women looked through the glass of the doors there. And apparently thought, well, if they could get in here they could see in, because I believe it was a time—no, I wouldn't even say I believe it was a time. It might be they had tried the ramp area, and at any rate, they came up to the door and tried to get in the revolving door as if to come in off of Main Street, and apparently not knowing that the building was closed for the weekend, they thought they could come right in city hall, and I just waved my hand at them this way [indicating] and they had seen it was locked, and I waved my hand at them as if to say, "I'm not going to open it for you. City hall is closed." We have to do that quite often, because people come down and want to pay their water bills and we have to say, "We are closed for the weekend." And I know it was closed because they were trying to see if they could get in. In fact, this was the time when even I didn't know all this other was going to take place, but I figured, too, curiosity.

Mr. HUBERT. What about the Commerce Street——

Mr. PIERCE. No; it was locked.

Mr. HUBERT. Was it ever open in your presence?



Mr. PIERCE. I opened it myself one time.

Mr. HUBERT. Did Servance open it one time, too?

Mr. PIERCE. He was there, but I opened it.

Mr. HUBERT. I understand that you all stood in the vestibule?

Mr. PIERCE. The other doors stay open for the convenience of people who want to make payments of their water bill. There is a bill drop there.

Mr. HUBERT. So, you opened the door and stood in the vestibule and sometime afterward you locked the door back again, is that correct?

Mr. PIERCE. Sometime afterward I did, but there was a whole lot which took place in between before I locked it back.

Mr. HUBERT. What I am interested in, did anyone come in the building?

Mr. PIERCE. No one came in the building. That, I can safely swear to. The reason I opened those two or three doors there which lock the vestibule there from the entrance to the building that allows people at night, or any hour of the day to come in and make payments, drop their water bill there, and this is the reason I refer to it as a vestibule, foyer.

Now, we are making 45 minutes, I would think or an hour's change in time with relation to this particular occasion when I opened up. This happened after we had been told we couldn't remain in the basement area.

Mr. HUBERT. Did you come up from the basement area?

Mr. PIERCE. We came up from the basement area and porters asked me why they couldn't stand——

Mr. HUBERT. When you came up from the basement area, who was operating the elevator?

Mr. PIERCE. McKinzie was operating the elevator.

Mr. HUBERT. Who came up with you?

Mr. PIERCE. I and Servance and Riggs and the telephone operator named Ruth.

Mr. HUBERT. And Kelly?

Mr. PIERCE. Who?

Mr. HUBERT. Kelly? Did Kelly——

Mr. PIERCE. I don't know a Kelly. Maybe her last name is Kelly.

Mr. HUBERT. No; this is a man called Edward Kelly. What about Henry, or Harold Fuqua?

Mr. PIERCE. Harold Fuqua remained in the basement momentarily. He remained in the basement and started to stay and—he did stay—at that time he wasn't on the elevator when we came up. He did stay, but later he was also required to leave though his immediate job responsibility—he stated he was forced to leave later. At that time he stayed——

Mr. HUBERT. At any time was the service elevator locked in such a way that it couldn't be operated, to your knowledge?

Mr. PIERCE. Are you asking me if there were a time when it was locked? That, I don't know. I don't think it was, but it is possible that it might have actually been locked but I don't actually know.

Mr. HUBERT. What about the two elevators used during the week, were they locked?

Mr. PIERCE. They were turned off.

Mr. HUBERT. They couldn't operate at all? It is possible to lock the service elevator so that it cannot move?

Mr. PIERCE. Well, now, that is an embarrassing question. In 5 years I have never seen it locked, but all other elevators that I know of do have locks on the outside, and undoubtedly it does, too, but in my mind I am trying to——

Mr. HUBERT. Isn't there a lock on the inside that you turn and the elevator simply becomes immobile?

Mr. PIERCE. Oh, there's a switch where you can turn off the operation of it. I was thinking of a lock—oh, of course.

Mr. HUBERT. Do you use a key, to turn the elevator off so that it can't be used unless the key is used again to turn it on?

Mr. PIERCE. The elevator operator inside the car can.

Mr. HUBERT. Well, do you know if the elevator was locked in that way so that it couldn't move without switching it back on again with the key?

Mr. PIERCE. To my knowledge, I don't know. At that point in the story I would only say that it is my speculation that it probably was not locked, but it might have been switched off. I think maybe this is not the answer you are looking for.

Mr. HUBERT. Now, I have shown you a document consisting of three pages, purporting to be a report of an interview with you by a special agent Hardin and Wilkeson. I have seen it "Wilkinson," spelled both ways.

Mr. PIERCE. He introduced himself to me as Wilkinson.

Mr. HUBERT. In order to identify it, I am marking it. "Dallas, Texas, April 1, 1964. Exhibit 5132, Deposition of E. E. Pierce," signing my name, placing my name and that information on the first page. Putting my initial on the right-hand bottom of the second page, and my initials on the right-hand side of the third page at the bottom. You have, I think, read this document now identified as Exhibit 5132, have you not, Mr. Pierce?

Mr. PIERCE. Yes, sir.

Mr. HUBERT. I ask you if it is correct? Any changes you would like to make, anything of that sort?

Mr. PIERCE. None of any importance. I have been through there. As I read the article there it occurred to me that maybe a word might have been changed or a statement as written there might leave the meaning which in actual analysis was not exactly true. Like I explained it to you, that they referred to us as building engineers. If a call was sent out for the building engineer who was in charge on that day, I would go even though I am not a building engineer, but substantially, the copy of the statement is correct.

Mr. HUBERT. Now, so that the record may show that both of us are talking about the same document, I would like you to place your name near mine here on the first page and your initials on the other two pages?

Mr. PIERCE. Full name?

Mr. HUBERT. Well, just your regular signature.

Mr. PIERCE. That position on the first floor there, the vestibule there, that we were speaking of one door being open a while ago, we didn't pursue that to the conclusion, but that is where I was. That is the point in the municipal building where I was at the time Oswald was shot, although, at that time, even until just a few short minutes, maybe like 5 until 5 or 8 minutes after he was shot did we know that he had even been shot, and it was immediately after that then that everyone left that position and I relocked the door.

Mr. HUBERT. Good enough.

Mr. PIERCE. The reason I had to unlock the door is because of human nature, like everyone else, we wanted to see what was taking place so, I unlocked the door and—so we could look down the side of the building toward the ramp area, which is the one right here [indicating], and see if anything was taking place.

Mr. HUBERT. All right, now.—

Mr. PIERCE. Because at that time when the officers out there told us that we could not remain outside we would have to step back inside and close the doors, that is where we were. I wanted to finish that part of it so that you would understand about the door being unlocked, because I was there at the time.

Mr. HUBERT. And that is all you have to say about that?

Mr. PIERCE. I think that it is pretty well covered in here.

Mr. HUBERT. Yes; I think so, too.

Mr. PIERCE. Other than the actual time the door was locked after we left that area, but it was after he had been shot, and had it all——

Mr. HUBERT. Do you know Jack Ruby?

Mr. PIERCE. No, sir.

Mr. HUBERT. You have seen pictures of him, of course, since?

Mr. PIERCE. I have many times since.

Mr. HUBERT. Did you see him around anywhere on November 24?

Mr. PIERCE. No, sir.

Mr. HUBERT. Or any other date prior to the shooting?

Mr. PIERCE. No other date did I see him. As a matter of—I imagine at the time, because there were so many, and I hadn't seen any—I didn't even know he existed, and in the crowd of people that were there, it is very possible that he might have been in the group that I saw as I worked back and forth, but he could have been there, but I didn't know.

Mr. HUBERT. But, you have no——

Mr. PIERCE. Nothing but hearsay to the effect that he was there from time to time. It developed later that he had been in the building there several times.

Mr. HUBERT. But, you don't know that from your own knowledge at all.

Mr. PIERCE. I do not know it, and even at that time I wouldn't have known him if I would have seen him because I didn't know he existed much less what he looked like.

Mr. HUBERT. Well, one other area I would like to explore, there is an area called the subbasement, is there not?

Mr. PIERCE. Yes, sir.

Mr. HUBERT. That is below the——

Mr. PIERCE. It is immediately——

Mr. HUBERT. Below the actual basement used for parking area?

Mr. PIERCE. That is this area.

Mr. HUBERT. In the city hall.

Mr. PIERCE. Right here.

Mr. HUBERT. In that subbasement you have all your actual machinery?

Mr. PIERCE. Yes, sir.

Mr. HUBERT. Is it possible to get into the subbasement from the outside on Commerce Street?

Mr. PIERCE. On a weekend, normally; no, sir.

Mr. HUBERT. There is a door, though?

Mr. PIERCE. There is a door that connects the subbasement with the staircase that leads to the sidewalk on Commerce Street.

Mr. HUBERT. All right.

Mr. PIERCE. Now, that door is normally locked on weekends.

Mr. HUBERT. Always locked on weekends.

Mr. PIERCE. Unless, inadvertently, someone left it open. It is supposed to be—and it is all the time when I am on duty, it is locked. Because I don't want any——

Mr. HUBERT. Was it locked on November 24, all the time?

Mr. PIERCE. It was locked.

Mr. HUBERT. You were in charge of it, and you say that it was locked?

Mr. PIERCE. Yes. Now, with this reservation being that the head porter, our—Mr. Servance, also has a key to that door, because the porters' quarters, their locker room area and quarters, what we refer to as quarters generally is on the outside of that door in the police and courts building proper, and to get to it—their duties and in this garage area here, and in the municipal building, they are required to go in and out of that door to get their assigned jobs. He has a key, and when I say, "to my knowledge it was locked," the only reservation is that at sometime he was there and present in that area, and it was locked unless opened by him, or a porter who was working.

Mr. HUBERT. So, if a person could get into this subbasement, he could go very easily into the basement, itself?

Mr. PIERCE. Yes.

Mr. HUBERT. No locked door between them?

Mr. PIERCE. No locked doors. It has the stairway that goes from the subbasement, the stairway level up to——

Mr. HUBERT. What kind of a lock is there on that subbasement door that you are talking about? Do you need a key to get in?

Mr. PIERCE. Yes.

Mr. HUBERT. When you pass through the door does it automatically lock?

Mr. PIERCE. Wait a minute. Wait a minute. That is a push button type lock. It is true, you can let yourself out of the subbasement and go out towards their area.

Mr. HUBERT. Porters' area?

Mr. PIERCE. And when it closes back, it is locked. It locks, and to come back through you have to use your key again unless you are going to be there for some period of time, you want to be—you can push the button you are speaking of automatically and that releases itself automatically. If you push the button it remains unlocked for you.

Mr. HUBERT. That would be true also if a person was coming from the outside and wanted to get into the subbasement, or you—use the key to get in and when the doors shuts again, it is locked?

Mr. PIERCE. It is locked; yes, sir.

Mr. HUBERT. All right, I think that about covers it, Mr. Pierce. Have you been interviewed by any member of the President's Commission to your knowledge, sir?

Mr. PIERCE. No, sir.

Mr. HUBERT. All right, sir.

Mr. PIERCE. As for the—any personnel going in the garage area there at the time he was shot, I guess I am not in the position to say positively there was no one other than news personnel or media and police.

Mr. HUBERT. But, you don't know that to be a fact, do you?

Mr. PIERCE. I was fixing to say that I would be willing, even though I am under oath here, to swear to tell the truth, that there was no one there, because those personnel we have mentioned here, Riggs and Fuqua, at the time we were forced to leave, and came up, you know, I mentioned he remained in the basement momentarily there until it was evident that he also would have to leave. Then he and Harold went to the—because of the availability there of a television set, went to the police locker room lounge.

Mr. HUBERT. Well, now, do you know that of your own knowledge?

Mr. PIERCE. I do know that.

Mr. HUBERT. Or have you been told?

Mr. PIERCE. Well, as a matter of security I mentioned it, because after they got to that position then they couldn't even come back and were required to stay there.

Mr. HUBERT. But, you know that only because other people told you that?

Mr. PIERCE. That is where they were required to stay. That is where they spent the remainder of their time, because they could not come back and rejoin us.

Mr. HUBERT. Do you know how they left that building to get to the police recreation room?

Mr. PIERCE. From the elevator area here—let's see; no, I don't know if they walked directly across to a stairway there, another stairway that goes to the police locker lounge other than the stairway we are speaking of, comes from Commerce Street down to the subbasement itself, and in the building. A stairway which policemen use all the time to go down to the lockers.

Mr. HUBERT. You mean from the municipal building?

Mr. PIERCE. No; from the garage area.

Mr. HUBERT. From the garage area, right.

Mr. PIERCE. But, from the municipal building that is not so. From being required to stay there and unable to even leave there, even now, like I said, I can't possibly state there was no one else there, but I do know they weren't in this area, because they were supposed to be—stay where they were and——

Mr. HUBERT. Do you know how they got out of the municipal building that they were in with you to get to the police room, from your own knowledge? Not what somebody else told you, but from your own knowledge?

Mr. PIERCE. From my own knowledge; no, sir. I don't know. Now, there was a small interval of time elapsed when we first left the basement area here on the elevator and came up to the first floor. McKinzie was the



operator of the elevator, which has a buzzer system on it for calling, and as such, is required to answer calls to whatever floor the personnel is calling for elevator service there, because that is the only elevator in operation, and he did answer a call or two probably from the phone operators up on five, like I say, when we left the basement area and went up to one, he was there, too, and in that small interval of time, I would say about 10 minutes, he came back and reparked the elevator there on one and said that—told me that a policeman had told him not to answer any more calls on that elevator. To even remove the elevator completely from the basement area, and don't answer any more calls until notified later. And that—and that elevator stayed there then at that point there is one of the things that entered my mind a while ago when you were speaking of—about the elevator being shut off, and the operator can turn a switch and turn it out of service, and he brought up the elevator and told me, and Servance was there, at the time, and Servance is his immediate boss, and told Servance that he had been instructed not to answer any more calls on that elevator.

Mr. HUBERT. Now, I asked you whether or not you know how Riggs and Fuqua got out of the building? What way they used to get out of the building?

Mr. PIERCE. Now, they left us where we were there in that small interval of time and it is possible that they went back down and walked across to the stairway that goes to the police locker room, is—that is the only way they could get to it, if they took that route, actually, the question was, “Do I know how?”, and I'm not certain, because I did not follow them or go with them.

The easiest way, across the other stairway and went down to the police locker room or that stairway from Commerce Street down to the porters' quarters, and the subbasement where our equipment is, from that stairway there is a door that is locked there, also. They would have to have a key. If they got in the police locker room there is a fire escape from the locker room out to the outside in case they ever have to leave, but you cannot go into it without a key.

If they used that route, they had to use a key, which I don't know if anybody has a key or not.

It is the only two ways they could have gotten there, and at that time when they were immediately clearing out of this area, it is very possible the policemen, knowing that they were building maintenance employees, and been seeing them for years, especially John the head porter, why, and Harold Fuqua in charge of parking of cars in this basement area, might have said it was all right for them to take these stairs down to the locker room as they were going to have to leave this area anyway. They could either have gone to the—they could either have gone from the municipal building down the stairs or permitted them to go back into the police and courts building.

Mr. HUBERT. Well, now, they have gotten out of the municipal building by going through the service elevator, through the alleyway door and out through the alley to Main Street, couldn't they?

Mr. PIERCE. They could have, but they couldn't have gotten—they would have to come back into this basement area down this ramp in order to get into where the stairway is to go down to the police locker room.

Mr. HUBERT. Well, they could have gone down the police department building entrance on Harwood, down into this basement.

Mr. PIERCE. They would have had to——

Mr. HUBERT. Walked around the block, so to speak?

Mr. PIERCE. And come down the elevator and walked from there down to the locker room where they did stay.

Mr. HUBERT. All right. Okay. Thank you very much, sir. I appreciate it. I think that's it. Do we have everything that you know?

Mr. PIERCE. If it be of help. I am privileged to be of help. If I have, I'm glad.

Mr. HUBERT. Good——

Mr. PIERCE. In fact, I trust that I have. At least, we ascertained—like I told her. I might have written it myself, but, actually, it was written from statements that I made, so that is——

Mr. HUBERT. You are talking about Exhibit 5132?

Mr. PIERCE. The statement that I read there; yes, sir.

Mr. HUBERT. Thank you very much, sir.

Mr. PIERCE. Yes, sir.

Mr. HUBERT. All right, you can go out this way.

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## **TESTIMONY OF ALFREADIA RIGGS**

The testimony of Alfreadia Riggs was taken at 10:30 a.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Alfreadia Riggs. Mr. Riggs, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of the Executive Order 11130, dated November 29, 1963, the joint resolution of Congress No. 137, the rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, I have been authorized to take a sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular, to you, Mr. Riggs, the nature of the inquiry today is to determine the facts that you know about the death of Oswald and any other pertinent facts you may know about the general inquiry. Now, Mr. Riggs, you have been—appeared here by virtue of a request made that you do appear.

Under the rules adopted then by the Commission you are entitled to a 3-day written notice prior to the taking of your deposition, but the rules also provide that a witness may waive the 3-day notice if he wishes to do so. Do you wish to waive the 3-day notice and testify now?

Mr. RIGGS. I will testify now.

Mr. HUBERT. All right. Will you stand and raise your right hand so that you may be sworn? Do you solemnly swear that the testimony you are

about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. RIGGS. Yes.

Mr. HUBERT. State your name.

Mr. RIGGS. Alfreadia Riggs.

Mr. HUBERT. Your age?

Mr. RIGGS. 35.

Mr. HUBERT. Your residence?

Mr. RIGGS. Right now I live at 49—I mean 5942 Highland Hill Drive.

Mr. HUBERT. Highland Hill?

Mr. RIGGS. Highland Village—Village Drive.

Mr. HUBERT. Highland Village Drive. Is that in Dallas?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. What is your occupation, Mr. Riggs?

Mr. RIGGS. I'm a porter.

Mr. HUBERT. For the city of Dallas?

Mr. RIGGS. Yes.

Mr. HUBERT. At city hall?

Mr. RIGGS. At city hall.

Mr. HUBERT. How long have you been so employed?

Mr. RIGGS. Oh, approximately 7 years.

Mr. HUBERT. What was your occupation before that?

Mr. RIGGS. Well, I was—drove a truck.

Mr. HUBERT. For the city?

Mr. RIGGS. No, sir; for the Sunshine Laundry.

Mr. HUBERT. How long have you been employed as a porter at the municipal building in Dallas?

Mr. RIGGS. That is approximately 7 years.

Mr. HUBERT. Seven years. In other words, all the time you have been working there——

Mr. RIGGS. That is only——

Mr. HUBERT. For Dallas Public Works Department you have worked in that building?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. What are your hours?

Mr. RIGGS. Generally from 6 until 2:45.

Mr. HUBERT. Six in the morning?

Mr. RIGGS. Yes.

Mr. HUBERT. Is that every day.

Mr. RIGGS. Yes; every day except Saturday and Sunday. Actually, sometimes I work weekends. We do a little extra work on Saturday and Sunday.

Mr. HUBERT. Do you get paid extra for that?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Who determines when you do extra work?

Mr. RIGGS. Well, the head porter and our supervising engineer, Mr. Homer Garland usually picks out certain things for us to do, and the head porter will tell us.

Mr. HUBERT. Who is the head porter?

Mr. RIGGS. Charles Gill.

Mr. HUBERT. G-i-l-l?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Now, I understand that you were working and on duty on November 24, the date that Oswald was shot.

Mr. RIGGS. That's right, sir.

Mr. HUBERT. Why were you working that day?

Mr. RIGGS. Well, I was doing work inside the new city hall. Well, in the old building. We was cleaning the floors, because we had quite a few photographers in around, and they wanted us to keep the stuff off the floor.

Mr. HUBERT. By the old building you mean the building now occupied by the Dallas Police Department?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. The new building that you refer to is the municipal building?

Mr. RIGGS. Municipal building, yes, sir.

Mr. HUBERT. What time did you report for work?

Mr. RIGGS. I would say 7 o'clock, 7 o'clock that morning.

Mr. HUBERT. Who ordered you to go to work?

Mr. RIGGS. Well, Gill.

Mr. HUBERT. Had you worked the day before, too?

Mr. RIGGS. This was on——

Mr. HUBERT. Sunday.

Mr. RIGGS. Sunday, no, sir.

Mr. HUBERT. Had you worked on Saturday?

Mr. RIGGS. No, sir; I don't believe I worked that Saturday.

Mr. HUBERT. Had you worked on Friday night until Saturday morning?

Mr. RIGGS. Yes, sir; I was absent, actually, I worked, you know—it is my regular work through—weekly day from 6 until 2:45, and like I say, if you work weekends, usually work from 7 until 3. Actually, from 6 and—until 3. Usually come in a little earlier at various times, but this day I believe I came in at 7.

Mr. HUBERT. What I mean is that on Saturday, the day before this day, did you work your regular hours or——

Mr. RIGGS. I'm trying to think, because we had quite a bit of work that weekend, because actually, we had quite a few people over in the other building. They sent different ones. Only time I remember is—that day I don't know whether I worked that night before then, because I had worked quite a bit on that weekend, too.

Mr. HUBERT. Now, for the purposes of identification, I'm going to mark a document which purports to be a photostatic copy of a sign-in sheet.

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Of porters and maids at the city hall on November 24, 1963, as follows: "Dallas, Texas, April 1, 1964. Exhibit No. 5128, deposition of Alfreadia Riggs." I am signing my name, and then another document also purporting to be sign-in sheet for the city hall porters and maids, dated November 23, 1963, and I am marking that at the bottom, "Dallas, Texas, April 1, 1964. Exhibit 5128-A, Deposition of Alfreadia Riggs." I am signing my name on it. Now, I will ask you to look at this document that has been marked Exhibit 5128, and see if your name is on it in print, and if your handwriting is on that document?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Is that your—next to your printed name is that your signature?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. And the two columns that appear, "Sign in 7 a.m.," "Sign out 5:30 p.m."—no, 3 p.m., is that your handwriting, too?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Both of those?

Mr. RIGGS. Yes.

Mr. HUBERT. Now, look at the document marked 5128-A. Next to your printed name I see A.R., those are your initials?

Mr. RIGGS. That's right.



Mr. HUBERT. Now, there is a sign-in 11 p.m., and a sign-out at 7 a.m., does that mean you went on duty at 11 o'clock on that Saturday night, and got off at 7 o'clock in the morning, Sunday, or does it mean you signed in at 11 o'clock on Friday night and got off at 7 o'clock on Saturday morning?

Mr. RIGGS. This, I believe I worked that night.

Mr. HUBERT. Which night?

Mr. RIGGS. When it says—Saturday, 23.

Mr. HUBERT. Until Sunday morning?

Mr. RIGGS. Until Sunday morning. That is when I was signing out, and I worked right on through that Sunday.

Mr. HUBERT. In other words, you didn't go home at all?

Mr. RIGGS. No, sir; not until 3 p.m.

Mr. HUBERT. So, what it amounts to is that you started at 11 o'clock Saturday night and carried clean on through until that Sunday, but you signed in and signed out twice?

Mr. RIGGS. We usually have to do that on two different sheets.

Mr. HUBERT. Now, you were assigned particularly to what location?

Mr. RIGGS. Well, just 11—from 11 to 7, it was on the elevators.

Mr. HUBERT. Yes.

Mr. RIGGS. From 11 o'clock that night until 7 o'clock the next morning I was on the elevators, and then on this other deal, from 7 until 3 was cleaning up the Police and Courts Building.

Mr. HUBERT. Now, when you got off the elevator at 7 o'clock, who relieved you?

Mr. RIGGS. McKinzie, I believe.

Mr. HUBERT. Louis McKinzie?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. When did you finish cleaning up the police building?

Mr. RIGGS. Well, we never did finish cleaning it up, because after the incident came about——

Mr. HUBERT. After Oswald was shot, you mean?

Mr. RIGGS. There was so much disturbance in the halls, actually, I was never able to get back over there in the building to clean it up.

Mr. HUBERT. Were you in the municipal building at any time during the 24th?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. I am not talking about the police building, I am talking about the municipal building?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Did you do any work in the municipal building?

Mr. RIGGS. No, sir.

Mr. HUBERT. How did you get from the municipal building to—no, from the police building where you were working to the municipal building?

Mr. RIGGS. Well, I came down through the basement. It wasn't—trying to think all who were down in the basement. We was all standing around. It was Harold, Gill, Kelly, and if I'm not mistaken, I think Pierce all standing around in the basement, and the police was searching the rafters and checking the cars for guns and things, and finally whenever sergeant—actually I don't know exactly his name—gave orders for them to clear out everybody in the basement down there, so, we got on the elevator and went to the first floor in order to look out the door. We—to see when they got him out to the ramp.

Mr. HUBERT. Yes.

Mr. RIGGS. I think Servance had opened up the front door in the municipal building, and we was standing between—which it has two doors, one stays locked all the time, and one stays open because they have a meter where people put their water deposits in a little box. He had opened the doors on the inside, and we was standing between the two doors.

Mr. HUBERT. Which doors are you talking about?

Mr. RIGGS. On Commerce Street side.

Mr. HUBERT. Who opened that door?

Mr. RIGGS. Servance.

Mr. HUBERT. Servance. Now, what other entrances are there to the first floor of the municipal building?

Mr. RIGGS. How many entrances?

Mr. HUBERT. Yes; how can you get into it?

Mr. RIGGS. Well, we have one that leaves from the first floor to the Police and Courts Building, which it stays shut over the weekend, or on the weekend.

Mr. HUBERT. Sort of a metal gate?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Swinging gate like an accordion. It swings out and blocks the corridor that runs between the two buildings?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Was that open or closed?

Mr. RIGGS. Closed.

Mr. HUBERT. You say that——

Mr. RIGGS. Kept closed.

Mr. HUBERT. Who keeps it closed?

Mr. RIGGS. Well, usually the porter that works at night closes it up.

Mr. HUBERT. Did you check it to see that it was closed?

Mr. RIGGS. No, sir; I looked and it seemed to be closed actually.

Mr. HUBERT. That is to say that this gate, like a metal gate that runs from the floor to the ceiling, was pulled to, but you don't know if it was locked?

Mr. RIGGS. No.

Mr. HUBERT. Is it possible to lock that door?

Mr. RIGGS. It is possible.

Mr. HUBERT. Is it possible to lock that corridor?

Mr. RIGGS. Yes, sir; yes, sir.

Mr. HUBERT. So you have that door, you have an entrance from Commerce Street, and there is an entrance on Main Street?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. What was the condition of that door on Sunday?

Mr. RIGGS. Well, it was—well, I presume it was closed, too.

Mr. HUBERT. Is it usually?

Mr. RIGGS. Yes, sir; during the weekend the old building is closed. Like I say, I couldn't verify to say that it was closed or it was open, because actually, I did not check it, but——

Mr. HUBERT. You knew normally that it is closed?

Mr. RIGGS. It is closed, yes, sir.

Mr. HUBERT. And it locks so that you can't get in?

Mr. RIGGS. No, sir.

Mr. HUBERT. Now, what about the entrance to the building, that entrance and exit to the building, that leads to the alleyway?

Mr. RIGGS. The heavy back door back there?

Mr. HUBERT. There is a back door back there, isn't there?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Now, does that door remain open, or closed, or what?

Mr. RIGGS. Well, it remains closed, too.

Mr. HUBERT. Closed all the time?

Mr. RIGGS. All the time. We usually keep a key on the elevator that will open the back door.

Mr. HUBERT. The door that goes to the alley?

Mr. RIGGS. Yes, sir; that goes into this alley, but it will not open either the front door or the Harwood side or Main side.

Mr. HUBERT. That key is kept on a ring in the elevator?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Now, to go from the main floor of the municipal building, that is, from the first floor to that alleyway, you have to go through the service elevator, don't you?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. And the service elevator has two doors?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. One that opens up on the Main Street corridor of the municipal building, and the other one that opens up on a corridor and leads to the back door that leads to the alleyway?

Mr. RIGGS. To the alleyway.

Mr. HUBERT. And the key to that back door is in the elevator?

Mr. RIGGS. On the elevator, yes, sir. Now, there is another way, too, on the first floor that you can go down the stairway and go to the basement from the first floor.

Mr. HUBERT. Is that the fire escape?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. And that is never closed?

Mr. RIGGS. No, sir.

Mr. HUBERT. So that if anybody is on the first floor they can get into the basement by using the fire escape, or using the elevator?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Now, besides the service elevator that we already talked about, the one that has two doors, there are two other elevators on that floor?

Mr. RIGGS. Yes, sir; but they usually cut off. They don't have but one elevator, and call it the freight elevator, the one that runs over the weekend.

Mr. HUBERT. The other two were closed?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. They were closed that day?

Mr. RIGGS. Yes, sir; they were cut off.

Mr. HUBERT. All right, now, I think you were saying that Mr. Servance opened the Commerce Street door, is that correct?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. If you will, tell us about that.

Mr. RIGGS. Well, after we left from the basement and went to the first floor, he opened the door on the Commerce Street side, and we stood up there between the two doors, approximately, I'd say 45 minutes to an hour.

Mr. HUBERT. When you say between the two doors, you mean that on Commerce Street there is an outside door, and a sort of a vestibule, and then inside doors?

Mr. RIGGS. Yes.

Mr. HUBERT. Sort of wind-break doors?

Mr. RIGGS. Yes, sir; which actually, the outside door stays open because they have, like I said, they have the deposit meter where you can pay your bills and they keep it open.

Mr. HUBERT. So that the outside doors on the Commerce Street side are always open, but then the inside doors also on the Commerce Street side are closed on weekends?

Mr. RIGGS. That's right.

Mr. HUBERT. Now, Servance opened the inside door and then where did you all go?

Mr. RIGGS. We stood in between.

Mr. HUBERT. In—you never did go out the outside door?

Mr. RIGGS. No, sir; because we had an officer outside the door. He was standing on the steps there.

Mr. HUBERT. All right, what happened after that?

Mr. RIGGS. After we stood around there a certain length of time, I don't know exactly how long, I'd say approximately 45 minutes or an hour, then the armored car came up, and they started backing down the ramp, and Harold and myself decided that we would——

Mr. HUBERT. Pardon. Fuqua?

Mr. RIGGS. Fuqua; yes, sir. We decided we would try to go down in the police locker room and maybe watch it on television. We came from the first floor——

Mr. HUBERT. Well, you left the Commerce Street entrance—did you close it? Did you lock it up?

Mr. RIGGS. No, sir; because Servance and the rest of them were still standing up there.

Mr. HUBERT. So, you left before they did, and you don't know whether he locked it or not?

Mr. RIGGS. Then only Harold and myself left. We came in the elevator, I got the keys, unlocked the back door, and I locked it back. I still had the keys.

Mr. HUBERT. Now, when you went through the elevator door, did you leave it open?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. The elevator door that is on the alleyway side was left open?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. And you took the key out of the elevator for the back door on the alleyway, and you opened that back door?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Now, you kept the key?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Now, did you leave that back door open?

Mr. RIGGS. No, sir.

Mr. HUBERT. Well, what do you mean?

Mr. RIGGS. I made sure I locked it back, because actually we usually are supposed to lock the door, keep it locked, and when I unlocked the door from the inside and in turn, took the key and put it on the other side and locked it back.

Mr. HUBERT. All right, then what did you do?

Mr. RIGGS. We left from the alleyway and walked to the left as we went out the back door.

Mr. HUBERT. Towards Main Street?

Mr. RIGGS. Towards Main Street, yes, sir; and got to Main Street, turned left going towards Harwood, and then as we passed—which is a driveway that leads down to the ramp on the Main Street side, well, we sort of glanced down through that-a-way to see, you understand. We saw that armored car which we couldn't see from up there on the top. Then we left, and went to Harwood, made a left, which was going towards Commerce off of Main Street, which is on Harwood, and as you get to the—between the blocks of the building, half way, they have a—steps that leads down into the basement.

Mr. HUBERT. On the Harwood Street side of the steps that lead down into the basement? Did you go down those steps?

Mr. RIGGS. Actually, Harold asked me to go down and check and see if it would be all right for us to go down because we were under the impression that they had the police—had a police officer on the door. After I went down and checked and there wasn't anyone and then I turned and told him to come down and he and I came on down too, and well, the photographers and all was in the basement. All—we passed on by, and went down to the police basement, which is—opposite from the prop room. You have to go down the hall and down the steps.



Mr. HUBERT. You mean you went down into the locker room? That is where all the policemen have their lockers and there's a recreation room and television and——

Mr. RIGGS. Yes, sir; and television and——and there was a jail attendant down there, actually he didn't work in the jail office, he is not a policeman, but he works in the jail office.

Mr. HUBERT. What is his name? Do you know?

Mr. RIGGS. No, sir; I really don't. He told us that he didn't think they were going to show it on television. He imagined they were going to run a tape and show it later on. Said, "Well, we should have stayed up there. Maybe we could have seen him when they brought him out—" While we were down there I bought a little can of soup, or chili or something, and I was eating as we came back up to the——and we stood on the opposite wall from the corridor that leads out to the basement from the hallway that goes out to the basement, and where it has a door—I'm sorry, I couldn't explain, but actually it leads to the basement, goes where they park the cars. We was standing up——opposite——in other words, two corridors, you understand, separate that, and well, we was standing up there maybe about 5 minutes, one of the newspapermen said, "Here he come, here he come," and well, we got on the other side of the wall and was trying to look, well, so much rushing and all that actually we didn't see anything, and then did hear the shot, didn't actually sound like a shot, sort of muffled out.

Mr. HUBERT. Were you in the basement at that time?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. On the Commerce Street side, or the Main Street side?

Mr. RIGGS. It was in between, because it is—if you had been down there, there is a way that comes through the basement, pass by the jail office and corridor where you turn left, and go down there, turn right, and police assembly room is down at the far end, and go up there way, and go——

Mr. HUBERT. Did you go through the engineer's room?

Mr. RIGGS. No, sir; this is down in the police building where the records, the information is.

Mr. HUBERT. Well, perhaps if you look at this thing over here, this mockup, you will be able to clarify this. Now, this is the jail office.

Mr. RIGGS. Yes, sir.

Mr. HUBERT. And see back over there is the parking area. This mockup doesn't show the elevators, but I have a map here which is a chart, really, of that same area only more extensive. For instance, here is the jail office, here are these two ramps, and this mockup only goes to here, you see?

Mr. RIGGS. Uh-huh.

Mr. HUBERT. Now, what I want you to do is to identify this first by marking as follows: "Dallas, Texas, April 1, 1964, Exhibit 5129, deposition of Alfreadia Riggs," I am signing my name on it, and so that the record may show that we are both talking about the same thing, I'm asking you to put your name below mine on there. Now, I want you to look at the mockup first and locate first where you were when the shot was fired, then we'll mark it on the map.

Mr. RIGGS. Well, actually, they didn't have it on here, just this part here is extended out, see what I am referring to is this corridor leads down here that goes to the police assembly room, this part here is—corridor here leads towards Commerce Street side. Now, it has—along here it has a corner here, that is what—two corridors there, and this is just a wall what leads into the elevators. Now, when—actually when they—when they was bringing him out, we were standing on this side, and when they brought him out we moved from here over to here [indicating].

Mr. HUBERT. All right. Now, sir, you have testified that actually, your first position is not shown on either the mockup or the map?

Mr. RIGGS. No, sir.

Mr. HUBERT. But, if it were on the map, it would be shown at the bottom of the map?

Mr. RIGGS. That's right, sir.

Mr. HUBERT. And you moved up to a position about here [indicating]?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. So, I am marking an "X" and putting a circle around it as to the position you moved to when you heard the shot, right?

Mr. RIGGS. That's right.

Mr. HUBERT. I am marking in my own handwriting, "Position of Alfreadia Riggs at the time of shooting." I am putting that in a circle and connecting it to the smaller circle with the "X" in it. The smaller circle with the "X" in it being the spot at which Alfreadia Riggs testified he was standing at the time of the shot, is that correct?

Mr. RIGGS. That's right.

Mr. HUBERT. And Fuqua was with you?

Mr. RIGGS. That's right.

Mr. HUBERT. Now, you had come from a position that, if it were on the map, would be toward the bottom of the map?

Mr. RIGGS. That's right.

Mr. HUBERT. Do you recognize the position of the service elevator here?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. After you had been told to get out of the parking area marked here, and you had gone up with these others on the service elevator to the first floor, did you ever get back into this part on the map called parking area?

Mr. RIGGS. Well, only after everything was over.

Mr. HUBERT. I understand, but prior to the shooting, you never did get back?

Mr. RIGGS. Never did get back down there; no, sir.

Mr. HUBERT. You had gone through the service elevator, not on the area shown by this Exhibit 5129, because that is the basement area?

Mr. RIGGS. Yes.

Mr. HUBERT. But on that same service elevator on the next floor up?

Mr. RIGGS. That's right.

Mr. HUBERT. And went through that elevator to the back door, turned to your left onto Main Street, passed the ramp on Main Street, went over to Harwood Street, went down into the basement area through the Harwood Street——

Mr. RIGGS. Entrance; yes.

Mr. HUBERT. Entrance that goes down to the basement. Then you went to the recreation room and finally came to the position you indicated just before the shooting?

Mr. RIGGS. That's right.

Mr. HUBERT. How did you get back to the main floor of the municipal building after the shooting?

Mr. RIGGS. After the shooting—during the excitement and that, during the excitement Harold and I, we went over to the police information room over there to get out of the way of the traffic. The police was all—they was closing all the entrances and wasn't letting anyone in and letting no one out, so, in order to keep from being in the way, we went inside the information room, and stayed over there, I imagine 30 minutes, 20 or 30 minutes, and Harold asked chief—I think it was Chief Lumpkin for him to escort us from there to the basement, because—I think he wanted to go home, or his time was up or something. He wanted to get out of there, because it made him pretty nervous, and Chief Lumpkin escorted us through the corridor there that leads to the basement to the parking area, and we went over there and stayed, or was down in the basement, and after the time elapsed, I went down in our porter room and stayed around there until time for me to get off.

Mr. HUBERT. What did you do with the keys that you had?

Mr. RIGGS. I put them back in the elevator.

Mr. HUBERT. You put them back in the elevator on what floor?

Mr. RIGGS. In the basement there.

Mr. HUBERT. Was the elevator down in the basement then?

Mr. RIGGS. Well, I called it down.

Mr. HUBERT. Was McKinzie operating the elevator?

Mr. RIGGS. Yes; he was.

Mr. HUBERT. Did he see you put the keys back?

Mr. RIGGS. I don't know for sure. During the excitement and all of that, I think—I don't know whether he and I or someone got to talking about the incident, and I don't remember.

Mr. HUBERT. Now, you did not go out through the Main Street door when you went out with Fuqua?

Mr. RIGGS. No, sir; definitely.

Mr. HUBERT. Back in the alley?

Mr. RIGGS. Back in the alley; yes, sir.

Mr. HUBERT. And you had the keys with you all the time?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Why did you take the keys with you?

Mr. RIGGS. Well, because there was only this once that—well, actually, I usually, normally have a key. As a matter of fact, I have quite a few keys. I didn't have mine with me during that time, and that was the only one during that time that would open up that door that was available, and it stays in the elevator, we close that, because lots of times some of those porters in the other building will use the keys in the elevator to put trash out this back door.

Mr. HUBERT. Now, that door, as a matter of fact, can only be opened from either side. You need a key no matter which way you are coming from?

Mr. RIGGS. That's right.

Mr. HUBERT. It can't be set so that it is open?

Mr. RIGGS. You have to unlock it from the inside and going out, to lock it back, you have to lock it from the outside. In coming back through you have to unlock it from the outside with the key.

Mr. HUBERT. Well, now, I understood that that back door would not open in any way without a key so that if you went through it with a key it

would close by itself and you would need a key to get back in again?

Mr. RIGGS. That's right.

Mr. HUBERT. You couldn't put a snap on that to keep it open?

Mr. RIGGS. No, sir.

Mr. HUBERT. There is no snap?

Mr. RIGGS. No, sir; I don't think. You have to use a key.

Mr. HUBERT. You were in uniform that day?

Mr. RIGGS. That's right.

Mr. HUBERT. That uniform, is a well-known uniform?

Mr. RIGGS. It is gray with red letters. It has "City of Dallas," on the left side, and name on the right of it.

Mr. HUBERT. Your name sewed on?

Mr. RIGGS. Yes, sir, embroidered on.

Mr. HUBERT. Right.

Mr. RIGGS. First initial and last name.

Mr. HUBERT. Now, I am showing you a document which purports to be a report of an interview of you by FBI Agent Jack Peden, and I am marking it for identification as follows: "Dallas, Tex., April 1, 1964, Exhibit 5130, deposition of Alfreadia Riggs," and putting my name on the first page and since it has a second page I am marking on the second page my initials in the lower right-hand corner. I would like you to read that report and see if it reflects the truth, as far as you know it?

Mr. RIGGS. That's right, sir.

Mr. HUBERT. Now, in order that the record can show that we are both talking about the same document, I would ask you to sign your name below mine on the margin there, or next to it, and place your initials on the second page as I have done. Now, you have signed your name on the first page of Exhibit 5130, and your—put your initials on the second page. Have you read it?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Does it represent the truth?

Mr. RIGGS. That's right.

Mr. HUBERT. Any corrections or alterations to be made, or anything?

Mr. RIGGS. My—no, sir.

Mr. HUBERT. Are you willing to state that if we consider the facts stated in Exhibit 5130 and the facts as stated by you in this deposition that we have everything whatsoever that you now know about this matter?

Mr. RIGGS. Yes, sir.

Mr. HUBERT. Nothing that is left out?

Mr. RIGGS. No, sir.

Mr. HUBERT. Everything is correct?

Mr. RIGGS. Yes, sir. Everything is correct.

Mr. HUBERT. I should have added that if we also consider the information you have testified to on Exhibit 5128 and 5128-A, that is the sign-in sheet, we have the full information of that?

Mr. RIGGS. Yes.

Mr. HUBERT. All right. Now, have you been previously interviewed by any member of the President's Commission?

Mr. RIGGS. No, sir; I haven't.

Mr. HUBERT. You have not been interviewed previously by me, or anybody who identified themselves as being connected with the President's Commission?

Mr. RIGGS. No, sir.

Mr. HUBERT. All right, Alfreadia, I just want to get clear once again on one point. Is it possible, at all, that you went out of the municipal building through the Main Street entrance?

Mr. RIGGS. No, sir.

Mr. HUBERT. With Fuqua?

Mr. RIGGS. No, sir; we definitely went through the back door.

Mr. HUBERT. You and Fuqua?

Mr. RIGGS. Yes, sir; me and Harold Fuqua.

Mr. HUBERT. All right, that's all, thank you very much.

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## TESTIMONY OF JOHN OLRIDGE SERVANCE

The testimony of John Olridge Servance was taken at 11:45 a.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of John O. Servance.

Mr. Servance, my name is Leon Hubert. I am a member of the advisory staff of the general counsel of the President's Commission.

Under the provisions of the Executive Order 11130, dated November 29, 1963, a Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and joint resolution, I have been authorized to take a sworn deposition from you, Mr. Servance. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon any fact relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mr. Servance, the nature of the inquiry today is to determine the facts that you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and particularly the opening of doors and so forth of the municipal office or building. Now, you have appeared here by informal request made for you to come. Under the rules adopted by the Commission you are actually entitled to a 3-day written notice before you can be required to come, but on the other hand, the rules of the Commission provide that a witness may waive the 3-day notice if he sees fit to do so. Since you have not had the 3-day written notice, I will ask you if you are willing to waive the 3-day written notice and have your testimony taken now?

Mr. SERVANCE. I will.

Mr. HUBERT. Will you stand and raise your right hand so that you may be sworn. Do you solemnly swear that the testimony that you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. SERVANCE. I do.

Mr. HUBERT. Will you please state your name.

Mr. SERVANCE. My name is John Olridge Servance. [Spelling] S-e-r-v-a-n-c-e, sir.

Mr. HUBERT. Servance. How old are you, sir?

Mr. SERVANCE. I am—beg your pardon, I am 54 years old.

Mr. HUBERT. Where do you live?

Mr. SERVANCE. I live at Lancaster, 319 Lancaster, Hutchins Road. Lancaster Hutchins, 319 Lancaster Hutchins Road, Lancaster, Tex.

Mr. HUBERT. And what is your present occupation?

Mr. SERVANCE. I am a—the head porter, I believe that is the way it is listed, foreman or supervisor, you might call it, over both buildings at night. The city hall and the municipal city hall.

Mr. HUBERT. Those buildings annex, actually, not two separate buildings?

Mr. SERVANCE. Some connections.

Mr. HUBERT. Well, will you—we'll go into that in a minute. How long have you been so occupied, sir?

Mr. SERVANCE. Will be 17 years the 2d day of July, or let's say 16.

Mr. HUBERT. How long have you been head porter out there?

Mr. SERVANCE. Well, I would presume about 15 years. I was head porter before I come down there with some other part of the city. I was with the water department.

Mr. HUBERT. Now, I am marking a document which purports to be a report of an interview with you by FBI Agent Jack Peden, as follows: "Dallas, Texas, April 1, 1964, Exhibit 5131, deposition of John O.

Servance,” and I am signing my name on this document which is a one-page document, and so that the record may show that we are both speaking about the same document would you place your name below mine on that document, sir? You may use this pen.

Mr. SERVANCE. Below yours?

Mr. HUBERT. Well, just anywhere there to the side.

Mr. SERVANCE. All right.

Mr. HUBERT. Mr. Servance, have you read this document?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Exhibit 5131, which you have just signed?

Mr. SERVANCE. I read it.

Mr. HUBERT. Is it correct and true?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Any alterations or modifications that you wish to make to it?

Mr. SERVANCE. No, it isn't. Now, I mean, as far as I understood it. As far as I could remember, that is true.

Mr. HUBERT. Well, now, you have just read it, haven't you?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. And it seems to be correct?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Now, do you know Alfreadia Riggs?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. And Henry Fuqua?

Mr. SERVANCE. Hal Fuqua.

Mr. HUBERT. Hal Fuqua, is it?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Did you see them in the basement that day?

Mr. SERVANCE. I saw them in the basement.

Mr. HUBERT. And all of you were sent up the service elevator by the police to the first floor of the municipal building, is that right?

Mr. SERVANCE. That's right, sir.

Mr. HUBERT. It is true that at one time during the course of the morning there you opened the inside door on the Commerce Street entrance of the municipal building so you all could look out?

Mr. SERVANCE. Well; yes, sir. I did, I opened the door. We stood—there's a glass vestibule, you know.

Mr. HUBERT. You stood in this vestibule. The outside doors to Commerce Street remain open all the time, and the inside door is locked. You had a key and you unlocked it and all of you stood in the vestibule for a while, is that right?

Mr. SERVANCE. For a while, that's right.

Mr. HUBERT. What happened to Riggs and Fuqua? Do you know?

Mr. SERVANCE. They was standing there. What I mean, we were there during—all the excitement, I don't know—everything just—I don't know what way—I thought they were still there. I didn't see them. I mean, that is—

Mr. HUBERT. When you left the vestibule, did you lock the door?

Mr. SERVANCE. I locked the door, I did.

Mr. HUBERT. Did anybody come in through the Commerce Street entrance while you were standing there?

Mr. SERVANCE. No.

Mr. HUBERT. Could anyone have come in without your noticing it?

Mr. SERVANCE. No, sir; they couldn't have.

Mr. HUBERT. Why do you say that?

Mr. SERVANCE. Well, first place, the door wasn't opened all the time, just for a few moments, and the next place there was a policeman out on the

outside didn't allow us to come—and give us orders to go back in and shut it.

Mr. HUBERT. I see, and anyhow, if anyone had come in probably you would have seen them, isn't that correct?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Do you know Mr. Jack Ruby?

Mr. SERVANCE. Never seen him before.

Mr. HUBERT. He didn't pass through that door?

Mr. SERVANCE. No, sir; he didn't.

Mr. HUBERT. And you definitely locked it?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Now, what other entrances or exits are there to the first floor of the municipal building?

Mr. SERVANCE. Well, now, you would have—the first floor, we have a gate leading from the city hall now, the old building from the municipal——

Mr. HUBERT. The police building?

Mr. SERVANCE. Yes, sir; police building, I'll put it that way, it was locked.

Mr. HUBERT. In other words, a corridor that connects the old police building and the new municipal building?

Mr. SERVANCE. That's right.

Mr. HUBERT. And it has a sort of an accordionlike gate which spreads across the whole thing and runs from ceiling to floor?

Mr. SERVANCE. That's right.

Mr. HUBERT. Does it lock?

Mr. SERVANCE. It was locked this day, the 24th.

Mr. HUBERT. It was? You know that to be a fact?

Mr. SERVANCE. I made sure. I locked it and then doublechecked it in the morning.

Mr. HUBERT. It was never opened, then, as far as you know?

Mr. SERVANCE. No, sir.

Mr. HUBERT. Now, what about the Main Street entrance?

Mr. SERVANCE. Well, it was locked; no one went out there.

Mr. HUBERT. And you know that to be a fact, too?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Now, what about the two elevators other than the service elevator?

Mr. SERVANCE. They were cut off, completely off.

Mr. HUBERT. How do you know that?

Mr. SERVANCE. Well, every evening when I went there, every night they cut them off. Well, then, I tested them to see were they off.

Mr. HUBERT. How did you test them?

Mr. SERVANCE. Mashed the button to see if it don't run.

Mr. HUBERT. You tried on this morning to get—to make sure the elevators were cut off?

Mr. SERVANCE. Their power is cut off. They are cut off. You have to go up on the penthouse on top and cut them off.

Mr. HUBERT. They are cut off every night?

Mr. SERVANCE. And on weekends. Weekends; yes, sir.

Mr. HUBERT. What other ways are there to get into the municipal building from the first floor? We have Commerce Street and Main Street.

Mr. SERVANCE. They have the rear exit there.

Mr. HUBERT. Tell us about that?

Mr. SERVANCE. Well, you see, the service elevator has the double doors, you open both of those doors there and go out the service elevator, you can

go out now, to the service elevator; we do have a way that will unlock—well, in fact, have a chain of keys there and that if anyone—anybody that is working on any of those floors during the weekends, well, they can get those keys and go in there and out the back, if they want.

Mr. HUBERT. Now, that back door to the building, that leads to what?

Mr. SERVANCE. Oh, it leads to the alley.

Mr. HUBERT. Leads to the alley? Is there a key in the elevator that opens the back door?

Mr. SERVANCE. They were open; that's right.

Mr. HUBERT. Are you familiar with how that back door works?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Can the back door be opened at any time without the key?

Mr. SERVANCE. No, sir.

Mr. HUBERT. In there—any button that you can push so you don't need a key?

Mr. SERVANCE. No, sir.

Mr. HUBERT. In other words, to go to that door, once it is closed, now, coming from either way, from inside the building or from outside the building, you have to have a key to make that door operate?

Mr. SERVANCE. Yes, sir; you really do. No, no, now, you can push shut, you can snap the door and remain open.

Mr. HUBERT. If you want that door to stay open you've got to prop it open. Once the door is closed you need a key no matter which way you are coming?

Mr. SERVANCE. It is a door you have to lock, you know, you don't—it has got a catch there, but you have to lock it, you know, it is not a turn—you know.

Mr. HUBERT. Well, you mean that you can go through that door and then when it closes you—it is not locked unless you turn it?

Mr. SERVANCE. Well, that's right. See, we can trip it off, you have got a double lock, you understand. You know the doors got a night latch like—you know, but in order to lock that door it has got another lock in there that we turn.

Mr. HUBERT. Let me put it to you this way: Suppose a man uses the key to get through the door from the outside of the building, now, the door closes shut automatically, doesn't it?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. Does it lock so that you need the key to get back inside, or not?

Mr. SERVANCE. No, sir.

Mr. HUBERT. It does not lock?

Mr. SERVANCE. It does not lock. In order to lock it from the alleyway side so that nobody can come in you have got to turn it. Put the key and turn.

Mr. HUBERT. Otherwise the door is open?

Mr. SERVANCE. That's right, sir.

Mr. HUBERT. Now, let's go through that again, because it is very important and I want to get it for sure. That door operates only with a key, that is to say, from the inside. You can't just use the door without a key from the inside?

Mr. SERVANCE. Let's put it this way. Once you lock the door you have to have a key to unlock it. Now, see, you shut that door, it catches, but it is not locked. See what I mean? But in order for that door to be locked we have to put a key in there and turn that lock and let that come out and go into that socket, you see?

Mr. HUBERT. So, a man who is going through those doors leading from the municipal building to the alleyway uses the key to open the door to get out into the alleyway. Now, when he leaves and goes down the alleyway and has taken these keys with him, is that door then open so that somebody can come in without a key or do you need a key to get back in again?



Mr. SERVANCE. Well, now, if—usually, if the fellow's got the key, he usually locks it when he goes out.

Mr. HUBERT. Now, if he locks it back when he got—when he goes out but he didn't lock it again——

Mr. SERVANCE. You don't need no key.

Mr. HUBERT. The door is open?

Mr. SERVANCE. You don't need a key.

Mr. HUBERT. Do you know from your own knowledge whether Riggs and Fuqua went through that alley door that morning?

Mr. SERVANCE. I couldn't say. I mean, I don't—I mean I don't recall that. There is a possibility that they could have, but I don't recall it.

Mr. HUBERT. But you don't know from your own knowledge?

Mr. SERVANCE. After the excitement came and hollering of the elevators—I mean the sirens going we were watching the armored car being backed to the entrance of that—cars coming out of there from the basement and if they did, I didn't know it, I mean, I can't recall it. There is a possibility, but actually to say, I couldn't say it.

Mr. HUBERT. They were in uniforms, too?

Mr. SERVANCE. Yes, sir; they were in uniforms and working around there. In fact, Riggs was in both of the buildings, you know. He was a porter there that day for certain, and he had access of those things. What he did—I mean, I only seen him there, and he disappeared, I didn't notice it.

Mr. HUBERT. There is one other way you can go down from the municipal building to the basement, and that is through the fire escape, that is to say, the door to the main floor of the municipal building is not locked, and you can get to the staircase that way, can't you?

Mr. SERVANCE. Yes, sir.

Mr. HUBERT. And the door at the bottom of the stairway, which is the entrance of the basement is always open so that you can get into the basement?

Mr. SERVANCE. Not the weekends. You have to—you can come out, but you can't go in.

Mr. HUBERT. That's what I mean. You can go in from the municipal building. You can go through the fire escape doors?

Mr. SERVANCE. That's right.

Mr. HUBERT. They are not locked?

Mr. SERVANCE. They are locked; yes.

Mr. HUBERT. They are locked on Sundays?

Mr. SERVANCE. Locked on Sundays, but, you see, you can come out, you have a big bar that you can mash and come out of but you lock it and you can't go in.

Mr. HUBERT. Am I right in saying then that from the municipal floor, first floor of the municipal building——

Mr. SERVANCE. That's right.

Mr. HUBERT. You cannot go into the staircase?

Mr. SERVANCE. Not during the weekend. They keep it locked, or either at night.

Mr. HUBERT. Always locked?

Mr. SERVANCE. Always locked, but you can always come out of there.

Mr. HUBERT. Yes; in other words, if you are in the staircase itself, you can come out?

Mr. SERVANCE. Come out, that's right.

Mr. HUBERT. But, a man on the first floor of the municipal building can't go from the first floor to the basement by use of that staircase, can he?

Mr. SERVANCE. Yes; inside he can.

Mr. HUBERT. No; once they get inside the staircase, yes, but suppose he is standing on—in the lobby on the first floor, can he get through those fire escape doors and get into the staircase and then go down and out into the basement?

Mr. SERVANCE. Well, now, let me kind of clear this. You see, you have three sets of those. You have two in the building, and one that comes on the outside on the Commerce Street side. Is that the one you are speaking of?

Mr. HUBERT. No; I am thinking of the one in the main lobby.

Mr. SERVANCE. Well, in the main lobby, if you are in the main lobby you can through the door, go in the door, down from the staircase, on down in the basement and go out, but you couldn't come in.

Mr. HUBERT. Well, let me put it to you——

Mr. SERVANCE. Yes; you can come in. You can go out or come in. See, those doors are not locked up there.

Mr. HUBERT. That's what I thought. You said that door is locked on weekends, but you wish to correct that now?

Mr. SERVANCE. Yes, sir; here's what I was speaking of, now, when you get in the basement, when you go down to the basement those doors are locked as far as coming in.

Mr. HUBERT. From the basement?

Mr. SERVANCE. From the basement, that's right. In other words, if you are in the basement you cannot use that fire escape door to get into that staircase; that's right, sir.

Mr. HUBERT. But, if you are in the staircase you can get into the basement. Now, the doors to the main floor of the municipal building leading to the staircase that we are talking about, are not closed, they are not locked, are they?

Mr. SERVANCE. No, sir.

Mr. HUBERT. Now, I think a little earlier you testified that they were locked and the only way you can use them would be coming from the staircase into the first floor of the municipal building, and I want to get it straight as to whether or not you can use the opposite direction or, go from the first floor of the municipal building into the staircase——

Mr. SERVANCE. Wait a minute. Now, let's see here—try to correct it best I can. Let's say I am out there in that corridor there, and we'll say—we'll just assume that that is the corridor there in the city hall.

Mr. HUBERT. Yes.

Mr. SERVANCE. All right.

Mr. HUBERT. All right, now——

Mr. SERVANCE. And assume that the room we are in is the staircase room. All right, anywhere you are on the first floor, or any of those floors you can always go into those staircases, fire escapes, none of those are not locked.

Mr. HUBERT. Except the basement?

Mr. SERVANCE. Except the basement where you come out, that's right. None of them are not locked, I am sorry, I got confused there.

Mr. HUBERT. I think that is right. You can go from the corridor into the staircase on the first floor, because those doors do not lock?

Mr. SERVANCE. That's right.

Mr. HUBERT. Now, once you get into the staircase on the first floor you can go down into the basement and go through the basement door into the basement, but you couldn't come through the door from the basement because it is locked?

Mr. SERVANCE. Yes, sir; on the weekends; yes, sir.

Mr. HUBERT. I think that is straight now. You said there was another fire-escape door?

Mr. SERVANCE. One more.

Mr. HUBERT. Where is that?

Mr. SERVANCE. That is the one where we were standing there, when—one comes out of the building through the entrance right there.

Mr. HUBERT. Leads——

Mr. SERVANCE. On the Commerce side.

Mr. HUBERT. Leads to the fire-escape stairway?

Mr. SERVANCE. Well, it is a fire-escape stairway.

Mr. HUBERT. And it operates exactly on—like the other one we are talking about?

Mr. SERVANCE. And it ends there on the first floor.

Mr. HUBERT. Doesn't go down into the basement?

Mr. SERVANCE. Doesn't go down into the basement.

Mr. HUBERT. I see. So, that if you were on the first floor of the municipal building that staircase that we are talking about on the Commerce Street side does not lead you to the basement?

Mr. SERVANCE. No, sir.

Mr. HUBERT. The one we are talking about before is on the Main Street side of the elevator?

Mr. SERVANCE. Yes, sir; you see, you got to—you go in front of the hall, and you have got a cross corridor there.

Mr. HUBERT. Two corridors that cross each other?

Mr. SERVANCE. Yes, sir; and on each corridor there is a door comes from—winds around and so it comes down.

Mr. HUBERT. But, only one of them goes to the basement?

Mr. SERVANCE. Only one goes to the basement.

Mr. HUBERT. The only one that goes to the basement is the one we are talking about?

Mr. SERVANCE. That's right, only one, that's right.

Mr. HUBERT. The other fire escape stops at the first floor?

Mr. SERVANCE. Stops at the main floor and do not go down into the basement.

Mr. HUBERT. Well, all right, I think that it is clear. Now, has there been any conferences between you, Mr. Servance, and any member of the President's Commission prior to this deposition?

Mr. SERVANCE. No, sir; nobody.

Mr. HUBERT. Do you consider that between this document number 5131 which you identified and your deposition that we have the whole story about everything you now know about this matter?

Mr. SERVANCE. That's right, best of my knowledge.

Mr. HUBERT. All right. Thank you.

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## **TESTIMONY OF A. M. EBERHARDT**

The testimony of A. M. Eberhardt was taken at 2:40 p.m., on March 25, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. Let me state for the record, and also for your advice and information, my name is Burt Griffin and I am a member of the advisory staff of the General Counsel's office of the President's Commission investigating the assassination of President Kennedy. This Commission has been set up by virtue of an Executive order of the President of the United States and a congressional resolution. The Executive order is Order No. 11130, which was issued on November 29, 1963, and the congressional resolution is Resolution No. 137. As a result of these two official acts, the Commission has promulgated a set of rules to conduct the proceedings, and in conformance with those rules and the Executive order and the congressional resolution, I have been designated to take a sworn deposition from you, Detective Eberhardt.

Now, the general area of the investigation of the Commission is to ascertain, evaluate and report back to President Johnson on the facts relating to the assassination of President Kennedy and the later murder of Lee Oswald. In particular as to you, we are concerned about the events that led up to the death of Lee Oswald and most particularly about Jack Ruby, but we are concerned about anything else that you might have to offer the Commission that you think is pertinent. The Commission is not an investigatory agency in the sense that a grand jury is.

We don't have any authority to prosecute for any crimes. The only crime that could be committed in connection with this investigation that we can do anything about is perjury, and our primary concern in this matter is

frankly one of national security and not prevention of crime. The most obvious thing is to learn how we can prevent the kind of things that have happened, well, since November 22, from recurring again, but it goes much further than that, because there are matters that transcend simply the protection of the President, there are problems, real problems of national security that are involved in this, and there are worries about it that are involved, too, because whenever you have the President murdered, you can't exclude the possibility that there is some political group or even nonpolitical group interested in killing the President of the United States, and it is compounded when you find that the man that is charged with the murder of the President himself dies.

So it becomes very important for us to learn what the truth is, and we want to do this in a way that will encourage people to come forward and tell us the truth, and if there are problems in connection with this, nobody can be close to this without having some personal problems or personal involvement in this thing, we want to try to do what we can to minimize these kinds of problems for you and to encourage you to come forward with whatever you know that may be of value to us.

Now, you in particular are appearing here as a result of a general request which the General Counsel of the Commission made to Chief Curry. Under the rules adopted by the Commission, you are actually entitled to a 3-day written notice before any deposition is taken; however, the rules also provide that you can waive the notice, and I will ask you now if you want us to provide you with a written notice or if you are willing to waive that notice and go forward with the deposition?

Mr. EBERHARDT. It is fine to go on.

Mr. GRIFFIN. Okay. You are also entitled to have an attorney here before the Commission, and we do have many witnesses who come here with attorneys, and you are not here now, I see, with counsel, but if you would like to have an attorney, consult with one beforehand, we would be happy to adjourn at this point and let you come back whenever you feel like it.

Mr. EBERHARDT. I don't need any counsel.

Mr. GRIFFIN. I will ask you, then, if you will raise your right hand and be sworn. Do you solemnly swear to tell the truth, the whole truth, and



nothing but the truth, so help you God?

Mr. EBERHARDT. I do.

Mr. GRIFFIN. Would you state your full name for the record?

Mr. EBERHARDT. A. M. Eberhardt.

Mr. GRIFFIN. Do you just have a first initial?

Mr. EBERHARDT. No. August Michael.

Mr. GRIFFIN. Where do you live?

Mr. EBERHARDT. 706 East Farmers Road, Seagoville, Tex.

Mr. GRIFFIN. That is Seagoville [spelling] S-e-a——

Mr. EBERHARDT. That is right.

Mr. GRIFFIN. When were you born?

Mr. EBERHARDT. September 13, 1933.

Mr. GRIFFIN. What is your occupation?

Mr. EBERHARDT. I am a detective of police.

Mr. GRIFFIN. How long have you been with the police department?

Mr. EBERHARDT. Eight years.

Mr. GRIFFIN. Are you assigned to any particular unit?

Mr. EBERHARDT. Assigned to burglary and theft.

Mr. GRIFFIN. How long have you been with burglary and theft?

Mr. EBERHARDT. About 2 years.

Mr. GRIFFIN. Now, you and I talked for some time just prior to taking this deposition, is that right?

Mr. EBERHARDT. That is right.

Mr. GRIFFIN. Now, prior to my talking with you, has anybody else from the Commission staff, as opposed to the Secret Service, one of the investigatory agencies, has anybody from the Commission staff spoken with you?

Mr. EBERHARDT. No.

Mr. GRIFFIN. I made some notes during our interview I want to dictate these for the record. I wish you would listen to them carefully, and if there are any changes or corrections that you would like to make, I wish you would tell me and we can straighten up the record on this.

I began talking with Mr. Eberhardt about how the FBI happened to interview him on December 20, 1963, and he indicated that he believed that it was a result of finding his telephone number in one of Jack Ruby's notebooks or on a scrap of paper. Mr. Eberhardt told me that he had changed his telephone number and that the number which was actually in Jack's phone book was not the number that he had now. The reason for the change was that, out in Seagoville, the telephone company became a member or a part of the regular Dallas dialing district, and all of the telephone numbers in Seagoville were changed, although there was no actual physical change of any telephone. He also stated to me that he had come to know Jack Ruby in connection with his work on the police force, that while he was a member of the vice squad and while he has been with the burglary and theft division of the police department, he has had occasion to visit Ruby's nightclubs. Now, he said that, since he has been with burglary and theft, which has been since early 1962, that he saw—went into Ruby's place almost every night when he was on the night shift, and I asked him when he was last on the night shift, and he stated that he was on the night shift the month of October. Mr. Eberhardt also——

Mr. EBERHARDT. That is going to be wrong.

Mr. GRIFFIN. All right. Speak to the reporter.

Mr. EBERHARDT. I am just trying to think. I told—I was working 3 to 11 when the President got killed.

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. So that would be my night shift.

Mr. GRIFFIN. Now, during which shift did you go in to Ruby's club?

Mr. EBERHARDT. I would be working 3 to 11 shift in November, the month that the President got killed, but I hadn't seen him in November, and

I had worked days in October and I hadn't seen him in October, so it would be August when I would have been up there.

Mr. GRIFFIN. Would it be September?

Mr. EBERHARDT. September. I was working 3 to 11 when the President got killed, because I was home and heard it on television and came on to work.

Mr. GRIFFIN. All right. Now, did you ever visit Jack's clubs on a social basis?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. And how frequently would you visit them on a social basis?

Mr. EBERHARDT. In the 5 years I knew him, I was at the Vegas Club about three times with my wife.

Mr. GRIFFIN. How about the Carousel Club?

Mr. EBERHARDT. We went up there once and she wouldn't ever go back. She wanted to see what it was like.

Mr. GRIFFIN. How recently before the President was killed had you been in the Vegas or Carousel Club?

Mr. EBERHARDT. Socially?

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. It had been a long time, over a year.

Mr. GRIFFIN. And to continue dictating what Detective Eberhardt told me, he stated that he regarded Jack Ruby as a source of information in connection with his investigatory activities. I asked him in particular whether he remembered any instances when Jack had been a source of such information, and he stated that at one time Jack reported to him a female employee of his whom he believed had been forging checks and also thought might be a source of narcotics or drugs of some sort, and as a result of the information which Ruby provided, a charge was filed against this girl.

Now, do you remember the name of the girl?

Mr. EBERHARDT. Not her true name. We handed her over to the forgery bureau. She had some dangerous drugs. She was up under the name of [deletion]. She never came back. We arrested her out of the club.

Mr. GRIFFIN. How long ago was that?

Mr. EBERHARDT. That was when I was working vice. Three years.

Mr. GRIFFIN. And you also stated that he informed on a fellow by the name of [deleted], who was wanted in connection with a white slavery charge. Did you ever prosecute that?

Mr. EBERHARDT. No. He came into town. He was already under indictment. He told us that he was in town and where he was staying, which we like to know. He was staying at the Baker Hotel, which was half a block away from the Carousel, and he had heard one of the parking lot boys talking about this Valentine being up there.

Mr. GRIFFIN. I see.

Mr. EBERHARDT. And a search warrant was executed and a squad of officers went in there and arrested them all.

Mr. GRIFFIN. When was that?

Mr. EBERHARDT. That was when I was in vice, too. Two or three years.

Mr. GRIFFIN. What kind of information did he give you in connection with burglary investigation?

Mr. EBERHARDT. I investigated one burglary when his place was burglarized, and I had several complaints at the Vegas Club from them as owners. Out on the street, if we asked him about a particular person—we asked him about 8 or 9 months ago about a safe burglar [deleted]. He said he didn't know him. If he was on the street, he would come in and call it.

Mr. GRIFFIN. When was that burglary at Ruby's place?

Mr. EBERHARDT. I was working deep nights. He surprised the burglars in his club and ran them out. I was in burglary and theft then for about a year or year and a half. The case wasn't assigned to me. I was the officer on the scene, being the detective on duty at the time of the occurrence.

Mr. GRIFFIN. Was this at the Carousel Club?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. You say a year or year and a half. Do you mean a year or year and a half ago or after you went on B. and T.?

Mr. EBERHARDT. A year ago from now.

Mr. GRIFFIN. So that would have taken it to early 1963 or late 1962?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Did Jack have a safe in his club at that time?

Mr. EBERHARDT. No. It was a metal filing cabinet they pried, came in the back door, came up the fire escape. He had closed the place, went to eat, went back for his dogs, and when he came back, they were there, the burglars were there. They didn't get away with any of the loot, and they were later filed on, I believe.

Mr. GRIFFIN. What did Jack do when he surprised them?

Mr. EBERHARDT. He called the police.

Mr. GRIFFIN. Did he fight with them or anything?

Mr. EBERHARDT. No. They got out. He had a gun with him.

Mr. GRIFFIN. Did Jack have a safe?

Mr. EBERHARDT. Not to my knowledge.

Mr. GRIFFIN. Did Jack ever talk with you about putting a safe into the Carousel?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Did you ever hear of his talking with anybody about his installing a safe in the Carousel?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Did you ever talk with Jack about his practice with respect to keeping money?

Mr. EBERHARDT. He always kept a large sum of money in his pocket, and I talked to him several times about leaving that place at 2:30 or 3

o'clock in the morning and driving home with it, but this was just one of his peculiarities.

Mr. GRIFFIN. Did he ever tell you what he did with it, where he kept it once he got it home?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Do you know whether he used any banks or anything like that?

Mr. EBERHARDT. No; I don't know anything about that.

Mr. GRIFFIN. Do you know whether Jack owned any real estate?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Did Jack ever talk to you about the financial condition of his club?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. When was that?

Mr. EBERHARDT. That was when it was a private club. Before he opened the Carousel, see, it was a private club.

Mr. GRIFFIN. Was that when it was known as the Sovereign Club?

Mr. EBERHARDT. Yes. And he said he was losing his shirt and he was going to open it up to the public, and he did.

Mr. GRIFFIN. Now, since then, did he ever talk to you about how he was doing financially?

Mr. EBERHARDT. Yes. Business was good.

Mr. GRIFFIN. How recently did you talk to him about financial condition?

Mr. EBERHARDT. Any time you would go up there and see him, you know, he would come, you know, he liked to tell you business was good, he was doing good, because he didn't like his opposition, they were on the outs all of the time, the two brothers, Weinstains. They didn't like each other at all. They didn't go to each other's places. He would like to say he was

doing good, getting some of their business, he was doing good. He liked to talk about that.

Mr. GRIFFIN. Did you know or did you ever hear him talk about Ralph Paul?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Have you heard of him?

Mr. EBERHARDT. No; I haven't.

Mr. GRIFFIN. Now, I believe you also told me that you knew George Senator and that George was a bartender for Jack at the Carousel?

Mr. EBERHARDT. He was doorman.

Mr. GRIFFIN. He was doorman?

Mr. EBERHARDT. He took the money when the people came in.

Mr. GRIFFIN. Did you know who was the person at the door, the ticket taker, whatever you call it, at the Vegas Club?

Mr. EBERHARDT. Eva was; Eva Grant.

Mr. GRIFFIN. Eva Grant; how would you describe her physically?

Mr. EBERHARDT. She is in her forties, I would say, heavy set. She has long hair. It was usually red tinted. Fair complected, nice, middle-aged looking woman.

Mr. GRIFFIN. You say she was heavy set? How heavy would you say?

Mr. EBERHARDT. I would say 155.

Mr. GRIFFIN. How tall would you say?

Mr. EBERHARDT. Any time I saw her, she had heels on and she would be five-six or seven in heels.

Mr. GRIFFIN. Is she noticeably fat or obese?

Mr. EBERHARDT. No. She is just big boned, a big-boned woman. She is not actually what you would call real fat. She is just heavy built.

Mr. GRIFFIN. Did you know a woman by the name of Pauline Hall who worked at the Vegas Club?

Mr. EBERHARDT. Not by name, I don't. I might if I would see her.

Mr. GRIFFIN. Did you know of any fat, heavy-set woman who worked at the Vegas Club?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Did you know of any such person who worked at the Carousel Club?

Mr. EBERHARDT. No. Eva had a good friend—I don't know what her name was—who she thought one time stole a ring off of her, who she was going to call and make a report on it and called me and told me not to.

Mr. GRIFFIN. Did you ever see the woman?

Mr. EBERHARDT. I have never seen her. She was a very close friend of Mrs. Grant, and that is why I dropped the investigation, and that is the only close friend I have heard her speak of.

Mr. GRIFFIN. Do you recall that woman's name?

Mr. EBERHARDT. No; I don't.

Mr. GRIFFIN. When was that?

Mr. EBERHARDT. That was last year sometime.

Mr. GRIFFIN. To continue with this dictation of what Mr. Eberhardt told me prior to starting this deposition, that he also stated that he knew a man named Buddy King, who had worked for Jack, and apparently King had been down on his luck and Jack had picked him up and given him a job for a while, and that it was common practice for Jack to pick up these people, people of this sort, and employ them for a short while.

Do you think Jack did this because he could get these people for low wages or do you think that he did it out of the goodness of his heart?

Mr. EBERHARDT. He liked show people like Buddy King—you know, he was in the movies—and he put a picture up there with Our Gang Comedy. He liked to be around people like that. Prizefighters, they would be up there now and then.

Mr. GRIFFIN. Do you know any prizefighters up there?



Mr. EBERHARDT. Yes. I met a prizefighter that bounced for him one night, the old heavyweight here in Dallas.

Mr. GRIFFIN. Turman?

Mr. EBERHARDT. Yes; Buddy Turman.

Mr. GRIFFIN. Is he the only one that hung around there?

Mr. EBERHARDT. Yes; I take it back. You remember when this left-handed lightweight fighting for Curtis Cokes, going to fight for the title, little, left-handed, Muskegon, Mich.? He was down there.

Mr. GRIFFIN. Who was that?

Mr. EBERHARDT. When Kenney Lane fought Curtis Cokes in Dallas, the night after, he was up in the place.

Mr. GRIFFIN. Kenney Lane fought Curtis Cokes?

Mr. EBERHARDT. Kenney Lane fought Curtis Cokes.

Mr. GRIFFIN. He came up to the place?

Mr. EBERHARDT. He came up to the place. He is top contender right now.

Mr. GRIFFIN. Did Jack say how he knew him?

Mr. EBERHARDT. No. He just said, "There is Kenney Lane."

Mr. GRIFFIN. About how often do they have prizefights in Dallas?

Mr. EBERHARDT. They haven't had one for quite a while now. They tried to promote some, but they didn't go over good.

Mr. GRIFFIN. How about amateur fights?

Mr. EBERHARDT. Yes; we have tried to build up with some smokers with the Police Athletic League, and such as that. Had the Golden Gloves.

Mr. GRIFFIN. About how often in the average year have they had the amateur fights, that you know of?

Mr. EBERHARDT. They had 4 or 5 cards last year.

Mr. GRIFFIN. Who sponsored those?

Mr. EBERHARDT. I don't know who was sponsoring them, really.

Mr. GRIFFIN. Did Jack have anything to do with those?

Mr. EBERHARDT. No; huh-uh.

Mr. GRIFFIN. Did Jack ever indicate to you any interest in them?

Mr. EBERHARDT. No.

Mr. GRIFFIN. I also asked Detective Eberhardt if he knew of anyone else whom he knew from the police department, and he mentioned that his partner on the vice squad, R. L. Clark, also got some useful information, but that Eberhardt hasn't worked with Clark since early 1962 when Detective Eberhardt was transferred to burglary and theft.

Now, is there anything else that you would want to add to what I have just dictated?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Is that—are you satisfied that that is an accurate statement, a report of what we talked about——

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Beforehand?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Now, you have given an interview to Agents Smith and Chapoton, [spelling] C-h-a-p-o-t-o-n, of the Federal Bureau of Investigation on December 20, 1963, and you stated that, when you were on duty sometime between 3 and 11 p.m. on Friday night, November 22, that you recall seeing Jack Ruby on the third floor between 6 and 7 p.m. Will you tell us how you happened to—how you fix this as between 6 and 7 p.m.?

Mr. EBERHARDT. I was working afternoons, usually go to eat at around 5:30 or 6, and I already had eaten when I got back in the office when I seen Jack, and so make it around 7 o'clock.

Mr. GRIFFIN. Were you actually in the office when you saw Jack?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Where was Jack?

Mr. EBERHARDT. He had stuck his head in our door and hollered at us.

Mr. GRIFFIN. Did he come in and talk at all?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. How long did he remain in the office?

Mr. EBERHARDT. Oh, 10 or 15 minutes.

Mr. GRIFFIN. Who else was in the office with you at that time?

Mr. EBERHARDT. Our whole—well, our shift was on. I don't recall who actually was in there, but Lieutenant Leonard's shift was on at that time. That is who I worked for at that time.

Mr. GRIFFIN. Give me as many of the people as you recall who would have been on that shift.

Mr. EBERHARDT. Let's see. I wouldn't know their days off, but I could tell you the names of everybody on the shift.

Mr. GRIFFIN. All right. Let's have that.

Mr. EBERHARDT. C. A. Jones, S. Tuck, P. Dillehay, J. R. Johnston, C. T. Burney, W. P. Posey, R. A. Standifer, M. Tuck. Lieutenant, it was.

Mr. GRIFFIN. That is Lieutenant Leonard?

Mr. EBERHARDT. Yes; there is some more that I just can't—H. J. Bettes.

Mr. GRIFFIN. How do you spell that last name?

Mr. EBERHARDT. [Spelling.] B-e-t-t-e-s. Correction on Posey. He was on vacation. J. H. Boyd, that I can remember.

Mr. GRIFFIN. Those people that you have named, do you remember specifically if any of them were in the office when Jack came in?

Mr. EBERHARDT. Yes; the lieutenant was there, I think Jones was there, I think Tuck was there, and they were in and out and reporters in and out, you know, it is hard to sit here and visualize who was standing there, and the secretaries were there, but I don't recall which were on duty.

Mr. GRIFFIN. You have a number of rooms in your office; don't you?

Mr. EBERHARDT. In our office?

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. We have three interrogation rooms.

Mr. GRIFFIN. You have the main reception room, the interrogation rooms?

Mr. EBERHARDT. No, no; the only office that is closed off is the interrogation rooms.

Mr. GRIFFIN. As you walk into the office, you come into a room?

Mr. EBERHARDT. You come into an “L,” and then the room opens up for you.

(Discussion off the record.)

Mr. GRIFFIN. Now, can you describe which room Jack came into?

Mr. EBERHARDT. He opened our door and walked in about three paces and just stood there and talked.

Mr. GRIFFIN. Did he sit down at all?

Mr. EBERHARDT. No; he stood up.

Mr. GRIFFIN. Now, what do you remember him saying?

Mr. EBERHARDT. He came in and said hello to me, shook hands with me. I asked him what he was doing. He told me he was a translator for the newspapers. Of course, I knew that he could speak Yiddish. Had a notebook in his hand, and he talked a little bit about that, and then he said that he brought the coffee and sandwiches up for the reporters, corned beef sandwiches. He said, “Nothing but kosher stuff is all I bring.” He talked a little bit about the assassination of the President.

Mr. GRIFFIN. Do you remember him saying—what he said about the assassination?

Mr. EBERHARDT. How terrible it was for it to happen in the city, and then he left.

Mr. GRIFFIN. Did he seem—how would you describe his state of emotion over the Presidents death?

Mr. EBERHARDT. Well, he said that he—he called me by my middle name—he said, “It is hard to realize that a complete nothing, a zero like

that, could kill a man like President Kennedy was.” He said that, “It is hard to understand how a complete nothing,” that is what he referred to him as, “a complete nothing could have done this,” and then he left, and then I didn’t notice where he went.

Mr. GRIFFIN. Now, do you remember anything else that was said in these 5 or 10 minutes that he was in there?

Mr. EBERHARDT. No; he just asked me how I was doing, how my wife and children are, which he always did any time he seen anybody.

Mr. GRIFFIN. All right. Now——

Mr. EBERHARDT. I was trying to recall about this lapel deal and give it a lot of thought, and I can’t remember visually what he had on his lapel, but I do remember him taking his notebook and hitting his lapel, and he said, “I am here as a reporter,” and he took the notebook and hit like that. He had something on his coat, but I can’t visualize now what it was. I did not get one of his kosher sandwiches, either.

Mr. GRIFFIN. You didn’t. Did he show them to you?

Mr. EBERHARDT. No; I never did ask the man anything about them.

Mr. GRIFFIN. Is it because of his statement about the kosher sandwiches that you place the time as between 6 and 7 p.m.?

Mr. EBERHARDT. Well, I had already eaten. That is why I placed the time around there in the evening.

Mr. GRIFFIN. Well, could it have been as late as 10:30 or 11?

Mr. EBERHARDT. Oh, no; no. See, we get off at 11.

Mr. GRIFFIN. Do you know if there were Israeli newspaper or Yiddish——

Mr. EBERHARDT. There was a bunch of them running around there talking that unknown tongue. I don’t know what they were saying. There were some orientals; there was some French; there were several dialects running around there that I didn’t know what they were talking about.

Mr. GRIFFIN. Well, you saw Jack at a later time, also, didn’t you?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Now, could it have been at this later time that Jack told you about the kosher sandwiches?

Mr. EBERHARDT. I didn't speak to him at the later time. That is the only time I spoke to him. I just seen him.

Mr. GRIFFIN. Do you know, after Ruby killed Oswald, there were a number of rumors that circulated as to how he got into the basement, and one of the rumors was that he got in by the use of a press badge? Now, one thing we are interested in here is tracing how these rumors might have gotten started. You recall your actions after the assassination is that you might have described this particular episode that you just told us about now about being an Israeli interpreter. Do you recall that you mentioned that to anybody within the 24 hours after Ruby killed Oswald?

Mr. EBERHARDT. No; I didn't. The first one I talked to about it was when the FBI agents asked me about it.

Mr. GRIFFIN. Well, wasn't it common for all of you people to be talking about any contact that you had with Ruby on those 2 days?

Mr. EBERHARDT. See, I wasn't there. I was gone Sunday and Monday.

Mr. GRIFFIN. I see. But I mean, even when you came back, wasn't there a lot of gossip, what-not, guys exchanging views?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Didn't you somewhere between the time you actually saw Ruby here and the time that you were interviewed by the agents, didn't you talk to somebody in the police department about your meeting Ruby?

Mr. EBERHARDT. Yes. We talked about him being up there in the office, and being around the city hall like that and wondered how he got in the basement, and then the only other thing I did on that was write a report to the chief of police on some information given to me.

Mr. GRIFFIN. Off of the record here.

(Discussion off of the record.)

Mr. GRIFFIN. We will go on the record on this. I have asked Mr. Hubert to check in our files to see if we have got a copy of this report that you mentioned that you gave to Chief Curry. Now, I don't have any recollection

that we have it, and let me ask you now, if he doesn't report back to me and say that we have it, would you be good enough, when you go back to work today, to check where a copy of this report is and provide it to us? I am going to ask you to clear it with your superiors and everything.

Mr. EBERHARDT. All right.

Mr. GRIFFIN. I would like to see a copy of that. What did that report deal with?

Mr. EBERHARDT. This was information given to me by a police reserve who I know real well who was on duty at the time. He didn't think anything about telling anybody about it, and several days later he told me about it, about going out to the hospital when Oswald was shot and talking to another reserve out there, that he didn't know his name, who said that he had seen or thought he had seen a man walk down the ramp outside of the city hall.

Mr. GRIFFIN. Who was the reserve officer that gave you this information?

Mr. EBERHARDT. H. B. Holly, Jr. And as soon as he told me about it, I sat down and wrote a "Dear Chief," and gave it to my captain.

Mr. GRIFFIN. Did you have occasion yourself to talk to this unknown reserve officer?

Mr. EBERHARDT. No; I didn't. I talked to Holly.

Mr. GRIFFIN. Okay. Mr. Hubert indicated to me that we didn't have a copy of this report, and I would appreciate very much seeing it.

Mr. EBERHARDT. Okay. I will try.

Mr. GRIFFIN. Do you remember what you did in the period between the time you saw Ruby, at which you estimated at 6 or 7 p.m., and when you saw him later on at the press conference?

Mr. EBERHARDT. I worked—I just worked my day out, and then they held us over.

Mr. GRIFFIN. Did you stay in?

Mr. EBERHARDT. Yes. They had us on standby. I did paper work, caught up on supplements. They held us over a little bit, and then we had the press conference. When they brought Oswald in, we stood with him, myself and a couple of other detectives.

Mr. GRIFFIN. You stood next, right next, to Oswald for the purpose of guarding him?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. And were you able to look out over the crowd?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Now, where did you see Ruby in the crowd?

Mr. EBERHARDT. He was on the right-hand side of the room standing up on one of the tables with a notebook and pencil in his hand, with all of the reporters and cameramen out there. They were facing us. They were in the assembly room.

Mr. GRIFFIN. Who were the other people guarding?

Mr. EBERHARDT. There was a whole line, a whole line in front of the showup. I was standing about three people removed behind Oswald. I was standing behind Oswald and the reporters were shooting questions at them.

Mr. GRIFFIN. Was he seated?

Mr. EBERHARDT. No; he was standing. We were all standing.

Mr. GRIFFIN. You were able to look over his shoulder?

Mr. EBERHARDT. Oh, yes; I had a full view of the room.

Mr. GRIFFIN. Do you recall what other police officers were down there with you guarding Oswald and looking out?

Mr. EBERHARDT. Well, Mr. Wade was there; Chief Curry was there; Captain King was there.

Mr. GRIFFIN. What other detectives were guarding Oswald?

Mr. EBERHARDT. Well, homicide detectives were there. I don't know which ones they were. The ones that, you know, were working on him,



probably Leavelle and his partner. Joe Cody was there. That is the only ones I remember. And there was some uniform men from the jail, I believe, there.

Mr. GRIFFIN. Now, did you stay after Oswald left?

Mr. EBERHARDT. Until they got him out. I didn't have anything to do with transporting him to or from the assembly room, but when he initially arrived in the assembly room, they asked us to go up there more or less to keep the reporters from making a rush for him.

Mr. GRIFFIN. How did you happen to go down to the assembly room in the first place?

Mr. EBERHARDT. To hear the press conference.

Mr. GRIFFIN. Out of curiosity?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Did any other men from your bureau go down there?

Mr. EBERHARDT. Yes; Cody is from my bureau, and he is the only one that I remember being up there with me.

Mr. GRIFFIN. All right. Did you stay in the press conference room after the homicide people took Oswald out?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. And did Chief Curry speak at that time?

Mr. EBERHARDT. No; Henry Wade did.

Mr. GRIFFIN. Now, do you recall anything that happened during Henry Wade's interview?

Mr. EBERHARDT. No; because when Oswald left, then all semblance of any kind of order disappeared. They just, you know, come up around Henry Wade and just started——

Mr. GRIFFIN. Do you remember Ruby's saying anything during this press conference?

Mr. EBERHARDT. No; I don't remember seeing him again, either.

Mr. GRIFFIN. Do you remember Henry Wade making any statement to the effect that Oswald was a member of the Free Cuba Committee?

Mr. EBERHARDT. I don't remember too much of what the district attorney said. There was so much written and heard about it, it is hard to differentiate what Wade said from what I read in the paper.

Mr. GRIFFIN. If Ruby had said something at this press conference, would you have noticed it or heard it?

Mr. EBERHARDT. I have heard that he had from other people, you know, rumors around, but myself, I don't remember he said anything. I heard he corrected Mr. Wade on a question, is what I heard.

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. Is what I heard. I didn't stay for the entire conference. I was at liberty to go home. When they had me go up there and guard Oswald, as soon as he left, I was at liberty to go home.

Mr. GRIFFIN. When did you leave this conference?

Mr. EBERHARDT. About 5 minutes after he left.

Mr. GRIFFIN. Did you and Cody leave together?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Did you sign out of the building or anything?

Mr. EBERHARDT. No; we don't sign out. I just left, got in my car and went home.

Mr. GRIFFIN. Did Cody remain in there after you did?

Mr. EBERHARDT. I don't know. I lost him in the shuffle. I stood over there by Johnny, the news reporter up there in the pressroom at the city hall, is who I stood by while the conference was going on. He asked a couple of questions. I couldn't tell you what questions he asked. No; there was no semblance of order. Those reporters just holler out anything that comes in their mind, and whoever shouts the loudest is whoever gets the answer, is how it works.

Mr. GRIFFIN. If Ruby had said something while you were in there, would you have been close enough to Henry Wade or to Ruby to have heard it?

Mr. EBERHARDT. I don't know where Ruby was, so I couldn't answer that.

Mr. GRIFFIN. Well, you said at this press conference you saw Ruby standing back——

Mr. EBERHARDT. Right.

Mr. GRIFFIN. Back on a table?

Mr. EBERHARDT. Right

Mr. GRIFFIN. I don't understand it, now, when you say that you don't know where Ruby was.

Mr. EBERHARDT. As soon as Oswald left is when the press conference began, and when Oswald left, they all came running up to the front. There was great disorder. When Oswald left, all of the reporters was at liberty to do what they wished, and they all came up to the front, and I didn't see Jack Ruby after Oswald left.

Mr. GRIFFIN. Okay. I want you to be an artist here. Can you draw the assembly room?

Mr. EBERHARDT. Okay. Here is the main door. This is the stage back here for a showup.

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. It is raised. All right. And then through here you have an alleyway, a little hallway, and then down through here is a walkway. Now, through here are fixed tables that run length to the wall, stationary, all of the way down, both sides.

Mr. GRIFFIN. Will you mark those with a "T" or a "Table" or something like that?

Mr. EBERHARDT. Okay. Now, they were all stationary here. Over here is a desk that the showup lieutenant uses.

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. With a microphone here. Now, Oswald was brought in through here. All of the reporters were warned by the chief of police that, if

they rushed to the front, he would be taken out and no questions would be asked or answered.

Mr. GRIFFIN. All right. When Oswald came in there, where did he get planted?

Mr. EBERHARDT. He came up to the center of the stage.

Mr. GRIFFIN. Put an "X" or a circle.

Mr. EBERHARDT. He would be there.

Mr. GRIFFIN. Would you write "Oswald" there?

Mr. EBERHARDT. Okay.

Mr. GRIFFIN. Were there people on either side of Oswald?

Mr. EBERHARDT. Yes; I was on this side.

Mr. GRIFFIN. Now, the people, there weren't other prisoners but there were other detectives?

Mr. EBERHARDT. All of the way to the desk, all of the way to the door. Of course, I couldn't see too much over here.

Mr. GRIFFIN. All right. Will you put an "X" where you were standing?

Mr. EBERHARDT. Right about here.

Mr. GRIFFIN. And would you mark your initials or something there? Okay. Now, were there any people in between you?

Mr. EBERHARDT. This way?

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Between you two. How many officers were there?

Mr. EBERHARDT. The best I remember, two.

Mr. GRIFFIN. Will you put two little circles in there?

Mr. EBERHARDT. I am not sure.

Mr. GRIFFIN. Two "X's." Okay.

Mr. EBERHARDT. Now, they left some cameramen up here in front of this table, see.

Mr. GRIFFIN. Uh-huh.

Mr. EBERHARDT. And they were lined up all through in here. They were in the kneeling position.

Mr. GRIFFIN. Okay. You are indicating, in between the tables where you and Oswald were, why there were a bunch of news photographers?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. And they were all there in——

Mr. EBERHARDT. Aisleway, all news photographers.

Mr. GRIFFIN. That leads to the back of the room.

Mr. EBERHARDT. Okay. And the rest of them back here stood up on these tables. When the front tables got full, they all stood up, and Ruby was over here.

Mr. GRIFFIN. All right. Will you put “Ruby” on that?

Mr. EBERHARDT. Then they proceeded to ask him questions, take his picture, what have you, and somebody, the chief, I don’t remember which one of the chiefs, said, “All right. Take him out.” And they took him out, and I remained, and when they took him out, here they all come.

Mr. GRIFFIN. After Oswald was taken out, were there any people still standing up on those tables?

Mr. EBERHARDT. No; they got off, and, of course, Henry Wade was up here at the desk.

Mr. GRIFFIN. Mark “Henry Wade” there.

Mr. EBERHARDT. Then they all run for him, and you couldn’t see Wade for the reporters around him.

Mr. GRIFFIN. All right. Were the reporters between you and Henry Wade?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. So the reporters had their back to you?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Now, could you hear the questions that were being asked by the reporters?

Mr. EBERHARDT. I could hear most of them; yes.

Mr. GRIFFIN. Could you hear Henry Wade's answers?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Was there any difference in the way that you could hear Henry Wade's answers as opposed to the way you could hear the questions?

Mr. EBERHARDT. Well, the questions were coming from all over the room.

Mr. GRIFFIN. Was Henry Wade speaking through a microphone?

Mr. EBERHARDT. They kept hollering for him to turn on the microphone. At first, he hadn't gotten it turned on, but they hollered at him, and he turned it on.

Mr. GRIFFIN. Was there any substantial difference between your ability to hear Wade——

Mr. EBERHARDT. No.

Mr. GRIFFIN. As opposed to your ability to hear the reporters?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Were there any times when there were people speaking when you couldn't hear them, reporters asking questions?

Mr. EBERHARDT. No; they shout. They shout from the crowd. Very ill-mannered people, the way they conducted that thing. There is no—I mean they don't have any concern for any of their other people or not. It is every man for himself. They just run, and if they run over one of their own, they do, that is all, and it is mass confusion. Whenever they left these tables and what have you, they just come up there.

Mr. GRIFFIN. I am going to mark this, step over here and get a pen. While I am marking this particular document, I would like for you to look

at the report of your interview and read it over and then I am going to ask you if there are any additions or corrections you want to make.

Mr. EBERHARDT. Did you want me to deliver that “Dear Chief” copy to you?

Mr. GRIFFIN. If you would, send it over.

Mr. EBERHARDT. Okay.

Mr. GRIFFIN. I am going to mark for identification——

Mr. EBERHARDT. Let me make you a better picture.

Mr. GRIFFIN. You are going to go down in history. A thousand years from now, they are going to look at this and say, “That is what Eberhardt did.” I have marked this diagram that you have made of the assembly room Exhibit No. 5025, and I have labeled it “Police Assembly Room, Oswald Press Conference.” Now, this is the diagram that you have just finished drawing, is it not?

Mr. EBERHARDT. Yes, sir. Yes, sir.

Mr. GRIFFIN. Would you sign that and date it? [Pause.] You are going to mess up the historians. The year is—1267, that is your police number?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. I thought you were writing the year on there. Now, I am going to also mark for identification the report of Smith and Chapoton.

Mr. EBERHARDT. I don’t like that, I mean this part here, I mean they didn’t get this exactly right.

Mr. GRIFFIN. All right. Let us change it. Let me mark it, “Dallas, Texas, Detective Eberhardt, 3-25-64, Exhibit 5026.” Now, would you look at that, and what corrections or changes do you want to make?

Mr. EBERHARDT. This part, asked me how come Jack had my phone number. My baby, my youngest one, when she was born——

Mr. GRIFFIN. Yes.

Mr. EBERHARDT. He knew I was a Catholic. He was Jewish, which has nothing to do with it. It is a christening card, not a present. I don’t know if

you know anything about our religion. When a child is christened, it is pretty big in our religion. He wanted to send her a christening card, and that is when I invited him to my house.

Mr. GRIFFIN. When was that?

Mr. EBERHARDT. That was about 2 weeks after the baby was born.

Mr. GRIFFIN. When was the baby born?

Mr. EBERHARDT. May 8.

Mr. GRIFFIN. Wouldn't this be an accurate statement, "Because this was the day that Eberhardt's child was born, Ruby wanted to send the child a christening card"?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Why don't you cross it out and put "christening card"?

Mr. EBERHARDT. Okay.

Mr. GRIFFIN. Now, put your initials there.

Mr. EBERHARDT. And I invited him to come out to the house and see the baby when she was christened. He had never been to my home nor I to his.

Mr. GRIFFIN. Is there anything else——

Mr. EBERHARDT. No.

Mr. GRIFFIN. That you want to change on that?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Is there anything else that you think might be of value to the Commission, either in connection with the Oswald killing——

Mr. EBERHARDT. Well, this part down here. I don't know if anybody has mentioned to you about this or not, but Officer Mullinax, he talked to me a long time when this boy got killed.

Mr. GRIFFIN. When did that occur?

Mr. EBERHARDT. It was in the summer 2 years ago.

Mr. GRIFFIN. 1961 or 1962?



Mr. EBERHARDT. No; 1962.

Mr. GRIFFIN. Uh-huh.

Mr. EBERHARDT. An officer was shot to death in a hotel. There were no witnesses, except the man that shot him. The man that shot him was not indicted. There were no witnesses. I went up to Jack's one night, and he talked to me one night about it, and he went to the boy's funeral. I don't know if that gives you any idea of how Ruby's mind is, but it is unusual in our profession to have a man show up at a funeral. You would just have to draw your own conclusions as to why he would.

Mr. GRIFFIN. Now, Mullinax was on the vice squad?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. And Jack tried to be very friendly with all of the members of the vice squad?

Mr. EBERHARDT. He was friendly with everybody. If he knew you, he would say hello to you. If he didn't know you, he was going to try to meet you.

Mr. GRIFFIN. The vice squad would probably be one of the first to close his place down if there was any problem?

Mr. EBERHARDT. Liquor board and the vice squad, that is right.

Mr. GRIFFIN. You feel that you know Jack well, don't you?

Mr. EBERHARDT. Yes and no. I know the man from seeing him up there, but I have never rode in any car with him, never had him at my home, but I know him from seeing him time after time after time.

Mr. GRIFFIN. Have you seen people who are like Jack, enough people of Jack's background that you think you could judge his character?

Mr. EBERHARDT. We get around a lot of characters in this business, and he was one of them. He was a little more unique than some of the others.

Mr. GRIFFIN. How was he more unique?

Mr. EBERHARDT. Everybody knew he had a bad temper. He had a reputation in town as being a streetfighter.

Mr. GRIFFIN. Uh-huh.

Mr. EBERHARDT. If an officer got in trouble around his place, he would help him.

Mr. GRIFFIN. Do you think he was the kind of a man who was capable of being nice to people for his own benefit because, there would be some personal interest or profit in it?

Mr. EBERHARDT. I don't know. He—I couldn't see what he could—he never asked us to do anything. We arrested people out of his place. He didn't get mad at us, say anything to us, "Don't arrest her." In fact, he told us about it. She was about to start on his show at the time that we arrested her.

Mr. GRIFFIN. Is that the girl on the forgery charge?

Mr. EBERHARDT. Yes.

Mr. GRIFFIN. Do you think Jack was the kind of man who was capable of keeping a secret of being engaged in activities that other people might not know about?

Mr. EBERHARDT. Certainly. I believe, if he didn't want us to know something, he wasn't going to tell us. If he did something illegal, I wouldn't look for him to come tell us; we would have to catch him, if he was doing something, but most people are that way.

Mr. GRIFFIN. He was an outgoing guy, he talked about a lot of things, but was he also the kind of guy that was capable of keeping things pretty close to the vest if he wanted to?

Mr. EBERHARDT. Yes. Like I say, going up there to check his old place, he knew me as well as anyone. He has walked past me and not even seen me. He was just in another world. He would walk past and stop and say hello and say, "I didn't see you," and another time he would see you two blocks away and run you down and say hello. He liked people in his place; he liked names to introduce you to people, and that is why he had somebody around there. Like when he had Buddy King around there, and after he got through telling me who he was, I thought he was a big star, after Jack got through telling me he had been in the movies. He is just like that. That is all.

Mr. GRIFFIN. Did you hear any reports prior to the time that he shot Oswald that he was a homosexual?

Mr. EBERHARDT. No, I hadn't heard anything. In fact, I thought he was a ladies' man, the way he talked.

Mr. GRIFFIN. Is there anything else about this Mullinax thing, incident, that seems significant to you?

Mr. EBERHARDT. Just the fact that he went to the funeral, talked about this fellow getting away with it, that something should be done, more or less that we just couldn't do anything about it.

Mr. GRIFFIN. Have there been any other police officers killed in the line of duty, other than Tippit and Mullinax, since you have been on the force?

Mr. EBERHARDT. No.

Mr. GRIFFIN. Did Jack—was Jack personally acquainted with Mullinax?

Mr. EBERHARDT. He knew Mullinax, had seen him. He had been up at the place.

Mr. GRIFFIN. Would Mullinax have had an opportunity to visit Jack's place on a regular basis in connection with his business on the police force?

Mr. EBERHARDT. I wouldn't say that Jack Ruby knew him as good as he knew some of the other officers, no, but Mullinax had been up there several times.

Mr. GRIFFIN. Who were—at the time that Oswald was killed, who were the officers on the force outside of yourself that Ruby knew the best, would you say?

Mr. EBERHARDT. I don't know who he knew the best.

Mr. GRIFFIN. From your own estimation, who did he?

Mr. EBERHARDT. I don't know all that he knew. He knew just about everybody.

Mr. GRIFFIN. Can you think of any ones in particular that you think he knew quite well?

Mr. EBERHARDT. I have never seen him out any place with any officers; I have never seen him outside of his place with any officers; I have never seen him in a car or restaurant or anything like that with any policemen.

Mr. GRIFFIN. Well, do you feel that there were other people on the force who knew Ruby better than you do?

Mr. EBERHARDT. Well, I have been there 8 years. I don't know even how long Jack Ruby has been in Dallas. I have been in Dallas a little longer than 8 years. I imagine that some of the older officers knew him when he had another place here. He used to have another place down on Ervay Street. That is before I got on the police force.

Mr. GRIFFIN. I don't think I have any more questions. Do you have anything else that you want to offer?

Mr. EBERHARDT. No, nothing that I can think of.

Mr. GRIFFIN. Okay.

Mr. EBERHARDT. I will bring that report down to you tomorrow and leave it for you.

Mr. GRIFFIN. I would appreciate that. If you would, also sign this statement.

Mr. EBERHARDT. Any place?

Mr. GRIFFIN. Any place and date it.

Mr. EBERHARDT. Have you got a card?

Mr. GRIFFIN. Pardon.

Mr. EBERHARDT. Have you got a card?

Mr. GRIFFIN. No, I don't. I will show you my identification.

Mr. EBERHARDT. No. I was just going to write it down. In case you weren't here, I was going to leave it for you.

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## **TESTIMONY OF SIDNEY EVANS, JR.**

The testimony of Sidney Evans, Jr., was taken at 2:10 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Mr. Sidney Evans, Jr. Mr. Evans, my name is Leon D. Hubert, I am a member of the advisory staff of the President's Commission on the Assassination of President Kennedy. Under the provisions of the Executive Order No. 11130, dated November 29, 1963, and Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, I have been authorized to take the sworn deposition from you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and subsequent violent death of Lee Harvey Oswald. In particular, as to you, Mr. Evans, the nature of the inquiry is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, particularly as to the whereabouts of Jack Ruby around—on the morning of November 24. Now, did you receive a letter from the General Counsel of the President's Commission, Mr. J. Lee Rankin?

Mr. EVANS. No, sir.

Mr. HUBERT. Such a letter was addressed to you and apparently miscarried somehow, but in any case——

Mr. EVANS. Might have went to those apartments. See, I was working out of Houston, and they cut the run and I had to transfer, and that was the reason that the three of us was sharing the apartment there.

Mr. HUBERT. Let me state this to you. Under the rules adopted by the Commission, you are entitled to a 3-day written notice prior to the taking of the deposition, and it was sent out by mail, but apparently hasn't reached you. The rules of the Commission also provide that you can waive that notice if you want to do so, and I will ask you now if you are willing to waive that 3-day notice and let us take your deposition?

Mr. EVANS. It don't matter. I want to get it over with. I done lost too much already.

Mr. HUBERT. All right, would you stand and raise your right hand so that I can administer the oath? Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. EVANS. I do.

Mr. HUBERT. Will you please state your name, Mr. Evans.

Mr. EVANS. Sidney Evans, Jr.

Mr. HUBERT. And your age?

Mr. EVANS. Thirty-seven, I think.

Mr. HUBERT. Where do you reside, sir?

Mr. EVANS. Retired?

Mr. HUBERT. Where do you live?

Mr. EVANS. 2205 Marvel. M-a-r-v-e-l.

Mr. HUBERT. Is that in Dallas?

Mr. EVANS. Irving, Tex.

Mr. HUBERT. Irving, Tex.?

Mr. EVANS. Uh-huh, that is——

Mr. HUBERT. What is your occupation, sir?

Mr. EVANS. Line driver for Red Ball Motor Freight.

Mr. HUBERT. How long have you been so employed?

Mr. EVANS. Since 1958.

Mr. HUBERT. All right.

Mr. EVANS. Six years.

Mr. HUBERT. In November of 1963, where did you live?

Mr. EVANS. My home is in Houston, but I was still at the Marsalis Apartments.

Mr. HUBERT. Where is that located, that Marsalis Apartments?

Mr. EVANS. 232 Ewing, I believe, or, I don't know.

Mr. HUBERT. Did you say 223 South Ewing Street?

Mr. EVANS. Well, I guess.

Mr. HUBERT. What apartment did you have?

Mr. EVANS. 204.

Mr. HUBERT. And I think you said you shared that with somebody?

Mr. EVANS. Two other drivers.

Mr. HUBERT. Who are they?

Mr. EVANS. Jack Scritchfield and Malcom Slaughter.

Mr. HUBERT. How long had you been living there with these men, sharing that apartment?

Mr. EVANS. Well, I believe I only stayed there 2 months.

Mr. HUBERT. In other words, it was a stopoff place on your runs that you make as a driver, is that right?

Mr. EVANS. Well, you see, they have a bunkhouse, and we were staying in the bunkhouse, but the company said that we can't do that no more, and our families were still in Houston, so, we had to have a place to sleep when we were in a town, and sometimes wouldn't be there 1 day a week.

Mr. HUBERT. Did you estimate that you actually shared this apartment with these other two gentlemen for about 2 months?

Mr. EVANS. Two months.

Mr. HUBERT. And how often, or how many times, put it that way, during those 2 months prior to November 24, 1963, did you actually stay overnight or stay in the daytime in this apartment?

Mr. EVANS. I don't believe it was once a week.

Mr. HUBERT. About once a week? So, about eight or nine times, you think, during this period?

Mr. EVANS. Something like that. About the only time we would be there is if we came in Saturday, we would be there Saturday, or Saturday night and run out Sunday.

Mr. HUBERT. Do you recall being at that apartment on November 24, 1963, the Sunday after the President was assassinated?

Mr. EVANS. That was the morning Oswald was shot? Yes, all three of us was there that day.

Mr. HUBERT. Did you have occasion that day to see a man by the name of Jack Ruby?

Mr. EVANS. Well, I guess it was him.

Mr. HUBERT. Well, tell us how you——

Mr. EVANS. Well, you see——

Mr. HUBERT. Came to think it was him or guess it was him?

Mr. EVANS. Well, see, the church I have been going to is over in Irving, and they had one, I found out, over there on Marsalis, Catholic Church there in Oak Cliff, and I thought they had 10 o'clock mass, but I went and they had a 9 and 11.

Mr. HUBERT. Yes.

Mr. EVANS. So, I come back to the apartment at—well, it was just a little bit before 10, and just as I got out of the car a fellow come out of the laundry, and he had his—both hands with laundry in them, and I stepped out of my car, and I kind of waited for him to go on up, and he kind of waited for me.

Mr. HUBERT. How close did you get to him?



Mr. EVANS. Well, we wasn't—right then only about 15 feet, something like that.

Mr. HUBERT. How was the man dressed?

Mr. EVANS. He was—had on a T-shirt, pants and T-shirt.

Mr. HUBERT. No hat?

Mr. EVANS. No hat.

Mr. HUBERT. And you said he had some laundry in his hands?

Mr. EVANS. Yes, sir.

Mr. HUBERT. Did he live in that same apartment house?

Mr. EVANS. Well, I went up the stairs first, and he went up behind me, and we went up the first flight. I figured he lived on the first flight. I didn't know where he lived, so, when we went around and went up the second flight he was right behind me, and I said, "How are you this morning?" And he ignored me like I didn't—well, somebody going along with both arms full of laundry, I would open the door, because he was going up on the same floor, so, when he didn't speak with me, I said, "Well, heck with you." So, I walked on and he went in 207 there.

Mr. HUBERT. He went in apartment 207? Was this laundry he had already clean, or what?

Mr. EVANS. Well, they had a—they've got a washer and dryer in the basement in the apartment.

Mr. HUBERT. He was coming up from the washateria?

Mr. EVANS. Yes.

Mr. HUBERT. And he went into apartment 207?

Mr. EVANS. Yes. And, so, I went in. Two buddies were up, so, we ate breakfast and I went back to church at 11.

Mr. HUBERT. Now, you had gone to try to catch the 10 o'clock mass?

Mr. EVANS. Yes; but didn't have at 10. Had to go at 11.

Mr. HUBERT. At what time did you leave your apartment?

Mr. EVANS. I left about a quarter of 11.

Mr. HUBERT. I mean the first time?

Mr. EVANS. About a quarter until 10.

Mr. HUBERT. Quarter to 10? And you got there and found out mass was at 9:30?

Mr. EVANS. No; it was 9. Just getting over.

Mr. HUBERT. Just getting over, so you just came on back to the apartment?

Mr. EVANS. Yes.

Mr. HUBERT. How long was it between the time you left your apartment and—until the time you got back on the first round when you found out——

Mr. EVANS. Well, it only takes about six or seven blocks from the apartment.

Mr. HUBERT. You were driving?

Mr. EVANS. Driving. It takes less than——

Mr. HUBERT. So, you figure about 10 o'clock or a little before?

Mr. EVANS. A little before 10.

Mr. HUBERT. Now, have you subsequently seen pictures of Jack Ruby?

Mr. EVANS. I have seen pictures.

Mr. HUBERT. Have you seen him in person since?

Mr. EVANS. That is the only time I ever seen him.

Mr. HUBERT. You had never seen him before that date?

Mr. EVANS. No, sir.

Mr. HUBERT. Never since?

Mr. EVANS. No, sir.

Mr. HUBERT. Do you think that the man you saw that morning that you have just described was the same man that you have seen in the pictures?

Mr. EVANS. Well, I really didn't get a close look. All I know, he went in that apartment, and it is my understanding he had a roommate, but it might have been him.

Mr. HUBERT. What I wanted to ask is whether or not the pictures that you have seen in the newspapers since of a person now known as Jack Ruby was the same man, in your opinion, that you saw with the laundry in his hands at about 10 o'clock on November 24?

Mr. EVANS. Well, it could be. I mean, kind of—didn't have real thick hair on top.

Mr. HUBERT. Well, I show you a series of pictures here, which for purposes of identification I am marking on the back as follows, "Dallas, Texas, March 31, 1964. Exhibit No. 5122, deposition of Sidney Evans, Jr.," and signing my name to it, and in order that the record may show that we are both talking about the same document, I will ask you to put your name under mine, after which, I will ask you some questions about it.

Mr. EVANS. All right.

Mr. HUBERT. I will ask you to turn the document over and look at those several photos there of a man and ask you if that is the man you saw carrying the laundry on the morning of November 24, at about 10 o'clock.

Mr. EVANS. Well, it looks like him. Of course, he didn't have on nothing but a T-shirt, white T-shirt when I saw him.

Mr. HUBERT. Yes; what I was thinking about, his face——

Mr. EVANS. Well, you know, I just looked over my shoulder. He was coming up the stairs there behind me, and I said, "How are you this morning?" and he——

Mr. HUBERT. Well, I take it that you looked at him several times, that is to say, you looked at him when you first saw him?

Mr. EVANS. I didn't really look at him.

Mr. HUBERT. Then what did you do? Offer to open the door——

Mr. EVANS. I just, you know, I spoke to him, and I—he was coming up the same floor I was going up and I never paid much—in fact, I——

Mr. HUBERT. At sometime you must have mentioned to somebody that you thought you had seen this man on that Sunday, and that he was Jack Ruby. Do you recall how that came about?

Mr. EVANS. Well, one of these buddies there, he told some newspaperman a bunch—that he told them all about that when I wasn't even there at the time.

Mr. HUBERT. You mean at the time that he told the story?

Mr. EVANS. He told them all about it.

Mr. HUBERT. We are talking about now, Malcom Slaughter, aren't we?

Mr. EVANS. Yes.

Mr. HUBERT. You had told Slaughter that you thought that man you had seen was Ruby?

Mr. EVANS. After we ate and I went back to the 11 o'clock mass, and it was close to 12 o'clock when I got back to the apartment.

Mr. HUBERT. Yes.

Mr. EVANS. And just as soon as I opened the door these guys told me Oswald had been shot.

Mr. HUBERT. Yes.

Mr. EVANS. And so, then, it wasn't long before 1 o'clock Life Magazine, and—man, they was out there taking picture, and newspapers, and they were taking pictures of the apartment and interviewing different people there.

Mr. HUBERT. So, it was at that time that you told Mr. Slaughter that you thought you had seen Ruby that morning?

Mr. EVANS. Yes; I told him what happened there and the guy had went in that apartment there.

Mr. HUBERT. Did you know his roommate, I think you mentioned something about a roommate?

Mr. EVANS. I understand the papers said there were two of them staying there.

Mr. HUBERT. But you don't know of your own knowledge?

Mr. EVANS. No, sir.

Mr. HUBERT. Had you ever seen the man who was supposed to be his roommate?

Mr. EVANS. In fact, we was not in there, and sleeping in the daytime mostly when we was there, so I really don't know anyone there.

Mr. HUBERT. Anyhow, this man that you saw, who you think might have been Ruby, you never had seen him before nor have you seen him after?

Mr. EVANS. No.

Mr. HUBERT. And your testimony is that this document identified as Exhibit 5122, looks like him?

Mr. EVANS. Yes.

Mr. HUBERT. But that he had on a T-shirt instead of a tie and the——

Mr. EVANS. Yes.

Mr. HUBERT. Then did he have a hat on?

Mr. EVANS. No.

Mr. HUBERT. Did you see his hair?

Mr. EVANS. Well, it was kind of thin there down the middle. That looks a little darker than what I remembered. Seemed like he was sort of grayish.

Mr. HUBERT. How tall a man was he?

Mr. EVANS. He was a lot shorter than I was, five something.

Mr. HUBERT. How tall are you?

Mr. EVANS. Six.

Mr. HUBERT. You are 6 foot?

Mr. EVANS. Yes, sir.

Mr. HUBERT. You say 5 foot what?

Mr. EVANS. Five six or——

Mr. HUBERT. What sort of build?

Mr. EVANS. Stout and husky.

Mr. HUBERT. How—powerful looking man?

Mr. EVANS. Well——

Mr. HUBERT. Strong looking?

Mr. EVANS. Yes.

Mr. HUBERT. Have you anything else that you know?

Mr. EVANS. That is all I know. Well, I know Slaughter told me that he's seen him dressed up not long after that.

Mr. HUBERT. Did I understand you to say that Mr. Slaughter made some comment about this man known as Jack Ruby——

Mr. EVANS. Well, they told me he did. I don't know whether he did or not.

Mr. HUBERT. What did he tell you?

Mr. EVANS. Said that he—not long after I had left and went back to church, he said a man had—dressed up, and walked by our apartment, and he spoke to him, or something, I don't know.

Mr. HUBERT. Did he say that he thought it was Ruby?

Mr. EVANS. They said they thought it was.

Mr. HUBERT. When did they say they had seen him?

Mr. EVANS. Well, if it was him it was somewhere right at 11 o'clock.

Mr. HUBERT. When did he tell you that?

Mr. EVANS. After we got back, found out what happened.

Mr. HUBERT. In other words, told you on that same day?

Mr. EVANS. Yes.

Mr. HUBERT. When you told him that you thought you had seen Ruby earlier when he was carrying in laundry, he told you that he thought he had seen him dressed up a little later?

Mr. EVANS. Uh-huh, that was after Oswald was shot, and they was out there taking pictures.

Mr. HUBERT. Did you ever advise the FBI agent that you had seen Ruby around the apartment, although you did not know him personally?

Mr. EVANS. No, sir; I never did. The only time I saw him was that one time.

Mr. HUBERT. If it was Ruby? Right?

Mr. EVANS. Right. There was a landlady there, after that was all over there, she told us that—well, in fact, these two guys that I room with had rented the apartment, and I was out of town, and called me long distance and wanted to know if I wanted to share it with them, because it was pretty expensive for two men, and no more than we stayed there—I said, well, I had to stay somewhere, and had to have a phone so that the company could call me. Something that you—that they require is that you have to have a telephone.

Mr. HUBERT. What about the landlady?

Mr. EVANS. She said during the summer months he would climb up on the roof and sunbath up there.

Mr. HUBERT. Who? Ruby?

Mr. EVANS. Ruby, whatever——

Mr. HUBERT. She tell you that?

Mr. EVANS. Yes.

Mr. HUBERT. What is her name? Do you know?

Mr. EVANS. No; I don't, but they moved a week or two after that. It seemed like there was somebody interviewing them—it was a young man and his wife. They moved out in Irving some place, but I don't know where they moved to.

Mr. HUBERT. You mean that is the third partner?

Mr. EVANS. No; that is the landlady or the landlord and his wife, or the people that rented the apartments.

Mr. HUBERT. And you say they moved and went to live in Irving?

Mr. EVANS. Somewhere, and said he bought them a place.

Mr. HUBERT. So, they don't manage the apartment any more?

Mr. EVANS. I guess it was about 2 weeks.

Mr. HUBERT. You don't know their names?

Mr. EVANS. No; see, these two friends of mine, they had rented the apartment, and they had talked to the landlady and actually only supposed to be two people staying in there. In fact, they would be—I would pay them my share and they would pay the note.

Mr. HUBERT. Do you know where Slaughter lives now?

Mr. EVANS. Well, he still lives in Houston, and they have given up the apartment.

Mr. HUBERT. Oh, they have?

Mr. EVANS. Too expensive for two of them.

Mr. HUBERT. Do you know what his address is in Houston, or how he could be reached? Well, he works for the same company that you do?

Mr. EVANS. Yes.

Mr. HUBERT. That is the Red Ball Motor Freight?

Mr. EVANS. Red Ball Motor Freight.

Mr. HUBERT. Where is it located in Houston, the main office?

Mr. EVANS. 4000–4004 Irving Street, Houston.

Mr. HUBERT. Irving Boulevard, Houston, Tex. Now, I think you have given the name of the other man.

Mr. EVANS. Scritchfield. Of course, he didn't——

Mr. HUBERT. Scritchfield?

Mr. EVANS. Yes.

Mr. HUBERT. Do you know where he is?



Mr. EVANS. He is here in Dallas. I mean, he is staying up here. I don't know——

Mr. HUBERT. He could be reached through your company, too, is that right?

Mr. EVANS. Yes.

Mr. HUBERT. All right, sir.

Mr. EVANS. Isn't nothing that he knows about it. The only one would be Malcolm, and he said he seen a man who was dressed up that looked like him that he spoke to outside the apartment there. I think he went down to get a letter or something, or check the mail, or something.

Mr. HUBERT. Who did? Slaughter?

Mr. EVANS. Yes.

Mr. HUBERT. Had Slaughter indicated that he knew Ruby?

Mr. EVANS. No; he didn't know him. Just like I was, just stayed there maybe one day a week, you know, and——

Mr. HUBERT. Well, all right; I think that's it.

Mr. EVANS. Didn't know anyone there.

Mr. HUBERT. Well, now, have you been interviewed prior to today by any member of the Commission's staff?

Mr. EVANS. No, sir; I believe there was a Mr. Page, or something—— somebody——

Mr. HUBERT. FBI man?

Mr. EVANS. Talked to me.

Mr. HUBERT. I am talking about a member of the advisory staff of the Commission itself?

Mr. EVANS. No.

Mr. HUBERT. Now, prior to the commencement of this interview—I mean this deposition, there was a short interview between you and me. Did anything occur during that interview which we have not brought out in the deposition?

Mr. EVANS. No.

Mr. HUBERT. I think that is all, sir.

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## **TESTIMONY OF BRUCE RAY CARLIN**

The testimony of Bruce Ray Carlin was taken at 4:30 p.m., on April 15, 1964, at the Post Office Building, Fort Worth, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Bruce Carlin. Let the record show that his attorney, Mr. Alfred J. Jackson of the firm of Tuchin & Jackson, 705 Fair Building, Fort Worth, Tex., is present and representing Mr. Carlin during the time this deposition is being taken. Let the record show also that Mrs. Bruce Carlin, his wife, is also in the room.

By the way, and this may go on the record, too, Mr. Jackson, you had mentioned to me prior to the beginning of the deposition something about obtaining a copy.

Mr. JACKSON. We don't want one.

Mr. HUBERT. Let me say to you that a copy can be made available to you at the cost which the reporter will charge you for the copy.

(Reporter stated that the price to them would be 35 cents per page.)

Mr. JACKSON. They want one.

Mr. HUBERT. Miss Laidrich, at the end of each of these depositions let there be a statement to the effect that Mr. Jackson—why don't you dictate it.

Mr. JACKSON. Let the record show that Bruce Carlin and his wife, Karen Bennett Carlin, have made it known at this time to the interrogator representing the Warren Commission that each of them would like a copy of their deposition in this matter, that at this time each is financially unable to pay for said deposition and reserves the right to obtain a copy of said deposition at some later date.

Mr. HUBERT. My name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission.

Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission, in conformance with the Executive order and the joint resolution, I have been authorized to take a sworn deposition from you, Mr. Carlin.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relative to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Carlin, the nature of the inquiry today is to determine what facts you know about the death of Oswald, and any other pertinent facts you might know about the general inquiry, particularly concerning conversations you had with Mr. Ruby on the 23d and 24th, and your knowledge concerning a telegram by which your wife received \$25 from Mr. Ruby.

Now Mr. Carlin, I think you have appeared here today by virtue of a letter addressed to you by Mr. J. Lee Rankin, General Counsel for the President's Commission; is that correct, sir?

Mr. CARLIN. Yes.

Mr. HUBERT. Have you received that, or did you receive that more than 3 days ago?

Mr. CARLIN. Yes, sir.

Mr. HUBERT. All right, would you stand, and I will administer the oath.

Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. CARLIN. I do.

Mr. HUBERT. Would you state your name.

Mr. CARLIN. Bruce Ray Carlin.

Mr. HUBERT. How old are you, sir?

Mr. CARLIN. Twenty-three

Mr. HUBERT. Where do you live?

Mr. CARLIN. 1312 Fairmont, Fort Worth.

Mr. HUBERT. Well——

Mr. JACKSON. At this time for other address purposes, will you tell us the name of your father?

Mr. CARLIN. H. T. Carlin.

Mr. JACKSON. Where does he live?

Mr. CARLIN. Route 13, Box 258, Fort Worth.

Mr. HUBERT. Are you presently occupied, Mr. Carlin?

Mr. CARLIN. I am not.

Mr. HUBERT. What has been, generally speaking, your occupation?

Mr. CARLIN. I am a salesman.

Mr. HUBERT. You sell any particular product?

Mr. CARLIN. Yes. Except for one job where I worked for a greeting card company, I sell sundries like drugs, hair sprays and headache remedies.

Mr. HUBERT. What companies have you worked with?

Mr. CARLIN. The Blue Bonnet Drug Co. in Arlington, Big State Mercantile in San Antonio, and Motel Drug Service in Fort Worth.

Mr. HUBERT. Now, Mr. Carlin, you were present during the deposition of your wife just within the last hour and a half?

Mr. CARLIN. That's correct.

Mr. HUBERT. I want to cover those areas, if possible, in this way, by asking you if you have any other versions of what she said and testified to on the various points involved. I think in that way we can save time. In other words, if you would prefer, of course, I can go through it, but since you were here, and if it is agreeable to your counsel, we can get at it that way.

Did you hear her say anything which, to your knowledge, you would disagree with, and I don't mean by that of course to put either of you in a position of not saying the truth, but just simply that it is a recognition that witnesses sometimes see things differently than others in complete good faith on the part of both witnesses, you understand?

Mr. CARLIN. Yes.

Mr. HUBERT. Any variations that you saw?

Mr. CARLIN. [To Mr. Jackson.] May I ask, at the time that I talked to you, did you make some kind of notes or is that what you are doing?

Mr. JACKSON. I was taking notes of the whole proceedings. Let me ask you, on November 22, 1963, Karen said she heard about the shooting of the President from Andrew Armstrong. Who called and stated that the Carousel would be closed that night? I think you indicated to me that at the time you or maybe possibly you and she heard about it in some other way prior to that time?

Mr. CARLIN. I myself misunderstood the question—that is correct, but what I thought she said was the way she heard that Oswald was killed.

Mr. JACKSON. All right, to your knowledge, how did she learn that Oswald was killed?

Mr. CARLIN. I was watching television and I don't remember the program, but a news bulletin interrupted the program and said a man by the name of Ruby, I believe.

Mr. JACKSON. Jack Ruby?

Mr. CARLIN. I don't remember whether it said Jack or it said Ruby, a Dallas nightclub owner, had attempted to assassinate Lee Harvey Oswald, the assassinator of John F. Kennedy, and I made the statement, "I bet they mean Ruby."

Mr. JACKSON. You made the statement to whom?

Mr. CARLIN. Karen. I said, "I bet they mean Ruby."

Mr. JACKSON. Why did you make this statement, do you remember?

Mr. HUBERT. Mr. Jackson, may I ask him—I have no objection whatsoever to your asking any questions, but I think perhaps for the sake of the record, it would be better if I ask them, and then when we finish asking him, you absolutely have the right to go ahead.

Mr. JACKSON. I was just trying to help you.

Mr. CARLIN. I really don't recall if it said Jack Ruby or not. I don't know what made me say, "I bet that is Ruby," but I know the announcer on TV seemed not to be sure, and said that this was not verified yet. And only a few minutes later the phone rang and it was Tammi True who asked if I had seen television.

Mr. HUBERT. Did you speak to her yourself?

Mr. CARLIN. Yes, I picked the phone up and she said, "Were you watching television?" And I said, "Yes." She said, "Did you know Jack Ruby just killed Oswald?" And I said, "I just made that statement to Karen, I bet that is what the man meant." The only reason that I can think of that I said, "I bet that is Jack Ruby," is the fact that he may have said Jack Ruby, or maybe a man by the name of Ruby running a Dallas strip joint. I think that is the way he said it.

Mr. HUBERT. In any case, what you want to tell now is that you differ with your wife's recollection of how she learned of the shooting of Oswald in that you yourself saw it on television and remarked to her that at least it could have been Jack Ruby, and then it was confirmed by the call?

Mr. CARLIN. This is what she said, except the fact she forgot that Tammi True had called. I don't think she even said in her statement a while ago except for the fact that she was thinking she had seen it on television. Of course, we all saw it so many times.

Mr. HUBERT. Well, Mr. Jackson, do you want to pursue any further?

Mr. JACKSON. No.

Mr. HUBERT. Have you any other aspects of the matter that you would like to comment upon relative to your wife's testimony first?

Mr. CARLIN. A number of times there were a few things, very minor, which a person's memory might be—mine is failing me. There are a few

things that were said that I did not know about, that she mentioned. But this is because I was not always at the club.

Mr. HUBERT. What I mean to do by this is to simply ask you this. So far as you have heard it and except in the way you have corrected it, your version of the role you played in the things you did and the things you said and the things you heard is about the same as your wife's, is that correct?

Mr. CARLIN. There are two more things that I can think of right now, and let me state both of them. One is concerning the rent, and one is the fact that I talked to him, which she stated she didn't know what we were saying. But I talked to him in the parking lot that night.

Mr. HUBERT. Take one at a time.

Mr. CARLIN. Concerning the parking lot conversation on the phone. She came back to the table in Colony Club and was rather upset about the fact Jack talked to her that way, and it made me a little upset, and I said I will call him next time. And I called him from the parking lot, and he said, "Bruce, that girl works for me, and she gets paid on a certain day." And I think it was Mondays. But the way I remember it, there were—I mean Sundays, I am sorry—but there were times when they went over to the next day before they got paid. He said, "She works for me and she is to get paid at a certain time and I don't owe the girl anything."

I said, "I realize that, Jack, but we need the money to get back." And he said, "Well, I've got some people here and I can't come down right now." And then he said, "I will just tell the attendant at the parking lot to give you all some money. Let me speak to Karen or to Little Lynn," I believe is the way he said it, and I handed the phone to her, as she said.

Mr. HUBERT. When you spoke to him, were you asking simply for money to get back, or for money to pay rent and buy groceries and so forth?

Mr. CARLIN. At that time we were asking for money to get back. Not working steadily, because my job requires a good car and mine was out of commission, at times this man that I worked for with the Motel Drug Service, which promised me a good job in the future, would come by and pick me up to help me. And one day he might pay me a little bit of money to get along on, and I never knew when I was going to get any, so all we



were interested in at the time was getting home. When I gave the phone to her, she stated we needed the money for rent and groceries.

Mr. HUBERT. You heard that yourself? You heard her say that?

Mr. CARLIN. I do not recall whether she said that at that time. As far as the money going for rent and groceries, because I didn't know that I would have to remember, and in fact I talked to Mr. Tom Thomas about it, because somebody from the, some authorities, somebody from the FBI or Secret Service had called to clear up a number of these things on the phone. In fact, they called almost in the middle of the night, and I wouldn't tell them anything. And he said, "Well, if you are not sure who you are talking to, hang the phone up and call me in the office in Dallas," and I did.

Mr. HUBERT. Which night was this?

Mr. CARLIN. I have no idea. We had just come home and the phone rang, and I don't really even remember the man's name. But I called him back at his office so I would know who I was talking to. It was one of the men who had talked to her, I believe. I don't recall his name, but at the time I did.

Mr. HUBERT. What did he want to talk about?

Mr. CARLIN. A number of questions which we had both already answered. But he wanted to get them clear again. And then I don't recall, but for some reason somebody had called up at one time or another which caused us to call Mr. Thomas. I was trying to keep my name, because of my family's respectability, out, and I wanted Mr. Thomas, who also worked for the same company my father did, and I didn't want him brought into it if I could help. And he said they were either going to subpoena him to the trial or get a statement from him. And I called him to tell him this.

Then I mentioned something about the rent. When I took the place I paid 3 weeks in advance, and then maybe I would go a week and then I would pay the week before and a week ahead. There was nothing, there was no particular date that I ever paid the rent. Sometimes ahead and sometimes I was behind. I do not know for sure that the \$25 that we asked for went for rent at that time or whether we kept it and paid it when it was due, or whether it went for groceries or medicine, which we both needed.

But to make a long story short, I presume the reason she said rent and groceries was those were the two main factors that we needed to exist. All I am trying to clear up is the fact that I am not sure that I gave the landlord money for the rent at that time.

Mr. HUBERT. Do you concur in your wife's statement that her request to Ruby on the 24th was not made solely for the purpose of rent?

Mr. CARLIN. Yes.

Mr. HUBERT. Now did you actually hear her conversation?

Mr. CARLIN. Yes.

Mr. HUBERT. And she mentioned rent and groceries?

Mr. CARLIN. It seems to me she said something like rent, groceries and other things, just as you would say everybody else. In other words, we needed money to exist until she could get the rest of her check.

Mr. HUBERT. Mr. Carlin, the purpose of this call to Mr. Ruby was, as you have stated it, is that correct?

Mr. CARLIN. Yes.

Mr. HUBERT. You were not asked by anyone to make this call, is that correct?

Mr. CARLIN. That's correct, sir.

Mr. HUBERT. No one suggested to you other than your wife, of course, and Ruby himself, that this call be made?

Mr. CARLIN. No, sir.

Mr. HUBERT. Insofar as Ruby suggested it be made, he didn't suggest anytime, as far as you were concerned, that it be made?

Mr. CARLIN. If he said this, I didn't hear him saying it to her on the phone. She did ask me to call, I believe, once, maybe twice, before we found the money was there. Just as soon as we found out——

Mr. HUBERT. Do you remember how you all decided to call Ruby on the 24th when you did call him?

Mr. CARLIN. Yes. The fact that he said to call, and when we got up, she said that we should call, and then after we heard of Oswald's death, I think just a few minutes, I asked if the money had come in, and they said no, and I think she called and found out later that the money had come in.

Mr. HUBERT. But I mean, the time of the call to Ruby was not planned or fixed in anyway? It was completely gratuitous?

Mr. CARLIN. When we woke up, we called him. We slept late that day.

Mr. HUBERT. No time had been set prior to calling him?

Mr. CARLIN. No, sir.

Mr. HUBERT. Mr. Carlin, have you been interviewed by any members of the President's Commission other than myself today?

Mr. CARLIN. No, sir.

Mr. HUBERT. I suppose we did have what might be considered to be a little interview in some conversation in the hall. Do you recall anything that was said in the hall which has not been brought out in your deposition and your wife's deposition which I understand you have adopted with the amendments that have been made? In other words, I am trying to ask you if there is anything that we talked about that hasn't been put in the record, because if it hasn't we ought to get it in there now.

Mr. CARLIN. I understand, but I cannot think of anything.

Mr. HUBERT. Now, Mr. Jackson, have you anything that you would like to question your client, Mr. Carlin, about, or any statement you wish to make, or observation?

Mr. JACKSON. None.

Mr. HUBERT. That being the case, I think that is all.

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## **TESTIMONY OF KAREN BENNETT CARLIN**

The testimony of Karen Bennett Carlin was taken at 3:05 p.m., on April 15, 1964, at the Post Office Building, Fort Worth, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission. Mrs. Carlin was accompanied by her attorney, Mr. Alfred J. Jackson, Jr., and by her husband, Mr. Bruce Carlin.

Mr. HUBERT. This is the deposition of Karen Bennett Carlin. Let the record show that Mrs. Carlin is accompanied by her husband, Mr. Bruce Carlin, and by Mr. Alfred J. Jackson, Jr., attorney at law, in the firm of Tuchin & Jackson, suite 705, Fair Building, Fort Worth 2, Tex., who is representing Mrs. Carlin.

Mrs. Carlin, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission, in conformance with the Executive order and the joint resolution, I have been authorized to take a sworn deposition from you, Mrs. Carlin.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mrs. Carlin, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry and in greater particularity, about your conversation by telephone and otherwise with Jack Ruby on the night of the 23d of November, on the 24th of November, and the sending of money by Western Union to you.

Now Mrs. Carlin, I know that you are expecting a baby, and that as a matter of fact the time for the baby to be born is actually past. For that reason, I want to state to you that if in the course of this deposition, which I do not think will last very long anyhow, but if in the course of you feel the slightest discomfort and wish to stop it or recess it, please don't hesitate to say so, and we will accommodate you completely. You understand that?

Mrs. CARLIN. Yes.

Mr. HUBERT. Just any time you feel you want to stop the deposition, just let us know right away.

Mrs. CARLIN. Okay.

Mr. HUBERT. Now you have appeared here, I think, as a result of a letter addressed to you by Mr. J. Lee Rankin, General Counsel of the President's Commission?

Mrs. CARLIN. Yes.

Mr. HUBERT. You have received that letter, I think?

Mrs. CARLIN. [Produces letter.]

Mr. HUBERT. Did you receive that letter more than 3 days ago?

Mrs. CARLIN. Yes.

Mr. HUBERT. Now you need not stand, but would you raise your right hand and I will swear you in. Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mrs. CARLIN. I do.

Mr. HUBERT. Mr. Jackson, it may be that you have not seen that, and if you wish to have a moment to look it over——

Mr. JACKSON. Go ahead.

Mr. HUBERT. Let the record show Mr. Jackson indicates he doesn't wish to stop now.

What is your name, please, ma'am?

Mrs. CARLIN. Karen Lynn Carlin.

Mr. HUBERT. How old are you?

Mrs. CARLIN. Twenty.

Mr. HUBERT. Where do you live, Mrs. Carlin?

Mr. CARLIN. 1312 Fairmont.

Mr. HUBERT. At present I take it you are unoccupied?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you know a man by the name of Jack Ruby?

Mrs. CARLIN. Yes; I did.

Mr. HUBERT. Would you state for the record now, ma'am, how you came to know him and how long you have known him, and so forth.

Mr. CARLIN. It was through my husband that I came to know him. I was working at the Theatre Lounge as a stripper and I didn't like the job there nor the employers, so my husband had heard about the Carousel Club through girls that worked there at the Theatre Lounge, so I went over and talked to Mr. Ruby and in turn I went over and received a job after talking to him.

Mr. HUBERT. Do you remember about when that was?

Mrs. CARLIN. September?

Mr. JACKSON. Answer on your own.

Mrs. CARLIN. I don't know.

Mr. HUBERT. Was it in 1963?

Mrs. CARLIN. Yes.

Mr. HUBERT. Let me put it this way. Perhaps we can arrive at it this way. How long before the death of the President did you start to work for Mr. Ruby?

Mrs. CARLIN. I don't know. I would say about 2 months. I hadn't been there very long.

Mr. HUBERT. What sort of employment did you obtain with him?

Mrs. CARLIN. Stripper.

Mr. HUBERT. What was your compensation for the job? I mean, was it salary?

Mrs. CARLIN. It was salary. Seven days a week. It was \$120 a week.

Mr. HUBERT. A hundred and twenty dollars a week and a 7-day week?

Mrs. CARLIN. Yes.

Mr. HUBERT. On what day of the week were you paid?

Mrs. CARLIN. On Saturdays.

Mr. HUBERT. Saturday nights?

Mrs. CARLIN. Yes.

Mr. HUBERT. Who paid you?

Mrs. CARLIN. Jack Ruby.

Mr. HUBERT. Did you know a man by the name of Ralph Paul?

Mrs. CARLIN. Yes.

Mr. HUBERT. What was your understanding of his relation to Jack Ruby or to the Carousel?

Mrs. CARLIN. Well, as I understood it, I met him in the office of Jack Ruby, and he was supposed to be a friend from Chicago that had known him, and he just introduced me as Ralph. And the only thing I knew was that he was a friend of Jack Ruby's. I didn't know he had any connection with the club at all.

Mr. HUBERT. You don't know now?

Mrs. CARLIN. No.

Mr. HUBERT. Did you see this gentleman Ralph Paul only once?

Mrs. CARLIN. Yes. Before the killing of the President, I only saw him once. But after that, I saw him all the time. He came in all the time.

Mr. HUBERT. You mean he was actually operating the club after?

Mrs. CARLIN. Yes, afterwards.

Mr. HUBERT. Did you find out then that he was the owner and operator of a drive-in restaurant called the Bull Pen at Arlington?

Mrs. CARLIN. No.

Mr. HUBERT. You don't know that now?

Mrs. CARLIN. No.

Mr. HUBERT. But in any case, prior to the time when Oswald was shot, you had met Paul only once, and you don't know what his relationship was?

Mrs. CARLIN. That's right.

Mr. HUBERT. About this young man called Andrew Armstrong, do you recall him?

Mrs. CARLIN. The colored man?

Mr. HUBERT. Yes.

Mrs. CARLIN. Yes.

Mr. HUBERT. What was his function there?

Mrs. CARLIN. Well, he was supposed to be the janitor to clean up and do little errands and to run the bar. Afterwards, it turned out that he also had a part in running the club.

Mr. HUBERT. You mean after?

Mrs. CARLIN. After the President was killed.

Mr. HUBERT. You stayed on at the club until what date?

Mrs. CARLIN. It was December. I quit—no, I couldn't say it was in December. It was right before the first. It was a week before the first.

Mr. HUBERT. The first of the year?

Mrs. CARLIN. January; yes.

Mr. HUBERT. Do you know a man by the name of Larry Crafard?

Mrs. CARLIN. Not by name; no.

Mr. HUBERT. Do you remember Larry?

Mrs. CARLIN. No.



Mr. HUBERT. Do you remember a man that stayed there and slept on the premises?

Mrs. CARLIN. No; I don't know of anyone that did. Andrew was the only one I knew that ever spent the night there, and that was just because he would say so the next evening. He said, "I am tired." Said, "I had to stay here all night."

Mr. HUBERT. I might add that this man Larry's full name was Curtis Laverne Crafard.

Mrs. CARLIN. Yes. That was a little young boy, the one that worked the lights.

Mr. HUBERT. He stayed on the premises?

Mrs. CARLIN. Yes. But he stayed next door most of the time. I know he was sleeping there for a while, but Jack put a stop to it.

Mr. HUBERT. You mean Jack wouldn't let him sleep in the club?

Mrs. CARLIN. Jack didn't like him sleeping there, because there was too many things gone.

Mr. HUBERT. Then he made him go next door?

Mrs. CARLIN. He went next door. I don't know who was next door or what it was next door, but he went next door.

Mr. HUBERT. But what you heard was that this man had, Crafard, Curtis Laverne Crafard had been staying on the premises, but that Jack had put a stop to it and made him move to some place next door, but you don't know which next door?

Mrs. CARLIN. Yes.

Mr. HUBERT. Who did you hear this from?

Mrs. CARLIN. It was from Larry. He was taking care of the dogs or something.

Mr. HUBERT. He told you he had to move out?

Mrs. CARLIN. Yes.

Mr. HUBERT. Out of the premises altogether?

Mrs. CARLIN. No. He just said, "I am going to have to move. I can't stay here. I don't know where I am going to get the money, but I am going to have to move."

Mr. HUBERT. That must have happened just before the assassination of the President?

Mrs. CARLIN. Yes. After that I didn't see Larry no more.

Mr. HUBERT. So to your knowledge he never did actually move, but just said he was going to have to move, and he informed you that Jack had told him he would have to move?

Mrs. CARLIN. Yes.

Mr. JACKSON. When you say move, you mean move out at night and not sleep there?

Mrs. CARLIN. Yes.

Mr. HUBERT. That is what I meant, to move next door, I think is what you meant?

Mrs. CARLIN. Yes.

Mr. HUBERT. Now coming to the event of November 22, where were you? Do you recall when you heard about the shooting of the President?

Mrs. CARLIN. At home.

Mr. HUBERT. How did you hear it, on TV?

Mrs. CARLIN. Television. No; I take that back. The first I heard was when I got the telephone call.

Mr. HUBERT. Who did you receive a telephone call from?

Mrs. CARLIN. Andrew.

Mr. HUBERT. Armstrong?

Mrs. CARLIN. Yes.

Mr. HUBERT. What did he tell you, do you remember?

Mrs. CARLIN. He just said that the President had been shot and we weren't going to open, that we would open the next night, and I hung up.

Mr. HUBERT. In other words, it would be closed on Friday, but open on Saturday?

Mrs. CARLIN. Yes.

Mr. HUBERT. Anytime you want to interject any kind of comment, let me know and I will stop. You did not speak to Ruby at that time?

Mrs. CARLIN. No. Andrew was calling from the club, he said, and just wanted to let all the girls know that they needn't come to work.

Mr. HUBERT. Did you stay then in Fort Worth that night?

Mrs. CARLIN. Yes.

Mr. HUBERT. I think you indicated that Andrew did not tell you that the club would not be open Saturday?

Mrs. CARLIN. Saturday?

Mr. HUBERT. Saturday.

Mrs. CARLIN. He said that it would probably be open Saturday. He said to call to make sure.

Mr. HUBERT. He asked you to call to make sure?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you call?

Mrs. CARLIN. No.

Mr. HUBERT. Instead, you came in?

Mrs. CARLIN. Yes. I tried to call. There wasn't anybody there in the evening, so I went ahead and got ready and went to work.

Mr. HUBERT. How did you come?

Mrs. CARLIN. Bus.

Mr. HUBERT. Did you come alone?

Mrs. CARLIN. No; I didn't. I didn't come by bus. I came with Tammi True, another stripper. She had to come over and collect her salary. She had been fired by Ruby, and she was coming over to get her salary, so she brought my husband, and I went over to Dallas with her.

Mr. HUBERT. She had an automobile?

Mrs. CARLIN. Yes.

Mr. HUBERT. She was living in Fort Worth?

Mrs. CARLIN. Yes.

Mr. HUBERT. When had she been fired, do you know?

Mrs. CARLIN. Yes. She had been fired Thursday night.

Mr. HUBERT. Do you know why she was fired?

Mrs. CARLIN. Yes. There was a question about salary.

Mr. HUBERT. Do you mean she thought she should get more?

Mrs. CARLIN. Yes.

Mr. HUBERT. Where did you all park the automobile then?

Mrs. CARLIN. In the car lot next door.

Mr. HUBERT. Nichols' car lot?

Mrs. CARLIN. I don't know the name of it.

Mr. HUBERT. Well, what happened then?

Mrs. CARLIN. Then we got to the club and the doors were locked, and there was no sign of anybody being in there, so we thought——

Mr. HUBERT. About what time was it?

Mrs. CARLIN. It was about 8:30.

Mr. HUBERT. Was there a sign up saying that the club would be closed?

Mrs. CARLIN. Yes. They were closed, but it didn't say when or how long or when it would open or anything on it. We went upstairs to the Carousel Club—I mean the Colony Club next door and waited a few minutes hoping they would open up, thinking possibly it would be late, and we would wait up there 30 or 40 minutes. And my husband checked several times to see if they were open, and I said, "Tammy, if you are broke,"—she knew how to get ahold of him, because she was broke. She didn't have any salary.

Mr. HUBERT. You didn't have any money?

Mrs. CARLIN. No.

Mr. HUBERT. None whatsoever?

Mrs. CARLIN. We had a little change. I think 40 or 50 cents, change. And Tammy said she didn't want——

Mr. HUBERT. Between you and your husband?

Mrs. CARLIN. Yes. And I asked Tammy how to get ahold of Jack and she gave me his home phone, and that is when I tried to call Jack.

Mr. HUBERT. Did you reach him?

Mrs. CARLIN. Yes; I reached him at home. He answered the telephone. And I asked Jack if we were going to be open, and he got very angry and was very short with me. He said, "Don't you have any respect for the President? Don't you know the President is dead?" And I said, "Jack, I am sorry. Andrew said that perhaps we would be open, and I don't have any money, and you know I am supposed to get paid." And I wanted some money on my pay to get back home. And he said, "I don't know when I will open. I don't know if I will ever open back up." And he was very hateful. And he said something he had to come down to the club in about an hour and for me to wait and he would see me then. And I hung up and told my husband what had happened, and we waited and waited and he didn't show up. That is when my husband and I went down to the garage and Tammi had to go see some friend there at the Theatre Lounge.

Mr. HUBERT. This first call that you made was not made from the garage?

Mrs. CARLIN. No. It was made from the Colony Club.

Mr. HUBERT. So then you went over to the garage?

Mrs. CARLIN. Yes.

Mr. HUBERT. What was the purpose of going there?

Mrs. CARLIN. Because we wouldn't have any more money and we didn't want to sit up there.

Mr. HUBERT. So then did you call Mr. Ruby again?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you or your husband?

Mrs. CARLIN. My husband.

Mr. HUBERT. Were you present when your husband called?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you hear what your husband, at least, said on his end of the line?

Mrs. CARLIN. Yes; but I didn't pay much attention. I was sitting in the chair talking to the man that was in there, the man that worked at the garage.

Mr. HUBERT. So you are not able to tell us really what happened on your husband's end of the line?

Mrs. CARLIN. No.

Mr. HUBERT. What happened after that?

Mrs. CARLIN. Well, my husband then handed the phone to me and called me back to the phone so I got on the telephone and Jack said, "Tell the man at the garage, put him on the phone," and he said, "I will let you have \$5 to get back home." And that was all that was said, and he gave me \$5, and I signed a receipt, and that was all.

Mr. HUBERT. Did you talk to Jack about the rest of your salary?

Mrs. CARLIN. No.

Mr. HUBERT. How much in fact was due at that time?

Mrs. CARLIN. I don't remember. I had drew some on my salary. I wouldn't say for sure, but I had drew some that week.

Mr. HUBERT. You were asking him not merely for \$5, but all that was due you, I take it?

Mrs. CARLIN. No; I was just asking him for an advance.

Mr. HUBERT. Oh, I see.

Mrs. CARLIN. Because he had been nice to me and let me have an advance before, so I just wanted an advance until he got the club back open.

Mr. HUBERT. Was your salary due at the end of the week or the beginning?

Mrs. CARLIN. At the end of the week.

Mr. HUBERT. Wasn't your salary due that Saturday night?

Mrs. CARLIN. I think it was; yes. I think I got paid on Saturday. It was either Saturday or Monday, I don't remember, because I got my salary on Monday twice.

Mr. JACKSON. Karen, could you have gotten paid on Sunday night?

Mrs. CARLIN. It could have been Sunday. It was either Saturday or Sunday. I got paid twice on Monday.

Mr. JACKSON. On this particular night of November 23, on the telephone when you talked to Jack and he said I will let you have \$5 through the garageman and, you signed the receipt, did you ask him for any given amount of money or just for some money?

Mrs. CARLIN. Just enough money to get back home on, and I happened to mention I would need money for rent tomorrow, and he said to call him.

Mr. JACKSON. Call him tomorrow?

Mrs. CARLIN. Yes. He didn't say what time.

Mr. HUBERT. In other words, on the Saturday night you did mention to him the question of getting not merely the \$5, enough to get back, but really a part of your salary, which would become due whenever pay day was, whether it was Saturday night or Sunday or Monday night?

Mrs. CARLIN. Yes.

Mr. HUBERT. Do I understand you that his remark was, "Well, I will let you have \$5 now and then call tomorrow?"

Mrs. CARLIN. Yes.

Mr. HUBERT. Did he say that he would send you money the next day?

Mrs. CARLIN. No; he did—just said call him tomorrow and he would talk about that tomorrow.

Mr. HUBERT. In other words, the call that he wanted you to make on Sunday was with reference to your request for your pay?

Mrs. CARLIN. Yes.

Mr. HUBERT. I gather that he was not disposed to talk about it then, but invited you to call him the next day?

Mrs. CARLIN. That's right.

Mr. HUBERT. And mentioned no time at all?

Mrs. CARLIN. No.

Mr. HUBERT. All right, then, did you call him the next day?

Mrs. CARLIN. Yes; I did.

Mr. HUBERT. Well, where did you call him from?

Mrs. CARLIN. From our home.

Mr. HUBERT. Where was that now?

Mrs. CARLIN. I don't remember the address. Meadowbrook Drive.

Mr. HUBERT. Did Mr. Weldon Thompson—did you all have a phone listed in your own name?

Mrs. CARLIN. Bruce Carlin.

Mr. HUBERT. Was it listed in your husband's name?

Mrs. CARLIN. Yes.

Mr. HUBERT. That phone you used?

Mrs. CARLIN. Yes.

Mr. HUBERT. And you called Jack?

Mrs. CARLIN. At home.

Mr. HUBERT. Is it a long distance call between Fort Worth and Dallas?

Mrs. CARLIN. Yes, sir.

Mr. HUBERT. Charged to your phone, I take it?

Mrs. CARLIN. Yes.



Mr. HUBERT. Do you remember what time you called him?

Mrs. CARLIN. It was 10. I think it was around 10 or 10:05 or 10:15, something like that. It was between that time.

Mr. HUBERT. Would you be able to say with any degree of accuracy that it could not have been earlier than 10?

Mrs. CARLIN. It could have been. I am not going to say for sure.

Mr. HUBERT. Well, the fact of the matter is, the phone records show—I don't have them before me, but the phone records show it was about that time. Could you just tell us the gist of the conversation with Jack on that occasion.

Mrs. CARLIN. Well, Jack answered the telephone. And I told him who it was, and he said, "Yes, well," and I said, "I have called, Jack, to try to get some money, because the rent is due and I need some money for groceries, and you told me to call."

And he said, "How much will you need?" And I said—I'll ask my husband, and then I said about "\$25."

Mr. HUBERT. Your husband was in the room with you?

Mrs. CARLIN. Yes. He was in the part of the front part of the house. And he said, "Well, I have to go downtown anyway, so I will send it to you by Western Union." And he asked me what name to send it in, and I told him, "Karen Bennett."

Mr. HUBERT. Was it arranged to be sent to your home or what?

Mrs. CARLIN. No; to Western Union downtown.

Mr. HUBERT. Did he tell you about what time to expect it?

Mrs. CARLIN. No. I asked him what time, about how long, and he didn't say.

Mr. HUBERT. You mean he didn't say anything, or he said he didn't know?

Mrs. CARLIN. He said, "Well," he did say it would take a little while to get dressed and something about the dog, I don't remember what it was.

And he said, "I'll go on down and send it to you." And I said, "I sure would appreciate it." And that is about all there was.

Mr. HUBERT. Now was your rent in fact due?

Mrs. CARLIN. Yes.

Mr. HUBERT. Had your landlord been pressing you for the rent?

Mrs. CARLIN. No.

Mr. HUBERT. Did Ruby seem to be annoyed that you were asking for money on Sunday?

Mrs. CARLIN. No; he—not that Sunday, he didn't seem to be annoyed.

Mr. HUBERT. Do you think that there was a difference in his attitude toward the money that you asked for on Sunday as opposed to the money you asked for the night before?

Mrs. CARLIN. Yes. He still seemed upset, you know, or hateful, short, but he didn't seem as much as he was Saturday night.

Mr. HUBERT. He definitely indicated to you that he would have to dress, is that correct?

Mrs. CARLIN. Yes. He said, "It will take me about 20 or 30 minutes to get dressed, and then I will go on down." And something that he had to do with the dogs' freedom, I think.

Mr. JACKSON. About the dogs?

Mrs. CARLIN. Yes. He had some dogs. Kept them in the club.

Mr. HUBERT. Now when did you first hear about Oswald's shooting?

Mrs. CARLIN. Well, I heard that right after I talked to Jack. It wasn't very long after that on the television, and my husband was watching the television and I was washing dishes, and my husband said, "Karen, isn't that Jack?" And I said, I thought he was joking. I told him to shut up and I started laughing, and sure enough it came out that it was Jack.

Mr. HUBERT. You mean you saw pictures of Jack Ruby?

Mrs. CARLIN. After that on the news.

Mr. HUBERT. Rerun, you mean?

Mrs. CARLIN. Yes.

Mr. HUBERT. You are talking about that famous picture that shows Jack coming through?

Mrs. CARLIN. Yes.

Mr. HUBERT. It shows really the back of him, doesn't it?

Mrs. CARLIN. Yes.

Mr. HUBERT. Were you able to recognize him?

Mrs. CARLIN. They knew his name. They had already broadcast his name.

Mr. HUBERT. So that when you saw, you recognized him? You mean you recognized his name before you saw any picture?

Mrs. CARLIN. Yes. My husband was the one that first saw him. I didn't see it. It was a rerun, I think, that I saw, because they already had his name and that he had the Carousel Club.

Mr. HUBERT. This was prior to the time you went to Western Union?

Mrs. CARLIN. No; I had not gone down to Western Union.

Mr. HUBERT. This was prior?

Mrs. CARLIN. Yes.

Mr. HUBERT. What did you do about the money at Western Union?

Mrs. CARLIN. After I saw the thing on television, I said I bet Jack didn't send the money, so my husband dialed the number and he asked if they had a money order for me, and they said, "Yes."

Mr. HUBERT. You mean dialed the number to the Western Union?

Mrs. CARLIN. Yes. And he said, "Yes, they did." Then my husband and I got dressed and after we ate, we got dressed and went down and picked it up.

Mr. HUBERT. Well——

Mr. JACKSON. About what time was this call made, do you remember?

Mrs. CARLIN. No.

Mr. JACKSON. Could it have been in the afternoon?

Mrs. CARLIN. Yes. It probably was in the afternoon, because after I talked to Jack, we ate and washed dishes, and I cleaned up the house, and it took me a while to get dressed.

Mr. HUBERT. Then you all went down to Western Union?

Mrs. CARLIN. Yes.

Mr. HUBERT. You signed the necessary papers?

Mrs. CARLIN. We had to take a bus down, so that took quite a while, too. I don't remember what time it was.

Mr. HUBERT. Was the money paid to the landlord, do you know?

Mrs. CARLIN. Yes; we paid the rent.

Mr. HUBERT. That same day?

Mrs. CARLIN. I don't remember if it was the same day or not.

Mr. HUBERT. Well, did you keep the money, or did you give it to your husband?

Mrs. CARLIN. I gave it to my husband. We didn't have enough money to get back on the bus, so we had to take some of it and go back on the bus.

Mr. HUBERT. I don't follow you.

Mrs. CARLIN. We rode a bus downtown, and we had enough money to get downtown, but not enough to get back.

Mr. HUBERT. Did you have to use part of the \$25 to get back, but you gave the difference to him?

Mrs. CARLIN. Yes.

Mr. HUBERT. Had your landlord been pressing you for the money?

Mrs. CARLIN. No. It wasn't just the rent. It was groceries, too, because my husband wasn't working at the time.

Mr. HUBERT. You had not known Jack Ruby, I take it, prior to the time you first went to work for him?

Mrs. CARLIN. No. I had seen Jack Ruby one other time before that, but I didn't know who he was.

My girl friend and I, a stripper, at the Theatre Lounge, was walking to the bus stop at the Greyhound bus station to get something to eat during our hour break, and we were walking, and this big Cadillac drove up and tooted the horn and my girl friend smiled and it turned out to be Jack Ruby after I met him. I knew who it was. But he left a card on the sidewalk in front of us saying the Carousel Club.

Mr. HUBERT. How long before you went to work for him, then, did that episode take place?

Mrs. CARLIN. This was about 2 weeks before, because I went home and told my husband about it.

Mr. HUBERT. He was driving a Cadillac?

Mrs. CARLIN. Yes. There was three of them in the car, two men and one woman. I never did see the man or woman, didn't recognize them.

Mr. HUBERT. Who was driving?

Mrs. CARLIN. It was Jack. It turned out to be Jack. I asked him if he was the one that was driving the car and threw the card on the sidewalk, and he said, "Yes, I was."

Mr. HUBERT. Did you ever find out who the other people were in the car?

Mrs. CARLIN. No; I never did ask him.

Mr. HUBERT. Did you find out subsequently what kind of car Jack drove?

Mrs. CARLIN. No.

Mr. HUBERT. This was definitely a Cadillac?

Mrs. CARLIN. Yes. It could have been the other person's car he was driving.

Mr. HUBERT. There was one man?

Mrs. CARLIN. There was two men.

Mr. HUBERT. Two men besides Jack?

Mrs. CARLIN. One besides Jack. Looked like a redheaded woman. After I saw Jack later—at that time I thought it was a stripper, but I don't know.

Mr. HUBERT. They were all riding in the front of the car?

Mrs. CARLIN. Yes.

Mr. HUBERT. The girl was in the middle, I take it?

Mrs. CARLIN. Yes.

Mr. HUBERT. That was about 2 weeks after that that you went to work for him?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you mention the name of the girl who was with you at that time? I think you did.

Mrs. CARLIN. It could have been Jada.

Mr. HUBERT. I meant the girl that you were walking with?

Mrs. CARLIN. She was a stripper. I don't remember her name. She had a hose act. I don't remember her name.

Mr. HUBERT. Kathy Kay?

Mrs. CARLIN. No. My husband could probably—it was Liza Sommers, because he adored her little act.

Mr. HUBERT. Liza?

Mrs. CARLIN. Sommers.

Mr. HUBERT. Do you remember Wally Weston?

Mrs. CARLIN. Yes.

Mr. HUBERT. Do you remember when he left?

Mrs. CARLIN. No. I wasn't there when he left. You are talking about the Carousel Club?

Mr. HUBERT. Yes.

Mrs. CARLIN. No. I was never there when he performed there.

Mr. HUBERT. In other words, he left before you got there?

Mrs. CARLIN. Yes; I met him after he left there and went in the theatre.

Mr. HUBERT. Do you remember a time when a man by the name of Rocco came to the Carousel and took quite a number of pictures of Ruby and the girls and the acts and so forth?

Mrs. CARLIN. There was so many people taking pictures all the time, that I don't know.

Mr. HUBERT. This was—this man was from a magazine or at least he was attempting—this was quite some time prior to the assassination, but he came there and—as an advertising stunt or something of the sort, and took quite a number of pictures. Do you remember that?

Mrs. CARLIN. No; because I remember two or three different ones that came before this ever happened, so I don't know who you are talking about. But they were all supposed to be from some kind of magazine.

Mr. HUBERT. Do you remember a picture of you and Tammi True and Jack together when Jack was sitting in his office in a chair and Tammi was on one side and you were on the other in sort of a crouch?

Mrs. CARLIN. Yes.

Mr. HUBERT. Do you remember that picture?

Mrs. CARLIN. Yes.

Mr. HUBERT. About when was that taken, do you remember?

Mrs. CARLIN. That was before the shooting of the President.

Mr. HUBERT. Oh, yes; I know. But how much longer, do you know?

Mrs. CARLIN. I don't know. I am not any good on times or anything.

Mr. HUBERT. Could you tell us whether it was—how long after you went to work for Jack was that picture taken? Now I am talking about the one that I have just described with Ruby in the middle and Tammi on one side and you on the other?

Mrs. CARLIN. There was never one taken with Tammi. The only one I had taken was with—what is her name—the one that was pregnant.

Mr. HUBERT. The large redheaded girl, the one that appeared in a magazine?

Mrs. CARLIN. I can't place her name.

Mr. HUBERT. Joy?

Mrs. CARLIN. Yes, Joy.

Mr. HUBERT. McDonald?

Mrs. CARLIN. No; I can't think of it.

Mr. HUBERT. Her stage name was Joy Dale?

Mrs. CARLIN. Yes.

Mr. HUBERT. That is the one I meant. I said Tammi True, but I was mistaken myself. She had dark curly hair?

Mrs. CARLIN. Yes.

Mr. HUBERT. Well, now, as to that picture, can you relate the time of taking that picture to the time when you first went to work there?

Mrs. CARLIN. No; I guess it was a month after that, I know. At least, but I don't know how much longer after that.

Mr. HUBERT. You don't know whether it was summertime or——

Mrs. CARLIN. No; it was winter.

Mr. HILBERT. It was winter?

Mrs. CARLIN. Yes; it was getting cold.

Mr. HUBERT. Can you relate it—I think I have asked you this before, but perhaps your memory is fresher now. Can you relate it to the time of the death of the President?

Mrs. CARLIN. I would say 2 or 3 weeks before the death of the President.

Mr. HUBERT. Do you remember a rather large heavy fat man, very heavily built, who used to come to the Carousel almost every weekend and used to sit close by the stage and sort of carry on a banter with the theatre?

Mrs. CARLIN. Yes.



Mr. HUBERT. Do you know who he is?

Mrs. CARLIN. No; I don't know who he is. But I remember him. He weighed about 300 pounds.

Mr. HUBERT. Yes.

Mrs. CARLIN. Used to beat on the stage and holler and scream. I don't remember—I don't know his name. I never did meet him, but I remember him.

Mr. HUBERT. Did you know George Senator?

Mrs. CARLIN. Not by name. I probably would know his face, but I don't know his name.

Mr. HUBERT. You don't know what his relationship was to Ruby?

Mrs. CARLIN. No.

Mr. HUBERT. Then do you know—and I don't mean from your own knowledge at all, but from what you might have heard, what Jack's relationship in general with people of the opposite sex was? What his relationship with girls was?

Mrs. CARLIN. No; I would rather not answer it.

Mr. HUBERT. That is all right. Mind you, I want it clear I was not asking in relation to anything with respect to you yourself, but as to what you have heard?

Mr. JACKSON. Did he ever make any advances towards you?

Mrs. CARLIN. Yes; one time.

Mr. JACKSON. In other words, he did do that with the girls occasionally—make advances toward them?

Mrs. CARLIN. Yes.

Mr. JACKSON. Proposition them?

Mrs. CARLIN. Yes; I knew of them going with him.

Mr. JACKSON. Dating them?

Mrs. CARLIN. Yes.

Mr. JACKSON. He did date them some?

Mrs. CARLIN. Yes.

Mr. JACKSON. Did you know or had you heard anything concerning the possibility of any kind of homosexuality on the part of Jack?

Mrs. CARLIN. Yes.

Mr. JACKSON. Is that just a rumor running out there, or what?

Mrs. CARLIN. That was from his mouth. He was always asking the question, "Do you think I am a queer? Do you think I look like a queer? Or have you ever known a queer to look like me?" Every time I saw him he would ask it.

Mr. JACKSON. Do you mean he would bring up the subject himself?

Mrs. CARLIN. Yes; he would say, "Do you think I look like one or act like one?"

Mr. JACKSON. Did he say he was?

Mrs. CARLIN. No; he just asked me, "Do I look like one."

Mr. JACKSON. But he never admitted to you of being one?

Mrs. CARLIN. No.

Mr. JACKSON. Or ever made any statements that indicated that he was a homosexual?

Mrs. CARLIN. Not to my knowledge.

Mr. JACKSON. What you have told us here is all that you know about his abnormality, if any?

Mrs. CARLIN. Yes.

Mr. HUBERT. Can you throw any light upon his character with respect to whether he had a good temper or easygoing temper or quick temper?

Mrs. CARLIN. He was very quick tempered.

Mr. HUBERT. Did you have occasion to observe that yourself?

Mrs. CARLIN. Yes.

Mr. HUBERT. Could you give us just one or two examples that would serve to illustrate why you have the impression that he was quick tempered.

Mrs. CARLIN. Well, the time that makes me think he was so quick tempered there was two times.

One was with Tammi True. Tammi had—Joy Dale had been out of work for about a week. She had played sick, and this was known all over the club, so Tammi True was supposed to be taking their act. And Joy Dale's act, making it hard on all of us. So Tammi went to Jack, and I was sitting in the office when she said, "Jack, I am going to be 5 minutes late for my show," and Jack said, "Okay." So she went to the back to get dressed, and I went back right after that, and he came back—the music started—he didn't tell the band like he was supposed to, so the music went ahead and started for Tammi to go on, and that upset her. And Jack came back and said, "What the blank-blank \* \* \*"

Mr. HUBERT. Used some obscene words?

Mrs. CARLIN. Yes.

Mr. HUBERT. I take it you prefer not to use it yourself?

Mrs. CARLIN. Yes.

Mr. HUBERT. Was it obscene?

Mrs. CARLIN. Yes; and she said, "Well, I had already told you that I was going to be late and you were supposed to let the band know, and you are blaming me." And Jack said something else like, "Hurry up and get your ass dressed."

Mr. HUBERT. And there again you used an obscene term which I take it you don't care to use yourself, in reference to her?

Mrs. CARLIN. Yes; and she then turned around and jumped on him and said, "If you can let Joy Dale hold out a whole week and make all of us suffer, you can damn sure wait on me." And he said, "You are not going to con me. You may con other people, but you are not going to con me." And he stormed out of the room. So the following show she was deliberately late, and he came back and raised cane again, and he said something about he was going to fire her if she didn't straighten up, that she thought she

could use him, and that is about all that was said. They kept fussing back and forth and calling each other names.

Mr. HUBERT. I take it from that that his manifestation of temper was first in the use of obscenity, and second in a loud tone of voice?

Mrs. CARLIN. Yes; screaming.

Mr. HUBERT. Did he manifest on that occasion or any occasion that he might use physical force, or did he ever as a matter of fact?

Mrs. CARLIN. No; I never saw him raise his hand to hit anybody or anything like that, although with Tammi, he did say he would throw her down the stairs if she didn't straighten up. And she said, "I don't have to leave. I have a contract." And he said, "That contract don't mean a God damn thing."

Mr. JACKSON. You don't have to use those words.

Mr. HUBERT. I think you said that that was one example. Do you have any others?

Mrs. CARLIN. With Joy Dale.

Mr. HUBERT. Could you tell us about that?

Mrs. CARLIN. It was about the same thing. She had came back to work and was supposed to be pregnant and sick, and she was dying, so she came in, she was late for her first show, and Jack didn't say anything, and all of us girls were mad and wouldn't talk to her. So she did her first show, and she was supposed to be hurting bad and she wanted to get out of the second show, and just came back from the week after staying out, and she went to Jack, and you could hear her plumb to the opposite office.

There was a wall, and you could hear her there fussing and cussing because she wanted to take off the second show. And he told her she had been off a week and he couldn't afford to pay her salary when she wasn't doing a job at all. And he said, "If you don't like your job, you know what you could do."

Mr. HUBERT. Was that an indication that there might have been some relationship between them other than business?

Mrs. CARLIN. Yes. Well, I know it wasn't hearsay. I know that they were going together, and Joy was using this over his head.

Mr. JACKSON. How do you know this?

Mrs. CARLIN. She told me, and also Jack made indications that he was going with her.

Mr. HUBERT. That she went to his apartment or he went to hers?

Mrs. CARLIN. Only what Joy would tell me, and Joy was a big liar. She was known to lie about things that she had no reason to lie about. She would lie about men making passes just to make the girls ask her questions and be the center of attention, so I wouldn't say she was telling the truth when she said anything.

Mr. HUBERT. Had you ever met Jack's sister, Eva Grant?

Mrs. CARLIN. No.

Mr. HUBERT. You know of her?

Mrs. CARLIN. Yes.

Mr. HUBERT. You never met her?

Mrs. CARLIN. After the President's killing, I did.

Mr. HUBERT. How did you come to meet her then?

Mrs. CARLIN. She was at the club and she was having an argument with Ralph. I believe it was either Ralph or the other gray-haired guy. I don't know his name—about the club. That it was her club, she was going to run it, and Ralph was saying he was left in charge of the club, and as long as he was financing the club, she wasn't going to run it. And there was an argument between her and one of the girls about the fact that she wasn't going to work for Eva because she had tried to work for Eva and it wouldn't work.

Mr. HUBERT. Could you tell me something about the gray-haired man other than the one you identified as Ralph Paul?

Mrs. CARLIN. This was a—I don't know his name. He was in there quite a bit after the President's killing. He was in there almost every night. He

was supposed to be one of Jack's closest friends or supposed to have lived with Jack.

Mr. HUBERT. That wouldn't have been Senator, would it?

Mrs. CARLIN. I don't know.

Mr. HUBERT. Did you ever hear that perhaps that man was one of his brothers?

Mrs. CARLIN. No. It wasn't one of his brothers.

Mr. HUBERT. Do you remember anything further about him?

Mrs. CARLIN. No; I don't, because I never did talk to him but once, and that was just about then. He was there a lot of times at the door. He took all the cover charges after that. Either him or Ralph was taking cover charges.

Mr. HUBERT. Did he seem to be in authority?

Mrs. CARLIN. No; he didn't have authority. He thought he did, but he didn't, because Ralph would tell him to do what was done.

Mr. HUBERT. Had you ever seen him at the Carousel prior to the time that Oswald was shot?

Mrs. CARLIN. Yes. Just two or three times. He was sitting down at a table next to the cashier, where the cash register was. He was sitting there with the guy that Joy Dale was going with. I don't remember his name, but it was a young boy. Tommy something.

Mr. HUBERT. That is the gray-haired man you saw sitting with a young man called Tommy?

Mrs. CARLIN. Yes.

Mr. HUBERT. Who was Joy Dale's boy friend?

Mrs. CARLIN. Yes. They were supposed to get married.

Mr. HUBERT. And you saw them, this gray-haired man and Tommy, several times together?

Mrs. CARLIN. About two or three times, I would say.

Mr. HUBERT. How long before the President's death?

Mrs. CARLIN. Oh, I don't know. I never did pay that much attention to him.

Mr. HUBERT. Were they always together, those two?

Mrs. CARLIN. I wouldn't say they were together. He just was sitting there. I don't know whether they left together or nothing, whether they were friends or not.

Mr. HUBERT. But they were sitting at the same table?

Mrs. CARLIN. Yes.

Mr. HUBERT. You wouldn't remember if the two or three times prior to the President's death that you saw them together were consecutive nights or not, would you?

Mrs. CARLIN. No; I never did pay that much attention to either one of them.

Mr. HUBERT. Would you think those two or three times, whatever they were, that you saw Tommy and the gray-haired man together, would have been within a week prior to the President's death?

Mrs. CARLIN. I wouldn't say, because I didn't pay that much attention.

Mr. HUBERT. But in any case, the gray-haired man that you have been referring to subsequently had really a job with the club? That is to say——

Mrs. CARLIN. No; not at that time, he wasn't.

Mr. HUBERT. I mean later. I said subsequently.

Mrs. CARLIN. Yes.

Mr. HUBERT. After Oswald was killed then this same gray-haired man had a job collecting the cover charges at the front door?

Mrs. CARLIN. Whether he was paid for it or not, he was doing it.

Mr. HUBERT. And he seemed to be, so far as you could tell, under the authority of Paul?

Mrs. CARLIN. Yes.

Mr. HUBERT. Ralph?

Mrs. CARLIN. Ralph.

Mr. HUBERT. Ralph Paul?

Mrs. CARLIN. Well, I don't know anything about Ralph.

Mr. HUBERT. How old a man is Ralph? Are you feeling bad?

Mrs. CARLIN. No. He is about 40 or 45, I would say.

Mr. HUBERT. Ralph Paul is?

Mrs. CARLIN. Yes; between 40 and 45. He is old. He is old to me.

Mr. JACKSON. I think that is the age of the interrogator.

Mrs. CARLIN. I am sorry, but he is old to me. Gray-haired and being so fat.

Mr. JACKSON. The closer you get to it, the younger it is.

Mr. HUBERT. Have you seen Ruby since Oswald was shot?

Mrs. CARLIN. Only in court.

Mr. HUBERT. You testified in court?

Mrs. CARLIN. Two; I went to two different court hearings.

Mr. HUBERT. Did you testify twice or once?

Mrs. CARLIN. Twice.

Mr. HUBERT. Was the first one on the insanity hearing, I suppose?

Mrs. CARLIN. I don't know what the hearing was on. I think it was on the bond hearing. He was trying to get out on bond.

Mr. HUBERT. Did you testify at his actual trial in the latter part of February and the first part of March?

Mrs. CARLIN. Yes.

Mr. HUBERT. Could you tell us what was the general nature of your testimony there?

Mrs. CARLIN. The same thing that has been asked here.

Mr. HUBERT. Had you been interviewed by Mr. Belli prior?



Mrs. CARLIN. No; the only time I talked to Belli was on the bond hearing.

Mr. HUBERT. But you haven't talked to Jack Ruby since you talked to him on the phone on Sunday the 24th?

Mrs. CARLIN. I can't say the last time I talked to him.

Mr. HUBERT. Did you know Billy DeMar?

Mrs. CARLIN. Yes.

Mr. HUBERT. He was one of the Emcee's there?

Mrs. CARLIN. Yes.

Mr. HUBERT. Of course, you have heard the rumors that he is supposed to have said that he had seen Oswald in the club prior to the shooting of the President?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you see pictures of Oswald afterward?

Mrs. CARLIN. Yes.

Mr. HUBERT. Did you ever see anybody who looked like that man in the Carousel?

Mrs. CARLIN. Well, just like I told the FBI, I have seen someone that looked like him. Whether it was him or whether I have seen him, he could favor anybody, you know. I have seen the face, something that looked, someone that looked like him, and I am not going to say it was in the club or where it was at, but I have seen someone that looked like him.

Mr. HUBERT. Of course, you didn't know Lee Harvey Oswald?

Mrs. CARLIN. No.

Mr. HUBERT. If you get tired, let me know, and we will stop. Let me ask you some concluding questions and we will take a little recess and I will gather my thoughts and see if we have anything more. Have you been interviewed by any member of the Commission's staff prior to today?

Mrs. CARLIN. No.

Mr. HUBERT. Mrs. Carlin, I have in my hand a document consisting of two pages which purport to be a copy of a report of an interview of you by Special FBI Agents Peggs and Zimmerman on November 26, 1963, which for the purpose of identification I am marking as follows: Fort Worth, Texas, April 15, 1964, Exhibit 5318, Deposition of Karen B. Carlin. Do you spell your name with a "K" or "C"?

Mrs. CARLIN. K-a-r-e-n C-a-r-l-i-n.

Mr. HUBERT. Your first name is spelled with a "K", but your last name is spelled with a "C"?

Mrs. CARLIN. Yes.

Mr. HUBERT. And I am signing my name below that, for the purpose of identification. On the second page thereof, in the lower right-hand corner I am placing my initials. Mrs. Carlin, I will ask you if you have had an opportunity, with your attorney, Mr. Jackson, to read this statement?

Mrs. CARLIN. Yes.

Mr. HUBERT. Is this statement a fair statement of the interview that you had with the FBI agents?

Mrs. CARLIN. Yes.

Mr. Hubert. Do you see anything in it, and I will ask your attorney to assist you, since he helped you to read it and went over it, do you see anything that needs to be changed, adjusted, or modified?

Mrs. CARLIN. Yes; the part where it says, "Just for rent."

Mr. HUBERT. You are referring to a sentence in the third paragraph about the middle of that paragraph which reads as follows, to wit: "She called Ruby again on Sunday, November 24, 1963, at 10 or 10:30 a.m., as she needed money to pay her rent." Now that is the sentence that you are referring to, is that correct?

Mrs. CARLIN. Yes.

Mr. HUBERT. What comment do you wish to make about it?

Mrs. CARLIN. Well, I didn't ask him for just money for the rent. It was for groceries also.

Mr. HUBERT. You actually mentioned to him that it was for groceries as well as for rent?

Mrs. CARLIN. Yes.

Mr. HUBERT. All right, do you have any other parts that you wish to change?

Mrs. CARLIN. Yes; the last sentence in the third paragraph.

Mr. HUBERT. Now you are speaking of the sentence which reads as follows, to wit: "Karen used her Texas driver's license as identification." What comments do you wish to make about that, Mrs. Carlin?

Mrs. CARLIN. It was a California driver's license.

Mr. HUBERT. All right, are there any other parts of that statement which are incorrect or need modification?

Mr. JACKSON. The fourth paragraph, first sentence which reads as follows: "At the time she talked with Ruby, Sunday morning, she asked him if the club was going to be open Sunday night. He became upset regarding this, then talked harshly to her, indicating that he did not feel she was showing the proper respect toward the deceased President."

Mr. HUBERT. What comment do you wish to make about that sentence?

Mrs. CARLIN. It was not Sunday that he said anything about the President. It was Saturday night that he talked real harshly regarding the President.

Mr. HUBERT. Do I understand you to say then that when you spoke to him on Sunday morning, that the subject of the President was not mentioned at all?

Mrs. CARLIN. That's right. He just sounded preoccupied and upset.

Mr. JACKSON. That was on Sunday that he sounded preoccupied?

Mrs. CARLIN. Yes; he sounded distant. In other words, I called him back twice.

Mr. HUBERT. You called him back twice on Sunday?

Mrs. CARLIN. Yes; I am talking about when he was talking to me. I would say, "Jack, are you still there?" Or "Jack," to get his attention back. He seemed like he was busy.

Mr. HUBERT. I gather from that that when you would speak to him on the phone, you didn't get a response, so it gave you the impression that he wasn't there?

Mrs. CARLIN. Yes.

Mr. HUBERT. So you would repeat your question?

Mrs. CARLIN. Yes.

Mr. HUBERT. Are there any other parts of this statement that you would like to make any comments about?

Mrs. CARLIN. No.

Mr. HUBERT. Do I understand that other than the corrections that have been made, that this statement contains the truth, so far as you know it?

Mrs. CARLIN. Yes.

Mr. HUBERT. Is there anything you think should be deleted from it?

Mrs. CARLIN. No.

Mr. HUBERT. Now Mrs. Carlin, is there anything else you would like to say about any aspect that we have been talking about, or any fact that you might know that you have not heretofore stated to anyone?

Mrs. CARLIN. Nothing that I can think of.

Mr. JACKSON. Excuse me just a minute.

(Mr. Jackson and witness whisper to each other.)

Mr. HUBERT. May I see you a minute, Mr. Jackson?

(Mr. Jackson and Mr. Hubert confer off the record.)

Mr. HUBERT. One more question, Mrs. Carlin. Did anyone ask you or suggest to you, directly or indirectly, that you make this call on Sunday morning to Mr. Ruby, or is it that you made this call for the purpose which you have already stated?

Mrs. CARLIN. The purpose of the call was for which I have already stated.

Mr. HUBERT. No one suggested that you make it?

Mrs. CARLIN. Jack told me to call him the following day.

Mr. HUBERT. But other than Jack no one else did?

Mrs. CARLIN. No.

Mr. HUBERT. All right, Ma'am, I think that is all.

Mrs. CARLIN. There is one thing I would like to clear up, what I said a while ago. A while ago you asked me did Jack Ruby make a pass. It was not a pass, it was just asking me. It was not kissing or anything like that.

Mr. HUBERT. I don't think I asked you that question. I think Mr. Jackson did.

Mr. JACKSON. In other words, he just asked you for a date, is that right?

Mrs. CARLIN. Yes.

Mr. JACKSON. And you refused him?

Mrs. CARLIN. Yes.

Mr. JACKSON. And that is the only time he ever made any advances toward you whatsoever?

Mrs. CARLIN. That's right.

Mr. HUBERT. Now we have the transportation to take Mrs. Carlin back if she would like to go right away.

Mr. JACKSON. Do you want to go right now?

Mrs. CARLIN. I will wait until Bruce gets through.

Mr. HUBERT. If you want, you can sit right where you are.

Mrs. CARLIN. Okay.

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## **TESTIMONY OF DOYLE E. LANE**

The testimony of Doyle E. Lane was taken at 12:05 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Lane, my name is Leon Hubert, I am a member of the advisory staff of the General Counsel on the President's Commission. Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and the resolution, I am authorized to take a sworn deposition from you, Mr. Lane. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular, as to you, Mr. Lane, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry. Particularly the sending of the Western Union telegram. Now, Mr. Lane, you have appeared here today by virtue of a letter sent to you, I believe, by Mr. J. Lee Rankin.

Mr. LANE. That's correct.

Mr. HUBERT. That letter was received by you prior to 3 days from today, was it not?

Mr. LANE. It was.

Mr. HUBERT. All right. Now, will you stand, sir, and raise your right hand and be sworn. Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. LANE. I do.

Mr. HUBERT. State your full name, please.

Mr. LANE. Doyle E. Lane.

Mr. HUBERT. Your age?

Mr. LANE. Thirty-five.

Mr. HUBERT. Where do you live, sir?

Mr. LANE. Dallas, Tex. 6549 Lake Circle.

Mr. HUBERT. What is your occupation?

Mr. LANE. Clerk, Western Union.

Mr. HUBERT. How long have you been so occupied?

Mr. LANE. Eleven years.

Mr. HUBERT. What particular function do you have, as clerk?

Mr. LANE. Well, I'm a senior delivery clerk is what I am.

Mr. HUBERT. What particular office do you work for?

Mr. LANE. Work for the office at 2034 Main, Dallas, Tex.

Mr. HUBERT. Is that the main office of the Western Union here?

Mr. LANE. Yes; it is.

Mr. HUBERT. Were you on duty on the morning of November 24, 1963?

Mr. LANE. Yes; I was.

Mr. HUBERT. Did you see a man by the name of Jack Ruby that day?

Mr. LANE. Yes; I did.

Mr. HUBERT. Did you know him prior to that time?

Mr. LANE. I had known him through patronage.

Mr. HUBERT. In other words, when he came into the Western Union office that day you recognized him as Jack Ruby, a man with whom you had done Western Union telegraph business?

Mr. LANE. When he handed me the money order. I did not see him come in. I do not know when he came in.

Mr. HUBERT. Will you just state in your own words what transpired between you and Jack Ruby on the morning of November 24, 1963?

Mr. LANE. Well, he came to the counter and handed me the money order to be sent. I rated the money order and put the necessary transmission marks on it. Wrote out a receipt for the money he handed me and I believe it was \$30, to pay for the money order. I handed him back his receipt and his change. He turned around and walked out the door.

Mr. HUBERT. The first time you saw him, therefore, is when he came up to the counter with a completed—partially completed form for the transmission of money by Western Union?

Mr. LANE. That is the first I had seen him that day.

Mr. HUBERT. Therefore, you don't know how long he was in the office?

Mr. LANE. I have no idea.

Mr. HUBERT. Prior to the time he came up.

Mr. LANE. I have no idea.

Mr. HUBERT. Is there a public telephone available to anyone who is in the lobby?

Mr. LANE. Yes, there is.

Mr. HUBERT. Did you see him use the telephone?

Mr. LANE. I did not.

Mr. HUBERT. On that morning, was there any kind of radio, or TV in the Western Union office, whereby a person in that office could have heard the news concerning the pending transfer of Oswald from the city hall to the county jail?

Mr. LANE. Not in the office; no.

Mr. HUBERT. No one had a small radio or transistor?

Mr. LANE. The messenger boy had a transistor, but he was out delivering, and he did not get back until 10 or 15 minutes after that.



Mr. HUBERT. There was no radio or television audible or visible to anyone in the Western Union office at the time Jack Ruby was there?

Mr. LANE. No, there was not.

Mr. HUBERT. Mr. Lane, I am marking two documents, which have already been identified by Mr. W. W. Semingsen, president—vice president of the Western Union Telegram Co., when his deposition was taken by Mr. Wesley J. Liebeler, a member of the staff of the President's Commission. On the first document I have marked "Dallas, Texas, March 31, 1964. Exhibit 5118, Deposition of Doyle Lane." I have placed my name under this language. It purports to be a photostatic copy of the original which Mr. Semingsen produced at his deposition. In order that the record may show that you and I are both talking about the same document, I ask you to put your name below mine on this document. Now, I am marking the other document as follows: "Dallas, Texas, March 31, 1964. Exhibit 5119, Deposition of Doyle Lane," and signing my name on that, and ask you to put your name on it so that the record may show that we are talking about the same document. Now, I ask you to look at Exhibit 5118, and state for the record what that document is.

Mr. LANE. This is a money order application filed to send money. \$25. Karen Bennett, Fort Worth, Tex., from Jack Ruby.

Mr. HUBERT. I notice that there are several handwritings on that, and, of course, you will identify your own in a moment. Can you state for the record what handwriting was on that, or what was on that document at the time it was handed to you by Ruby?

Mr. LANE. "25.00 Karen Bennett. Will call. Fort Worth. Jack Ruby."

Mr. HUBERT. That all seems to be printed?

Mr. LANE. That is printed; yes.

Mr. HUBERT. Did you see Ruby write it out?

Mr. LANE. No; I did not.

Mr. HUBERT. But he did hand it to you in that form?

Mr. LANE. He did.

Mr. HUBERT. Did he give you money at the same time?

Mr. LANE. Yes, sir; he did.

Mr. HUBERT. Do you remember how much?

Mr. LANE. \$30.

Mr. HUBERT. Do you recall whether he took it out of his wallet, or a roll of money, or what?

Mr. LANE. He took it from several bills in his hand.

Mr. HUBERT. What denominations were the bills that he handed to you?

Mr. LANE. A \$20 and a \$10 bill.

Mr. HUBERT. Now, would you state what you did with reference to this transaction?

Mr. LANE. You mean my markings?

Mr. HUBERT. Your markings and your actions, yes.

Mr. LANE. Well, when he handed me this I rated the money order.

Mr. HUBERT. You did what?

Mr. LANE. The charges.

Mr. HUBERT. Rated, [spelling] R-a-t-e-d?

Mr. LANE. Yes.

Mr. HUBERT. What does "rated" mean?

Mr. LANE. It is actual money order charges that we charge to transmit this money to its destination.

Mr. HUBERT. Is that rating process indicated by you on that Exhibit 5118?

Mr. LANE. Yes; it is.

Mr. HUBERT. Where?

Mr. LANE. In that top right-hand corner.

Mr. HUBERT. Whose handwriting is that in?

Mr. LANE. That is my handwriting.

Mr. HUBERT. What figures are you talking about?

Mr. LANE. "\$25.55, the \$1.20, and 12 cents tax. \$26.87."

Mr. HUBERT. So, you did give him change?

Mr. LANE. Yes; I did.

Mr. HUBERT. I notice that in the printed message there are the words, "Fort Worth," scratched out, and something, who wrote that?

Mr. LANE. I wrote that. It was spelled wrong to begin with, and I wrote that for this purpose. We have to have a full destination in the body of a money order. He just used Fort Worth.

Mr. HUBERT. So, that you scratched out the "F." W-o-r-t-h, and then wrote in your own handwriting Fort Worth, Tex.?

Mr. LANE. Fort Worth, Tex.

Mr. HUBERT. And you identify your own handwriting, sir?

Mr. LANE. Yes.

Mr. HUBERT. I notice in the bottom right-hand corner of Exhibit 5118, the words and figures as follows: "1312½ Commerce." Whose handwriting is that?

Mr. LANE. It is mine.

Mr. HUBERT. Where did you get the information?

Mr. LANE. From Mr. Ruby.

Mr. HUBERT. You asked him?

Mr. LANE. I said, "Your address?" And he gave me his address.

Mr. HUBERT. I notice that there apparently is a time stamp on the top of this document that says, "1963, November 24, a.m. 11:17." Would you explain what that is?

Mr. LANE. That is the time that money order was accepted for transmission at the counter.

Mr. HUBERT. Now, explain when and how that stamp is placed—placed upon that document?

Mr. LANE. This stamp was placed here when I handed Mr. Ruby back his receipt for his money and his change, because in our language that is the—accepting a money order for transmission at that time.

Mr. HUBERT. In other words, that was not stamped when Mr. Ruby first came to begin the transaction?

Mr. LANE. No; it was not.

Mr. HUBERT. It was required that you do what you said you have done concerning the document, to make the correction about “Fort Worth,” to do the rating?

Mr. LANE. Right.

Mr. HUBERT. And did you write out the address at the bottom?

Mr. LANE. Yes.

Mr. HUBERT. And to make the change and give it to him?

Mr. LANE. Yes.

Mr. HUBERT. In other words, the 11:17, therefore, represents the moment when the transaction was over?

Mr. LANE. When it is completed.

Mr. HUBERT. And actually, it could have begun a few moments or minutes before?

Mr. LANE. A minute or so.

Mr. HUBERT. Now, I wish you to explain for the record what kind of a timeclock this is. And what steps are taken by the Western Union Co. locally and nationally to assure the accuracy of that timeclock?

Mr. LANE. This timeclock is set up on a national level. Hooked up with the U.S. Naval Observatory in Washington, D.C. And at 11 a.m., each day, all clocks stop and all time is synchronized. The timeclock we have on the counter rotates on a minute basis. It could be 1 minute, you know, either way. I think back——

Mr. HUBERT. Well, now, the particular timeclock that was used to stamp this machine, is that the master clock—I mean to stamp this document, is

this the master clock?

Mr. LANE. No; it is not.

Mr. HUBERT. What clock is synchronized to Naval Observatory Time?

Mr. LANE. It is the clock in the P&R office, there for the purpose of having somebody to check it and make sure it is accurate.

Mr. HUBERT. Is it the custom of the company to have all of the master clocks throughout the Nation synchronized each day at 11 o'clock?

Mr. LANE. It is. It very definitely is. Our business is built on the time basis.

Mr. HUBERT. Now, how is the particular timeclock which was used to stamp the time on Exhibit 5118 synchronized to the master clock in Dallas?

Mr. LANE. When the master clock is set by the Naval Observatory Time, at the same time our master clock here synchronizes all our timeclocks.

Mr. HUBERT. Is that done automatically?

Mr. LANE. It is done automatically.

Mr. HUBERT. Are you willing to state, therefore, that from your knowledge of how time and timeclocks throughout the Western Union system are set, that at 11 o'clock on November 24th, the master clock in Dallas and the particular timeclock used to stamp Exhibit 5118, were all synchronized on Naval Observatory Time?

Mr. LANE. Yes; they were.

Mr. HUBERT. Now, I show you a document which, for the purpose of identification, I have marked, "Dallas, Texas, Exhibit 5119," already identified by you, and your name appears on it, and ask you to tell me what that is?

Mr. LANE. This is a copy of the original receipt that I wrote for Jack Ruby.

Mr. HUBERT. That is in your handwriting?

Mr. LANE. That is my handwriting.

Mr. HUBERT. What happened to the original itself?

Mr. LANE. The original is given to the customer. It was given to Mr. Ruby.

Mr. HUBERT. Do you remember giving it to him?

Mr. LANE. Yes; very definitely.

Mr. HUBERT. Was that document given to him when the change was given to him?

Mr. LANE. When the change was given back, his receipt was given back at the same time.

Mr. HUBERT. I notice that document also bears a time at the top of it. What time does it show?

Mr. LANE. 11:17.

Mr. HUBERT. When did you say it was stamped or would you say it was stamped at the same time as Exhibit 5118?

Mr. LANE. Yes.

Mr. HUBERT. In the normal course of business, which one would be stamped first?

Mr. LANE. There would be no first. We stamp them at the same time.

Mr. HUBERT. But, it takes two different actions.

Mr. LANE. Not fully.

Mr. HUBERT. No? Do you mean——

Mr. LANE. We have carbons. See, like on this receipt. That is a carbon receipt. Well, you would stamp it one—or both could be stamped at the same time.

Mr. HUBERT. But, both have to actually be put in the machine, don't they?

Mr. LANE. Right.

Mr. HUBERT. I notice the times on those documents are in terms of minutes.

Mr. LANE. Yes.

Mr. HUBERT. There is nothing to indicate the fractions of minutes involved?

Mr. LANE. No.

Mr. HUBERT. Would you be willing to say that the time that these transactions took place could not have been earlier than 11:17 a.m., of November 24, nor later than 11:18?

Mr. LANE. Yes; I would be willing to state that.

Mr. HUBERT. But, you can't tell whether it would be 11:17 and a half or something of that sort?

Mr. LANE. No.

Mr. HUBERT. You do know that the clock mechanism had turned already to 11:17, but it had not yet turned to 11:18?

Mr. LANE. That's correct.

Mr. HUBERT. After you had handed Mr. Ruby his change and the original receipt, of which 5119 is a copy, what did he do?

Mr. LANE. He turned immediately from the counter, went through the door and went out and turned to the left.

Mr. HUBERT. How much distance is there between the counter and the door?

Mr. LANE. Oh, approximately 8 or 10 feet.

Mr. HUBERT. Now, he went out the door that opened on Main Street?

Mr. LANE. Yes, sir.

Mr. HUBERT. And he turned to his left?

Mr. LANE. To the left as you are facing the street.

Mr. HUBERT. In what direction would he then—towards what street would he then be going?

Mr. LANE. Toward Harwood Street.

Mr. HUBERT. Did he stay any appreciable length of time in the office after you had handed him the change and the receipt?

Mr. LANE. No, he did not spend anytime—he went straight to the door.

Mr. HUBERT. He simply accepted the change and the receipt. Do you know what he did with them?

Mr. LANE. I have no idea. I mean, he had them in his hand.

Mr. HUBERT. He didn't put them in his pocket?

Mr. LANE. Not immediately.

Mr. HUBERT. You didn't see him put them in his pocket?

Mr. LANE. No, I did not.

Mr. HUBERT. Could you observe him after he left the office and turned to his left?

Mr. LANE. No, after he turned he would be out of sight—the shades were drawn on that side, and I just saw him turn, and that was the last I saw of him.

Mr. HUBERT. Did he seem to be walking fast, slow, medium?

Mr. LANE. Just ordinary gait.

Mr. HUBERT. Now, I notice on Exhibit 5118, another time, which seems to be 1963, November 24, p.m., 12:26. What does that mean?

Mr. LANE. That is the time that the money order was put into the wire in the upstairs office——

Mr. HUBERT. Well, explain what you do after the application is accepted, the money received, the change given back, the receipt given to the customer?

Mr. LANE. I put it in a tube, suction tube that takes it directly upstairs to be transmitted.

Mr. HUBERT. Do you endorse anything on the application at that time?

Mr. LANE. I endorse nothing. I have done all that before.

Mr. HUBERT. I see. "MOD,"——

Mr. LANE. "MOD," is a transmission mark.

Mr. HUBERT. That is your handwriting?



Mr. LANE. Yes, it is.

Mr. HUBERT. What is the significance?

Mr. LANE. Money Order Department, Fort Worth from Money Order Department, Dallas.

Mr. HUBERT. That is done before it is stamped by the clock?

Mr. LANE. Before it is stamped.

Mr. HUBERT. Now, once you put it in the tube, that is the end of it, as far as you are concerned?

Mr. LANE. Right.

Mr. HUBERT. Do you know from your experience in your 10 or 12 years employment with Western Union what happens when it gets upstairs?

Mr. LANE. Yes, sir; it is removed from the tube, put on a sending position, and sent. This day it was different because of the press. Press releases coming in immediately, and many of them, so, it was delayed quite a while. Ordinarily, it is about 20 minutes from here to Fort Worth.

Mr. HUBERT. But, that stamp on 5118, is the Dallas time of——

Mr. LANE. Time it was actually transmitted here in Dallas.

Mr. HUBERT. Does that work on the same clock system that you were speaking of before?

Mr. LANE. A different machine, but synchronized, by the same master clock.

Mr. HUBERT. Now, you mentioned something about a lot of press releases coming in which delayed the message a little bit. Those press releases were being handled upstairs, were they?

Mr. LANE. Most of them were.

Mr. HUBERT. Were any being handled downstairs?

Mr. LANE. Well, reporters, running in there with scribbled notes.

Mr. HUBERT. What I am trying to get at, do you recall whether any reporters came in with any kind of notes, or saying anything during the time

that Jack Ruby was there, which would have indicated to Ruby that the transfer of Oswald was imminent?

Mr. LANE. Oh, no. There was, as I recall—like I say, I don't always notice who comes in that office, because it is a stopping place for everyone, but as I remember, my previous customer, before Jack Ruby, turned around and left after the transaction. Ruby came up and was right there. He just handed me the money order, apparently he had come in while I was waiting on the other customer, because I believe there were only the two in the office.

Mr. HUBERT. After the first customer left, there was only you and Ruby at the counter?

Mr. LANE. Yes.

Mr. HUBERT. You don't remember anybody coming in?

Mr. LANE. Well, there was nobody between that time.

Mr. HUBERT. Well, do you remember anybody coming in while Ruby was there indicating in any way whatsoever that the transfer of Oswald was going to happen very shortly?

Mr. LANE. Oh, no, no.

Mr. HUBERT. Were you aware at any time between 10:30 and 11:20 that an armored car had driven up and been placed in the Commerce Street entrance of the jail?

Mr. LANE. No, I was not.

Mr. HUBERT. Is it possible for an individual who has a telephone, to send money by use of a telephone instead of filing an application personally and paying over the money in cash?

Mr. LANE. Not an individual. Not just the ordinary telephone subscriber is not.

Mr. HUBERT. I gather from your answer that in certain instances it is possible.

Mr. LANE. It is possible by prearrangement only.

Mr. HUBERT. Would you explain just what that would mean?

Mr. LANE. Ordinarily a prearrangement is a money deposit—deposit with Western Union a certain sum of money and they are usually companies. In fact, most of ours are companies that make these deposits in order that they can phone that money order to be sent, we have money on deposit, we send it.

Mr. HUBERT. It is a prepaid money order?

Mr. LANE. A prepaid arrangement.

Mr. HUBERT. All that happens over the telephone is the request that money already made on deposit be sent to a certain address?

Mr. LANE. Yes.

Mr. HUBERT. Is it possible to do it that way when no money is placed on deposit?

Mr. LANE. Only on a prearranged basis. Sometimes we won't require deposits if they are legitimate companies and a good credit rating with us.

Mr. HUBERT. Do you know if Jack Ruby had any such arrangement?

Mr. LANE. No; he did not.

Mr. HUBERT. Is it normal for any individual to have it?

Mr. LANE. No; it is very seldom. In fact, we don't even have any in Dallas, individuals.

Mr. HUBERT. Only companies?

Mr. LANE. Only companies.

Mr. HUBERT. Have you any kind of security device to be sure that the person calling is really authorized to be sending the money either on deposit or to be charged?

Mr. LANE. Every money order called in is confirmed by telephone with certain individuals within the firm.

Mr. HUBERT. That is by prearrangement also?

Mr. LANE. That is by prearrangement.

Mr. HUBERT. Do you know what system is used by the Western Union Co., from your experience with the company during your tenure of

employment with them in connection with the payment of money to the addressee? What is the normal system? What usually happens?

Mr. LANE. Well, that depends on whether he comes into the office or not. In this instance the girl had identification as required. They have—the paying clerk has to be satisfied within his or her own mind that the individual they are talking to is the correct person, and like I say, identification is required.

Mr. HUBERT. Well, how does the Western Union office at the receiving end get the information about paying money?

Mr. LANE. It is transmitted over the wires to the receiving end, stating the amounts to be paid, the person to be paid to, the person's address if they sent it, and the person it is from.

Mr. HUBERT. Now, when that is received, is a check written out payable to that person, or how is it handled?

Mr. LANE. If it is to be delivered a Western Union check is written. If it is to be picked up a cash receipt copy is made out and attached to the money, and when the person comes in and gives them the identification required, asks them the required questions, such as, "How much are you expecting? Who is it from? Where is it from?" They have to answer those questions.

Mr. HUBERT. And is any identification of the individual required?

Mr. LANE. Yes; it is very definitely personal identification.

Mr. HUBERT. Now, what system is used by way of timing the various transactions on the receiving end?

Mr. LANE. On the receiving end, whenever the telegram is received in the receiving office, it is time stamped.

Mr. HUBERT. It is time stamped by use of the same kind of machine that you have identified before?

Mr. LANE. That we used before.

Mr. HUBERT. Synchronized to the national time?

Mr. LANE. That is correct, and also timed at the time of payment. Time you actually give the addressee the money.

Mr. HUBERT. Stamped with the same clock?

Mr. LANE. Yes.

Mr. HUBERT. By the way, all of this time that we have been speaking of is central standard time?

Mr. LANE. Central standard time; yes.

Mr. HUBERT. Have you anything else, Mr. Lane, that we have not covered?

Mr. LANE. No; I can't think of anything that we haven't covered.

Mr. HUBERT. Have you been interviewed by any member of the Commission's staff other than myself prior to the taking of this deposition?

Mr. LANE. No; I have not.

Mr. HUBERT. Now, there was an interview between you and me, was there not, just before the beginning of this deposition?

Mr. LANE. Well, that is correct, sir.

Mr. HUBERT. Have we covered in this deposition everything that we talked about in the course of the interview?

Mr. LANE. Yes; we have.

Mr. HUBERT. Have you—has there been anything of a material nature at all covered in the interview which has not been covered in this deposition?

Mr. LANE. Not a thing that I can think of.

Mr. HUBERT. Thank you very much.

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## TESTIMONY OF ELNORA PITTS

The testimony of Elnora Pitts was taken at 2:40 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Elnora Pitts.

Mrs. Pitts, my name is Leon Hubert.

Mrs. PITTS. Yes, sir.

Mr. HUBERT. I am a member of the advisory staff of the General Counsel for the President's Commission on the Assassination of President Kennedy.

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Under the provisions of Executive Order 11130, dated November 29, issued by President Johnson——

Mrs. PITTS. Yes, sir.

Mr. HUBERT. And by a Joint Resolution of Congress No. 137, and the rules of procedure adopted by the President's Commission in conformance with the Executive order and the joint resolution, I have been authorized to take the sworn deposition from you today.

I say to you that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and to the subsequent violent death of Lee Harvey Oswald. And in particular, as to you, Mrs. Pitts, the nature of the inquiry today is to determine what facts that you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, particularly those facts concerning Jack Ruby.

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Now, I think you are appearing here as a result of a letter sent to you by J. Lee Rankin?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. General Counsel of the Commission. You have received that letter, haven't you?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. That letter was received more than 3 days from today?

Mrs. PITTS. Yes, sir; it was—it must have been longer than that.

Mr. HUBERT. Sometime last week?

Mrs. PITTS. But, the man there, Mr. Sorrels——

Mr. HUBERT. Mr. Sorrels?

Mrs. PITTS. They called me and talked with me and called me again and told me to come today.

Mr. HUBERT. But, the letter was received more than 3 days ago?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Because 3 days ago would be last Saturday, and it was received before that, wasn't it?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Would you mind rising and taking the oath? Raise your right hand, please.

Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. All right. For the record, will you state your name.

Mrs. PITTS. My name is Elnora Pitts.

Mr. HUBERT. I understand that you are a widow?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. And your husband's name was what?

Mrs. PITTS. McKinley.

Mr. HUBERT. And he has been dead how long?

Mrs. PITTS. Well, it has been a long time. Just exactly the date, I don't know.

Mr. HUBERT. You have not remarried?

Mrs. PITTS. No, sir.

Mr. HUBERT. What was your maiden name, before you married?

Mrs. PITTS. Elnora Magee.

Mr. HUBERT. Magee. How old are you, Mrs. Pitts?

Mrs. PITTS. Well, I was born 1903. That makes me about 60, don't it?

Mr. HUBERT. Where do you live?

Mrs. PITTS. I live at 1316 East Jefferson.

Mr. HUBERT. Dallas?

Mrs. PITTS. Yes, sir; Oak Cliff.

Mr. HUBERT. Oak Cliff?

Mrs. PITTS. Yes.

Mr. HUBERT. What do you do for a living, Mrs. Pitts?

Mrs. PITTS. I work in apartment houses.

Mr. HUBERT. In apartment houses?

Mrs. PITTS. Yes.

Mr. HUBERT. What kind of work do you do?

Mrs. PITTS. That is cleaning. Cleaning, you see, from one apartment to another but I don't——

Mr. HUBERT. You work in several apartment houses?

Mrs. PITTS. I go—I don't work everyday. When they call me I go; yes; and then I have some regulars.



Mr. HUBERT. In other words, some apartments that you clean everyday, or every week, or certain times?

Mrs. PITTS. Certain time every week.

Mr. HUBERT. Do you know Mr. Jack Ruby?

Mrs. PITTS. Yes, sir. I know him, but——

Mr. HUBERT. How long have you known him?

Mrs. PITTS. Well, now, that, I would have to get the real information on Mr. David, Glen David, that was the manager of the apartments there. He was with me down here on Ewing, Mr. David was, and then they transferred me on over to another apartment on Ewing where this Jack Ruby lived, so, just to tell the truth how long that I worked for Mr. Ruby somewhere—so—along 8 or 9 or maybe 10 months.

Mr. HUBERT. How often did you go to his apartment?

Mrs. PITTS. I went one part of a day. On—I first started going to him on Tuesday, and then he said that was because he hadn't cleaned it in a long time, and it was in a bad shape, so he paid me 7½ to clean it the first time, and so, next time he paid me \$4 and give me busfare and then he said to me, said, "Well, it is getting pretty dirty," said, "I'm going to give you a little raise now today," and I said, "All right." So, the next time he give me 5½. From then on he pay me 5½.

Mr. HUBERT. That is for how much time?

Mrs. PITTS. Until then I was going on Tuesday. Then he changed it then until Saturday and from Saturday to Sunday. He says he had company and wanted it fresh and clean on Sunday, and asked me if I would come on Sunday morning and I told him, "Yes," so that is why I called him that Sunday morning, because that was my time to go, because I had something to do at home before I went, so then I didn't go.

Mr. HUBERT. So, as of November 24, 1963, it was your custom to go there on a Sunday morning?

Mrs. PITTS. Yes, sir; I guess that was the time when he done his killing, was it?

Mr. HUBERT. Well, November 24 is the day that Oswald was shot.

Mrs. PITTS. Uh-huh. Well, then I called him on the next Sunday——

Mr. HUBERT. Let me get this——

Mrs. PITTS. Okay.

Mr. HUBERT. Had you been going to him regularly on Sundays before?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. You always called?

Mrs. PITTS. I called——called him, and always called the manager because I went once and I didn't call so they had to do something in there, and he had a dog, and I was scared of this dog, so, the manager, she was there, and she said, "Well, I will lock the dog in the bathroom," and I said, "No; I don't work that way. I will just go back home."

So, the next time I didn't call and she was gone and he was gone, too, and I—from then on I always called.

Mr. HUBERT. And you called about what time in the morning?

Mrs. PITTS. Well, just different times, but that morning I don't know what time it was that I called. I know that it was 8:30, or might have been later than that. I really don't know for—I didn't look at the clock.

Mr. HUBERT. That morning—what morning do you mean?

Mrs. PITTS. I think it was Sunday morning, you know, when you was saying about——

Mr. HUBERT. When Oswald was shot?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Now, you do remember that Oswald was shot——

Mrs. PITTS. Yes, sir.

Mr. HUBERT. It was on Sunday?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. And you do know that Mr. Ruby was accused of shooting Mr. Oswald and was tried, as a matter of fact?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. And that is the man we are talking about, is that right?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. And that is the Sunday we are talking about?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. You called in there, as was your custom——

Mrs. PITTS. Yes, sir.

Mr. HUBERT. To do the regular weekly——

Mrs. PITTS. Cleaning.

Mr. HUBERT. Work, and you say you don't know what time it was?

Mrs. PITTS. No, I don't, but it was—it was after 8. I know way after 8, and when I called him he said to me, "What do you want?" And I said——

Mr. HUBERT. Did you recognize his voice?

Mrs. PITTS. Well, I'll tell you how he talked to me, then I said, "What do I want?" I says, "This is Elnora." He says, "Yes, well, what—you need some money?" And I says, "No; I was coming to clean today."

"Coming to clean?" Like you know, like he just——

Mr. HUBERT. In other words, when you told him that you were coming to clean he seemed to express some surprise, is that it?

Mrs. PITTS. Yes, sir; like he didn't know that I was going to come and clean.

Mr. HUBERT. Did he recognize you?

Mrs. PITTS. I don't know if he did or not. And I says to him again, I says, "This is Elnora." And he says, "Well, what do you want?" And I said, "Well, I was coming to clean today."

"You coming now?" And I says, "No."

Mr. HUBERT. He asked you then, "Are you coming now?"

Mrs. PITTS. Yes, sir; and then I says, "No." And he says, "Well, what you got to do?" And I says, "I have got to go to the store for the children." I always goes to the store for the children before I come to work whenever I

come. He says, "Well,"—I says, "You seem so funny to me." And I says, "Do you want me to come today?" And he says, "Well, yes; you can come, but you call me." And I says, "That's what I'm doing now, calling you so I won't have to call you again." And he says, "And you coming to clean today?" And I said, "Yes." Well, he sounded so strange to me but I still wouldn't say nothing to him. I just stopped another few minutes, and I said, "Who am I talking to? Is this Mr. Jack Ruby?" And he said, "Yes. Why?" And I said, "Oh, nothing." But he just sounded terrible strange to me, so, I said, "Well, I'll call you." And he says, "But, I don't see why I called you." And he said, "Yes, so I can tell you where the key will be and the money." And I said, "Okay." So, I hung up.

Mr. HUBERT. Did you arrange a time to go then?

Mrs. PITTS. He told me to call him before I come.

Mr. HUBERT. Did he tell you what time?

Mrs. PITTS. I told him that I would be there before 2 and he says for me to call him.

Mr. HUBERT. Did he suggest 2 o'clock?

Mrs. PITTS. No; I did.

Mr. HUBERT. What did he say when you suggested 2?

Mrs. PITTS. He said, "Why so late?"

Mr. HUBERT. And what did you say?

Mrs. PITTS. I told him, said, "Well, I have got to go to the store, and I have got some things to do."

Mr. HUBERT. Did you tell him you had some cleaning to do?

Mrs. PITTS. Yes, sir; I had some cleaning to do, straightening up.

Mr. HUBERT. Did he agree that 2 o'clock would be all right?

Mrs. PITTS. No; he didn't seem to think that 2 o'clock was all right.

Mr. HUBERT. But he asked you to call him?

Mrs. PITTS. Yes, sir; he asked me to call him.

Mr. HUBERT. Did he ask you to call him at 2 or what?

Mrs. PITTS. No; he says, "You call me before 2," that is what he says. He says, "Be sure you call me." To call before 2, "Before you come." He says, "You call me before 2, before you start," and I says, "Well, what I have to call you again for?" And he says, "Well, so I can tell you where the key is and the money." And I said, "Uh-huh."

So, before I could, you know, hang up, he says, "Be sure and call me." "Did you say you was coming in today?" And I said, "Yes." And when he said that, that's when it kind of scared me, so, I just hung—I say, "okay," and I hung up.

Mr. HUBERT. What were you scared about?

Mrs. PITTS. The way he talked. He didn't talk like—he never did sound like hisself to me.

Mr. HUBERT. Are you sure you were talking to him?

Mrs. PITTS. Well, I guess so.

Mr. HUBERT. Had you ever talked to him before on the telephone?

Mrs. PITTS. Yes, it sounded like him in one way, and when he went to talking, you know, just saying the same thing two or three times, that is what—that is when I asked him, you know, if I was talking to Mr. Jack Ruby.

Mr. HUBERT. So, there was some doubt in your mind as to whether it was Jack Ruby?

Mrs. PITTS. Yes, sir. It was a doubt in something wrong with him the way he was talking to me. Other things—times I would have, you know, just laid my work down and went ahead on.

I called my daughter and told her, and she said, "Well, are you going over there now?" And, "No; he don't sound right to me over the phone. I am going to wait."

Mr. HUBERT. What I want to get at is this, whether or not you can say it was Jack Ruby that you were talking to but that he seemed different?

Mrs. PITTS. Yes, sir; that was him.

Mr. HUBERT. Or whether or not he seemed so different that you were not sure that it was Jack Ruby?

Mrs. PITTS. Yes, sir. It was him. I'm sure of that, but then he just was indifferent. He sure did talk indifferent; yes, sir. He sure did.

Mr. HUBERT. Now, did he tell you that he was going out, or that he would be back around 2?

Mrs. PITTS. Said he was going out, he would try to be back by 2. That is what he told me. He says, "You call me before." That is what he told me.

Mr. HUBERT. Did he tell you when he was going out, Mrs. Pitts?

Mrs. PITTS. No, sir; didn't tell me, says, "I am going out." That is what he says, and I says to him, I says, "If you are going to have company or something"—I says, "I can wait and come tomorrow." He said, "Oh, no; you come on."

Mr. HUBERT. Can you fix a little better for us the time that this conversation took place?

Mrs. PITTS. It was after 8 o'clock, was way after 8, but just to tell the truth——

Mr. HUBERT. You say "Way after 8," you mean way after 8 on the way to 9?

Mrs. PITTS. Well, I imagine somewhere around 8:30, then, I guess it was.

Mr. HUBERT. It wasn't after 9?

Mrs. PITTS. No, sir; it wasn't after 9.

Mr. HUBERT. How can you be sure about that? Is there anything that you remember that makes you say it was not before 8 but afterward, and not before 9?

Mrs. PITTS. Well, the children had the programs on Sundays, and I know then that they was a, you know, singing, and that is why I know it was between 8—8:30 and 9.

Mr. HUBERT. That was what I was trying to get at, get something that you could identify so that you could fix the time that way.

Mrs. PITTS. Yes.

Mr. HUBERT. Did you go to church, perhaps, that day?

Mrs. PITTS. No, sir; I didn't.

Mr. HUBERT. Children go to church?

Mrs. PITTS. No, sir; they—they was intending to go to church. One—you see, one, I think, did go to Sunday school, but church.

Mr. HUBERT. What time did he go?

Mrs. PITTS. That one going to Sunday school was ready and gone before then.

Mr. HUBERT. What time does Sunday school begin?

Mrs. PITTS. Well, Sunday school begins around, I think, 9 o'clock.

Mr. HUBERT. So, he had already gone?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Could you say——

Mrs. PITTS. Have to walk a little piece.

Mr. HUBERT. Well, does that help you to fix the time of the conversation with Mr. Ruby?

Mrs. PITTS. Well, that program there, that is what I——

Mr. HUBERT. What program was it?

Mrs. PITTS. Something on that KBOX program where those preaching, you know, and having church there, and that is the reason I said it is between 8:30 and 9.

Mr. HUBERT. When you first spoke to Mr. Ruby, did he seem to have just awakened, or what?

Mrs. PITTS. Well, I don't know know if he——

Mr. HUBERT. Did he say he had just awakened?

Mrs. PITTS. No; I didn't ask him that.

Mr. HUBERT. Do you know Mr. George Senator?

Mrs. PITTS. I know of him. I cleaned for him twice.

Mr. HUBERT. He lived in the same apartment, or a different one?

Mrs. PITTS. He was living next door to him when I cleaned for him. He was 206, and Mr. Ruby was 205.

Mr. HUBERT. Let's see. This apartment that you were going to clean on November 24, what was the number of it?

Mrs. PITTS. That was Mr. Ruby. In 205.

Mr. HUBERT. Sure it was not 207?

Mrs. PITTS. That is it. He—206. Senator was right next door.

Mr. HUBERT. Next door, or across?

Mrs. PITTS. No; right against Mr. Ruby's, and, Senator—and Mr. George Senator was right at—you're right, 207. I keep saying 205, but it was 207.

Mr. HUBERT. 207?

Mrs. PITTS. Yes.

Mr. HUBERT. Do you know whether or not Mr. Senator and Mr. Ruby were sharing apartment 207 on November 24, or sometime before that?

Mrs. PITTS. Well, I hadn't been there in—and seen him. I hadn't, but when I had went there and cleaned—started to clean his apartment where Mr. George used to live, and he had moved out, but when—where did he move then, I don't know.

Mr. HUBERT. So, any Sunday you ever went to Mr. Ruby's apartment, you don't know whether Mr. Senator was sharing that apartment or not?

Mrs. PITTS. No; he would come over there when he lived right there next to him, but, see, when he moved, well, then, I hadn't been there in a long time, so, then, I had seven vacant apartments to do just before this all happened, so, then I——

Mr. HUBERT. Did Mr. Ruby have a two-bedroom apartment?

Mrs. PITTS. Yes, sir.



Mr. HUBERT. Had you noticed before that both bedrooms had been occupied by people, that is to say, by cleaning up, by seeing that the beds had been slept in and so forth, you can tell when the rooms——

Mrs. PITTS. No; the bed was made. Now, the manager told me, but I didn't see him there. Now, the manager told me that they must—this man Senator had moved over there, but then I didn't see him there.

Mr. HUBERT. He didn't pay you?

Mrs. PITTS. No, sir.

Mr. HUBERT. Did you ever talk to Mr. Senator over the phone?

Mrs. PITTS. No, no. I—he called me from his apartment once and talked to me about coming to clean for him, but he didn't talk to me, Mr. Ruby.

Mr. HUBERT. Was it possible that the man you spoke to on November 24, was not Mr. Ruby, but Mr. Senator?

Mrs. PITTS. It sounded like Mr. Ruby, but he just—he started talking off all right and then he would go, you know, to talking funny to me, and don't sound like himself, and hollering and talking loud and that is something he didn't ever do.

Mr. HUBERT. You mean kind of mad at you?

Mrs. PITTS. No; it wasn't mad, but just talking strange, you know how a person talks strange, kind of. Don't really understand what they are really saying, I guess.

Mr. HUBERT. You testified, didn't you, in Mr. Ruby's trial?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Had you been interviewed prior to that by his attorney?

Mrs. PITTS. Say had I been what?

Mr. HUBERT. Interviewed prior to your testimony in the trial by his attorney?

Mrs. PITTS. Yes, sir; by his—Mr. Belli.

Mr. HUBERT. Mr. Belli? He talked to you?

Mrs. PITTS. He talked to me. He come out there and got me when I was sitting out there waiting. They had—Mr. Burleson was the one that talks to me over the phone and told me that I had to come down there.

Mr. HUBERT. Did he ask you whether or not his voice was strange?

Mrs. PITTS. They just told me to tell how he talked to me, so, that is what I did. That is what he said that they wanted to know. So, that is what I did.

Mr. HUBERT. Do you remember that you were interviewed by Mr. Jack French, special agent of the FBI, around 2 or 3 days after this shooting occurred?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Do you recall whether you told Mr. French at that time that you thought that Mr. Ruby's voice sounded odd the way you testified today?

Mrs. PITTS. Yes, sir; I told him that, but he told me what he was wanting to know if I had seen any books or letters or papers around there, and that I didn't ever look, and——

Mr. HUBERT. But you say you told Mr. French that you thought that Mr. Ruby's voice was odd like you testified to today?

Mrs. PITTS. Yes, sir; I told him that.

Mr. HUBERT. Did you tell him that, or was the first time that you testified like that at the time of the Ruby trial?

Mrs. PITTS. Did I do what now?

Mr. HUBERT. I say, are you sure that you told Mr. French about Mr. Ruby's strange sounding voice or what——

Mrs. PITTS. I told——

Mr. HUBERT. Or was the first time you testified about that voice at the time of the trial?

Mrs. PITTS. I told him some of it. He told me he wasn't interested in that. He said what he wanted to know if I'd seen a lot of people around there. I didn't see, because I wasn't there every day.

Mr. HUBERT. Was it suggested to you by anyone that you should say that his voice was strange there?

Mrs. PITTS. Yes, sir; I told him that.

Mr. HUBERT. No; did anybody suggest to you, at anytime that you should testify that Mr. Ruby's voice seemed odd that day?

Mrs. PITTS. No, sir; nobody didn't tell me that, just told me to tell how he talks to me, so, that is what I did.

Mr. HUBERT. And you had also told that to Mr. French?

Mrs. PITTS. Yes; I told him he sounded funny to me and strange, and scare me, and there is another reason I didn't just drop my work at home and go ahead home, because I could have went on to the store right there close and—but I wouldn't do it, because he talked so funny to me.

Mr. HUBERT. You mean you decided at that time that you weren't going over there that day?

Mrs. PITTS. I guess when I talked to him—after I hung up I called my daughter and told her about it, said, "He sure sounded funny to me." And, so, she said, "Are you going, mama?" And I said, "No." And, directly my little bitty granddaughter, the oldest granddaughter there, and they says, "Is this name Jack Ruby, Rubinstein, or something?" And I said, "No; Jack Ruby." Says, "Well, that news is where—there he done killed a man." But I said, "Killed who?" So, she said—"Oswald." Well, it didn't—this Oswald, I don't know nothing about him, so, I said, "That isn't him, because this is Rubinstein. It's Ruby is what he told me." All I ever did know was Jack Ruby, so, I called my daughter again, and I says to her, I says, "They'll show that on TV, and they call the dog Sheba"—there, that's him, and I said, "You stay there and look and call me back."

I still kept working, because I didn't think it was him, so, she—directly she called me and says, "Yes." It is on TV and is a little, short, heavy man kind of bald-headed, I say, "Yes." And called me back and said where he lived, and sure enough, and I said, I knowed there was something wrong with that man. I didn't go on over there—and was glad that I didn't go. No doubt when—went over there when he was talking the way he was talking he would turned around there and shot me.

Mr. HUBERT. Explain that a little bit. I don't think you have told us much about what he told you. As I understand your testimony he seemed a little vague, but, he told you to come on and clean but call before?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Then, he told you that he thought he would be back by 2 o'clock?

Mrs. PITTS. He told me be sure and call.

Mr. HUBERT. What was strange about that?

Mrs. PITTS. Well, see, he asked me that two or three times, now, was I coming over, and what was I coming over there for, and I had to tell him, and told him that I was coming to work.

Mr. HUBERT. In other words, it was several times, Mrs. Pitts?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. That you had to identify yourself, as it were?

Mrs. PITTS. Yes, sir; I told him who I was and told him, says, "I'm coming to clean." See, I had borrowed \$25 from him a while back and paid him the money back, and I thought when he asked me did I want some money I—and says, "Oh, no; I don't want to borrow no money today. I am coming to clean." Told him coming to clean today. Is so—it's Sunday, you've always told me to wait until Tuesday and then Saturday, and back to Sunday, and I says, "And today is Sunday." And he says, "Oh." And I said——

Mr. HUBERT. He says, What?

Mrs. PITTS. He says, "Oh,"—and I says to him, I says, "If you don't want me to come on, if you have got somebody—company or something, I can wait and come tomorrow. I'll wait and come tomorrow if you say so."

Mr. HUBERT. Well——

Mrs. PITTS. "No, you come now, but you call me."

Mr. HUBERT. Well, now, was there anything else peculiar about the conversation?

Mrs. PITTS. Then, he didn't seem to know who I were at first. Turned and says to me, says, "Are you coming over here? What you coming over here for?" And I says, coming over to clean. I says, "Today is Sunday." He says, "well—I didn't seem to think that I would have to tell him that.

"Come over to clean I will leave the keys for you and come and start, and you can come on and clean," and I said, "Yes, sir." Well, then, I was getting arrangements made to start and he turned to me again and say, "What you coming for?" And I said, "Well, I'm coming to clean and dust."

Mr. HUBERT. He said that several times?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Also, some little sound in his voice you think?

Mrs. PITTS. Yes, sir; yes, sir.

Mr. HUBERT. Did you say something about his being kind of rude, now, or rough?

Mrs. PITTS. No; he hollered and something——

Mr. HUBERT. Hollered?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Hollered? What do you mean?

Mrs. PITTS. And in talking about these things, yes, sir, he says, "What you—what are you—what do you want?"

Mr. HUBERT. Now, when you say a loud voice like you just raised your voice right now.

Mrs. PITTS. "What do you want?" and I says, "What you want?" And he said, "Yes,"—said, "This is Elnora. I was coming to clean." He says, "Elnora? Who is Elnora?" Elnora Pitts. He mostly called me Eleanor.

Mr. HUBERT. Did he curse you or anything like that?

Mrs. PITTS. No, sir; he didn't cuss.

Mr. HUBERT. He just raised his voice and did not understand, you would have to repeat things several times?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. And that bothered you so that you made up your mind you weren't going that day?

Mrs. PITTS. Yes; scared me.

Mr. HUBERT. You were fearful that he might hurt——

Mrs. PITTS. I didn't think he might hear—that is, he might hurt me, but I was scared something was wrong with him by him asking me that two or three times and he never did ask me that. And I always would call him.

Mr. HUBERT. Go ahead.

Mrs. PITTS. I would always call him and say I would be there. There was going to be nobody there. At times he would be leaving and take the dog along because I don't work where there's dogs.

Mr. HUBERT. What dog?

Mrs. PITTS. Sheba. I've been dog-bit twice so, I am just scared of dogs, and I don't go where dogs is in the place, and that is the reason I refused to go when the manager opened the door for me and told me she would put him in the bathroom, and I told her I would go on home and come back again.

Mr. HUBERT. Did he have a gun in that apartment?

Mrs. PITTS. I never did see it. I never did.

Mr. HUBERT. Did he carry a lot of money?

Mrs. PITTS. He did.

Mr. HUBERT. How do you know?

Mrs. PITTS. Well, there would be on the coffee table top, dining room table, on his dresser, be behind the dresser, on the floor. I would pick it up and put in those things, brown envelope sacks and sack it up, and put it on the dresser.

Mr. HUBERT. Lots of money?

Mrs. PITTS. Well, I guess it was right smart, but it wasn't no—way up in the hundreds or——

Mr. HUBERT. Rolls of money?

Mrs. PITTS. No; just loose money.

Mr. HUBERT. That was on several times that you noticed that?

Mrs. PITTS. Yes, sir; lots of times, because I refused to clean his dresser off, and his coffee table, and the manager told me, said, "Jack Ruby said I had left the coffee table and dresser, and I said," "Do you know why?" And say, "No." "Because he had money laying all over both the table and on his dresser, and on the table." And I says—"and I don't dust them, because I don't—by him being a Jewish man, I don't want him to say I taken the money, you know. I don't steal, you know that."

Mr. HUBERT. Yes.

Mrs. PITTS. He says, "No."

Mr. HUBERT. Do you know a man by the name of Andrew Armstrong?

Mrs. PITTS. Now, he had a man staying there with him once.

Mr. HUBERT. Colored man, I am talking about?

Mrs. PITTS. And—oh, Andrew? Well, I seen this Andrews down in the courthouse. He had called out there several times when I was there, and——

Mr. HUBERT. While you were working?

Mrs. PITTS. Yes, sir; this Andrews did, and he would ask for Ruby, and I would tell him, you know, and whenever Ruby come in you tell him that I am ready to go and he would just say, "Ain't there some money laying around?" And I said, "No, he can pay me himself. No, I'd rather for him to put it out for me himself."

Mr. HUBERT. You never met Andrew Armstrong?

Mrs. PITTS. I seen him down at the——

Mr. HUBERT. Court?

Mrs. PITTS. Courthouse, yes, sir.

Mr. HUBERT. Did you meet him then?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Had you ever seen him before then?

Mrs. PITTS. No, sir.

Mr. HUBERT. How did you know it was Andrew Armstrong you were talking to on these previous occasions when you spoke to him on the telephone?

Mrs. PITTS. He told me who he was, Andrews.

Mr. HUBERT. Did you recognize his voice?

Mrs. PITTS. Yes, sir. I recognized his voice when I seen him up there and somebody called him Andrews, and then——

Mr. HUBERT. So the conversation you had prior to the time Mr. Ruby was arrested, those conversations with Andrew were all over the phone and you had never met him before?

Mrs. PITTS. See, I don't have—I don't have any conversations with Andrews since Mr. Ruby been in jail.

Mr. HUBERT. I understand that the conversations you had prior to the time Mr. Ruby went to jail, with Andrew, were all over the phone and it was at a time you had never met him before, is that right?

Mrs. PITTS. You mean when I was there working there?

Mr. HUBERT. Yes.

Mrs. PITTS. And he would call and something would be wrong at the club, and he'd call and say he needed Ruby.

Mr. HUBERT. There?

Mrs. PITTS. That's right, and I'd say, well, he's not here.

Mr. HUBERT. You had never met Andrew at that time?

Mrs. PITTS. No, sir.

Mr. HUBERT. But, you recognized his voice and subsequently when you met him you recognized his voice, too?

Mrs. PITTS. As I—I asked him, I says—somebody called him, and Andrew—and I said, “Oh,”—I said, “You are the Andrew who used to call out at the house.” And he says, “Yes.” Thought I was, at first, Alice, somebody by the name of Alice, and I said, “Elnora.” Oh, yes, I see.



Mr. HUBERT. Do you know a girl by the name of Alice?

Mrs. PITTS. No, sir; I didn't know her.

Mr. HUBERT. Did she live in the apartment?

Mrs. PITTS. That, I don't know if she—I guess she must have worked at the club. I think she worked down at the club. I never did see her.

Mr. HUBERT. Do you know a lady by the name of Alice Nichols?

Mrs. PITTS. No, sir; I don't know none of them people that worked down to his place.

Mr. HUBERT. Well, all right. Is there anything else that you know about?

Mrs. PITTS. Sir?

Mr. HUBERT. Is there anything you know about that you haven't stated to me?

Mrs. PITTS. No, I never did go to his club. I have never met none of those people there, and——

Mr. HUBERT. Is there anything that you testified to in court that you haven't said here?

Mrs. PITTS. No, sir; nothing. I told you the truth. Just testified the truth on how he talked to me.

Mr. HUBERT. Your testimony today is about the same as it was in court, is that right?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Do you know anything else concerning Mr. Ruby that would throw any light upon why he shot Oswald, if he did, or what his connection was with Oswald or with anybody else in any manner?

Mrs. PITTS. That is something I do not know.

Mr. HUBERT. You do not know?

Mrs. PITTS. No, sir. I don't even know this Oswald. I don't know a thing in the world about that.

Mr. HUBERT. Do you know a boy by the name of Larry Crafard?

Mrs. PITTS. Well, no.

Mr. HUBERT. Well, I will show you some pictures of a man here taken in different poses. Have you ever seen that man?

Mrs. PITTS. I don't think I have, no, sir.

Mr. HUBERT. Let the record show that the witness was shown several—five pictures of Larry Crafard, also known as Curtis LaVern Crafard, and after examining them, she stated that she did not know this man.

Mrs. PITTS. Uh-huh.

Mr. HUBERT. Do I understand that you say you have never seen him at all?

Mrs. PITTS. I don't think I have. I don't remember him. He had one young man that stayed there, kind of tall boy. I don't know his name, but I ain't seen him since Mr. Ruby been in jail down here, and he had moved over here on—I believe he was—said it was Freeman's Apartment House, I believe that is where he lived.

Mr. HUBERT. What was his name?

Mrs. PITTS. I don't know his name.

Mr. HUBERT. Did he live there?

Mrs. PITTS. Sir?

Mr. HUBERT. Did he live at the apartment?

Mrs. PITTS. The apartment—lived there with Ruby for one while.

Mr. HUBERT. How long ago?

Mrs. PITTS. Well, that was back in December. He was a tall, young looking boy.

Mr. HUBERT. That is not the man I just showed you the picture of?

Mrs. PITTS. He don't look like him; no. I don't know his name. I seen him there. I seen him one Sunday night. I seen him there and seen him there once before then, but he didn't say too much when he come in that Sunday night. I was getting ready to leave.

Mr. HUBERT. You only saw him twice?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. He was thin, and tall, you say?

Mrs. PITTS. Well, he wasn't a real thin boy, but he was tall.

Mr. HUBERT. He was tall? How old was he?

Mrs. PITTS. I don't know just how old he was.

Mr. HUBERT. What made you think he was living there?

Mrs. PITTS. Sir?

Mr. HUBERT. What made you think he was living there?

Mrs. PITTS. This boy said he was. He was working down there at the club. He told me he was working down there for his room out there.

Mr. HUBERT. Was this a Jewish boy?

Mrs. PITTS. I don't know. He come from somewhere here and he——

Mr. HUBERT. The Dallas area?

Mrs. PITTS. I guess and he didn't have no job. He would work there to pay for his room, is what the boy told me, but I didn't pay too much attention to him, because I was getting ready to go.

Mr. HUBERT. You only saw him on two occasions?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Was Mr. Ruby there when you saw him?

Mrs. PITTS. Mr. Ruby, come in when I was getting ready to leave, and this boy had some—and I think then he was telling the boy to get ready to go down to the club and I was getting ready to go out the door.

Mr. HUBERT. You fixed that as being in the summertime?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. Then the boy left?

Mrs. PITTS. Yes, sir; he did. I don't know. I guess it was summertime. I don't even know, but it was kind of hot weather. Might have been fall.

Mr. HUBERT. Was he living there at the time Mr. Ruby got in the trouble?

Mrs. PITTS. Oh, goodness no.

Mr. HUBERT. He had left?

Mrs. PITTS. He had been gone a long time. That was in the wintertime. I don't even know to tell you how much attention I paid to this boy. I didn't even know him when I come out of the drug store and I said something to one of my middle granddaughters—got a paper and something, and boy turned around and said, "Hello there." And I looked at him, and then he—"Don't you remember me?" And I said, "Oh, yes, I believe I do now." I says, "You was living with Ruby?" And he says, "Yes, I thought sure you'd remember me." And I said, "Yes."

Mr. HUBERT. When was that?

Mrs. PITTS. That was when Ruby had been in the trouble, and he was in the street, and I come in the drug store, and he was stopping out there fixing to get into his car.

Mr. HUBERT. Where was that?

Mrs. PITTS. Where was that?

Mr. HUBERT. The drug store.

Mrs. PITTS. Corner of Cornell and Ewing, there. The drug store where he was.

Mr. HUBERT. Do you know where that man works?

Mrs. PITTS. Work? No, no. I don't know that. Mr. George Senator, now, would know him, and could tell you where he is. I don't even remember the boy's name, but I know—and into my work, and get through, and so, I never seen but twice.

Mr. HUBERT. The time you saw him at the drug store, though, he was getting into his automobile, was that after Mr. Ruby got into trouble?

Mrs. PITTS. Yes, sir.

Mr. HUBERT. How long after, about?

Mrs. PITTS. I don't know just how long.

Mr. HUBERT. Around Christmastime or before the trial?

Mrs. PITTS. Well, yes; it was before the trial, as I had never been down here. At least I hadn't been down here, and I don't know if he had been or not, but he did tell me the FBI men had been out talking to him?

Mr. HUBERT. After New Year's that you saw him?

Mrs. PITTS. I just don't know how—when it was. Might have been after New Year's, but I know it hadn't been down here, you know, at the trial. And he said they had been out to talk to him and found him and talked with him, so, I guess he told them, you know, where he was. Told me he was living over at the Freeman's Apartments, and I don't know if he is still over there or not.

Mr. HUBERT. Once again, he doesn't look like the man whose pictures I showed you?

Mrs. PITTS. No, sir.

Mr. HUBERT. All right, have you ever been interviewed by any member of the Commission's staff before? I am a member of the Commission's staff, and have you been interviewed by me before this?

Mrs. PITTS. No, sir; I don't think so.

Mr. HUBERT. Well, you have never seen me before today, isn't that right?

Mrs. PITTS. That's right.

Mr. HUBERT. Then there was no interview between you and me before we began this deposition?

Mrs. PITTS. No, sir.

Mr. HUBERT. All right, Elnora, thank you very much.

Mrs. PITTS. Yes, sir.

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## **TESTIMONY OF HAL PRIDDY, JR.**

The testimony of Hal Priddy, Jr., was taken at 5:05 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Erway Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Mr. Hal Priddy [spelling] P-r-i-d-d-y, Jr. Mr. Priddy, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission. Under the Provision of Executive Order 11130, dated November 29, 1963, Joint Resolution of Congress 137, and rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution I have been authorized to take the sworn deposition from you, Mr. Priddy, as the former employee of the O'Neal Funeral Home.

I state to you now that the general nature of the Commission's inquiry is to ascertain and evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Oswald.

I state to you now, Mr. Priddy, that the nature of the inquiry is to determine the facts you know about the death of Oswald and any other facts you may know about the general inquiry. In particular the ambulance call at the O'Neal Funeral Home. Now, you have appeared here today by virtue of a general request made by Mr. J. Lee Rankin, General Counsel for the President's Commission, addressed to the O'Neal Funeral Home, and asked them to produce certain documents and witnesses relevant to those documents and other matters, I take it that you have not, yourself, received a copy of that letter?

Mr. PRIDDY. No, sir.

Mr. HUBERT. Let me say that under the rules of the Commission, any witnesses—any witness is entitled to a 3-day written notice prior to the taking of his deposition, but the rules also provide that a witness may also waive the 3-day notice if he sees fit, and I ask you now if you are willing to waive the 3-day notice?

Mr. PRIDDY. Yes.

Mr. HUBERT. Will you stand and be sworn. Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. PRIDDY. I do.

Mr. HUBERT. Will you please state your full name?

Mr. PRIDDY. Hal Arthur Priddy, Jr.

Mr. HUBERT. Your age?

Mr. PRIDDY. Twenty-five.

Mr. HUBERT. Your residence?

Mr. PRIDDY. 1857 Swan.

Mr. HUBERT. And your present occupation?

Mr. PRIDDY. Salesman for Shaw Jewelers.

Mr. HUBERT. Now, on November 24, 1963, which was the Sunday after the assassination of President Kennedy, where were you employed?

Mr. PRIDDY. O'Neal Funeral Home.

Mr. HUBERT. In what capacity?

Mr. PRIDDY. I was the rider. I was riding with Mike, but I just relieved——

Mr. HUBERT. You were riding with Mike whom?

Mr. PRIDDY. Mike Hardin, and I just relieved the dispatcher, and he had taken my place.

Mr. HUBERT. Who was the dispatcher?

Mr. PRIDDY. Wayne Wolfe.

Mr. HUBERT. So, that you were acting as dispatcher around, say 11 or 11:30?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. At the O'Neal Funeral Home?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. What are your duties as dispatcher?

Mr. PRIDDY. Well, we receive incoming calls from the police department and in turn dispatch them to the various funeral homes in their district, you know——

Mr. HUBERT. You mean the O'Neal Funeral Home dispatches them, they receive calls from the police office and dispatch these calls to the various funeral——

Mr. PRIDDY. You see, we have a direct line from the police department. All they do is pick up a phone and it rings and we have a direct line to the Dudley Hughes Funeral Home and to the Camp Funeral Home, so that if the call is in their area that way the ambulance will get there quicker, you know, than O'Neal's having to drive clear across town.

Mr. HUBERT. In other words, O'Neal's is sort of central for all ambulance calls——

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. Which come to you from the police and in turn are sent out by you to the appropriate funeral home operating an ambulance?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. And I assume that you send the ambulance which is closest to where it is needed?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. All right, now, do you recall having received a call from the police shortly after 11 o'clock on the 24th of November 1963?

Mr. PRIDDY. Yes, sir; I was dispatching at the time, and one of the other funeral homes called and told me. I was waiting for the call when they told



me that they were going to have to have an ambulance down at the——

Mr. HUBERT. You what? You were waiting for the call?

Mr. PRIDDY. Yes, sir; you see. One of the funeral homes had, you know, it was on live TV, and they had seen it, and they picked up their direct line.

Mr. HUBERT. To you?

Mr. PRIDDY. And told me.

Mr. HUBERT. Told you what?

Mr. PRIDDY. That we were probably going to need an ambulance, that there was a disturbance down at city hall, so, I was waiting for the call when it came in.

Mr. HUBERT. I show you a document marked for identification as Hardin Exhibit No. 5125, and ask if your handwriting appears on that document?

Mr. PRIDDY. Yes, sir. Right here at the top of it where the——

Mr. HUBERT. Now, in order that the record may show that we are both speaking of the same document, I wonder if you would put your signature along with mine and Mr. Hardin's at the top of that?

Mr. PRIDDY. Yes.

Mr. HUBERT. Now, you say that the handwriting at the top is in your hand?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. I see the word "Lee" and then something scratched out. "Oswald. City jail to Parkland." Why did you put that information there?

Mr. PRIDDY. Well, on any call we have to have the information, you see. I didn't get that information until they called in to clear. I didn't know—well, I did know, but normally I wouldn't know who the patient is, and where they were taking them to, because he might just taken him to Baylor.

Mr. HUBERT. Would you just put the number of the car that you——

Mr. PRIDDY. Yes, sir. That is the first thing when you stamp it—you stamp it—then you put the number of the car.

Mr. HUBERT. I notice the word “Mike,” on the left-hand top, is that in your handwriting, too?

Mr. PRIDDY. I don’t see it. Wait a minute. No, sir.

Mr. HUBERT. Also notice a name on this document, Hardin Exhibit No. 5125, printed, telephone number, and then written No. 19.

Mr. PRIDDY. You mean this printed?

Mr. HUBERT. Yes; that No. 19 there.

Mr. PRIDDY. I can’t tell.

Mr. HUBERT. All right. Now, then, there is on Hardin Exhibit No. 5125, next to the printed item “time called,” a stamped time—and the time stated there is 11:21, November 24. Can you enlighten us as to the meaning of that entry?

Mr. PRIDDY. Whenever I receive a call from the ambulance—from the police department I stick this card in the machine, and it automatically stamps the date and the time that the——

Mr. HUBERT. What kind of machine is that?

Mr. PRIDDY. Just a time machine like a timeclock, except it is made for these.

Mr. HUBERT. You slip a card in there and it automatically stamps the time. You don’t have to hit it?

Mr. PRIDDY. No; you just shove it in there.

Mr. HUBERT. How accurate is that timeclock?

Mr. PRIDDY. Well, it is as accurate as the police department clock. I mean, they are synchronized.

Mr. HUBERT. How are they synchronized and—how often?

Mr. PRIDDY. Don’t know the mechanism. I know a man comes out and they are serviced regularly.

Mr. HUBERT. By the police department?

Mr. PRIDDY. No, by the manufacturer; and I don’t know who that is.

Mr. HUBERT. Do you know how often they are serviced for correction and accuracy?

Mr. PRIDDY. No, sir.

Mr. HUBERT. But, you all rely upon them?

Mr. PRIDDY. Yes, sir; we have never had any occasion to question the——

Mr. HUBERT. Tell us what happened about this particular call?

Mr. PRIDDY. Well, I got the call, and I stamped it, and then I was waiting.

Mr. HUBERT. Got the call from whom?

Mr. PRIDDY. From the police department.

Mr. HUBERT. What did you do when you got it?

Mr. PRIDDY. Well, I checked my receipts, the other receipts to see who was clear, see, we have two ambulances there and it turned out that——

Mr. HUBERT. Go ahead.

Mr. PRIDDY. That the ambulance that I dispatched, I don't remember the name of it—the number, but the one that I dispatched was coming back from veterans hospital, and the—I knew that they were in—thoroughly close to downtown, because I just had had a call from them. They called when they got to the hospital and they were cleared, so, when the police department called I told them that the—there was an ambulance on the air and they dispatched it by——

Mr. HUBERT. Did you tell them that they could reach that ambulance by putting the call?

Mr. PRIDDY. Yes, sir; they just, you know—what number was that?

Mr. HUBERT. Call? You mean the car number?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. 605.

Mr. PRIDDY. 605.

Mr. HUBERT. That appears on 5125, and I should ask you, really, what that means?

Mr. PRIDDY. Yes, sir; 605.

Mr. HUBERT. You told them to call car 605 because it was on the air, and that means he could be reached by calling him. Did you tell them that was the closest one you could find?

Mr. PRIDDY. Yes, sir. Well——

Mr. HUBERT. That is the one you gave, in any case?

Mr. PRIDDY. No—yes, sir.

Mr. HUBERT. And that was the closest one you could find?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. You knew that the people had previously, that is to say, Mike Hardin in car 605, had previously cleared from the veterans hospital stating that he was coming back to O’Neal, and you figured he was en route, and that it would—be quicker to reach him that way, is that correct?

Mr. PRIDDY. Yes, sir; I had figured him about to the freeway.

Mr. HUBERT. Now, I notice there is something here also in the—apparently timecard stamp code 6, 11:30, 11-24.

Mr. PRIDDY. That is when he arrived at the hospital.

Mr. HUBERT. How was that received?

Mr. PRIDDY. I monitor all of the police broadcasts while my ambulance is out.

Mr. HUBERT. So, you heard that?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. And you took the card and put it in the machine?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. I notice some empty spaces in between, could you tell us now how that came about?

Mr. PRIDDY. At the time I was monitoring this the telephone was ringing, and people were running in and out, you know, confusion, and I didn't hear when they left the police station.

Mr. HUBERT. So, therefore, you didn't stamp it?

Mr. PRIDDY. I didn't stamp it, that's right.

Mr. HUBERT. The next thing you did here was the second code 6?

Mr. PRIDDY. This was the arrival at the hospital.

Mr. HUBERT. Arrival at the hospital?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. And therefore, you put that stamp on it?

Mr. PRIDDY. Yes, sir; sometimes due to radio interference you are not able to make out who is calling. The police department may, or if they don't tell, ask again.

Mr. HUBERT. In any case that second time——

Mr. PRIDDY. But, anytime you hear your ambulance you punch the code that he is on; yes, sir.

Mr. HUBERT. You did hear the ambulance call in that he had arrived at——

Mr. PRIDDY. He called in the police department.

Mr. HUBERT. And you overheard that?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. On your monitor?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. And then took the card out and slipped it into the machine and it recorded 11:30?

Mr. PRIDDY. Yes, sir.

Mr. HUBERT. Do you know whose handwriting is on the lower left-hand of that——

Mr. PRIDDY. No, sir.

Mr. HUBERT. Document, Hardin Exhibit No. 5126, next to "Oxygen," sir?

Mr. PRIDDY. And I didn't write the 12:30 here where he was clear at 12:30. But that probably doesn't have any significance.

Mr. HUBERT. All right, sir. Mr. Priddy, have you been interviewed by any member of the Commission's staff other than myself?

Mr. PRIDDY. No, sir; no one.

Mr. HUBERT. Insofar as the interview with me is concerned, do you consider that everything discussed in the interview has been brought up in this deposition?

Mr. PRIDDY. That I can think of; yes, sir.

Mr. HUBERT. Do you know of anything that was not brought up in this deposition that is material to the general inquiry we had?

Mr. PRIDDY. No, sir.

Mr. HUBERT. Well, sir; I thank you very much.

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## **TESTIMONY OF HUEY REEVES**

The testimony of Huey Reeves was taken at 9:15 a.m., on March 27, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon J. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Reeves, my name is Leon J. Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission under the provisions of Executive Order 11130, dated November 29, 1963, Joint Resolution of Congress 137, under rules of procedure adopted by the Commission in conformance with the Executive order and joint resolution.

I have been authorized to take the sworn deposition from you, Mr. Reeves. I state to you that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Reeves, the nature of the inquiry today is to determine all the facts you know about the death of Oswald and any other pertinent facts you may have about the general inquiry.

Now, Mr. Reeves, I think you are appearing here today by virtue of a request made for you to appear in a letter sent to you by Mr. J. Lee Rankin, General Counsel of the President's Commission on the assassination of President Kennedy. Do you have that letter?

Mr. REEVES. Yes.

Mr. HUBERT. Would you please state for the record the date that the letter itself bears and the post date of the envelope, if you still have the envelope? First of all, what is the date of the letter?

Mr. REEVES. November 29—no—that's not it. I don't see the date on the letter.

Mr. HUBERT. Do you have the other one?

Mr. REEVES. No; I just brought one. It shows here March 23.

Mr. HUBERT. Apparently the letter itself is undated.

Mr. REEVES. Yes; it is undated, but that is when it was—March 23, I believe, 1964.

Mr. HUBERT. Now, you are referring to the Post Office stamp?

Mr. REEVES. Yes; that's the post stamp.

Mr. HUBERT. That's the stamp on the envelope itself and what does it show?

Mr. REEVES. It shows March 21.

Mr. HUBERT. From what place?

Mr. REEVES. Washington, D.C.

Mr. HUBERT. When did you receive the letter?

Mr. REEVES. Let's see—it's dated about the 22d or 23d.

Mr. HUBERT. What day of this week was it?

Mr. REEVES. Let's see—just when I got that—Tuesday, Wednesday, Thursday—I must have gotten it Monday, I believe.

Mr. HUBERT. You got it Monday?

Mr. REEVES. Yes; I believe.

Mr. HUBERT. Of this week; is that correct?

Mr. REEVES. I believe that's correct—Tuesday, Wednesday, Thursday—it was either Monday or Tuesday—it could be Tuesday.

Mr. HUBERT. In other words, you got it on March 23 or 24, is that right?

Mr. REEVES. Yes, sir; I believe I got it the 23d because I begun to try to get in contact with you the next day and I thought about calling you just as



quick as I could, just as quick as I got it, and I noticed on it that it weren't until the 24th or 27th, I believe.

Mr. HUBERT. So, you got it, you think, last Monday, the 23d?

Mr. REEVES. Oh, no—the 23d—I don't know when the 23d is, but I believe—this was the 23d—I believe that was it, yes.

Mr. HUBERT. Now, will you stand up and raise your right hand so that I can administer the oath?

Mr. REEVES. [Complies.]

Mr. HUBERT. Do you solemnly swear that you will testify the truth, the whole truth, and nothing but the truth, so help you God?

Mr. REEVES. Yes.

Mr. HUBERT. Please state your full name.

Mr. REEVES. Huey Moses Reeves.

Mr. HUBERT. Your age?

Mr. REEVES. Age—I was born April 7, 1912.

Mr. HUBERT. Where do you live?

Mr. REEVES. I live at 2903 Reynolds Avenue, Dallas, Tex.

Mr. HUBERT. What is your present occupation?

Mr. REEVES. Allright Auto Park. I am a night boss, night foreman for Allright Systems.

Mr. HUBERT. Where is that located?

Mr. REEVES. It's on Commerce.

Mr. HUBERT. What is the number?

Mr. REEVES. 1208, but I was at 1320, but they changed me to 1208.

Mr. HUBERT. Is that the same company?

Mr. REEVES. That's the same company; yes, sir.

Mr. HUBERT. On November 23d, which was a Saturday, where were you working?

Mr. REEVES. Let me see; November 23d, I was working at 1320 Commerce.

Mr. HUBERT. That's Nichols Garage?

Mr. REEVES. Yes—Nichols Garage.

Mr. HUBERT. What job did you have over there?

Mr. REEVES. I was same—nightman working all night at Nichols Bros., the same as at the other place.

Mr. HUBERT. What were your hours?

Mr. REEVES. I worked from 7 to 7.

Mr. HUBERT. And on November 23, which was Saturday, you worked from 7 o'clock Saturday night until 7 o'clock Sunday morning?

Mr. REEVES. Yes.

Mr. HUBERT. Do you know a nightclub called the Carousel Club?

Mr. REEVES. Yes; it's right next to where I work.

Mr. HUBERT. Do you know a man by the name of Jack Ruby?

Mr. REEVES. Yes, sir.

Mr. HUBERT. How did you come to know him?

Mr. REEVES. Well, he parked in my place all the time. He was a regular parker, you see, and Nichols Bros. is right there and his club was next to my parking place. He would just drive in and park and go up in his place.

Mr. HUBERT. How long have you known him?

Mr. REEVES. Ever since I have been working there—I don't know just how long—probably a year and a half—I wouldn't say—I don't know just how long—probably a year and a half—I wouldn't say for sure—but to the best of my knowledge.

Mr. HUBERT. Did you see him every day?

Mr. REEVES. Every night.

Mr. HUBERT. Every night?

Mr. REEVES. Yes, sir.

Mr. HUBERT. Do you know a lady by the name of Karen Bennett—they call her Little Lynn?

Mr. REEVES. Is she a young girl?

Mr. HUBERT. Well, I don't know her age—she is—I would suppose a young girl.

Mr. REEVES. There's so many girls—now, if she works up there for Jack Ruby, I know them when I see them, but their names, it seems to me like that little Bennett girl may have been the one that fainted one night.

Mr. HUBERT. Down in Ruby's place?

Mr. REEVES. No, sir; in our lobby room. She came out of Jack Ruby's place.

Mr. HUBERT. When was that?

Mr. REEVES. It was before Jack Ruby done that—before.

Mr. HUBERT. Yes; but how long before?

Mr. REEVES. Oh, it was probably a month or two—I wouldn't know for sure, because I wasn't keeping up with the dates, you know. I guess they told me her name—she's from Fort Worth, I believe. There are so many girls work up there for him. A lot of them park down in the place there but I just remember them—the face, but not the name.

Mr. HUBERT. Do you remember getting a phone call from Jack Ruby on the night of Saturday, November 23?

Mr. REEVES. Yes, sir; I guess it's that same girl—he called me to give \$5 to her, I believe.

Mr. HUBERT. About what time was it; do you remember?

Mr. REEVES. Probably 9 o'clock, something like that.

Mr. HUBERT. Now, tell us exactly what happened about that?

Mr. REEVES. Well, she called Jack over the phone and wanted some money and Jack said, "Well, I can't come down right now."

Mr. HUBERT. How do you know what he said?

Mr. REEVES. Well, that's what he told me to do.

Mr. HUBERT. Who told you to do that? He told you to do that?

Mr. REEVES. Yes.

Mr. HUBERT. Just tell us what she said and what you could hear her say over the phone?

Mr. REEVES. Well, I don't remember her saying anything.

Mr. HUBERT. Did she call from your place?

Mr. REEVES. Yes, well, you see my office phone is in this office and she was in the next phone—the pay phone.

Mr. HUBERT. I see.

Mr. REEVES. And then—let me see, now, I believe she called Jack to borrow some money and then Jack called me.

Mr. HUBERT. Now, how do you know that she called him to borrow some money. Did she tell you so or did you overhear this?

Mr. REEVES. He talked to me.

Mr. HUBERT. When she was making the call on the telephone, you didn't know who she was calling?

Mr. REEVES. No.

Mr. HUBERT. But you do know she made a phone call?

Mr. REEVES. Yes.

Mr. HUBERT. And after the phone call did she tell you anything?

Mr. REEVES. No, sir; she didn't say anything—Jack told me.

Mr. HUBERT. Wait a minute, she didn't say anything to you after she made the phone call?

Mr. REEVES. No, sir.

Mr. HUBERT. You didn't know who she was calling?

Mr. REEVES. No, sir.

Mr. HUBERT. Was she with anybody?

Mr. REEVES. I don't remember whether her husband was with her or not. Let's see, I didn't think about having to go through this—I don't just remember whether her husband—it seems to me like her husband was with her.

Mr. HUBERT. Was there a man with her?

Mr. REEVES. There was a man with her, and I think it was her husband.

Mr. HUBERT. Were you introduced to her?

Mr. REEVES. No; I wasn't introduced to her—I seen the boy claiming to be her husband—he's parked in there when she worked up there—he would get out of the car, you know, never did ask anybody their names. I just run the parking lot. I think her husband's name is Bruce. I've heard some of them call him Bruce.

Mr. HUBERT. Do you know what his last name is?

Mr. REEVES. No, sir; I don't.

Mr. HUBERT. What happened after that?

Mr. REEVES. Jack told me to let her have \$5.

Mr. HUBERT. You said Jack told you that?

Mr. REEVES. He said this—correct.

Mr. HUBERT. Did she come over into your office?

Mr. REEVES. She was already on the phone, I believe, or he may have called me—I don't remember whether I called or she had phoned, and anyway he said to let her have \$5, and now, I think, he said he would bring me down the money and make her sign a receipt, which I did.

Mr. HUBERT. You don't know whether or not you just got on the same phone she was talking on or whether Ruby called you separately; is that right?

Mr. REEVES. I don't remember—it seems to me like he called me separately on my phone. You see, this is a little distance—he would call me after he would get home and tell me to go see if he locked his door in the club—he thought he might have left it open.

Mr. HUBERT. What did he say when he called again?

Mr. REEVES. To take this \$5 and let the girl—I can't think of her name—but let the girl have the \$5 and have the girl sign a receipt and I did, and he came and gave me the \$5 and he picked up the receipt.

Mr. HUBERT. How do you know you were talking to Jack Ruby?

Mr. REEVES. Yes—well, I knew his voice.

Mr. HUBERT. You have talked to him on the phone?

Mr. REEVES. Yes; lots of time.

Mr. HUBERT. Well, you thought it was Jack Ruby, now, did he tell you—he said he was Jack Ruby?

Mr. REEVES. Yes.

Mr. HUBERT. You have no doubt you were speaking to Jack Ruby?

Mr. REEVES. No, sir; no doubt but what it was him at all—no.

Mr. HUBERT. That was the extent of your conversation?

Mr. REEVES. Yes, just the \$5—let her have \$5 because he wasn't ready to come down, and I let her have the \$5 and made her sign her name, just like he said, and he got in a little bit later and gave me \$5 and took the receipt.

Mr. HUBERT. What kind of a receipt was it?

Mr. REEVES. Just a little piece of paper.

Mr. HUBERT. Did you date it?

Mr. REEVES. Yes; I believe I did.

Mr. HUBERT. Do you remember whether you put a time stamp on it or not?

Mr. REEVES. I don't believe I did—I don't think so.

Mr. HUBERT. Do you have a timeclock there?

Mr. REEVES. Yes.

Mr. HUBERT. You just slip in a piece of paper and it automatically notes the time of day?

Mr. REEVES. Yes, just a piece of paper you put in there, and it stamps the time on it, but I don't remember whether I did it or not on this—it was a piece of paper.

Mr. HUBERT. She signed it?

Mr. REEVES. Yes, she signed her name.

Mr. HUBERT. And, this was the receipt—do you remember what it said?

Mr. REEVES. No, sir; I believe I just said “Received \$5—by Jack Ruby” or “Received \$5” and let her put her name—I don't remember whether I put Jack Ruby's name upon that or not.

Mr. HUBERT. And that's the record of it?

Mr. REEVES. Yes, that's the record.

Mr. HUBERT. What time was that?

Mr. REEVES. It was probably about 9 or 9:30—I don't remember exactly.

Mr. HUBERT. I think you said a moment ago that sometime after that Ruby came in?

Mr. REEVES. Yes, he came in—it was probably 30 minutes or an hour or something like that; I don't remember.

Mr. HUBERT. All right, tell us what happened then?

Mr. REEVES. Well, he just came in and says, “Here's your \$5,” and he never did anything about the receipt and I handed him the receipt, just like I said.

Mr. HUBERT. What did he do with the receipt?

Mr. REEVES. I imagine he put it in his pocket.

Mr. HUBERT. You didn't see him put it in his pocket?

Mr. REEVES. No, I didn't see him—I wasn't paying any attention.

Mr. HUBERT. What was his condition when he came in that night?

Mr. REEVES. Not paying no attention to Jack Ruby—I didn't pay him attention—no attention to him, walking around in my place or coming into my office then—I was busy and didn't pay no attention to him. You know, he's in there all the time parking his car, and when he come out of his club lots of times he would walk around and into the office and talk to them that way, and he would say a few words, and if he went out for sandwiches he would always ask us if we needed any sandwiches or drinks or anything like that. He was an awful nice fellow—awful nice.

Mr. HUBERT. Did you notice whether he seemed to be crying or upset about anything that night?

Mr. REEVES. No, sir; I didn't—I didn't pay any attention to him, but he seemed like—too, you see, I was in the office now, and the guy's lounge was back in here.

Mr. HUBERT. Whose lounge—what lounge?

Mr. REEVES. The lounge in the office, and then the Saturday morning, it seemed like, too, he would go back in the waiting room and prance—walk around more than usual, but he always did walk around—he had hard heels on, and you could hear him walking when he would come out of his club. I would be sitting in the office, maybe figuring up my back receipts, and I would hear him tapping those heels and I would say, "It's Jack Ruby, because he is coming out of his club."

Mr. HUBERT. You say this night he was walking a little bit more than usual?

Mr. REEVES. Yes; it seemed like he was a little bit more restless.

Mr. HUBERT. Did you talk to him?

Mr. REEVES. No, sir; I didn't pay any attention—I never thought much about it, you know.

Mr. HUBERT. Could you tell whether he was crying?

Mr. REEVES. No, sir; I really didn't pay any attention to him.

Mr. HUBERT. The only thing you noticed about his general conduct that night that was different from other nights was that he seemed to be walking around a little bit more?



Mr. REEVES. It seemed like he was a little bit more restless or something, and I believe that night, too, he had his club closed. I believe that sign—I believe he had a sign, if I remember, I really wasn't interested in his club. I had a pretty good job working for Allright—it's a pretty busy place, but it seemed to me like he had it closed. I believe he did.

Mr. HUBERT. Had you talked to Ruby earlier that day or seen him?

Mr. REEVES. Let's see, I came to work at 7; it seemed to me like that Ruby was there when I got there. It seemed like he drove up and then he left and then came back, it seemed like, and that's when he must have went home and this girl called him and then he was at home and he wasn't ready yet. It seemed like he told me he was waiting on a call or something from somebody or something and he told the girl he wasn't ready to come down, or he told me he wasn't ready to give her the \$5, you see, and he told me to give her the \$5 and to make out a receipt.

Mr. HUBERT. And have you to give it to her?

Mr. REEVES. I had given her the \$5 for him and I knew it was good because he always paid me back if he owed me any parking—he always paid it.

Mr. HUBERT. Had you ever paid any employees money like that?

Mr. REEVES. No, sir; that there was the only one.

Mr. HUBERT. While you were on the phone with him, did he tell you that he was at home?

Mr. REEVES. Let's see, I don't believe he said where he was. He just said he had an appointment or had a caller.

Mr. HUBERT. But you didn't call him?

Mr. REEVES. No, sir.

Mr. HUBERT. Either he called you or you got on the phone?

Mr. REEVES. Yes, sir.

Mr. HUBERT. When the girl had been talking to him?

Mr. REEVES. Or he called me, you know, I don't remember just exactly.

Mr. HUBERT. But you are certain he didn't tell you he was at home?

Mr. REEVES. No, sir; he didn't say where he was.

Mr. HUBERT. You did get the impression that he was?

Mr. REEVES. Yes; that's right, just my impression he was at home.

Mr. HUBERT. Do you know what that impression is based on?

Mr. REEVES. No, sir.

Mr. HUBERT. Is it on anything he said?

Mr. REEVES. No, sir; he didn't say anything about where he was.

Mr. HUBERT. But he did say he couldn't come because he was waiting for a call?

Mr. REEVES. He was either waiting for a call or wasn't ready or something to come down, I believe is what he said.

Mr. HUBERT. What time did he leave, you say, just about the time you came on?

Mr. REEVES. I believe he went away about the time I came to work, I believe he did.

Mr. HUBERT. You saw him when he left, then?

Mr. REEVES. Yes; you see his car is parked there all the time, right in front or his side by his club, that was in parking.

Mr. HUBERT. So, about 7 or shortly thereafter he left the garage?

Mr. REEVES. I sort of believe he did.

Mr. HUBERT. And the next time you saw him was when he came back in just about a half hour or so after you gave the \$5 to this girl?

Mr. REEVES. Yes; and he brought my \$5 back.

Mr. HUBERT. Do you remember when he left after that?

Mr. REEVES. It seems to me he fooled around in the lobby, in the back waiting room there a while and pranced around or walked around and drove off—where he went from there, I don't know.

Mr. HUBERT. Did you see him any more that day?

Mr. REEVES. Let's see, it seems to me he came back down there that night and fooled around the lobby.

Mr. HUBERT. Did he park his car?

Mr. REEVES. You see, he always parked his own car—we didn't park his.

Mr. HUBERT. He had a special spot there?

Mr. REEVES. Yes; he had a special spot there. We could move it up and down, because he would leave his key, and we could move it up and down as we had to move it in parking, but it seemed to me like he left again to go—he was going home, and I told Mack, the colored man that worked for me, I said, "That looked like Jack Ruby's car that went up the street." You see, I sit on Commerce Street and I can tell every car that passed if I just wanted to look out, and it seemed to me, I told Mack that that looked like Jack Ruby's car that went back up the street, up Commerce.

Mr. HUBERT. He didn't have to check in with you to get his car out?

Mr. REEVES. No, sir; he was a monthly parker, he paid by the month. When his car was parked there, nobody fooled with it, because he was a monthly parker. You see, the drive came in this way [indicating] for all the ticket cars, and over here on the side, was his parking place. Of course, we might park two or three in front of his, but sometimes we would move his if a boy had to sweep or something, we would have to move his car up and down and back and forth.

Mr. HUBERT. What time was it, about, that you saw him leave again and made a comment to that effect to the colored boy?

Mr. REEVES. It seems to me like when he left he said, "I'm going home," and I told Mack, it looked to me Jack Ruby was going back up the street and he said he was going home when he left, and, told me earlier, "Boy, I'm going home."

Mr. HUBERT. You say usually he went out to his room in Oak Cliff?

Mr. REEVES. And I told the boys, "That looked like Jack Ruby's car that went back up the street." That might not have been him—there's lots of cars

that looks like that, but that's what I told Mack Jones, the colored man there.

Mr. HUBERT. What time was that?

Mr. REEVES. It was probably 9:30 or 10 or maybe 10 or over, I wouldn't say for sure, but I would just sort of estimate the time.

Mr. HUBERT. That was after he had given you the \$5 back?

Mr. REEVES. Yes.

Mr. HUBERT. So, he didn't stay in the club very long?

Mr. REEVES. No, sir; I don't remember him ever going up in the club that night. I don't think he even went up in the club.

Mr. HUBERT. In other words, he just came and gave you the \$5, picked up the receipt and left pretty quick?

Mr. REEVES. Yes; it seemed to me like he came back again and fooled around in the lobby lots—he would come back and fool around at the garage and my colored man was a good friend of his and he always talked a lot to Jack Ruby—he talked to him and I was a good friend to him, too, on account of that.

Mr. HUBERT. Did you see him any more than that?

Mr. REEVES. No, sir; that's the last time I have seen him.

Mr. HUBERT. The last time you have seen him?

Mr. REEVES. Yes; I believe so.

Mr. HUBERT. You didn't see him Sunday morning before you went off duty, did you?

Mr. REEVES. No, sir; I sure didn't.

Mr. HUBERT. Did you see him earlier on Saturday, the day after the President was shot?

Mr. REEVES. Saturday after the President was shot?

Mr. HUBERT. Of course, you were off on Saturday morning until 7 that night?

Mr. REEVES. Yes; I am off in the daytime—I'm just there at night—I couldn't tell you whether I saw him.

Mr. HUBERT. Did you see him on Friday night during your shift, which ran from 7, November 22, Friday night, to 7 o'clock Saturday morning, November 22–23, 1963?

Mr. REEVES. I can't recall that in there so much. I wouldn't want to say for sure whether I seen him or not.

Mr. HUBERT. Do you remember his making any comment to you on—about the shooting of the President?

Mr. REEVES. No, sir; no, sir.

Mr. HUBERT. Do you know a man by the name of Andy Armstrong?

Mr. REEVES. Yes.

Mr. HUBERT. Who is he?

Mr. REEVES. He is a colored man that worked for Jack Ruby.

Mr. HUBERT. How long had he been there, do you know?

Mr. REEVES. I think he was there—I think when he came there—it was probably a year and a half or something like that.

Mr. HUBERT. Have you talked to him since Ruby was arrested on November 24?

Mr. REEVES. I probably have. He worked, you know, running the club, but I never did have anything to do with him. You see, I was always so busy.

Mr. HUBERT. How did you know he was running the club?

Mr. REEVES. Well, he worked up in the club, I would see him up in the club and the girls all parked right down there with me, and he worked up in the club. They claimed he was sort of the guy that run it.

Mr. HUBERT. You mean after Ruby was arrested or before?

Mr. REEVES. After.

Mr. HUBERT. You never did talk to the man about the shooting on the 22d?

Mr. REEVES. No, sir; none.

Mr. HUBERT. Andy Armstrong?

Mr. REEVES. No, sir.

Mr. HUBERT. Do you know a man by the name of Ralph Paul?

Mr. REEVES. Yes.

Mr. HUBERT. How long have you known him?

Mr. REEVES. I have known him when I seen him; he parked in there, too, and would go to Jack Ruby's place.

Mr. HUBERT. How often would he go, do you know?

Mr. REEVES. Sometimes he would come in there, say two or three times a week.

Mr. HUBERT. Did he park by the month?

Mr. REEVES. No, sir; a ticket on the car.

Mr. HUBERT. And how long would he stay?

Mr. REEVES. Sometimes he would come and stay 3 or 4 hours.

Mr. HUBERT. That was two or three times a week?

Mr. REEVES. Something like that.

Mr. HUBERT. Have you ever talked to him since November 24?

Mr. REEVES. No, sir; the only thing is, when he pays the ticket, I get his car for him.

Mr. HUBERT. But you have never talked to him about Ruby since November 24?

Mr. REEVES. No, sir; I don't believe he ever mentioned to me about it.

Mr. HUBERT. Do you know a man by the name of George Senator?

Mr. REEVES. Yes; I have seen that man there, too.

Mr. HUBERT. Did he park his car in there?

Mr. REEVES. Yes; he has parked in there, too; he worked for Jack some.

Mr. HUBERT. Was he on a monthly basis?

Mr. REEVES. No, sir; a ticket car.

Mr. HUBERT. Would you describe him for us?

Mr. REEVES. George?

Mr. HUBERT. Yes.

Mr. REEVES. Well, he's sort of a heavy set—a pretty big heavy set man, I guess, about 5 feet 8 inches tall, or something like that, and weighs probably 175 to 180 pounds, a pretty good size man.

Mr. HUBERT. Bald headed, or slightly bald?

Mr. REEVES. I believe he's got pretty good hair on his head.

Mr. HUBERT. Did you ever notice any limp on him?

Mr. REEVES. Limp?

Mr. HUBERT. Limp—yes.

Mr. REEVES. No, sir.

Mr. HUBERT. Did Ralph Paul have a limp?

Mr. REEVES. I don't believe he did. I don't believe he limped—no, sir; not as I know of. Well, Paul broke his foot after all that happened, but you know, he went around in a cast on his foot with crutches for a while.

Mr. HUBERT. Well, when was that?

Mr. REEVES. That's since, you know, all that happened.

Mr. HUBERT. That was after the 24th?

Mr. REEVES. Yes; he broke his foot; I don't know how it happened.

Mr. HUBERT. Have you ever talked to George Senator about Ruby since the 24th of November?

Mr. REEVES. No, sir; I don't believe he's been in my place since then. I don't believe he has.

Mr. HUBERT. Do you know a man by the name of Larry Crafard?

Mr. REEVES. No, sir; I don't believe I know him—no, sir.

Mr. HUBERT. I will show you some pictures of a man, there are several of them there in different poses, and I would like for you to look at them.

Mr. REEVES. [Examining pictures referred to.] Yes, I have seen this guy there at Jack's place. He worked for Jack some.

Mr. HUBERT. Let the record show that the witness is examining five photographs of different poses.

Mr. REEVES. Let's see, I believe this is the same guy that worked—let's see some of these—I don't know for sure, but I believe it is the same one, too, I believe. All of these look like the same man to me, do they to you?

Mr. HUBERT. They are all five different poses.

Mr. REEVES. They look like the same man.

Mr. HUBERT. Yes. These are all five different poses of Curtis Laverne Crafard, taken on November 28, 1963, by the FBI and forwarded recently to the Commission.

Mr. REEVES. He stayed up there with Jack Ruby some.

Mr. HUBERT. Now, you identified this man as a man you know?

Mr. REEVES. Well, I don't exactly know him—he worked for Jack Ruby and he would come down to the window and chat with me—right.

Mr. HUBERT. Did you know his name?

Mr. REEVES. No, sir.

Mr. HUBERT. Did you know his full name?

Mr. REEVES. No, sir; I don't ever remember his name.

Mr. HUBERT. How long did he work for Jack?

Mr. REEVES. Well, I would see him up there and when Jack would leave, he would leave him in his place to guard it, guard his place.

Mr. HUBERT. How do you know that?

Mr. REEVES. Well, I have seen him leave with Jack Ruby and Ralph Paul and go off with them in the car, you know, at night, after they closed the place up. I think they called it going to eat or something. I have seen him leave with them two or three times in the car.



Mr. HUBERT. Did you say he slept there?

Mr. REEVES. Yes; he stayed in the place.

Mr. HUBERT. How do you know that?

Mr. REEVES. Well, I would see him go close the door and go up in there and go over to the Eatwell Cafe and hang around maybe an hour or so and go up there and lock the door.

Mr. HUBERT. Did you figure he was staying there?

Mr. REEVES. Right.

Mr. HUBERT. Did he ever tell you that?

Mr. REEVES. It looked like he was working for Jack Ruby.

Mr. HUBERT. Did he ever tell you that?

Mr. REEVES. Yes, that he was living upstairs—yes, staying there.

Mr. HUBERT. How long did he stay up in there?

Mr. REEVES. It seemed to me he stayed there a couple of weeks or something like that.

Mr. HUBERT. When was the last time you saw him?

Mr. REEVES. It seems to me he disappeared—well, he disappeared. I never did know any more of him—I don't know whether Jack fired him or he just walked off. You know how it is around one of them garages—I just seen him there and see people.

Mr. HUBERT. Did you see him during your night shift from 7 o'clock on Friday, November 22, that's the date the President was shot, until the end of your shift at 7 o'clock the next morning?

Mr. REEVES. November 23d? Yes.

Mr. HUBERT. I'm talking about the man whose picture you just looked at.

Mr. REEVES. I don't believe I did—I don't believe I seen him around there during that time.

Mr. HUBERT. Did you see him and Ruby in the early hours of the 23d, Saturday, say about 3 or 5 o'clock in the morning?

Mr. REEVES. No, sir; I don't believe I did—no, sir. I don't think I seen him.

Mr. HUBERT. Did you see Ruby that morning, I'm talking about the shift that runs from 7 o'clock on Friday to 7 o'clock Saturday morning?

Mr. REEVES. Let's see—what date was that?

Mr. HUBERT. It would have been the 22d and the 23d, that was the night of and the morning after the President was shot.

Mr. REEVES. No, sir. Let's see, I may have seen Jack—I don't remember seeing this boy. I may have seen Jack.

Mr. HUBERT. Do you remember Jack parking his car there early Saturday morning the 23d?

Mr. REEVES. Saturday morning the 23d?

Mr. HUBERT. Before you got off, maybe 2 or 3 hours before you got off?

Mr. REEVES. No, sir; I don't think so. He never did come in that early—before I got off—I don't think so. Most of the time he came in would be, I think, about 8 o'clock at night and maybe when he closed up was 1 or 1:30 and he would maybe go off and eat and he might run back to see if he locked his door. Sometimes he would call me and have me to hold the phone while I ran in there to see if his door was locked, and I would come back and tell him his door was locked.

Mr. HUBERT. You say it just looked like Larry had taken off?

Mr. REEVES. Well, I seen him going in and out of the place there all of the time—I just missed him. I was not trying to keep up with him—I just missed him. I was not trying to keep up with him, but I just missed him.

Mr. HUBERT. Do you remember when you missed him?

Mr. REEVES. No, sir.

Mr. HUBERT. Did anybody tell you he had gone?

Mr. REEVES. No, sir; didn't nobody tell me.

Mr. HUBERT. Do you remember the last time you saw him?

Mr. REEVES. No, sir; I couldn't say for sure the last time I seen him. I think he stayed there a week or 2—I don't remember—it might be 3 weeks—I don't remember. Sometimes he would come in, he was a pretty friendly boy, and he would come there and wave at me and I am pretty friendly too and I would see him when he was working up there for Jack Ruby and maybe I would wave to him when he came out and sometimes he would come over there and talk to me at the ticket window while I was cashing tickets and chat with him a few times, but I don't remember him ever telling me his name or anything, but he was a peculiar acting kind of a boy.

Mr. HUBERT. In what way?

Mr. REEVES. The way he would sort of bat his eyes like that when he would talk and get around real fast when he would take off up the street. He would walk real fast, you know, and all at once he would just take off and go through the Adolphus Hotel lobby, is what I mean. He claimed he had a girl friend over there—I don't know who it was.

Mr. HUBERT. Where?

Mr. REEVES. Over there at the Eatwell Cafe—some girl was meeting him over there.

Mr. HUBERT. He told you that?

Mr. REEVES. Yes, he said, "I've got to go, I've got to meet a girl over at the Eatwell."

Mr. HUBERT. Did you ever see him with a girl?

Mr. REEVES. No, sir; I never seen him with a girl.

Mr. HUBERT. Where is the Eatwell place?

Mr. REEVES. It's on Main Street, right in front of Nichols Brothers. You go through the lobby of the hotel—I call it a lobby, I always say lobby, but it is just a car drive, and you run into Main Street and it is up two or three doors, and it's the Eatwell Cafe. It stays open all night.

Mr. HUBERT. It's on Main Street?

Mr. REEVES. Yes.

Mr. HUBERT. Did he tell you that the girl worked there, or that he was just meeting her there?

Mr. REEVES. He said he was going to meet her. I don't know whether she worked there or was just meeting him there, I just don't know. He said, "I've got to go and meet her." I would talk to him a few times—he was friendly—he would say, "I've got to go and meet a girl." Whether he has one—he seemed to be sort of a windy guy in talking.

Mr. HUBERT. Did that happen once or more than once?

Mr. REEVES. I believe once or twice—I would say probably a couple of times.

Mr. HUBERT. Did anybody tell you he just took off and left?

Mr. REEVES. No, sir; nobody didn't say anything. I just seen him working, because Jack had a lot of boys like that working for him. He had one boy that worked before this time for him, a Jewish-looking boy, a stocky-looking boy. The fact of the business is, Jack and him had a little trouble, and when they were having trouble up in the place, they came down to where I could see him out in front.

Mr. HUBERT. Who was having trouble?

Mr. REEVES. This boy—I don't know his name.

Mr. HUBERT. You mean the Jewish-looking boy?

Mr. REEVES. He was a Jewish looking—little short type guy, and Jack—they was having trouble and Jack went up in the club and he came down and I heard the boy say, "I'm going to go get a gun and kill Jack Ruby," and when Jack come back down, I told Jack, I said, "Go back there and hide somewhere, he's got a gun and he's going to kill you," and Jack raised the turtle shell of his car there in the parking lot and got his gun out and he went up to that whisky store and hit him across the head with it.

Mr. HUBERT. What whisky store?

Mr. REEVES. Right there up at the corner.

Mr. HUBERT. You saw him do it yourself?

Mr. REEVES. No; I stayed out at the garage, but I heard the boy say, “I’m going to get a gun and kill Jack Ruby,” and he said it real down low, and when Jack came down, I didn’t want Jack to get killed, and I said, “Go back there and hide. That boy said he was going to kill you.” Instead of hiding like I told Jack, Jack reached back up in his car and got his six-shooter out and went up to this whisky store and tapped him with his gun like that [indicating].

Mr. HUBERT. When was that?

Mr. REEVES. It was when he went up to the store and I seen the big guy come out across there.

Mr. HUBERT. How long ago was that?

Mr. REEVES. It has been probably 5 or 6 months—I wouldn’t say for sure.

Mr. HUBERT. Did the police come?

Mr. REEVES. No, sir. Oh, yes.

Mr. HUBERT. Did anybody arrest Jack Ruby?

Mr. REEVES. He didn’t bother Jack.

Mr. HUBERT. How old a man is this boy—this Jewish boy Jack was supposed to have hit?

Mr. REEVES. He looked like 30 years old or something like that.

Mr. HUBERT. Where is the liquor store?

Mr. REEVES. It’s right up there on the corner. I believe I may have the address here in my pocket—it’s the first one on the corner—Segal’s—I believe.

Mr. HUBERT. What corner is it on?

Mr. REEVES. It’s on the corner of Akard and Commerce—that’s it.

Mr. HUBERT. What time of night did this happen?

Mr. REEVES. It was probably—I don’t remember just exactly, probably about 10:30, 9:30 or 10:30, something like that.

Mr. HUBERT. Did Jack Ruby come back right away after that?

Mr. REEVES. Yes, he came back to his place, I think.

Mr. HUBERT. Right away?

Mr. REEVES. It wasn't too long.

Mr. HUBERT. It wasn't too long?

Mr. REEVES. No, it wasn't too long.

Mr. HUBERT. Was he arrested?

Mr. REEVES. I don't think so.

Mr. HUBERT. Was the other man arrested?

Mr. REEVES. I don't think they arrested him neither. I think they carried him to the hospital in an ambulance.

Mr. HUBERT. Did you see the ambulance?

Mr. REEVES. Yes, I heard the ambulance come after him and after he did that, he come back and worked for Jack. Jack buddied up with him again, Jack was a good-hearted kind of a fellow, and he came back and worked for him some more, and went away. I never did learn his name, but some of them said he lived in Houston.

Mr. HUBERT. You think that was about 6 months ago from now?

Mr. REEVES. Yes, I wouldn't say for sure—it's either—might have been 3 or 4 months.

Mr. HUBERT. Well, now, we are now in March, you know.

Mr. REEVES. Yes.

Mr. HUBERT. So, if you say 6 months——

Mr. REEVES. It seems to me like it might have been over 4 months—4 or 5 months—I don't know for sure.

Mr. HUBERT. You think it was in October or November of 1963?

Mr. REEVES. Let's see, it must have been in about September.

Mr. HUBERT. September 1963?

Mr. REEVES. I wouldn't say for sure now, but it was, all I know is I just remember being—it scared me, you know. I was scared, you know, I didn't want Jack—some kind of unknown guy to come along and kill him, a guy just working for him, and I heard him say it, and I told Jack. What I wanted Jack to do was go back there and hide until the boy got in a good humor, you see.

Jack Ruby—seemed—he was always a nice fellow to me and I wasn't thinking about him being rough enough to do something like that. I really wasn't, because I never thought no more about Jack Ruby coming around in the garage, coming in my office around there talking to me—he came around a lot of times late at night. He maybe would stop by and say a few words and he treated me just like a baby. He would bring me sandwiches and things like that and I figured he was just a nice fellow, you know, is all I could figure out.

Now, he had a good many—I don't remember—it seems to me like he had several more. If there was anybody that came into town that was broke and Jack knew it, he would take them in and get them some clothes and feed them and give them some money.

Mr. HUBERT. How do you know all that?

Mr. REEVES. Well, I would see him doing it. Whether the guy was all right, I don't know. They was strangers to me. I was working for the Allright Co., worked 12 hours a night and have been for 2 or 3 years and I was just seeing things—seeing people doing it and I thought he was running a legitimate place. I knew I was running a perfect place, the parking system, and we've got lots of customers, and you know, people parking in our place, going up to his club, parking in there.

Mr. HUBERT. All right, Mr. Reeves, is there anything else you know about this—any other facts that might throw some light on the assassination of President Kennedy or the shooting of Lee Oswald?

Mr. REEVES. Nothing that I know of, because I didn't know Oswald. If I ever seen him, I don't remember. The only thing, after I seen his picture in the newspapers and come out on the television with the pictures and all, it seemed like his face got familiar, but I never seen him before that I know of.

Mr. HUBERT. You say you have seen pictures of Oswald in the paper and all that?

Mr. REEVES. That's right, and on television.

Mr. HUBERT. So that you formed the impression that maybe you had seen him before?

Mr. REEVES. No, sir—well, it does seem like, you know, he got familiar as I seen him on television and in the paper, but as far as seeing him before, I mean before that happened, I don't think I ever did see him.

Mr. HUBERT. Do you think he has any resemblance, does he look like this man Larry Crafard, this man I just showed you a picture of?

Mr. REEVES. Well, I don't think he favors him any—seeing him in the pictures, but I wouldn't think so—no, sir.

Mr. HUBERT. Have you ever been interviewed by any members of the Commission staff?

Mr. REEVES. By an FBI man.

Mr. HUBERT. But, you haven't been interviewed by me?

Mr. REEVES. No, sir.

Mr. HUBERT. Before this deposition this morning?

Mr. REEVES. No, sir.

Mr. HUBERT. Thank you very, very much, Mr. Reeves.

Mr. REEVES. I'm sure glad to tell facts if I knew anything, I would just be glad to help, because I would be glad to help, because President Kennedy was one of my best friends. I liked him better than any man on earth—I sure did.

Mr. HUBERT. Thank you very much, Mr. Reeves, for coming.

Mr. REEVES. Sure glad to.

Mr. HUBERT. Thank you, that's all.

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## **TESTIMONY OF WARREN E. RICHEY**

The testimony of Warren E. Richey was taken at 1:30 p.m., on April 15, 1964, at the Post Office Building, Fort Worth, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Richey, I have to read some formalities here. My name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of President Johnson's Executive Order 11130, dated November 29, 1963, the joint resolution of Congress No. 137, and the rules of procedure adopted by the Commission, in conformance with that Executive order and that joint resolution, I have been authorized to take a sworn deposition from you, Mr. Richey.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relative to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular, as to you, Mr. Richey, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry and particularly whether a man known as Jack Ruby was seen by you near the Dallas Police Department on November 24, 1963.

Now, Mr. Richey, I think you have appeared here by virtue of a letter addressed to you by Mr. J. Lee Rankin, General Counsel, for the President's Commission. Did you receive that letter more than 3 days ago?

Mr. RICHEY. I did.

Mr. HUBERT. All right, sir, would you please be sworn. Do you solemnly swear that the testimony you are about to give in this matter will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. RICHEY. I do.

Mr. HUBERT. Will you please state your name.

Mr. RICHEY. Warren E. Richey.

Mr. HUBERT. And your age?

Mr. RICHEY. 40.

Mr. HUBERT. Where do you live, sir?

Mr. RICHEY. 1600 Grantland Circle.

Mr. HUBERT. Fort Worth?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. What is your occupation?

Mr. RICHEY. TV engineer.

Mr. HUBERT. What station?

Mr. RICHEY. WBAP-TV.

Mr. HUBERT. How long have you been so occupied?

Mr. RICHEY. Thirteen years.

Mr. HUBERT. What is the function in general of a TV engineer?

Mr. RICHEY. Well, it is all phases of operation of TV equipment.

Mr. HUBERT. Were you on duty with the remote truck of WBAP-TV in Dallas on November 23 and 24?

Mr. RICHEY. Yes.

Mr. HUBERT. Where was the truck parked?

Mr. RICHEY. It was parked on Commerce Street facing east.

Mr. HUBERT. That is to say, facing what street? Pearl or North Express?

Mr. RICHEY. I don't know really. It was on the left-hand side of the street facing east, right in front of the city hall, or whatever it is.

Mr. HUBERT. Do you know where Harwood Street is?

Mr. RICHEY. Harwood? No, sir; I am not very familiar with the streets.

Mr. HUBERT. How far away from the corner was the back of your truck?

Mr. RICHEY. Oh, I would say 40 or 50 feet, approximately. I don't know.

Mr. HUBERT. How much room was there between the front of the truck and the street curbing forming part of the entrance or exit from the police department into Commerce Street?

Mr. RICHEY. Oh, 15 or 20 feet, I imagine. It wasn't too far.

Mr. HUBERT. Were you on duty on the 23d of November? That is to say, Saturday, November 23, 1963?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Was the position of the truck that you have just described different on the 24th than that which you have described?

Mr. RICHEY. No, sir; it was moved in and left.

Mr. HUBERT. Stayed there both days?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. What hours were you on duty on the 23d? That is to say, Saturday?

Mr. RICHEY. I don't remember exactly what time we got over there. I think we had a 6 o'clock call from here, from Fort Worth.

Mr. HUBERT. Six in the morning?

Mr. RICHEY. Yes. And I think we would have pictures by 8 o'clock, so I would say we were there somewhere around 6:30, I imagine.

Mr. HUBERT. How long did you stay there?

Mr. RICHEY. It was till late that night. I am not sure of the time. I believe it was around 8 or 9 o'clock, that night, but I am not sure.

Mr. HUBERT. When you went home, you left the equipment where it was?

Mr. RICHEY. That was on Saturday; yes, sir.

Mr. HUBERT. What time did you go back to work on Sunday, the 24th?

Mr. RICHEY. Sunday, I think I'm mixed up here. Sunday was the morning we had a 6 o'clock call. Saturday morning is the day we moved in early. We had a 1 o'clock call.

Mr. HUBERT. One o'clock?

Mr. RICHEY. Yes.

Mr. HUBERT. So you worked from 1 in the morning until about 8 Saturday night?

Mr. RICHEY. It was rather not that Saturday night. We got back about 6:30 on Sunday morning. Saturday night is the night we stayed late.

Mr. HUBERT. Now prior to the 23d, or the 24th, did you know a man by the name of Jack Ruby?

Mr. RICHEY. No; I never heard of him.

Mr. HUBERT. Never seen him before?

Mr. RICHEY. Never heard of him.

Mr. HUBERT. Did you see Jack Ruby or a man that you have now come to believe was Jack Ruby or know was Jack Ruby on the 23d or the 24th?

Mr. RICHEY. Not on the 23d, but on the 24th, that would be Sunday, yes, sir.

Mr. HUBERT. Now would you tell us about that.

Mr. RICHEY. Well, the man that I think was him and I am positive, pretty sure in my own mind it was, he was just out on the street alongside the truck in front of the building, the city court building.

Mr. HUBERT. Was he in the street in the sense that the place where the automobiles were, or on the sidewalk alongside the building? On the left side of the truck then?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Between the left side of the truck and the building?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Where were you?

Mr. RICHEY. I was on top of the truck with a camera.

Mr. HUBERT. Tell us what happened.

Mr. RICHEY. Well, the time that I saw him was, I would say, in the neighborhood of 8 o'clock in the morning.

Mr. HUBERT. Is there any way you fix the time?

Mr. RICHEY. Not definitely, because we were busy lining up cameras, and I didn't really pay much attention to the time, but I would say it was somewhere in that neighborhood.

Mr. HUBERT. What happened between the two of you?

Mr. RICHEY. Nothing, as far as I was concerned. I just saw him out there.

Mr. HUBERT. Did you hear him say anything?

Mr. RICHEY. No, sir; I never did hear him say anything, because it was cold and I had a coat pulled up over my ears.

Mr. HUBERT. How was he dressed?

Mr. RICHEY. He had on a sort of grayish topcoat and sort of a gray-looking hat, and he didn't look like, you know, he didn't look very neatly dressed.

Mr. HUBERT. Did he have a tie on?

Mr. RICHEY. I don't recall.

Mr. HUBERT. Did he have an overcoat?

Mr. RICHEY. Topcoat; overcoat.

Mr. HUBERT. You think that was about 8 o'clock, in the morning?

Mr. RICHEY. The first time I saw him was somewhere in the neighborhood of 8 o'clock. I am not positive.

Mr. HUBERT. Do you remember how long he stood around there?

Mr. RICHEY. Well, I saw him again sometime, I would say, around 10 or a little before 10, and he was down past the ramp this time that goes into the building—basement.

Mr. HUBERT. Do you mean he was down past in the sense that he had progressed ahead of the front of your truck?

Mr. RICHEY. Yes, sir; he was down.

Mr. HUBERT. The Commerce Street entrance was between your truck and him?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Is there anything that drew your attention to him then?

Mr. RICHEY. No; not really.

Mr. HUBERT. Was he dressed in the same way?

Mr. RICHEY. At this time he was still dressed the same way. That was the last time I saw him.

Mr. HUBERT. Those two occasions were roughly separated by about 2 hours, you think?

Mr. RICHEY. Somewhere around there; yes.

Mr. HUBERT. You didn't know it was Jack Ruby?

Mr. RICHEY. No; I had no idea. I just thought he was a newsman, because there were several out there walking around, and they moved the people across the street, and he was one of the few that was left.

This person was one of the few that was left out there, and that is one reason I thought he was a newsman, because they weren't bothering the newsmen.

Mr. HUBERT. Did you see him talk to any of the police that were stationed along there?

Mr. RICHEY. No, sir; I didn't see him talk to anyone.

Mr. HUBERT. You said that the second time was about 10 o'clock?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Is there any way in which you fix that time?

Mr. RICHEY. No, sir; not really. Well, it was about the time that we thought they were to bring Oswald out. I think they told us it would be

about 10 o'clock. It was in that time period that we were sort of looking for them to bring him out.

Mr. HUBERT. Judging from the time that Oswald was actually shot or measuring from that time backward, could you tell us how long it was from the time Oswald was shot, backward until you saw Ruby; or to put it another way, how much time elapsed from the last time you saw Ruby until Oswald was shot?

Mr. RICHEY. It was an hour or better.

Mr. HUBERT. Now can you tell us when was the very first time you associated that man that you have just described as having seen at 8 o'clock and again at 10, or a little better, with Jack Ruby?

Mr. RICHEY. It was that night when I saw the rerun of the tape that was made. And when I saw him, it looked like the same man that was dressed differently, to me.

Mr. HUBERT. Now did the reruns show his face?

Mr. RICHEY. Not too good.

Mr. HUBERT. Did you ever see any mug shots?

Mr. RICHEY. I saw still shots.

Mr. HUBERT. When did you see those?

Mr. RICHEY. The next day, I believe; whenever the papers came out. It was the pictures in the Dallas Herald, I believe, the big full-page picture.

Mr. HUBERT. Do you know Ira N. Walker?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Was he on duty on the same truck with you that day?

Mr. RICHEY. Yes.

Mr. HUBERT. And I think Mr.——

Mr. RICHEY. Johnny Smith.

Mr. HUBERT. Johnny Smith was too?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Do you recall being in the company of them and seeing mug shots relatively shortly after the shooting of Oswald on TV?

Mr. RICHEY. No, sir; I didn't see those. They were in the truck where they could see the pictures, but I was out on top of the truck.

Mr. HUBERT. Were you aware that they had seen the Ruby mug shots and had associated them with the man that they had seen?

Mr. RICHEY. I don't know. I don't believe.

Mr. HUBERT. In other words, when you saw the rerun, you independently reached the opinion that it was Jack Ruby?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. It was not suggested to you by the fact that Walker and Smith had seen mug shots right after the shooting?

Mr. RICHEY. No, sir.

Mr. HUBERT. You didn't know that they had seen the shots?

Mr. RICHEY. No, sir.

Mr. HUBERT. Now have you seen Jack Ruby since?

Mr. RICHEY. Not in person; no, sir. I have seen pictures, newsreels, but I haven't seen him actually.

Mr. HUBERT. You have seen pictures of him in the newspapers?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Newsreel films?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. What is your opinion now as to whether or not the man that you have described that you saw twice on November 24, at about 8 and then again about 10 on Commerce Street is or is not the man that you now know from having seen pictures and so forth, as Jack Ruby?

Mr. RICHEY. I still believe that it is the same man.

Mr. HUBERT. You were not asked by the State to testify in the case?



Mr. RICHEY. No, sir; they came and talked to Johnny and Walker and myself but they never did call me.

Mr. HUBERT. What is your opinion as to your identification of the man on the street and Jack Ruby as being the same man relative to your identification of him on the reruns as opposed to your identification of him from the still photos and other pictures that you have seen of him thereafter?

What I am trying to get at is, which one of the subsequent views you had of Jack Ruby is stronger in your mind with reference to identifying the man that you saw in the street?

Mr. RICHEY. The still pictures, except for the difference in clothes. The clothes in the still pictures look different from the ones that this person had on that I saw, but I would say the still pictures looked more like him.

Mr. HUBERT. Nevertheless, it is a fact, that when you saw the reruns on the night of the 24th, at that time you had an impression that it was the same man?

Mr. RICHEY. Yes.

Mr. HUBERT. Was that a spontaneous thing?

Mr. RICHEY. Yes; when I saw it.

Mr. HUBERT. Did you say anything to anybody?

Mr. RICHEY. My wife, I believe, because we were watching the news.

Mr. HUBERT. You didn't report it?

Mr. RICHEY. No.

Mr. HUBERT. Mr. Richey, I have in hand here a document which purports to be a report of an interview of you by FBI Agents Haley and Madland on December 4, 1963, which I have marked for identification as follows: "Fort Worth, Texas, April 15, 1964, Exhibit 5316, deposition of Warren E. Richey," and I have signed my name on it.

I would like you to read the statement first, sir.

Mr. RICHEY. [Reads statement.]

Mr. HUBERT. Now, sir, you have read this document that I have identified as Exhibit 5316, and I will ask you if it substantially represents the truth as to the interview between you and the Federal agents, or if you have any deletions, corrections, or any amendments to make about it?

Mr. RICHEY. I would say it was all approximately right.

Mr. HUBERT. I invite your attention to the fact that this Exhibit 5316, states that the time——

Mr. RICHEY. The time is different on there, but I tell you there has been a lot happened since then that I couldn't be too exact on the time, really, because this was just, I don't know, wasn't too long after this all happened.

Mr. HUBERT. For example, this statement mentions that you saw him about 9 o'clock and apparently doesn't cover what you testified to. That is to say, that you really saw him twice?

Mr. RICHEY. Well, I actually didn't see him twice. This was a period of time really from approximately 8 or somewhere in there up until about 10 o'clock. He wasn't there early. That wasn't what I meant.

Mr. HUBERT. Let's get that straight. You saw him only once; is that correct? Or twice?

Mr. RICHEY. Well, I saw him—I don't know how to put it. It was a period of time I saw him, between this time, probably several times walked down the sidewalk.

Mr. HUBERT. He walked actually between the truck and the sidewalk side of the building?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Then at one time you have a mental impression of having seen him beyond the Commerce Street ramp?

Mr. RICHEY. Yes, sir; from the corner. I don't even remember what street. It runs in front of the court building back of the truck. But he was within that area from that street up beyond the ramp. But this last time I saw him was at the ramp. But he was in between there several times that morning.

Mr. HUBERT. Between 8?

Mr. RICHEY. And 10 o'clock.

Mr. HUBERT. But you think that the very last time that you saw him——

Mr. RICHEY. Was around 10 o'clock.

Mr. HUBERT. What fixes 10 in your mind?

Mr. RICHEY. Like I say, it was about the time they were expecting them to bring Oswald down in the building. That was when the chief of police told us they would be bringing him out, and we were looking for him, because I was up there on a camera, with a camera on the ramp.

Mr. HUBERT. Had you gotten any kind of alert standby?

Mr. RICHEY. No, sir. There was no alert of any kind. It was just the time that they had given us the night before, actually.

Mr. HUBERT. Anyhow, you say that your recollection is that the last time you saw him, which was when you saw him beyond the Commerce Street ramp, was approximately an hour or a little better from the actual shooting?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. That is the last time you remember seeing him?

Mr. RICHEY. That was the end of it.

Mr. HUBERT. Did he seem at that time to be walking away from your truck?

Mr. RICHEY. No, sir; he was standing.

Mr. HUBERT. He was just standing?

Mr. RICHEY. He was standing.

Mr. HUBERT. Did you see any police near him?

Mr. RICHEY. No, sir; not near him. They had one policeman out on the ramp.

Mr. HUBERT. But when you saw him, it was after all the crowd had been moved over?

Mr. RICHEY. They were across the street.

Mr. HUBERT. From the side of the street where your truck was, to the opposite side of Commerce Street?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Were there many other people like this man walking around in that area?

Mr. RICHEY. There was just occasionally newsmen, because they were congregating in the basement and they would come by.

Mr. HUBERT. But this man whom you have identified as Jack Ruby; did he have any kind of paper or press badge which you observed in the nature of a press badge?

Mr. RICHEY. No, sir; not that I saw, because there was a lot of newsmen that didn't have passes. Some of our crew didn't even have passes, WBAP.

Mr. HUBERT. Do you remember when the armored truck pulled in there?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Was that before or after the last time you saw the man you have identified as Jack Ruby?

Mr. RICHEY. I believe that was the—I believe the armored truck pulled in after I saw him the last time, because there was one pulled in and backed in, and the other one parked on the street.

Mr. HUBERT. You think that the last time you saw Ruby was before?

Mr. RICHEY. Before any of that happened?

Mr. HUBERT. Before any of that happened.

Mr. RICHEY. Yes, sir; I believe it was.

Mr. HUBERT. All right; Mr. Richey, have you been interviewed by any member of the President's Commission prior to this occasion?

Mr. RICHEY. No, sir.

Mr. HUBERT. Have you anything else to say in any way?

Mr. RICHEY. No, sir; I don't know of anything.

Mr. HUBERT. I think you said that you really didn't hear Ruby say anything?

Mr. RICHEY. No, sir.

Mr. HUBERT. I notice that this statement which has been identified as 5316—let me ask you: You were interviewed by the FBI?

Mr. RICHEY. Yes, sir; that was 2 or 3 days, I believe, after.

Mr. HUBERT. You were interviewed at the same time as Mr. Walker and Mr. Smith?

Mr. RICHEY. Yes; and there were some others.

Mr. HUBERT. Was that an individual interview?

Mr. RICHEY. Not in our case. We were all together in the studio of WBAP.

Mr. HUBERT. You weren't taken aside separately and individually?

Mr. RICHEY. Not when the FBI talked to us.

Mr. HUBERT. Each of you gave your story and the FBI agents made notes?

Mr. RICHEY. Yes.

Mr. HUBERT. Did he ever ask you to check the notes or any draft?

Mr. RICHEY. No, sir; I have never heard or seen them since.

Mr. HUBERT. You were on duty with the truck during the day of Saturday, November 23?

Mr. RICHEY. Yes, sir.

Mr. HUBERT. Would it be possible that the man you saw and identified as Jack Ruby would have been seen by you on the 23d rather than the 24th?

Mr. RICHEY. No, sir; I don't recall seeing anyone that even looked like him on the 23d. That one morning is the only morning that I recall seeing anyone that even looked like him.

Mr. HUBERT. On the 24th, I think you testified the crowd had been moved over on the other side of the street?

Mr. RICHEY. Yes.

Mr. HUBERT. Had that been done on the 23d?

Mr. RICHEY. No, sir; no one bothered. There weren't too many around on the 23d. Mostly newsmen was all that was around on the 23d. There wasn't any crowd, really, but they started congregating on Sunday morning on both sides of the ramp.

Mr. HUBERT. It was after they had begun to congregate that you saw this man you have identified as Jack Ruby?

Mr. RICHEY. Yes, sir; and then they moved the other people across, and I still saw him after they moved the other people across the street.

Mr. HUBERT. All right, sir. Thank you very much.

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## **TESTIMONY OF MALCOLM R. SLAUGHTER**

The testimony of Malcolm R. Slaughter was taken at 7:30 p.m., on April 16, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Slaughter, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of President Johnson's Commission on the Assassination of President Kennedy. Under the provisions of Executive Order 11130, dated November 29, 1963, and Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in accordance with the Executive order and the joint resolution of Congress, I have been authorized to take a sworn deposition from you.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mr. Slaughter, the nature of the inquiry tonight is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and particularly what you may know about Jack Ruby and his whereabouts and movements on Sunday, November 24.

Mr. Slaughter, normally the witnesses are required to come before the Commission by a written letter or notice in writing sent to them by a member of the Commission or the general counsel, Mr. J. Lee Rankin. I have such a letter in my possession, but we have been unable to get it to you on account of your work.

Mr. SLAUGHTER. I have the letter.

Mr. HUBERT. Did you get it over 3 days ago?

Mr. SLAUGHTER. I got it; I got it last Friday.

Mr. HUBERT. Well, that's fine. Then, it is over 3 days ago. Now, would you stand and take the oath, please? Do you solemnly swear the testimony you are about to give before the Commission will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. SLAUGHTER. Yes.

Mr. HUBERT. Will you state your name, please?

Mr. SLAUGHTER. Malcolm R. Slaughter.

Mr. HUBERT. Your age?

Mr. SLAUGHTER. Forty-four.

Mr. HUBERT. Your residence?

Mr. SLAUGHTER. 5638 Ridgeway Drive, Houston, Tex.

Mr. HUBERT. What is your occupation, Mr. Slaughter?

Mr. SLAUGHTER. Line driver.

Mr. HUBERT. For what company?

Mr. SLAUGHTER. For Red Ball Motor Freight.

Mr. HUBERT. How long have you been so employed?

Mr. SLAUGHTER. Eight years.

Mr. HUBERT. You are a family man?

Mr. SLAUGHTER. Yes, sir.

Mr. HUBERT. So you have a wife and children?

Mr. SLAUGHTER. Yes, sir.

Mr. HUBERT. I understand that tonight you are en route from one point to another?

Mr. SLAUGHTER. That's correct.

Mr. HUBERT. I think that during last fall you and at least one other of your friends or fellow drivers of trucks rented an apartment as a stopoff or sleeping place here in Dallas; is that correct?



Mr. SLAUGHTER. We were domiciled in Dallas at that time.

Mr. HUBERT. You were?

Mr. SLAUGHTER. Yes.

Mr. HUBERT. Would you tell us where this apartment was located?

Mr. SLAUGHTER. In the Oak Cliff section of Dallas—223 South Ewing.

Mr. HUBERT. What apartment did you have?

Mr. SLAUGHTER. Apartment 204.

Mr. HUBERT. Who else shared that apartment with you?

Mr. SLAUGHTER. Jack Scritchfield [spelling] S-c-r-i-t-c-h-f-i-e-l-d, and Sidney Evans.

Mr. HUBERT. You don't have that apartment any more, I take it?

Mr. SLAUGHTER. No, sir; I vacated March 1.

Mr. HUBERT. When did you first occupy the apartment?

Mr. SLAUGHTER. October 30, 1963.

Mr. HUBERT. And how often were you there between that date and November 24, 1963?

Mr. SLAUGHTER. You say—how often?

Mr. HUBERT. Yes, sir—I mean—did you live there or were you on the road a great deal of the time?

Mr. SLAUGHTER. We maintained our homes in Houston but due to the fact we drove out of Dallas, Tex., off of the pool board in Dallas, we had to maintain a residence in Dallas. That's why the three of us split costs and rented this apartment.

Mr. HUBERT. What I wanted to get at—we are talking about a period of approximately 24 or 25 days, from October 31, I think you said, until November 24, and I was just wondering how many of those nights or days you were on the road and didn't occupy the apartment?

Mr. SLAUGHTER. Well, I have logs to substantiate it—I can't give you the exact figure.

Mr. HUBERT. No, sir—just approximately.

Mr. SLAUGHTER. In and out—every time I was in Dallas I stayed there.

Mr. HUBERT. That would be how often, roughly?

Mr. SLAUGHTER. It could be every night—every third night, and most generally always on weekends.

Mr. HUBERT. And when you did stay in that apartment it would be during the daytime, sometimes?

Mr. SLAUGHTER. Yes, sir—mostly in the daytime.

Mr. HUBERT. And mostly on Sundays and Saturdays?

Mr. SLAUGHTER. On weekends.

Mr. HUBERT. On weekends?

Mr. SLAUGHTER. Yes, sir.

Mr. HUBERT. Did you ever get to meet a man by the name of Jack Ruby who occupied an apartment in that same building?

Mr. SLAUGHTER. Not personally.

Mr. HUBERT. Did you see him prior to November 24, 1963?

Mr. SLAUGHTER. I would say possibly two or three times in passing, only.

Mr. HUBERT. Did you ever converse with him?

Mr. SLAUGHTER. No, sir; only to say “hello” or some such greeting as that.

Mr. HUBERT. Did you know his name at that time?

Mr. SLAUGHTER. No, sir—not at that time.

Mr. HUBERT. Prior to November 24 you did not know his name?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Did you know George Senator, who lived with him?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Did you know him as well as you knew Jack Ruby, say, but of course—you didn't know him at all?

Mr. SLAUGHTER. I don't know George Senator to this moment.

Mr. HUBERT. Did you know a man, even if you did not know his name, who shared an apartment with Jack Ruby?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Now, coming precisely to November 24, 1963, do you remember whether you were at the apartment that you have described on that date?

Mr. SLAUGHTER. I was.

Mr. HUBERT. Do you remember whether you saw Jack Ruby on that date? At or about or near the apartment?

Mr. SLAUGHTER. On November 24?

Mr. HUBERT. Yes.

Mr. SLAUGHTER. I did.

Mr. HUBERT. At approximately what time did you see him, sir?

Mr. SLAUGHTER. Approximately 10:05 a.m.

Mr. HUBERT. Now, you are fixing that time very accurately, and I want to ask you how you do so?

Mr. SLAUGHTER. Mr. Evans had just returned from a Catholic church in Oak Cliff, stating that he thought there was a 10 o'clock mass; however, there was none, so he returned to our apartment approximately at 10 o'clock a.m. I had just gotten up when he came in the apartment.

Mr. HUBERT. That's Evans you are talking about?

Mr. SLAUGHTER. When Evans came in the apartment, I spoke to him and asked him what happened. He replied there was no mass at 10 a.m. He had decided to go to 11 o'clock mass. I went out in the kitchen and put on the coffee pot. Then I asked Evans how was the weather? He said, "Rather windy." So, as was my custom, I walked out on the balcony just for my own information to see what the weather was like. It is approximately 50 feet to

the railing where I would look down the freeway, and as I walked out the door toward this railing, I met Jack Ruby.

Mr. HUBERT. Was that in the hallway of the place?

Mr. SLAUGHTER. On a balcony, sir. He was coming the opposite way. I said, "Good morning," and he acknowledged the greeting, not with the words "Good morning," or "Howdy," or any such statement, but he did acknowledge the greeting.

Mr. HUBERT. That is to say, he made no sound but he made a nod, I suppose; is that what you mean?

Mr. SLAUGHTER. "Hmmm"; something like that.

Mr. HUBERT. You passed right by him, then?

Mr. SLAUGHTER. That's correct.

Mr. HUBERT. Within a matter of a foot or two?

Mr. SLAUGHTER. That's correct.

Mr. HUBERT. How was he dressed at that time?

Mr. SLAUGHTER. In my terms, I would say very casual, such as a pair of khakis and a light jacket. I, myself, wear khakis and T-shirt as lounging clothes, we'll use that term. I would say that Jack Ruby was dressed similarly.

Mr. HUBERT. Did he have a coat on, and I don't mean an overcoat, but a coat to a suit?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Did he have a shirt or tie on?

Mr. SLAUGHTER. I don't think he did. As I said, he did have a light jacket on and it appeared to be as my dress or a T-shirt, or some nature as that.

Mr. HUBERT. Did he appear to be shaved?

Mr. SLAUGHTER. I didn't observe that closely.

Mr. HUBERT. Did you observe whether his hair was disheveled?

Mr. SLAUGHTER. His hair was combed and I'll say he was more or less looking down as if in deep thought. That's my impression.

Mr. HUBERT. Did he have a hat on?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. From what direction was he coming?

Mr. SLAUGHTER. Direction-wise he was coming from the end of the stairs which would let him walk in front of our apartment on down to his. As for direction, that would be——

Mr. HUBERT. He was going toward his apartment?

Mr. SLAUGHTER. That's right.

Mr. HUBERT. If he continued in that direction, he, of course, could get to his apartment, but could he get to the lower floor at all?

Mr. SLAUGHTER. Not without back tracking or passing his apartment. There is a stairway on either end of the balcony.

Mr. HUBERT. And you met him about the middle of it or something like that?

Mr. SLAUGHTER. Toward our end.

Mr. HUBERT. Did you observe whether he went into his apartment or not?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Was he carrying anything?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Do you know where he parked his car?

Mr. SLAUGHTER. Only hearsay. There was parking space provided for all tenants at the rear of the apartment.

Mr. HUBERT. Well, considering where that parking space was, if he were going from his car to his apartment, would he be taking the route you saw him take, or would the other route have been better?

Mr. SLAUGHTER. Well, as I say, I don't know his car—I do not know where he was parked. Presuming he would park where the rest of us did and he was coming from his car?

Mr. HUBERT. Yes.

Mr. SLAUGHTER. Presumably, it would have been the other end of the stairway that he would have used.

Mr. HUBERT. Rather than what he probably used—that's the stairway that was on the end toward which you were approaching, is that right?

Mr. SLAUGHTER. That's correct. My presumption there would be that he had either been to the mailbox or to the manager's apartment.

Mr. HUBERT. Could he have been to the basement where it was possible to wash clothes?

Mr. SLAUGHTER. That's on the other end of the building.

Mr. HUBERT. So, that it would be improbable that he would be coming at that time from the basement area?

Mr. SLAUGHTER. It would be improbable—yes.

Air. Hubert. When Mr. Evans came in, were you awake?

Mr. SLAUGHTER. I know not whether I was awake or he awakened me upon entering.

Mr. HUBERT. But you would judge that it would be about 10 minutes from the time that you first spoke to Evans until you saw Jack Ruby, or longer? Or shorter?

Mr. SLAUGHTER. I would say approximately that length of time.

Mr. HUBERT. About 10 minutes?

Mr. SLAUGHTER. About 10 minutes.

Mr. HUBERT. In other words, in order to get it exactly straight, you would estimate that Evans came in about 5 minutes to 10, and that you occupied yourself in speaking to him a bit, and putting on the coffee, talking about the weather, and subsequently going out on the balcony and at

the point at which you saw Ruby 10 minutes had elapsed from the time you first had spoken to Evans?

Mr. SLAUGHTER. That's approximately correct.

Mr. HUBERT. Did you see Ruby any more that day?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Was there much space between your apartment and his apartment?

Mr. SLAUGHTER. Two apartments.

Mr. HUBERT. You couldn't hear anything that might be going on in his apartment?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Did you hear anything from the direction of his apartment which might have indicated someone was leaving?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Did you hear or see his automobile leave?

Mr. SLAUGHTER. No, sir; I haven't seen him yet.

Mr. HUBERT. This third gentleman who shared the apartments with you, I think you called him Mr. Scritchfield?

Mr. SLAUGHTER. Jack Scritchfield.

Mr. HUBERT. Was he there then?

Mr. SLAUGHTER. Yes, sir.

Mr. HUBERT. Did he see Ruby to your knowledge?

Mr. SLAUGHTER. Not on that day; no, sir.

Mr. HUBERT. Was he sleeping?

Mr. SLAUGHTER. He had just gone to bed within 30 minutes of Evans' arrival.

Mr. HUBERT. And you would judge that he was asleep or at least in bed at the time Evans got back?

Mr. SLAUGHTER. Yes, sir.

Mr. HUBERT. Had he been up prior to that time and moving around?

Mr. SLAUGHTER. You are speaking of Jack?

Mr. HUBERT. Yes.

Mr. SLAUGHTER. He had just come in off of a run.

Mr. HUBERT. He walked right into the house and undressed and went to bed?

Mr. SLAUGHTER. In a very short matter of time—I don't know exactly what time Jack got to the apartment, but he had been on an overnight run and he had just arrived and was due to sleep all day Sunday.

Mr. HUBERT. Prior to the time that you saw Ruby, had Sidney Evans mentioned anything to you about having seen him also?

Mr. SLAUGHTER. Not until after the television program.

Mr. HUBERT. Had you ever seen Ruby in or about the apartments with any feminine company?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Had you ever seen him there walking in or about with any man?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Had you ever seen him with a dog?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Mr. Slaughter, have you ever been interviewed by any member of the Commission prior to this occasion?

Mr. SLAUGHTER. Not the Commission.

Mr. HUBERT. All right, sir, have you anything else that you can tell us regarding the movements of Jack Ruby on this day or on any other day?

Mr. SLAUGHTER. No, sir.

Mr. HUBERT. Thank you very much. We appreciate your cooperation.



Mr. SLAUGHTER. That's all right—I hope this was some help.

Mr. HUBERT. Thank you again.

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## TESTIMONY OF VERNON S. SMART

The testimony of Vernon S. Smart was taken at 12:15 p.m., on March 25, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. Lieutenant Smart, my name is Burt Griffin, and I am one of the attorneys on the advisory staff of the General Counsel of the President's Commission Investigating the Assassination of President Kennedy. This Commission has been set up by virtue of an Executive order issued by President Johnson and joint resolution of Congress. The Executive order is No. 11130 and the congressional resolution is No. 137. We have promulgated a set of rules of procedure, the Commission has, and under these rules of procedure, I have been given authority to take your sworn deposition. Part of our rules of standard procedure is to explain to you in advance what the general nature of the Commission's inquiry is. I will state in a general fashion that we are trying to ascertain and evaluate and report back to the President on the facts, and all of the facts, that relate to the assassination of President Kennedy and the murder of Lee Oswald. Our particular concern in calling you has more to do with the assassination or murder of Lee Oswald than it has to do with the assassination of the President; however, we want to have all of the information that you have which you think is pertinent to the matter that the Commission is involved in. Now, we have addressed a letter, that is, the General Counsel has addressed a letter, to Chief Curry requesting that you be made available to appear here. Under the rules of the Commission, you are entitled to a personal 3-day notice before you testify. You can waive this notice. I will ask you right now if you want the 3-day notice or whether you are willing to waive the notice?

Mr. SMART. No; I will waive it.

Mr. GRIFFIN. Also, you are entitled to have an attorney here, and some of the witnesses do have attorneys and others of them don't, and I take it that, by the fact that you are appearing here alone, that you do not desire an attorney; however, if you do desire to have an attorney present representing you, I wish you would say so at this time, and don't feel that it would be any embarrassment to any of us or we would be concerned about it.

Mr. SMART. No; I don't feel like I need one right now.

Mr. GRIFFIN. Well, let me tell you.

Mr. SMART. Not for this; no.

Mr. GRIFFIN. We have no authority to prosecute anybody.

Mr. SMART. Yes.

Mr. GRIFFIN. This is a factfinding matter, and I think more than very many people fully appreciate that this investigation is intimately connected with the security of the country.

Mr. SMART. Right.

Mr. GRIFFIN. And, of course, most particularly the security of the President, and it is terribly important from a standpoint of protection and making sure that things don't happen in the future——

Mr. SMART. I understand.

Mr. GRIFFIN. That we get everything. We have collected a lot of information in this area, and I can only tell you that what you think might be unimportant or would be more interested in withholding for fear of embarrassing somebody could be terribly important to us when all of the pieces are put together.

Mr. SMART. That is right.

Mr. GRIFFIN. Now, let me ask you if you have any questions about what we are doing here?

Mr. SMART. No; I think I understand.

Mr. GRIFFIN. Let me swear you in, then. If you will, will you raise your right hand? Do you solemnly swear that the testimony you are about to give is the truth, the whole truth, and nothing but the truth?

Mr. SMART. I do.

Mr. GRIFFIN. Lieutenant Smart, when were you born?

Mr. SMART. July 10, 1912.

Mr. GRIFFIN. And where do you live now?

Mr. SMART. Dallas.

Mr. GRIFFIN. What is your address?

Mr. SMART. 2120 Ballycastle Street.

Mr. GRIFFIN. All right. And you are employed with the Dallas Police Department?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. And you are a lieutenant?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. How long have you been with the police department?

Mr. SMART. Twenty-nine years.

Mr. GRIFFIN. Have you been interviewed by any member of this staff? I am not talking about FBI agents, but any members of the President's Commission staff——

Mr. SMART. No, sir.

Mr. GRIFFIN. Other than me?

Mr. SMART. No, sir.

Mr. GRIFFIN. And have I interviewed you before taking your deposition here?

Mr. SMART. No, sir.

Mr. GRIFFIN. All right. I am going to mark here for identification purposes a copy of an interview that was held with you by Special Agents Bookhout and Myers, [spelling] M-y-e-r-s, and that is Bookhout [spelling], B-o-o-k-h-o-u-t, of the Federal Bureau of Investigation on November 25, 1963. I am going to mark that, "Dallas, Texas, Lieutenant Smart, 3-25-64,

Exhibit 5021.” I am going to hand it to you and ask you if you have had a chance to read that over?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Now, are there any additions or corrections that you would care to make in that?

Mr. SMART. No. I told it to them just as I saw and heard it.

Mr. GRIFFIN. Now, did you file a report of your own activities with the police department?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. I wonder if you would be good enough to provide us with a copy of that. You think, after this interview is over, you could get a copy of it and provide it to us?

Mr. SMART. Could I?

Mr. GRIFFIN. Yes.

Mr. SMART. You say could I?

Mr. GRIFFIN. Yes.

Mr. SMART. I think so. I don't have it in my possession.

Mr. GRIFFIN. We have asked everybody else, and there is no problem on that.

Mr. SMART. Yes, I am sure they will.

Mr. GRIFFIN. Let me ask you this. Were you on duty on November 22?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Where were you stationed?

Mr. SMART. Wait a minute. November 22?

Mr. GRIFFIN. The day that the President was shot.

Mr. SMART. No, sir.

Mr. GRIFFIN. Were you on duty on November 23?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. And what time did you come to work that day?

Mr. SMART. 7 a.m.

Mr. GRIFFIN. Now, you are in charge of the auto theft division, is that right?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Is there any officer who is above you in the auto theft division?

Mr. SMART. At that time?

Mr. GRIFFIN. Yes.

Mr. SMART. No. You say are there or was there?

Mr. GRIFFIN. Was there at that time?

Mr. SMART. No, sir.

Mr. GRIFFIN. Now, what was the relationship of Captain Nichols?

Mr. SMART. He was off duty that day.

Mr. GRIFFIN. I see. But he is also an officer in it?

Mr. SMART. He is in charge of it.

Mr. GRIFFIN. He is——

Mr. SMART. He is the captain.

Mr. GRIFFIN. He is in charge of the whole division?

Mr. SMART. The whole bureau.

Mr. GRIFFIN. I see.

Mr. SMART. In his absence, I am in charge.

Mr. GRIFFIN. I see. Now, what time did you leave on the 23d, leave work?

Mr. SMART. It was late in the afternoon. I don't remember the time.

Mr. GRIFFIN. On the 23d, did you give any assistance in connection with the investigation of the murder of the President, did you lend any assistance

to that——

Mr. SMART. No, sir.

Mr. GRIFFIN. To that investigation?

Mr. SMART. No, sir.

Mr. GRIFFIN. Did you lend any assistance in connection with preserving security in the building or press relations or anything like that?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Can you tell us—I am talking about the 23d.

Mr. SMART. Twenty-third?

Mr. GRIFFIN. Can you tell us what you did on the 23d in that regard?

Mr. SMART. I was told by Chief Stevenson to have all of the men in my bureau to stand by to assist in the transfer of Oswald.

Mr. GRIFFIN. Now, when were you told this by Chief Stevenson?

Mr. SMART. It must have been—I can't say for sure—in the neighborhood of 8 or 9 o'clock in the morning.

Mr. GRIFFIN. On Saturday morning?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. That is the day before the transfer.

Mr. SMART. Said he didn't know what time they were going to move him but to have all of the men stand by available.

Mr. GRIFFIN. Did you then pass the word throughout your division?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Did you prepare any written memorandum of this?

Mr. SMART. No, sir.

Mr. GRIFFIN. Would there be anything in writing to indicate what sort of instructions were given or that there were instructions given?

Mr. SMART. All verbal.

Mr. GRIFFIN. Do you remember talking with any particular men about this in your department?

Mr. SMART. I talked to each one of them, told them to stand by and I would tell them when to report to the basement.

Mr. GRIFFIN. I see. Now, of course, nothing happened, he wasn't moved that day, Oswald was not moved on Saturday?

Mr. SMART. Wait a minute. I am all crossed up.

Mr. GRIFFIN. I thought you were.

Mr. SMART. I am talking about the day he was moved.

Mr. GRIFFIN. Okay.

Mr. SMART. I am all crossed up.

Mr. GRIFFIN. Okay. That is why I asked you.

Mr. SMART. Sunday, wasn't it?

Mr. GRIFFIN. That is why I asked you.

Mr. SMART. Sunday.

Mr. GRIFFIN. Okay.

Mr. SMART. I am speaking of Sunday, the day they moved him, now.

Mr. GRIFFIN. All right.

Mr. SMART. Saturday, I didn't do anything.

Mr. GRIFFIN. Now, before you came to work on Sunday, had you heard anything, even by way of rumor, with respect to the fact that Oswald might be moved that day?

Mr. SMART. That was when?

Mr. GRIFFIN. Came to work—before you arrived at work on Sunday morning.

Mr. SMART. No, sir; I didn't hear anything.

Mr. GRIFFIN. All right. Now, where was Stevenson when he talked to you about having your men ready?



Mr. SMART. In his office.

Mr. GRIFFIN. And were you personally there or did you receive this by telephone?

Mr. SMART. I received it from him.

Mr. GRIFFIN. And did you have any discussion with him at that time——

Mr. SMART. No, sir.

Mr. GRIFFIN. About the moving?

Mr. SMART. No, sir; he said have the men stand by and he would notify me when to have them report to the basement.

Mr. GRIFFIN. About how long was this before Oswald was actually moved, would you estimate?

Mr. SMART. I couldn't say for sure, but I think I must have talked to him between—it must have been around 9 o'clock in the morning or maybe earlier. I am not sure. I didn't make a note of the time.

Mr. GRIFFIN. And were there other department heads or bureau heads in there at the time that you got this information?

Mr. SMART. In and out.

Mr. GRIFFIN. Do you have any information as to whether Stevenson made a general request to all bureaus to have their men stand by or was this just specifically directed toward you?

Mr. SMART. I think it was general.

Mr. GRIFFIN. That is, do you have any confirmation of that, have you talked to other bureau heads, for example, to find out?

Mr. SMART. Captain Jones.

Mr. GRIFFIN. What bureau is he connected with?

Mr. SMART. Forgery.

Mr. GRIFFIN. What about the other bureau heads there? Did you talk to them?

Mr. SMART. Captain Martin, we discussed it among ourselves about having our men stand by.

Mr. GRIFFIN. Now, when did you discuss it with those gentlemen?

Mr. SMART. Shortly after I talked with Stevenson.

Mr. GRIFFIN. I see.

Mr. SMART. It was general knowledge around that all of the men were supposed to stand by. You know how those things get out.

Mr. GRIFFIN. I see. I see. Now, when was the next time that you got any information about the movement of Lee Oswald?

Mr. SMART. In the neighborhood of 11 o'clock, it could have been before or after a little bit, Chief Stevenson told me to have my men report to the basement.

Mr. GRIFFIN. Now, what did you do when you took your men down to the basement?

Mr. SMART. I instructed the men to go down to the basement and I went with them.

Mr. GRIFFIN. Did you personally place these men——

Mr. SMART. No, sir.

Mr. GRIFFIN. In any positions?

Mr. SMART. No, sir.

Mr. GRIFFIN. Do you remember if——

Mr. SMART. I turned them over to Captain Jones, he was handling that, and I told him, if I could help him, to let me know, that I would be down there, and he placed them.

Mr. GRIFFIN. What did you do at that point?

Mr. SMART. At that time, they were attempting to back this armored truck in, and I walked up the ramp, and they were having difficulty getting it in on account of the height of it and so forth, and Chief Batchelor was present, if I am not mistaken, he went down with us or in the group, and he

and I decided with the driver that we couldn't get it all of the way down, and parked it about a third of the way down, I guess.

Mr. GRIFFIN. Are you a uniformed officer?

Mr. SMART. Beg your pardon.

Mr. GRIFFIN. Do you wear a uniform?

Mr. SMART. No, sir.

Mr. GRIFFIN. I want to get here a diagram that we have been using. I am going to ask you to mark on this diagram. This is a diagram of the basement. Here is the jail office.

Mr. SMART. Uh-huh.

Mr. GRIFFIN. The ramp up to Commerce Street, the ramp down from Main Street, and the garage area. Now, can you mark on this map or chart——

Mr. SMART. This ramp goes on out like this, doesn't it?

Mr. GRIFFIN. Yes.

Mr. SMART. This is really a solid wall.

Mr. GRIFFIN. Let me explain what this is here. This is the basement wall, this far black line is the basement wall, which underneath the ground goes all of the way out to the sidewalk, beyond the sidewalk.

Mr. SMART. Uh-huh.

Mr. GRIFFIN. However, at the street level——

Mr. SMART. This would all be sidewalk?

Mr. GRIFFIN. This would all be sidewalk.

Mr. SMART. I see.

Mr. GRIFFIN. Now, will you show us on this diagram where you were standing just before Lee Oswald was shot?

Mr. SMART. Well, I would say about here.

Mr. GRIFFIN. Would you mark it with an "X" if you would?

Mr. SMART. All right. Roughly.

Mr. GRIFFIN. Would you do something? Would you put your initials beside it or something to indicate that that is you? Okay. Now, did you see Sam Pierce's car go out of the driveway?

Mr. SMART. No; I didn't.

Mr. GRIFFIN. Which direction or what were you doing at the time that Pierce's car would have gone out about a minute ago?

Mr. SMART. I don't know when his car went out. I heard them talking about it. It was supposed to have gone out this way, wasn't it?

Mr. GRIFFIN. Yes; now, when you were standing by the armored car, were you looking up to Commerce Street?

Mr. SMART. At the time of the shooting?

Mr. GRIFFIN. No; not at the time of the shooting.

Mr. SMART. Well, I was looking every way that I could, this side of the truck, this side of the truck, trying to see down here from time to time, but I couldn't see much for the television lights.

Mr. GRIFFIN. Now, how long——

Mr. SMART. I was mainly interested in the security angle from across the street, so forth. That was my thought.

Mr. GRIFFIN. How long had you remained—how long had you been here by the side of this armored truck prior to the time that you heard any shots in the basement?

Mr. SMART. Oh, long enough that, when the truck backed down, Batchelor and I found some bottles in it, anything that might be used as a weapon that was loose in the truck. I don't know how long that would have been, practically all of the time that I was in the basement.

Mr. GRIFFIN. Were you standing beside the truck?

Mr. SMART. No; I was up here.

Mr. GRIFFIN. Do you want to mark up there where the truck was? Why don't you mark a square where the truck was?

Mr. SMART. This is strictly guesswork because I didn't measure in feet or anything.

Mr. GRIFFIN. This is all right. Just a rough idea. And you were standing at the place where you were standing beside the truck?

Mr. SMART. I had been in the truck, around the truck, I had taken some bottles over here and set them on a ledge out of the way and I had walked back—of course, this doesn't represent too many feet—approximately halfway from the truck down to the end of the ramp, and at the time that I heard the shot, I was looking out this way.

Mr. GRIFFIN. I see. What did you do at the time that you heard the shot?

Mr. SMART. What did I do at the time?

Mr. GRIFFIN. Yes.

Mr. SMART. I immediately rushed down to where the scuffle was going on.

Mr. GRIFFIN. Now, did you at any time go into the jail office?

Mr. SMART. No, sir.

Mr. GRIFFIN. I understand that you talked to "Blackie" Harrison right after the scuffle.

Mr. SMART. Yes, uh-huh, as soon as I got to the scene.

Mr. GRIFFIN. Was Ruby still there?

Mr. SMART. Yes; I asked "Blackie" who he was.

Mr. GRIFFIN. Did you talk with "Blackie" after that that day?

Mr. SMART. Later in the day?

Mr. GRIFFIN. Yes, sir.

Mr. SMART. I don't recall it if I did.

Mr. GRIFFIN. Between the time that you talked with Harrison and the time that you were informed that you should go to Ruby's car and search the car, what did you do?

Mr. SMART. I was told by Chief Stevenson to check all of—to put guards on the elevators and on the doors on the first floor.

(Discussion off of the record.)

Mr. GRIFFIN. And did you do that?

Mr. SMART. I did that, and I went back to my office, resumed my usual routine.

Mr. GRIFFIN. That is on the third floor?

Mr. SMART. Right.

Mr. GRIFFIN. How long did you remain up there on the third floor before you were asked to do something in connection with Ruby's car?

Mr. SMART. I couldn't say for sure. It was some time, though, elapsed, quite some time elapsed, and Chief Stevenson would call me on the phone and gave me the license number of his car and told me where it was parked, asked me—told me there was a sum of money in it, to go over and remove it.

Mr. GRIFFIN. You got out there, and I take it from your statement that you found that somebody else had already been to the car?

Mr. SMART. No, sir.

Mr. GRIFFIN. You were the first one to the car?

Mr. SMART. I don't think I said that anyone else had been to it.

Mr. GRIFFIN. I will correct the record, because his statement doesn't reflect it, what I said. All right. When you got to the car, was the car locked or unlocked?

Mr. SMART. The doors were unlocked.

Mr. GRIFFIN. Now, did you have a key to the car at that time?

Mr. SMART. No, sir.

Mr. GRIFFIN. Had you been told at that time whether or not there was a key to the car——

Mr. SMART. No, sir.

Mr. GRIFFIN. Or whether you needed one?

Mr. SMART. No, sir; I hadn't been told. I just assumed that the keys were in the car, but nobody told me that.

Mr. GRIFFIN. Now, when you got there——

Mr. SMART. Being on a parking lot, you know, naturally, I didn't think.

Mr. GRIFFIN. Was there a dog in that car?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Where was the dog when you got to the car?

Mr. SMART. The dog had crawled under a newspaper in the front seat.

Mr. GRIFFIN. And what did you do with the dog when you got in?

Mr. SMART. We had the squad come by and get it and take it to the animal shelter.

Mr. GRIFFIN. Was there anybody else that accompanied you out to that automobile?

Mr. SMART. Lieutenant Swain.

Mr. GRIFFIN. And that is all?

Mr. SMART. Well, we called the uniformed squad there a little bit later and had the car put in the pound. It seems to me like there was one more detective. I don't remember. I believe it was Detective Watson. I am not sure.

Mr. GRIFFIN. What was the first thing you searched?

Mr. SMART. The glove compartment.

Mr. GRIFFIN. And I understand that you found his wallet in the glove compartment?

Mr. SMART. Right.

Mr. GRIFFIN. And a key to fit the trunk?

Mr. SMART. Right.

Mr. GRIFFIN. Now, did you ever find out whether Ruby had a wallet on his person?

Mr. SMART. No, sir; I never did.

Mr. GRIFFIN. Did you ever make any inquiry?

Mr. SMART. No, sir.

Mr. GRIFFIN. Now, did you talk with Ruby about any of the equipment which you found in the automobile?

Mr. SMART. No, sir.

Mr. GRIFFIN. About the property which you found in the automobile?

Mr. SMART. No, sir.

Mr. GRIFFIN. Did Lieutenant Swain?

Mr. SMART. No, sir; not in my presence.

Mr. GRIFFIN. Or that you know of?

Mr. SMART. Not that I know of.

Mr. GRIFFIN. In the normal procedure, who would be the person who would question him about that property?

Mr. SMART. Well, I would think it would be Captain Fritz.

Mr. GRIFFIN. I see. Did you examine this billfold?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Can you tell us what you recall being in that billfold?

Mr. SMART. His driver's license and several cards of identification like you would normally carry in a billfold, but I don't remember each one, what they were or anything. Different cards with his name on it.

Mr. GRIFFIN. Social security card?

Mr. SMART. I believe his social security card was there. I am not sure. There was just stuff—cards and papers.

Mr. GRIFFIN. I see. Do you think you would be able to identify that wallet and contents?



Mr. SMART. I think so.

Mr. GRIFFIN. Do you remember anything else in there besides identification cards in the wallet?

Mr. SMART. No, sir.

Mr. GRIFFIN. Was there any money in the wallet?

Mr. SMART. No, sir.

Mr. GRIFFIN. Now, what else did you find in the glove compartment?

Mr. SMART. A key.

Mr. GRIFFIN. A single key?

Mr. SMART. A single key.

Mr. GRIFFIN. Was this—where was this?

Mr. SMART. Just laying in the floor of the glove compartment.

Mr. GRIFFIN. Was it under some papers or anything like that?

Mr. SMART. No, sir; wasn't much stuff in the glove compartment.

Mr. GRIFFIN. Was there anything else in the glove compartment besides the key and the wallet?

Mr. SMART. I remember looking, but I remember there was nothing of importance that would have any bearing on anything. There was something there, not much, though.

Mr. GRIFFIN. Was the key on top and exposed?

Mr. SMART. No. The billfold was on top and the key was laying over on the side.

Mr. GRIFFIN. I see.

Mr. SMART. Just a lone key, a General Motors key.

Mr. GRIFFIN. I see. Did it appear there had been any effort to conceal it?

Mr. SMART. No, sir.

Mr. GRIFFIN. Now, after you searched the glove compartment, what did you do? What did you search after the glove compartment?

Mr. SMART. Well, I sat down in the front seat to try this key, and I put my hand down on these papers, and that is when I felt the dog. The dog raised up. It didn't fit the ignition keys, I mean the ignition switch, so I knew it was a General Motors key, and I owned an Oldsmobile, and it looked like it might be a trunk key, and I tried it, and it worked.

Mr. GRIFFIN. Now, up to this point, you hadn't searched the interior of the car, nothing but the glove compartment?

Mr. SMART. No, sir; nothing but just look over.

Mr. GRIFFIN. Now, when you took this key, you were able to open the trunk, weren't you?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. What did you see when you opened that trunk?

Mr. SMART. Well, some paper bags and some bank sacks, maybe one bank sack, and just full of junk, almost full of junk, except there was a set of keys laying right down in the open.

Mr. GRIFFIN. Now, was this a set of keys?

Mr. SMART. Well, it was a bunch of keys.

Mr. GRIFFIN. Were they on a ring?

Mr. SMART. A ring or something to hold them together; I don't remember.

Mr. GRIFFIN. How many keys would you say were on this?

Mr. SMART. Oh, roughly four or five.

Mr. GRIFFIN. Now, were there any keys that looked like they might be keys to a house or door?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. And how many keys on there appeared that they would be automobile keys?

Mr. SMART. I don't remember now. I can tell that the other key, you know, they were shaped a little different, one of them was the ignition key, and I tried it, and it worked.

Mr. GRIFFIN. Now, if you were to see these keys, do you think that you would recognize them?

Mr. SMART. Yes, sir; I think so.

Mr. GRIFFIN. Where did you see the keys in the car, in the trunk of the car?

Mr. SMART. Laying right in the floorboard of the trunk.

Mr. GRIFFIN. Near the front?

Mr. SMART. Near the front.

Mr. GRIFFIN. Exposed to view?

Mr. SMART. Right.

Mr. GRIFFIN. Where were they in relationship to the paper sacks and the money bags?

Mr. SMART. To the right. The paper bags were more in the back. He had two or three boxes of pictures of girls, and things like that, that we just thumbed through, maybe stacks of them that high, a lot of cards to his club. That was mostly what the stuff was in the trunk.

Mr. GRIFFIN. Now, if these keys were placed where you found them and one had been driving that car, would the motion—were they placed in such a way that the motion of the car or bumps and whatnot would move these about?

Mr. SMART. I would think they would probably have scooted under papers or something, would have been my guess, possibly.

Mr. GRIFFIN. Now, is there anything that you saw or that you have learned that would indicate to you how long those keys might have been in the back of that trunk prior to the time that you opened it?

Mr. SMART. You want my thought?

Mr. GRIFFIN. Yes; I do.

Mr. SMART. My thought, when I found things like they were, that Jack Ruby had purposely put his billfold in the glove compartment and purposely put his keys in the trunk compartment and locked it up and

purposely left his trunk key in the glove compartment so he could get to it. That was my thought. I wondered why he left his billfold with all of his identification in it in his glove compartment.

Mr. GRIFFIN. I would like to have your opinion as a trained investigator, anything else that led you to believe this or why, other than simply the placement that we have just discussed, that would have led you to think that he had done what you mentioned?

Mr. SMART. Because, when he left the car on the lot, there was no attendant there, I guess was the main reason. He parked it in an odd place and up on an incline deal on the lot.

Mr. GRIFFIN. How was it an odd place?

Mr. SMART. Well, the lot is kind of uneven, and it was pretty close out to the center of the lot. It was where an old building had been torn down and left some concrete in one place, you know, like this.

Mr. GRIFFIN. Yes; would you—I am going to interrupt this just one second here while I get this exhibit marked, and I am going to ask you, while I mark this exhibit, would you draw on this piece of paper the intersection there, the intersection of Commerce, Main and Pearl, and then would you draw the parking lot where Ruby's car was found?

Mr. SMART. These are two parking lots. They are all together but separately operated.

Mr. GRIFFIN. Would you put the two streets in there so we would know which is Main and which is Pearl? Now, which is Commerce?

Mr. SMART. This is south.

Mr. GRIFFIN. All right, now. Let me ask you. Start over again here on another sheet of paper. I want to get more detail on here.

Mr. SMART. Oh, I see.

Mr. GRIFFIN. It would probably be easiest if you would draw the block, Commerce, Harwood, Pearl and Main, and indicate the location of the police department, the Western Union office and the parking lots on the corner of Main and Pearl, and then show us which parking lot Jack's car was in.

Mr. SMART. I am not a very good artist, now.

Mr. GRIFFIN. That is okay. Is that the parking lot?

Mr. SMART. Uh-huh.

Mr. GRIFFIN. All right.

Mr. SMART. Roughly about there.

Mr. GRIFFIN. All right. Now, we will go on the record. Now, you have drawn a diagram here, which I am going to mark, "Dallas, Texas, Lieutenant Smart, 3-25-64, Exhibit 5023," and that appears to be a diagram of the intersection of Main and Pearl with the Western Union marked and parking lot designated on the northwest corner of Main and Pearl and an automobile marked out there. Is that pencil mark of an automobile your best estimate of where you found Ruby's car?

Mr. SMART. That is approximately about where the car was parked.

Mr. GRIFFIN. Were there any other cars in the parking lot at that time?

Mr. SMART. At that time, the parking lot had opened officially; there were a few more cars; I don't recall where they were—and an attendant there.

Mr. GRIFFIN. I see. Were there any other cars parked next to Ruby's car?

Mr. SMART. No.

Mr. GRIFFIN. Other than—did you mention the location of these keys and the billfold to anybody?

Mr. SMART. Yes, sir.

Mr. GRIFFIN. Who did you mention that to?

Mr. SMART. Homicide detectives.

Mr. GRIFFIN. Do you remember any particular one?

Mr. SMART. There was two of them. I think it was Montgomery and his partner. I am not sure. There is some new men in there that I don't know too well. We brought all of that stuff in there, showed Captain Fritz what we had. He said, "Turn it over to them."

Mr. GRIFFIN. Did you write any report in connection with this search to the police department?

Mr. SMART. No, sir.

Mr. GRIFFIN. So there is no written report in the police department of what you just told me?

Mr. SMART. No, sir.

Mr. GRIFFIN. Would it be customary for anybody in the police department to have written a report of what you told them?

Mr. SMART. It could be. I gave all of my information to the homicide boys, because they were handling the case, turned the money over to them, the keys, and turned everything over to them.

Mr. GRIFFIN. Would you do this favor to me? Inquire of Captain Fritz, inquire and find out, if there is a report of what you told them, and, if so, give us a copy of it so we could have it for our file?

Mr. SMART. Sure.

Mr. GRIFFIN. Now, did you also find in the automobile some radio scripts or something that had to do—well, do you recall finding anything that appeared to be radio scripts or political propaganda materials?

Mr. SMART. No, sir; I tell you, Mr. Griffin. I was instructed to go over there and get the money—it seemed like that is what he was worried about, his money—and bring it over and put it in the property room or have it put into the property room, and when I ran into the billfold and the keys, I thought they should be over there, too, and I told the homicide officers they should go back and make a thorough check of the trunk and also that there might be some pertinent information that they wanted, and I understood that they did. What they found, now, I don't know. I think that the FBI went, too, but I never did go back and search anything else.

Mr. GRIFFIN. So you removed the billfold and the keys and the money?

Mr. SMART. Yes, sir; and a sack of miscellaneous stuff and the papers that were in the front seat pertaining to the assassination. I thought that might have some bearing. He had about four or five current——

Mr. GRIFFIN. Newspapers?

Mr. SMART. With the spreads on the front, newspapers.

Mr. GRIFFIN. Did they appear to be complete copies of a newspaper or were articles cut out?

Mr. SMART. Complete copies——

Mr. GRIFFIN. Do you remember——

Mr. SMART. Which they were placed in the property room.

Mr. GRIFFIN. I see; now, did you file an inventory on that?

Mr. SMART. No, sir.

Mr. GRIFFIN. Who did you turn that property over to?

Mr. SMART. To these two homicide officers. All I did was count the money and initial it, so I would know myself, Swain and I did, so that we would be protected on the amount of money. I understand that they listed all of the stuff and inventoried it and so on and so forth.

Mr. GRIFFIN. Did you testify at the Ruby trial?

Mr. SMART. No, sir.

Mr. GRIFFIN. Do you have any personal knowledge that Captain Fritz actually became aware of how you had found this billfold and the location of the keys?

Mr. SMART. Do I know what?

Mr. GRIFFIN. Do you know whether Captain Fritz ever actually became aware of where you had actually found the keys and the billfold?

Mr. SMART. We carried the stuff to his office and Swain told him that we had the money and his billfold and some things taken out of the car.

Mr. GRIFFIN. Uh-huh.

Mr. SMART. I heard him tell Captain Fritz that; yes.

Mr. GRIFFIN. So it is possible——

Mr. SMART. So he told these two fellows to take over.

Mr. GRIFFIN. So, if there were no actual written report of this ever made——

Mr. SMART. If there is, I imagine Montgomery—I believe it is Montgomery—I could be mistaken—but it is those two guys. I could find out their names.

Mr. GRIFFIN. Okay, okay; all right; did you talk with Ruby at any time?

Mr. SMART. No, sir.

Mr. GRIFFIN. Now, when you got back to the homicide office, saw Fritz, had Fritz talked with Ruby by then?

Mr. SMART. I couldn't tell you.

Mr. GRIFFIN. When you got back to the homicide office, had you been told by anybody how Ruby got into the basement?

Mr. SMART. No, sir.

Mr. GRIFFIN. Or did you hear any rumor about it?

Mr. SMART. Oh, I heard rumors; yes.

Mr. GRIFFIN. Did you—when was the first time that you heard that Ruby had told somebody how he got into the basement?

Mr. SMART. I am not sure where I heard it, but I heard it—some of the boys talking, said that they heard that he said that he walked by some officers down the ramp.

Mr. GRIFFIN. Do you remember which——

Mr. SMART. They were talking to Sam Pierce.

Mr. GRIFFIN. Yes; and do you remember which of the men you heard——

Mr. SMART. No, sir.

Mr. GRIFFIN. Making this statement? How would they—would you have heard this on the 24th, on the day that Ruby shot Oswald, or was it sometime later?

Mr. SMART. I don't remember, Mr. Griffin, now.

Mr. GRIFFIN. You remember that there were a number of rumors that began circulating right at the beginning, one that he came down the ramp,



one that he pushed a TV camera in, another one was that he used a press pass, another one is that he got out of a police car?

Mr. SMART. Yes.

Mr. GRIFFIN. Now, had you heard, are you able to remember whether you have heard, any or all of these rumors on Sunday when you were there?

Mr. SMART. No, sir; I can't. I just heard them somewhere around there, heard somebody—they weren't talking even to me, I don't think. Just discussing it or something.

Mr. GRIFFIN. Let me take this off of the record.

(Discussion off of the record.)

Mr. GRIFFIN. Let's go on the record here. I am also going to mark for identification as Exhibit 5024 a letter that you wrote to Chief Curry on November 27 with respect to what you heard down there in the basement.

Mr. SMART. Uh-huh.

Mr. GRIFFIN. I am going to mark it, "Dallas, Tex., Lieutenant Smart, 3-25-64, Exhibit 5024." Now, I want you to look at Exhibit 5021 and Exhibit 5024, and will you tell me if you have read those over?

Mr. SMART. Yes, sir; I have read those.

Mr. GRIFFIN. And you have already stated, I believe, as to each one of those that there is nothing that you would add or subtract from that or correct?

Mr. SMART. No, sir. If I knew something that would help you, I would tell you.

Mr. GRIFFIN. Would you sign each of those in some place where it is conspicuous and date it?

Mr. SMART. Just the front sheet?

Mr. GRIFFIN. That is right, just the place where I have got it marked. Now, would you also look at Exhibit 5022? That is the diagram of the basement. You put some markings on that. Would you sign that? Would you also take this Exhibit 5023, which you prepared? It is a diagram of the

intersection of Main and Pearl Expressway. Okay. I am much obliged, lieutenant.

Mr. SMART. Okay, Mr. Griffin. I wish I could help you.

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## **TESTIMONY OF JOHN ALLISON SMITH**

The testimony of John Allison Smith was taken at 2 p.m., on April 15, 1964, at the Post Office Building, Fort Worth, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. My name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission.

Under the provisions of President Johnson's Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission, in conformance with that Executive order and that joint resolution, I have been authorized to take a sworn deposition from you, Mr. Smith.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relative to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular, as to you, Mr. Smith, the nature of the inquiry today is to determine what facts you know about the death of Oswald, and any other pertinent facts you may know about the general inquiry, and particularly as to whether or not an individual by the name of Jack Ruby was seen by you on Commerce Street near the Dallas Police Department Building on November 24, 1963.

Now, Mr. Smith, I think that you are appearing here today as a result of a letter addressed to you from Mr. J. Lee Rankin, the General Counsel for the Commission, is that correct?

Mr. SMITH. Yes, sir.

Mr. HUBERT. Is it true that that letter was received by you more than 3 days ago from today?

Mr. SMITH. It was received last Friday.

Mr. HUBERT. And today, of course, is Wednesday?

Mr. SMITH. Yes.

Mr. HUBERT. All right, do you mind taking the oath? Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. SMITH. I do.

Mr. HUBERT. State your name.

Mr. SMITH. John Allison Smith.

Mr. HUBERT. How old are you, Mr. Smith?

Mr. SMITH. This being 1964, I am 42 at present.

Mr. HUBERT. Where do you reside?

Mr. SMITH. 22 Shadowbrook Lane in Hurst, Tex.

Mr. HUBERT. H-u-r-s-t?

Mr. SMITH. Yes, sir.

Mr. HUBERT. What is your occupation?

Mr. SMITH. I am classified as a TV technician.

Mr. HUBERT. Did you have the same occupation on November 22, 23, and 24, 1963?

Mr. SMITH. Yes, I did.

Mr. HUBERT. How long have you been employed by WBAP-TV?

Mr. SMITH. Since November the 22d, 1945.

Mr. HUBERT. Now were you on duty in your occupation in Dallas on November 23 and November 24, 1963.

Mr. SMITH. Yes.

Mr. HUBERT. Were you with the remote truck owned and operated by WBAP?

Mr. SMITH. I was.

Mr. HUBERT. Who else was with you in the operations during those days?

Mr. SMITH. Well, there was quite a large crew. The way we are situated, there is a basic crew that stays in the truck. That is "in person," that has to do with the picture, and one has to do with the sound, and that other person that is connected with the sound is Mr. Walker.

Mr. HUBERT. Ira Walker?

Mr. SMITH. Yes. In this particular case, ordinarily there is no cameraman near the structure because they are usually in the premises, but in this case we had a camera on top of the truck.

Mr. HUBERT. Who was manning that camera on November 24?

Mr. SMITH. That was Mr. Richey.

Mr. HUBERT. That is Warren Richey?

Mr. SMITH. Yes, sir.

Mr. HUBERT. Now those two gentlemen came down here with you today and are outside in the anteroom, is that correct?

Mr. SMITH. Yes, sir.

Mr. HUBERT. What was your duty during those days?

Mr. SMITH. Well, call it "riding gain on the video." What it amounts to is, to adjust the picture information, using an oscilloscope and that sort of thing.

Mr. HUBERT. Does that require that you be inside of the truck?

Mr. SMITH. Generally. You make short trips outside the truck. The one case that has to do with this particular thing, the man that is responsible for the video has to deal with the telephone company as to the class of picture that you are sending out and so on. It was during one of these particular trips away from the truck to contact the telephone company that I first saw this person that I believe to be the same man as Jack Ruby.

Mr. HUBERT. Tell us what time that was?

Mr. SMITH. Now here the times are going to have to be fairly accurate. As far as minutes and seconds, we don't watch things that closely, but the first time I saw this person has to be somewhere in the neighborhood of 8:15 a.m.

Mr. HUBERT. Now there must be some reason why you fix that time?

Mr. SMITH. We went to work at 7, and it takes approximately an hour to turn everything on and get it all warmed up to proper operation. Then we go through this thing of what we call "lineup procedure," on all the cameras, which we had done. So for that reason, I placed this time at approximately an hour after 7 a.m.

Mr. HUBERT. But when all that procedure is done, did you leave the truck?

Mr. SMITH. Not yet.

Mr. HUBERT. All right, go ahead.

Mr. SMITH. We had adjusted all these pictures, and in this particular instance, there were only two. We called the telephone company and they looked at our signal, and if they have any complaints or questions about the quality of the picture, they would tell you what it was. There was a complaint about the picture that I didn't agree with, so we generally get together and one of us looks at the other picture and talk it over and see what the thing amounts to. So I had gone around to the telephone company. It is a mobile home little trailer set up where they put the microwave equipment. Now this was on the west side of the city hall building there.

Mr. HUBERT. What street was it on?

Mr. SMITH. Well, what street?

Mr. HUBERT. Your truck was on Commerce Street, wasn't it?

Mr. SMITH. Yes. We were facing east.

Mr. HUBERT. That is a one-way street going east, and you were facing east? You were on the left-hand side of that street?

Mr. SMITH. Yes. And this trailer was around on the west side of this building in the middle of the block.

Mr. HUBERT. In other words, it was on the street which the back of your trucked faced?

Mr. SMITH. Right.

Mr. HUBERT. To go from your truck to that little vehicle you are talking about, you would have to turn left off of your truck, walk down to the corner and then turn right toward Main Street?

Mr. SMITH. That is true.

Mr. HUBERT. Now let me suggest to you that that street is called Harwood Street, and if you will keep that in mind, we can refer to it as Harwood Street. I think it will make it simpler from now on. How far on Harwood Street from the corner of Commerce was that little vehicle of the telephone company parked?

Mr. SMITH. I would estimate it would be almost exactly halfway up the block.

Mr. HUBERT. Do you remember seeing an entrance to the building around there?

Mr. SMITH. It is right in front of the main entrance, the west side.

Mr. HUBERT. The telephone company truck was right in front of the main entrance?

Mr. SMITH. Yes.

Mr. HUBERT. Was it on the same side of the street as the main entrance or the opposite side?

Mr. SMITH. Same side.

Mr. HUBERT. So you walked up to that truck?

Mr. SMITH. Yes.

Mr. HUBERT. And you figure that because of all you have told us, that considering the hour that it would have taken to warm up, considering that you came and started off at approximately 7 and then you got the complaints and you walked over, it must have been in the neighborhood of 8:15?

Mr. SMITH. Yes.

Mr. HUBERT. Did you see this man that we are talking about, or will in a moment, on the way to the telephone vehicle, or on the way back?

Mr. SMITH. It was on the way back.

Mr. HUBERT. How long did you stay at the telephone truck then?

Mr. SMITH. It was several minutes. We had to hook up a scope and he made some adjustments there. I think I would say I was at the truck at least 10 minutes.

Mr. HUBERT. Then you walked back?

Mr. SMITH. These are guesses.

Mr. HUBERT. You walked back to your truck?

Mr. SMITH. Yes, sir.

Mr. HUBERT. When did you first see this individual?

Mr. SMITH. When I got around the corner and almost back to our truck, this person was standing there on the sidewalk almost parallel with our truck. That is in the vicinity of the door of the city hall.

Mr. HUBERT. The door of the city hall, or of the police department building?

Mr. SMITH. Building. I refer to it as the city hall. What is the name of that officially?

Mr. HUBERT. There are two. Actually one is the city hall or the police department opening which is on the Harwood Street side of the automobile exit. The building on the other side of the Commerce Street exit from where your truck was is the municipal building.

Mr. SMITH. It wasn't the municipal building. We didn't go there until later.

Mr. HUBERT. So he was standing about at the staircase entrance to the Dallas Police Department Building on the sidewalk between the building and your truck, right?

Mr. SMITH. Yes.



Mr. HUBERT. How close did you get to him?

Mr. SMITH. Probably 30 feet.

Mr. HUBERT. All right, where was he standing, or what was he doing, rather?

Mr. SMITH. He was standing there looking up at the windows where we had some cables running through. You see, we had camera gear up on this floor where all the interrogation was taking place and all, and this person was just standing there looking at the cables and inquisitive, maybe.

Mr. HUBERT. Was there a crowd of people around there?

Mr. SMITH. No, sir; not at this time of day.

Mr. HUBERT. How was he dressed, do you know?

Mr. SMITH. Now here this probably conflicts with anything you heard, but I am talking about a particular person, and one that I saw had on a light grey topcoat and a light grey hat, shabby appearance, not neat, you know.

Mr. HUBERT. Did you notice whether he had a tie on?

Mr. SMITH. No, sir. I was looking at him from a quarter.

Mr. HUBERT. Did you get a full view of him?

Mr. SMITH. No, sir; not at this time. It is the type of person that we see often when we go out on an early morning remote. It is the person that is walking the street with no place to go. That is what he impressed me as being. And it kind of fit in that he was just standing looking up at these cables and doing nothing more than that.

Mr. HUBERT. Did you observe him do anything else?

Mr. SMITH. Not at that time.

Mr. HUBERT. Did you hear him say anything?

Mr. SMITH. No.

Mr. HUBERT. Did you see that same person later?

Mr. SMITH. Yes. Now here this is probably a more inaccurate guess than the other as to time, but it was later in the morning. At least an hour or maybe an hour and a half later than that. We were at a break and I was

sitting in the back of the truck, and to the best of my knowledge, Walker was in there, but it was during the time when you are not rehearsing and you are not on a standby condition. You are relaxed and you are not familiar with this old truck, but I will try to picture to you that it is an enclosed thing. It is kept rather dark for the picture's sake, and it gets warm in there. And sometime I will open these curtains or turn on the fan and get a little ventilation. This happens even in the wintertime. And I lowered the curtain on my side and there stood this same man there.

Mr. HUBERT. There can be no doubt in your mind that that was the same man you had seen earlier?

Mr. SMITH. That's right. Now this is the same particular person that I am talking about. They are one and the same. Same coat and same hat and same everything. And when I opened the curtain, this man is no less than 2 feet from the truck here, and he is standing there very nonchalantly, you know, and he says, "Have they brought Oswald down yet?"

Mr. HUBERT. Was there a glass window between you and this man?

Mr. SMITH. It wasn't pulled to. It was open.

Mr. HUBERT. It was open?

Mr. SMITH. It is a sliding, double-sliding window.

Mr. HUBERT. Then you had a full-face view of him?

Mr. SMITH. Yes, sir.

Mr. HUBERT. And that you were not in excess of 3 feet from him?

Mr. SMITH. Right.

Mr. HUBERT. Your face and his face were not separated by more than 3 feet at that point?

Mr. SMITH. That is true.

Mr. HUBERT. You heard him say, "Have they brought down Oswald yet?"

Mr. SMITH. "Have they brought Oswald down?" Yes, sir.

Mr. HUBERT. Did anyone answer him?

Mr. SMITH. I did. I don't know how to explain it. You see, my first reaction was one of a joke, you know. Here we were all sitting around here for days waiting for this news story to develop, and a man asks you have they brought Oswald down yet, and to me I am thinking if they had brought him down and taken him to the county building, why would we be here? And I started my answer like, "What do you think?" And then he repeated his question again, "Have they brought him down?" And he didn't call his name the second time, like it was understood.

Mr. HUBERT. In other words, he really asked twice? The first time he used Oswald's name and the second time he referred to him by the use of the pronoun "him," and the second time you told him, "No"?

Mr. SMITH. I said, "No, sir; they haven't brought him down, or we wouldn't still be sitting here." And he just turned and walked away.

Mr. HUBERT. Did you see him there after that day?

Mr. SMITH. Now I think I did, and I am not sure. But this is the same man. The third time was in a crowd, and I could tell you pretty well what time this was, because KRLD put a camera in front of our truck at approximately 10 a.m. That is another guess. But they had time to turn that camera on and get it warm before all the news broke, so it had to be somewhere in the neighborhood of 10 or maybe before. But after that camera was set up, KRLD had a couple of engineers out there lining up the camera.

Mr. HUBERT. That was on Commerce Street with the camera facing down into the Commerce Street ramp of the building, I take it?

Mr. SMITH. They had this thing facing—you see, our truck wasn't up to the ramp. There was room for a car almost between our truck and the ramp. Now they had this camera in that space right directly in front of our truck there, and they had a man standing on the sidewalk lining up their camera.

And this TV camera, it always draws a crowd, and at this time there was quite a few people just standing around. But this man that I am talking about, I am almost certain, was standing on the other side of the ramp.

Mr. HUBERT. Of the Commerce Street ramp?

Mr. SMITH. Yes; on the sidewalk, in a group of people, just standing there watching the proceedings.

Mr. HUBERT. Do you recall the time at which the police moved all of the people from the police department side of Commerce Street over to the other side?

Mr. SMITH. No; I don't. Someone asked me that before. I don't remember that taking place. You see, I was never told anything about the move. I was inside the truck, so I didn't have any connection with that.

Mr. HUBERT. Now when you saw this man, or think you did, possibly did, the third time, had you come out of your truck?

Mr. SMITH. Yes; I had been down in the basement. We were running some microphone cords, you see. I know this adds up to an awful long story how we move around so much, and it doesn't make sense to you, I am sure, but sometime during the morning Chief of Police Curry had told us that we would not be allowed to go through the double doors that separate the underground parking area from the underground office area. It is a double door there adjacent to the elevator opening, and he had told us that we would not be allowed beyond that door for any reason, but that he would give us a good place to put a camera and a microphone if we wouldn't interfere with his passageway from there on out to the parking lot.

So we had gotten permission to set this camera up right next to that door, and we were the first camera in line there, and we were going to run two microphones in there. That was the plan at that time, in case they should allow an interview. We had hoped that they might, which later didn't work, but in the running of this microphone, this microphone went through the downstairs door into the office area. They didn't go down the ramp or anywhere near the parking area, but in running the microphones and in helping the Walker crew check out the mikes and all coming back to the truck is when I had seen this man standing over there to the left.

Mr. HUBERT. It was to your left as you came out of the Commerce Street ramp?

Mr. SMITH. Yes, sir.

Mr. HUBERT. How close did you get to him then?

Mr. SMITH. It was even further than before. It was all the way; well, the length of our truck is 20 some odd feet, and it was a couple of car lengths more; so I was 40 or 50 feet.

Mr. HUBERT. You mean he was a couple of car lengths beyond the entrance, the Commerce Street exit, rather?

Mr. SMITH. Yes, sir.

Mr. HUBERT. Perhaps I misunderstood you. Did you see him immediately as you came out of the Commerce Street ramp exit, or when you got back to the truck?

Mr. SMITH. Now I didn't come up the ramp. I came up the steps.

Mr. HUBERT. Oh, I see. When you came up the steps, you went to the back of the truck?

Mr. SMITH. Right.

Mr. HUBERT. So the distance between you and him was the length of the truck plus the distance between the front of your truck to the ramp, plus the width of the ramp and some distance beyond that?

Mr. SMITH. That's right.

Mr. HUBERT. Making a total of, you think, roughly 40 feet or so?

Mr. SMITH. Yes.

Mr. HUBERT. And there he was not alone, but with other people, you thought?

Mr. SMITH. Standing in a crowd.

Mr. HUBERT. Did you see that individual any more?

Mr. SMITH. No, sir. Now you see it is hard for me to say that I could identify that man if he were to walk in this room right now, because, as far as I am concerned, I have only seen that face live one time. That is when he came to the window. And seeing somebody in films and all, that is kind of hard to associate.

Mr. HUBERT. Well, now, did you know Jack Ruby at all?

Mr. SMITH. No.

Mr. HUBERT. Now you have come, of course, to know the face and the man called Jack Ruby?

Mr. SMITH. Yes.

Mr. HUBERT. Have you see the face of Jack Ruby in person, live, face to face as it were?

Mr. SMITH. Not since; no.

Mr. HUBERT. Have you associated the face that you have come to know as Jack Ruby from photographs and pictures and so forth, with the man that we have been talking about for the last few minutes?

Mr. SMITH. Yes.

Mr. HUBERT. Tell us how that came about, and when?

Mr. SMITH. The closest that I ever made the association was when we were shown a mug shot, and when I saw that mug shot, it was a straight-on photograph, and it struck me as being the same face as the one in the window.

Mr. HUBERT. Did you have any spontaneous reaction in that regard?

Mr. SMITH. Well, I was convinced to myself that that was the same man.

Mr. HUBERT. Did you make any observations to anyone to that effect?

Mr. SMITH. No, but Walker did to me.

Mr. HUBERT. At that moment?

Mr. SMITH. A couple of seconds later; yes.

Mr. HUBERT. Was he looking at the mug shot, too?

Mr. SMITH. We were looking at the mug shot on a monitor in the truck. You see, they took the mug shot out of the file upstairs in the City of Dallas Police Department, brought the mug shots out into the corridor and told the TV people they could take stills of it for their own use, and then they would take the mug shot right back to the file, that no one could have it to copy or anything like that.

Mr. HUBERT. So, in other words, you simply had the people on the third floor put your camera unit on the mug shot?

Mr. SMITH. Right.

Mr. HUBERT. And then it came through to your monitor?

Mr. SMITH. That's correct.

Mr. HUBERT. Did you at that moment associate the face that you saw on the mug shots in the monitor with the man that you had seen earlier and which you have described to us?

Mr. SMITH. I did.

Mr. HUBERT. Was there any suggestion to you by Walker, or did you reach that opinion before he said anything?

Mr. SMITH. I had noticed a distinct similarity. Now there is a difference in that, when I saw him, he had on a hat, and that was the only reason that I would not say positively that that is the same man. But there is the only reservation that I have. But I had noticed on my own that there was a tremendous similarity right through here [indicating].

Mr. HUBERT. When the witness said "through here," he was placing one hand at the level of his forehead and the other hand under his chin.

Mr. SMITH. And a few minutes later, after this, Walker commented to me that the person on that mug shot looked to him like the same one that had been up to the truck a couple of times.

Mr. HUBERT. Had he told you prior to that that he had noticed this man come to the truck a couple of times?

Mr. SMITH. Not prior to that.

Mr. HUBERT. So that your observation of this man coming up to the truck a couple of times was independent of that of Walker, and it had not been communicated between you?

Mr. SMITH. That's correct.

Mr. HUBERT. Did you communicate your association between the mug shot of Jack Ruby and the man you had seen, to Mr. Warren Richey?

Mr. SMITH. Not at this time. Several days later we discussed it, and we seemed to be of the same opinion at that time.

Mr. HUBERT. You have never seen Ruby in person since?

Mr. SMITH. No, sir. Let me say this. The person that I am talking about is, I hate to say, dirty, an unkempt person that possibly could have slept with his clothes on, you see. He would be the opposite of what we see in these photographs of a well-dressed, natty person with stylish clothes. I am talking about the opposite type of person from that.

Mr. HUBERT. Now let me ask you this. Aside from your association of the man on the street and the mug shot of Ruby, have you in your mind compared your recollection of the man on the street with other photographs that you have seen of Ruby?

Mr. SMITH. No. I have never seen a photograph of Ruby that gives me that same picture; you know what I mean.

Mr. HUBERT. Well, the answer is really that you have made the comparison, but that you cannot feel as sure that the man on the street was the Jack Ruby that you saw in subsequent pictures?

Mr. SMITH. Yes.

Mr. HUBERT. At least as much as you feel that the man on the street was the Jack Ruby you saw in the mug shot?

Mr. SMITH. Right. Now I am drawing a comparison between the man in the window and the mug shot. Those two struck me as being the same. The pictures that I saw in film are not as familiar to me, you know. That is hard to explain. I don't guess it makes sense, does it?

Mr. HUBERT. Would you venture to say that the man on the street whose face came within 3 feet of yours and the man in the mug shot were, beyond any reasonable doubt, the same person?

Mr. SMITH. The only reason that I would have any doubt was this thing of the hat. Now I couldn't see his hairline and I couldn't see the complete face. With that thing in mind, I would not say that positively is the same man; I can't say that.

Mr. HUBERT. But you did see the complete face when you were within 3 feet of him?

Mr. SMITH. Yes. He had the hat on.



Mr. HUBERT. And the mug shot did not, I take it?

Mr. SMITH. That is true.

Mr. HUBERT. With that reservation, you would have no doubt it is the same person?

Mr. SMITH. That is true.

Mr. HUBERT. Mr. Smith, I have in my hand a copy of a report of an interview of you dated December 4, 1963, made by FBI Agents Haley and Madland which I have marked for identification as follows: "Fort Worth, Tex., April 15, 1964, Exhibit 5317, deposition of John A. Smith," and I signed my name below it. I would like you to read this, and after, I will ask you some questions about it.

(Mr. Smith reads report.)

Mr. SMITH. This thing doesn't refer to him asking the question twice, which I believe I mentioned before, but essentially that is true.

Mr. HUBERT. At the time that you were interviewed by Mr. Haley and Mr. Madland, were there other people present?

Mr. SMITH. Let's see; Mr. Haley, I believe, was the one that came over by himself. Then another—you see, I have been contacted three or four times, and I am not the best on names. We were contacted by two people at one time, and I believe they were from the city police department. I am not sure. I can't even remember when I met Mr. Davis. He was on one of those.

Mr. HUBERT. Do you recall an interview that was had by FBI agents in the studio at which Richey and Walker were present?

Mr. SMITH. Yes.

Mr. HUBERT. Well, addressing yourself to that interview, was it conducted individually or as a group?

Mr. SMITH. When I first got there, he was talking to one of the others.

Mr. HUBERT. He, or were there two people?

Mr. SMITH. Just one. There was one person conducting the interview, and he was talking to—I am not sure—he was, I believe, talking to Jimmy Turner, and I stayed there for several minutes. And this other interview was

concluded. Then I was interviewed separately, alone. Then Walker, I believe, came in, and he talked to both of us for several minutes. Then we went out to the garage where the truck is parked and he looked at the physical layout of the truck.

Mr. HUBERT. Well, did you ever have an individual interview with Haley and Madland, the FBI men?

Mr. SMITH. Yes; I had an interview with one FBI man, individually.

Mr. HUBERT. On the same day as the general?

Mr. SMITH. No. This was prior to this day I am talking about, and I believe that first man was Mr. Haley. I believe he was the first one there, and I am not sure about the name. But the first FBI man that contacted me—us, talked to us individually. At least he talked to me individually.

Mr. HUBERT. Have you ever been interviewed by any member of the President's Commission staff prior to this time?

Mr. SMITH. No, sir.

Mr. HUBERT. Have you anything else you want to add?

Mr. SMITH. No, sir; except to say that I hope that we make sense. When all this happened, we weren't paying any attention to time, faces, or anything else. And I do hope that what we do kind of makes sense to you. I am afraid it doesn't.

Mr. HUBERT. It does to me. Thank you very much, indeed.

Mr. SMITH. This whole thing has been kind of a horrible experience, hasn't it?

Mr. HUBERT. Glad you came over.

Mr. SMITH. If we can help in any way, just call us.

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## TESTIMONY OF JESSE M. STRONG

The testimony of Jesse M. Strong was taken at 12:35 p.m., on March 31, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of J. M. Strong [spelling] S-t-r-o-n-g.

Mr. Strong, my name is Leon Hubert. I'm a member of the advisory staff of the General Counsel of the President's Commission. Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and rules of procedure adopted by the Commission in conformance with that Executive order, I have been authorized to take a sworn deposition from you. I state to you that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular to you, Mr. Strong, the nature of our inquiry is to determine the facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, particularly in the field of the Western Union telegram that is involved in this matter. Now, Mr. Strong, I understand that you have appeared here today by virtue of a request made by a letter addressed to you by J. Lee Rankin, General Counsel of the President's Commission.

Mr. STRONG. Yes, sir.

Mr. HUBERT. I think that letter was received by you more than 3 days ago, is that correct?

Mr. STRONG. Yes.

Mr. HUBERT. Now, would you stand so that you may take the oath.

Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. STRONG. I do.

Mr. HUBERT. Would you state your name?

Mr. STRONG. Yes. Jesse M. Strong.

Mr. HUBERT. Your age?

Mr. STRONG. 62.

Mr. HUBERT. Your residence?

Mr. STRONG. 612 Edgewood Terrace, Fort Worth, Tex.

Mr. HUBERT. What is your occupation, sir?

Mr. STRONG. Relief night manager at Western Union.

Mr. HUBERT. How long have you been connected with Western Union Co. altogether?

Mr. STRONG. Since January 1923.

Mr. HUBERT. Near 40 years?

Mr. STRONG. Yes.

Mr. HUBERT. Over 40.

Mr. STRONG. Yes, sir; 41, to be exact.

Mr. HUBERT. Were you on duty with the Western Union Co. in Fort Worth on November 24, 1963?

Mr. STRONG. Yes; I was.

Mr. HUBERT. What office were you then located at?

Mr. STRONG. The Fort Worth office located at Main and Third, Fort Worth.

Mr. HUBERT. Now, I invite your attention to a document which, for purposes of identification, I am marking "Dallas, Tex., March 31, 1964. Exhibit 5121, Deposition of J. E. Strong——"

Mr. STRONG. J. M.

Mr. HUBERT. J. M. Strong [spelling] S-t-r-o-n-g.

Mr. STRONG. Yes.

Mr. HUBERT. I am placing my name on that document also, and so that the record may show that both of us are talking about the same document, I will ask you to put your name below it. I am also marking another document, "Dallas, Tex., March 31, 1964. Exhibit 5120, Deposition of J. M. Strong" placing my name on that document and I ask you to place your name on it so that the record may show that we are both speaking of the same document. Now, I hand you the document that has been identified for the record as Exhibit 5121, and ask you to state what that document is?

Mr. STRONG. It is a copy of the money order as received in Fort Worth at 12:56 p.m.

Mr. HUBERT. On what date?

Mr. STRONG. On November 24, 1963—1964.

Mr. HUBERT. 1964?

Mr. STRONG. I'm sorry. Yes, certainly, payable to Karen Bennett sent by Jack Ruby.

Mr. HUBERT. Did you have anything to do with that transaction?

Mr. STRONG. I actually paid the \$25 to Karen Bennett when she came into the office, approximately at 3:20 p.m., on the afternoon of November 24.

Mr. HUBERT. In what way do you identify this document? Is there anything on it?

Mr. STRONG. Yes, I asked her for identification and she presented her California driver's license No. 768114, and description, black hair, blue eyes, height 5 feet 2. Weight 105.

Mr. HUBERT. I notice that those figures that you have just read off appear on the face of that document, is that correct?

Mr. STRONG. Yes, sir.

Mr. HUBERT. In whose handwriting are those figures written?

Mr. STRONG. Mine. I wrote it.

Mr. HUBERT. What is the significance of a time stamp, apparently, reading as follows: "1963, November 24th, p.m. 12:54."

Mr. STRONG. After Karen Bennett had signed the receipt for the money and I handed her the \$25, I put this under the time stamp and stamped the time the transaction was completed.

Mr. HUBERT. Now, I think there you have reference to the other stamped time as—reading as follows:

"1963, November 24th, p.m. 3:25"?

Mr. STRONG. Yes, sir.

Mr. HUBERT. But, I——

Mr. STRONG. I'm sorry.

Mr. HUBERT. I asked you about the 12:54.

Mr. STRONG. I'm sorry, that is the time it was received in our traffic department located on the third floor of the building at Third and Main.

Mr. HUBERT. How is that time stamped?

Mr. STRONG. By a time stamp the same as we have in all the offices.

Mr. HUBERT. Is that one of those timeclocks that the Western Union——

Mr. STRONG. Yes, sir; it is.

Mr. HUBERT. To your knowledge, is that synchronized to national time?

Mr. STRONG. I am not too certain of that, because they can be set rather easily with a key, and they have—it is, I believe, an independent unit. Now, it might be synchronized as a group, but I don't believe with a master clock.

Mr. HUBERT. Well, are you sure of that?

Mr. STRONG. No, sir; I am not—I am not too positive of it, yet, it could be—very well be tied into the master circuit and synchronized the same as the clocks are.

Mr. HUBERT. Do you know of any clocks that are used in the Fort Worth office that are not synchronized into the national circuit?

Mr. STRONG. You are speaking of time stamps? No, no; they are all on the same circuit.

Mr. HUBERT. Would it be your opinion that all the time stamps on this Exhibit 5121 were stamped by machines that are synchronized to the national circuit?

Mr. STRONG. Yes, sir; I believe that is true.

Mr. HUBERT. Now, I think you have already testified that the other time stamp on here, to wit: "3:25 p.m., November 24th," indicates the time that the money was actually delivered, is that correct?

Mr. STRONG. Yes, as soon as I had paid her the money I turned that immediately and stamped that on the clock.

Mr. HUBERT. So that the time of delivery of the money and time of stamping are almost identical?

Mr. STRONG. Yes, but a few seconds intervening.

Mr. HUBERT. Do you have an independent recollection of this transaction, Mr. Strong?

Mr. STRONG. Nothing that was outstanding, sir, because as a party comes in inquiring for money and they have the money order, there is a routine form, almost has become routine, that we use to satisfy ourselves that the right party is receiving the money.

Mr. HUBERT. Do you know whether the person made inquiry about this money at any time prior to the time that the money was actually——

Mr. STRONG. That is apparently true although I did not talk with her myself, but in the lower right-hand corner you will find the letters, "WC", which indicates will-call. That was placed there by one of our telephone operators who had answered her inquiry and gone to the file and searched this out and told her that it was there and that she had informed her that she would call at the office for the money.

Mr. HUBERT. Did you get this information from that telephone operator?

Mr. STRONG. No; but it was on—it was given directly to me and I just recorded it on the form.

Mr. HUBERT. So that when this document came into your possession you knew from the numerals, or letters, “WC”, that there would be a call?

Mr. STRONG. Yes.

Mr. HUBERT. What is this?

Mr. STRONG. That is the initial JMS, and California driver’s license—California—Calif—driver’s license, BR, abbreviations.

Mr. HUBERT. Was that the identification on the driver’s license?

Mr. STRONG. Yes.

Mr. HUBERT. I show you on Exhibit 5121, stamped on an angle right below the word “Union,” in large letters what appears to be another stamp of time which is not quite clear to me. It seems to say, 1963, November 24th, and then something in parentheses, and 60 something. Can you tell us what that means?

Mr. STRONG. Yes; the 26 in parentheses is the digit time that the operator completed the transmission of the message in Dallas one day—the filing time on the application will show 12:26, that the time the operator completed sending it. This 1:04 p.m. is the time that the money order actually reached the main floor after the operator on the third floor released it. We stamp it again when it comes down again from the operating room—the money order department, and that was what the 1:04 p.m. means, actually received the money.

Mr. HUBERT. What is the parentheses?

Mr. STRONG. I say, the digit number when the operator in Dallas completed sending it. In other words, here the message was filed at 11:17 a.m., sent back to the traffic department and the operator put her stamp on it, and when it is completed then she puts the 2:06 in digits indicating that the transaction was completed now, which would have been 11:26 I assume.

Mr. HUBERT. That is to say that is when the telegram got back to Dallas?

Mr. STRONG. That is when it left Dallas.



Mr. HUBERT. Well, it would not have left Dallas on November 26.

Mr. STRONG. No; this is the digitized time.

In other words, either 11:26 a.m., or 12:26 p.m. indicating that the operator had completed the transaction at that time.

Mr. HUBERT. All right. Now, I show you another document which has been identified as Exhibit 5120, and ask you what this document represents?

Mr. STRONG. On certain money orders when the party is coming into the office to receive payment we make up what we call a receipt form. That, you will notice, is a money order receipt form with my initials, J. M. S., and D. L. L., and No. 4, the wire number out of Dallas.

Mr. HUBERT. Does this conform with the number on Exhibit No. 5121?

Mr. STRONG. Yes, the same number.

Mr. HUBERT. I see.

Mr. STRONG. And then, of course, the dates and the sender's name, the office from which the money order came. The date, the amount and the payee's name.

Mr. HUBERT. Now, who typed that out?

Mr. STRONG. I did.

Mr. HUBERT. On Exhibit 5120?

Mr. STRONG. Yes, I typed all of this.

Mr. HUBERT. Now, I see a signature there which purports to be that of Karen Bennett. Who signed——

Mr. STRONG. Karen Bennett supposedly is the one who came in and presented the California driver's license.

Mr. HUBERT. Now, you are referring to the figures on Exhibit No. 5120, is that right?

Mr. STRONG. Yes, sir.

Mr. HUBERT. Did she sign that in your presence?

Mr. STRONG. Yes, sir.

Mr. HUBERT. And I think you have already testified that from the time stamp on Document 5121, she would have signed that at approximately 3:25 p.m., on November 24, 1963, is that correct?

Mr. STRONG. That's correct, yes.

Mr. HUBERT. There is nothing on Exhibit 5120, that indicates the time of sending, is that right?

Mr. STRONG. No, sir.

Mr. HUBERT. Are you able to state, however, that the time stamped on 5121, indicates that the transaction was completed at 3:25 p.m., on November 24, 1963?

Mr. STRONG. Yes, immediately after Karen Bennett signed this receipt I stamped——

Mr. HUBERT. "This receipt," to wit: Exhibit 5121?

Mr. STRONG. Then I stamped the Exhibit 5121, to show the time that payment had been made.

Mr. HUBERT. And that's all you know about the matter?

Mr. STRONG. Yes, sir; that's right.

Mr. HUBERT. Do you remember if Karen Bennett was alone or was there someone with her?

Mr. STRONG. She was alone. There was no one with her that came into the office.

Mr. HUBERT. Had she been waiting around?

Mr. STRONG. No, sir; no. She walked in and I immediately waited upon her. Asked her if I might help her, and she told me she was expecting a money order, and, of course, I went through the money order file and paid her upon her identification.

Mr. HUBERT. Had you prepared the money order receipt, which is identified as Exhibit 5120, prior to the time she came in?

Mr. STRONG. Yes, we do that as quickly as they come in, as we find the time to do so.

Mr. HUBERT. Now, we have been speaking about Exhibit 5120, in a sense that might indicate we were dealing with the original document. I asked you if it is not true that the actual piece of paper that we have identified as 5120, is a photostatic copy of it?

Mr. STRONG. Yes, it is. The original would be green in color.

Mr. HUBERT. I see. There are some initials on 5120 following the words, "Issuing employee." Whose initials are those?

Mr. STRONG. Those are my initials indicating that I paid the money order.

Mr. HUBERT. Mr. Strong, have you had any interviews with any members of the President's Commission other than myself in regard to this matter?

Mr. STRONG. No, I have not.

Mr. HUBERT. Now, there was an interview between you and me prior to the commencement of this deposition earlier this morning?

Mr. STRONG. Yes, sir.

Mr. HUBERT. In this deposition, have we covered everything that was covered in the course of our interview?

Mr. STRONG. I think so. I don't believe there is anything I can add there.

Mr. HUBERT. Do you know of any inconsistencies in our interview that have not been developed in the course of this deposition?

Mr. STRONG. No, sir; I do not.

Mr. HUBERT. This Karen Bennett came in in a normal manner and left in a normal manner and exhibited no emotion whatsoever?

Mr. STRONG. Yes.

Mr. HUBERT. Did you know of the shooting of Oswald when she came in?

Mr. STRONG. No, sir; I did not. I have been on duty since 7 o'clock that morning with no means of communication whatsoever. In fact, I did not know it until after payment of this money order had been made. One of the messengers mentioned the fact that Oswald had been killed, and that a party by the name of Rubenstein had shot him, which couldn't register with me at all, because I did not connect the names.

Mr. HUBERT. Did Karen Bennett indicate in any way that she knew that Ruby had shot Oswald?

Mr. STRONG. No, sir; there was no conversation between us at all other than the conversation in respect to the money order.

Mr. HUBERT. And the identification?

Mr. STRONG. Pardon me?

Mr. HUBERT. And the identification?

Mr. STRONG. And the identification. After the transaction she left the office and there was no occasion of that—there was no further conversation.

Mr. HUBERT. Thank you very much, sir.

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## **TESTIMONY OF IRA N. WALKER, JR.**

The testimony of Ira N. Walker, Jr., was taken at 1 p.m., on April 15, 1964, at the Post Office Building, Fort Worth, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Ira N. Walker, Jr.

Mr. Walker, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission on the Assassination of President Kennedy.

Under the provisions of President Johnson's Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission, in conformance with that Executive order and that joint resolution, I have been authorized to take a sworn deposition from you, Mr. Walker.

I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relative to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Walker, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, and particularly about the whereabouts of Jack Ruby near the Police Department Building in Dallas on November 24.

Now, Mr. Walker, I believe you appeared here today by virtue of a request made in writing to you by Mr. J. Lee Rankin, General Counsel of the President's Commission. For the record, would you state whether you received that letter?

Mr. WALKER. I did; yes.

Mr. HUBERT. When?

Mr. WALKER. Must have been last Friday.

Mr. HUBERT. It was in excess of 3 days ago?

Mr. WALKER. Yes.

Mr. HUBERT. All right, so would you mind taking the oath?

Mr. WALKER. I will.

Mr. HUBERT. Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. WALKER. I do.

Mr. HUBERT. Would you state your name, please, sir.

Mr. WALKER. Ira N. Walker, Jr.

Mr. HUBERT. What is your age, sir?

Mr. WALKER. Thirty-five.

Mr. HUBERT. And your address?

Mr. WALKER. 6913 Hightower.

Mr. HUBERT. Fort Worth?

Mr. WALKER. Fort Worth.

Mr. HUBERT. What is your occupation?

Mr. WALKER. Broadcast technician.

Mr. HUBERT. What station?

Mr. WALKER. WBAP-TV.

Mr. HUBERT. How long have you been so employed?

Mr. WALKER. Since 1948.

Mr. HUBERT. Were you on duty in Dallas in connection with the visit of the President of the United States on November 22?

Mr. WALKER. I was on duty after the assassination of the President.

Mr. HUBERT. When did you first go on duty?

Mr. WALKER. In Dallas, the afternoon of the shooting. We went to Parkland Hospital.

Mr. HUBERT. When you say, "we," who do you mean?

Mr. WALKER. Our remote crew truck and crew of about four or five of us, the first day.

Mr. HUBERT. You say a remote truck? Is that one of those trucks like a Greyhound bus that you haul the equipment?

Mr. WALKER. It is a little smaller than that, but it is the same.

Mr. HUBERT. What does your crew generally consist of? Or what did it consist of during that period we are talking about?

Mr. WALKER. Well, the first day, that was a rush deal and there wasn't but four of us available, I think. And the second day, there was probably about eight of us, I imagine.

Mr. HUBERT. Now the first day, you mean the first day after the President's assassination?

Mr. WALKER. Yes. Just after the assassination we took the truck with the men available and went.

Mr. HUBERT. That was on the 22d?

Mr. WALKER. Yes, sir.

Mr. HUBERT. So when you talk about the first day, you mean the day of the assassination?

Mr. WALKER. The day of the assassination.

Mr. HUBERT. When you say you "took" and "went," did you go from Fort Worth?

Mr. WALKER. From Fort Worth.

Mr. HUBERT. To Parkland Hospital?

Mr. WALKER. We had already been to the President's breakfast here in Fort Worth, and I covered that for radio here in Fort Worth. There was a crew with the TV truck here in Fort Worth, and they had already gone home

at the time the President was assassinated, and I was still on duty, and they were called back in.

Mr. HUBERT. Well, could you name for us the people who were on the remote truck on the first day after the assassination of the President? That is to say, November 22.

Mr. WALKER. Well, let's see, Johnny Smith and Warren Richey.

Mr. HUBERT. And yourself?

Mr. WALKER. And myself, and Dan Smith went that first day, I think. I don't think he went any more.

Mr. HUBERT. Now each of you all had a definite function to perform, of course?

Mr. WALKER. Yes.

Mr. HUBERT. So that we get it for the record and need not repeat it with the other witnesses, tell us the functions of each one of you on the truck.

Mr. WALKER. I was to handle audio, Johnny Smith was the video engineer, and the other two men were cameramen.

Mr. HUBERT. One of them drove the truck, I take it? Or did you have another man to drive?

Mr. WALKER. Yes; Johnny Smith was driving the larger truck, and I was in the little panel truck. And Supervisor Tom Bedford was driving the panel truck.

Mr. HUBERT. Is that on the first day?

Mr. WALKER. Yes.

Mr. HUBERT. Now, let's pass to the second day. That is to say, Saturday the 23d. And by way of orientation, let me state that by that time, of course, the President was dead and Oswald had been charged both with the assassination of Officer Tippit and President Kennedy, and was in custody at the Dallas Police Department Building on Commerce, the building bounded by Commerce and Main on two sides, and Harwood on the front.

Now, on that second day, the 23d, did you have occasion to be on duty with the remote truck that day?



Mr. WALKER. Yes; I was.

Mr. HUBERT. All day long?

Mr. WALKER. Well, we were called out of bed at 1 o'clock Saturday morning. Let's see, we burnt the engine up on the remote truck going to Parkland Hospital the day before, and it had to be towed over there by a wrecker, and I don't know exactly what time we got to the Dallas City Hall. It was probably something like 3 in the morning.

Mr. HUBERT. Where did you park the truck, the remote truck?

Mr. WALKER. On the south side. That would be on Commerce Street, I believe. Right in front of the entrance.

Mr. HUBERT. The Commerce Street entrance?

Mr. WALKER. Yes.

Mr. HUBERT. How far away from the front, if you remember, roughly?

Mr. WALKER. Let's see, there was, I believe, another remote truck between our truck and the corner.

Mr. HUBERT. That is to say the corner of Commerce and Harwood?

Mr. WALKER. Yes.

Mr. HUBERT. You were closer to the Commerce Street entrance than that truck was?

Mr. WALKER. Yes; we were directly in front of the Commerce Street stairway.

Mr. HUBERT. The Commerce Street exit from the basement is just beyond the Commerce Street stairway in the direction of Pearl Street, the Pearl Expressway?

Mr. WALKER. That's right.

Mr. HUBERT. So I suppose it is fair to say that the front of your truck was not far from the Commerce Street exit?

Mr. WALKER. Well, the front of our truck was—there was just room enough for a motorcycle to park between the front of our truck and the driveway going to the basement of the city hall.

Mr. HUBERT. Of course, you had cameras on the inside, I take it?

Mr. WALKER. Yes, sir.

Mr. HUBERT. And on the outside, too?

Mr. WALKER. And one on top of the truck.

Mr. HUBERT. Did the truck stay there all that day?

Mr. WALKER. Yes; it stayed there all that day and that night.

Mr. HUBERT. What about the next day, the 24th?

Mr. WALKER. Yes; it was there all day the 24th up until, let's see, I won't tell you—I want to tell you very much, but this is very hard. That was a lost week for me. We slept very little, and most of the time I couldn't even tell you what day it was over there, so it is difficult to say.

Mr. HUBERT. Let's put it this way. To your knowledge, the truck never moved from its position as you have described it on Commerce Street until after the assassination of Oswald?

Mr. WALKER. That's right.

Mr. HUBERT. Were you on duty continuously?

Mr. WALKER. The first day on Saturday, let's see, we came in at—they woke us up about a little after 1 in the morning, and I was there until, I know, after 10 that night.

Mr. HUBERT. Saturday night?

Mr. WALKER. Yes, sir; I was going to bring that schedule with me and I forgot. It was in last year's book.

Mr. HUBERT. Then at what time did you go to work on Sunday morning?

Mr. WALKER. I don't remember. It was early, but I don't remember.

Mr. HUBERT. Would you say it was daylight?

Mr. WALKER. It was right at daylight, I imagine. There was only one day that we came in late, and I believe it was later on in the week. We were over there early every morning except one, and we came in at 9 o'clock, that morning, but I believe it was later on on Monday or Tuesday.

Mr. HUBERT. Did you know Jack Ruby or of his existence prior to, say, the assassination of the President?

Mr. WALKER. No; I did not.

Mr. HUBERT. When did you first see a man that you now know to be Jack Ruby, if you did see such a man?

Mr. WALKER. I did see him, and I would say it was sometime after 10:30 in the morning that Oswald was shot.

Mr. HUBERT. That is to say, of the 24th?

Mr. WALKER. Let's see; yes.

Mr. HUBERT. Now you didn't know him at the time you saw him?

Mr. WALKER. No; I did not.

Mr. HUBERT. Would you state for the record just how you came to see this person?

Mr. WALKER. I was sitting in the truck at the audio board. We were waiting for Oswald to be brought down. The press had been told he would not be transferred until after 10:30 in the morning. That is the only thing I can tie the time down to, because we were on a standby basis waiting for Oswald to be moved, and Ruby came to the window of the truck and asked, "Has he been brought down yet?" He was standing on the sidewalk.

Mr. HUBERT. You didn't know him to be Ruby at that time?

Mr. WALKER. No; I did not.

Mr. HUBERT. Can you tell us how he was dressed?

Mr. WALKER. No; I can't. All I could see was his face. It is a very small window. We have curtains, and I think it was one corner unsnapped.

Mr. HUBERT. Did he have a hat on?

Mr. WALKER. I don't know. He came to the window twice.

Mr. HUBERT. How far apart were the two times?

Mr. WALKER. I do not know. It was after 10:30.

Mr. HUBERT. Do you think he could have come to the window earlier than 10:30?

Mr. WALKER. I don't know. I don't believe at the time I saw him at the window, well, I am almost sure it was after 10:30, because I know I was sitting there. We were on a standby basis and waiting, and he did not mention Oswald's name, that I can remember.

It was, he just said, "Has he been brought down yet?" And everybody knew who he was talking about, or I did.

Mr. HUBERT. Now have you seen Ruby since?

Mr. WALKER. Yes.

Mr. HUBERT. How many times, do you suppose?

Mr. WALKER. I don't know. It was over—I was a witness during the trial. I saw him before I was a witness, and I saw them bring him into the courtroom one morning.

Mr. HUBERT. In other words, all the times you saw him were in connection with your function as a TV man covering the trial?

Mr. WALKER. No, sir; I was asked by the district attorney's office to go look at Jack Ruby through the door of the courtroom prior to being a witness, to make sure that he was the same man that I saw come to the truck. And then I saw him while I was a witness.

Mr. HUBERT. When you did look through the door at the district attorney's request and saw Jack Ruby, what opinion did you reach?

Mr. WALKER. I knew it was the same man.

Mr. HUBERT. And you subsequently saw him in the court when you testified?

Mr. WALKER. Yes.

Mr. HUBERT. Are you willing to say that the same man who was Jack Ruby in the courtroom was the man whom you described as coming up to the window?

Mr. WALKER. That was the same thing I told the Dallas district attorney, that the only reason I remember Jack Ruby is because within minutes after

the shooting we had mug shots of Ruby on camera from the third floor of the city hall. And if it hadn't been for those mug shots being in such a close time after he came to the window, I probably would never have remembered seeing him.

Mr. HUBERT. Would you tell us the mental process you went through in relating the face at the window to the mug shots?

Mr. WALKER. Well, about four of us pointed at him at the same time in the truck. I mean, we all recognized him at the same time.

Mr. HUBERT. As being the man?

Mr. WALKER. That had come to the truck.

Mr. HUBERT. It is your thought that that man who had peeked through the window had done so only a matter of minutes before, or would it have been an hour?

Mr. WALKER. I can't say. I don't know.

Mr. HUBERT. But as you sit here now, your best impression is that—better still, your opinion is that the man who did look through that window and asked you, “Have they brought him down yet?” was Jack Ruby?

Mr. WALKER. Yes.

Mr. HUBERT. As a matter of fact, you have confirmed that a number of times, to wit, almost immediately after when you saw the mug shots on TV, and then at least on two other occasions when you looked in through the window in the courtroom, and again when you were face to face with him in the courtroom?

Mr. WALKER. Yes.

Mr. HUBERT. Is there any possibility that your seeing him as you have described it through the window, could have been on the previous day?

Mr. WALKER. No. He may have been there, but I don't remember him.

Mr. HUBERT. This event that you are talking about did not take place on the previous day?

Mr. WALKER. No. I have heard people say that he was on, that they had seen him on the sidewalk, but I did not, to my knowledge. There were so

many people; a lot of people asked questions, and most of the time I say, "I don't know," hoping they will go on.

Mr. HUBERT. As I understand, the thing that makes it certain in your mind that he was Jack Ruby is because of the association of the face that peered to you in the window and the mug shots that came through the camera right after?

Mr. WALKER. That's right.

Mr. HUBERT. The two link together in your mind?

Mr. WALKER. That is the only thing. I would not have remembered him if it had not been for the mug shots. There were so many people, there is no way I believe that I could have remembered him. And if he hadn't come back to the window the second time, I might not have linked it with the mug shots.

Mr. HUBERT. How much time was there, do you think, between the two times?

Mr. WALKER. I don't know. I really don't. I wish I could help but anything I'd say would be a wild guess.

Mr. HUBERT. Mr. Walker, I want to show you a report of an interview that was had of you by FBI Agents Earle Haley and Robley D. Madland on December 4, 1963, which I have marked for identification as Fort Worth, Tex., April 15, 1964, Exhibit 5315, deposition of Ira Walker, under which I have signed my name. I would like you to read it, sir, after which I am going to ask you if there are any errors or any corrections you want to make, anything that has been omitted, or modifications that you believe to be necessary.

Mr. WALKER. [Reading report.]

No. I wasn't the one that said, "I saw him between 7:30 and 8 a.m."

Mr. HUBERT. That FBI report which has been identified as 5315, contains the statement in the middle paragraph reading as follows, to wit:

"Walker said that on the morning of November 24, that the first time he recalled seeing Jack Ruby was shortly before the mobile unit was set up, which would have been between 7:30 and 8 a.m. Walker said that he first

saw Ruby shortly after the armored truck was backed into the basement of the Police Department.” Now would you address your comments to that statement, Mr. Walker?

Mr. WALKER. I believe one of the other boys said he saw him between 7:30 and 8, but it was not me because I don’t remember seeing him. But as far as the association with the armored truck, now the armored truck was not backed into there until around 10:30.

Mr. HUBERT. Your thought is that when you saw Ruby the first time——

Mr. WALKER. Was after 10:30.

Mr. HUBERT. Was after the armored truck was backed in?

Mr. WALKER. It was after I was on a standby basis and sitting in my seat in the truck just waiting for somebody to roll tape.

Mr. HUBERT. What does the standby basis mean in the TV industry?

Mr. WALKER. It means to stand by to go on the air any time on call at a moment’s notice, because we had been told he would be moved after 10:30.

Mr. HUBERT. Do you have any distinct recollection that the first time you saw him was after the armored truck was moved in?

Mr. WALKER. I don’t believe the armored truck was backed in until after 10:30.

Mr. HUBERT. So as I understand it then, with respect to the language in Exhibit 5315, there are really two corrections that you wish to make. One is concerning the time 7:30 to 8, and the other is concerning the relation between your seeing Ruby and the truck backing into the ramp?

Mr. WALKER. Yes, sir.

Mr. HUBERT. Your thought, then, as I understand, is that it was considerably later than 7:30 or 8 o’clock, in fact, it was about 10:30?

Mr. WALKER. Or after.

Mr. HUBERT. Or after, but you think that it was before the armored truck backed in?

Mr. WALKER. I don’t know.

Mr. HUBERT. It could be either?

Mr. WALKER. It could be either; yes.

Mr. HUBERT. You did see him twice, though?

Mr. WALKER. I did see him at the window twice.

Mr. HUBERT. It is possible that the first time you saw him, the armored truck had not backed in and the second time it had?

Mr. WALKER. It is possible; yes.

Mr. HUBERT. Would your best guess be, considering—well, I don't want you to guess. Would your best impression or opinion now be that the time that you first saw Ruby was less than an hour before the shooting of Oswald took place?

Mr. WALKER. Yes.

Mr. HUBERT. And that thereafter, the time that you saw him on the second time would have been less than an hour, too?

Mr. WALKER. Yes.

Mr. HUBERT. You do not have any recollection now, as I understand, as to the time interval between the two times you saw him?

Mr. WALKER. No, sir; I don't know.

Mr. HUBERT. I think you have said that—perhaps we should repeat what he told you on each occasion or what he said or asked?

Mr. WALKER. As near as I can remember, he just asked, "Has he been brought down?" or "Have they brought him down yet?"

Mr. HUBERT. On both occasions?

Mr. WALKER. Yes; and I am not sure, I probably told him "I don't know." It says here that I said, "No." But I have no way of knowing yes or no, really, which is true. We had cameras, and I could see what the cameramen were doing, but I still really have no way of knowing.

Mr. HUBERT. Perhaps you'd better describe for the record what you meant by mug shots?



Mr. WALKER. Well, as I understand it, from listening on the intercom, we were told we were going to get pictures of Jack Ruby and that we would have to get them right away because our people did not have the pictures and would not be allowed to have them, and I assumed that someone from the police department would be holding those pictures, because they—we were told to get the tapes to rolling, because we wouldn't get a second shot at him. And it would just be, get them or miss them, and I presume that someone in the police department was holding those pictures.

Mr. HUBERT. In front of a camera inside the jail?

Mr. WALKER. Yes, sir.

Mr. HUBERT. It was that mug shot that you remembered talking about that immediately brought to your mind "this is the man I saw just before the shooting of Oswald, or sometime before the shooting"?

Mr. WALKER. Yes.

Mr. HUBERT. Now have you been interviewed by any member of the President's Commission before this date, sir?

Mr. WALKER. No; only there were some FBI men came to the station, and I believe they are the men you mentioned here.

Mr. HUBERT. I meant members of the President's Commission?

Mr. WALKER. No, sir; not to my knowledge.

Mr. HUBERT. I have omitted to explore one area. You were called as a witness in the trial of Ruby?

Mr. WALKER. Yes.

Mr. HUBERT. Do you recall the general nature of your testimony then?

Mr. WALKER. To state the same thing that I have here, that Jack Ruby came to the window of the truck.

Mr. HUBERT. You were called by the State?

Mr. WALKER. Yes, sir.

Mr. HUBERT. To the best of your recollection, has your testimony today been any different from that which you gave at the trial of Ruby?

Mr. WALKER. No, sir.

Mr. HUBERT. Has there been anything omitted here that was brought out in the trial of Ruby when you were a witness?

Mr. WALKER. No; in fact, it has been covered much better. The State didn't bring out the fact that we saw mug shots, and the defense kind of tore me up on that.

Mr. HUBERT. Well, when the defense tore you up, I suppose what they were trying to do is say you simply couldn't recall?

Mr. WALKER. They asked me how long I had known Ruby, which I did not know him, and they were trying to——

Mr. HUBERT. Did you give the explanation as to the mug shots?

Mr. WALKER. No, sir; I did not.

Mr. HUBERT. But it is a fact that the mug shots, that your connection between the mug shots did in fact take place?

Mr. WALKER. Yes, sir; that is the only real tie, is the fact that we had the mug shots. I probably wouldn't have remembered the man coming to the window if it hadn't been for the mug shots. I told District Attorney Wade that before I went in as a witness, but he didn't follow it up.

Mr. HUBERT. Well, to wrap it up, you are saying under oath now that the man at the window and the man in the mug shots and the man in the courtroom identified as Jack Ruby were one and the same person?

Mr. WALKER. Yes, sir.

Mr. HUBERT. You have already testified that you recall the interview of you on December 4, by FBI Agents Earle Haley and Robley Madland. At the time you were interviewed, were you interviewed by those agents alone?

Mr. WALKER. No.

Mr. HUBERT. How did the interview take place?

Mr. WALKER. The two agents, myself, Warren Richey, Johnny Smith, and there might have been some others, Jimmy Turner was there part of the

time—of course, he introduced us to the FBI men, and I think he had already talked to him previously.

Mr. HUBERT. All of you were interviewed as a group rather than individually, is that right?

Mr. WALKER. That's right.

Mr. HUBERT. Were you shown a copy of the notes relative to what your statements were?

Mr. WALKER. No; I have seen no notes.

Mr. HUBERT. You have never seen any draft of the documents which have been identified as Exhibit 5315?

Mr. WALKER. Today is the first time I have ever seen that.

Mr. HUBERT. During the interview, did the FBI agents ask each of you to speak alone, or was it a composite sort of interview?

Mr. WALKER. It was composite. We spoke as we remembered the situation. I mean, everybody described the whole thing as it progressed along as best he could.

Mr. HUBERT. Do you remember what the FBI did by way of segregating the identification of each of you?

Mr. WALKER. No, sir; I don't know.

Mr. HUBERT. Have you anything else to say?

Mr. WALKER. No, sir.

Mr. HUBERT. All right, thank you very much.

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## **TESTIMONY OF JOHN L. DANIELS**

The testimony of John L. Daniels was taken at 10 a.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of John L. Daniels.

Mr. DANIELS. That's right.

Mr. HUBERT. Mr. Daniels, I have to read some things to you. Mr. Daniels, my name is Leon D. Hubert, and I am a member of the advisory staff of the General Counsel of the President's Commission. Under the Provisions of the Executive Order 11130, dated November 29, 1963, the Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with that Executive order and the joint resolution, I have been authorized to take the sworn deposition of you. I state to you now that the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relative to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald. In particular as to you, Mr. Daniels, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry including the parking of the car that belonged to Mr. Ruby at the parking lot next to you, I think.

Now, Mr. Daniels, I understand that you received a letter from Mr. J. Lee Rankin, General Counsel of the Commission asking you to appear to have your testimony taken by this deposition. Did you receive that letter over 3 days ago from today?

Mr. DANIELS. It has been longer than that.

Mr. HUBERT. It has been longer than that? All right, now, will you stand and take the oath, please, and raise your right hand.

Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. DANIELS. Yes, I do.

Mr. HUBERT. Will you state your name, please. Sit down, please.

Mr. DANIELS. My name is John L. Daniels.

Mr. HUBERT. And your age?

Mr. DANIELS. My age is 32.

Mr. HUBERT. Where do you live, Mr. Daniels?

Mr. DANIELS. 2314 South Boulevard.

Mr. HUBERT. South Boulevard, Dallas, Tex.?

Mr. DANIELS. That's right.

Mr. HUBERT. What is your present occupation? Where do you work?

Mr. DANIELS. Working out of the Adolphus Garage now.

Mr. HUBERT. Adolphus Garage? That is connected to the Adolphus Hotel?

Mr. DANIELS. Across the street from it, but just the name of it. The one connected to the Adolphus Hotel is onto the building.

Mr. HUBERT. I see, is that located at 1326 Commerce Street?

Mr. DANIELS. That's right.

Mr. HUBERT. Now, on November 24, 1963, which was a Sunday, where were you working?

Mr. DANIELS. Working for Norton parking lot.

Mr. HUBERT. Working for Ralph Norton, Norton's Auto Park?

Mr. DANIELS. Yes, auto park right across from Western Union.

Mr. HUBERT. That is Main Street?

Mr. DANIELS. Main Street, 2335 Main.

Mr. HUBERT. Is there another parking lot next to yours?

Mr. DANIELS. The one just—used to be the same lot, but divided it up.

Mr. HUBERT. Do you know a man by the name of Theodore Jackson?

Mr. DANIELS. Yes, sir.

Mr. HUBERT. Who is he?

Mr. DANIELS. He is the colored fellow working in the next block to me. On Sunday our lots work together.

Mr. HUBERT. What time did you go on duty at the parking lot, Mr. Daniels, on November 24?

Mr. DANIELS. November 24?

Mr. HUBERT. That was the day that Oswald was shot in the jail.

Mr. DANIELS. It was somewhere around, I imagine it was after the shot was made when I went on, and went down in the city hall, I imagine it was about——

Mr. HUBERT. Well, I am talking about the time you went to work.

Mr. DANIELS. Time I went to work?

Mr. HUBERT. Yes.

Mr. DANIELS. Somewhere around 12 o'clock, I believe it was. I never did pay much attention to the time.

Mr. HUBERT. Where did you come from when you went to work?

Mr. DANIELS. I came from home.

Mr. HUBERT. You hadn't been hanging around the Main Street prior to that, had you?

Mr. DANIELS. No; I hadn't been hanging around there.

Mr. HUBERT. Now, what time——

Mr. DANIELS. I lived about a street—I was staying at the Pacific Hotel, and had the radio on and heard about the shooting and got up and come on

out of there then, about 2 blocks from there.

Mr. HUBERT. In other words you were in your home at the Pacific Hotel on Pacific Avenue, Pacific Street and turned the radio on and heard the shooting?

Mr. DANIELS. That's right.

Mr. HUBERT. Then you came down to the parking lot?

Mr. DANIELS. Ambulance came by blowing, and I got up and came on down to the parking lot then.

Mr. HUBERT. You saw the ambulance go by?

Mr. DANIELS. I heard it blowing.

Mr. HUBERT. Oh, I see.

Mr. DANIELS. They had the sirens blowing was all.

Mr. HUBERT. I see. Do you know Mr. Jack Ruby?

Mr. DANIELS. No, sir; I don't know him.

Mr. HUBERT. Do you know anything about the parking of his car on Mr. Norton's lot?

Mr. DANIELS. No, sir; car was parked next lot to it.

Mr. HUBERT. Did you see it?

Mr. DANIELS. Yes; I seen the car.

Mr. HUBERT. How did you know it was Mr. Ruby's car?

Mr. DANIELS. Well, detectives come down and picked up the car. Me and this Jackson was there together and he put a ticket on the car so me and him went over to the car and he got a dime to call—to bring the key down there to unlock the car.

Mr. HUBERT. Who did that?

Mr. DANIELS. One of the detectives brought that letter you all sent to me.

Mr. HUBERT. He got a key, you say?

Mr. DANIELS. He called back to the city hall for them to bring Jack Ruby's key down. They searched the car good. The car was open. He had a dog laying in the car.

Mr. HUBERT. The windows were open?

Mr. DANIELS. One was cracked, and didn't lock the car. The trunk was locked.

Mr. HUBERT. The trunk was locked but the doors of the car were not locked and there was a little crack in the window for air, I suppose, for the dog?

Mr. DANIELS. Yes, sir.

Mr. HUBERT. Now, when the detectives came they could open the car? They didn't need a key for that, did they?

Mr. DANIELS. No, sir; they didn't.

Mr. HUBERT. Did they get a key from anybody?

Mr. DANIELS. I don't know if the key ever come. I think one of them had a key fit it or something.

Mr. HUBERT. Fit what?

Mr. DANIELS. They unlocked the trunk before the man got back with the key or something. I could tell, so they said, "We'll take the car. Call for the dog wagon to come and get the dog." Then they decided they'd take the car on down to the pound, the city pound.

Mr. HUBERT. And the dog was taken?

Mr. DANIELS. Take the dog with them.

Mr. HUBERT. They took the dog with them?

Mr. DANIELS. That's right.

Mr. HUBERT. Now, about how long after you got to work did the detectives come to the car?

Mr. DANIELS. Oh, in maybe an hour.

Mr. HUBERT. An hour?



Mr. DANIELS. Yes, sir; something like that.

Mr. HUBERT. So, you think they got there about 1 o'clock?

Mr. DANIELS. I don't know. Somewhere—could have been a little later than that when they got there.

Mr. HUBERT. What time was it when they left with the car?

Mr. DANIELS. I don't know. The boy didn't punch the ticket out. He just picked it off, because they didn't pay the ticket out. I don't know what time, exactly.

Mr. HUBERT. How long were the detectives there from the time they first came until they left?

Mr. DANIELS. They stayed there about 5 or 10 minutes, and then the key, one of them had a key fit it. Must have been his car keys or something, and they left with the car.

Mr. HUBERT. You don't know where they found that car key that fit the car, do you?

Mr. DANIELS. No; I really don't know, because I walked back on over there. They raised the trunk up and looked in it.

Mr. HUBERT. Did you look in the trunk?

Mr. DANIELS. When they started looking in the trunk they said, "Well, we'd better take the car on over to the pound." And searched the car there.

Mr. HUBERT. They did not take anything out of the car at that time?

Mr. DANIELS. Didn't take anything out of the car.

Mr. HUBERT. Did you know this man named Lee Harvey Oswald?

Mr. DANIELS. No, sir; sure didn't.

Mr. HUBERT. Did you know whether Mr. Ruby had ever parked his car there before?

Mr. DANIELS. No; I don't.

Mr. HUBERT. Did you recognize the car?

Mr. DANIELS. No, sir; sure didn't.

Mr. HUBERT. How long have you been working for the Adolphus Garage?

Mr. DANIELS. Been down there about a month now.

Mr. HUBERT. Mr. Daniels, do you know anything that might throw any light on the general inquiry?

Mr. DANIELS. No, sir; that's all I know.

Mr. HUBERT. Have you been interviewed by any member of the Commission's staff before this deposition?

Mr. DANIELS. Yes; one or two fellows, say the FBI, and talked to me.

Mr. HUBERT. They are members of the FBI, but I am talking about persons who identified themselves as members of the staff of the President's Commission?

Mr. DANIELS. No, sir; I don't——

Mr. HUBERT. You have not been interviewed, for example, by me before this deposition?

Mr. DANIELS. That's right, I haven't.

Mr. HUBERT. All right, sir. Thank you very much. I think that is all.

Mr. DANIELS. Okay.

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## **TESTIMONY OF THEODORE JACKSON**

The testimony of Theodore Jackson was taken at 9:30 a.m., on April 1, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. All right, this is the deposition of Theodore Jackson.

Mr. JACKSON. Yes, sir.

Mr. HUBERT. Mr. Jackson, my name is Leon Hubert, I am a member of the advisory staff of the General Counsel of the President's Commission. Under provisions of Executive Order 11130, dated November 29, 1963, a Joint Resolution of Congress No. 137, and the rules of procedure adopted by the Commission in conformance with the Executive order and the joint resolution, I have been authorized to take the sworn deposition from you, Mr. Jackson. I state to you now the general nature of the Commission's inquiry is to ascertain, evaluate and report upon the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular, as to you, Mr. Jackson, the nature of the inquiry today is to determine the facts that you know about the death of Oswald and any other pertinent facts you may know about the general inquiry, in particular about parking of Mr. Jack Ruby's car in that lot on that Sunday, as it were. Now, I understand that you have not received a letter of request which was sent to you in care of the All State Parking lot, at Main and Expressway. Then under the rules adopted by the Commission every witness has the right to have a 3-day written notice prior to the taking of his deposition, but the rules of the Commission also provide that a witness who has not received that 3-day written notice may waive it if he sees fit to do so. Are

you willing to waive it and have your testimony taken without the 3-day

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Mr. JACKSON. Yes, sir.

Mr. HUBERT. Will you stand and raise your right hand. Do you solemnly swear to tell the truth, the whole truth, and nothing but the truth, so help you God?

Mr. JACKSON. Yes.

Mr. HUBERT. State your name, please.

Mr. JACKSON. Theodore Jackson.

Mr. HUBERT. And your age?

Mr. JACKSON. Thirty-six.

Mr. HUBERT. Where do you live, Mr. Jackson? Your home?

Mr. JACKSON. 2649 Carpenter Street.

Mr. HUBERT. Carpenter?

Mr. JACKSON. Yes.

Mr. HUBERT. Dallas?

Mr. JACKSON. Yes.

Mr. HUBERT. What is your occupation, Mr. Jackson?

Mr. JACKSON. Parking cars.

Mr. HUBERT. Parking cars?

Mr. JACKSON. Yes.

Mr. HUBERT. Where do you work?

Mr. JACKSON. 2001 Pacific.

Mr. HUBERT. All State?

Mr. JACKSON. That is All State Parking, uh-huh.

Mr. HUBERT. Do you sometimes work at other branches of All State Parking?

Mr. JACKSON. 2305 Main Street where the car was parked.

Mr. HUBERT. Is that on the corner of Main and Pearl Expressway?

Mr. JACKSON. That is the onliest place I work, where the—Western Union is across the street and the city hall is a block up the street where he shot him.

Mr. HUBERT. It is just about the corner of Main and Pearl Expressway, and you gave the number as 2535?

Mr. JACKSON. 2035.

Mr. HUBERT. Were you on duty working at the All State Parking lot on Main Street on Sunday, November 24, 1963, which was the Sunday after the President got shot?

Mr. JACKSON. Well, I don't know if it were Sunday. I was on duty when Mr. Ruby shot Oswald. I mean, I was on the lot the Sunday he shot him, but he was already parked there.

Mr. HUBERT. You don't remember what date it was but you do remember that it was the Sunday that Oswald was shot?

Mr. JACKSON. Uh-huh, his car was parked on my lot.

Mr. HUBERT. Whose car was parked on your lot?

Mr. JACKSON. Mr. Jack Ruby.

Mr. HUBERT. Did you know him before that time?

Mr. JACKSON. No, I didn't.

Mr. HUBERT. Never seen him before?

Mr. JACKSON. No.

Mr. HUBERT. What time did you get on duty that day?

Mr. JACKSON. Around noon, always come down around noon.

Mr. HUBERT. Is it correct to say then when you came on duty Oswald had already been shot?

Mr. JACKSON. I think he had already been shot, because it was a lot of people around the city hall up there and John L. Daniels—John L. Daniels

was already on duty. He was working the Norton block right next to it.

Mr. HUBERT. What?

Mr. JACKSON. Belonged to Ralph Norton, Mr. Ralph Norton.

Mr. HUBERT. How do you spell that name?

Mr. JACKSON. Mr. Ralph Norton.

Mr. HUBERT. Ralph Norton? N-o-r-t-o-n?

Mr. JACKSON. Yes, sir; R-a-l-p-h.

Mr. HUBERT. In other words, Daniels worked on the parking lot next to the one you were working on?

Mr. JACKSON. Yes, sir.

Mr. HUBERT. And that parking lot belonged to this Ralph Norton?

Mr. JACKSON. Uh-huh.

Mr. HUBERT. Now, you say Daniels was already on duty when you came on duty?

Mr. JACKSON. Yes, he was there when I got there.

Mr. HUBERT. Did you talk to him?

Mr. JACKSON. No, I didn't.

Mr. HUBERT. Now, you say Mr. Ruby's car was already parked on your lot?

Mr. JACKSON. It was parked on my lot.

Mr. HUBERT. How did you know that?

Mr. JACKSON. Well, I didn't know whose car it was until these two detectives came down and was searching the car.

Mr. HUBERT. Well, will you describe what kind of an automobile it was?

Mr. JACKSON. It was an Oldsmobile, two-door sedan, white.

Mr. HUBERT. Had you ever seen it before?

Mr. JACKSON. No, sir.

Mr. HUBERT. How can a person park on your lot without there being any attendant there?

Mr. JACKSON. Well, they pull in and leave their car, and take the key and lock it up if you are not there.

Mr. HUBERT. Was there anybody on duty before you got there?

Mr. JACKSON. No, sir; I unlocked the door and opened up.

Mr. HUBERT. Opened up? Well, the parking lot is not a closed parking lot?

Mr. JACKSON. No, sir; it is open 7 days a week.

Mr. HUBERT. It is an open lot so that when you say you unlocked the door, what do you mean?

Mr. JACKSON. The office door.

Mr. HUBERT. Are there any chains or anything to keep a person from driving right on in so that before anyone comes on duty any person can drive in and leave his car?

Mr. JACKSON. Drive in and leave it.

Mr. HUBERT. And if they depart before one of the attendants comes, well, then, they don't pay anything?

Mr. JACKSON. They pay it when they get back. I put a ticket on the car.

Mr. HUBERT. No, you misunderstood me. If they leave before you get there, then, of course, you——

Mr. JACKSON. No, sir.

Mr. HUBERT. There would be no payment, but if you find a car there when you get there——

Mr. JACKSON. If it is not monthly.

Mr. HUBERT. Someone that pays by the month and those cars you would recognize, or have some sort of a seal on them to indicate that they pay by the month?

Mr. JACKSON. Yes, I know.

Mr. HUBERT. You know the cars?

Mr. JACKSON. Yes.

Mr. HUBERT. Mr. Ruby did not park by the month there?

Mr. JACKSON. No, sir.

Mr. HUBERT. When you came up and saw this car did you put a ticket on it?

Mr. JACKSON. I put a ticket on it.

Mr. HUBERT. Were there any other cars parked in the lot?

Mr. JACKSON. Yes, sir; about, oh, I guess about six—about six more besides his, five or six more, I disremember.

Mr. HUBERT. Now, and you put a ticket on the car, did you notice whether the car was open, or closed?

Mr. JACKSON. No, sir; I didn't. I just looked at the car and the key was gone. The keys wasn't in the switch, and I just got a ticket, just stamped the ticket and put it on the windshield.

Mr. HUBERT. Was there a dog in the car?

Mr. JACKSON. Yes, sir; I think so. It was—yes, it was a dog in the car.

Mr. HUBERT. Was there any window open so that the dog could get some air?

Mr. JACKSON. I never looked whether there was or not.

Mr. HUBERT. Did that seem strange to you that there—somebody had a dog in the parked automobile?

Mr. JACKSON. Well, it did, two detectives came down, and they started searching the car, but they were looking for a key.

Mr. HUBERT. Were they able to open the door of the car?

Mr. JACKSON. I don't think the car was locked up, because they came down, well, they wasn't—it couldn't have been locked up, because they were looking for the key to the switch, because they wanted to take the car to the pound.



Mr. HUBERT. Before we get to that, how long after you got on duty and put the ticket on Mr. Ruby's car, did the detectives arrive?

Mr. JACKSON. Oh, about an hour or so, I guess. I believe about an hour or so.

Mr. HUBERT. Well, did they have any difficulty in opening the doors of the car?

Mr. JACKSON. I never even noticed them until they was out there to the car. I was listening to the radio about it.

Mr. HUBERT. What did you say with reference to the detectives, what they were doing?

Mr. JACKSON. They were searching—they searched the car.

Mr. HUBERT. The doors were open by the time you saw it?

Mr. JACKSON. They was searching the car.

Mr. HUBERT. Well, now, answer my question, were the doors open or do you remember?

Mr. JACKSON. When I seen them they were searching they must have been open.

Mr. HUBERT. When you say "searching," do you mean they were searching the back?

Mr. JACKSON. Looking for a key. They said they were looking for a key.

Mr. HUBERT. Key to what? The ignition?

Mr. JACKSON. The ignition key, and I think the trunk key, and they opened up the trunk and there was a bunch of sacks in the trunk. I don't know what was in them, and after they told me they was detectives, that was Jack Ruby's car, and I just took the ticket off the car and they were going—said they was going to take the car to the pound, and said something or another about calling somebody.

Mr. HUBERT. Doing what?

Mr. JACKSON. Said something or another about calling somebody, some of his relatives or something to see what they wanted to do with his dog.

They were going to take the car to the pound.

Mr. HUBERT. Did they do anything with this dog, that you know of?

Mr. JACKSON. I don't know. They took the car to the pound.

Mr. HUBERT. What happened to the dog? Was it still in the car when they took it?

Mr. JACKSON. Yes; the dog was still in the car.

Mr. HUBERT. Did they make any calls that you knew of?

Mr. JACKSON. They went over and used the other telephone in John L. Daniels' office.

Mr. HUBERT. I see.

Mr. JACKSON. See, I don't have one in mine.

Mr. HUBERT. But you say you got to work about 12 o'clock?

Mr. JACKSON. Yes; around noon.

Mr. HUBERT. Had you been hanging around before going on duty, or come directly——

Mr. JACKSON. No; I come directly from home and went to work.

Mr. HUBERT. You didn't pass by the jail, or look around the jail?

Mr. JACKSON. No, sir.

Mr. HUBERT. Are you sure it was 12 o'clock, and not 11 o'clock, that you went on duty, sir?

Mr. JACKSON. It was around noon somewhere. I don't know—I don't know just what time it was, because I usually come down around 1 o'clock, but sometimes I get down there a little earlier.

Mr. HUBERT. It was after half past 11 in the morning?

Mr. JACKSON. Yes, sir; I'm pretty sure it was after.

Mr. HUBERT. When did you first find out that Oswald had been shot?

Mr. JACKSON. Well, we had a boy that run the lot during the day through the week and had a radio down there, and I usually turned it on when I

come in, and when I put it on that was what was on.

Mr. HUBERT. The news was that he had already been shot?

Mr. JACKSON. Yes, sir.

Mr. HUBERT. Did you know a man by the name of Lee Harvey Oswald?

Mr. JACKSON. No, sir; I didn't.

Mr. HUBERT. Now, have you ever been interviewed by any member of the President's Commission staff?

Mr. JACKSON. No, sir.

Mr. HUBERT. Never been interviewed by me before?

Mr. JACKSON. No, sir.

Mr. HUBERT. All right, Mr. Jackson, I think that is all. Thank you very much.

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## **TESTIMONY OF ANDREW ARMSTRONG, JR.**

The testimony of Andrew Armstrong, Jr., was taken at 9:15 a.m., on April 14, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Mr. Andrew Armstrong.

Mr. Armstrong, my name is Leon Hubert. I am a member of the advisory staff of the General Counsel of the President's Commission on the assassination of President Kennedy. Under the provisions of Executive Order 11130, dated November 29, 1963, the Joint Resolution of the Congress, No. 137, and the rules of procedures adopted by the Commission, in conformance with the Executive order and the joint resolution, I have been authorized to take this sworn deposition from you, Mr. Armstrong.

I state to you that the general nature of the Commission's inquiry is to ascertain, evaluate, and report upon the facts relative to the assassination of President Kennedy, and the subsequent violent death of Lee Harvey Oswald.

In particular, as to you, Mr. Armstrong, the nature of the inquiry today is to determine what facts you know about the death of Oswald and any other pertinent facts you may know about the general inquiry and about Jack Ruby and his operations and associates and so forth.

Now, Mr. Armstrong, I think you have appeared here today by virtue of a letter written to you by Mr. J. Lee Rankin, General Counsel of the Staff of the President's Commission, asking you to be present. Isn't that correct?

Mr. ARMSTRONG. That's right.

Mr. HUBERT. When did you receive that letter, Mr. Armstrong?

Mr. ARMSTRONG. 2 days ago.

Mr. HUBERT. You mean on Sunday?

Mr. ARMSTRONG. On a Saturday—I'm sorry.

Mr. HUBERT. That would be Saturday, April 11th.

Do you have any objection at the, present moment to having your deposition taken today?

Mr. ARMSTRONG. No.

Mr. HUBERT. Will you rise and raise your right hand so that I may administer the oath.

Do you solemnly swear that the testimony you are about to give in this matter will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. Would you state your full name, please?

Mr. ARMSTRONG. Andrew Armstrong, Jr.

Mr. HUBERT. How old are you, Mr. Armstrong?

Mr. ARMSTRONG. 27.

Mr. HUBERT. Where do you live?

Mr. ARMSTRONG. 3821 Dixon Circle, apt. C.

Mr. HUBERT. In Dallas?

Mr. ARMSTRONG. Dallas.

Mr. HUBERT. Are you married?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. How long have you been married?

Mr. ARMSTRONG. 10 months.

Mr. HUBERT. Do you have any children?

Mr. ARMSTRONG. One, a little girl.

Mr. HUBERT. Have you ever been married before?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. What is the maiden name of your wife?

Mr. ARMSTRONG. Childress.

Mr. HUBERT. And her first name?

Mr. ARMSTRONG. Eleanor Childress.

Mr. HUBERT. Where were you born?

Mr. ARMSTRONG. Pittsburg, Tex., Cass County.

Mr. HUBERT. How long did you live there?

Mr. ARMSTRONG. Unofficially—14 years.

Mr. HUBERT. Did you go to school there?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. And when you left that place, where did you go?

Mr. ARMSTRONG. Here to Dallas.

Mr. HUBERT. To Dallas?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Have you been in Dallas ever since?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you complete your education in Dallas?

Mr. ARMSTRONG. No—I didn't complete it—I went to the 11th grade.

Mr. HUBERT. Well, I mean what education you do have was finished in Dallas?

Mr. ARMSTRONG. It was finished in Dallas.

Mr. HUBERT. How far did you go?

Mr. ARMSTRONG. 11th.

Mr. HUBERT. At what age did you quit school?

Mr. ARMSTRONG. At 16, I think—16 or 17.

Mr. HUBERT. How have you been occupied since you left school?

Mr. ARMSTRONG. Well——

Mr. HUBERT. I mean, what work have you done?

Mr. ARMSTRONG. A number of things—should I go through them?

Mr. HUBERT. Yes; just briefly.

Mr. ARMSTRONG. I was—right after I left school, I was caddymaster at River Hills golf course. I left there and went to—well, I had a job at Vick's Cafeteria in the Republic Bank Building—no, no—I'm sorry, it was Wilson's Cafeteria, and then Vick's Restaurant; then Vinson Still.

Mr. HUBERT. Is Vinson Still a corporation or individual?

Mr. ARMSTRONG. It was a corporation.

Mr. HUBERT. What kind of work did you do then?

Mr. ARMSTRONG. Cut stainless steel—I mean—filled orders of stainless steel and magnesium—cut magnesium. I started out as a porter.

Mr. HUBERT. All right, continue.

Mr. ARMSTRONG. Then, I did a prison stretch for marihuana for 3 years.

Mr. HUBERT. Were you convicted in State court?

Mr. ARMSTRONG. State court.

Mr. HUBERT. In Dallas?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. When were you convicted?

Mr. ARMSTRONG. 1958.

Mr. HUBERT. And you were sentenced to how many years in prison?

Mr. ARMSTRONG. Five.

Mr. HUBERT. How many did you actually serve?

Mr. ARMSTRONG. Three.

Mr. HUBERT. That was on a charge of possession? Possession and sale of marihuana?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do you remember the date of your release?

Mr. ARMSTRONG. The date was March 18, 1961.

Mr. HUBERT. Was that on a parole situation?

Mr. ARMSTRONG. No; that was discharged.

Mr. HUBERT. That was what?

Mr. ARMSTRONG. Discharge.

Mr. HUBERT. How was the time reduced then from 5 years to approximately 3?

Mr. ARMSTRONG. Well, in this State you do 3 years or do 5.

Mr. HUBERT. You mean for good time and so forth?

Mr. ARMSTRONG. Well, for good time you can reduce some of that time.

Mr. HUBERT. The point is, that when you left the prison you were not on probation?

Mr. ARMSTRONG. I was not on probation. When I came back I started to work at the Holiday Hills Apartments, belonging to the Hunt Oil Co., and Bowman Real Estate, I think it was.

Mr. HUBERT. That's in Dallas here?

Mr. ARMSTRONG. In Dallas.

Mr. HUBERT. What kind of work did you do then?

Mr. ARMSTRONG. Well, I was a maintenance man out there.

Mr. HUBERT. At the Holiday Hills Apartments?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That's owned by the Hunt Oil Co.?

Mr. ARMSTRONG. Yes.



Mr. HUBERT. What is the Bowman Real Estate?

Mr. ARMSTRONG. Well, he was the one that built it, I think he built it and sold it for half interest or something.

Mr. HUBERT. What Hunt is that in the Hunt Oil Co.?

Mr. ARMSTRONG. It's H. L. Hunt Co.

Mr. HUBERT. Do you know Mr. Hunt?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. Do you know a man by the name of Lamar Hunt?

Mr. ARMSTRONG. I have seen him—I don't know him.

Mr. HUBERT. Is that the same man as H. L. Hunt Oil Co.?

Mr. ARMSTRONG. That's the same man—he was in charge, and when I left the Holiday Hills——

Mr. HUBERT. Well, before you leave the Holiday Hills and Hunt Oil Co., you say that you have seen a Mr. Hunt, but have not talked to him?

Mr. ARMSTRONG. No, sir; I have never talked to him.

Mr. HUBERT. And that one you saw was H. L. Hunt?

Mr. ARMSTRONG. No, no—it was Lamar, and a few of his brothers, a couple of his brothers, I think it was—it was on the 4th of July or a Labor Day, I don't know which one it was, I don't recall, and they had a party out there.

Mr. HUBERT. Do you know the relationship between Lamar Hunt and H. L. Hunt?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. What is that?

Mr. ARMSTRONG. Father and son.

Mr. HUBERT. But you never met H. L. Hunt?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. But you have seen him?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. Who employed you over there?

Mr. ARMSTRONG. A Mrs. Pierson was the manager. I dropped in one afternoon for a job and she gave me the opportunity to work there for a week to see if I did a good job, so she hired me.

Mr. HUBERT. When you were employed by this lady to work for the Holiday Hills Apartments, did they know you had been in the penitentiary?

Mr. ARMSTRONG. No.

Mr. HUBERT. How long after you left the penitentiary did you apply and receive the job?

Mr. ARMSTRONG. Let's see, it was sometime during the summer of 1961.

Mr. HUBERT. About the middle of the summer, you mean?

Mr. ARMSTRONG. I'm pretty sure—I think it was about the middle of the summer.

Mr. HUBERT. What did you do in the meantime, between March when you left the penitentiary?

Mr. ARMSTRONG. Well, I mostly just picked up odd jobs trying to make a buck, just odd jobs, whatever I could find to do.

Mr. HUBERT. Have you kept out of trouble ever since?

Mr. ARMSTRONG. Yes. I have an application in for full pardon, recommended by Mr. "Bill" Decker himself.

Mr. HUBERT. By Mr. who?

Mr. ARMSTRONG. The sheriff.

Mr. HUBERT. Do you know the sheriff?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. How did you come to know him?

Mr. ARMSTRONG. Well, mostly through—I've seen him more times through going down to visit Jack, because you had to go through Mr. Decker.

Mr. HUBERT. Did you know Mr. Decker prior to the time that Oswald was killed?

Mr. ARMSTRONG. Not too well—well, no, in a way I did and in a way I didn't.

Mr. HUBERT. Well, explain that, please.

Mr. ARMSTRONG. Back when I was a caddymaster at River Hills golf course someone broke in it out there and I was picked up on investigation, which someone else testified to later that they had did it.

Mr. HUBERT. At first they thought you had done it?

Mr. ARMSTRONG. Yes—that's when I first met Mr. Decker.

Mr. HUBERT. How often did you see him after you left the penitentiary and until the shooting of Oswald?

Mr. ARMSTRONG. Well, I only saw him—let's see—we will come back to about January 1962—I had got a job at Marilyn Belt Factory just across from the county jail, and I used to see Mr. Decker, you know, I used to pass him on the street there and I would always speak to him, which he always would speak back, which he would always speak back to everyone who speaks to him whether he knows them or not, and I guess I saw him 10 or 15 times.

Mr. HUBERT. Were you ever in his office?

Mr. ARMSTRONG. Not until after the slaying of Lee Oswald, the one time was for the investigation.

Mr. HUBERT. So, in other words, after you left the penitentiary your acquaintance with Sheriff Decker amounted to nothing more than seeing him on the streets and saying "hello?"

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You never conversed with him?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you have any reason to believe he knew your name?

Mr. ARMSTRONG. No, he didn't know my name until after the slaying.

Mr. HUBERT. Can you tell us why he has agreed now to support your application for a pardon?

Mr. ARMSTRONG. Well, I believe that Mr. Decker did some investigating on me and when I went in to ask him, he went through the procedure of having my record checked, since I have been out, and before he recommended me.

Mr. HUBERT. Tell me, in connection with the application for a pardon, is it necessary to get the approval of the sheriff?

Mr. ARMSTRONG. It is necessary to get the approval of some officer.

Mr. HUBERT. And you chose the sheriff?

Mr. ARMSTRONG. And I chose the sheriff. I was either going to choose the sheriff or Mr. Gilmore, the head of the vice squad. He has been in the club lots of times.

Mr. HUBERT. What is his name?

Mr. ARMSTRONG. Gilbert—I don't know whether he's in charge of the vice squad for the city or not, but he is around and he has been to the club, checking in like he does, like policemen do, and he got to—he would always speak to me when he come in and he was always very nice and I was always very nice to him and I'm pretty sure he had some checking done on me, too.

Mr. HUBERT. But, in any case, you chose Sheriff Decker?

Mr. ARMSTRONG. But I chose one of the two of them because I didn't know anybody else to approach—any other officers.

Mr. HUBERT. All right, I think we had left off with our analysis of your employment since you left the penitentiary, that you had worked for the Holiday Hills Apartments—how long did you work for them?

Mr. ARMSTRONG. Oh, about 8 or 9 months—it wasn't too long.

Mr. HUBERT. And that employment began, in the summer of 1961?

Mr. ARMSTRONG. Yes, and it ended a little before Christmas—I think it was around the 1st of December.

Mr. HUBERT. Of 1961?

Mr. ARMSTRONG. Of 1961.

Mr. HUBERT. Well, it would hardly have been 9 months.

Mr. ARMSTRONG. I believe that's right—I imagine.

Mr. HUBERT. You think then, you actually began to work with them probably in May or June of 1961?

Mr. ARMSTRONG. Well——

Mr. HUBERT. Well, you see, if you left just before Christmas?

Mr. ARMSTRONG. You know, come to think of it, I think it was, because it was around the spring—so it must have been about the last of April or the 1st of May.

Mr. HUBERT. Then, you worked for about 7 months and left around Christmas?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What was the reason for your leaving?

Mr. ARMSTRONG. Discharged.

Mr. HUBERT. What caused it?

Mr. ARMSTRONG. I don't know the cause.

Mr. HUBERT. Did you ask?

Mr. ARMSTRONG. Well, I have recently, 5 or 6 days ago—Mrs. Pierson who is not there any more, and I wanted to ask her.

Mr. HUBERT. Mrs. Pierson being the lady who had originally employed you?

Mr. ARMSTRONG. Right.

Mr. HUBERT. She was the one who discharged you, too?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, what about 5 or 6 days ago?

Mr. ARMSTRONG. I wanted to contact her to find out why I was discharged. I have a reason—it was because of one of the maids out there,

but I'm not for sure.

Mr. HUBERT. You mean you suspect that it was on the complaint of one of the maids?

Mr. ARMSTRONG. Well, yes; something like that—something.

Mr. HUBERT. But, you did not reach Mrs. Pierson?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. So, you really don't know even now?

Mr. ARMSTRONG. I'm still trying to find out.

Mr. HUBERT. Did you ask her at the time?

Mr. ARMSTRONG. I asked her at the time and was refused to be told why.

Mr. HUBERT. That was Christmas, 1961—what was your next employment?

Mr. ARMSTRONG. Let's see—at the Marilyn Belt Factory in January.

Mr. HUBERT. That's the place that's right opposite the sheriff's office?

Mr. ARMSTRONG. Right opposite the sheriff's office.

Mr. HUBERT. How long did you work for them? Commencing in January 1962.

Mr. ARMSTRONG. I worked for them 2 months, then I got the job at the Carousel Club with Jack and I held both of the jobs for about a month and it got to where I had to let one go, so I let the Marilyn Belt Factory go.

Mr. HUBERT. So that you began to work at the Carousel Club in about February of 1962?

Mr. ARMSTRONG. Right.

Mr. HUBERT. How did you get employment with the Carousel Club?

Mr. ARMSTRONG. Let's go back—it wasn't in February—you see, I started to work at the Marilyn Belt Factory in February, and I worked about 2 months with the Marilyn Belt Factory—that's February and March and April—3 months, because I started to work for Jack the 1st of May, about the second day in May.

Mr. HUBERT. In 1962?

Mr. ARMSTRONG. In 1962.

Mr. HUBERT. Then you worked both places for about a month?

Mr. ARMSTRONG. For about a month.

Mr. HUBERT. Which would take you to June 1, 1962, and then you had to make a choice, so you decided to go with the Carousel Club and you left the other job?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, coming back to the question—how did you come to be employed in May of 1962 at the Carousel Club?

Mr. ARMSTRONG. Just walked in and he was sitting down talking to some man—I have never saw him before—yes, I have—he was a waiter over at the Baker Hotel.

Mr. HUBERT. Did you hear that there was an opening there?

Mr. ARMSTRONG. No.

Mr. HUBERT. Had you known Jack Ruby before?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was there any advertisements in the paper?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was there any sign on the door indicating that help was needed?

Mr. ARMSTRONG. No.

Mr. HUBERT. Can you help us in ascertaining why you just walked in to get the job?

Mr. ARMSTRONG. Well, it was on a Saturday morning and I decided I would go look for me a night job some place.

Mr. HUBERT. What you wanted was a night job to supplement your income?

Mr. ARMSTRONG. What I wanted was a night job, so I decided the club would be the best thing, so I went to three or four clubs, and when I went to Field and Commerce, I was going to go to H. L. Green's for a cup of coffee or something like that and I started back up Commerce and I saw the door open there and I just pulled over and went in.

Mr. HUBERT. In other words, you had tried three or four other places before you went to the Carousel?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. On this same Saturday morning?

Mr. ARMSTRONG. On this same date.

Mr. HUBERT. And that was about the 2d of May, I think you said, in 1962?

Mr. ARMSTRONG. Right—about the 2d of May, I'm pretty sure.

Mr. HUBERT. It was in the first part of May, do you think?

Mr. ARMSTRONG. Pardon?

Mr. HUBERT. It was about the first part of May, you think, and it was a Saturday morning?

Mr. ARMSTRONG. Right.

Mr. HUBERT. I have a calendar for 1962 before me, and it shows the first Saturday in May was the 5th.

Mr. ARMSTRONG. It was the 5th?

Mr. HUBERT. I'm showing you that calendar for 1962; does that help you any?

Mr. ARMSTRONG. Well, you see—why I said the 2d was later on, we tried to figure—I was signing a couple of checks about 2 weeks later and we were trying to figure out what date I started so I could fill out a W-2 form and we got to counting the days and we counted back to the 2d, so this was on a Saturday—it was on a Saturday, so it must have been the 5th. You see, things always happen so fast when you was around Jack because he was just like this—flighty.



Mr. HUBERT. The day you walked in there, he was in the Carousel—he was in the office?

Mr. ARMSTRONG. No, he was sitting down there, just sitting in the club at a table.

Mr. HUBERT. Was he alone?

Mr. ARMSTRONG. He was talking to a waiter from across—it was a waiter across the street which worked up there that night, that Saturday night, and he never worked there any more, but that only one night that I know of.

Mr. HUBERT. Well, tell us how you introduced yourself and how he came to employ you, and so forth?

Mr. ARMSTRONG. Well, I asked him if he needed any help at night and he said as a matter of fact he did and he said, “I’ve been looking for a clean-cut young man like you,” and so he said a few things—he asked me had I ever been in any kind of trouble and naturally I told him, “No.” I always tell people “No,” unless it is absolutely necessary, so he said to come back that night, so I went back that night and worked.

Mr. HUBERT. Did you fix your salary at that time?

Mr. ARMSTRONG. No, not exactly. We fixed the salary the next day, no, the Monday—the following Monday.

Mr. HUBERT. And what was that salary?

Mr. ARMSTRONG. That salary was \$40 or \$45 a week.

Mr. HUBERT. Did it remain that way or did you get an increase?

Mr. ARMSTRONG. Well, it remained that way.

Mr. HUBERT. You never got any more than that?

Mr. ARMSTRONG. No; just plus tips.

Mr. HUBERT. What was your job around there?

Mr. ARMSTRONG. Well, at first it was just bartending and then it got to be—it was bartending, then it got to be straightening the place up a little bit because there was another man that came in, Howard Haynes.

Mr. HUBERT. Howard Haynes?

Mr. ARMSTRONG. Yes, but he always did sort of a half job, and so then it got to be where I spent most of the afternoon there just taking phone calls and reservations and things like that, and taking care of all of the buying and things like that.

Mr. HUBERT. What do you mean by taking care of the buying?

Mr. ARMSTRONG. Well, taking care of the buying—whatever that had to be bought—whatever stock they needed—no food, just beer.

Mr. HUBERT. In other words, as I understand you, as you stayed on longer, you assumed more responsibility?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And more duties?

Mr. ARMSTRONG. Right, and they got me to where I was doing the hiring of the waitresses and contacting different peoples about acts and things like that.

Mr. HUBERT. Ruby delegated the authority to you to actually employ people, both as waitresses and for acts?

Mr. ARMSTRONG. Well, not actually employ them for acts, but contact them—he already knowed who he wanted and I just contacted certain persons.

Mr. HUBERT. In other words, you would do the legwork, shall we say, about getting these acts?

Mr. ARMSTRONG. Certainly not all of them, just some of them—when he didn't have time to.

Mr. HUBERT. Did you ever tell Jack, or did he ever find out you had been in the penitentiary?

Mr. ARMSTRONG. No; I never told him.

Mr. HUBERT. Do you know whether he knows to this day about it?

Mr. ARMSTRONG. I don't know whether he knows—you see, I never told anyone connected with him until the trial, and then I told Mr. Phil Burleson.

Mr. HUBERT. Did you testify in the trial?

Mr. ARMSTRONG. No.

Mr. HUBERT. You had been subpenaed, I think.

Mr. ARMSTRONG. I was subpenaed.

Mr. HUBERT. Did it get to the point where you handled the money of the club?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. How was the money handled?

Mr. ARMSTRONG. Well, I was—I always had \$225 in my possession. That was for a bank every night, you know, to start things off and at the end of the night when I checked up, I would give him the receipts for the night and I would take what I had put in back to the safe and so, with the buying on Thursdays, when I took care of all of the purchases, I would give him the receipts and the total of the receipts—he would return the money to me.

Mr. HUBERT. In other words, you always kept for making change for beginning the night's operation, the sum of \$225.

Mr. ARMSTRONG. Right.

Mr. HUBERT. And the next day after the night's operation, you would turn over to him——

Mr. ARMSTRONG. No; I would always give it to him that night.

Mr. HUBERT. The same night?

Mr. ARMSTRONG. Yes, sir; the same night.

Mr. HUBERT. You would give him everything but the \$225.

Mr. ARMSTRONG. Right.

Mr. HUBERT. Now, what about paying for the goods that you bought?

Mr. ARMSTRONG. Well, that was—happened the same way.

Mr. HUBERT. Was it a cash basis?

Mr. ARMSTRONG. Yes; most everything was cash.

Mr. HUBERT. You would pay it out of the \$225.

Mr. ARMSTRONG. I would pay it out of the \$225, and he would give me the money back that I had spent.

Mr. HUBERT. So, that, you began with \$225 each night?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And usually he would put the money in the safe, that is to say, the amount of \$225?

Mr. ARMSTRONG. No, I would put the \$225—I kept that money.

Mr. HUBERT. You kept the \$225?

Mr. ARMSTRONG. Well, I put it in the safe.

Mr. HUBERT. That's the \$225 only?

Mr. ARMSTRONG. Just the \$225 only.

Mr. HUBERT. When did you have a safe, when did you get one?

Mr. ARMSTRONG. Well, he always has had a little old safe in the office. This was a little cabinetlike thing.

Mr. HUBERT. Was that one that had a slot on the side of it, so you could slip the money in it?

Mr. ARMSTRONG. No, not that one. He had just recently bought that one—I would say it was in October last year.

Mr. HUBERT. Previous to the safe which was bought in October, there was another safe?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And he kept that in the office?

Mr. ARMSTRONG. He kept that in the office—it was a cabinet you opened with a key. It had little cabinet drawers in it and some little small ones.

Mr. HUBERT. It didn't have a combination?

Mr. ARMSTRONG. No; no combination.

Mr. HUBERT. Was it a filing cabinet like—it had two file cabinet drawers, about the size of those on the left-hand side there?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. Let the record show that the witness is pointing to the usual legal size four drawer steel cabinet.

Mr. ARMSTRONG. But only two of those on the left-hand side and on the right-hand side at the top it was three or two little drawers, about the size of one of those stacks and one about that deep, where you could open it with a key.

Mr. HUBERT. So, it really had two keys?

Mr. ARMSTRONG. No, just the one—the same key would fit the one on the inside.

Mr. HUBERT. Did Jack keep the money that you gave him as to the profit over the \$225 in that place, too?

Mr. ARMSTRONG. No, he never kept anything.

Mr. HUBERT. How did he handle that?

Mr. ARMSTRONG. I don't know—he usually would go to the bank once or twice a week, or, he mostly kept—usually he kept the payroll on him.

Mr. HUBERT. Did he have a checking account?

Mr. ARMSTRONG. He had an account at the Texas Bank—no, at the Merchants State Bank on Ross Avenue.

Mr. HUBERT. Is it your impression that he would deposit this cash in that account?

Mr. ARMSTRONG. There was always a little money in that account, but I don't know whether he deposited it or not—all of it in that account or not.

Mr. HUBERT. Did he pay his bills, such as for the stripteases and the band?

Mr. ARMSTRONG. Every Sunday night.

Mr. HUBERT. In cash or check?

Mr. ARMSTRONG. In cash.

Mr. HUBERT. And he paid all the supplies and purchases in cash, too?

Mr. ARMSTRONG. In cash.

Mr. HUBERT. Do you know if he paid anything by check?

Mr. ARMSTRONG. That, I don't know.

Mr. HUBERT. What about the rent?

Mr. ARMSTRONG. What?

Mr. HUBERT. What about the rent?

Mr. ARMSTRONG. The rent was paid by cash with a cashier's check.

Mr. HUBERT. Did you ever purchase a cashier's check?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. He would give you the money and you went to the bank and got the cashier's check for it?

Mr. ARMSTRONG. Cashier's check.

Mr. HUBERT. But when you said a little while ago that he would take the money and go to the bank, what did you mean?

Mr. ARMSTRONG. Well, he would always go two or three times—a week, that he was at the bank. I don't know whether he deposited money or not, but he did have an account and there was an account there in the name of the Carousel Club.

Mr. HUBERT. But do you know of your own knowledge whether he used it as a checking account normally is used?

Mr. ARMSTRONG. It was used as a checking account, but I never—I have seen checks that he had written, that was, you know, after they went through and then he got them back—I had seen those.

Mr. HUBERT. Canceled checks—you mean?

Mr. ARMSTRONG. No, no; checks that went through the bank already and went through his deposit.

Mr. HUBERT. That's what I mean by canceled checks—in other words, after the check goes through, it is returned to the maker.

Mr. ARMSTRONG. Returned—yes—right.

Mr. HUBERT. Did he have a lot of those?

Mr. ARMSTRONG. I saw quite a few small payments on different things, but I don't know whether he had a whole lot of them or not.

Mr. HUBERT. What I am trying to get at, Mr. Armstrong, is whether or not Ruby kept the income from the Carousel on his person or did he deposit it in the bank?

Mr. ARMSTRONG. Well, I believe that the biggest part of his money, he kept it in his purse on his person.

Mr. HUBERT. Have you any idea how much he would have on his person in that way as an average?

Mr. ARMSTRONG. No, it would be hard to say, because I have seen times when he would come in and he would have quite a bit of money in his pocket, but it would all be, you know, rubber bands—wrapped around with rubber bands, and he never would take it a'loose or anything like that. A few times he would get it all mixed up in his pocket and he would straighten out the tens and the ones—separate the ones from the fives, you know.

Mr. HUBERT. Who made the payroll?

Mr. ARMSTRONG. He made the payroll.

Mr. HUBERT. Didn't you ever do that?

Mr. ARMSTRONG. After the slaying.

Mr. HUBERT. No, I mean before that.

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you assist him in making the payroll?

Mr. ARMSTRONG. No; I didn't work on Sunday night.

Mr. HUBERT. And that's when he paid everybody?

Mr. ARMSTRONG. That's when he paid everybody.

Mr. HUBERT. But you do know he paid by cash?

Mr. ARMSTRONG. He paid by cash.

Mr. HUBERT. Did you ever see him take any money to his automobile?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. What would he do with it when he put it in his automobile?

Mr. ARMSTRONG. What would he do with it? He would put it in his trunk—that he had in his pocket he would keep in his pocket—and that he had in his little moneybag he would put it in his trunk.

Mr. HUBERT. He had a moneybag in the trunk?

Mr. ARMSTRONG. He had a little sack—the same one he carried his pistol in, in a little Merchants State Bank, a little moneybag.

Mr. HUBERT. And the pistol was in that bag?

Mr. ARMSTRONG. Usually it would be in one of those little money bank bags.

Mr. HUBERT. Did you ever see him carry the pistol on his body?

Mr. ARMSTRONG. No; it would always be in a little bag.

Mr. HUBERT. There was no occasion at all when you ever saw him have that pistol in his pocket or stuck in his waist belt?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. Do you know what he kept the pistol for?

Mr. ARMSTRONG. Well, I always assumed he kept it for—because he carried the cash on him.

Mr. HUBERT. Well, the pistol wouldn't do him much good in the trunk of the car if he had the cash on his body, would it?

Mr. ARMSTRONG. No; not much.

Mr. HUBERT. Have you any other reason then to suggest as to why he did?

Mr. ARMSTRONG. Well, he would always bring it in the club at night.

Mr. HUBERT. Pistol?



Mr. ARMSTRONG. It was brought in just in case he was robbed or something like that.

Mr. HUBERT. Now, let's see—we have a little difference there—I had understood you to say that the pistol was always kept in the bag which was in the trunk of the car.

Mr. ARMSTRONG. But I said he would always bring it in when he would come to the club.

Mr. HUBERT. I see, but when he would bring it in, he would not put it on or keep it on his person?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. Would he bring it in in the bag?

Mr. ARMSTRONG. He would bring it in in the bag and put it in the office back there.

Mr. HUBERT. So, there would be the money and the pistol and the bag that were all in the office?

Mr. ARMSTRONG. All in the office.

Mr. HUBERT. And then at night he would take the money and the pistol, which were in the bag, and bring it out to the car?

Mr. ARMSTRONG. And bring it out to the car, but most of the time the money that he had in his bag would be left in the car, unless he was up early in the day and was handling cash—he just left it in the office some place because he wasn't going back out, but if he left, and went home to get dressed or something like that, and come back about 9:30 or 10 o'clock, he would lock the money, if he had it in the back in the trunk.

Mr. HUBERT. Is it fair to say that almost every night he would bring the pistol from the car to the club?

Mr. ARMSTRONG. Yes; to the club.

Mr. HUBERT. And then when he left at night, he would carry the pistol back?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. And it was always in the bag?

Mr. ARMSTRONG. Always in the bag, that I know of.

Mr. HUBERT. Where did he keep the pistol in the club?

Mr. ARMSTRONG. Back in the office.

Mr. HUBERT. Did you ever see him use it?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. I don't mean by shooting anybody, but by hitting somebody with it?

Mr. ARMSTRONG. No; I never saw him use it.

Mr. HUBERT. Can you tell us what sort of man he was?

Mr. ARMSTRONG. Worried and disturbed always.

Mr. HUBERT. Now, how did that manifest itself so that you could tell that he was worried and disturbed always?

Mr. ARMSTRONG. Now, I'll tell you this—there was always—if he was sitting down inside the club in the daytime at one of the tables and some people came in, he would always want to hold a conversation with them, he would always want to talk about something, and I have seen numbers of times when someone had said something about a certain thing, he would get angry about it without even knowing it—he would just get angry, just like that, but that would pass over in a matter of seconds.

Mr. HUBERT. When he got angry, how did he act?

Mr. ARMSTRONG. He would always let people know if they said anything that he didn't like.

Mr. HUBERT. How did he act?

Mr. ARMSTRONG. Sort of like—ungentlemanlike in a nice way—let me see if I can explain it any better?

Mr. HUBERT. I wish you would.

Mr. ARMSTRONG. It was like—I'll give you an example, which is the best way I can explain it.

Mr. HUBERT. All right.

Mr. ARMSTRONG. I have seen at times when he would walk up to someone that had the feet out in the aisle and the girls couldn't get by or some man doing something that he didn't have any business, like hitting the girls when they passed by, or something like that, and they would tell Jack—if he was in a certain mood or something was bothering him, he wouldn't go over and say—ask his customers who were spending money in his club, in a nice way not to do that, he would just hit him on the shoulder like this and say, “Watch it, Buddy, I don't allow that in my place”—you know—real mean like—which is something that I never approved of.

Mr. HUBERT. He did that quite often?

Mr. ARMSTRONG. Quite often, and that's the way it would happen with any stranger.

Now, if he knew someone, he would always hold off or get someone else to do it. If he knew somebody and they were doing something he didn't like, he would always get me or one of the girls to do it.

Mr. HUBERT. We started off this sequence of questions by your statement that he was always worried and disturbed, I think was the phrase, and you have given me that example. Weren't there some times when he was not?

Mr. ARMSTRONG. There was very few times when he was not and I always had the feeling that if he had that smile and talking and laughing, if it lasts all night, I always had the feeling that he would still have that worried and disturbed look and expression, later on after the club closed, somewhere after—I don't know—after he got in bed or the next morning or something like that. It never lasted long.

Mr. HUBERT. You got along all right with him, didn't you?

Mr. ARMSTRONG. We got along—we was always arguing, differences of opinion and things like that.

Mr. HUBERT. Was he nasty with you?

Mr. ARMSTRONG. Not—I wouldn't say he was nasty. I would say if I didn't know him—I would say he was nasty. I would say that I would go so far as to say that he was even cruel.

Mr. HUBERT. To you?

Mr. ARMSTRONG. To me and to a lot of the employees.

Mr. HUBERT. Give us some examples of the cruelty you are speaking of.

Mr. ARMSTRONG. Well, you could say—we had a speaker in the corner, a high fidelity speaker over in the right-hand corner.

Mr. HUBERT. A loudspeaker?

Mr. ARMSTRONG. Yes, in the right-hand corner and it had to be turned on individually. It had to be turned on or it wouldn't come over the system and it was my job to see that it was turned on every night, and there was times I was too busy and had too many things to do and forgot about it, but not that often, and if he came in—the first thing he checked was the sound. The MC was on stage and if he couldn't hear that box over there, he would come straight to me and it was like I had took half of the club away or something like that.

Mr. HUBERT. What would he say or do?

Mr. ARMSTRONG. Well, he would just get all riled up about that—he would just get all riled up about that one little incident.

Mr. HUBERT. When you say “all riled up,” that's your own words of description of what he was doing, but we don't get just what his physical acts were unless you tell us. What is “riled up”? Raising his voice, cursing?

Mr. ARMSTRONG. Raising his voice.

Mr. HUBERT. Throwing his voice—throwing his arms about, hitting people, doing what?

Mr. ARMSTRONG. No, not hitting people—he wouldn't ever hit anyone, but it always the impression that he might. There was always the feeling that he might.

Mr. HUBERT. Did his facial expressions change?

Mr. ARMSTRONG. Sort of like.

Mr. HUBERT. Did he curse?

Mr. ARMSTRONG. No—no more than—the only curse word that he would use more when he did use it was damn it.

Mr. HUBERT. Well, on occasions like he got all riled up, as you have told us, would it consist of calling you a fool or threatening to fire you or raising his voice, cursing you, what was it?

Mr. ARMSTRONG. Threatening to fire me would be the thing, because he fired me 50 times or 100 times.

Mr. HUBERT. Apparently you didn't stay fired.

Mr. ARMSTRONG. He threatened my job every day.

Mr. HUBERT. He threatened your job every day?

Mr. ARMSTRONG. Almost every day.

Mr. HUBERT. And then what would happen?

Mr. ARMSTRONG. Nothing—if I left he would call me back. If I left there fired, all I would have to do is come down and open the club up the next day and go on back to work.

Mr. HUBERT. He wouldn't tell you you were fired, stay away; you wouldn't even talk about the subject any more?

Mr. ARMSTRONG. No.

Mr. HUBERT. I can understand that that would happen after you had gone through that firing and rehiring once or twice, but first of all when you got fired, it must have seemed odd to you to go back?

Mr. ARMSTRONG. Well, the first time that it actually really happened was one night he fired me on Saturday night. It was a Saturday night and I usually had a ride on Saturday night because the last bus run at 1 o'clock, and if I didn't catch that ride at 1:30, well, I would have to get a cab, which I can't afford to get a cab. It is \$1.65. He said something about staying a little late-something—I don't know—it was a meeting, I think. He was always calling meetings.

Mr. HUBERT. Meetings of whom?

Mr. ARMSTRONG. Of waitresses.

Mr. HUBERT. All right, go ahead.

Mr. ARMSTRONG. And I said, “Well, I’ve got to catch my ride because I can’t spend cab fare, and you are not going to give me cab fare,” just like that, and I walked on out the door and he said, “Just don’t come back no more.” I said, “Okay,” and before I got downstairs, he had sent one of the girls downstairs to tell me that my week wasn’t up. It was on Saturday night—I worked during the day on Sunday to clean floors, and I worked during that day on Sunday 2½ hours cleaning the club up, and I said, “Well, okay, tell him okay, I’ll clean the club up tomorrow.” Just like that, and went on, because—I don’t know—you see, I understood Jack, and I knew what his reasons for sending her on down was—actually not to tell me to clean the floor up but to tell me I wasn’t really fired.

Mr. HUBERT. That was the first time you had gotten fired?

Mr. ARMSTRONG. That was the first time.

Mr. HUBERT. Then, you came back the next day and cleaned the club?

Mr. ARMSTRONG. Well, he called about 11 o’clock——

Mr. HUBERT. That’s on Sunday morning?

Mr. ARMSTRONG. Sunday morning and asked me, “Has anybody called,” and a few other things—he kept one of the dogs down there—he asked me had I fed the dog. He always asked me had I fed the dog, which he would know I fed the dogs. You know, and I would always reply, “You know I will always feed the dogs, why do you keep asking me have I fed the dogs?”

Mr. HUBERT. Anyhow, on this particular Sunday morning, what happened about your getting rehired?

Mr. ARMSTRONG. Well, he just said, “I’ll see you Monday.”

Mr. HUBERT. And from then on out I take it you figured when he fired you like that the only thing you would have to do is come back, and that is how it worked out?

Mr. ARMSTRONG. Yes, always, and he would come to the bar, I would say three times a night, and say, “If you can’t do like I want you to, get out. If you can’t do the things like I want you to, get out.” Well, there was an opinion there, because I know I was at the club more than he was and I had

my eyes on more things than he did and if I did a thing I know was right, because I have already experienced it before, which he hadn't——

Mr. HUBERT. What are you speaking of there?

Mr. ARMSTRONG. Well, I'm speaking of——

Mr. HUBERT. I'm talking about the things you say you had observed which he had not?

Mr. ARMSTRONG. Well, about certain things—you see, we had a system going that one thing that happened was the setups were served in a glass. If you wanted cold water or whatever you wanted—were served in a glass with the ice, with about this much room for liquor [indicating].

Mr. HUBERT. By “this much room” you are talking about 2 inches?

Mr. ARMSTRONG. No; about an inch and a quarter.

Mr. HUBERT. All right.

Mr. ARMSTRONG. And some customers comes in there quite often and if one of the waitresses says, “Andrew, this is for so and so—Mr. so and so, and he wants his drink—he wants his setup filled so and so, in other words, about a quarter of an inch or an inch from the top, I would do it that way, because I am trying to satisfy the customer and if Jack happened to walk to the bar and see it that way, he would get all riled up because that's Coca Cola he could be saving, and I never would go through the procedure of explaining it to him—why I filled it up that way.

Mr. HUBERT. What you are saying, I think, is that you had more of an opportunity to observe the likes and dislikes of the customers than he did?

Mr. ARMSTRONG. Than he did.

Mr. HUBERT. Did you ever see him get angry and actually use physical violence respecting any patron or anybody at all?

Mr. ARMSTRONG. Well, I have seen him grab a couple of men in the club and throw them out when they was due to leave—when he asked them to.

Mr. HUBERT. And when you say “throw them out,” would you explain what physical activity was involved?

Mr. ARMSTRONG. No more than grabbing a guy and locking him behind his arm, you know, catching him through the arms this way [indicating], from behind.

Mr. HUBERT. And hustling him out?

Mr. ARMSTRONG. And hustling him out.

Mr. HUBERT. Did you ever see him strike anybody?

Mr. ARMSTRONG. I never saw him strike anybody. Of course, it was said to be a couple of times he did strike someone.

Mr. HUBERT. Do you remember an occasion when a taxicab driver came in there looking for someone?

Mr. ARMSTRONG. I wasn't working there then.

Mr. HUBERT. You have heard about that occasion?

Mr. ARMSTRONG. I read about it.

Mr. HUBERT. Did you ever hear him threaten to throw any of the girls or anybody down the stairs of the club?

Mr. ARMSTRONG. A couple of times, I believe, I have heard him threaten to throw even a girl down the stairs.

Mr. HUBERT. Well, you distinctly remember the incident about the girl, don't you?

Mr. ARMSTRONG. Well, the one I remember was Diane.

Mr. HUBERT. What happened about that?

Mr. ARMSTRONG. Well, Jack always said that Diane bugged him and I said we couldn't afford to lose her because she was a good waitress—she made the club money and I would say he had told Diane that she had 2 weeks' notice every other night for a whole year—they just didn't get along.

Mr. HUBERT. Well, get to the point about threatening to throw her downstairs.

Mr. ARMSTRONG. Well, he had threatened to throw her down the stairs for some reason or other—I don't recall.



Mr. HUBERT. Did he start to do it?

Mr. ARMSTRONG. He never put his hands on her—he didn't touch her.

Mr. HUBERT. You never saw him put anybody out by the stair route?

Mr. ARMSTRONG. No—just the customers.

Mr. HUBERT. Well, when he pushed the customers out, as you explained a little while ago, he did that by grabbing their arms from the back and hustling them out, you mean he hustled them downstairs?

Mr. ARMSTRONG. Just to the door, the stairs door.

Mr. HUBERT. There was a door at the top of the stairs?

Mr. ARMSTRONG. There was a door at the top of the stairs, and he would automatically give somebody the sign to call the police.

Mr. HUBERT. Did you sleep in the club, ever?

Mr. ARMSTRONG. Well, when I first started to work there when I was working the two jobs, I slept there so I could get up—I could sleep longer and be at Marilyn belt factory.

Mr. HUBERT. Do I understand from that, that after you left the factory, that you didn't sleep there any more?

Mr. ARMSTRONG. About 3 or 4 weeks—about 3 weeks I did.

Mr. HUBERT. What was Ruby's habit with respect to arriving at the club and going home, as far as you could observe?

Mr. ARMSTRONG. Unpredictable.

Mr. HUBERT. What?

Mr. ARMSTRONG. Unpredictable.

Mr. HUBERT. You mean he didn't have a special time for calling and running in and so forth?

Mr. ARMSTRONG. No; he didn't have any special time.

Mr. HUBERT. He did call about feeding the dogs every day, didn't he?

Mr. ARMSTRONG. He called.

Mr. HUBERT. That was pretty regular?

Mr. ARMSTRONG. I would always call his house when I got to the club about—anywhere from 12 to 1 o'clock.

Mr. HUBERT. You would call his house to check in with him?

Mr. ARMSTRONG. That's right.

Mr. HUBERT. Then what?

Mr. ARMSTRONG. And then he would probably call me three or four times that day to see if any calls had come in or if he said, "I'll be down to the club at a certain time and you can look for me; I'll be there about 2 o'clock or about 3:30."

Mr. HUBERT. Is it fair to say that this much was routine, when you got to the club around midday you would call him?

Mr. ARMSTRONG. That was a routine.

Mr. HUBERT. And it was also a routine that he would call you daily, three or four times a day, is it not?

Mr. ARMSTRONG. That's right.

Mr. HUBERT. Whether he came in or not—there was no routine about that?

Mr. ARMSTRONG. No—there was no routine about that. The most routine he had was about coming in the club at night.

Mr. HUBERT. Tell us about that.

Mr. ARMSTRONG. He was very seldom there at showtime—that's 9 o'clock—but he would always be in by 10 o'clock. In other words, he would always come in between 9 and 10.

Mr. HUBERT. And how long did he stay?

Mr. ARMSTRONG. He would close up.

Mr. HUBERT. Which was what time?

Mr. ARMSTRONG. Around 1 o'clock, I would say. He would usually spend more time at the club after the show than anybody else. In other words, if I was closing up I would be right out; if he was closing up, he

would walk around and he would look for this and he would check that and just a waste of time—if he had anyone waiting on him they would probably be gone to sleep before he left.

Mr. HUBERT. Did you have to wait until all of this was finished before you left?

Mr. ARMSTRONG. No; I would always leave before the last show. In other words, I caught a 1 o'clock bus; I caught the 1 o'clock bus.

Mr. HUBERT. So you weren't there most of the time when the club closed?

Mr. ARMSTRONG. No.

Mr. HUBERT. This settlement you made with him every night was really before the club closed?

Mr. ARMSTRONG. The settlement was for the bar; on week nights, you didn't have any bar which was after 12:15 unless it was near-beer or anything like that, and I usually checked the bar—checked my receipts and count my money—started about a quarter to 1 and if there were any sales after I left he would take them himself.

Mr. HUBERT. And that settlement that you and he went through was in his office, I take it? Or right at the bar?

Mr. ARMSTRONG. No; you see, I would wrap all the money up and put it in a bag and wrap a rubberband around it. The change is all that was left, with a slip in the register of how much change it was.

Mr. HUBERT. Did the register record the sales?

Mr. ARMSTRONG. The register recorded the sales.

Mr. HUBERT. What was done with the slip of recordation?

Mr. ARMSTRONG. It was kept in the files.

Mr. HUBERT. Did he ever check to see whether the amount of sales checked out with the amount of money that you turned over to him?

Mr. ARMSTRONG. Every day; if it was a nickel short he would call me over the phone or he would tell me about it when I called him.

Mr. HUBERT. In other words, this checkout would not be done when you turned over the money to him at night, but, rather, the next day?

Mr. ARMSTRONG. You see, I checked it myself.

Mr. HUBERT. Against the cash register?

Mr. ARMSTRONG. Against the cash register.

Mr. HUBERT. And it was supposed to balance out?

Mr. ARMSTRONG. And I gave him the receipts, and anytime I walked up and gave him a receipt, if I was at least a dollar short or anything like that, I would say, "It's a dollar short," and just go ahead on. I would just hand him the receipts and he would usually stick them in his coat pocket and that's the way it always would happen.

Mr. HUBERT. What about Sundays; did you come over then or did you call him the same way?

Mr. ARMSTRONG. I would call him on Sundays or he would call me. He would either tell me on Saturday night to wake him up a certain time on Sunday morning if he was going to get up early; if not, he would call me. He knew I would always leave anywhere from between 11 and 12 o'clock.

Mr. HUBERT. Do you know where he lived during the time you worked for him?

Mr. ARMSTRONG. Well, he lived once on Marsalis, I think it was, right around the zoo, and I think he lived on Ewing.

Mr. HUBERT. Those are the only two places you know of?

Mr. ARMSTRONG. Those are the only two places I know of.

Mr. HUBERT. Had you ever been to either apartment?

Mr. ARMSTRONG. I went to both of them—once each.

Mr. HUBERT. Was he living with anybody at either one?

Mr. ARMSTRONG. The only one that I ever knowed that lived with him was George Senator.

Mr. HUBERT. But you didn't see George Senator working there, did you; you didn't see George Senator living with him?

Mr. ARMSTRONG. No.

Mr. HUBERT. What you know about George Senator living there comes from what people told you?

Mr. ARMSTRONG. From what people told me, and I called and he answered the phones and things like that, and Jack mentioned the fact that George kept all the food around and got him to eating again. You see, he usually was on a diet and certain foods he didn't eat because he was on a diet, but if they were around him in his refrigerator he would eat them.

Mr. HUBERT. Was Jack a pretty strong man?

Mr. ARMSTRONG. He went to the gym quite often and exercised; is that what you mean—physical?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. Yes; I know he went—I called him at the gym a number of times. If he would tell me he was on his way to the gym, he would be there, and that was three times a week, I'm sure.

Mr. HUBERT. Did you have any opportunity to observe whether he was a powerful man or not?

Mr. ARMSTRONG. No.

Mr. HUBERT. So, what you are telling us is he took exercise and went to a physical exercise club?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. He took exercise?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What about the dogs that he kept there?

Mr. ARMSTRONG. Well, there is nothing much about them—just some dachshunds.

Mr. HUBERT. How many did he have?

Mr. ARMSTRONG. Well, at one time—first he had a little dog named Sheba, which was half Chihuahua or something, I don't know what it were, and she got lost, and they were named Clipper and Sheba.

Mr. HUBERT. Well, he had Sheba right up to the last, didn't he?

Mr. ARMSTRONG. Yes; he had Sheba right up to the last.

Mr. HUBERT. What do you mean, "She got lost"?

Mr. ARMSTRONG. No, no—I mean Sweetie—the little dog that got lost was named Sweetie.

Mr. HUBERT. I thought you said Sheba got lost.

Mr. ARMSTRONG. Sheba and Clipper were the only ones he had then, and then Sheba had some puppies and they grew back up to about 9 and he started giving those away and he kept one of those.

Mr. HUBERT. He kept all of those at the club?

Mr. ARMSTRONG. No; they weren't all at the club at one time.

Mr. HUBERT. I understand. What part of the club did he keep the dogs in, no matter how many he had?

Mr. ARMSTRONG. At the room away at the back—he kept them back there.

Mr. HUBERT. And your job was to feed them?

Mr. ARMSTRONG. I fed them every day.

Mr. HUBERT. And he was very strict about that, I take it?

Mr. ARMSTRONG. He was very strict about it. I would feed the, you know, the little dogs and play with them sometimes.

Mr. HUBERT. Have you had any opportunity to observe Jack's attitude toward women?

Mr. ARMSTRONG. No more than any other man, especially a single man.

Mr. HUBERT. Well, he was not married?

Mr. ARMSTRONG. No; he was always on the make.

Mr. HUBERT. Did he go out any?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You said he was "on the make."

Mr. ARMSTRONG. All the time.

Mr. HUBERT. With reference to what kind of women?

Mr. ARMSTRONG. Intelligent, beautiful.

Mr. HUBERT. Well, do you mean the people who came to the club, or the waitresses?

Mr. ARMSTRONG. Well, some waitresses, some dancers, and some women that he had invited to the club.

Mr. HUBERT. Did he date any of them?

Mr. ARMSTRONG. He dated—yes.

Mr. HUBERT. How do you know that?

Mr. ARMSTRONG. Well, from him—he told me a few girls he dated, and there were some girls that told me that they dated him.

Mr. HUBERT. Did any of the girls tell you anything about their sexual relationship with him, if any?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he ever tell you about any sexual relationship with any of them? With women.

Mr. ARMSTRONG. No. Not in that sense; no.

Mr. HUBERT. What about his attitude toward men from a sexual point of view?

Mr. ARMSTRONG. He didn't have any attitude toward men.

Mr. HUBERT. You know what I am talking about—did he have any tendencies that you could observe of homosexuality?

Mr. ARMSTRONG. No.

Mr. HUBERT. You know what homosexuality is, don't you?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. I suppose you have seen or met perhaps people who are alleged to be homosexual?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. I suppose, too, that you are able to recognize some of the characteristics of people who are homosexuals?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did he have any of the such characteristics?

Mr. ARMSTRONG. Not that I could observe.

Mr. HUBERT. Have you any reason whatsoever to believe that he was a homosexual?

Mr. ARMSTRONG. No reason at all.

Mr. HUBERT. Have you any reason to believe whatsoever that he had any kind of sexual perversion? Do you know what I mean by that?

Mr. ARMSTRONG. Not exactly.

Mr. HUBERT. Well, that he had sexual relationships either with women or men in other than the normal way?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you know anything about any possibility of a strange sexual attitude that he might have had toward these dogs you are talking about?

Mr. ARMSTRONG. No more than he loved them. I know that he would come in the club and he would lay down and take a nap and the dogs, too—Sheba would probably be lying very close to him, or one of the other little dogs, but I had a little dog that I did the same way myself.

Mr. HUBERT. What I'm getting at is his attitude in relationship to those dogs was that he loved the dogs in the way that any normal man would love dogs, and no more?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Is that correct?

Mr. ARMSTRONG. Right.

Mr. HUBERT. What was the financial condition of the club, as far as you know?



Mr. ARMSTRONG. Not good.

Mr. HUBERT. Well, now, before you expand into that, do you know when it opened, when the Carousel opened?

Mr. ARMSTRONG. I don't know when the Carousel opened.

Mr. HUBERT. It was open when you went there?

Mr. ARMSTRONG. It was open when I went there.

Mr. HUBERT. Do you know how long it had been open, had you heard?

Mr. ARMSTRONG. Well, the first was in 1961 or I think of 1960—the last of 1960, because I think there was a prior club during 1960 there.

Mr. HUBERT. In other words, the Carousel had been in existence as such and under that name for about 18 months before you went with it?

Mr. ARMSTRONG. I believe so.

Mr. HUBERT. Now, why do you think the financial condition of the club was not good?

Mr. ARMSTRONG. Well, there was—compared to the other two clubs it was not good, because the other two clubs—the Theatre Lounge and the Colony Club—they did a lot more business than the Carousel did.

Mr. HUBERT. When you said they did more business, you mean they had more people in there?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That would mean, I suppose, something—that there were more customers than the other place, but was the Carousel making money or losing money?

Mr. ARMSTRONG. Well, I would say it was making enough to pay the bills and paying overhead.

Mr. HUBERT. Did you ever talk to Jack about that?

Mr. ARMSTRONG. No; he would always—if we had a month of good business, he would say, “Business is picking up,” you know.

Mr. HUBERT. Did you ever make a calculation yourself—I don't mean necessarily by putting it down in writing, but by thinking about what you

knew had come in and what you knew had gone out, to figure out whether it was making or losing money?

Mr. ARMSTRONG. Well, it was making a little, but how much I don't know. It lost after the assassination, because I handled all that—all the receipts then.

Mr. HUBERT. What do you suppose were the average receipts that you know of, at least, for a week from the time you were there until Ruby went to jail?

Mr. ARMSTRONG. Per week—for a week— oh, I would say about an average of \$900—or a \$1,000.

Mr. HUBERT. Would that include Sunday nights' receipts?

Mr. ARMSTRONG. That would include Sunday night's.

Mr. HUBERT. How would you know about Sunday night?

Mr. ARMSTRONG. Sunday was always a bad night—I would always know what was the receipts on Sunday night.

Mr. HUBERT. You weren't in there.

Mr. ARMSTRONG. But I would always know—I would be the one to file the receipts.

Mr. HUBERT. Do you know Ralph Paul?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Tell us what you know about him?

Mr. ARMSTRONG. I know that he is a very nice gentleman, a good businessman and didn't want to be bothered with the Carousel.

Mr. HUBERT. Did he have any interest in the Carousel?

Mr. ARMSTRONG. No; none whatsoever.

Mr. HUBERT. How do you know?

Mr. ARMSTRONG. Financial interest?

Mr. HUBERT. Yes; financial interest.

Mr. ARMSTRONG. Yes, sir, I'm pretty sure he had financial interest, but I don't know how much it was.

Mr. HUBERT. When you said a minute ago he had no interest, you meant interest in running it?

Mr. ARMSTRONG. Interest in running the club.

Mr. HUBERT. Did he own a part of the club?

Mr. ARMSTRONG. Yes, he owned a part of the club.

Mr. HUBERT. Do you know how much?

Mr. ARMSTRONG. No; I don't know how much it was.

Mr. HUBERT. Was there any sharing of profits with him that you observed?

Mr. ARMSTRONG. I never observed any.

Mr. HUBERT. Well, as a matter of fact, didn't he come there, several times a week?

Mr. ARMSTRONG. Usually, he came in on Saturday night, if he came in. I never saw him there over one or two times.

Mr. HUBERT. Other than Saturday night?

Mr. ARMSTRONG. Other than Saturday night.

Mr. HUBERT. Did you ever see Jack give him any money?

Mr. ARMSTRONG. Never did.

Mr. HUBERT. Did you ever see him go back to the back room and discuss matters—or just go back with Jack?

Mr. ARMSTRONG. I saw him in the office talking and watching television.

Mr. HUBERT. Now, what makes you believe he had a financial interest?

Mr. ARMSTRONG. Because he told me—he told me he had a financial interest in it and Jack said he had a financial interest.

Mr. HUBERT. Then, both Paul and Ruby told you that Paul had a financial interest in it?

Mr. ARMSTRONG. Jack told me that he didn't have no financial interest in the club.

Mr. HUBERT. Paul told you that he did, but Jack told you that he did not?

Mr. ARMSTRONG. Jack told me that Ralph Paul had a financial interest in the club, but he, himself, did not.

Mr. HUBERT. Oh, that Jack himself did not?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Well, did you—did he tell you whether Paul was the only one who had a financial interest, or were there other people?

Mr. ARMSTRONG. Well, he said that it was this Mr. Paul and one of his brothers.

Mr. HUBERT. Did he say which one?

Mr. ARMSTRONG. Sam Ruby, I think, he said.

Mr. HUBERT. The one that lives in Dallas?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you ever see him around there?

Mr. ARMSTRONG. Once—once or twice he came down to help out—once he came down to help out and he came in two other times that I remember.

Mr. HUBERT. So, in other words, Jack denied that he had any interest in the Carousel?

Mr. ARMSTRONG. Yes, sir; right.

Mr. HUBERT. What was his relationship, then, to the Carousel?

Mr. ARMSTRONG. Well, as manager only.

Mr. HUBERT. Did he get a salary, do you know?

Mr. ARMSTRONG. He said he got a salary, but I don't know how much.

Mr. HUBERT. Other than the two or three times that Sam Ruby came in, did you ever see him?

Mr. ARMSTRONG. Did I ever see Sam Ruby?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. No; I never saw him.

Mr. HUBERT. Did you ever see Ralph, other than the times you saw him at the club?

Mr. ARMSTRONG. Never did.

Mr. HUBERT. Did you ever hear of the S&R Corp.?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. What was your understanding of the relationship between that corporation and the Carousel?

Mr. ARMSTRONG. Well, it was known as the S&R Corp. doing business as the Carousel, is the way the thing was supposed to be, and as far as the corporation was concerned, I understand that Ralph Paul was president, Sam Ruby was secretary-vice president and there was somebody else who was—well, I believe Sam Ruby was secretary-treasurer, and Jack was the manager, or something like that at one time, and then at another time, Jack wasn't even the manager.

Mr. HUBERT. When was that?

Mr. ARMSTRONG. Well, it was after all this happened.

Mr. HUBERT. Oh, yes.

Mr. ARMSTRONG. We were trying to find the corporation papers and he took his name off as being manager of the corporation.

Mr. HUBERT. Did George Senator work at the Carousel?

Mr. ARMSTRONG. Sometimes he did.

Mr. HUBERT. How often?

Mr. ARMSTRONG. Oh, I would say he had been there 15 or 20 times working as a doorman.

Mr. HUBERT. Now, do you mean 15 or 20 times during the 18 months you were there?

Mr. ARMSTRONG. During the 18 months that I was there.

Mr. HUBERT. That would be about once a month?

Mr. ARMSTRONG. About once—but I think it mostly came in a short period of time when he had worked there.

Mr. HUBERT. In other words, the 15 or 18 or 20 times he did come was not on an average of once a month, but in a sequence of days?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. So that there were lots of times he was never around there?

Mr. ARMSTRONG. Right.

Mr. HUBERT. How often do you suppose you have seen him?

Mr. ARMSTRONG. Quite often.

Mr. HUBERT. More than the 15 or 20 times that you saw him at the club?

Mr. ARMSTRONG. Well, he was at the club lots of times when he was not working.

Mr. HUBERT. The 18 or 20 times—you mean were the times he worked?

Mr. ARMSTRONG. Right.

Mr. HUBERT. He was at the club more often than that?

Mr. ARMSTRONG. Right.

Mr. HUBERT. How often, as a matter of fact?

Mr. ARMSTRONG. Oh, once or twice a week, I would say.

Mr. HUBERT. What would he do then?

Mr. ARMSTRONG. Oh, just come in and have a beer.

Mr. HUBERT. Did he stay around a long time?

Mr. ARMSTRONG. And visit with friends.

Mr. HUBERT. Would he stay around a long time and go home with Jack?

Mr. ARMSTRONG. Lots of times he was there when I left, and lots of times he left before I left, and I have seen him lots of times working, you know, he had this Texas Postcard thing and I would see him downtown. As

a matter of fact, I helped him move the postcards from where—from some place out in Highland Park over to Cedar Springs here.

Mr. HUBERT. Do you know anything about his relationship in a sexual way toward men?

Mr. ARMSTRONG. No; I sure don't.

Mr. HUBERT. In your own opinion, you wouldn't think he would be classified as a homosexual?

Mr. ARMSTRONG. No.

Mr. HUBERT. He showed no traits such as you recognize them on homosexuality?

Mr. ARMSTRONG. None whatsoever.

Mr. HUBERT. Did you know Eva Grant?

Mr. ARMSTRONG. Yes, sir; in a sort of a way.

Mr. HUBERT. Well, tell us what sort of way?

Mr. ARMSTRONG. Well, I have talked to her on the telephone more times than I have seen her—a number of times more than I have seen her.

Mr. HUBERT. How many times do you suppose you have seen her in the 18 months you have worked there prior to Jack's arrest?

Mr. ARMSTRONG. Fifty times, I guess.

Mr. HUBERT. You talked to her on the telephone far more than 50 times—3 or 4 times more?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where did you see her when you usually saw her?

Mr. ARMSTRONG. The first time I saw her was at the Vegas Club.

Mr. HUBERT. Did you work at the Vegas, too?

Mr. ARMSTRONG. No.

Mr. HUBERT. Tell us what you know about the ownership and operation of the Vegas?

Mr. ARMSTRONG. Nothing; not a thing.

Mr. HUBERT. Did Jack have any interest in it that you heard of—I know you wouldn't know about any books or anything like that.

Mr. ARMSTRONG. Well, he told me he owned the club.

Mr. HUBERT. That's what I mean—so far as what you know about it, you got from him, and that was to the effect that he owned it?

Mr. ARMSTRONG. That he owned it—right.

Mr. HUBERT. What did you know about the relationship of Eva Grant to the Vegas Club.

Mr. ARMSTRONG. That she was just running the club. She was his sister and she was taking care of the club.

Mr. HUBERT. Did Jack go over there very often?

Mr. ARMSTRONG. I don't know. On Friday and Saturday nights they usually have a little amateur show over there and we went over there every Friday night, but that stopped, oh, sometime in the latter part of 1963, and I don't know whether he went over there often then or not. He would call me a few times from over there.

Mr. HUBERT. Well, the 50 or 60 times you saw her, Eva Grant, would it have been at the Vegas or the Carousel?

Mr. ARMSTRONG. Well, I had saw her more times since the assassination than I did before the assassination.

Mr. HUBERT. Very well, but the 50 times or so you saw her from the time you first went to work, would that include the number of times you have seen her since the assassination?

Mr. ARMSTRONG. Well——

Mr. HUBERT. Because, I had meant to restrict this inquiry as to the number of times you had seen her between the time you went to work and the assassination.

Mr. ARMSTRONG. Very few times—very few.



Mr. HUBERT. Then, we have to revise, I think, to some extent, what your testimony has been, because I have been thinking that you had seen her some 50 times during the period between May 1962, and November 24, 1963, but apparently I was wrong on that.

Mr. ARMSTRONG. No; I hadn't saw her over 10 times on that.

Mr. HUBERT. So, there are about 10 times you have seen her in the period of time prior to the assassination?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And where would that have been usually?

Mr. ARMSTRONG. Well, I would say three times at the Vegas and the other seven times at the club. I would say she came in the club seven times and these times would be on a Monday night, I would say, about seven times she had been in that club.

Mr. HUBERT. Why do you say 7 instead of, for instance, 12 or 5?

Mr. ARMSTRONG. Well, I'm just saying I remember seeing her 3 times—I can almost pinpoint the times that I saw her. Let's see—she came there—Monday, Tuesday——

Mr. HUBERT. Well, we need not go into the details—apparently you have some reason you remember seeing her at the club?

Mr. ARMSTRONG. Well, I was going by the times I saw her with a certain person.

Mr. HUBERT. Who was that certain person?

Mr. ARMSTRONG. Well, I know that I had saw her with a little waitress named Susie—the first time I saw her at the club.

Mr. HUBERT. At the Carousel?

Mr. ARMSTRONG. Right. The next time I saw her at the Carousel she had come in with some people that I never saw before, and she always introduced me to whoever she was with if I don't know them, and the next time she came in, I think it was the accountant, Mr. Klinman, and then again she came in with some more people that I didn't ever know before.

Mr. HUBERT. Different from the first group?

Mr. ARMSTRONG. Different from the first group and again she came in by herself about three times—three times—I'm sure—by herself, alone.

Mr. HUBERT. That makes about seven or eight times?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. At the Carousel?

Mr. ARMSTRONG. At the Carousel.

Mr. HUBERT. And at the Vegas you saw her three times?

Mr. ARMSTRONG. Three times—I was at the Vegas Club three times, I think, and saw her there.

Mr. HUBERT. Now, during the period beginning from the time you first began to work there and until the assassination, how many times did you speak to her by telephone?

Mr. ARMSTRONG. Three or four times a week.

Mr. HUBERT. What was that about?

Mr. ARMSTRONG. Oh, nothing much—you see you—she would call you and forget what she called you for, or, just to talk about her troubles.

Mr. HUBERT. Was it about the business of the Carousel?

Mr. ARMSTRONG. Well, no, just about her troubles—just to talk about her troubles. She will call me, if she needed anything fixed, she wanted me to tell Howard to stop over and do some repair work for her. I have called her about something I might need for a second night and I couldn't get it and if she had it I would send someone out for it or she would send it over to me, and things of that nature, but the biggest part of the time she called me was when she and Jack were in a row with each other.

Mr. HUBERT. Did that happen very often?

Mr. ARMSTRONG. They both—she would cry on my shoulder and he would cry on my shoulder about each other.

Mr. HUBERT. Did that happen very often?

Mr. ARMSTRONG. Very often.

Mr. HUBERT. How often during the time you were there and until the assassination?

Mr. ARMSTRONG. Every other week I would say.

Mr. HUBERT. Now, I don't want to pin you down to anything mathematical, but during the period of 18 months, that's pretty often.

Mr. ARMSTRONG. I would say so.

Mr. HUBERT. You are talking about something like—that would be 70 weeks roughly, and 18 months, and every other week would be about 35 times they had rows you know of?

Mr. ARMSTRONG. I would say about 35 times, if that's the way the calculation is there.

Mr. HUBERT. How did these rows come to your attention?

Mr. ARMSTRONG. Because they would always tell me. If it was something she didn't want to do—if it was something she wanted to do and he didn't want to do it, a lot of times it would maybe happen on the telephone from the club. It was sometimes—difference of opinions, about something.

Mr. HUBERT. Apparently they patched those things up too, didn't they?

Mr. ARMSTRONG. Well, apparently—they would always be back on good terms—it was just like, well, they were before, on the same key. In other words, Jack would get riled up and you will think he was going to walk off of this building and the next minute he was just as sweet as he could be and she was the same way.

Mr. HUBERT. What was the relationship of the club and Jack to the police department and the individual members of it?

Mr. ARMSTRONG. Well, I think that the club had a good record and as far as policemen—there was no relation. There was not ever any certain policemen come into the club. We had patrolmen stop in for coffee sometimes, never the same one—hardly ever.

Mr. HUBERT. Would they be in uniform?

Mr. ARMSTRONG. In uniform—just like they do all the other clubs, and you would have the vice stopping in just like they do the rest of the clubs, walking around, looking around, never sit down.

Mr. HUBERT. Wasn't there some special arrangement with reference to what they would be charged?

Mr. ARMSTRONG. Well, the policemen always paid the same price as newsmen and their boys, which was 40 cents on beer, policemen, bellboys, hotel clerks and things like that and newsmen.

Mr. HUBERT. They all had a cut rate?

Mr. ARMSTRONG. They all had a cut rate.

Mr. HUBERT. That was true of members of the vice squad too?

Mr. ARMSTRONG. That included members of the vice squad. Of course, I never seen any members of the vice squad take anything to drink, any beer or anything like that.

Mr. HUBERT. I think you mentioned one particular member of the vice squad called Gilmore?

Mr. ARMSTRONG. Mr. Gilmore.

Mr. HUBERT. Tell us about him?

Mr. ARMSTRONG. Well, Mr. Gilmore is a man that will, I believe and everybody else believes, and Jack was afraid of Mr. Gilmore—I know of.

Mr. HUBERT. How do you know he was afraid of him?

Mr. ARMSTRONG. I know he was afraid of him because he was nervous whenever Mr. Gilmore was in the club.

Mr. HUBERT. Did he tell you he was afraid of him?

Mr. ARMSTRONG. No—he would show it.

Mr. HUBERT. How would he show it?

Mr. ARMSTRONG. By—making sure that everything was perfect and if it was close to curfew then he would say all the glasses and bottles have to be off of the table by 1:15—12:15 week nights and 1:15 Saturday nights. If Mr. Gilmore was in the club at that time you would see Jack out in the

audience hustling glasses and bottles off of the table, because he knew that if Mr. Gilmore saw anything or anybody drinking in there, he was subject to getting a 5-day suspension or a ten-day.

Mr. HUBERT. In other words, when Gilmore was in the club he enforced the rules more strictly than when Gilmore was not in the club?

Mr. ARMSTRONG. Watch over it more strictly, which is something that most club owners do when there are vice squad members in the clubs.

Mr. HUBERT. Then, was the relationship between Ruby and Gilmore different from the relationship of Ruby and any other member of the vice squad?

Mr. ARMSTRONG. No; you see, the only time—no; not any different, because if there was any other member of the vice squad in there, which Mr. Gilmore is the only one I know by name, is because he is the one that most people fear.

Mr. HUBERT. You mean he has the reputation of being tougher than any of the other members of the vice squad?

Mr. ARMSTRONG. Well, I guess that's what it is. It's just something you pick up. You never saw him arrest anyone, you never saw him close anyone's club up——

Mr. HUBERT. Was he a captain or what was his rank, do you know?

Mr. ARMSTRONG. A lieutenant, I think.

Mr. HUBERT. Do you know his first name?

Mr. ARMSTRONG. No; I don't know his first name.

Mr. HUBERT. Did Jack ever tell you anything about him?

Mr. ARMSTRONG. No; he just said that some of the old time waitresses—we had one up there by the name of Alice and Jack and some other girl who was discussing Mr. Gilmore and they were discussing his reputation, and Alice mentioned the fact that Mr. Gilmore would arrest his mother if he caught her doing wrong.

Mr. HUBERT. What is her last name—what is Alice's last name?

Mr. ARMSTRONG. Her name is Alice Alexander.

Mr. HUBERT. She was what?

Mr. ARMSTRONG. She was a waitress.

Mr. HUBERT. Did you know anybody by the name of Alice Nichols?

Mr. ARMSTRONG. I talked to her about twice on the telephone—no, no; not Alice—this was Mrs. Blackmon, I'm sorry. Alice Nichols?

Mr. HUBERT. Alice Reeves Nichols.

Mr. ARMSTRONG. I heard the name.

Mr. HUBERT. You have never met her?

Mr. ARMSTRONG. I have never met her.

Mr. HUBERT. You have never talked to her?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I want to get to the events and your activities, and the activities of others that you observed during the period just preceding the assassination of President Kennedy and for a few days thereafter. Now, first of all, did your routine follow the usual pattern that you have already described until the date of the assassination of President Kennedy?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. Is there anything you can think of that was not ordinary during that period of time?

Mr. ARMSTRONG. That I can think of that was not ordinary?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. No—everything was as usual.

Mr. HUBERT. Did you talk to Jack about the forthcoming visit of the President?

Mr. ARMSTRONG. No; we didn't discuss the visit of the President. As a matter of fact, I got behind on the date. I was planning on being downtown that day—that morning myself.

Mr. HUBERT. Well, now, didn't you ask Jack to adjust your schedule in such a way that you could go and see the parade and see the President pass

by?

Mr. ARMSTRONG. Well, my schedule of the President was already passed by when I got downtown.

Mr. HUBERT. I'm talking about prior to the time—to November 22—a day or two before, didn't you discuss with Jack about going to see the parade?

Mr. ARMSTRONG. Well, I think I mentioned it to somebody that I would be over to see the parade.

Mr. HUBERT. Didn't you talk to Jack about it?

Mr. ARMSTRONG. I don't know for sure—it could have been Jack—now.

Mr. HUBERT. Do you recall any comment that he made about going to see the parade?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he seem to be interested in the President's visit?

Mr. ARMSTRONG. I remember there was something about a conversation going on between him and someone that—I was passing by on the way to the bus—and it was that he seemed delighted that the President was coming to Dallas.

Mr. HUBERT. In other words, you overheard Jack say something to someone to the effect that he was glad or delighted that the President was coming to Dallas?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Do you remember how long before the assassination you heard Jack say that?

Mr. ARMSTRONG. No; I don't—sure don't.

Mr. HUBERT. Were there any special plans being made in the club in connection with the President's visit?

Mr. ARMSTRONG. No.

Mr. HUBERT. Well, suppose you start off with your activities on the night before the President was shot, say the 21st—did you go home at the

usual time?

Mr. ARMSTRONG. At the usual time.

Mr. HUBERT. Which is to say—1 o'clock?

Mr. ARMSTRONG. 1 o'clock.

Mr. HUBERT. And your time for reporting would have been when?

Mr. ARMSTRONG. My time for working was 1 o'clock the next day.

Mr. HUBERT. Did you report at 1?

Mr. ARMSTRONG. Yes; I was there a little before 1.

Mr. HUBERT. How long before 1?

Mr. ARMSTRONG. Well, you could say—let's see, I stopped and got a haircut and I must have been on the 12 o'clock bus from out where I live.

Mr. HUBERT. What time did you get up that day?

Mr. ARMSTRONG. It was pretty early, I think I must have gotten up about 10 o'clock or 9:30—about 9 o'clock.

Mr. HUBERT. Then you went to get a haircut?

Mr. ARMSTRONG. I went to get a haircut.

Mr. HUBERT. And that's all you did between the time you got up and the time you got to the club?

Mr. ARMSTRONG. That's all I did.

Mr. HUBERT. And you got to the club about what time?

Mr. ARMSTRONG. It must have been about 12:15—12:20, or something like that, because when I got downtown I could see portions of the parade, you know, like I got off of the bus at Main and Field—at Main and Akard, I'm sorry, which is the usual stop, I always get off at Main and Akard, and further down you could see portions of the parade, but I felt that I had missed the parade—I didn't realize that I had missed the parade until I was in the barber shop and thought, well, maybe I'll get downtown, I said to myself, and I will see some portion of it, but when I got downtown I was surprised to see that the parade had already moved forward—further down.



Mr. HUBERT. Just for the record, what barber shop did you go to?

Mr. ARMSTRONG. Moore's Barber Shop on Scyene Road. I got to the club——

Mr. HUBERT. Now, before you get to that, wasn't it your job to see that the beer was kept on ice?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And how often did you check that?

Mr. ARMSTRONG. Every day.

Mr. HUBERT. And when did you do it?

Mr. ARMSTRONG. That's the first thing I did.

Mr. HUBERT. When you came in in the morning?

Mr. ARMSTRONG. When I came in in the afternoon.

Mr. HUBERT. You didn't have any special days to do it?

Mr. ARMSTRONG. I did it every day.

Mr. HUBERT. What about the delivery of the beer?

Mr. ARMSTRONG. Thursdays.

Mr. HUBERT. Only once a week?

Mr. ARMSTRONG. Once a week.

Mr. HUBERT. And what time did that take place?

Mr. ARMSTRONG. Anywhere from 11 on—Thursday. It was usually between 11 and 3 o'clock because I would usually leave the club at 3 o'clock.

Mr. HUBERT. All right, so you got to the Carousel about what time?

Mr. ARMSTRONG. About 12:15, I would say.

Mr. HUBERT. You had a key to get in, of course?

Mr. ARMSTRONG. Yes—I went in and I had to use the restroom, and so I went to the restroom and then I heard a lot of sirens and I listened to the sirens for a second or two and they got louder and they got more sirens, so I

decided I would go get my transistor and see what was going on, and that's when I heard that there had been a shooting at the President or something like that. Somebody had tried to assassinate the President, or something, and then I run in and I woke Larry up—Larry was staying there.

Mr. HUBERT. Who is Larry?

Mr. ARMSTRONG. Larry Crafard.

Mr. HUBERT. Where was he staying?

Mr. ARMSTRONG. He was sleeping in a little room there.

Mr. HUBERT. You say you went and woke him up?

Mr. ARMSTRONG. I woke him up.

Mr. HUBERT. How did you do it?

Mr. ARMSTRONG. Well—I shook him.

Mr. HUBERT. Was the door of his room closed or not?

Mr. ARMSTRONG. Well, the door of his room was—no, it wasn't closed.

Mr. HUBERT. How long had Larry been there?

Mr. ARMSTRONG. How long had he been there?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. He had been there since October, since the last of the State Fair.

Mr. HUBERT. Tell us what you know about him.

Mr. ARMSTRONG. I don't know anything no more than that he was working out at the State Fair somewhere and the first time I saw him is when Jack bought a little something—a little shack or a little house or something that was built at the State Fair by Olin Lumber Company, I think it was, and I don't know who it was—the company that bought it, and Jack bought the lumber from Olin Lumber Company because it hadn't been paid for and he had Howard and Larry to tear it down and bring it to the club, and that's when I met Larry is when he and Howard delivered the lumber to the club.

Mr. HUBERT. Did Jack tell you that Larry was going to work there?

Mr. ARMSTRONG. No, he told me there was a couple of kids to help haul the lumber, but there was only Larry and when I talked to him over the phone, I called him on the phone and told him they was there with the lumber and after they finished, he told me to give Larry something and let him get a shower or something and he would be down to talk to him later. We had a shower at the club.

So, he went in and showered and this and that, and that night Jack asked me did we still have the little cot around there that Larry was going to stay at the club a while—he didn't have anywhere to live, and I told him, "Yes," and showed Larry where he could find it and he was there ever since.

Mr. HUBERT. Did he tell you what Larry was supposed to do around the club?

Mr. ARMSTRONG. Well, Larry was supposed to do a little cleaning and things of that nature.

Mr. HUBERT. Was that supposed to be to relieve you of the cleaning job?

Mr. ARMSTRONG. That was supposed to be to help me out with the cleaning job.

Mr. HUBERT. When was Larry supposed to do that?

Mr. ARMSTRONG. Whenever he got up or whenever he had time.

Mr. HUBERT. Usually, what did he do?

Mr. ARMSTRONG. Usually he read books.

Mr. HUBERT. What I mean, is, when you got there at your usual time, had he begun to clean up?

Mr. ARMSTRONG. Usually he had begun to clean up.

Mr. HUBERT. He hadn't finished though?

Mr. ARMSTRONG. No.

Mr. HUBERT. Wasn't it your custom, or duty to wake him up every morning?

Mr. ARMSTRONG. No.

Mr. HUBERT. You didn't call him every morning to wake him up?

Mr. ARMSTRONG. No. If he was asleep I didn't even bother him. Usually he was awake, but there was sometimes that he was asleep and I didn't bother him.

Mr. HUBERT. Did he get paid?

Mr. ARMSTRONG. That, I don't know.

Mr. HUBERT. Did you ever see him take any money out of the cash register?

Mr. ARMSTRONG. I had given him money out of the cash register.

Mr. HUBERT. How much?

Mr. ARMSTRONG. Oh, a few bucks to eat off of. If he asked me for a couple of dollars, I would give it to him and let him sign a slip for it.

Mr. HUBERT. Was that authorized by Ruby?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. He had told you to do so?

Mr. ARMSTRONG. He told me to do so.

Mr. HUBERT. Had he given you any limit as to how much it would be?

Mr. ARMSTRONG. No; he hadn't given me any limit.

Mr. HUBERT. What would you do, make a slip to record it?

Mr. ARMSTRONG. Make a slip to record it.

Mr. HUBERT. And it amounted to what—to \$2 or \$3 a day?

Mr. ARMSTRONG. Something like that from \$2 to \$3—a couple of bucks a day.

Mr. HUBERT. You never gave him a regular salary?

Mr. ARMSTRONG. No; I didn't myself.

Mr. HUBERT. But what you know about it is—it never was over \$2 or \$3 a day?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he stay around the club at night when the shows were on?

Mr. ARMSTRONG. He stayed there.

Mr. HUBERT. What was he supposed to do then?

Mr. ARMSTRONG. Go to sleep if he wanted to.

Mr. HUBERT. Did he take part in any of the operation of the club? Like handling the lights, for example?

Mr. ARMSTRONG. He did handle the lights some. I tried to teach him how to work the lights, but he never did learn too well.

Mr. HUBERT. Did he do any other things around the club at night?

Mr. ARMSTRONG. No more than clean up, and that's all.

Mr. HUBERT. Did he eat there?

Mr. ARMSTRONG. He usually went out to eat—there was no food there. Well, he did—I'll take it back—Jack did bring him some eggs and things for him to fix his breakfast if he wanted to.

Mr. HUBERT. Was there a stove to do that?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you notice whether he did cook there much?

Mr. ARMSTRONG. About twice I noticed that he did.

Mr. HUBERT. Other than that he didn't cook?

Mr. ARMSTRONG. Not that I know of.

Mr. HUBERT. Now, from the time you got there say, around midday until you left at 1 o'clock in the morning, the next morning, would you say that Larry was there most of the time?

Mr. ARMSTRONG. He was there most of the time.

Mr. HUBERT. Did you get to be friendly with him?

Mr. ARMSTRONG. Friendly—well, not exactly. Friendly, but——

Mr. HUBERT. You got along all right?

Mr. ARMSTRONG. We got along all right.

Mr. HUBERT. There was no friction between you?

Mr. ARMSTRONG. No.

Mr. HUBERT. As I understand it, most of the time when you got there he had already been awake and at least begun to clean up, although most of the time he had not finished and you and he finished together?

Mr. ARMSTRONG. Right.

Mr. HUBERT. So, in a sense, he was helping you out?

Mr. ARMSTRONG. Right.

Mr. HUBERT. So you got to the club about 11:20 and you heard the sirens blowing and you turned on your transistor radio and you heard about the President being shot, and I think you said you went and woke Larry up?

Mr. ARMSTRONG. Well, I didn't finish that. I woke Larry up and I—he sat up and I went back out of the room and I went back to what I was doing because it was necessary—absolutely necessary.

Mr. HUBERT. You mean you were on the toilet, is that right?

Mr. ARMSTRONG. Yes; and then I heard further reports and I got up again and I went and told Larry the President had been shot.

Mr. HUBERT. The first time you went there you didn't tell him about the President being shot?

Mr. ARMSTRONG. No; I told him somebody shot at the President, and Larry—I noticed the couple of times that I had woke him up he always went back to sleep and he did the same thing this time, but when I told him that the President had been shot, he jumped straight up—he got up immediately and put his clothes on.

Mr. HUBERT. Now, what interval of time elapsed between the first time you woke him up and then went back to the toilet and the second time when you came back and told him the President had been shot?

Mr. ARMSTRONG. I don't know, it couldn't have been longer than a couple of minutes—I don't think.

Mr. HUBERT. All right. What did you all do then?

Mr. ARMSTRONG. We just walked around and listened to the radio, shaking our heads and waiting on more reports.

Mr. HUBERT. Did you have a television in the place?

Mr. ARMSTRONG. Yes; we had a television—I turned the television on.

Mr. HUBERT. Did you all listen to both the television and the radio?

Mr. ARMSTRONG. Both the television and the radio—there wasn't too much on the TV, so you could get more on the radio.

Mr. HUBERT. When did you hear from Jack, after the shooting of the President?

Mr. ARMSTRONG. Oh, I would say about 15 or 20 minutes.

Mr. HUBERT. After you first heard about it?

Mr. ARMSTRONG. After I first heard about it.

Mr. HUBERT. How did you hear from him?

Mr. ARMSTRONG. On the telephone.

Mr. HUBERT. What did he say?

Mr. ARMSTRONG. He just said, "Did you hear?" and I said, "Yes." He said, "Ain't it terrible?" "It's a shame." Just like that—real sadlike.

Mr. HUBERT. That was before the President had died?

Mr. ARMSTRONG. That was before the President had died.

Mr. HUBERT. Do you know where he was calling from?

Mr. ARMSTRONG. Well, I assumed he was calling from the Morning News.

Mr. HUBERT. Why do you assume that?

Mr. ARMSTRONG. Because I could always tell when he called from the Morning News.

Mr. HUBERT. Why—because of what?

Mr. ARMSTRONG. Well, usually on Saturday at the time he was at the Morning News—that was on a Saturday, wasn't it?

Mr. HUBERT. No; it was on Friday.

Mr. ARMSTRONG. It was on Friday—well, Friday or Saturday is the same as—the Saturday ads——

Mr. HUBERT. Well, is it your testimony then that he was usually at the Morning News on both Friday and Saturday attending to the ads for the week?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Is there any other thing that would make you believe he was there at the Morning News, such as some background noises that would be peculiar to a newspaper?

Mr. ARMSTRONG. Well—there was this typewriter that I always hear when he called from down there, and I only heard it at this time—about four clicks of it.

Mr. HUBERT. You mean on the time he called you about 20 minutes after the President had been shot?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You heard four clicks?

Mr. ARMSTRONG. On the typewriter that I usually hear it on.

Mr. HUBERT. Usually, you would hear a big clatter of it?

Mr. ARMSTRONG. Right.

Mr. HUBERT. At this time you heard about four clicks and no more?

Mr. ARMSTRONG. And no more.

Mr. HUBERT. Did you place any particular significance to that?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you now?

Mr. ARMSTRONG. No.

Mr. HUBERT. I was curious why you mentioned that fact then.



Mr. ARMSTRONG. Well, I mentioned it to verify the reason why I thought he was at the Morning News. He did not tell me he was at the Morning News.

Mr. HUBERT. I understand.

Mr. ARMSTRONG. But I assumed that he was at the Morning News.

Mr. HUBERT. Now, he asked you if you had heard and you told him yes and he said, "Wasn't it terrible," and so forth?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What else did he say?

Mr. ARMSTRONG. Well, he said if anything happens we are going to close the club up.

Mr. HUBERT. "If anything happens," I suppose you mean that he was inferring, or you thought he was, that if the President would die?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Did he say so in so many words?

Mr. ARMSTRONG. No.

Mr. HUBERT. He just said, "If anything happens."

Mr. ARMSTRONG. "We are going to close the club."

Mr. HUBERT. Any other conversation?

Mr. ARMSTRONG. No; he said, "I'll see you in about 30 minutes," and I would say he was there in about 5 minutes after they announced that the President was dead.

Mr. HUBERT. Do you remember what time that was?

Mr. ARMSTRONG. No; I don't recall what time it was.

Mr. HUBERT. In any case, within 5 minutes after you heard that the President was dead, Jack came in?

Mr. ARMSTRONG. He came in.

Mr. HUBERT. Did he know then that the President was dead?

Mr. ARMSTRONG. He knew.

Mr. HUBERT. Did he say so?

Mr. ARMSTRONG. Well, he was—he didn't say anything—he just got on the telephone. No, he said something about, "It's a shame." He kept saying, "It's a shame," like that and he got on the telephone and he was crying.

Mr. HUBERT. Do you know who he was speaking to on the telephone?

Mr. ARMSTRONG. Well, he spoke to his sister, he spoke to—he made some long-distance phone calls, I think one to his brother Earl.

Mr. HUBERT. How do you know that?

Mr. ARMSTRONG. He made one because it was—I could tell—I could usually tell when he was usually talking to his brother Earl.

Mr. HUBERT. Did he speak to Earl very often?

Mr. ARMSTRONG. Well, during that month of November he had spoken to him quite often about some business deal he was trying to get him to go into.

Mr. HUBERT. Do you know the nature of that business deal?

Mr. ARMSTRONG. Twist boards, I think it was.

Mr. HUBERT. You overheard the conversation?

Mr. ARMSTRONG. Yes, on this particular day?

Mr. HUBERT. No, I mean on the previous occasions?

Mr. ARMSTRONG. Yes, some of them.

Mr. HUBERT. Did you gather from what you heard Ruby say on the Dallas end of the line when he was talking to his brother Earl that he was trying to interest him in investing in the twist board invention?

Mr. ARMSTRONG. Well, no—not on this day. On the other days—he didn't say anything about the twist board this day.

Mr. HUBERT. I understand, I'm talking about the other day.

Mr. ARMSTRONG. Well, usually, I knew he was going to talk to him, he would say, "I'm going to call Earl," and he would ask for Earl's phone

number which was on a pad there by the phone. He would ask me or he would get it himself.

Mr. HUBERT. What was this twist-board business about?

Mr. ARMSTRONG. It was trying to promote a twist board, trying to get it to go over like the hula hula or something like that.

Mr. HUBERT. Do you know if he was trying to interest anyone else in that?

Mr. ARMSTRONG. I know he sent some brochures and things like that to other people, but I don't recall who.

Mr. HUBERT. From what you were able to hear during those various conversations between Jack and Earl Ruby, during the month of November, was Earl interested?

Mr. ARMSTRONG. Well, yes and no. You could say he was interested in—for hoping it would be a good deal for Jack's benefit, but I don't think he was too interested in investing any money but if he would have to, I believe he would.

Mr. HUBERT. Did Jack tell you all that?

Mr. ARMSTRONG. In a way he did.

Mr. HUBERT. How do you mean "in a way"?

Mr. ARMSTRONG. Well, in other words, he said that Earl might invest money.

Mr. HUBERT. So, your statement about whether Earl was interested or not is based upon two factors, I suppose, and correct me if I am wrong—was—one is that you could hear Jack's end of the conversation?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And the other is that Ruby told you some things about it?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And the net result was that Earl wasn't too interested in it, but might be for Jack's sake?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Is that a fair statement?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Who else did Jack call, do you know?

Mr. ARMSTRONG. Well, he called Ralph Paul.

Mr. HUBERT. Did you overhear that conversation?

Mr. ARMSTRONG. I remember it was a short conversation but Jack said he was going to close the club up and Ralph said he was not going to close this place up——

Mr. HUBERT. How do you know he said that?

Mr. ARMSTRONG. Because he told me later on he did.

Mr. HUBERT. But, at the moment all you could hear was Jack saying to Ralph Paul—he was going to close the place up?

Mr. ARMSTRONG. Jack did say—he says, “You should close yours up too.”

Mr. HUBERT. But you didn’t hear Paul’s answer?

Mr. ARMSTRONG. I didn’t hear his answer.

Mr. HUBERT. But later you understand from Paul that he told Jack he wasn’t going to do so?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Who else did he call; do you know?

Mr. ARMSTRONG. No; I don’t remember who else he called—he made five or six phone calls.

Mr. HUBERT. And you say he was crying——

Mr. ARMSTRONG. At two or three stages he was crying there.

Mr. HUBERT. You mean when speaking to people or otherwise?

Mr. ARMSTRONG. When using the phone.

Mr. HUBERT. Only when speaking to people or when he was not speaking to people?

Mr. ARMSTRONG. Well, he cried when he was speaking to me, after he had got off the phone.

Mr. HUBERT. Were you crying, too?

Mr. ARMSTRONG. Yes; I was.

Mr. HUBERT. Did Jack indicate why he was crying?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he say anything about how the death of the President would affect the business community of Dallas, and particularly the convention business here?

Mr. ARMSTRONG. I'm the one that mentioned it first.

Mr. HUBERT. What did you say?

Mr. ARMSTRONG. Well, I said, "This will kill the business, conventionwise, and things probably will slow up quite a bit—drop off quite a bit." He said, "Yes; you've got a point." He said, "I think it will, too."

Mr. HUBERT. He wasn't angry at you for making that suggestion?

Mr. ARMSTRONG. No.

Mr. HUBERT. He agreed with you, in fact?

Mr. ARMSTRONG. He agreed with me.

Mr. HUBERT. How long did he stay from the time he first came in, which you say was 5 minutes after you knew—after it had been announced that the President had been killed?

Mr. ARMSTRONG. I would say he stayed there an hour; approximately an hour.

Mr. HUBERT. And most of the time, you think, he was on the phone?

Mr. ARMSTRONG. Most of the time on the phone.

Mr. HUBERT. Did he get any calls from anybody?

Mr. ARMSTRONG. Yes; he got some; the phone rang a couple of times, and also the pay phone rang a couple of times; some of the girls called him.

Mr. HUBERT. Did you answer it?

Mr. ARMSTRONG. I answered the pay phone and he answered the business phone.

Mr. HUBERT. And what did you all tell the girls; what were they asking about?

Mr. ARMSTRONG. Well, they were just asking, "Did you hear the news?"

Mr. HUBERT. Did you tell them then that the clubs would be closed?

Mr. ARMSTRONG. Not then.

Mr. HUBERT. Well, can you fix about what time Jack left?

Mr. ARMSTRONG. No; I can't.

Mr. HUBERT. You said it was about 1 hour after you heard of the death of the President, or 1 hour and 5 minutes, and if you think that estimate is wrong, say so—I mean anybody can be wrong in an estimate.

Mr. ARMSTRONG. No; that's about right. He came in about 5 minutes after they announced the death of the President.

Mr. HUBERT. And he stayed about an hour?

Mr. ARMSTRONG. And he stayed about an hour.

Mr. HUBERT. And made these various calls and then left?

Mr. ARMSTRONG. Right. Now, what time was the death of the President; do you have that?

Mr. HUBERT. Well, suppose we assume it was approximately 1:30 p.m.

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You would think, then, if that is so, he left about 2:35 p.m.?

Mr. ARMSTRONG. Something like that.

Mr. HUBERT. Prior to his leaving, then, did he give you any instructions or tell you what to do?

Mr. ARMSTRONG. He said that the club was going to be closed until Monday and not to mention it to anybody connected with the other clubs

because he, himself, was pretty sure that they wouldn't close up; his competitors didn't get along—they didn't get along.

Mr. HUBERT. Did he tell you why Monday?

Mr. ARMSTRONG. Why Monday?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. No; he didn't tell me why Monday. He just said that the club would be closed and for me to call everyone.

Mr. HUBERT. Did he mention Monday that it would be closed Friday night, Saturday night, and Sunday night?

Mr. ARMSTRONG. He said the club would be closed Friday and Saturday and Sunday.

Mr. HUBERT. Did he say why he was picking those 3 days?

Mr. ARMSTRONG. No; he didn't.

Mr. HUBERT. What other instructions did he give you?

Mr. ARMSTRONG. That's all.

Mr. HUBERT. What about notifying the girls?

Mr. ARMSTRONG. Well, I notified them; yes; he gave me the instructions to notify them—all the acts and the waitresses.

Mr. HUBERT. Did you call Little Lynn—I think her name is Karen Bennett Carlin?

Mr. ARMSTRONG. No; she came down that night, I'm pretty sure. I think I couldn't get a hold of her.

Mr. HUBERT. Did you try to call her?

Mr. ARMSTRONG. I tried.

Mr. HUBERT. But you didn't reach her?

Mr. ARMSTRONG. I didn't reach her.

Mr. HUBERT. And you say she came down that night?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That Friday night.

Mr. ARMSTRONG. I think, and Friday night the club was closed and she went back home.

Mr. HUBERT. But you don't know that of your own knowledge?

Mr. ARMSTRONG. No; not to my own knowledge.

Mr. HUBERT. But you are positive that you did not reach Karen—Little Lynn—Bennett to call her?

Mr. ARMSTRONG. Sure I didn't.

Mr. HUBERT. Did you know her husband, Bruce, at all?

Mr. ARMSTRONG. Yes; he was up to the club quite often until——

Mr. HUBERT. Until what?

Mr. ARMSTRONG. He was up to the club quite often after the assassination until I suggested that he didn't come around too often because of some business there; Little Lynn was always getting into something with the other girls, and she got him there to take up for her.

Mr. HUBERT. This occurred after the assassination when you were managing the club?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And he was coming around, and you suggested not to come around any more?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Isn't it a fact that that had happened before the assassination, also, and that Jack told him so, or the same thing?

Mr. ARMSTRONG. I'm sure—I'm not sure that Jack had told him, but I believe that Jack had told him, because he was coming there and he stopped.

Mr. HUBERT. Now, during the time that Jack came in at about 1:30 or so and stayed until about 2:30 or 2:35 or 2:40, was this man Larry Crafard there?

Mr. ARMSTRONG. Yes.



Mr. HUBERT. He was with you at the time?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did Ruby come back that day, or did you hear from him any more?

Mr. ARMSTRONG. He came back that day.

Mr. HUBERT. About what time?

Mr. ARMSTRONG. No—when he came back I was gone.

Mr. HUBERT. Well, what time did you leave?

Mr. ARMSTRONG. I left—I must have left about 4:30.

Mr. HUBERT. What did you do in the interval between the time when Jack left and the time you left, which was about 2 hours?

Mr. ARMSTRONG. Wait a minute here: let's see; let me straighten a little something out here because I am a little wrong here.

Mr. HUBERT. All right; that's what I want you to do.

Mr. ARMSTRONG. I called the people—I called everybody and told them we would be closed that night, Friday night, and Saturday—I called them we would be closed Saturday and Sunday. In other words, Jack said we would be closed tonight, possibly until Monday; in other words, Friday.

Mr. HUBERT. I see.

Mr. ARMSTRONG. Now, when I came down Saturday——

Mr. HUBERT. Now, let's not get to Saturday yet.

Mr. ARMSTRONG. OK; I will straighten that out.

Mr. HUBERT. I want to get to that, but right now you want to change your testimony because your best recollection right now is to the effect that on Friday when you were talking with Jack it had not been decided how long the club would be closed?

Mr. ARMSTRONG. No.

Mr. HUBERT. But only it would be closed Friday night?

Mr. ARMSTRONG. Friday night.

Mr. HUBERT. It might be closed the other nights, but no decision was made yet?

Mr. ARMSTRONG. Right.

Mr. HUBERT. That's your best recollection of it?

Mr. ARMSTRONG. That's the best recollection of it.

Mr. HUBERT. That is your recollection?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Can you tell us just for the record as to why you got confused; have you any notion as to what made you get confused?

Mr. ARMSTRONG. Well, I was getting confused on account of the dates. In other words, I was thinking that I didn't—that the next time I would be at the club would be Sunday, after I hear about the slaying of Oswald.

Mr. HUBERT. Was that so?

Mr. ARMSTRONG. Yes; I was thinking that would be my next appearance at the club. In other words, I am trying to think ahead, but then my next appearance at the club was Saturday, which I talked with Jack, because I recall Jack fired me that Saturday, but we'll get to that.

Mr. HUBERT. Well, we will get to that, but we want to keep the dates straight too, if we can, and the times, but let me say this to you: If you do make a mistake in time or date, please feel completely free to come back and correct it, because what we are looking for is the truth.

Mr. ARMSTRONG. That's the reason I'm not giving you any definite time, because like when I had my interview with Mr. Peggs, definitely—any definite time, and that was right after the assassination—just a few days after.

Mr. HUBERT. All right. Anyway, the way we have left it is that you left at approximately 4:30, having called the girls and told them that the club would be closed that night?

Mr. ARMSTRONG. And I reached Little Lynn that day.

Mr. HUBERT. You did reach Little Lynn that day?

Mr. ARMSTRONG. That day, but the next Saturday, I didn't; the Saturday, I didn't.

Mr. HUBERT. So you did call Little Lynn in Fort Worth; is that right?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And told her that the club would be closed Friday?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And told her that—what did you tell her with reference to Saturday?

Mr. ARMSTRONG. I said that we would be closed tonight, and I didn't say anything other than that.

Mr. HUBERT. Then, about 4:30 you left?

Mr. ARMSTRONG. I left.

Mr. HUBERT. To go home?

Mr. ARMSTRONG. I go home.

Mr. HUBERT. Did you hear from Ruby any more that night?

Mr. ARMSTRONG. No; I didn't hear from him.

Mr. HUBERT. Was Larry Crafard at the club when you left?

Mr. ARMSTRONG. He was there when I left.

Mr. HUBERT. Did you ever see him again?

Mr. ARMSTRONG. No.

Mr. HUBERT. What was the nature of the conversation between you and Larry after Ruby left about 2:30 on that Friday?

Mr. ARMSTRONG. After he left about 2:30?

Mr. HUBERT. Yes; you said you and Larry were there between 2:30 and 4:30 when you left?

Mr. ARMSTRONG. You see, Jack left and Larry was walking up and down the aisle there shaking his head and—well, he was doing nothing—I would just try to get up and try to finish cleaning up, which I did, and it didn't take

too much because we had gone through the procedure of cleaning up while we was listening to the news, and that was from a Thursday night and we don't have that many people in there on Thursday night—Thursday night and Sunday night are bad nights.

Mr. HUBERT. Did you and Larry talk after Ruby left?

Mr. ARMSTRONG. I imagine we said a few words to each other; Larry went out and ate.

Mr. HUBERT. While you were there?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. How long did he stay?

Mr. ARMSTRONG. Oh, he stayed about 20 minutes, I guess, and when he got back Jack came back in about 10 minutes later.

Mr. HUBERT. You were still there?

Mr. ARMSTRONG. Pardon; I was still there.

Mr. HUBERT. I thought you told me that you had not seen Jack any more that day?

Mr. ARMSTRONG. Well, I'm still thinking that—I'm still thinking when I had not seen Jack on Friday—when I left, I left Jack and Larry in the club.

Mr. HUBERT. Well, now, we have to revise this, because I want you to get your best recollection in here.

Mr. ARMSTRONG. You see, this is the reason why I know; I had some boards and some bricks to carry home, and I made a phone call to a brick company over on McKinney and told the fellow if he would bring my bricks over to my house—he said, “Yes”—it was 25 bricks, these boards and bricks for me to build a corner shelf, and I had painted the boards in the club and I remember Jack asked me what was I going to do with those boards and I told him the layout of what I had planned on and he said it was very nice, and I wrapped them in newspaper and I left the club.

Mr. HUBERT. That was at 4:30; is that the time?

Mr. ARMSTRONG. That was about 4:30.

Mr. HUBERT. Now, let's get it straight; Jack left about an hour and 5 minutes after the time he first came in; right?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And you left about 2 hours after that?

Mr. ARMSTRONG. Right.

Mr. HUBERT. So, you left approximately, as we have reconstructed it as we went along, about 4:30?

Mr. ARMSTRONG. Right.

Mr. HUBERT. But you said that Jack came in again before you left?

Mr. ARMSTRONG. Before I left; just a little before I left.

Mr. HUBERT. Which would have been about 4 you think, or 4:15?

Mr. ARMSTRONG. Something like that.

Mr. HUBERT. Now, what was his condition at that time?

Mr. ARMSTRONG. Still in the same—he wasn't crying any more, but he was still sad and speaking about the assassination and things of that nature and saying a few other things about the club and asked me had I contacted everyone, and I told him, "Yes."

Mr. HUBERT. What other things about the club was he talking about?

Mr. ARMSTRONG. Oh, just about—there was certain things to cut out and certain lights to cut off and was the box unplugged; the things that I always take care of: he always asked about it later.

Mr. HUBERT. Were there any phone calls?

Mr. ARMSTRONG. I don't recall.

Mr. HUBERT. At that time, during the second visit?

Mr. ARMSTRONG. No; I don't recall any more.

Mr. HUBERT. Did you hear him talking to Larry?

Mr. ARMSTRONG. No; he did ask Larry about a certain phone number, someone's phone number that he had Larry to put down in a book.

Mr. HUBERT. Do you remember whose phone number that was?

Mr. ARMSTRONG. No, I sure don't—it was a business phone number—some business.

Mr. HUBERT. Did he make a call?

Mr. ARMSTRONG. I don't remember him making a call.

Mr. HUBERT. Do you remember the business?

Mr. ARMSTRONG. I think it was the people that printed up the stationery—I'm not sure, but I think that's who he was calling.

Mr. HUBERT. You didn't hear that call?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, when you left it was about 4:30?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And you left Ruby and Larry at the club?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And you went home and went to bed—on about your business and didn't hear from Jack until the next day?

Mr. ARMSTRONG. Right.

Mr. HUBERT. As I understand it, you never saw Larry afterward?

Mr. ARMSTRONG. Right. He left a key at the garage downstairs.

Mr. HUBERT. When did you first find out about that?

Mr. ARMSTRONG. About the——

Mr. HUBERT. About the key and Larry leaving it?

Mr. ARMSTRONG. Oh, about 1 o'clock, I guess, I got down again about 1 o'clock.

Mr. HUBERT. That was on Saturday?

Mr. ARMSTRONG. On Saturday.

Mr. HUBERT. All right.

Mr. ARMSTRONG. I always stopped at the garage to see if there was any mail.

Mr. HUBERT. Is that where the mail was delivered?

Mr. ARMSTRONG. That's where the mail was delivered and Ben gave me the key. He said Larry had left it and left a note and just said thank Jack for everything, and that's all.

Mr. HUBERT. You mean a written note?

Mr. ARMSTRONG. Right.

Mr. HUBERT. In other words, Ben, the man at the garage, told you that Larry had left?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did he tell you what time he left?

Mr. ARMSTRONG. He said "Early this morning," that's all he said.

Mr. HUBERT. He didn't give you any time?

Mr. ARMSTRONG. No.

Mr. HUBERT. And he said that he had left the key and a written note?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Saying to thank Jack for everything?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That he was leaving?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where was the written note?

Mr. ARMSTRONG. With the key—just a little piece of paper—I think it was an envelope tore up or something like that.

Mr. HUBERT. Did you see it?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What did you do with it?

Mr. ARMSTRONG. Well, I don't know—I guess I must have throwed it away because only thing on it was "Thank Jack." I read it to Jack on the phone and I guess I must have throwed it in the trash by the phone there.

Mr. HUBERT. And when you got upstairs, did you call Jack as usual?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. He was at his house?

Mr. ARMSTRONG. Right.

Mr. HUBERT. That would have been about 1 or a little after?

Mr. ARMSTRONG. About 10 after, I would say.

Mr. HUBERT. How did you find him then, his attitude, and so forth?

Mr. ARMSTRONG. He said when I told him about Larry, he said, "I guess he wanted to be with his people through all this."

Mr. HUBERT. He wanted to be through with what?

Mr. ARMSTRONG. He said, "I guess he wanted to be with his people through this,"—you know—through the assassination. So, we didn't say anything else—he didn't say anything else except he said, "I'll see you later."

Mr. HUBERT. You say you read him the note?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And he told you to throw it away?

Mr. ARMSTRONG. No, he didn't tell me to throw it away.

Mr. HUBERT. But you did do it?

Mr. ARMSTRONG. I did.

Mr. HUBERT. As far as you know, the note is not in existence right now?

Mr. ARMSTRONG. As far as I know.

Mr. HUBERT. You actually looked at it?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you read it in fact to Jack?



Mr. ARMSTRONG. Yes.

Mr. HUBERT. Give us your best recollection of precisely what the note said.

Mr. ARMSTRONG. It just said, "Thanks, Jack, for everything."

Mr. HUBERT. Did it have a signature on it?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was it in his handwriting?

Mr. ARMSTRONG. Yes, it was in his handwriting.

Mr. HUBERT. You recognized his handwriting?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do you know where Larry's people were at that time?

Mr. ARMSTRONG. No; I didn't.

Mr. HUBERT. Did Jack know?

Mr. ARMSTRONG. No; he didn't know either.

Mr. HUBERT. You found out later, I think?

Mr. ARMSTRONG. Well, there was a letter that he had received, which—pardon me—someone got it in this letter that I have the letter in my possession.

Mr. HUBERT. Yes?

Mr. ARMSTRONG. I don't have it, but the last I saw of the letter was when I showed it to one of the FBI men at the club.

Mr. HUBERT. It was a letter received by Jack? Or written by Jack?

Mr. ARMSTRONG. No; a letter written to Larry.

Mr. HUBERT. To Larry?

Mr. ARMSTRONG. From some girl in some other city.

Mr. HUBERT. All right.

Mr. ARMSTRONG. Did you send me this [presenting witness' letter of notice to depose to Counsel Hubert]?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. Well, you remember what city it was sent from?

Mr. HUBERT. Well, isn't it a fact that you forwarded two letters?

Mr. ARMSTRONG. One that Larry was writing himself.

Mr. HUBERT. Yes; to a girl called Gayle.

Mr. ARMSTRONG. Right, and one that he had received from her.

Mr. HUBERT. Was that letter opened?

Mr. ARMSTRONG. It was opened.

Mr. HUBERT. But it was still in the envelope?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you just gave that to the FBI people?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where did you find it?

Mr. ARMSTRONG. In Larry's belongings there in his room on a little table there.

Mr. HUBERT. Did he leave any belongings behind?

Mr. ARMSTRONG. He left some shirts, he left a pair of khakies, I think, or bluejeans—a pair of jeans.

Mr. HUBERT. Did he have any bags up in that room?

Mr. ARMSTRONG. He had one little bag, a sort of a little square bag with a little handle or two little handles like that [indicating].

Mr. HUBERT. By the measurements you are making, it is a bag about 12 to 15 inches in length?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And about 6 or 8 inches in height?

Mr. ARMSTRONG. About big enough to get a change of clothes in.

Mr. HUBERT. He didn't have another bag, did he?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was this bag you are talking about made of leather or cloth?

Mr. ARMSTRONG. It was made of leather.

Mr. HUBERT. And all he left behind was just this one change of clothing and two letters?

Mr. ARMSTRONG. Well, you see, Jack had bought him a change of clothes, you see. Jack bought him a suit. I think he left what he had—his change of clothing, and carried the suit with him.

Mr. HUBERT. Where did you find these two letters, one written to him and one written by him?

Mr. ARMSTRONG. In the room where he slept on a table there.

Mr. HUBERT. They wasn't in the wastepaper basket?

Mr. ARMSTRONG. No; not that I recall.

Mr. HUBERT. When did you pick those things up?

Mr. ARMSTRONG. When the FBI's were there.

Mr. HUBERT. Not before?

Mr. ARMSTRONG. Not before.

Mr. HUBERT. So, you didn't pick them up on Saturday at all?

Mr. ARMSTRONG. No—I didn't even go in that room on Saturday. As a matter of fact, I didn't even know he had anything there—they were looking for something with his handwriting on it, for something possibly where he had gone and we started searching where he was staying and we found those letters.

Mr. HUBERT. And that was on the first day you spoke to the FBI?

Mr. ARMSTRONG. No; this was not on the first day. We opened back up on a Monday, I think we spoke to the FBI—one FBI that Monday, but later

on, you know, there was some other ones—possibly the last part of the week.

Mr. HUBERT. And it was then that they were talking to you at the club?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And they asked about Larry?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you all went and searched his room where he had been and they found the letters?

Mr. ARMSTRONG. Right.

Mr. HUBERT. You are sure that that's right, Mr. Armstrong?

Mr. ARMSTRONG. Well, I looked in the room myself. They was in the office, which has a door from his room to the office.

Mr. HUBERT. Did you look in his room either on Saturday or Sunday, the 23d or 24th?

Mr. ARMSTRONG. No.

Mr. HUBERT. And when you looked in his room, it was when the FBI was interviewing you?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. At the club?

Mr. ARMSTRONG. Yes; I didn't even know Larry had left any belongings there until the FBI was asking me about it.

Mr. HUBERT. And you went into the room alone?

Mr. ARMSTRONG. Yes, the door was open.

Mr. HUBERT. And then you came out and you showed them these things?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Do you know what date that was on?

Mr. ARMSTRONG. No, I sure don't.

Mr. HUBERT. All right, as I understand it, a little after 1 on Saturday the 23d, you spoke to Ruby over the phone and told him about Larry?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Now, did any other conversation take place between you on that telephone call?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. None?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he tell you what to do with reference to the club on Saturday night?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he say that he would be there soon or something of that sort?

Mr. ARMSTRONG. He said he would be there sometime "this afternoon."

Mr. HUBERT. Did you stay there until he came?

Mr. ARMSTRONG. Yes, I was there when he came.

Mr. HUBERT. What time did he come?

Mr. ARMSTRONG. I don't recall the exact time—I don't think that Jack came in the club that day before—it was late in the afternoon—I don't know the exact time, but it was somewhere around 6 or 7 o'clock.

Mr. HUBERT. Was it still daylight or dark?

Mr. ARMSTRONG. It was still daylight.

Mr. HUBERT. Were there any phone calls during the time you talked to Ruby on the phone until he came in?

Mr. ARMSTRONG. Well, there was phone calls—something about was we going to be open—a few reservations came in, and I told them I didn't know whether we would be open tonight or not and to call back later, and there was a couple of girls called.

Mr. HUBERT. What did you tell them?

Mr. ARMSTRONG. The girls was told, "I'll talk to you later."

Mr. HUBERT. So, Jack came in at approximately 6 o'clock, or at least before dark—but it was getting dark, right?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Describe his condition at that time?

Mr. ARMSTRONG. Well, he was still in a sad mood, you know, in a sorrowful mood, you know.

Mr. HUBERT. Was he crying?

Mr. ARMSTRONG. No, he wasn't crying this time.

Mr. HUBERT. You were in a sorrowful mood, too, I take it?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. Would you say that his mood and yours were about the same?

Mr. ARMSTRONG. No—my sorrowful mood was sort of on the inside mostly, and his was in his face and in the way he was worried about the things. He seemed like—to be more worried than ever.

Mr. HUBERT. Then, how—that is to say—what was he doing that gave you the impression that he was more worried than ever? You have told us he had a sad look on his face?

Mr. ARMSTRONG. Well, he was—he just felt like—it seemed like he was just disturbed over what had happened, you know, over the assassination.

Mr. HUBERT. Well, of course, you are telling us about the mental impression you formed, which is perfectly all right, but it would be helpful to us if you could give us facts upon which you base your opinion, you see? Now, you have given us one fact—he had a sad look on his face. If you could tell us the things that he said or did.

Mr. ARMSTRONG. I don't recall anything that he said that day, no more than—he said the club was going to be closed and immediately I got on the phone and started to making phone calls.

Mr. HUBERT. To all the people who were concerned?

Mr. ARMSTRONG. Right, to all the people.

Mr. HUBERT. And the object was to tell them not to come in that night?

Mr. ARMSTRONG. Yes—I know now—and it was around 6 o'clock, because one of the girls was getting ready to come down to town, one of the waitresses. They had to be there at 7:30, so it was around 6:30—between 6 and 6:30 when I was making the phone calls.

Mr. HUBERT. I think you said you tried to call Karen Bennett Carlin then, but you couldn't reach her?

Mr. ARMSTRONG. Couldn't reach her, and I believe Jack said, "I will call her later."

Mr. HUBERT. You mean he undertook to call her?

Mr. ARMSTRONG. He told me to keep trying and he would try to call her, too, and he left and went home.

Mr. HUBERT. What time did he leave?

Mr. ARMSTRONG. He left about 7 o'clock, between 7 and 7:30.

Mr. HUBERT. So, he was there roughly between an hour and an hour and a half?

Mr. ARMSTRONG. Right.

Mr. HUBERT. You were making all these phone calls?

Mr. ARMSTRONG. Yes, and he asked me to stay there until about 8 o'clock, just in case any customers called and if they did, to tell them we would be closed until Monday, and he called me back and he said, "What time are you leaving?" I said, "Well, 8 o'clock, I want to go home." He said, "Well, will you stay on to 10?" I said, "What should I stay here until 10 o'clock for?"

Mr. HUBERT. Where was he calling from, do you know?

Mr. ARMSTRONG. He was calling from home, I'm pretty sure it was from home.

Mr. HUBERT. What gives you that impression?

Mr. ARMSTRONG. Well, because he had said, “If anything come up, call me.”

Mr. HUBERT. To call him at home?

Mr. ARMSTRONG. He just said, “Call me,” so—he always just said, “Call me” when he was at home and if he was not at home, he would always give me a number.

Mr. HUBERT. In other words, when he said, “If anything happens, call me,” you knew that that meant he was at home, because that was the custom?

Mr. ARMSTRONG. Right, and so we got into a discussion of whether I should stay there until 10 o’clock or should I leave at 8 o’clock, and I said, “Well, I’m leaving at 8 o’clock,” and he said, “Well, just get on out of the club and don’t come back no more.” And slammed the phone down.

Mr. HUBERT. That was about a half hour after he left, wasn’t it?

Mr. ARMSTRONG. Right, but I stayed there until 8 o’clock, like I said I was going to stay, and I closed the club up and went home.

Mr. HUBERT. Did you hear from him any more that day?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, on Sunday, did you go to the club?

Mr. ARMSTRONG. Well, I had planned on going to the club—I was planning on looking for another job Monday morning, because I said —“This is it.” I had already made up my mind then I wasn’t going back to work there, no matter what happened.

Mr. HUBERT. Why?

Mr. ARMSTRONG. Well, I just got fed up.

Mr. HUBERT. But this had happened, I think you said, 35 times or so?

Mr. ARMSTRONG. Something like that.

Mr. HUBERT. What you mean to say is that the last time is the straw that broke the camel’s back sort of thing?

Mr. ARMSTRONG. Yes.



Mr. HUBERT. But you had definitely made up your mind that this time you weren't going back?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And that this time you were going to start looking for a job on Monday morning?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Did you go to the club on Sunday?

Mr. ARMSTRONG. Yes, after I heard about it—well, I was listening to the radio that morning—I was not looking at television.

Mr. HUBERT. You were home then?

Mr. ARMSTRONG. Right; it was Sunday morning?

Mr. HUBERT. That's right.

Mr. ARMSTRONG. When I heard about the shooting of Oswald and they said it was a well-known nightclub owner, and so I got a phone call—no, then, it come on the radio that it was Jack Ruby and I got a phone call is when I found out it was on television.

Mr. HUBERT. Who called you?

Mr. ARMSTRONG. A friend of mine—William Morris. He used to help me down at the club some Saturday nights when we had a big convention in—he would come down and help me out at the bar.

Mr. HUBERT. And then what—he called you and told you it was Ruby?

Mr. ARMSTRONG. No; I knowed it was Ruby—they said that on the radio.

Mr. HUBERT. Then, Morris called you and told you it was on television?

Mr. ARMSTRONG. He said, "Did you see it on television?" And I said, "No; I didn't see it on television." He said, "Well, turn the television on." And so I turned the television on and they rerun the shooting, and what I saw on the TV was a rerun.

Mr. HUBERT. I understand.

Mr. ARMSTRONG. And so—about—sometime during that day, I forget what time it was, I called Ralph Paul.

Mr. HUBERT. What time was it actually, and where was it from?

Mr. ARMSTRONG. From home.

Mr. HUBERT. That's a long-distance call, wasn't it?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. So, there would be a record of that?

Mr. ARMSTRONG. Right, and he said——

Mr. HUBERT. Let's do it this way—can you tell us how long after you saw the rerun that you called Paul?

Mr. ARMSTRONG. No; I don't know whether it was before I went down to the club or after I went down to the club.

Mr. HUBERT. You said you had called from your home?

Mr. ARMSTRONG. Yes—you see, when I went down to the club I wasn't gone but an hour.

Mr. HUBERT. What did you go down to the club for?

Mr. ARMSTRONG. I went down and fed the dogs, because I knew that they would be down there all day long without any food, and Clipper, I was crazy about and I didn't want him going hungry—that was the only two dogs there, so I fed the dogs—went down and fed the dogs and there was a newsman in front of the club and he tried to grab me when I came out.

Mr. HUBERT. The police did too?

Mr. ARMSTRONG. No; just the newsman, but I didn't give him any statement or anything. I had called a friend of mine to bring me downtown and I went and got in the car and went on back home.

Mr. HUBERT. So, you are not sure whether you called Paul from the club or from the house?

Mr. ARMSTRONG. No; I know I called him from home, but I don't know if it was before or after—it was around 12 o'clock, I imagine, when I got downtown—somewhere along in there, but when I did call Ralph, I said,

“What are you going to do, open the club up?” He said, “Meet me down there Monday,” and I did meet him down at the club Monday and decided to keep the club open.

Mr. HUBERT. Did you have any conversations with anyone else during the course of Sunday?

Mr. ARMSTRONG. No.

Mr. HUBERT. Were you interviewed by the FBI Sunday?

Mr. ARMSTRONG. Not Sunday.

Mr. HUBERT. You were not interviewed until Monday?

Mr. ARMSTRONG. Not until Monday.

Mr. HUBERT. Where were you when they interviewed you then?

Mr. ARMSTRONG. At the club—Monday night.

Mr. HUBERT. The club was open then?

Mr. ARMSTRONG. Right.

Mr. HUBERT. You were managing it for Ralph Paul?

Mr. ARMSTRONG. Well, I wasn't managing it—he managed it himself.

Mr. HUBERT. You met him there Monday—Paul?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Was it during the daytime?

Mr. ARMSTRONG. It was during the daytime.

Mr. HUBERT. He decided to keep on running it and asked you if you would just keep on with it?

Mr. ARMSTRONG. Yes—oh, yes; I did call Eva Grant.

Mr. HUBERT. Who?

Mr. ARMSTRONG. Mrs. Grant.

Mr. HUBERT. What day was this?

Mr. ARMSTRONG. On Sunday—no, no—on Monday.

Mr. HUBERT. You did not speak to her on Sunday?

Mr. ARMSTRONG. No; I called her on Monday and told her Jack had fired me—this was Monday morning. She said, “Well, nonsense, you know how Jack is. Go on down to the club. Mr. Ralph said he would meet me down there.” And she said, “You know how my brother is, he was disturbed, he didn’t know what he was doing anyway.”

Mr. HUBERT. Paul had just simply told you to meet him at the club?

Mr. ARMSTRONG. He didn’t know anything about the firing, but I told him at the club—Monday. Now, when I told him, he said, “How many times does that make?”

Mr. HUBERT. Who said that—Ralph Paul said that to you?

Mr. ARMSTRONG. Yes; I said, “I don’t know, about a hundred, I guess.”

Mr. HUBERT. How long did the club continue to operate?

Mr. ARMSTRONG. It continued to operate until February, I think it was, the last of February—the last Friday in February.

Mr. HUBERT. Who decided to close it?

Mr. ARMSTRONG. The vice squad decided to close it.

Mr. HUBERT. For what reason?

Mr. ARMSTRONG. I mean, the Liquor Control Board.

Mr. HUBERT. Because the license hadn’t been paid?

Mr. ARMSTRONG. Because the license was in Jack’s name and it was obvious he had violated those liquor licenses when he shot Oswald.

Mr. HUBERT. Had you ever seen anybody at the club that looked like Oswald?

Mr. ARMSTRONG. No; never did.

Mr. HUBERT. Have you seen Oswald himself in the club?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you ever tell anybody that you had?

Mr. ARMSTRONG. No.

Mr. HUBERT. Specifically, did you ever tell Larry Crafard that you had?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you know Billy DeMar?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is he?

Mr. ARMSTRONG. He was an M.C.

Mr. HUBERT. He also had a memory act, didn’t he?

Mr. ARMSTRONG. Yes, he did.

Mr. HUBERT. You have heard the story, haven't you?

Mr. ARMSTRONG. Yes; I have heard the story.

Mr. HUBERT. That he said he had seen Oswald in the club?

Mr. ARMSTRONG. That's what he told me—he said he thought that he saw somebody that could have been Oswald.

Mr. HUBERT. When did he tell you that?

Mr. ARMSTRONG. That was later—he said—he was walking around every night saying that the newspaper misunderstood what he had said. He said he definitely did not state the statement that they had in the paper.

Mr. HUBERT. Do you think it is possible that you told Larry Crafard that you had seen him, that you thought you had seen somebody that looked like Oswald in the club?

Mr. ARMSTRONG. No, it isn't possible—no.

Mr. HUBERT. We have been going for 3 hours, and let's adjourn for lunch.

(At this point the proceedings in the deposition of Andrew Armstrong were recessed for lunch and resumed at 1:35 p.m. on the same date, April 14, 1964, as follows:)

Mr. HUBERT. Mr. Armstrong, you understand that we are continuing the deposition which we started this morning, and which we adjourned at about noon, and you understand that we are continuing it under the same oath and conditions upon which it was begun. You understand further that you are under the same oath you took this morning at the very beginning of the deposition?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do you consider yourself to be under that same oath?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Let me clarify one point before I go further—with reference to the gun or pistol that you have already testified about, can you

give us a description of it?

Mr. ARMSTRONG. Let's see—it was not a large gun, a small barrel on it, I guess you would call it a snub nose.

Mr. HUBERT. I notice you were holding your fingers apart there?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And would you say you were holding them about 5 inches apart?

Mr. ARMSTRONG. About 5 inches, I would say.

Mr. HUBERT. And that's the whole length of the gun from one tip to the other?

Mr. ARMSTRONG. Yes; I would say so.

Mr. HUBERT. Was it a revolver?

Mr. ARMSTRONG. Yes; I think it was a revolver.

Mr. HUBERT. Do you remember what kind of barrel it had on it?

Mr. ARMSTRONG. Well, it had a little short barrel.

Mr. HUBERT. But I mean, what color was it; black, blue, steel?

Mr. ARMSTRONG. Well, it was—I don't remember—I only saw the gun, you know, in sight—you know I saw the bag a jillion times, but the gun only a couple of times, I would say.

Mr. HUBERT. What kind of handle did it have on it; do you remember?

Mr. ARMSTRONG. I think it had a brown handle on it.

Mr. HUBERT. Did Mr. Ruby have a holster for that gun?

Mr. ARMSTRONG. I never saw it with one—I never saw a holster.

Mr. HUBERT. Now, by a holster, I am including both types of holsters, one that is worn on the belt around the hip and one that is worn slung around the shoulders and the gun is usually in the armpit, you know what I mean?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You never saw either type?

Mr. ARMSTRONG. No.

Mr. HUBERT. As a matter of fact, as I understood your testimony, you never saw him actually carry it on his person at all?

Mr. ARMSTRONG. No.

Mr. HUBERT. Either in his pocket or stuck in his belt or otherwise?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you know whose gun that was?

Mr. ARMSTRONG. No; I assumed it was his gun.

Mr. HUBERT. Did you ever hear any talk about whose gun it was?

Mr. ARMSTRONG. No; he asked me where is my gun—the few times he came in and left it in the kitchen and asked me about it and I would say, “You left it in the kitchen, or some place like that.”

Mr. HUBERT. All right. Turning to another subject—did you ever observe any particular interest on the part of Ruby with reference to police or police work?

Mr. ARMSTRONG. Any particular part or effort?

Mr. HUBERT. Any particular interest on his part in police or police work—generally?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he ever in your presence express any views toward the police—good or bad?

Mr. ARMSTRONG. Oh, the only views he ever spoke was good views.

Mr. HUBERT. Could you give us an example?

Mr. ARMSTRONG. Oh, just that he didn't like to hear anyone knocking the police department.

Mr. HUBERT. Did you ever hear anyone knock the police department in his presence?



Mr. ARMSTRONG. Well, no, not direct—saying any bad things about the police department, but someone might have made a statement about the police department and he would not like it.

Mr. HUBERT. Well, now, are you drawing on your imagination for that, or do you remember a specific instance in which he indicated that he did not like a person speaking in a bad way about the police?

Mr. ARMSTRONG. Well, I don't remember—in my mind I was trying to remember—to recall an incident, but I don't remember an incident, but there was an incident, I'm sure.

Mr. HUBERT. As I understand you, then, you definitely have the impression that he did not like people talking badly about the police?

Mr. ARMSTRONG. No.

Mr. HUBERT. You don't remember any specific instance which you can give us as an example of how you formed that impression?

Mr. ARMSTRONG. No.

Mr. HUBERT. But the impression, nevertheless, is in your mind?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Have you ever heard him discuss politics?

Mr. ARMSTRONG. No.

Mr. HUBERT. What opinion do you have concerning his interest in politics?

Mr. ARMSTRONG. His interest was that—I have heard him say—I have heard him say this, that anybody that was elected to hold a certain office must be responsible and capable of taking care of that position or they wouldn't be elected.

Mr. HUBERT. Now, that is a specific instance that you remember?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Can you tell us when it was?

Mr. ARMSTRONG. No; I don't remember when it was, but I remember that incident—I know who he was talking to—it was just a conversation

and I happened to be there and to hear this party.

Mr. HUBERT. His view, generally, then, was that an elected official should be respected, is that the idea?

Mr. HUBERT. Right.

Mr. HUBERT. Because they had been elected by the people?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Did you ever hear him discuss the President of the United States?

Mr. ARMSTRONG. I'm sure I have—everybody has, but I don't know of what nature or what subject, but I'm sure I heard him discuss the President.

Mr. HUBERT. Now, of course, you know that in this country as perhaps all over the world there are different views about government, and society normally called “isms” left or right or communisms or pro-Castro or anti-Castro or things of that sort?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Have you ever heard Ruby express himself in areas of thought such as those?

Mr. ARMSTRONG. No; I know he threw a guy out of the club once for speaking as a Communist.

Mr. HUBERT. Will you tell us about that?

Mr. ARMSTRONG. Well, it was just that this guy was heckling with the MC, Wally Weston, and he was coming on like he was a large portion of the Communist Party.

Mr. HUBERT. This man was—this patron?

Mr. ARMSTRONG. Yes; and Wally stepped off of the stage—he made a remark that——

Mr. HUBERT. When you say “he” do you mean Wally?

Mr. ARMSTRONG. No; the customer made a remark that Wally could be—made a remark something similar to Wally could be a Communist or something like that too, in other words, “How do I know, you may be a

Communist, too,” or something like that. And, Wally stepped off of the stage and said, “Don’t you call me a Communist,” and he hit the guy and by the time he hit him Jack had him and was rushing him out the door, and told him, “Never come back in this club no more.”

Mr. HUBERT. Did he push him out of the door?

Mr. ARMSTRONG. He pushed him out of the door—he pushed him up against the wall and told him to go out the door.

Mr. HUBERT. He didn’t hit him?

Mr. ARMSTRONG. No; he didn’t hit him—Wally hit him.

Mr. HUBERT. And Jack hustled him out?

Mr. ARMSTRONG. When you go out the door, you are going to face a wall—in other words, the stairways come up like this [indicating], and the door is here and you’ve got to turn and go down the stairway and he shoved the guy right on into the wall.

Mr. HUBERT. Then he walked down the stairs?

Mr. ARMSTRONG. Then he hurried down the stairs.

Mr. HUBERT. When was this incident?

Mr. ARMSTRONG. It was—I would say around the last of September or somewhere along in there or October.

Mr. HUBERT. What makes you fix the date?

Mr. ARMSTRONG. Well, it was toward the last part of the summer, I’m sure.

Mr. HUBERT. This man had been in the audience boasting, you say, that he was a big shot Communist?

Mr. ARMSTRONG. Well, not a big shot, but he come on like he was a big portion of the Communist Party.

Mr. HUBERT. What sort of looking man was he?

Mr. ARMSTRONG. He was a young fellow with two other young couples from Arlington State College—I think that’s where he said he was from.

Mr. HUBERT. Who told you that?

Mr. ARMSTRONG. Well, that's what they said—that's what they had said, Wally had asked them where they was from and he said he was a student at Arlington—I'm sure they said Arlington.

Mr. HUBERT. At where?

Mr. ARMSTRONG. At Arlington College.

Mr. HUBERT. At Arlington State College?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where is that located?

Mr. ARMSTRONG. In Arlington, I guess.

Mr. HUBERT. And you say there were two couples?

Mr. ARMSTRONG. No; there were two men and a lady.

Mr. HUBERT. And it was one of the men who was going on like he was a big Communist?

Mr. ARMSTRONG. Right.

Mr. HUBERT. The other man and the lady were quiet?

Mr. ARMSTRONG. They were quiet and never said a thing and they apologized for his behavior after Jack had put this other guy out.

Mr. HUBERT. Did they stay on?

Mr. ARMSTRONG. Yes; they said—Wally said, "Are you going to follow your friend?" And they said, "No; we couldn't say he was a friend of ours, and we just happened to be together." And then he dropped out.

Mr. HUBERT. How was this man dressed, do you know?

Mr. ARMSTRONG. Well, he had a suit on.

Mr. HUBERT. How old a man was he?

Mr. ARMSTRONG. Oh, about 21 or 22, I guess.

Mr. HUBERT. How tall was he?

Mr. ARMSTRONG. About 5 feet 9, something like that.

Mr. HUBERT. What would be your estimate of his weight?

Mr. ARMSTRONG. Not much over 150 or 160.

Mr. HUBERT. Did he have a tie on?

Mr. ARMSTRONG. Yes; he had a tie on.

Mr. HUBERT. Did he have a mustache?

Mr. ARMSTRONG. No mustache.

Mr. HUBERT. What color was his hair?

Mr. ARMSTRONG. I think he had dark—I don't know whether it was black or dark brown, but it was dark.

Mr. HUBERT. I would like, if you could, for you to fix the time of that incident a bit closer than you have been able to do it so far.

Mr. ARMSTRONG. Well, no; I couldn't—the air conditioners were running.

Mr. HUBERT. The air conditioners were running?

Mr. ARMSTRONG. And it was around the last of August—it wasn't too—well, if you could ask Wally he probably could give you a better date than I could when it was.

Mr. HUBERT. You don't remember the night of the week?

Mr. ARMSTRONG. No; I sure don't.

Mr. HUBERT. Would it be helpful if you tried to estimate how long before the assassination of the President this all happened?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was Crafard there then?

Mr. ARMSTRONG. No; he came after.

Mr. HUBERT. That was before Crafard came?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. About how long was it before Crafard came?

Mr. ARMSTRONG. I don't know—well—it was sometime during the summer

Mr. HUBERT. Did you talk to Ruby about it afterwards?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you hear Ruby say anything about it afterwards?

Mr. ARMSTRONG. No; Wally and I discussed it.

Mr. HUBERT. What was the nature of that discussion?

Mr. ARMSTRONG. Well, I was teasing him about his right hook.

Mr. HUBERT. His what?

Mr. ARMSTRONG. His right hook.

Mr. HUBERT. You mean he hit the guy pretty good?

Mr. ARMSTRONG. You see, Wally split his hand open and I got some band-aids and bandaged it up a little bit and helped him clean it off.

Mr. HUBERT. Where is Wally Weston now?

Mr. ARMSTRONG. Where is he?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. I don't know—he was working at the Club Montemarte, but he's not there any more and I'm sure he's not in town now, so he's probably on the road some place.

Mr. HUBERT. Do you remember any other people who were there that night, such as George Senator or Ralph Paul?

Mr. ARMSTRONG. No; things like that I don't try to remember.

Mr. HUBERT. When did Weston leave, do you remember?

Mr. ARMSTRONG. Oh, let's see, Wally left in September, I think.

Mr. HUBERT. And how long had he been there?

Mr. ARMSTRONG. He had been there since about June 1961—no, 1962, I'm sorry.

Mr. HUBERT. He was there about 15 months, but you thought that it was in the last month that he was there?

Mr. ARMSTRONG. Yes; somewhere right around the last few months he was there.

Mr. HUBERT. Well, if he left in September—you thought earlier than that—it might be, this incident might have occurred in August, if that's the case, it wouldn't be then?

Mr. ARMSTRONG. Well, when he left there—he still had that scar—it was still sort of open a little bit on his hand, and it hadn't been healed up—well, it had healed, but it was such a big gash and you could still see the print where they took the stitches out.

Mr. HUBERT. Did he have to go to the hospital?

Mr. ARMSTRONG. He had some stitches taken in his hand.

Mr. HUBERT. Can you tell us anything from your own knowledge, that is having heard or seen things at the club, which would throw light upon Ruby's attitude toward the race question, the Jewish question, and so forth?

Mr. ARMSTRONG. No.

Mr. HUBERT. Had you ever heard him fussing with his entertainers who cracked jokes about Jews?

Mr. ARMSTRONG. Well, he didn't like for the entertainers to crack any jokes about Jews or to tell any Jewish stories.

Mr. HUBERT. How do you know that?

Mr. ARMSTRONG. Well, he told me himself.

Mr. HUBERT. Tell us what he told you.

Mr. ARMSTRONG. Well, you see, Wally and some of the other M.C.'s have some pretty good jokes about Negroes and Jack told me once——

Mr. HUBERT. Who told you?

Mr. ARMSTRONG. Jack asked me once—did Wally's jokes offend men in any kind of way, and I told him “no”. So, he said—well, there was something about it he didn't like—the reason why he didn't like his M.C.'s to tell any Jewish jokes was something about the Jews have already had enough problems and enough troubles already or something like that.

Mr. HUBERT. Was he sensitive about being a Jew?

Mr. ARMSTRONG. No; I don't think so—I wouldn't say that he was proud of being a Jew, I wouldn't say he was not proud, because I don't know. He never showed anything to give me any kind of reason to form an opinion about that.

Mr. HUBERT. When Larry Crafard left and you found out about it, what was your reaction?

Mr. ARMSTRONG. I didn't have any reaction.

Mr. HUBERT. What did you think about it?

Mr. ARMSTRONG. Nothing; just plumb nothing.

Mr. HUBERT. Well, weren't you surprised that this man should go off like that?

Mr. ARMSTRONG. No.

Mr. HUBERT. Why not—it was rather strange conduct just to pick up and leave?

Mr. ARMSTRONG. Well, I didn't give it any thought—he left the way he came. He came unexpectedly and he left unexpectedly. It didn't bother me one bit whether he stayed or whether he left.

Mr. HUBERT. Did you, prior to the shooting of Oswald, give any thought to the possibility that maybe this man Crafard was getting out of town for some reason?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you know how he was getting out of town?

Mr. ARMSTRONG. No; I didn't—I didn't know how he was leaving.

Mr. HUBERT. Have you ever found out?

Mr. ARMSTRONG. No; I didn't ask him when I saw him at the trial.

Mr. HUBERT. Tell us about what conversation you—there was between you and Crafard at the trial of Ruby?

Mr. ARMSTRONG. No conversation at all. He did most of the talking.



Mr. HUBERT. Tell us what he said?

Mr. ARMSTRONG. Well, he didn't say anything, but he said something about—he was surprised when he heard about Jack—the shooting of Oswald, and Jack, and that the FBI had contacted him, and I just told him that I had found the letter from this girl Gayle and had given it to the FBI and that was about all there was—that was about it.

Mr. HUBERT. Did he tell you where he had been?

Mr. ARMSTRONG. No; he didn't tell me where he had been. He said he had a job in some kind of mine somewhere up in Missouri or wherever he was, and he left there to come back here to the trial.

Mr. HUBERT. He told you that he had come to Dallas for the purpose of attending the trial?

Mr. ARMSTRONG. Yes; for the purpose of testifying.

Mr. HUBERT. Do you remember where it was you spoke to him?

Mr. ARMSTRONG. In the county courthouse downtown.

Mr. HUBERT. You mean just in the hallway?

Mr. ARMSTRONG. Downstairs—just as you come in the door.

Mr. HUBERT. You only had one conversation with him?

Mr. ARMSTRONG. Yes; that afternoon I was on my way back after recess and he was on one side of the street and I was on the other side of the street and he saw me and he came across the street and he said, "You remember this suit?" It was the suit that Jack bought him, and I said, "Yes." And he said, "This is all I've got—that Jack bought it for me."

Mr. HUBERT. Is that the only other time you spoke to him?

Mr. ARMSTRONG. That's the only time.

Mr. HUBERT. How long did the conversation last?

Mr. ARMSTRONG. Not longer than a few minutes.

Mr. HUBERT. Now, after Ruby shot Oswald, did you give any thought to the possibility that Crafard's sudden departure the way he went might be linked up with the shooting of Oswald by Ruby?

Mr. ARMSTRONG. No.

Mr. HUBERT. You never have given any thought to that?

Mr. ARMSTRONG. No, no; not at all.

Mr. HUBERT. Prior to the shooting of Oswald, and now that you look back on it, can you tell us anything that indicated that he might have been thinking of doing it?

Mr. ARMSTRONG. That Jack might have been thinking of doing it?

Mr. HUBERT. You understand I don't mean that you knew prior to the shooting that he was going to do it, but now that you look back on those days.

Mr. ARMSTRONG. I know what you mean.

Mr. HUBERT. Is there anything that you can remember?

Mr. ARMSTRONG. No.

Mr. HUBERT. That might throw some light on what he was thinking about in that regard?

Mr. ARMSTRONG. No; I don't believe he was thinking about it until after he did it. The reason why I say that, because you've got to know Jack—he always did things on the spur of the moment, you know. He always blew up just like that [snapping his fingers], if something disturbed him, he would always just crack up. He was charming one minute and the next minute he was all riled up.

Mr. HUBERT. Were you interviewed by the Dallas police concerning this matter?

Mr. ARMSTRONG. No; never.

Mr. HUBERT. Never?

Mr. ARMSTRONG. Never.

Mr. HUBERT. Were you interviewed by the district attorney?

Mr. ARMSTRONG. No.

Mr. HUBERT. Or any of his staff?

Mr. ARMSTRONG. No.

Mr. HUBERT. Were you interviewed by Jack Ruby's attorneys?

Mr. ARMSTRONG. No.

Mr. HUBERT. You were subpoenaed to go to the trial?

Mr. ARMSTRONG. I was subpoenaed to go to the trial.

Mr. HUBERT. Did anyone ever talk to you about the nature of the testimony you were expected to give?

Mr. ARMSTRONG. No; the only someone I talked to is Belli. He came up to the club the first night, the second day he was in town, and he asked me what did I think of Jack Ruby, when I was letting him in the office, he hadn't gotten in the office good before he asked me that, and I told him, and he said "Okay," and nobody ever talked to me since then.

Mr. HUBERT. What did you tell him?

Mr. ARMSTRONG. The same thing I told you—about him cracking up—he just—everything he did, he did it on impulse.

Mr. HUBERT. Did he ask you about that or did you volunteer that?

Mr. ARMSTRONG. No; he asked me—he just popped up and asked me.

Mr. HUBERT. Did he pop up and ask you, "What do you think about Jack Ruby?" Or, did he ask you "Does he pop up and flare up suddenly?"

Mr. ARMSTRONG. No; here's the exact words he asked me, "Why do you think Jack shot Oswald?"

Mr. HUBERT. And what did you tell him?

Mr. ARMSTRONG. Just that he did it on an impulse, is the only reason at all—just cracked up and shot the man.

Mr. HUBERT. But Ruby never carried a gun around on his person, did he?

Mr. ARMSTRONG. That's right.

Mr. HUBERT. He had a gun that day with him, though? Would that influence your thinking somewhat?

Mr. ARMSTRONG. No.

Mr. HUBERT. And from what I understand of your previous testimony, the fact that he would have a gun on him would be unusual; wouldn't it?

Mr. ARMSTRONG. Coming in and out of the club, yes; but I don't know whether he carried it on him or not when he was not coming in and out of the club. In other words, I was stating that if he did carry a gun—when I saw him with a gun, it was always in a bag, never on him, but when he was away from the club—I don't know where he had this gun.

Mr. HUBERT. But your impression was that he didn't carry it?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Therefore, when you found that he did carry it on the day he shot Oswald, didn't that rather surprise you?

Mr. ARMSTRONG. Well, no; my wife asked me, "What was Jack doing with a gun?" And I said, "I don't know. He might have just had it in the car and didn't want to open the trunk because he had that money in there, probably, and just stuck it in his pocket and wasn't in his senses that he had been in all the time."

Mr. HUBERT. Your wife, in fact, was curious about the same things I'm asking you about?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Why would she have been curious about that?

Mr. ARMSTRONG. Well, it was because that she never knew that he carried one and she didn't like guns, so when it come to the question of a gun, she, by being a woman, and you know how women are about being curious, she asked the question, but she asked a whole lot of other questions about things she never knew.

Mr. HUBERT. So, your testimony is that when you found that Ruby had shot Oswald, you were not surprised that he was carrying a gun?

Mr. ARMSTRONG. No; I wasn't surprised.

Mr. HUBERT. Have you ever talked to any members of Ruby's family about the man?

Mr. ARMSTRONG. About the gun?

Mr. HUBERT. No; about Ruby's case.

Mr. ARMSTRONG. No; not other than Mrs. Grant called me and talked to me and she would do most of the talking—this and that and it's always about the same thing and it just bugs me, you know.

Mr. HUBERT. You have only spoken to her by phone since Ruby shot Oswald?

Mr. ARMSTRONG. No; I spoke to her in person. I have seen her at the club a couple of times. She has been up there and I have seen her down at the courthouse and I saw her a number of times up to the club after the club had been closed, down at the club trying to sell it.

Mr. HUBERT. Did she ever talk about the case itself?

Mr. ARMSTRONG. No; not to—not any more than any other sister would say when her brother was being locked up or committed a crime.

Mr. HUBERT. Well, when you were subpoenaed, did you ever ask her or anybody what they were calling you for?

Mr. ARMSTRONG. No; I didn't ask anyone.

Mr. HUBERT. And you just hung around the court during the entire time of the trial?

Mr. ARMSTRONG. Not the entire time of the trial; the last week of the trial—Monday, Tuesday, and Wednesday.

Mr. HUBERT. Those were the only 3 days you were there?

Mr. ARMSTRONG. Just those 3 days.

Mr. HUBERT. You received your subpoena after the trial began?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you were there for 3 days?

Mr. ARMSTRONG. Three days.

Mr. HUBERT. The trial ended on Saturday, I think?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Who excused you?

Mr. ARMSTRONG. Phil Burleson.

Mr. HUBERT. Did he tell you why?

Mr. ARMSTRONG. He just said—I asked him the second day—I ask him, I said, “Well, listen, when are you going to use me, because I’ve got a job and these people are not going to hold off—they are going to hire somebody else.”

And he said, “We are going to put you on tomorrow, in fact we will get to you tomorrow,” and Belli changed his mind about using me on account of the record I have.

Mr. HUBERT. How did you find that out?

Mr. ARMSTRONG. Phil Burleson came out that afternoon and told me and I kept asking him—no, that was after the judge had recessed for that day, I asked him, I said, “Listen, I’ve got to go to work tomorrow,” and he says, “Well, go ahead, Belli is not going to use you on account of your record,” and so, to my surprise I lost my job by not being able to work those 3 days.

Mr. HUBERT. Who were you employed by then?

Mr. ARMSTRONG. Well, I had just started with Yardell Construction Co., they build houses—homes.

Mr. HUBERT. Other than the time you spoke to Belli at the club and he asked you what you thought about Jack or why he killed him and you told him, did you ever speak to Belli or anybody else about what your testimony would be about?

Mr. ARMSTRONG. No; never.

Mr. HUBERT. So, that as far as you know, they were going to question you about your opinion about Jack?

Mr. ARMSTRONG. Yes; that’s what I thought.

Mr. HUBERT. And then, Burleson told you the reason they couldn't use you was because of your record?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Have you seen pictures of Oswald?

Mr. ARMSTRONG. In the paper?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. Yes.

Mr. HUBERT. I guess you saw pictures on TV and some of the famous pictures that were published at the time he got shot?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Does he bear any resemblance to that man that had the fight with Wally Weston?

Mr. ARMSTRONG. No; this gentleman that had the fight with Wally Weston was sort of a young loudmouth, a smart alec—he had kind of a full face—a handsome fellow.

Mr. HUBERT. You are willing to state that it was not the man whom you have come to know through pictures as Lee Harvey Oswald?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. And you would be positive about that?

Mr. ARMSTRONG. Positive.

Mr. HUBERT. You worked for a man by the name of Roland Davis one time?

Mr. ARMSTRONG. Roland Davis?

Mr. HUBERT. Yes; I think he was connected someway with the El Rancho Hotel.

Mr. ARMSTRONG. Oh, yes, sir.

Mr. HUBERT. You worked there in 1961?

Mr. ARMSTRONG. Yes; that was right after I got out—I have forgotten about that—right after I got back.

Mr. HUBERT. What kind of work did you do there?

Mr. ARMSTRONG. I was a night clerk at the motel.

Mr. HUBERT. Who hired you?

Mr. ARMSTRONG. Mr. Davis.

Mr. HUBERT. Does Mr. Davis have other lines besides running the motel?

Mr. ARMSTRONG. Not that I know.

Mr. HUBERT. Was he engaged in selling—in dealing with Jeeps?

Mr. ARMSTRONG. No; I never saw any Jeeps. The only cars I saw he would own was a Cadillac and a station wagon that had “El Rancho” on the side of his station wagon.

Mr. HUBERT. Do you know if Ruby was ever involved in trading in automobiles with Jeeps?

Mr. ARMSTRONG. No.

Mr. HUBERT. You never heard that at all?

Air. Armstrong. He just could get a car, from what I gather.

Mr. HUBERT. What was that?

Mr. ARMSTRONG. He just could get a car from what I get.

Mr. HUBERT. Well, I wasn't thinking of his buying Jeeps for his own use, but trading in them. That is to say, as a business.

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you know a Nancy Jo Mooney?

Mr. ARMSTRONG. Nancy Jo Mooney; no.

Mr. HUBERT. Well, did you know one by the name of Betty MacDonald?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you ever hear of a girl who had worked at the Carousel as either a waitress or a stripper who committed suicide about the middle of February of this year?



Mr. ARMSTRONG. No.

Mr. HUBERT. By hanging herself in jail?

Mr. ARMSTRONG. No.

Mr. HUBERT. And she was arrested.

Mr. ARMSTRONG. No.

Mr. HUBERT. You have never heard anything about that?

Mr. ARMSTRONG. No.

Mr. HUBERT. And any of those names—Betty MacDonald or Nancy Jo Mooney mean nothing to you?

Mr. ARMSTRONG. There was a girl named Nancy who worked at the club for a few nights or a few weeks—I don't recall. There were so many girls came there—some of them I don't even remember their names, but I don't know whether it was Jo Mooney or what her last name was—as a matter of fact, I don't even recall how she looked, but I remember writing the name Nancy as a waitress.

Mr. HUBERT. Did they have a Polaroid camera at the club?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What was it used for?

Mr. ARMSTRONG. To make pictures of the twisting, customers doing the twist on the stage, which the M.C. would use to make a joke with them—and give the customers the picture.

Mr. HUBERT. Who operated that camera?

Mr. ARMSTRONG. I did.

Mr. HUBERT. Did Larry Crafard do so also?

Mr. ARMSTRONG. One Sunday night, I think he did—I remember showing him how to operate it.

Mr. HUBERT. Were those the only pictures that were allowed to be taken in there?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you ever hear of any other photographer?

Mr. ARMSTRONG. Well—there was——

Mr. HUBERT. Who would come in and take pictures?

Mr. ARMSTRONG. Well, there was this magazine that came in to make some shots, but they required—that was for the magazine article did on the Carousel Club, which, anybody that appeared in the picture that was a customer signed a release on that picture, or if they did not sign a release on the picture, it couldn't be used.

Mr. HUBERT. When did that take place?

Mr. ARMSTRONG. That took place sometime between the last of October and the first of November. Larry was there—he came there the last of October—it must have been the first of November.

Mr. HUBERT. Must have been around the first of November—did he stay just 1 night?

Mr. ARMSTRONG. No, no; 1 week.

Mr. HUBERT. What was the man's name, do you know?

Mr. ARMSTRONG. Offhand, I can't recall his name.

Mr. HUBERT. Was his name Rocco?

Mr. ARMSTRONG. Rocco; that's right.

Mr. HUBERT. And he took a series of pictures?

Mr. ARMSTRONG. He took a series of pictures.

Mr. HUBERT. He stayed about a week and then left?

Mr. ARMSTRONG. Right.

Mr. HUBERT. But other than that, there were no pictures taken?

Mr. ARMSTRONG. No, no other pictures.

Mr. HUBERT. Do you know a man by the name of Jimmy Rhodes?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who was he?

Mr. ARMSTRONG. He's a photographer.

Mr. HUBERT. Did he come around?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did he take pictures?

Mr. ARMSTRONG. Of the girls—usually at his studio. If he made any at the club, it was not during business. It was all right for anybody—there was lots of pictures made, you know, like during the day, if the girls wanted to come up and pose for the photographers and things like that, that was okay, but when I said no other pictures were made in the club, I was speaking of during business.

Mr. HUBERT. In other words, there was no commercial photographer there who would take the pictures of the patrons and sell them to them; is that right?

Mr. ARMSTRONG. No.

Mr. HUBERT. But anybody could take pictures if they wanted to?

Mr. ARMSTRONG. Yes, if they come in after I get there in the daytime and tell me they would be there to make pictures.

Mr. HUBERT. I mean, during the shows?

Mr. ARMSTRONG. No, no; anybody couldn't take pictures, if we saw anyone with a camera we would take it away from them—they had to check them.

Mr. HUBERT. In other words, it was prohibited to take pictures?

Mr. ARMSTRONG. They was prohibited from taking pictures.

Mr. HUBERT. And nobody you knew of could take pictures except Jimmy Rhodes and Rocco and of course you, with your Polaroid?

Mr. ARMSTRONG. Right, but Jimmy Rhodes could not take pictures during business. In other words, when we had customers in the house and there was a show going on, no one could take any pictures but Rocco is the only one I know that made pictures, besides myself, when there was a show going on and we had customers in the club. I'm speaking of before this assassination.

Mr. HUBERT. Yes. Did you know Officer Tippit, the man that was shot by Oswald?

Mr. ARMSTRONG. No, sir.

Mr. HUBERT. Do you know whether Jack Ruby knew him?

Mr. ARMSTRONG. He said that he knew Officer Tippit, but from what I gather later on—Mrs. Grant told me it was a different Officer Tippit that he knew. In other words, there was two officers that had the name of Tippit, from what I gather, and Jack said when the news was coming over the radio about the policeman being shot, that it was Officer Tippit; Jack jumped straight up and said, “I know him—I know him.” Just like that.

Mr. HUBERT. What was his reaction to the shooting of Tippit?

Mr. ARMSTRONG. Well, he said—he was in a sort of—he said, “Isn’t it a shame?” You know.

Mr. HUBERT. Did he seem to be as disturbed about the shooting of Tippit as he was about the shooting of the President?

Mr. ARMSTRONG. Well, he was already disturbed and he didn’t show to be any more disturbed over that than he already were.

Mr. HUBERT. Do you know about a girl named Gloria?

Mr. ARMSTRONG. There was a girl named Gloria that worked up there—I can’t recall how she looked, but I remember the name Gloria.

Mr. HUBERT. How do you remember her?

Mr. ARMSTRONG. By the name.

Mr. HUBERT. What was she doing in the club?

Mr. ARMSTRONG. She was a waitress—I don’t know whether she did any dancing or not on the amateurs, but I know that there was a girl by the name of Gloria.

Mr. HUBERT. Was she with Ruby, did she date him, or what?

Mr. ARMSTRONG. Not that I know of—it wasn’t one of the girls that I hired, so he must have brought her in.

Mr. HUBERT. How long did she stay there?

Mr. ARMSTRONG. Not long.

Mr. HUBERT. Well, how many days?

Mr. ARMSTRONG. I couldn't say—a week, 2 weeks, 3 weeks, a month—I don't know. It couldn't have been over a month though, because the girls that stayed there usually stayed there a month or 2 months—I usually remember them quite well.

Mr. HUBERT. Wasn't there some girl that was going with Jack during the last 2 or 3 days before the President was shot?

Mr. ARMSTRONG. No, not that I know of.

Mr. HUBERT. Do you remember a girl by the name of Joyce Lee McDonald?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What do you know about her?

Mr. ARMSTRONG. She is a stripper. Her name is—her stage name is Joy Dale.

Mr. HUBERT. Was she at the club?

Mr. ARMSTRONG. She was at the club.

Mr. HUBERT. During what period?

Mr. ARMSTRONG. Oh, during the period of—I would say 2 months before the assassination through the end of the year. She left about the third week in January, I would say, approximately 3 weeks she worked during 1964.

Mr. HUBERT. She was a stripper, was she?

Mr. ARMSTRONG. She was a stripper.

Mr. HUBERT. You have heard that Jack was supposed to have been in the B & B Cafe with some girl either before the President was shot, the night before or the night after, haven't you?

Mr. ARMSTRONG. Yes, I heard that.

Mr. HUBERT. As a matter of fact, I think you were asked about that by the FBI?

Mr. ARMSTRONG. I don't know—I don't know whether I was or not. Somebody asked me about it—yes, I'm pretty sure it must have been the FBI.

Mr. HUBERT. Didn't you identify the girl as being Joyce McDonald?

Mr. ARMSTRONG. No, I don't recall—no, I wouldn't have—I wouldn't have identified the girl as being Joyce McDonald, because I wouldn't have had any way of knowing who it was unless they described her to me, and as I said, it could have been Joyce.

Mr. HUBERT. You remember a girl who worked about 5 or 6 nights at the Carousel Club and whom Ruby had taken home after closing hours on each of the nights she worked?

This was a girl that you tried to locate after Oswald was shot to help you run the club?

Do you remember looking for such a girl?

Mr. ARMSTRONG. Oh, that was the lady—oh—I don't recall her name now—"Duckie" or something like that.

Mr. HUBERT. Tell us about that lady, in any case?

Mr. ARMSTRONG. Well, all I know is that Jack had told me she had some knowledge of club running and that she was very smart and sharp and when I had went to see him, he had suggested that if I—he said——

Mr. HUBERT. You mean when you went to see him in jail?

Mr. ARMSTRONG. Yes, he said, "I don't want to be involved with the club any more, but if you want to do it, you can contact this lady." He give me her name—it was "Duckie" or something like that, to come down and give you a hand, because she knows something about operating a club and you can talk to Ralph about it.

Mr. HUBERT. And you tried to find that girl?

Mr. ARMSTRONG. I tried to contact her and I didn't have any luck and I told Ralph about it and he said "forget it."

Mr. HUBERT. Now, that girl you remember as being the girl who had been around the club four or five or six times; isn't that correct?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And that Jack used to take home at night?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. I don't mean to his house, but he did—he left with her, at any rate?

Mr. ARMSTRONG. I don't know whether he left with her or not because I leave before he does.

Mr. HUBERT. Well, do you remember making the statement to the FBI to the effect you knew of one girl there that worked for 5 or 6 nights, it was the same girl you looked for later, and that Ruby had taken her home after closing hours on each of the nights she had worked there?

Mr. ARMSTRONG. No.

Mr. HUBERT. You say you went to see Jack in the jail?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. How many times did you go to see him?

Mr. ARMSTRONG. Oh, five or six, maybe seven times.

Mr. HUBERT. Were you alone with him all the time?

Mr. ARMSTRONG. No; there was always a policeman standing there. A guard.

Mr. HUBERT. Did he talk about his difficulties?

Mr. ARMSTRONG. No.

Mr. HUBERT. What did he talk about?

Mr. ARMSTRONG. He talked mostly about the dogs and——

Mr. HUBERT. What did he say about Sheba?

Mr. ARMSTRONG. Just that see that Sheba don't eat too much because she will get too fat.

Mr. HUBERT. What did he say about leaving Sheba in the automobile that Sunday when Oswald was shot?

Mr. ARMSTRONG. He didn't say—he didn't mention that to me. The first time I went to see him I asked him where were Sheba and he told me he had left her in the automobile and later on, so he told me, to contact the pound, to see if the pound had Sheba, and would they release her, so I called the pound and the pound said that they had her, and Joy Dale went out and picked her up and brought her to the club.

Mr. HUBERT. That's the McDonald girl?

Mr. ARMSTRONG. That's the McDonald girl.

Mr. HUBERT. Did you tell Jack about that?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did Jack tell you how he got in the basement?

Mr. ARMSTRONG. No; he never discussed the shooting.

Mr. HUBERT. Did he tell you about having sent a money telegram to Karen Bennett that morning?

Mr. ARMSTRONG. He told me that.

Mr. HUBERT. What did he tell you about that?

Mr. ARMSTRONG. He said he had sent—that Little Lynn owed him \$20 or \$25, whatever it was, he sent her, plus some more money that she had already drawn that was not on the record, before they paid the payroll, and deduct it from her salary.

Mr. HUBERT. Did he tell you the circumstances under which he had sent her money?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he tell you he sent it by telegram?

Mr. ARMSTRONG. He didn't tell me he sent it by telegram—no; he didn't tell me, but Little Lynn told me.

Mr. HUBERT. What did Little Lynn tell you?

Mr. ARMSTRONG. She just said that Jack had sent her the money. You see, I asked her first how much money had she drew and she told me and



she also told me that Jack had sent her about \$25, I think it was, by telegram.

Mr. HUBERT. Did she tell you why she needed the money by wire?

Mr. ARMSTRONG. No; she didn't tell me why.

Mr. HUBERT. Her pay wasn't due until Sunday night, isn't that right?

Mr. ARMSTRONG. Until Sunday night, which we was closed, they didn't get paid Sunday night.

Mr. HUBERT. They got paid Monday night?

Mr. ARMSTRONG. I think it was Tuesday before they got paid.

Mr. HUBERT. And it was then that you deducted from Little Lynn's pay the amount that had been advanced to her?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Had you seen Jack yet?

Mr. ARMSTRONG. Yes, I saw Jack on Monday.

Mr. HUBERT. But he didn't mention to you that the money had been sent to her by telegram?

Mr. ARMSTRONG. He—yes, he said that he sent the money—he said, "I sent Little Lynn \$25"—he said, "I sent Little Lynn \$25." He didn't tell me about telegram.

Mr. HUBERT. He never discussed with you at all how he got into the jail house?

Mr. ARMSTRONG. No, never did.

Mr. HUBERT. Did he ever talk to you about, or did you know that he could go to the police department and find his way about because he knew a lot of people over there?

Mr. ARMSTRONG. No, he never talked to me about that.

Mr. HUBERT. Did you know that to be a fact?

Mr. ARMSTRONG. No.

Mr. HUBERT. That he could do that?

Mr. ARMSTRONG. No.

Mr. HUBERT. On these 8 or 10 visits that you made to Jack, he never had discussed with you one single aspect of the killing of Oswald, is that right?

Mr. ARMSTRONG. No, never did.

Mr. HUBERT. What was the purpose of your visits, generally, then?

Mr. ARMSTRONG. Oh, just, I guess to see how he was doing, to say, "Hello" and to send him messages that the girls had sent him and carry his mail down there if he had any addressed to him personally.

Mr. HUBERT. How would you handle the mail?

Mr. ARMSTRONG. I would give it to Mr. Decker.

Mr. HUBERT. The sheriff first?

Mr. ARMSTRONG. To the sheriff.

Mr. HUBERT. Has anybody given you any money other than what you have earned?

Mr. ARMSTRONG. No.

Mr. HUBERT. You have had your regular salary all the time that you worked for the Carousel until it closed?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Was it more or less than you were receiving before?

Mr. ARMSTRONG. Well, it was a little more.

Mr. HUBERT. What was it?

Mr. ARMSTRONG. It was \$60.

Mr. HUBERT. Instead of \$45?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Other than that money, did you receive any money from Ralph Paul or any of the brothers and sisters of Ruby?

Mr. ARMSTRONG. No.

Mr. HUBERT. Or, from any other source?

Mr. ARMSTRONG. No, no more than tips, you know, like that.

Mr. HUBERT. Yes, I understand that, but I mean no other sums of money in excess of \$5?

Mr. ARMSTRONG. Pardon?

Mr. HUBERT. No other sums of money in excess of \$5?

Mr. ARMSTRONG. \$5?

Mr. HUBERT. Well, let's put it this way—you received your salary and you received tips?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you get any single tip that was over \$5 at any time?

Mr. ARMSTRONG. Oh, yes; they had single tips—I always have. Certain customers come in lots of times and give me \$6 or \$8 and sometimes \$10.

Mr. HUBERT. Well, would you say that \$10 was the highest?

Mr. ARMSTRONG. Ten was about the highest.

Mr. HUBERT. You haven't received by way of tips any sum, say, more than about \$10?

Mr. ARMSTRONG. Well, that was 1963 or 1962?

Mr. HUBERT. No, I'm not talking about that far back.

Mr. ARMSTRONG. No—you mean after the assassination?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. No.

Mr. HUBERT. I understand you to say you are having a hard time now, is that right?

Mr. ARMSTRONG. Very hard.

Mr. HUBERT. You have no money saved?

Mr. ARMSTRONG. There was—it's gone, you know, a few bucks that I had saved. In fact, I have been paying bills.

Mr. HUBERT. How much was that money?

Mr. ARMSTRONG. That I had saved?

Mr. HUBERT. Yes.

Mr. ARMSTRONG. Well, it amount to about a couple of hundred dollars, I guess.

Mr. HUBERT. You had it in cash?

Mr. ARMSTRONG. In cash.

Mr. HUBERT. And other than that, you didn't have any money anywhere?

Mr. ARMSTRONG. I didn't have any money.

Mr. HUBERT. You didn't have any money in any way—in a bank, I mean?

Mr. ARMSTRONG. No more than—other than \$90 I received from income tax.

Mr. HUBERT. You mean a refund?

Mr. ARMSTRONG. A refund. The reason why it was so hard is because my wife, she lost her job, the business she worked for, they went out of business just a little bit before the Carousel closed up.

Mr. HUBERT. This is off the record.

(Discussion off the record. At this point Counsel Hubert marked exhibits as hereinafter shown.)

Mr. HUBERT. Now, I have marked these exhibits as follows:

Exhibits 5300 A-F, inclusive; 5301 A-E, inclusive; 5302; 5303 A-M, 5304 A-B, inclusive; 5304 A-S, inclusive; 5306 A-B, and 5307-A. Now, I show you a group of pictures which I have marked for identification, "Dallas, Tex., April 14, 1964, as Exhibit 5300-A, -B, -C, -D, -E, and -F, Deposition of Andrew Armstrong." And I have signed my name on each one of them for identification, there being six pictures altogether. I should like you now to look at those six pictures after which I wish to ask you some questions regarding them. Now, I ask you whether you recognize what place is in the background of these pictures?

Mr. ARMSTRONG. Yes.

(Examining pictures referred to.)

Mr. HUBERT. Now, state what it is?

Mr. ARMSTRONG. One of them is——

Mr. HUBERT. No; the place that's in the background—that's a picture of what?

Mr. ARMSTRONG. Let me see—that's the picture of the Carousel.

Mr. HUBERT. You are talking about Exhibit 5300-A?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Is that true also of Exhibit 5300-B?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, there are four others, Exhibits 5300-C, -D, -E, and -F. Is the background of those pictures different from the background of Exhibits 5300-A and 5300-B?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What is the background of Exhibits 5300, -C, -D, -E, and -F?

Mr. ARMSTRONG. It's the background of the Colony Club and the Empire Cleaners.

Mr. HUBERT. Is that nearby the Carousel?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, on all of these pictures in series Exhibits 5300, there is a man, is there not?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is that man?

Mr. ARMSTRONG. Jack Ruby.

Mr. HUBERT. Now, in all of these pictures, there are two girls; is that right?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. One of them has blonde hair and seems to be dressed in black, has a black sweater, apparently, and black pants visible in some of the picture; do you know who she is?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. What is her full name?

Mr. ARMSTRONG. Kathy Coleman, I think it is.

Mr. HUBERT. Now, there is a second girl in there who seems to be dressed in a dress with horizontal stripes in the top part of the dress and vertical stripes in the bottom part of the dress, a blonde-haired girl, do you know who she is?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is that?

Mr. ARMSTRONG. That is Alice Alexander.

Mr. HUBERT. Alice Alexander?

Mr. ARMSTRONG. Yes—Alice Alexander.

Mr. HUBERT. Now, let's turn first to Kathy Kay and let me ask you what you know about her?

Mr. ARMSTRONG. Nothing; but she was a stripper and she was there when I came here.

Mr. HUBERT. Do you remember the time when these pictures were taken?

Mr. ARMSTRONG. No; that's the first time I ever saw them.

Mr. HUBERT. Do you believe that Kathy Kay was a stripper when you first went to the Carousel?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And she was there all the way through the time you were there?

Mr. ARMSTRONG. She was there all except for the time she left, for about maybe 3 weeks or maybe a month, and she came back.

Mr. HUBERT. Well, she was there at the time Oswald was killed?

Mr. ARMSTRONG. Yes; but not after that.

Mr. HUBERT. You mean she stopped after that time?

Mr. ARMSTRONG. Right—she stopped.

Mr. HUBERT. What about the other girl whom you have identified as Alice Alexander?

Mr. ARMSTRONG. Alice Alexander—she was there when I got there and she quit, and she and Jack would always—they would fight frequently and she would come back, and she was there when—during the assassination.

Mr. HUBERT. As I understand it, she was there when you first went to work in May 1962?

Mr. ARMSTRONG. Right.

Mr. HUBERT. What did she do at the club?

Mr. ARMSTRONG. She was a waitress.

Mr. HUBERT. She was not a stripper?

Mr. ARMSTRONG. No.

Mr. HUBERT. And she and Jack would fight, you say?

Mr. ARMSTRONG. A difference of opinion.

Mr. HUBERT. But they never got to hitting one another?

Mr. ARMSTRONG. No.

Mr. HUBERT. And she would quit sometime?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. But she was there at the time of the assassination of the President and of Oswald?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, how long had she been there, dating back from the assassination of the President and of Oswald, and from the last time she had quit?

Mr. ARMSTRONG. Oh, it's hard to say——

Mr. HUBERT. A month or so?

Mr. ARMSTRONG. She had been back longer than that, I'm sure.

Mr. HUBERT. Did she quit once or more than once?

Mr. ARMSTRONG. She quit three or four times—I would say—about four times, and was back in there.

Mr. HUBERT. Let's take the last time she quit, when did she quit the last time?

Mr. ARMSTRONG. The last time was sometime during the summer.

Mr. HUBERT. And how long did she stay away?

Mr. ARMSTRONG. About a month, I guess. She never was away no more than a month.

Mr. HUBERT. And do you remember about the time she came back?

Mr. ARMSTRONG. No; I sure don't.

Mr. HUBERT. Do you think it would have been more than 2 months before the President was killed?

Mr. ARMSTRONG. Yes; I'm pretty sure it was.

Mr. HUBERT. Do you think it would be more than 3 months?

Mr. ARMSTRONG. I don't know—I couldn't say.

Mr. HUBERT. You are sure it would be more than 2 months but you are not sure it would be as long as 3 months?

Mr. ARMSTRONG. As I say, if she had been working as a waitress all the time, I would know, but a lot of times—half the time she was working as a cocktail girl.

Mr. HUBERT. Now, what is the difference between a cocktail girl and a stripper?



Mr. ARMSTRONG. Well,—in other words, a cigarette girl.

Mr. HUBERT. Oh, a cigarette girl?

Mr. ARMSTRONG. She would have the cigarettes—sell the cigarettes.

Mr. HUBERT. Did she dress like she was dressed in the pictures that are marked Exhibits 5300-A through 5300-E when she sold cigarettes?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That was the way she dressed?

Mr. ARMSTRONG. She would be dressed in a dress. She was selling cigarettes then.

Mr. HUBERT. Do you know if there was anything between Ruby and her of a sexual nature?

Mr. ARMSTRONG. No; not that I know of.

Mr. HUBERT. Is she married?

Mr. ARMSTRONG. She was.

Mr. HUBERT. Who is she married to; do you know?

Mr. ARMSTRONG. She has been married—but she was—I don't know her husband's name.

Mr. HUBERT. Did you ever know her by the name of Fillmore?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you know a girl by the name of Grace Fillmore?

Mr. ARMSTRONG. No.

Mr. HUBERT. Or Gloria Fillmore?

Mr. ARMSTRONG. No.

Mr. HUBERT. You didn't know any such person as Gloria Fillmore?

Mr. ARMSTRONG. Not that I can recall.

Mr. HUBERT. What happened to this girl called Alice Alexander after the assassination?

Mr. ARMSTRONG. She stopped for a while and then she came back later on.

Mr. HUBERT. And she stayed until the club closed?

Mr. ARMSTRONG. Yes; she was there.

Mr. HUBERT. Did she have any boy friends you know of?

Mr. ARMSTRONG. Not that I know of—she never had anybody come up there and——

Mr. HUBERT. And get her and take her home?

Mr. ARMSTRONG. And get her and take her home.

Mr. HUBERT. Did you ever see Ruby taking her home?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you know where she lived?

Mr. ARMSTRONG. Somewhere in Irving, but I don't know.

Mr. HUBERT. Where?

Mr. ARMSTRONG. In Irving, Tex.

Mr. HUBERT. [Spelling] I-r-v-i-n-g?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. How do you remember that?

Mr. ARMSTRONG. Wait a minute; I'm sorry, it's not Irving—it's Grand Prairie, because there was an AN number—that's Grand Prairie.

Mr. HUBERT. Is that far from Dallas?

Mr. ARMSTRONG. No; it isn't far from Dallas.

Mr. HUBERT. Did she drive a car?

Mr. ARMSTRONG. She drives a car.

Mr. HUBERT. Now, I notice in the sign which appears in the background of the photographs identified as Exhibits 5300-A and 5300-B, there are two other names—Tammi True and Sal Ember—who is Tammi True?

Mr. ARMSTRONG. Tammi True was a stripper.

Mr. HUBERT. Was she there at the time of the assassination?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did she stay on afterwards?

Mr. ARMSTRONG. She stayed on.

Mr. HUBERT. Until the place closed?

Mr. ARMSTRONG. She wasn't there at the time—she was there prior—no, she was there before the assassination—some weeks she had quit—served out her contract and she came back afterwards.

Mr. HUBERT. How long before——

Mr. ARMSTRONG. About a week, I would say.

Mr. HUBERT. You didn't let me finish my question—how long before the assassination of the President did her contract expire, so that she left or quit about a week, you say?

Mr. ARMSTRONG. About a week.

Mr. HUBERT. And she had been there for some time?

Mr. ARMSTRONG. She had been there—she was there when I got there and she was booked there off and on all while I was there.

Mr. HUBERT. What about Sal Ember?

Mr. ARMSTRONG. That's not Sal Ember—that should have been—you see, some of the letters are missing—this was—this should be Cindy Embers.

Mr. HUBERT. Let's take the top line first—the pictures, Exhibits 5300-A and 5300-B show on the top line the letters [spelling] S-a-l. You say that that was wrong and it should be something else and that some letters are missing?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What should it have been?

Mr. ARMSTRONG. Well, the Sal should have been Sal Vincent.

Mr. HUBERT. Vincent [spelling] V-i-n-c-e-n-t?

Mr. ARMSTRONG. Something like that—I think so.

Mr. HUBERT. Who was Sal Vincent?

Mr. ARMSTRONG. A comedian.

Mr. HUBERT. Now, the next name that appears on Exhibits 5300-A and 5300-B in the sign in the background below the word [spelling] S-a-l, is the word Ember [spelling] E-m-b-e-r, and I think you said that's wrong too, because of the absence of letters?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What should have been the letters?

Mr. ARMSTRONG. Cindy Embers.

Mr. HUBERT. Cindy [spelling] C-i-n-d-y?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Embers [spelling] E-m-b-e-r-s?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And who was that?

Mr. ARMSTRONG. A stripper.

Mr. HUBERT. Was she there at the time of the assassination?

Mr. ARMSTRONG. No.

Mr. HUBERT. When did she leave?

Mr. ARMSTRONG. She left sometime ago—back, I think, the last time she was booked there was back in the summer. She never worked there over 3 or 4 weeks.

Mr. HUBERT. And what about Sal Vincent?

Mr. ARMSTRONG. He did—the first month after Wally Weston left.

Mr. HUBERT. When did Sal Vincent leave, how long before the death of the President?

Mr. ARMSTRONG. About a month, I would say.

Mr. HUBERT. And how long had he been there?

Mr. ARMSTRONG. About a month.

Mr. HUBERT. And now, is it safe to say then, that these two pictures, Exhibits 5300-A and 5300-B must have been taken during the month of October 1903?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Because that's the only time when that sign would have made sense as to when those people were there?

Mr. ARMSTRONG. Right.

Mr. HUBERT. You don't recall the occasion when these pictures were taken?

Mr. ARMSTRONG. No.

Mr. HUBERT. Mr. Armstrong, it is necessary for us to recess your deposition for a short period of time and during this recess will you please examine the other pictures I have shown you and then we will resume your deposition later.

(Short recess.)

Mr. HUBERT. Now, Mr. Armstrong, we discontinued or recessed your deposition about 20 minutes to a half hour ago.

Mr. ARMSTRONG. Right.

Mr. HUBERT. And now we are recommencing it and you understand, of course, that this is just merely a continuation of the deposition under the same authority under which it began, and that you must consider yourself under the same oath that you were at first?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Now, I show you a group of five pictures marked Exhibits 5301-A, B, C, D, and E. I have placed on the back of them "Dallas, Texas, April 14, 1964, Deposition of Andrew Armstrong," and signed my name and I have given each one an exhibit number as indicated. Now, I would like for you to look at those pictures for a while and then I am going to ask you some questions concerning them.

Mr. ARMSTRONG. [Examined exhibits referred to.]

Mr. HUBERT. Now, in all of the five pictures which compose Exhibit 5301, there is a man; who is that man?

Mr. ARMSTRONG. Jack Ruby.

Mr. HUBERT. Also in all of those pictures there are two girls, and will you agree with me that in all five of them one girl is always on the left side of the picture as you look at it and one girl is always on the right side of the picture as you look at it?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Can you tell who the girl on the left side of the picture is in each one of these pictures?

Mr. ARMSTRONG. Joy Dale.

Mr. HUBERT. Joy Dale?

Mr. ARMSTRONG. In other words she was Joyce McDonald.

Mr. HUBERT. Who is the girl on the right-hand side, the blonde girl?

Mr. ARMSTRONG. "Little" Lynn.

Mr. HUBERT. Is that the same as Karen Bennett Carlin?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Do you remember when these pictures were taken?

Mr. ARMSTRONG. No; I sure don't.

Mr. HUBERT. You mentioned some time ago that you recall when some individual named Rocco came in and took a group of pictures?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Were you there when he took the pictures?

Mr. ARMSTRONG. Not that particular one. I didn't know he made that one. It could have been done while I was out tending the bar or something like that.

Mr. HUBERT. Do you recognize the scene that is in the pictures in the series Exhibit 5301?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What is that, please?

Mr. ARMSTRONG. That's the office.

Mr. HUBERT. Jack's office?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What is it the two girls are sitting on?

Mr. ARMSTRONG. That's the couch.

Mr. HUBERT. Now, tell us what you know about the girl in the left-hand side of the picture as you look at it, that is to say, the girl with the dark hair?

Mr. ARMSTRONG. Well, all I know——

Mr. HUBERT. And whom I think you have identified as Joyce McDonald.

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Whose stage name, shall we say, was what?

Mr. ARMSTRONG. Joy Dale.

Mr. HUBERT. What do you know about her?

Mr. ARMSTRONG. Just that she is a stripper at the club.

Mr. HUBERT. How long had she been there?

Mr. ARMSTRONG. She had been there some—maybe 4 months before the assassination.

Mr. HUBERT. Do you think she came about the middle of the summer, then, July or August?

Mr. ARMSTRONG. Let me see—let's see—September.

Mr. HUBERT. Mid-September?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do—how do you fix that, Mr. Armstrong?

Mr. ARMSTRONG. Well, it was around the time that Wally left. I don't know whether she was there right after Wally left or just before Wally left.

Mr. HUBERT. Had she ever been there before, do you know?

Mr. ARMSTRONG. No.

Mr. HUBERT. How long did she stay after the assassination?

Mr. ARMSTRONG. She left sometime—during the—about 3 weeks in January of 1964.

Mr. HUBERT. You mean she was there 3 weeks in January and then quit?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do you know where she lived?

Mr. ARMSTRONG. No.

Mr. HUBERT. What salary do those strippers get?

Mr. ARMSTRONG. Anywhere from \$100 to \$125.

Mr. HUBERT. A week?

Mr. ARMSTRONG. A week—some of them made \$150—some was \$200.

Mr. HUBERT. Do you know what the relationship was between Joyce McDonald and Jack Ruby, if any?

Mr. ARMSTRONG. Just a business relationship as far as I could see.

Mr. HUBERT. Did she go out to dinner with him?

Mr. ARMSTRONG. Not that I know of.

Mr. HUBERT. Did there seem to be any kind of social relationship between them?

Mr. ARMSTRONG. Not that I know.

Mr. HUBERT. Did there seem to be any kind of romantic or sexual relationship between them?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did Ruby have any sexual or romantic relationships with any of the girls in his club?



Mr. ARMSTRONG. Well, I would say he had some, as far as I know romantic relationships. In other words, he was always on the make.

Mr. HUBERT. Well, coming to Joyce McDonald, do you think she—that he was on the make with respect to her?

Mr. ARMSTRONG. I would not state definitely, but I believe he probably tried.

Mr. HUBERT. Did she have any boy friends around there?

Mr. ARMSTRONG. No; not that I know of.

Mr. HUBERT. Do you know whom she lived with?

Mr. ARMSTRONG. No; I sure don't.

Mr. HUBERT. Did she drive an automobile?

Mr. ARMSTRONG. She didn't drive.

Mr. HUBERT. How did she get to and from work; do you know?

Mr. ARMSTRONG. Usually somebody would bring her to work—I only saw her downstairs getting out of a car once and some man drove her to work, and that's the only time I ever saw her getting out of a car.

Mr. HUBERT. You would usually leave at night before they did, didn't you?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What about the other girl, the one on the right-hand side of the pictures as you look at them, which have been identified as series Exhibits 5301-A through 5301-E? I think you have said that the girls there, the blonde, is "Little" Lynn or Karen Bennett Carlin, is that correct?

Mr. ARMSTRONG. That's correct.

Mr. HUBERT. She was married to Bruce Carlin?

Mr. ARMSTRONG. Yes; that's what they said.

Mr. HUBERT. She was the one, or rather her husband was the one that Jack didn't want around the club?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. She was the one, I think, that you called on Friday, the day of the assassination to tell her that the club would be closed that night?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And that you could not reach the next day?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, do you know anything about either of these two girls that you have not testified to so far?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I show you a single picture which I have marked on here for the purpose of identification as follows: "Dallas, Texas, April 14, 1964, Exhibit 5302, Deposition of Andrew Armstrong," and I have signed my name, and I ask you to look at that picture. It seems to be the picture of a man, and I ask you whether you can identify that man or not?

Mr. ARMSTRONG. That's Rocco, the photographer, that made the pictures—took the series of pictures at the Carousel Club.

Mr. HUBERT. He was there for a week, you said?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And what period of time was that?

Mr. ARMSTRONG. What?

Mr. HUBERT. What period of time was he there—when was that week?

Mr. ARMSTRONG. Around the 1st of November.

Mr. HUBERT. From the 1st to the 7th or 8th of November?

Mr. ARMSTRONG. Something like that—yes.

Mr. HUBERT. Did he pay anything for the purpose of taking those pictures—did—to your knowledge, did he pay anything?

Mr. ARMSTRONG. Not to my knowledge.

Mr. HUBERT. He got the consent of Mr. Ruby?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, I want to show you a series of pictures which have been marked for identification as follows, to wit:

“Dallas, Texas, April 14, 1904, Exhibit 5303, Deposition of Andrew Armstrong,” and I have marked my name on each of them, and they are numbered, in addition to Exhibit No. 5303, of which they form a part of the series, they are numbered A through I, and I ask you to look at those pictures, please.

Mr. Armstrong [examined pictures referred to].

Mr. HUBERT. All right, now you have examined the several pictures constituting Exhibit 5303, marked in a series as A through I, and I will ask you whether you can recognize anybody in any of these pictures?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Let’s then take Exhibit No. 5303-A, first, and tell me whom you recognize in that picture?

Mr. ARMSTRONG. This right here—the first picture.

Mr. HUBERT. We are talking about the top picture on the left hand side—right?

Mr. ARMSTRONG. Right—is Joy Dale, and the M.C. that’s shown in all of these pictures, the little man on the stage—give me a minute and I will try to think of his name, but coming down the line, the second picture on the left hand side is Tammi True.

Mr. HUBERT. That’s the girl?

Mr. ARMSTRONG. That’s the girl—she is being held up by a very huge gentleman by the name of—oh—I know his name—his name is Tiny—he comes in the club quite often and he usually gets the same seat—a special chair we had there for him.

Mr. HUBERT. This picture appears several times, does it not?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That is to say, it appears in the third row of the left-hand picture?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And it appears in the bottom row of the left-hand picture, correct?

Mr. ARMSTRONG. Right.

Mr. HUBERT. How often would that man come to the club?

Mr. ARMSTRONG. Well, he started to coming there back in the summer—last summer and he was usually there—he very seldom missed a weekend.

Mr. HUBERT. You knew him only as Tiny?

Mr. ARMSTRONG. As Tiny.

Mr. HUBERT. You never heard his last name?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was he friendly with Ruby?

Mr. ARMSTRONG. Not friendly—just that—he didn't well, you could say they was friendly, but they didn't know each other, anything about each other's backgrounds, or anything like that.

Mr. HUBERT. Did you see him talking with him?

Mr. ARMSTRONG. No, not conversationally.

Mr. HUBERT. Did you see them go out together and come back together?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he spend a lot of money there?

Mr. ARMSTRONG. No, a few beers was all.

Mr. HUBERT. Did you ever see him with anyone else?

Mr. ARMSTRONG. No.

Mr. HUBERT. He always came alone?

Mr. ARMSTRONG. One time he came there with a couple other guys, but just once, otherwise, he was all alone.

Mr. HUBERT. Did you know the other men he came with?

Mr. ARMSTRONG. No.

Mr. HUBERT. You don't remember when he came in with the other two men?

Mr. ARMSTRONG. No—the top picture is——

Mr. HUBERT. Wait a minute, before we leave the big man called Tiny, when was the last time you saw him, to your knowledge?

Mr. ARMSTRONG. Three or four nights ago—Saturday night—I think.

Mr. HUBERT. You mean this past Saturday night?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You are talking about April 11?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where did you see him?

Mr. ARMSTRONG. At the Theatre Lounge.

Mr. HUBERT. Do you work there now?

Mr. ARMSTRONG. No, I stopped by and say hello to a friend of mine that works there and bartends.

Mr. HUBERT. And he was over there?

Mr. ARMSTRONG. I have saw him in there, oh, about four times I think in the last month—I would say.

Mr. HUBERT. And prior to that, when was the last time you saw him?

Mr. ARMSTRONG. Prior to that—the last time I saw him was at the club.

Mr. HUBERT. When was that?

Mr. ARMSTRONG. Oh, I would say it was probably the last weekend before we closed.

Mr. HUBERT. He continued to come to the club, then, after the assassination?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. Did you ever talk to him about Ruby's shooting Oswald?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you ever hear him talk to anybody else about it?

Mr. ARMSTRONG. No, never did. The reason why he's got to be so popular is because he is a helper—he cracks a few jokes and the M.C.'s like to talk to him because he don't get out of line when they talk to him, and he is usually called on during the spinning of the roulette wheel, or something like that, and if he won a bottle of champagne or something like that, it was a big thing.

Mr. HUBERT. Was he employed by the club?

Mr. ARMSTRONG. No, he wasn't employed, he was just a regular customer that has very nice conduct and has a good sense of humor.

Mr. HUBERT. In other words, the M.C.'s figure they can always get a kick out of him, which would amuse the audience?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Now, I show you a picture which is marked for identification as Exhibit 5303-1, and ask you if that is not that same fat man on the right-hand middle of the picture, with a white shirt, with his right hand on his hip and the left hand leaning on the stage right by the microphone?

Mr. ARMSTRONG. Right.

Mr. HUBERT. That's the man, Tiny, that you have identified as being in Exhibit 5303-A; is that correct?

Mr. ARMSTRONG. Right.

Mr. HUBERT. And while we are looking at Exhibit 5303-I, who is the girl dancing there?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. Do you recognize anybody else in the picture?

Mr. ARMSTRONG. The waitress over there.

Mr. HUBERT. You mean the one with the white blouse?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And she has dark hair; you can't see her face, but you can see the back of her figure.

Mr. ARMSTRONG. I think it's Bonnie.

Mr. HUBERT. Bonnie who?

Mr. ARMSTRONG. Bonnie Kelley is all I know.

Mr. HUBERT. That girl you are identifying is in the left middle of the picture; right?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Right behind the man with the gray suit and with his left hand by his mouth and a cigarette in his left hand; is that right?

Mr. ARMSTRONG. That's correct; and this is Tiny's usual position—his usual sitting position—he always gets this table right here [indicating].

Mr. HUBERT. Now, I wish you would just take these pictures, starting with Exhibit 5303-B, and just state for the record who is in the picture that you know, identifying each of the particular frames, by saying whether it is in the top row, second row, third row, or fourth row, and then whether it is on the left-hand side, the middle, or the right-hand side.

Mr. ARMSTRONG. On the top row on the left-hand side is Tammi True. On the top row in the middle is Tammi True.

Mr. HUBERT. Well, now, perhaps we could shorten this by putting it this way: On this number of pictures, 12 to be exact, of Exhibit 5303-B, the girl who is doing the act is Tammi True—right—in all of them?

Mr. ARMSTRONG. No.

Mr. HUBERT. It isn't?

Mr. ARMSTRONG. On the series of pictures in the left line down from the top to bottom and in the middle from top to bottom is Tammi True. The pictures on the right-hand side—the brighter pictures—are Joy Dale.

Mr. HUBERT. All four of them?

Mr. ARMSTRONG. All four of them.

Mr. HUBERT. On the right-hand side?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You have identified the pictures on Exhibit 5303-B?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Now, will you look at Exhibit 5303-C? There are 12 pictures on that, and they are all the same girl?

Mr. ARMSTRONG. They are all the same girl, Kathy Kay.

Mr. HUBERT. Do you recognize anyone else in there?

Mr. ARMSTRONG. No one else.

Mr. HUBERT. Now, take Exhibit 5303-D. There are 12 pictures in that and they are all of the same girl?

Mr. ARMSTRONG. Yes; they are all the same girl.

Mr. HUBERT. Who is she?

Mr. ARMSTRONG. Little Lynn.

Mr. HUBERT. Now, I'll ask you to look at Exhibit 5303-E. There are 12 pictures on that, showing various poses of a girl, is it all the same girl?

Mr. ARMSTRONG. Yes; all the same girl.

Mr. HUBERT. Who is it?

Mr. ARMSTRONG. Joy Dale.

Mr. HUBERT. Is there anybody else in there you recognize?

Mr. ARMSTRONG. No one else.

Mr. HUBERT. Then, take the next picture, which has been identified as Exhibit 5303-F, also consisting of 12 pictures, except that in the second row the middle picture is blank, so that there are really only 11 pictures, and I ask you if the same girl is in all those pictures; that is to say, the dancer?

Mr. ARMSTRONG. No.

Mr. HUBERT. Well, then, let's take the left-hand row from top to bottom. Is it the same girl in those four pictures?

Mr. ARMSTRONG. Same girl.



Mr. HUBERT. Who is that?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. And in the middle series there is a top picture and the next one down is blank and then the third and fourth rows from the top, there are two others—who is in those pictures?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. In all of them?

Mr. ARMSTRONG. All of them.

Mr. HUBERT. Then, move to the right-hand row; there are four pictures from the top down, and will you identify them? Are they different girls in those pictures?

Mr. ARMSTRONG. No; that's Little Lynn.

Mr. HUBERT. They are all of Little Lynn?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Is there anybody else in there you recognize in those pictures?

Mr. ARMSTRONG. Just a waitress in the bottom picture.

Mr. HUBERT. In the bottom right-hand picture; right?

Mr. ARMSTRONG. Right.

Mr. HUBERT. The girl with dark glasses on, on the right-hand side of that picture?

Mr. ARMSTRONG. Correct.

Mr. HUBERT. Does she have shorts on, or something?

Mr. ARMSTRONG. She has some white slacks on.

Mr. HUBERT. And a black sweater?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is that?

Mr. ARMSTRONG. Bonnie Kelley.

Mr. HUBERT. I think that's the girl you identified in a previous picture; is that right?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Anybody else you recognize?

Mr. ARMSTRONG. No; no one else.

Mr. HUBERT. Now, I show you a group of 12 pictures identified as Exhibit 5303-G, and ask you if the same girl is in all of those pictures?

Mr. ARMSTRONG. The same girl.

Mr. HUBERT. Who is the girl?

Mr. ARMSTRONG. Tammi True.

Mr. HUBERT. Anybody else you recognize in any of those pictures?

Mr. ARMSTRONG. No.

Mr. HUBERT. Then, I show you an exhibit marked 5303-H, also a group of 12 pictures, and ask you to start with the row of 4 pictures on the right-hand side from the top to the bottom; who is in those 4 pictures?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. Kathy Kay?

Mr. ARMSTRONG. No, no; on the right-hand side?

Mr. HUBERT. On the right-hand side.

Mr. ARMSTRONG. No; this is Joy Dale.

Mr. HUBERT. She is in all four of those?

Mr. ARMSTRONG. All four of them.

Mr. HUBERT. Now, take the middle row; who is the girl in those?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. Do you recognize the man?

Mr. ARMSTRONG. No.

Mr. HUBERT. No; the left-hand row of four pictures—the two from the top—the first and second pictures from the top, can you identify those people?

Mr. ARMSTRONG. Kathy Kay.

Mr. HUBERT. Now, the lower pictures on the left-hand row; there are two people, a man and a girl; who are they?

Mr. ARMSTRONG. That's Kathy Kay; I don't know who the man is.

Mr. HUBERT. Was he employed by the club?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, Mr. Armstrong, we have been taking your deposition all day and it is now 5:15 p.m., and I suggest that we adjourn and that you come back Thursday morning—can you do that—or Thursday afternoon?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Can you come in without any further notice on Thursday, April 16?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. All right; we will recess your deposition until that time and complete it on Thursday, April 16.

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## **TESTIMONY OF ANDREW ARMSTRONG, JR. RESUMED**

The testimony of Andrew Armstrong, Jr., was taken at 9:12 a.m., on April 16, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. Mr. Armstrong, you recall that day before yesterday we recessed the taking of your deposition because it was getting late in the day?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And we made an appointment to continue it today at 1:30, but that was changed again to 9 o'clock?

Mr. ARMSTRONG. That's right.

Mr. HUBERT. That's satisfactory with you?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, you understand that what we are going to do today is simply a continuation of the deposition that was begun the other day; you understand that?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. That I am acting under the same authority, that you are here in the same way that you were here before, and that you are under the same oath that you were under when you testified before?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Except there has been a recess just like there was on Tuesday when we recessed for lunch?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Only this recess has been a little longer?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Mr. Armstrong, when we left off the other day, you had been examining a number of pictures which had been marked for identification as Exhibit 5303, and I believe that you had examined all of the pictures in that series except those marked for identification as Exhibits 5303-J, K, L, and M. Now, I show you, first of all, the picture identified as Exhibit 5303-J, and ask you if you recognize what place is pictured there?

Mr. ARMSTRONG. That's the Carousel Club.

Mr. HUBERT. Do you recognize anybody in that picture?

Mr. ARMSTRONG. I recognize the girl standing on the stage.

Mr. HUBERT. You mean the girl with the dark skirt, light sweater, and with long tresses?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. The picture shows only the back of her?

Mr. ARMSTRONG. Right.

Mr. HUBERT. In other words, she is right back of the microphone?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is that girl?

Mr. ARMSTRONG. Tammi True.

Mr. HUBERT. Who is the man just in front of her, right in the center of the picture, leaning over?

Mr. ARMSTRONG. That's a customer; I don't know who he is.

Mr. HUBERT. You don't know who he was?

Mr. ARMSTRONG. No.

Mr. HUBERT. Had you ever seen him before?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you recognize anybody else in that picture?

Mr. ARMSTRONG. Just the M.C. standing back by the girl, but I can't recall his name.

Mr. HUBERT. When you say "the M.C.," you are, referring to the person in that picture whose head stands between Tammi True and the customer you have identified and actually right above the top of the microphone?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. He was an M.C.?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You don't know his name?

Mr. ARMSTRONG. I can't recall.

Mr. HUBERT. Was that Wally Weston?

Mr. ARMSTRONG. No.

Mr. HUBERT. Who followed Wally Weston; do you know?

Mr. ARMSTRONG. Sal Vincent; he followed Wally Weston, and this guy followed Sal Vincent.

Mr. HUBERT. It that Bill DeMar?

Mr. ARMSTRONG. No; I don't think so.

Mr. HUBERT. Do you remember when Sal Vincent left?

Mr. ARMSTRONG. Sal was only there 2 or 3 weeks. In other words, you could say the last part of—during the last part of September, I would say.

Mr. HUBERT. That was Vincent, you say?

Mr. ARMSTRONG. Yes; Sal Vincent.

Mr. HUBERT. Then he left, you mean, in the last part of September?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. He was there about 3 weeks?

Mr. ARMSTRONG. About 3 weeks.

Mr. HUBERT. And Wally Weston had been there before him?

Mr. ARMSTRONG. Right.

Mr. HUBERT. How long had Weston been there?

Mr. ARMSTRONG. Wally had been there since about June 1962.

Mr. HUBERT. In other words, he had been there about 15 months when he left?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And he was following Sal Vincent?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And Sal Vincent stayed 3 weeks, until about the end of September?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And this man you have identified as the M.C. in Exhibit 5303-J took his place?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And he stayed how long?

Mr. ARMSTRONG. He stayed about a month, I would say; he stayed about a month.

Mr. HUBERT. Would you say that he stayed until about November 1 or later?

Mr. ARMSTRONG. Yes; I would say he stayed about that.

Mr. HUBERT. And who followed him?

Mr. ARMSTRONG. Bill DeMar.

Mr. HUBERT. And how long did Bill stay—Bill DeMar stay?

Mr. ARMSTRONG. Bill DeMar stayed up until after the assassination.

Mr. HUBERT. And how long had Bill DeMar been there when the assassination took place?

Mr. ARMSTRONG. 3 weeks—3 or 4 weeks, I guess.

Mr. HUBERT. You think that Bill DeMar came in there about the 1st of November?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And that he took the place of Sal Vincent?

Mr. ARMSTRONG. Yes—no—no, he took the place of this man right here [indicating picture].

Mr. HUBERT. That man?

Mr. ARMSTRONG. The man I can't identify.

Mr. HUBERT. He took the place of the man whose name you can't remember, in Exhibit 5303-J, but whose name you don't remember?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. If you do happen to remember his name a little later on, will you interrupt me and tell us about it?

Mr. ARMSTRONG. All right.

Mr. HUBERT. Do you recognize anybody else in that picture, identified as Exhibit 5303-J?

Mr. ARMSTRONG. No.

Mr. HUBERT. All right, then I show you a picture which has been marked for identification as Exhibit 5303-K, and I ask you to look at it.

Mr. ARMSTRONG. All right [examining instrument referred to].

Mr. HUBERT. Do you know what the place is?

Mr. ARMSTRONG. Well, that's the club—I'm sure of that—I'm sure that that is the Carousel Club.

Mr. HUBERT. Do you recognize anybody in it at all?

Mr. ARMSTRONG. Yes; the waitress in the upper right-hand corner.



Mr. HUBERT. The waitress in the far background in the upper right-hand corner, whose profile can be seen, and also her left arm—she seems to have a white blouse on, right?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. She is standing by a picture frame or a window or something, correct?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is that?

Mr. ARMSTRONG. That's our little Margie—her name is Margie.

Mr. HUBERT. Margie what?

Mr. ARMSTRONG. Margie Norman.

Mr. HUBERT. Do you recognize anybody else?

Mr. ARMSTRONG. No.

Mr. HUBERT. I'm marking with an arrow, which I am placing my initials on, and I ask you to place your initials on next to that arrow too, and the arrow points to a man about in the center of the picture at the bottom, and he has on what appears to be a grayish checked shirt—you can see him by profile—he parts his hair on his left side. Do you know who that man is?

Mr. ARMSTRONG. No.

Mr. HUBERT. Have you ever seen him before?

Mr. ARMSTRONG. No.

Mr. HUBERT. And you recognize nobody else in the picture?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I show you pictures marked for identification as Exhibits 5303-L, and ask you if you recognize the place, first?

Mr. ARMSTRONG. It's the Carousel Club.

Mr. HUBERT. Who is on the stage holding the mike?

Mr. ARMSTRONG. Jack Ruby.

Mr. HUBERT. Who else is in the picture that you recognize?

Mr. ARMSTRONG. No one else.

Mr. HUBERT. I show you another picture which has been identified as Exhibit 5303-M, and ask you first if you can identify the place?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is the man on the stage holding the mike?

Mr. ARMSTRONG. Jack Ruby.

Mr. HUBERT. Do you recognize anybody else in the picture?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I show you a picture which has been marked for identification as Exhibit 5304-A and ask you to look at that picture and tell us, first of all, if you recognize the place?

Mr. ARMSTRONG. No, I don't.

Mr. HUBERT. Is it the Carousel Club?

Mr. ARMSTRONG. No.

Mr. HUBERT. How do you know it is not the Carousel; how do you distinguish it from the Carousel?

Mr. ARMSTRONG. Well, the whole picture—it's definitely not the Carousel.

Mr. HUBERT. Did the Carousel have that kind of furniture?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did it have a bar?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did it have a bar with liquor bottles on it like that one does?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did it have chandeliers like that?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you recognize any person in that picture?

Mr. ARMSTRONG. No, I sure don't.

Mr. HUBERT. Do you know the man sitting at the table in the foreground of the picture who is being served a drink by a girl in costume?

Mr. ARMSTRONG. No.

Mr. HUBERT. Have you ever seen him at the Carousel?

Mr. ARMSTRONG. I don't remember him.

Mr. HUBERT. Have you ever seen him anywhere?

Mr. ARMSTRONG. No.

Mr. HUBERT. What about the girl who is serving him the drink, do you recognize her?

Mr. ARMSTRONG. No.

Mr. HUBERT. You have never seen her any place?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, do you see a man in the picture near the bar who appears to be the bartender?

Mr. ARMSTRONG. No.

Mr. HUBERT. You mean you don't see him?

Mr. ARMSTRONG. I see him, but I can't see him too clear—I don't recognize him.

Mr. HUBERT. Did you know a man by the name of Mike Ryan?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Is that Mike Ryan?

Mr. ARMSTRONG. No.

Mr. HUBERT. You are certain that it is not Mike Ryan?

Mr. ARMSTRONG. Positive.

Mr. HUBERT. Who was Mike Ryan?

Mr. ARMSTRONG. He was just a—he came in—the first time I ever met him he was with Jack, and he was sort of a lone wolf sort of on the go all the time.

Mr. HUBERT. Did he come around the Carousel very much?

Mr. ARMSTRONG. At one time—I would say it was within a period of a couple of weeks he was around there quite often.

Mr. HUBERT. When was that period of a couple of weeks that he came around there very often?

Mr. ARMSTRONG. I don't recall—it was during last summer.

Mr. HUBERT. You mean the summer of 1963?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Would it have been when Wally Weston was there?

Mr. ARMSTRONG. It was when Wally Weston was there.

Mr. HUBERT. Did he come after that?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. But not as often?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you ever hear of Ruby and him discussing anything?

Mr. ARMSTRONG. Yes, I guess, business.

Mr. HUBERT. What was that?

Mr. ARMSTRONG. They were discussing business.

Mr. HUBERT. They were discussing business?

Mr. ARMSTRONG. Jack was always discussing some kind of business with somebody—he always had some kind of idea about another club or another kind of business.

Mr. HUBERT. Do you know what kind of business he was discussing with the man you have named as Mike Ryan?

Mr. ARMSTRONG. A private club.

Mr. HUBERT. You heard such a conversation?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You mean another private club in addition to the Carousel?

Mr. ARMSTRONG. Well, the Carousel wasn't a private club.

Mr. HUBERT. Oh, I see; so in other words, the thought was to open a private club?

Mr. ARMSTRONG. Just talk though.

Mr. HUBERT. And talk is all you would know about?

Mr. ARMSTRONG. Yes. I mean—it was just one of Jack's wild ideas, that's all.

Mr. HUBERT. Why do you characterize it as a wild idea?

Mr. ARMSTRONG. Well, he always had these ideas—it was something this day and something the next day.

Mr. HUBERT. But the only reason you are saying this was a wild idea is because you are thinking it was like some of his other wild ideas?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. But other than that you don't know whether it was a wild idea or not?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you know of any other business between Ryan and Ruby?

Mr. ARMSTRONG. No; no more.

Mr. HUBERT. Did they go out socially?

Mr. ARMSTRONG. Not that I know of.

Mr. HUBERT. Have you seen Ryan since the assassination?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where?

Mr. ARMSTRONG. Well, he came up to the club a couple of times and I saw him the day he left for California, at least that's where he told me he was going.

Mr. HUBERT. When was that?

Mr. ARMSTRONG. It must have been around the first of December.

Mr. HUBERT. You mean it was right after Oswald was shot?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You haven't seen him since?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did he tell you what business he had in California?

Mr. ARMSTRONG. No, he didn't.

Mr. HUBERT. How many times after Oswald was shot do you suppose you saw Ryan in the Carousel?

Mr. ARMSTRONG. A couple of times, oh, two or three times.

Mr. HUBERT. Did he talk to you about Ruby and what had happened?

Mr. ARMSTRONG. Yes; no more than anybody else did. He said, everybody would always ask me, "What's wrong with your boss?" And he said the same thing.

Mr. HUBERT. Did you know a man by the name of Tommy, who used to go out with Joy Dale, kind of a boy friend of hers?

Mr. ARMSTRONG. A baseball player?

Mr. HUBERT. I don't know.

Mr. ARMSTRONG. Well, there was a guy that used to bring her to work sometime, so she said, but I never saw him, and he came up and worked—handled the door sometimes for Jack, he did, and they would always sit down and talk together—he and Joy Dale.

Mr. HUBERT. Now, after Oswald was shot and you remained on, and Mr. Paul began to operate the club, did Mr. Paul get anybody to handle the front door?

Mr. ARMSTRONG. Leo Torti handled the front door most of the time.

Mr. HUBERT. How old a man was he?

Mr. ARMSTRONG. I take he was in his late forties.

Mr. HUBERT. Did he have a little gray in his hair?

Mr. ARMSTRONG. A little gray.

Mr. HUBERT. He handled the door?

Mr. ARMSTRONG. He handled the door.

Mr. HUBERT. Did you ever see him and this man Torti we are talking about sitting together?

Mr. ARMSTRONG. Yes; Tommy always sat close to the door.

Mr. HUBERT. He handled the door sometimes himself?

Mr. ARMSTRONG. Sometimes; himself.

Mr. HUBERT. All right. I show you a picture that has been identified as Exhibit 5304-B and ask you if you can recognize the place that is pictured in there?

Mr. ARMSTRONG. No.

Mr. HUBERT. Is it the Carousel?

Mr. ARMSTRONG. No; it is not.

Mr. HUBERT. Do you know any of the people who are pictured in that picture?

Mr. ARMSTRONG. No; I sure don't.

Mr. HUBERT. Now, I will show you a group of photographs which have been identified as follows: "Dallas, Texas, April 14, 1964, Deposition of Andrew Armstrong, Exhibit 5305-A through 5305-S."

All of these also bear an Exhibit No. 5225, April 10, 1964, deposition of C. L. Craford, and I will ask you to look at them, starting with Exhibit A and see if you recognize what those pictures show?

Mr. ARMSTRONG [examining pictures referred to]. This picture here shows——

Mr. HUBERT. That's the first one, and that is Exhibit 5305-A, is it not?

Mr. ARMSTRONG. It shows the back of a 10-cent notebook.

Mr. HUBERT. The back of whose notebook?

Mr. ARMSTRONG. Well, I can't identify that because I don't know—it could be anybody's notebook.

Mr. HUBERT. It appears to you to be a 10-cent notebook, because it says "10 cents" on the front of it?

Mr. ARMSTRONG. Right.

Mr. HUBERT. Did you ever see a book which had a back and front like that which appears in the picture, Exhibit 5305-A?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where?

Mr. ARMSTRONG. Lots of places.

Mr. HUBERT. Did you ever see any at the Carousel?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you ever see any in Jack Ruby's possession?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did Jack Ruby have one that had a back and front like the one in the picture, Exhibit 5305-A?

Mr. ARMSTRONG. No.

Mr. HUBERT. He did not?

Mr. ARMSTRONG. No.

Mr. HUBERT. You mean he did not, or you don't know?

Mr. ARMSTRONG. Well, he could have—I never saw it.

Mr. HUBERT. You never saw it?

Mr. ARMSTRONG. No, sir.



Mr. HUBERT. Now, would you look at the rest of those pictures, just taking them as they are and putting them face down, and see if you recognize any of the writings or names or anything else in those pictures?

Mr. ARMSTRONG. This is Jack's handwriting.

Mr. HUBERT. You recognize Jack's handwriting—in which ones?

Mr. ARMSTRONG. In all of them that I have seen.

Mr. HUBERT. That's in all of them that you have seen so far?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, at the time you made the remark that you recognized Jack's handwriting, I think you were on the picture that is identified as Exhibit 5305-B. You had also looked at Exhibit 5305-C?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now I ask you to look at the whole bunch and tell us if they are in Jack's handwriting or not?

(Mr. Armstrong examines instruments referred to.)

Mr. HUBERT. Now, you've gone through the whole series of photographs and, which are photographs of pages of books that have been identified as Exhibit 5305-A through Exhibit 5305-S, and I ask you if you can tell us whose handwriting is in those books?

Mr. ARMSTRONG. It appears to me that it is Jack's handwriting.

Mr. HUBERT. There's a lot of it that is in print, isn't there?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do you recognize that?

Mr. ARMSTRONG. Especially the print.

Mr. HUBERT. His print—you recognize his prints?

Mr. ARMSTRONG. We both printed more than we wrote.

Mr. HUBERT. You have seen his print before?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. It's your opinion that that is his print?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you ever see the book before—the original of which these exhibits are pictures?

Mr. ARMSTRONG. No; he always had a little notebook, but it was one that opened—not to pull the page up, but opened just like a regular book, you know, a little small book about 2 inches by 1½ inches—just a very little small book.

Mr. HUBERT. Now, as you went through these pictures, Exhibits 5305-A through 5305-S, did you recognize any names or numbers or addresses?

Mr. ARMSTRONG. Well, I saw Little Lynn's name there and I saw Tom Palmer's name.

Mr. HUBERT. Tom who?

Mr. ARMSTRONG. Tom Palmer.

Mr. HUBERT. Who is Tom Palmer?

Mr. ARMSTRONG. He's one of the union agents—he was the Dallas union agent for the AGVA.

Mr. HUBERT. Do you recognize any other names?

Mr. ARMSTRONG. I wasn't looking at the names—just mostly handwriting.

Mr. HUBERT. Perhaps you had better go through and look at them with the names in mind and take them one by one and tell us any names you can recognize in anyway.

The first one is Exhibit 5305-A, and that's the cover. No. 5305-B is the one—now, if you recognize anything, stop so that we can identify the exhibit number of the picture that you recognize.

Mr. ARMSTRONG. I recognize the name "Vegas Club" on the top of that.

Mr. HUBERT. You are talking about Exhibit 5305-D. Is there any significance to you other than that you recognize the name "Vegas Club" on that exhibit?

Mr. ARMSTRONG. Just that they have some figures there for tax, which is the usual procedure of putting them down—the usual way.

Mr. HUBERT. Just go on and if you have no recognition of any picture, just pass it without comment.

Mr. ARMSTRONG. I recognize the print on this as excise tax for the Carousel Club.

Mr. HUBERT. What exhibit are you talking about—is that Exhibit 5305-H?

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. Any significance to that recognition other than you recognize this, sir?

Mr. ARMSTRONG. I recognize what it means—I recognize the name Tom Palmer and his home phone number.

Mr. HUBERT. Your comment is directed to Exhibit 5305-H, is that correct?

Mr. ARMSTRONG. Yes; I recognize the name Bro. Bear.

Mr. HUBERT. You are referring to Exhibit 5305-M, and you recognize a name on it?

Mr. ARMSTRONG. Bro. Bear.

Mr. HUBERT. [Spelling.] “B-r-o. B-e-a-r” and underneath that is “Service” and then there is a telephone number—LA 8-1767.”

What do you recognize about that?

Mr. ARMSTRONG. Just the name Bro. Bear.

Mr. HUBERT. Who was he?

Mr. ARMSTRONG. He was an entertainer at the Vegas Club.

Mr. HUBERT. What kind of entertainment did he do?

Mr. ARMSTRONG. I think he sings and he played some instrument—I don’t know which.

Mr. HUBERT. Was he ever at the Carousel?

Mr. ARMSTRONG. No.

Mr. HUBERT. I see a name on that same Exhibit 5305-M, “Bertha Cheek,” do you recognize that name?

Mr. ARMSTRONG. No.

Mr. HUBERT. You don’t know of any person by that name?

Mr. ARMSTRONG. No.

Mr. HUBERT. I also see on this same Exhibit No. 5305-M at the bottom of the page, Bob Litchfield [spelling] L-i-t-c-h-f-i-e-l-d.

Mr. ARMSTRONG. I have heard the name but I don’t know who it is.

Mr. HUBERT. Whose handwriting is that entry in?

Mr. ARMSTRONG. Whose handwriting is that in—I’m not going to say that that’s Jack’s, because his handwriting—I can’t tell too much about that.

Mr. HUBERT. You can’t be sure that that’s Jack’s handwriting?

Mr. ARMSTRONG. No; not the writing, but the printing I could—if it was printing I could—the numbers look like it.

Mr. HUBERT. Do you know who Bob Litchfield was?

Mr. ARMSTRONG. Bob Litchfield; Bob Littlefield.

Mr. HUBERT. Littlefield; it is?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Oh, I’m sorry—I was reading it wrong—perhaps that is right, this says [spelling] L-i-c-h-f-i-e-l-d.

Mr. ARMSTRONG. That’s a magazine—let’s see—I don’t know. It was the “Around Town” magazine, I think it was the Littlefield “Around Town” magazine.

Mr. HUBERT. That was a man called Bob Littlefield?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you read the name here at the bottom of the page as “Littlefield”. Let’s put it this way—you have already told us about a man

named Bob Littlefield—what do you know about a man named Bob Lichfield here?

Mr. ARMSTRONG. Nothing.

Mr. HUBERT. Nothing at all; you never heard of him?

Mr. ARMSTRONG. No.

Mr. HUBERT. Would it make any difference to you that he might have been known as Bill Lichfield?

Mr. ARMSTRONG. No.

Mr. HUBERT. You didn't know a Bill Lichfield?

Mr. ARMSTRONG. No.

Mr. HUBERT. All right; go on.

Mr. ARMSTRONG. No; I recognize the man—I recognize the name “Little Lynn.”

Mr. HUBERT. You are talking about Exhibit 5305-S?

Mr. ARMSTRONG. And it has her phone number.

Mr. HUBERT. You say you recognize “Little Lynn,” you have already testified about her, I believe?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, I show you two pictures that have been marked for identification as Exhibits 5306-A and 5306-B, each of which purports to be pictures of three memo slips, and ask you if you recognize them?

Mr. ARMSTRONG. No; I can't.

Mr. HUBERT. Do you know whose handwriting they are in?

Mr. ARMSTRONG. It doesn't look like Jack's handwriting.

Mr. HUBERT. Do you recognize any names or telephone numbers on those memo slips?

Mr. ARMSTRONG. No.

Mr. HUBERT. You have looked at all six of them?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Have you read the messages that each contained?

Mr. ARMSTRONG. Oh, yes; here's one—I think——

Mr. HUBERT. Now, you are talking about the memo slip on the right-hand side of the pictures as you look at it, the picture having been identified as Exhibit 5306-B. Now, will you comment on that?

Mr. ARMSTRONG. All right.

Mr. HUBERT. I had asked you whether the message meant anything to you. You seemed to indicate that the message on the picture I have described does indicate something to you, and now I ask you what does it indicate?

Mr. ARMSTRONG. No; I'm sorry. I made a mistake—it doesn't, but this one here, the one in the center, I think that's Palmer—Tom Palmer.

Mr. HUBERT. Now, you are referring to the middle slip on the picture identified as Exhibit 5306-A, and you say the message there you recognize; right?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What makes you recognize it?

Mr. ARMSTRONG. The telephone number and the name.

Mr. HUBERT. Now, the memo slip that you are talking about, and I repeat for identification, that it is the middle memo slip on Exhibit No. 5306-A, apparently is addressed to Ruby because it has his name there, although one can see in the picture, can't one, that there was a word that looks like somebody started to write "Armstrong" and then stopped—right—or something?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And the date is 11-14 at 3:40, and then there was printed "while you were out Pauline [spelling] P-a-u-l-i-n-e phoned, FE 7-5992." It looks like.

And then there is a checkmark in the block "telephoned" and a checkmark in the block "please call" and the message is: "This one I

couldn't tell if she was colored or white," is that correct?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, you identified that with Palmer?

Mr. ARMSTRONG. It looked like it.

Mr. HUBERT. Well, if you were mistaken, say so?

Mr. ARMSTRONG. Yes; I was mistaken.

Mr. HUBERT. Do you have any recollection of that message now?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was there any that you had any recognition about, any one of the six memo slips on the Exhibits 5306-A and 5306-B?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I will show you an exhibit that has been identified as Exhibit 5307-A. It is a picture of one slip of paper, and I ask you if you could identify that?

Mr. ARMSTRONG. No.

Mr. HUBERT. All right; now I show you photostats of a number of pages in a book, which have been identified the other day when you first were here: "Dallas, Texas, April 14, 1964, Exhibits 5308, Deposition of Andrew Armstrong," and I ask you to look at all those pictures first, and tell me if you recognize that book at all?

Mr. ARMSTRONG. I've already looked at them.

Mr. HUBERT. Do you recognize it?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What about it do you recognize? What book was that?

Mr. ARMSTRONG. This is a little notebook that Larry carried around and took messages on and wrote checks, phone numbers, and things down on.

Mr. HUBERT. Did you ever see it before?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Where?

Mr. ARMSTRONG. At the club.

Mr. HUBERT. Where was it at the club—where was it kept?

Mr. ARMSTRONG. Larry kept it in his pocket, although, when he left, he left it there with him.

Mr. HUBERT. He left it where?

Mr. ARMSTRONG. He left it at the club.

Mr. HUBERT. He left it with you?

Mr. ARMSTRONG. No, no; he just left it at the club.

Mr. HUBERT. In other words, when you came back to the club, the day after Larry left, to clean up, I think you found some other things of his and you found that too?

Mr. ARMSTRONG. No.

Mr. HUBERT. Or, did you find that at another time?

Mr. ARMSTRONG. Not that same day. No; I didn't find it then—it was later.

Mr. HUBERT. When did you find it?

Mr. ARMSTRONG. Sometime after the club opened back up—I don't know whether it was Monday or Tuesday—whatever day the FBI's came up this day, I found this.

Mr. HUBERT. Where was it?

Mr. ARMSTRONG. It was in the room where he slept.

Mr. HUBERT. Did you find it on the same day that you found the letters?

Mr. ARMSTRONG. Yes; I think so.

Mr. HUBERT. They were together?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you turned them over to the FBI?

Mr. ARMSTRONG. Yes.



Mr. HUBERT. Now, I think you said you have looked over that book already—the other day?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Is there anything significant about that book you wish to comment upon?

Mr. ARMSTRONG. No; I can recognize a few names in it.

Mr. HUBERT. Do you recall if they were names of any people that you have not so far mentioned in your deposition?

Mr. ARMSTRONG. Yes; I think——

Mr. HUBERT. All right; I would like you to go through and pick out the names of the people that have not yet been discussed by you as part of your deposition.

Mr. ARMSTRONG. Here is a name—Mike Shore—I've heard it before—I think he is an agent.

Mr. HUBERT. That's on the first page, right?

Mr. ARMSTRONG. Yes; and here is a name—Abe Kleinman—which is the accountant.

Mr. HUBERT. That's on the second page?

Mr. ARMSTRONG. The name Earl Ruby, that's Jack's brother.

Mr. HUBERT. That's on the second page?

Mr. ARMSTRONG. The name Doris and Peggy, on the second page, which they had called for to apply for jobs.

Mr. HUBERT. Did you speak to them?

Mr. ARMSTRONG. No; Larry did himself.

Mr. HUBERT. How do you know, then, that they had called to apply for jobs?

Mr. ARMSTRONG. Well, he told me—he wrote the name down and it was the day we were looking for waitresses, and he give me the numbers, and I didn't reach them as they were not at home or something, and the name Bill DeMar.

Mr. HUBERT. Who was he?

Mr. ARMSTRONG. He's an M.C.—the name Mike Ryan.

Mr. HUBERT. I think you have already talked to us about Mike Ryan, haven't you?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. All right.

Mr. ARMSTRONG. The name Little Lynn—I have already talked to you about that. Here's a name—Bobby Patterson of—I've heard of, I don't know him.

Mr. HUBERT. Did you ever see him?

Mr. ARMSTRONG. No.

Mr. HUBERT. What have you heard about him?

Mr. ARMSTRONG. Nothing—I just heard the name—I forget what he was connected with.

Mr. HUBERT. Let the record show that the witness is looking over the pictures, and that as he has any comment, he has been asked to make such comment without further questioning from me.

Mr. ARMSTRONG. Yes; I recognize the back of the notebook.

Mr. HUBERT. What about the back of the notebook.

Mr. ARMSTRONG. I just recognize that that's the notebook that belonged to Larry.

Mr. HUBERT. Now, I show you a document which is described as a photostatic copy of some sort of a notebook which has been identified as follows: This page is marked, "Dallas. Texas, April 14, 1964," which is when your deposition began, "Exhibit 5309-A, Deposition of Andrew Armstrong," and I have signed it.

Let the record show also that this exhibit is also marked "Washington, D.C., Deposition of C. L. Craford, Exhibit 5302, April 9, 1964," and under which appears the name of Mr. Burt Griffin.

This exhibit consists of nine pages. There is typewritten on the front of it, "Notebook number 1," found on the left-hand bottom of the exhibit, and the number "(1)" and then on each of the subsequent pages there is typewritten there at the right-hand side, "No. 2, 3, 4, 5, 6, 7, 8, and 9," in that sequence.

I ask you if you can identify that document? Now, look the whole thing over and we will do it in this way. I want you to look it all over first and tell me without making any comment, and then tell me whether you identify it or not.

Mr. ARMSTRONG [examining instrument referred to].

Mr. HUBERT. All right, now you have looked over all of these pages, and first I ask you whether you recognize the book at all?

Mr. ARMSTRONG. No.

Mr. HUBERT. Do you recognize the handwriting or printing in it?

Mr. ARMSTRONG. I believe once—one time a long time ago Jack had a notebook like this.

Mr. HUBERT. Can you say now whether the one you think he had a long time ago is shown in these photostatic pictures?

Mr. ARMSTRONG. It must be, because my old telephone number is in there.

Mr. HUBERT. Your recognition of the book, though, is not based on an actual recognition now, but an assumption, isn't it?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You really can't recognize that as Jack's handwriting or have a distinct independent recollection of having seen the original of which those pages are photos?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I'll ask you to do as you have done with the last exhibit, and that is to look over each page and see if you recognize any name or number? If you do not, pass to the next page. If you do, stop and tell us what page it is on and then make what comments you have to make.

Mr. ARMSTRONG [examining instrument referred to]. First, I'll say I believe that is Jack's handwriting.

Mr. HUBERT. Well, now, a moment ago you said you couldn't be sure—have you changed your mind?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What caused you to do that?

Mr. ARMSTRONG. Certain letters here that I know his way of printing.

Mr. HUBERT. Now, go on with the examination of each page as I have asked you to do.

Mr. ARMSTRONG. The name Bill Willis.

Mr. HUBERT. What page are you talking about—that is typewritten at the bottom of page 4—right?

Mr. ARMSTRONG. At the bottom of page 4.

Mr. HUBERT. What name?

Mr. ARMSTRONG. Bill Willis.

Mr. HUBERT. Do you recognize that name?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is he?

Mr. ARMSTRONG. He was a drummer at the club.

Mr. HUBERT. When was he a drummer at the club?

Mr. ARMSTRONG. Ever since I been there.

Mr. HUBERT. Was he there until the place closed?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. In other words, he was there almost 2 years?

Mr. ARMSTRONG. He was there longer than that.

Mr. HUBERT. Did he and Jack get along all right?

Mr. ARMSTRONG. They got along better than anybody else.

Mr. HUBERT. What evidence did you see to support that conclusion on your part?

Mr. ARMSTRONG. Well, Bill Willis was one of the few guys that I ever heard Jack say was a nice guy—continuously.

Mr. HUBERT. Was—so, your assumption that they got along better than anyone else is based on what Jack told you about him?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And that was that Jack continuously said he was a nice guy?

Mr. ARMSTRONG. He liked him and everybody else did, because he is really a wonderful person. I recognize my phone number and the name “Andy.”

Mr. HUBERT. That’s on page 4?

Mr. ARMSTRONG. On page 4—I recognize the name “Wally Weston.”

Mr. HUBERT. That’s on page 6?

Mr. ARMSTRONG. That’s on page 6. I have heard Jack mention the name Joe Cook.

Mr. HUBERT. That’s on page 6, too?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you know Joe Cook?

Mr. ARMSTRONG. No.

Mr. HUBERT. What did Jack have to say about him?

Mr. ARMSTRONG. Well, he just mentioned him in his business—I’ve forgotten what it was.

Mr. HUBERT. When did he mention Joe Cook?

Mr. ARMSTRONG. I can’t recall.

Mr. HUBERT. Would it have been shortly after you got there, towards the end, or about the middle of the time you were there?

Mr. ARMSTRONG. I don't know—I couldn't say. I recognize the name Peggy Steele.

Mr. HUBERT. That was on page 8—who was Peggy Steele?

Mr. ARMSTRONG. She was a stripper that was booked there for about a month.

Mr. HUBERT. How long ago—what period of time was she there?

Mr. ARMSTRONG. I don't know—it was sometime about the fall of 1962, I would say.

Mr. HUBERT. She was there for about a month?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. After she left, did you ever see her?

Mr. ARMSTRONG. No.

Mr. HUBERT. Was she ever around the club any more?

Mr. ARMSTRONG. No.

Mr. HUBERT. That was the fall of 1962, not 1963; is that correct?

Mr. ARMSTRONG. 1962—yes.

Mr. HUBERT. Now, you have gone through all of the pages 1 through 9 of Exhibit 5309-A, and I understand that you have made all the comments that you have to make about any of the entries on those various pages, and that is to say that you made a comment as to any name that had any significance to you at all?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And if you have not commented on the name, that means that the name has no significance to you?

Mr. ARMSTRONG. Right.

Mr. HUBERT. I am going to ask you to do substantially the same thing with another document that I am handing you that has been identified, "Dallas, Texas, April 14, 1964," and this was marked for identification on your last appearance. It is marked as Exhibit 5309-B, "Deposition of Andrew Armstrong." I have signed it. The document consists of 20 pages. It

is a photostat of an original, apparently. It has written in type "Notebook No. (2), page 1," on the first page, and then on each of the subsequent pages there are numbers running from 2 to 20.

I would also like to have the record note that this exhibit has also been marked as "Exhibit 5204," relative to the deposition of C. L. Crafard.

I would like you first of all to look through all of the pages for the purpose of a general identification, after which I am going to ask you to go over each page as you did the previous document.

Mr. ARMSTRONG. [Examining instrument referred to.] Okay.

Mr. HUBERT. Let the record show that the witness is examining each page of the exhibit.

Now, you have looked at all of the pages of that Exhibit 5309-B, and you have identified it all?

Mr. ARMSTRONG. Yes—no—well, yes, I have looked at it but I haven't identified it.

Mr. HUBERT. Well, we'll put it this way—have you ever seen the original of which this exhibit is a series of pictures?

Mr. ARMSTRONG. No.

Mr. HUBERT. You have never seen that address book, or whatever it is?

Mr. ARMSTRONG. I don't remember seeing this—now, I could have, but I don't remember it.

Mr. HUBERT. You don't remember ever having seen it at all?

Mr. ARMSTRONG. Let me make this statement.

Mr. HUBERT. All right, go ahead—you wish to make a statement?

Mr. ARMSTRONG. Jack kept a number of little books and little pieces of paper wrapped up with a rubber band in his coat pocket and whenever he got ready to look for anything he would take it out and run through it, take out one of those little books, which I didn't pay any attention to it—this could be one of the little books he had.

Mr. HUBERT. But you do not recognize it?

Mr. ARMSTRONG. No.

Mr. HUBERT. And you don't believe you have ever seen it before?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, I will ask you to go over each individual page and if there is any entry or name that has any significance to you or that you recognize in any way, stop and identify the page and then make your comment. If, as you turn the pages over and examine them you have no recognition or the entries are not significant to you, then your silence as to each page will mean precisely that.

That is to say, that those entries mean nothing to you.

Mr. ARMSTRONG. [Examining instrument referred to.] I recognize the name Sam Ruby.

Mr. HUBERT. That's what page—the page you are referring seems to be unnumbered—an unnumbered page, but it is the third page back from the one that is numbered 20, is that correct?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Who is Sam Ruby?

Mr. ARMSTRONG. Jack Ruby's brother.

Mr. HUBERT. Was he around the club much?

Mr. ARMSTRONG. No.

Mr. HUBERT. Did you ever meet him?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you meet him before Oswald was shot?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. How did you meet him?

Mr. ARMSTRONG. I met him at the club.

Mr. HUBERT. How many times?

Mr. ARMSTRONG. Three or four times.



Mr. HUBERT. Did you ever speak to him?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. What about?

Mr. ARMSTRONG. Oh, nothing—he would tell me about his business.

Mr. HUBERT. When was the last time you saw him prior to the assassination?

Mr. ARMSTRONG. The last time I saw him was at the trial.

Mr. HUBERT. When was the last time you saw him prior to the assassination of President Kennedy?

Mr. ARMSTRONG. I can't recall.

Mr. HUBERT. All right, did you see any other names that you recognized in that exhibit?

Mr. ARMSTRONG. No others.

Mr. HUBERT. Now, Mr. Armstrong, the other day I asked you to read a number of reports which purport to be reports by agents of the FBI of interviews of you?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you read them at that time?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Those were marked for identification the other day as follows:

“The interview by Special Agent Lish and Wilson, dated November 26, as Exhibit 5310-A,” consisting of two pages; the interview on November 27, consisting of one page, which was identified as Exhibit 5310-B; the interview of December 9, 1963, consisting of one page was identified as Exhibit 5310-C; and another interview of December 9, 1963, consisting of one page and which is identified as Exhibit 5310-D; the interview of December 13, 1963, consisting of one page and was identified as Exhibit 5310-E; the exhibit of December 19, 1963, was identified as Exhibit 5310-

F; and exhibit dated January 22, 1964, was identified as Exhibit 5310-G, and it consists of four pages.

I have signed my name on the margin of the first page and my initials at the right-hand bottom of all the other pages.

I think you have read these various exhibits carefully the other day, did you not?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. As a matter of fact, if my recollection serves me right, it took you about an hour or so, did it not, to do so; is that correct?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Do you wish to look them over again?

Mr. ARMSTRONG. No.

Mr. HUBERT. Well, I'm going to ask you a question, and if you do wish to look them over again, in the light of my question, please say so, because you will be allowed to do so?

Mr. ARMSTRONG. All right.

Mr. HUBERT. What I want to know is whether or not these various Exhibits 5310-A through 5310-G are fair reports and correct reports of the interviews with the various agents of the FBI on the dates dated?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Did you notice anything that was incorrect?

Mr. ARMSTRONG. Yes—not in this, but in the statement that I made day before yesterday.

Mr. HUBERT. Now, you mean that when you say something was incorrect—you mean you said something was incorrect the other day?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Well, we'll get to that in a moment, but before we do, let's dispose of these Exhibits 5310-A through 5310-G.

As far as you know, and you have read them, there is nothing in those exhibits that is incorrect?

Mr. ARMSTRONG. No.

Mr. HUBERT. It represents the truth as you know it and as you told it to the FBI agents?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, you say that there was something that was incorrect the other day that you said while in the course of your deposition?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Will you tell us what that was, please, sir?

Mr. ARMSTRONG. When you asked me what time did I leave the club on Saturday night.

Mr. HUBERT. Yes.

Mr. ARMSTRONG. I said 8 o'clock and in the report here it says 9, and after I read the report, I remembered that it was 9 o'clock when I left the club.

Mr. HUBERT. In other words, the correction you want to make, then, is not in the FBI report but in your own testimony?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Your memory has now been refreshed by the report and you actually recollect that your time of departure from the club on Saturday night?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Was 9 o'clock rather than 8 o'clock?

Mr. ARMSTRONG. Everything was right but the time.

Mr. HUBERT. Everything you said there was right except the time?

Mr. ARMSTRONG. Except the time.

Mr. HUBERT. And you wish to correct your previous testimony insofar as you stated that you left at 8 o'clock, so that the record will show that in fact you left at 9 o'clock on Saturday night?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. November 23?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you are telling me the reason you wish to make that correction is because of what?

Mr. ARMSTRONG. Because I remember that after reading the statement that it was 9 o'clock when I left.

Mr. HUBERT. Now, do you have an independent recollection of having left at 9 o'clock instead of 8 o'clock, or are you simply relying upon what the FBI record shows you must have told them?

Mr. ARMSTRONG. Well, no; it just brought back to my memory that it was originally set at 8 o'clock that I was going to leave. Then, before Jack left, he said, "Why don't you make it 9" and I didn't want to, but I said, "Okay," and that's when we got in the argument over the telephone and he wanted me to stay on until 10.

Mr. HUBERT. And at that time I thought you said you went ahead and left anyhow at 8 o'clock?

Mr. ARMSTRONG. Well, I did, but I went ahead and left anyway at 9 o'clock.

Mr. HUBERT. So, you were in error the other day when you said that after the argument with Jack you went ahead and left at 8, the time you had agreed upon anyhow?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. He wanted you to stay until 10?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. You had agreed to stay until 8?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. And you actually stayed until 9; is that correct?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Now, Mr. Armstrong, have you ever been interviewed before you met me by any member of the President's Commission?

Mr. ARMSTRONG. No.

Mr. HUBERT. Now, of course, you have testified before me for a whole day now, almost a half day, and necessarily there have been some conversations between us that have not been on the record, not purposely so, but simply at recess time.

Mr. ARMSTRONG. Yes, sir.

Mr. HUBERT. But, even including everything that has occurred, all conversations between us at recess time or going down the elevator or one thing or another, is there anything that we discussed at those recess times which you can remember has not been brought up and recorded in this deposition?

Mr. ARMSTRONG. Well, we haven't discussed anything concerning the business that we was discussing on the record.

Mr. HUBERT. Well, you mean we might have discussed things unrelated to this inquiry?

Mr. ARMSTRONG. Well, I'll just put it this way—I don't think we have discussed anything.

Mr. HUBERT. You don't have any recollection of anything at all that we have discussed?

Mr. ARMSTRONG. No.

Mr. HUBERT. And in any case, if we might have discussed anything, it has been brought out on this record?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Is it fair to state that anyone who would read your deposition of the other day and today and would read the FBI reports as to what you told them, which you have said are correct, would have a true and correct version of all that you know about the matter we have been talking about?

Mr. ARMSTRONG. Yes.

Mr. HUBERT. Is there anything that you can think of that is not contained in either your deposition or the statements that you have made to the FBI?

Mr. ARMSTRONG. No.

Mr. HUBERT. Have you anything else to say, Mr. Armstrong?

Mr. ARMSTRONG. Not a thing.

Mr. HUBERT. All right, we certainly do thank you.

Mr. ARMSTRONG. Thank you.

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## **TESTIMONY OF MRS. BERTHA CHEEK**

The testimony of Mrs. Bertha Cheek was taken at 10:15 a.m., on April 14, 1964, in the office of the U.S. attorney, 301 Post Office Building, Bryan and Ervay Streets, Dallas, Tex., by Mr. Burt W. Griffin, assistant counsel of the President's Commission.

Mr. GRIFFIN. Let me introduce myself. I am Burt Griffin. I am a member of the advisory staff of the General Counsel's office of the President's Commission investigating the assassination of President Kennedy. I want to tell you a little bit about the Commission and what our purpose is and so forth, Mrs. Cheek, before we actually get into the taking of the testimony.

The Commission was set up pursuant to an Executive order of President Johnson which was issued on November 30, 1963, and also pursuant to a joint resolution of Congress. Under these two official acts, the Commission has been given authority to take testimony and to promulgate rules and regulations and so forth. Under these rules and regulations, I have been designated to come here to Dallas to take your testimony. Did you receive a letter from the Commission?

Mrs. CHEEK. Yes, I did.

Mr. GRIFFIN. I might tell you that under—I don't know when you received this letter, but under the rules of the Commission, you are entitled to have 3 days' written notice, a letter from us 3 days before you appear here to testify, and I presume that the letter arrived in time so that you have had that notice?

Mrs. CHEEK. Saturday.

Mr. GRIFFIN. Saturday. Now, also the Commission's rules provide that if you would like an attorney, that you may be accompanied here by an attorney, and I notice that you don't have one.

I did want to acquaint you with this fact, and I presume that since you don't have one, that you felt you didn't need one. But if you do feel you would like a personal attorney, and many of the people who appear do have an attorney, that is perfectly proper, and in fact it is encouraged by the Commission. But I take it by your presence without an attorney, that you don't feel you want one at the present time.

Mrs. CHEEK. I don't think that I would need one. I don't know anything.

Mr. GRIFFIN. Well, I am not suggesting that you would, but I wanted you to be acquainted.

Mrs. CHEEK. I am not going to tell anything that is not the truth.

Mr. GRIFFIN. Let me say this to you, that the Commission has been set up for the purpose of investigating and evaluating and reporting back to President Johnson about the assassination of President Kennedy, and about the murder of Lee Harvey Oswald. We are interested in finding out from you, in particular, anything you might know in connection with any one of these events.

Of course you have been interviewed by the Federal Bureau of Investigation so that that is somewhat of a starting point for us. I have had a chance to read over the reports and I know generally what they have talked to you about. I will ask you if you have any questions of us before I ask you to be sworn, and then we can start the deposition.

Mrs. CHEEK. I don't have any questions. You just ask me, and I will answer whatever I know.

Mr. GRIFFIN. Would you raise your right hand. Do you solemnly swear that the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Would you give us your name.

Mrs. CHEEK. Bertha Cheek.

Mr. GRIFFIN. Where do you live, Mrs. Cheek?

Mrs. CHEEK. 5901 Hillcrest.



Mr. GRIFFIN. It is Mrs. Cheek?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. What is your husband's name?

Mrs. CHEEK. I am divorced. Lloyd Cheek.

Mr. GRIFFIN. How long have you been divorced from Mr. Cheek?

Mrs. CHEEK. Approximately 1955 or approximately 1956, I can't remember.

Mr. GRIFFIN. I hate to ask this question of a lady, but when were you born?

Mrs. CHEEK. February 9, 1920.

Mr. GRIFFIN. The address you gave us is in Dallas?

Mrs. CHEEK. 5901 Hillcrest, Dallas, Tex.

Mr. GRIFFIN. How long have you lived in Dallas?

Mrs. CHEEK. About 16 or 17 years.

Mr. GRIFFIN. Where did you live before you lived in Dallas?

Mrs. CHEEK. I was born in Troup, Tex., and I was raised in Tyler, and I moved to Dallas.

Mr. GRIFFIN. Now since you have lived in Dallas, have you met Jack Ruby?

Mrs. CHEEK. I met him on two occasions.

Mr. GRIFFIN. How did you first happen to meet Jack?

Mrs. CHEEK. He called me to invest in a nightclub.

Mr. GRIFFIN. When was that?

Mrs. CHEEK. Oh, sometime in November, the latter part of November, I think it was.

Mr. GRIFFIN. The first time?

Mrs. CHEEK. The first time I don't remember. Just what year it might have been, could have been 1957 or 1958, I don't know. Whenever he was

over here in the Carousel, and he was trying to sell half of it, and I talked to him about it.

Mr. GRIFFIN. He owned the Carousel at the time he called you the first time?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Did he want to sell you half of the Carousel?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Had you invested in any nightclubs before?

Mrs. CHEEK. No; but I am in the real estate business, and I invest in properties all the time.

Mr. GRIFFIN. I see. How long have you been in the real estate business?

Mrs. CHEEK. Seventeen years.

Mr. GRIFFIN. Do you have a broker's license?

Mrs. CHEEK. Yes; I do.

Mr. GRIFFIN. What is the name of your business?

Mrs. CHEEK. Bertha Cheek. I just go by my own name.

Mr. GRIFFIN. Do you maintain an office any place?

Mrs. CHEEK. In my home. I usually sell my own property. Buy and sell. I handle other people's property at times, but very seldom.

Mr. GRIFFIN. What kind of real estate do you handle?

Mrs. CHEEK. Residential real estate, apartments, and houses and lots.

Mr. GRIFFIN. How many homes or pieces of real estate have you sold outside of your own real estate?

Mrs. CHEEK. I don't remember.

Mr. GRIFFIN. Can you give us some sort of estimate how many that would be?

Mrs. CHEEK. I really couldn't give you an estimate because I don't know. It's been very little.

Mr. GRIFFIN. Would it be as many as 10 pieces of real estate other than your own?

Mrs. CHEEK. No; not that many.

Mr. GRIFFIN. Do you own the address that you are presently living in?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Is that a rooming house that you are in?

Mrs. CHEEK. No. I have a couple of rooms rented to SMU students.

Mr. GRIFFIN. How long have you lived at your present address?

Mrs. CHEEK. I moved there in January. Bought it in August.

Mr. GRIFFIN. I see. And prior to January—is that of this year, January 1964?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Where did you live prior to January 1964?

Mrs. CHEEK. Swiss. 3914 Swiss. I have a 10-unit there.

Mr. GRIFFIN. You still own that?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. How long did you own that particular residence? How long have you owned that particular residence on Swiss Avenue?

Mrs. CHEEK. Three or four years.

Mr. GRIFFIN. During the 3 or 4 years that you have owned that particular residence, have you owned any other pieces of property?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Any other places that you rent out rooms?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Could you tell us what those were?

Mrs. CHEEK. 5430 Gaston; 5310 Gaston; 5212 Gaston; 5302 Gaston; 591—wait just a minute—5917 Gaston; the Beachcomber and the Holiday Apartments.

Mr. GRIFFIN. Now, where did you live prior to living at the Swiss Avenue address?

Mrs. CHEEK. At the Beachcomber and the Holiday Apartments, Gaston Avenue.

Mr. GRIFFIN. Do you recall where you were living in 1958?

Mrs. CHEEK. 5302 Gaston.

Mr. GRIFFIN. Now in 1958, what pieces of real estate did you own other than 5308, the one you just mentioned?

Mrs. CHEEK. 5302.

Mr. GRIFFIN. What pieces of real estate did you own in 1958, other than that?

Mrs. CHEEK. I don't know. I would have to go back. I have owned quite a bit of property.

Mr. GRIFFIN. Do you maintain a set of records as to the property?

Mrs. CHEEK. That I own at the present.

Mr. GRIFFIN. Or that you have owned over the years?

Mrs. CHEEK. On the courthouse records, just to go down and check.

Mr. GRIFFIN. How about rental records for those places that you have rented out rooms and suites, do you maintain records for those?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. How far back do your records go?

Mrs. CHEEK. I have them back to 1947.

Mr. GRIFFIN. We haven't asked you to bring any records.

Mrs. CHEEK. Not down here, I couldn't bring them all.

Mr. GRIFFIN. I am wondering if——

Mrs. CHEEK. The man went through those records at the house. I let them go all through whatever they wanted to when they came out.

Mr. GRIFFIN. The Federal Bureau of Investigation?

Mrs. CHEEK. Yes. And I told them what connection I had in connection with Jack Ruby. He asked me to put \$6,000 in a nightclub.

Mr. GRIFFIN. I am wondering if I could ask you if you will make those records available again?

I think what I would like to do is ask one of the Secret Service agents to go out there and either make some arrangements to photocopy them and then return them to you, or else if it would be more convenient to let me look at them for some short period of time, and then return them to you. I think I would prefer to photocopy them, unless they are voluminous and it would be prohibitive. I think I would only be going back to January 1959.

Mrs. CHEEK. Those two men went through everything I had and looked at it.

Mr. GRIFFIN. Would you object if I——

Mrs. CHEEK. It is just an awful lot of trouble for me right now because I am very busy and I have illness in my home. If I thought I could help you, and really if there is anything there, I would bring them down myself to you.

Mr. GRIFFIN. I would like to do this in a way that would be least inconvenient.

Mrs. CHEEK. But I don't know Oswald and I just knew Jack Ruby when he asked me to invest \$6,000 and I didn't do it. I didn't like the way he wanted me to invest. He wanted to put in \$1,000, and me \$6,000.

Mr. GRIFFIN. What would be the least inconvenient way to do this? If perhaps all the books are in one place, we could get the books from January 1, 1959, on to the present and photocopy them in a day and then return them to you. Would that be convenient?

Mrs. CHEEK. I have them stored, is the only thing. I have a lot of things in front, and it is difficult in digging it out, you know.

Mr. GRIFFIN. I suppose really—is there going to be anytime in the next week or so that would be more convenient for you than any other time?

Mrs. CHEEK. I really don't know of anything else. My daughter has cancer. She may be well and she may not be, I don't know.

Mr. GRIFFIN. Let me ask you this. Would you retain these records, and sometime during the next month, let me ask one of the agents to contact you again in connection with getting copies of them for us, and you could work out at that time what would be most convenient to you. If you don't like it that way, then suggest it some other way, because I want to do this some way that would be least inconvenient to you.

Mrs. CHEEK. Well, you are welcome to come to see them again as far as that is concerned, but I don't want to let them go out of my hands. I am not going to let them go from me, because if some of those things are missing, it is my fault. The men can come out there any time and look them over if they want to look them over and take pictures or whatever they may want to do, or copy them all off. They can come out there and just copy every name that I have ever had or ever rented to from the time of 1947, if they would like.

Mr. GRIFFIN. If this were done at your home, that would be the best so far as you are concerned?

Mrs. CHEEK. Yes; I will have to go get them. I never have moved them from Swiss Avenue, and they are in the storage house. I will have to go over and get them and bring them over to Hillcrest.

Mr. GRIFFIN. How many different boxes are we talking about?

Mrs. CHEEK. Everything I have ever owned, I guess is what I was going to give you. That is what I did before. Every record I have, every name that I ever rented to, I give it to the men that was out there and you may have them now.

Mr. GRIFFIN. I am sure we don't want to go back that far. Well, let me see what we can work out, with the Secret Service or the Bureau, and then I will either contact you myself about it or I will ask someone of the agents to do it, and I think it could be done fairly simply. I know in the past that photographers can set the camera on a kitchen table and run these things through. I take it then when Jack Ruby contacted you in connection with buying out a part of the Carousel Club, that he got your name from somebody?

Mrs. CHEEK. I was looking at a piece of property over on Maple Avenue when Olen Alexander or Bob Shockley, two more agents called me about

buying the place myself. I went over to look at the building and they asked me what would go in the building, and I think a nice nightclub, it is in the neighborhood like it would, so I guess they gave it to Jack Ruby because when I mentioned the nightclub, because I said I might even invest in it myself, I was so sold on it, so Jack Ruby called me and asked me if I would invest in it. Not this particular piece of property. He didn't tell me where he had this location, but I just know that that was how he got my name.

Mr. GRIFFIN. Now, are we talking about your most recent discussion with Jack or the first one?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Let's talk about the first time you contacted Jack.

Mrs. CHEEK. He had it for sale.

Mr. GRIFFIN. He had the Carousel for sale?

Mrs. CHEEK. Yes; and I had someone that was interested in a night club, so I went down to see about it, see how much he would sell it for, and he said \$12,500. I said that was too much. My conversation was very short, and I left.

Mr. GRIFFIN. All right, you met him at the Carousel?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Was anybody with him at that time? Anybody else at this meeting?

Mrs. CHEEK. There was activity all in there. I don't know who the people were.

Mr. GRIFFIN. Did anybody accompany you in connection with this?

Mrs. CHEEK. Yes; I think Mrs. Davidson went down with me.

Mr. GRIFFIN. Davidson? What is her first name?

Mrs. CHEEK. Lula B. Davidson.

Mr. GRIFFIN. Does she live here in Dallas?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Where does she live?

Mrs. CHEEK. Over on Normandy.

Mr. GRIFFIN. Is she in the real estate business?

Mrs. CHEEK. No. She was a schoolteacher of mine. Just happened to be at the house when I started to go down, and I asked her if she would like to go. She taught me in school in Tyler, Tex. I don't think that she would remember too much about it, because it was such a—just went down with me. It wasn't a real big issue made, and I said, "Would you like to go with me to see about a nightclub," and she said, "Yes; I would." So I just walked up and talked to Jack Ruby and asked him how much he wanted for the club's half interest, and he said \$12,500, and I left because I didn't think it was worth it.

Mr. GRIFFIN. Had Jack had an advertisement in the newspaper about this?

Mrs. CHEEK. Yes; he did.

Mr. GRIFFIN. Now, when you first called Jack, what did he tell you when you talked to him over the telephone that time?

Mrs. CHEEK. I don't remember the exact words. I usually tell people when I contact them about business, I would like to meet them in their office or in their place of business.

Mr. GRIFFIN. Did you make an appointment and go down? You didn't talk to him about what he wanted or what kind of property he had over the telephone?

Mrs. CHEEK. No; didn't make any discussion.

Mr. GRIFFIN. Did Jack's ad indicate he was selling the full interest, or half interest?

Mrs. CHEEK. Half, and he wanted a partner.

Mr. GRIFFIN. So you would have been a partner?

Mrs. CHEEK. No; I wouldn't. When I invest, I make a corporation out of it, or someone else operates the business for me. That is the way the rooming houses; I have managers in them.



Mr. GRIFFIN. Did Jack talk to you about how much he was making off of this business?

Mrs. CHEEK. No. He might have talked to me about that, but I don't remember the exact figures.

Mr. GRIFFIN. How did you come to the conclusion that his price was too high?

Mrs. CHEEK. I just thought it was too high. I could build a club for that. I know the prices of material.

Mr. GRIFFIN. Jack was only interested in selling an interest in the real estate at that time, or was he interested in the——

Mrs. CHEEK. The business. He didn't have the real estate. He didn't have the building. It was just the business he was selling half interest in it. I could buy a place for that.

Mr. GRIFFIN. So you would have been interested in the profitability of Jack's particular business?

Mrs. CHEEK. No; not his particular business. I didn't know what kind of club he was operating out there. I thought it was a dance place and cocktail lounge.

Mr. GRIFFIN. But in order to determine whether the twelve thousand price was too high and you weren't going to get any real estate out of it, you were going to share in the profits from the club, you would have to know something about how much money he was making off the club?

Mrs. CHEEK. I don't remember how much he was making.

Mr. GRIFFIN. You did talk to him; didn't you?

Mrs. CHEEK. Yes; I talked to him.

Mr. GRIFFIN. He said he wanted \$12,500 for half of the business?

Mrs. CHEEK. I didn't look at the books. I didn't even go into that because I didn't want to put \$12,500 into that kind of club.

Mr. GRIFFIN. How long did you talk to him on this occasion?

Mrs. CHEEK. It wasn't very long.

Mr. GRIFFIN. Did you talk to him for 3 hours?

Mrs. CHEEK. I just don't know how long I talked to him the first time, because it's been so long ago. But the last time I stayed down there, I think, an hour or so or 3. It might have been 3 hours or 2 hours, because he brought in this other fellow named Frank, his interior decorator, or that decorated the club, and I talked to him, and he was telling me what a nice fellow he was, because I didn't know Jack Ruby very well.

Mr. GRIFFIN. Was Frank's name Frank Fisher? Do you remember that name?

Mrs. CHEEK. No; I don't know. He just kept referring to him as Frank.

Mr. GRIFFIN. Do you know whether this fellow was in business for himself or whether he worked with somebody, this Frank fellow?

Mrs. CHEEK. I don't know.

Mr. GRIFFIN. Did you ever hear the name of whom he might have been employed by?

Mrs. CHEEK. No.

Mr. GRIFFIN. Now as I understand it, Jack at this particular time got your name through somebody, a fellow by the name of Alexander, or another fellow that you talked to in connection with buying a club?

Mrs. CHEEK. Olen Alexander.

Mr. GRIFFIN. Where was the club?

Mrs. CHEEK. I don't know that to be the truth, but I just thought that.

Mr. GRIFFIN. Where was the club that you were looking at?

Mrs. CHEEK. It wasn't a club. It was a building that they were showing.

Mr. GRIFFIN. Where was that located?

Mrs. CHEEK. On Maple.

Mr. GRIFFIN. Have you ever had an interest in any nightclub or dancehall?

Mrs. CHEEK. No.

Mr. GRIFFIN. About what time of the day or night was it that you met with Jack this last occasion?

Mrs. CHEEK. 2 o'clock in the evening.

Mr. GRIFFIN. In the afternoon?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. This was at the Carousel?

Mrs. CHEEK. Yes; in his office.

Mr. GRIFFIN. When Jack called you, what did he say to you?

Mrs. CHEEK. Said he had a business deal that he wanted to talk over with me. I said, "What kind is it?"

And he said, "A club." And asked me to come down to talk to him about it, and I did.

Mr. GRIFFIN. Did he indicate at the time he called you how much money he wanted you to invest?

Mrs. CHEEK. No.

Mr. GRIFFIN. Now when you got down there to talk to him, what did he say and what did you say? Try to recall as best you can how this conversation was.

Mrs. CHEEK. He said he had a location for a club and he wanted me to put in \$6,000 and he'd put \$1,000 and he would use his talent and ability to operate a club, and he knew really how to run one and operate one.

Mr. GRIFFIN. Did he indicate what sort of return he expected?

Mrs. CHEEK. Fifty-fifty.

Mr. GRIFFIN. Each would have a half interest in the club?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Did he indicate how much of a return you would make for your \$6,000?

Mrs. CHEEK. No; he didn't. He couldn't even tell me the location of the place, because I asked him that, kept questioning him about where is the

location, and he didn't want to tell me that. And I asked him why, and he said, "Well, he just couldn't tell me right then." And I said, "Is it because you think I might go around and sell this place or try to buy it myself?" And he said, "Yes, that is the reason."

He said, "How would you do about anything like that?" And I said, "Well, you tie it up. Put some money up on it."

Mr. GRIFFIN. Did it sound like Jack was interested in buying a piece of real estate, or was he going to get a lease and operate in a leased building, or what?

Mrs. CHEEK. He didn't go into that. He just kept talking about how he could operate a club, how much money could be made, you know, and he introduced me to this other fellow and talked about what a good interior decorator he was and how he would decorate the club.

Mr. GRIFFIN. What did the interior decorator say?

Mrs. CHEEK. Then the man was telling me what a good operator he was.

Mr. GRIFFIN. Did he tell you anything about his experience in other places he decorated?

Mrs. CHEEK. Yes; one or two places; but I really didn't pay any attention to what locations. I was just listening to Mr. Ruby on what his deal was on the investment I was supposed to make, and whether or not I would like it or not, and I told him I could manage a business, too. And I said, "I don't think that I would want to go in with anyone and put \$6,000 and you put \$1,000. You would have to come fifty-fifty."

Mr. GRIFFIN. What did Jack indicate was his response?

Mrs. CHEEK. He said he couldn't do it.

Mr. GRIFFIN. Could you tell from his response whether he meant that he didn't want to do it or that he couldn't afford to do it, or what he meant by that?

Mrs. CHEEK. Well, he did say he didn't have the money.

Mr. GRIFFIN. Did he say he didn't have the money?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Now had you inquired about Jack Ruby from other people?

Mrs. CHEEK. No.

Mr. GRIFFIN. You mean now you only met him?

Mrs. CHEEK. I had heard people talk about Jack Ruby, but I didn't inquire about him.

Mr. GRIFFIN. I take it other people that you know had told you things about Jack Ruby?

Mrs. CHEEK. Yes. I have heard people talk about him.

Mr. GRIFFIN. What had you heard about Jack prior to the time you went to talk to him about this club where he wouldn't tell you where it was located?

Mrs. CHEEK. I haven't heard anything except he ran the Carousel Club and was a good operator.

Mr. GRIFFIN. You had heard what kind of businessman he was? How well he ran his business?

Mrs. CHEEK. No.

Mr. GRIFFIN. Had you heard whether he was honest or dishonest?

Mrs. CHEEK. No.

Mr. GRIFFIN. Can you tell us what you heard?

Mrs. CHEEK. I just knew he run a club and I heard people say that he was a good operator, and I figured if he was a good operator and made money, he must have been a good businessman. You don't make money unless you are a good operator.

Mr. GRIFFIN. Do you recall who it was that told you Jack was a good operator?

Mrs. CHEEK. I don't recall right off.

Mr. GRIFFIN. I take it you had the impression that Jack was able to make money off of his operations?

Mrs. CHEEK. That's right.

Mr. GRIFFIN. Well, do any of your friends or acquaintances or tenants know Jack Ruby?

Mrs. CHEEK. Not that I know of.

Mr. GRIFFIN. Do you recall at all who it might have been that had known Jack well enough to tell you that he was running his business well?

Mrs. CHEEK. I think it was a policeman that had rented from me that I had talked to occasionally and said something about Jack Ruby's place. I don't know just who it was that told me, and their name. I would be talking to someone sometime, and I can't remember their names to save my life.

Mr. GRIFFIN. What was the name of the policeman?

Mrs. CHEEK. I don't know.

Mr. GRIFFIN. Have you had a number of policemen rent from you?

Mrs. CHEEK. I think Mr. Olson said something—I am not sure of the name—on the police force. I wouldn't like to say anything else unless I know for sure I can give the exact name and address. I just heard this conversation.

Mr. GRIFFIN. Well——

Mrs. CHEEK. See.

Mr. GRIFFIN. When did the police officer whose name might have been Olson, when did he rent from you?

Mrs. CHEEK. Beachcomber in 1961 or 1960, I believe.

Mr. GRIFFIN. How long did he continue to rent from you?

Mrs. CHEEK. I don't think he rented there very long, 3 or 4 months. But this was after. Let's see, no, it wasn't after. That was after the first time I had met him.

Mr. GRIFFIN. Well, other than Mr. Olson, you don't know of anybody else of your acquaintances or tenants who knew Jack Ruby?

Mrs. CHEEK. No. You know, his name has been in the paper and his advertising; and I am sure a lot of people had heard about him and go to the club, but I had never gone to the club.

Mr. GRIFFIN. Now did your husband know Jack Ruby? Mr. Cheek, did he know Jack Ruby?

Mrs. CHEEK. No. I don't know whether he did or not. He may know Jack Ruby because he is a National Cash Register man downtown that fixes all of the cash registers. He might have gone up and worked on a cash register. I really don't know. I haven't asked him.

Mr. GRIFFIN. The FBI talked with you sometime ago. I believe you indicated that you had some recollection that some Cubans had rented from you back in 1959, two Cubans had rented from you?

Mrs. CHEEK. I don't know just exactly what was said on that, whether they got that off of the books or whether my sister had told them about it, that rented to Oswald over on Beckley.

Mr. GRIFFIN. Yes.

Mrs. CHEEK. Mrs. Roberts or Miss Roberts—Mrs. Roberts—

Mr. GRIFFIN. Miss?

Mrs. CHEEK. Mrs. Roberts. I don't know whether she told me about that or if they got it off the book, or whether I had rented to a Cuban. I think one or two, and also Dr. Florescent of the Philippine Islands.

Mr. GRIFFIN. Tell us what recollection you have of the Cubans that you rented to.

Mrs. CHEEK. I don't remember them because I had managers in there. I wouldn't know them personally myself at all.

Mr. GRIFFIN. I want to hand you, Mrs. Cheek, a document which consists of 3 pages, and it purports to be an interview report prepared by two agents of the Federal Bureau of Investigation, Mr. Barry and Mr. Kelley. This is supposed to have been a copy of a report of interview which they had with you on November 27, 1963. Maybe if you will look this over, you may recall it is reported in here that at that time—I will read it:

“That she recalled having rented to two Cuban males, in 1959 or 1960, but could provide no other information concerning them.” Why don't you take your time and read that whole thing over, because I am interested in finding out whether the whole report is an accurate report of that interview.

Mrs. CHEEK. I owned this boarding house at 5212 Gaston since 1948 to about 1961.

Mr. GRIFFIN. What does it say?

Mrs. CHEEK. It says 1956 to 1961.

Mr. GRIFFIN. You want to take Miss Laidrich's pen and make a change there to reflect the period that you actually owned that boarding house, the actual period?

Mrs. CHEEK. [Makes correction.]

Mr. GRIFFIN. And you sold it in 1961?

Mrs. CHEEK. I think that is about the date that I sold it.

Mr. GRIFFIN. Do you want to initial that change there that you made and put a date by it?

Mrs. CHEEK. [Initials and dates.]

Mr. GRIFFIN. This is 4-14-64. Why don't you go ahead and take your time to read it through and make any other corrections.

Mrs. CHEEK. I have got to go.

Mr. GRIFFIN. Mrs. Cheek has indicated that her daughter is in the hospital and she told me earlier, and would like to recess this. Perhaps we can set another time to continue it.

Mrs. CHEEK. I thought that I was only going to be here about 15 minutes, and I was supposed to talk to the doctor about that.

Mr. GRIFFIN. I don't want to keep you then. How would Thursday be? Would you be able to come back at any time on Thursday?

Mrs. CHEEK. Could I give you any other kind of information on my records or what else do you want me to tell you?

Mr. GRIFFIN. Actually, if you could bring with you——

Mrs. CHEEK. I can't bring all those records down here. They are welcome to go out to the house and make a copy of every name I ever rented to, but I can't bring them all down here.

Mr. GRIFFIN. Well, suppose we handle it this way.



Mrs. CHEEK. They were welcome that day I gave them every record I had, and I told them they could copy all the names down.

Mr. GRIFFIN. Suppose we contact one of the agents and have somebody photograph these records, and then perhaps next Monday, why we could resume the deposition and I could look through the records with you here and the copies that we have photographed?

Mrs. CHEEK. Do I have to come back?

Mr. GRIFFIN. Yes, because I would like to talk to you about the statements and get any changes that you care to make in the statements, and complete the topic we are talking about here.

I hate to inconvenience you like this.

Mrs. CHEEK. Well, if I could do you any good, I would be happy to, but I don't know how I could, because I don't know Jack Ruby or Oswald very well. In fact, I didn't know Oswald at all, and I didn't know Ruby well enough to help you.

Mr. GRIFFIN. Well, any little bit that we can learn can be helpful to us. But I would like to set it up in a way that wouldn't interfere with your problems at home. I think they are substantial. Why don't you name the day and the time.

Mrs. CHEEK. I can't name the date and the time. I don't know. I didn't expect my daughter to be ill when she was. I only thought she was going to the hospital two days.

I work in real estate. I don't know when I have appointments, and I am trying to sell the place on Hillcrest. I have an appointment this afternoon with the minister out there or one of the men of the church, not the minister, but to try to sell Hillcrest.

Mr. GRIFFIN. Well, the mornings, I take it, are better for you than the afternoons? Why don't we make it Monday morning. If 9 o'clock, isn't too early for you, we will start at 9.

Mrs. CHEEK. How much longer do you think it would take on this?

Mr. GRIFFIN. I don't think it would take more than a half hour, but sometimes it takes time to have you sit here and read through these

statements and point out any corrections or changes or additions that you would have to make, and it could take half an hour to an hour, especially if we get these photographs of the records.

Then we can clarify these on these records. Do you remember which apartment it was that the Cubans lived in?

Mrs. CHEEK. That was 5212 Gaston. I think the front room.

Mr. GRIFFIN. Maybe if we could just get those records copied. Do you remember what year it was that they—you believe it was 1959 or 1960, when you went through those records with the agents? Were you able to pinpoint those to Cubans who you had there?

Mrs. CHEEK. No. I don't think so. They were looking at the names.

Mr. GRIFFIN. So I suppose it would be best if we just got the records since, say, January 1, 1958 to make sure we cover everything, and that would be 1958 through 1961.

Mrs. CHEEK. I think so. That is when I sold the place.

Mr. GRIFFIN. Well, up until the sale. Now, do you recall if these two men ever came back and lived in any other place that you owned?

Mrs. CHEEK. I wouldn't know, because I told you I had managers in my apartment houses and my rooming houses. They did the renting.

Mr. GRIFFIN. I see.

Mrs. CHEEK. Sometimes I rented to people, but——

Mr. GRIFFIN. If we started with January 1, 1958 and got all the records up to the present, how many records, how high a stack of records would we be talking about?

Mrs. CHEEK. I don't know how high.

Mr. GRIFFIN. How many different apartments would we be talking about since January 1958?

Mrs. CHEEK. I would just have to go back and look, because I buy and sell all the time and trade.

Mr. GRIFFIN. Would it be as many as 10?

Mrs. CHEEK. Could have been more than that.

Mr. GRIFFIN. Could it have been more than that?

Mrs. CHEEK. Yes. Not places, but apartments. See, I had a 32-unit in Oak Cliff, and there was 46 in the Beachcomber Apartments. Then there was people that rented on Gaston Avenue, but see, I just traded back and forth.

Mr. GRIFFIN. How many different buildings did you own since 1958?

Mrs. CHEEK. I really don't know. You'd just have to go down at the courthouse and look. I would have to figure it out. 3518 Gillespie, I sold it though.

Mr. GRIFFIN. Maybe what we should do is take 1958 to 1961, and then simply the year 1963, so that we will take 1958 to 1961, for that Gaston building, and we will take 1963 for all these buildings. How many buildings did you own last year, in 1963?

Mrs. CHEEK. 1963, I think 3914 Swiss. I didn't own some of these buildings all the year. I bought and sold and traded, so I would just have to go into all of that.

I sold it in August. And then maybe I sold 3518 Gillespie. I think I sold it in November. I don't remember just the dates that I closed on the property and sell.

Mr. GRIFFIN. Well, I think that would simplify it because we would like, if we can identify these two particular individuals, and it is possible since they lived with you before, they might have moved back into another one that you own.

Mrs. CHEEK. They went over all those records, those men did out there. Mr. Kelley and Mr. Barry, I thought his name was Barrett. That is what he introduced himself.

Mr. GRIFFIN. Whatever it is down there, Barry.

Mrs. CHEEK. I thought he said Barrett.

Mr. GRIFFIN. Barry is what is written there anyhow.

Mrs. CHEEK. (Reads reports of interviews.)

Mr. GRIFFIN. How would Monday morning at 9 or 9:30 be?

Mrs. CHEEK. If you don't think it would be very much longer, I think I have missed the doctor, because I have been here an hour.

Mr. GRIFFIN. Well, since we are going to try to get these records, I would almost rather do it with the records, so if there was something with the records, I wouldn't have to call you again, unless you are willing to take a chance on that.

Mrs. CHEEK. Aren't they coming out to the house to take the names down?

Mr. GRIFFIN. I think it would be easier if they went out with a camera and photographed that. All right, would you prefer to complete it?

Mrs. CHEEK. If it wouldn't take too much longer. I have an appointment at 1.

Mr. GRIFFIN. It shouldn't take anywhere near that long.

Mrs. CHEEK. I guess I have missed my appointment with the doctor. I wanted to talk to him about my daughter.

Mr. GRIFFIN. Would you want to call him?

Mrs. CHEEK. May I call?

Mr. GRIFFIN. Sure.

Mrs. CHEEK. (Makes telephone call.)

Mr. GRIFFIN. Mrs. Cheek, have you had a chance to read over what I have marked as Cheek Exhibit No. 5353? It is a three-page report marked 456, 457 and 458, of Commission's Document No. 205, which purports to be a report of an interview which FBI Agents Barry and Kelley had with you on November 27.

Have you had a chance to read that over?

Mrs. CHEEK. I thought that I read all of this.

Mr. GRIFFIN. Are there any additions or corrections or changes?

Mrs. CHEEK. This is all approximate. I wouldn't know. I couldn't swear that everything was right down to the figure, but that is the best of my

knowledge about everything.

They have \$12,000 down there. I thought I remember \$12,500 he wanted, but that may have been another piece of property I was thinking about. I don't remember the exact figure.

Now on the sale, that was what I was talking about. They had \$12,000. I told you today I thought \$12,500 is what he wanted.

Mr. GRIFFIN. I take it you weren't able to get a hold of the doctor?

Mrs. CHEEK. No.

Mr. GRIFFIN. But other than that, you don't feel that you would make any substantial changes in this? What I am directing myself to is whether this report is an accurate report of what you told them at that time?

I realize that there may have been things that you will recall that you didn't recall then, but as far as this report being accurate as to what you told them at that time, I take it you are satisfied that it is accurate?

Mrs. CHEEK. I think it is. I might remember something there that I don't remember now. I don't know.

Mr. GRIFFIN. Now you indicated that you recall having rented to two Cuban males in 1959 and 1960. I understand that these two Cubans were living at 5212 Gaston?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Does that apartment have a name?

Mrs. CHEEK. No.

Mr. GRIFFIN. How big——

Mrs. CHEEK. It wasn't an apartment. It was a boarding house; room and board.

Mr. GRIFFIN. How many rooms did you rent out there?

Mrs. CHEEK. I think it was about 10 rooms that I rented out.

Mr. GRIFFIN. Who managed that boarding house?

Mrs. CHEEK. I had different managers throughout the year.

Mr. GRIFFIN. Well, now, in the period 1959 and 1960, who was managing it for you at that time?

Mrs. CHEEK. I would have to look back on my records. Nineteen what, now?

Mr. GRIFFIN. 1959 or 1960?

Mrs. CHEEK. I would have to look back, because managers for boarding houses is like waitresses and cooks, they come and go because you don't pay them very much.

Mr. GRIFFIN. Do you recall when your sister, Mrs. Roberts, was working at or managing your boarding houses?

Mrs. CHEEK. Not the exact date.

Mr. GRIFFIN. Do you recall whether she was managing any boarding house for you back in 1959 or 1960?

Mrs. CHEEK. She might have been at 5430. You would have to ask her. I believe you would have a more correct answer on that.

Mr. GRIFFIN. Is there anything that makes you recall that the two Cubans lived at 5212?

Mrs. CHEEK. I don't know right now just what brought that up or anything. Now my son was there, I think, while the two FBI men were there, and he might have mentioned it, or my sister might have mentioned it, I don't remember. There were two Cubans there, I think. They might have been Cuban and they might not have been.

Mr. GRIFFIN. What made you think they were Cubans?

Mrs. CHEEK. I don't know how they got that they were Cubans, because I don't know a Cuban from a Spanish or a Spanish from a Mexican. Like Dr. Florescent, when he come in, he was real dark. I wasn't going to rent because I don't rent to dark Spanish people or Mexicans or Indians. I always rented to light-colored people my own race. But another color, and he was so well dressed and everything and he insisted—this is in 1948, I think. He came in there from the Philippine Islands. He was going to Baylor Hospital to school.

Mr. GRIFFIN. How about the two Cubans?

Mrs. CHEEK. I don't really know if I would know they were Cubans or not unless someone told me.

Mr. GRIFFIN. I take it that it is unusual to have somebody living at your place who is of Spanish or Latin American background?

Mrs. CHEEK. That it would be what?

Mr. GRIFFIN. It would be unusual for you to rent to someone who was Spanish or Latin American or of Cuban background?

Mrs. CHEEK. No, it wouldn't be unusual, because I had rented to people from Mexico at the Beachcomber, very nice people, when I had short rentals there. They checked in; they were business people; and I had rented to people from, not China, but the Japs.

Mr. GRIFFIN. Japanese?

Mrs. CHEEK. Yes, at the Beachcomber, during the fair. The pearl dealers, I rented to, but on short rentals. And there were just a few that I had a short time at the Beachcomber and I had a set up of maid service and television.

Mr. GRIFFIN. When somebody comes in to rent one of the suites, do they contact you?

Mrs. CHEEK. I had managers there, and sometimes I would be there at the Beachcomber.

Mr. GRIFFIN. Have you given your managers instructions as to the kind of people that they should rent to?

Mrs. CHEEK. Well, they always know what kind of business they are in or something like that.

Mr. GRIFFIN. Well, can you describe these two people that you thought might have been Cuban?

Mrs. CHEEK. I don't remember them too well. In fact, I don't know why they have Cuban down there, because I would have to talk with him again. When they were going over those records——

Mr. GRIFFIN. Did they rent——

Mrs. CHEEK. I know there were some people there, either from, they might have been Mexico or Cuban.

Mr. GRIFFIN. Did they rent the same suite?

Mrs. CHEEK. This is not an apartment. This is 5212 Gaston. This is the rooming house.

Mr. GRIFFIN. Did each of them have a separate room?

Mrs. CHEEK. No, they both stayed in the same room. In, I think, the front part.

Mr. GRIFFIN. In the front part of the house?

Mrs. CHEEK. Yes, sir.

Mr. GRIFFIN. How long did they stay?

Mrs. CHEEK. I don't remember. Just take my records and look at them.

Mr. GRIFFIN. I take it when you went through these records with the agents, did you see——

Mrs. CHEEK. Yes, I probably saw those names and I recognized it by that or something. I don't remember just exactly how I remembered right at that time, because I was trying to remember everything I could all the way back to try to tell them everything I knew.

Mr. GRIFFIN. These two fellows, were they fat or thin?

Mrs. CHEEK. They were small, I think.

Mr. GRIFFIN. Did they appear to be men in their 20's or 30's or 40's or 50's?

How old would you say they were?

Mrs. CHEEK. The two boys that were in the front room at 5212 Gaston were younger fellows.

Mr. GRIFFIN. Under 25, would you say?

Mrs. CHEEK. I don't know.

Mr. GRIFFIN. Did they speak English?

Mrs. CHEEK. I don't know. I guess they speak it very well, enough to get in. I never rented to anyone that couldn't speak English.

Mr. GRIFFIN. Did they speak with a noticeable accent?



Mrs. CHEEK. Yes.

Mr. GRIFFIN. Did they appear to have a job of any sort?

Mrs. CHEEK. I don't remember. I am just trying to remember all, you know. That is a long time back, and renting to so many people, you don't pay that much attention to them.

Mr. GRIFFIN. How often did you have occasion to talk with them?

Mrs. CHEEK. I never do talk to people unless they talk to me about something about the business, or the room, or something like that.

Mr. GRIFFIN. These two fellows, do you recall ever talking to them on any occasion?

Mrs. CHEEK. I can't remember holding a conversation with them, no.

Mr. GRIFFIN. You indicated that your son was present when the Agents Barry and Kelley interviewed you. Did he have some recollection of these two Cubans?

Mrs. CHEEK. John might have. I think John was there. I believe he was, or Irwin.

Mr. GRIFFIN. These are both your sons?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Is their last name Cheek or Cheeks?

Mrs. CHEEK. Cheek.

Mr. GRIFFIN. How old is John?

Mrs. CHEEK. He is 18.

Mr. GRIFFIN. And how about Irwin?

Mrs. CHEEK. Thirteen.

Mr. GRIFFIN. Now you also indicated in your first report that you had been acquainted with Jack Ruby since 1948. What makes you place that date?

Mrs. CHEEK. They asked me—when, 1948?

Mr. GRIFFIN. Yes; that is what they reported here.

Mrs. CHEEK. I didn't say 1948. I bought the house in 1948, and it might have been 1956. They have that 1956 down there of me buying 5212 Gaston.

Mr. GRIFFIN. Yes.

Mrs. CHEEK. I didn't meet Jack Ruby in 1948. 1948 is when I bought 5212. They have the dates mixed up there.

And then 1956 or 1957, I might have went down there to the club, but I don't think I knew him in 1948, at all.

Mr. GRIFFIN. This report also indicates that you formerly operated night clubs in Dallas?

Mrs. CHEEK. No; I told them that I went down and operated a club, just managed a club for Frank and Virginia Nick on Browder Street.

Mr. GRIFFIN. What was the name of that night club?

Mrs. CHEEK. Pat Morgan had the club at that time.

Mr. GRIFFIN. What was the name of the club?

Mrs. CHEEK. Club Royal is what Virginia and Frank Nick named it.

Mr. GRIFFIN. R-o-y-a-l?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Was that the name of the club when you were employed there?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. When was that?

Mrs. CHEEK. February of 1963, I believe it was, this past year.

Mr. GRIFFIN. But prior to 1963, had you ever been connected with the night club business in any way?

Mrs. CHEEK. No; nothing, only my husband was a musician. He played nightclubs and I went there with him.

Mr. GRIFFIN. Did he play in Dallas nightclubs?

Mrs. CHEEK. Yes, sir.

Mr. GRIFFIN. Was this Mr. Cheek?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Were you a performer or anything?

Mrs. CHEEK. No.

Mr. GRIFFIN. How long was he a musician in Dallas? For what period of time?

Mrs. CHEEK. He was a musician before I married him. He just had it as a hobby. He worked at National Cash Register, and played on Friday and Saturday nights to pick up extra money.

Mr. GRIFFIN. I see; you came to Dallas, you said, 18 years ago? 1946?

Mrs. CHEEK. 1947.

Mr. GRIFFIN. 1947. Were you married to Mr. Cheek at that time?

Mrs. CHEEK. No.

Mr. GRIFFIN. When did you marry Mr. Cheek?

Mrs. CHEEK. 1947.

Mr. GRIFFIN. All right, from 1947 to 1955, did Mr. Cheek play these weekend jobs in nightclubs?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Was he employed regularly on weekends?

Mrs. CHEEK. He played with Harry Traveler's Band, and I don't remember the other names of the bands he played with, but he might have set in on some. You would have to ask him.

Mr. GRIFFIN. Did he ever play in any of Jack Ruby's clubs?

Mrs. CHEEK. No.

Mr. GRIFFIN. So your connection with the night club business prior to 1963, was solely through your husband's association as a musician and your going to the night clubs with him?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Did you used to go regularly on the nights that he played?

Mrs. CHEEK. Most every Saturday night or Friday with him.

Mr. GRIFFIN. Now, you indicated here also that on the last occasion that you saw Jack Ruby at the Carousel Club, that you spent several hours discussing this investment with him?

Mrs. CHEEK. I think I put down there two or three hours. About 2 until maybe 4:30, something like that.

Mr. GRIFFIN. Can't you give us any more idea about what he had for this club, what kind of club it was going to be? You said you talked with the interior decorator?

Mrs. CHEEK. I let him talk.

Mr. GRIFFIN. What did he say?

Mrs. CHEEK. I don't remember all they said.

Mr. GRIFFIN. Can't you tell us some more about what he said? You were there for a couple of hours. He must have described——

Mrs. CHEEK. He talked to other people while I was there. He would go in and out of the office, and he would indicate to me he was talking long distance and talking to other people that come in his club. And then he would come back and talk some more.

Mr. GRIFFIN. Did he make any long distance telephone calls while you were there?

Mrs. CHEEK. Yes; but I don't know when he made them.

Mr. GRIFFIN. Did he hold these conversations in his office?

Mrs. CHEEK. He was in the office, and then in the club, and then he came a few minutes, and then I came on home.

Mr. GRIFFIN. Your best recollection is, it was from about 2 o'clock in the afternoon until about sometime after 4:00 that afternoon?

Mrs. CHEEK. I think so.

Mr. GRIFFIN. How did you happen to place the time? Anything significant?

Mrs. CHEEK. I think it was; I remember the time I was down there.

Mr. GRIFFIN. It was a 2 o'clock appointment?

Mrs. CHEEK. Yes. Around 2:00 or 2:30.

Mr. GRIFFIN. Do you remember how many long distance telephone calls he made?

Mrs. CHEEK. No.

Mr. GRIFFIN. Did he talk to you about any of the business enterprises that he had?

Mrs. CHEEK. He told me about other businesses he had and how many he had been in, but I don't remember exactly. I just listened to him and I wasn't interested really in putting in \$6,000 and him putting in \$1,000, and I was just listening to the man talk and getting his ideas on a lot of things that he had in mind for clubs that he was talking about, and I didn't I wasn't really interested in what he did in the past or what clubs he was connected with. That is why I don't remember, you know.

Mr. GRIFFIN. You also indicated that you thought at first when you saw Lee Harvey Oswald's photograph on television, that you might have rented to him. What made you think that?

Mrs. CHEEK. I noticed a lot of people you can walk down the street or be introduced to a person and think I have met them before. Well, I was trying to remember back if I had ever seen the man before in Dallas.

Mr. GRIFFIN. Where did you think you might have seen him?

Mrs. CHEEK. I didn't know. Just like have you ever, you know, met a person and thought you had seen them before?

Mr. GRIFFIN. Yes.

Mrs. CHEEK. Well, that is the way I thought I was trying to remember where I had seen him before, and probably I had seen him so many times on TV that day until I thought maybe I had rented to him, and I thought if I had, I would look it up and turn it in.

Mr. GRIFFIN. Let me ask you this. Where were you when you first heard that President Kennedy had been shot?

Mrs. CHEEK. In my apartment at 3914 Swiss, Apartment 2.

Mr. GRIFFIN. What did you do that day?

Mrs. CHEEK. What did I do that day?

Mr. GRIFFIN. Yes, Ma'am.

Mrs. CHEEK. I was waiting for the plumber to fix some plumbing there at the apartment house. That is where I was living. I don't remember all the things I did that day.

Mr. GRIFFIN. Did you remain there all day and watch TV all day?

Mrs. CHEEK. I just turned it on when the plumber wanted—he said the President is in the city and he said, "Let's look at TV a little," he said, "I haven't listened to any of the news."

So his name is Louis Zmolik and I turned on the TV.

Mr. GRIFFIN. Did you continue to watch television the rest of the day, or did you go back to your business?

Mrs. CHEEK. Watched it off and on. I was answering the phone, talking on the phone.

Mr. GRIFFIN. Do you remember if there were business calls that you had or social calls, or talking with people about the assassination, or what?

Mrs. CHEEK. Well, they might have been business calls, some of them and some I was talking about how terrible it was the President had been killed, what an awful thing.

Mr. GRIFFIN. Did your sister call you that day?

Mrs. CHEEK. No; I don't think she did. I didn't learn that, I think, until someone else called me to watch TV, that she had been on TV. I didn't see her on TV.

Mr. GRIFFIN. Did your sister appear? Was she interviewed on Television?

Mrs. CHEEK. Someone said that she was, and my sister in Tyler said she was.

Mr. GRIFFIN. Did you see her interviewed on TV?

Mrs. CHEEK. No; I didn't.

Mr. GRIFFIN. What day was that? Was that on Friday, the day the President was killed, or was it on Saturday?

Mrs. CHEEK. The President, I think, was killed wasn't he, on the 22d of November, Washington's Birthday? I remembered that.

Mr. GRIFFIN. The 22d of February is Washington's birthday.

Mrs. CHEEK. I mean November.

Mr. GRIFFIN. It was Friday, the 22d.

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Was that the day that Mrs. Roberts appeared on television, or was it a later date?

Mrs. CHEEK. I don't know. I never did see her on TV.

Mr. GRIFFIN. How about the next day on Saturday?

Mrs. CHEEK. I got the newspaper and saw the next morning, I think, where her picture was in the paper, but I didn't talk to her until—yes, she called me, my sister called me on Swiss Avenue. I have a sister living on Swiss. She called me and told me, I think, that Earlene was on TV, and we talked the next morning about it.

Mr. GRIFFIN. Now on Saturday, do you recall what you did on Saturday the 23d?

Mrs. CHEEK. Sure can't, not right off.

Mr. GRIFFIN. Did you spend all day watching television?

Mrs. CHEEK. No; I didn't spend all day watching TV. I just happened to turn on the TV because Mr. Zmolik asked me to turn on the TV that day. I don't know what I was doing. I was probably cleaning the house, because I didn't have a maid.

Mr. GRIFFIN. I take it you were probably in and out?

Mrs. CHEEK. Yes; cleaning the apartment, and sometimes I even cleaned the apartments myself.

Mr. GRIFFIN. How about Sunday morning, the 24th, do you recall what you were doing the morning of the 24th?

Mrs. CHEEK. No.

Mr. GRIFFIN. Do you recall when it was you first learned that Jack Ruby had shot Lee Oswald?

Mrs. CHEEK. No; I don't.

Mr. GRIFFIN. I want to hand you what I have marked "Dallas, Texas, 4-14-64, Bertha Cheek, Exhibit 5354."

This consists of two pages of an interview report which is marked Commission's Document 86, Page 132, and 80, Page 133.

It is a copy of a report made by Special Agent David Barry of the FBI, with you, Mrs. Cheek, on December 9, 1963.

I want you to read that over and I will ask you the same questions with respect to that as I asked with the previous report. That is, would you make any additions or corrections on that?

If you felt that that is an accurate report of the interview you had with Agent Barry?

Mrs. CHEEK. I had bought and sold in the nightclubs, no. I didn't say that. I didn't mean to give them the impression, if they got that impression, that I had bought and sold nightclubs. No. I told them about Maple Avenue, you know.

Mr. GRIFFIN. Let me see what portion of the report you are referring to.

Mrs. CHEEK. I don't remember buying and selling nightclubs, but I would, if I could make any money.

Mr. GRIFFIN. This report says on Page 132; "Mrs. Cheek stated that she has been in the real estate business in Dallas, Texas, for a number of years."

Mrs. CHEEK. That's right.

Mr. GRIFFIN. "That she frequently has bought and sold interests in nightclubs; that during the past several months she has been attempting to locate a good nightclub investment; and that in this connection she had



visited practically every nightclub in Dallas which she considered might be purchased outright or in which an interest might be obtained.”

Mrs. CHEEK. I was interested in buying one, but I hadn't bought and sold them.

Mr. GRIFFIN. So the only change you would make in the paragraph was to strike out that clause which reads, “that she frequently has bought and sold interests in nightclubs”?

Mrs. CHEEK. Yes.

Mr. GRIFFIN. Would you want to take this pen and put a line through that and initial it?

Mrs. CHEEK. [Complies.]

Mr. GRIFFIN. Why don't you go ahead and continue to read it and tell us if there are any other changes that you would make?

Mrs. CHEEK. [Reading report.]

Mr. Martin knows Jack Ruby. That name right there, that man might have told Jack Ruby that I was interested in a club. He knows him real well and says Mrs. Grant is his friend, and Jack Ruby, that is the time that I made the appointment to see him about the club.

Well, he said that he had had dinner with Jack Ruby. We were talking about the club over on Oak Lawn.

Mr. GRIFFIN. The Vegas Club?

Mrs. CHEEK. Yes. And he said Jack Ruby was a good friend of his. And he told me about Jack Ruby. That is where I got my information, I remember now.

Mr. GRIFFIN. You talked with him about Ruby. When was your conversation with Martin about Ruby?

Mrs. CHEEK. He was just telling me about a good operator.

Mr. GRIFFIN. When was that?

Mrs. CHEEK. And how he made money.

Mr. GRIFFIN. How long before you saw Ruby in November?

Mrs. CHEEK. Just before I went down to the club, you know, and met him.

Mr. GRIFFIN. He said something to you also about Mrs. Grant, Eva Grant?

Mrs. CHEEK. Mr. Martin. He said both were good friends of him, and said Mrs. Grant operated the club on Oak Lawn for Mr. Ruby.

Mr. GRIFFIN. Do you remember anything else he told you?

Mrs. CHEEK. I don't remember all the conversation.

Mr. GRIFFIN. Did you call this Mr. Martin that said he had dinner with Jack Ruby?

Mrs. CHEEK. Yes; he was a real good friend of his and a real nice fellow, and Mr. Martin said he was in the oil business and he was just kind of playing with that club over there because he liked the nightclub business, and he wanted \$25,000 for half interest in it, and I thought it was too much money.

Mr. GRIFFIN. How did you happen to know Martin?

Mrs. CHEEK. Just looking for clubs, and I saw Mr. Martin's. I found out who owned the club. I don't remember just how I found out who owned a place. Sometimes I might go down to the records, if they buy the land, and look to see who owns it. Then I contact them like that.

Mr. GRIFFIN. Now didn't you plan to manage this club yourself? Any club that you would buy, didn't you plan on managing it yourself?

Mrs. CHEEK. I don't know whether I would or not, or whether I would have someone else to manage it for me.

Mr. GRIFFIN. How much of a return did you expect on your investment?

Mrs. CHEEK. I wasn't thinking about that at the time.

Mr. GRIFFIN. You must have some idea.

Mrs. CHEEK. I didn't know how much I would invest. I didn't have very much money to invest. I would have to trade a piece of property or sell a piece. I was looking for clubs or property. If you are talking to people you run into a good bit—buying 5212 Gaston, I put down \$600 down, but I paid

high payments. I don't know how much I would invest. I don't have a whole lot of money. I put small payments down and make high payments a month, you know.

Mr. GRIFFIN. Sure, but you want to make sure you are getting more money off your real estate or business investments?

Mrs. CHEEK. When I came to Dallas, I didn't have very much money. I started managing a place for Mrs. Strong out on Gaston Avenue, and I managed it for her, and she sold me the place for \$600 earnest money down.

Mr. GRIFFIN. Is the money that you acquired, you use for buying and selling real estate?

Mrs. CHEEK. Buying and selling.

Mr. GRIFFIN. Did you obtain any money from your husband?

Mrs. CHEEK. No; we worked together those years. He didn't take anything.

Mr. GRIFFIN. But all the money which was accumulated by you was accumulated through your own efforts?

Mrs. CHEEK. And other people working for me.

Mr. GRIFFIN. Well, when you think about investing money, you decide whether you are going to put that money into some business or whether you are going to leave it in a bank and draw three or four percent interest, don't you? Don't you have any idea?

Mrs. CHEEK. I never have enough to leave in the bank to draw interest. I either have it invested or going to invest it, what little I have.

Mr. GRIFFIN. Don't you ever figure this out in terms of percentage you get or you expect to get on the money that you put up?

Mrs. CHEEK. No; I haven't.

Mr. GRIFFIN. How did you decide whether it is going to be a good investment for you or not? Whether it is the kind of investment that you want?

Mrs. CHEEK. I really don't know. I just trade and sell. That is all I do. I guess I should figure more. Maybe that is why I lost all I did in the

Beachcomber, because I just traded that today. I trade 5212 and 5302 for the Beachcomber and the Holiday Apartments on a contract to sell, and probably had I gotten a paper and pencil and had an attorney, I wouldn't have done that.

Mr. GRIFFIN. Now, is there anything else as you read through that, that you want to change?

Mrs. CHEEK. [Reading.] You know, you talk to people about investments like Jack Ruby, but I have talked to a number of people. You may not just have an idea that you would invest, if you would make some money. I had no idea that I would. This is nothing permanent about this at all. I was just talking to the people, just went down and talked to him just like I talked to Bill Martin. Bill Martin could have killed President Kennedy and it would have been the same thing when I talked to him if he did it.

I was so surprised when I heard that Jack Ruby killed Oswald and all this happened, it just floored me. I thought it was the awfulest thing I had ever heard of. I didn't figure that man doing such a thing, after talking to him down there. He didn't seem like a criminal.

Mr. GRIFFIN. What kind of man did he seem like?

Mrs. CHEEK. He seemed like a, well, he was kind of a nervous person, but you wouldn't have thought that he would murder anyone. He just walked around, you know, but I am a nervous person myself.

Mr. GRIFFIN. Was he able to keep the conversation going in the same general direction? Was he flighty?

Mrs. CHEEK. Kind of flighty; yes.

Mr. GRIFFIN. How did he act?

Mrs. CHEEK. Well, he didn't know his location. And I told him it seemed to me that it was funny why he would try to get \$6,000 out of me, not knowing, I wouldn't know the location, I wouldn't know anything about the business or anything.

He couldn't tell me anything about that, and I didn't understand why he would call me down and try to convince me he was a good man and talking for this Frank, too, and not having the location, couldn't show me what I

was buying. And I told him I usually see the things that I buy or know something about it. I don't buy anything unless I can see it and look at it.

Mr. GRIFFIN. Did you get the idea that this Frank was——

Mrs. CHEEK. He is an older fellow.

Mr. GRIFFIN. How old a man did he appear to be?

Mrs. CHEEK. I would say he was up around 66 years old. He was gray-headed.

Mr. GRIFFIN. About how tall was he?

Mrs. CHEEK. He was a little taller than I was. About five seven, I guess.

Mr. GRIFFIN. But not a tall man?

Mrs. CHEEK. No.

Mr. GRIFFIN. How about his weight? Appear to be heavy?

Mrs. CHEEK. I don't remember how much the man weighed, about 165 or 160, maybe not that much.

Mr. GRIFFIN. Did he appear to be a fat man?

Mrs. CHEEK. No.

Mr. GRIFFIN. Medium-built, would you say, or skinny?

Mrs. CHEEK. He wasn't skinny, I don't think. I didn't look at the man really that much.

Mr. GRIFFIN. Do you recall if he wore glasses?

Mrs. CHEEK. I don't know whether he did or not. I don't think he did.

Mr. GRIFFIN. Did you learn anything about where he lived?

Mrs. CHEEK. No.

Mr. GRIFFIN. Did Jack Ruby indicate that somebody else besides Fisher and he were interested in this new nightclub?

Mrs. CHEEK. Who?

Mr. GRIFFIN. Or Frank, whatever his name is?

Mrs. CHEEK. I didn't understand that Frank was going in on it. He was going to decorate it for Jack Ruby.

Mr. GRIFFIN. Did Jack indicate there was somebody else interested besides him?

Mrs. CHEEK. Just himself.

Mr. GRIFFIN. You must have been quite annoyed with him when he wouldn't tell you where it would be and wouldn't give you the details?

Mrs. CHEEK. Well, I just told him I couldn't make an investment that I didn't know about.

Mr. GRIFFIN. Did he describe how big it was going to be? How many seats?

Mrs. CHEEK. No, he didn't. He might have, but I don't remember the exact seating.

Mr. GRIFFIN. Then you can't tell us anything that you recall about that conversation other than what you have told us so far?

Mrs. CHEEK. That is all I remember.

Mr. GRIFFIN. Okay. Now, have you read through this interview report?

Mrs. CHEEK. I don't have glasses, and I can't see too well today. I don't have my glasses with me.

Mr. GRIFFIN. Well, would you like me to read it out?

Mrs. CHEEK. You can read it to me.

Mr. GRIFFIN. Did you read the first paragraph?

Mrs. CHEEK. I think I read pretty well through everything, because I can hold it off and read it pretty good. I was holding it. I can see if I hold it far away. If you want, you can read it to me.

Mr. GRIFFIN. Why don't I start to read at the last paragraph on page 132 of Commission Document 86. It reads: "At Ruby's invitation, Mrs. Cheek said she did discuss such investment with Ruby at the Carousel. Ruby proposed her investment of \$6,000 in a club, the identity or location of

which he would not disclose, apparently Mrs. Cheek said to preclude her going around him on the deal.”

“Mrs. Cheek said she would not consider the investment of \$6,000 without full disclosure and had suggested to Ruby that he get an option on the business so that he might discuss the proposal openly. This concluded the discussion of such investment by Mrs. Cheek with Jack Ruby.”

Let me ask you at this point, was your understanding that this was a going business that he was going to buy?

Mrs. CHEEK. No, it was the location that he was going to buy and then put the club in.

Mr. GRIFFIN. So it really means that he should get an option on the real estate?

Mrs. CHEEK. Yes. That is what I told him.

Mr. GRIFFIN. “Throughout these discussions at the Carousel, Mrs. Cheek stated that Ruby was assisted by one Frank, whose last name Mrs. Cheek did not recall.

“She described Frank as a man of Jewish extraction about 60 years of age with gray hair. Frank was present, she said, apparently to provide Ruby with a good recommendation as a nightclub operator as this was the extent of his participation in the discussion.”

You would amplify that to say that Frank also talked about how Frank was going to decorate the place?

Mrs. CHEEK. He didn’t tell that he was going to decorate this place. He talked about how he decorated the other place and how nice a job he did. And he spoke of how, what a good operator Ruby was in the nightclub business and how he could make money.

Mr. GRIFFIN. Then the last sentence is:

“Mrs. Cheek was unable to provide any additional information of pertinence concerning Jack Ruby.”

Well, I take it that you have no additions or corrections to make to what I have just read you?

Mrs. CHEEK. That's correct.

Mr. GRIFFIN. All right. I want to thank you for spending all this time, and I realize that this has been a sacrifice for you to come down here, and we will try to make arrangements to make photo copies of a few of the records that you have.

Mrs. CHEEK. You are welcome to them.

Mr. GRIFFIN. Again I say you are very kind to give us your time, and I would ask you a couple of questions in conclusion.

One, have you been interviewed by any member of the Commission Staff prior to appearing here today?

Mrs. CHEEK. Those FBI men.

Mr. GRIFFIN. By other than that?

Mrs. CHEEK. Barry and Mr. Kelley.

Mr. GRIFFIN. But nobody that identified himself as a member of the Commission's staff, as opposed to an FBI agent or Secret Service agent? You haven't been other than these two interview reports that I have showed you? Have you been interviewed by anybody on any occasion?

Mrs. CHEEK. I don't think so, unless when the police and the FBI or anyone comes to my house about any of the rents or anyone, I always talk to them, and now I don't know.

Mr. GRIFFIN. All right, before I——

Mrs. CHEEK. I give them all the information I can give them.

Mr. GRIFFIN. Before I sat down here with you in the room this afternoon, did I interview you at all?

Mrs. CHEEK. I don't think so.

Mr. GRIFFIN. I did meet you out in the hallway?

Mrs. CHEEK. Yes, sir; I met you.

Mr. GRIFFIN. But I didn't ask you any questions?

Mrs. CHEEK. No; you didn't.



Mr. GRIFFIN. Now I will ask you this, too. Do you have any information that you consider to be of any importance in connection with what this Commission is doing, that you haven't provided us so far?

Mrs. CHEEK. I don't think I have any information at all that I could give you. If I had, I had already called someone and told you about it. If I had ever talked to anyone or anyone mentioned anything about this, I just, like my sister, if she got a letter through the mail, I said, "You call the FBI immediately and turn it in." "Turn everything in."

She would get letters through the mail from different people and the people would be coming out interviewing, and I said, "Call immediately and tell them."

Mr. GRIFFIN. If anything comes to your attention

Mrs. CHEEK. I will call you and tell you, surely. I will try to be as helpful as I can be, because I don't understand it, like everyone else.

Mr. GRIFFIN. We certainly appreciate that, and we are trying to get as much as we can.

Mrs. CHEEK. I can't feature Ruby killing Oswald, and I can't feature the President being killed.

Mr. GRIFFIN. Well, you are not the only one.

Mrs. CHEEK. It shocked me.

Mr. GRIFFIN. Again, I want to thank you for coming down here. It has been a pleasure to meet you.

Mrs. CHEEK. It is a pleasure meeting you.

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## **TESTIMONY OF CURTIS LaVERNE CRAFARD**

The testimony of Curtis LaVerne Crafard was taken at 9:05 a.m., on April 8, 1964, at 200 Maryland Avenue NE., Washington, D.C., by Messrs. Burt W. Griffin and Leon D. Hubert, Jr., assistant counsel of the President's Commission.

Mr. HUBERT. This is the deposition of Curtis LaVerne Crafard.

Mr. Crafard, my name is Leon Hubert. I am a member of the advisory staff of the President's Commission on the Assassination of President Kennedy, and I have been authorized by the Commission in accordance with law and regulations to take a sworn deposition from you.

The general nature of the Commission's inquiry is to ascertain the facts relating to the assassination of President Kennedy and the subsequent violent death of Lee Harvey Oswald.

In particular as to you, Mr. Crafard, the nature of the inquiry is to determine what facts you know about the general inquiry, the death of Oswald and what you know about Jack Ruby.

Now, you have appeared here today by virtue of a subpoena dated April 3, 1964, and issued by the Commission to you to appear here in this building, room 400, Veterans of Foreign Wars Building, 200 Maryland Avenue NE., Washington, to be deposed.

When was this subpoena served upon you?

Mr. CRAFARD. Last Saturday.

Mr. HUBERT. I think that would have been the 4th.

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. The 4th of April.

Would you rise and be sworn, please?

Raise your right hand. Do you solemnly swear the testimony you are about to give will be the truth, the whole truth, and nothing but the truth, so help you God?

Mr. CRAFARD. I do.

Mr. HUBERT. Will you state your full name for the record, please?

Mr. CRAFARD. Curtis LaVerne Crafard.

Mr. HUBERT. Where do you live, Mr. Crafard?

Mr. CRAFARD. 1219 Birch Street, Dallas, Oreg.

Mr. HUBERT. How old are you?

Mr. CRAFARD. 23.

Mr. HUBERT. When precisely were you born?

Mr. CRAFARD. March 10, 1941.

Mr. HUBERT. What is your present occupation?

Mr. CRAFARD. At the present time I am unemployed.

Mr. HUBERT. Now, the subpoena that you were served with calls for you to bring any documents that you may have concerning the matter under inquiry, and I would like you now to make a return, as it is called, as to the documents you do have so suppose you present those that you brought with you in response to the subpoena.

Mr. CRAFARD. All I had was the subpoena from the Jack Ruby murder trial. Some news clippings from the Ruby trial, and then more or less a diary I have been keeping for a little while of my own movements.

Mr. HUBERT. Now, Mr. Crafard, concerning the diary about your movements, do you have any objection if we have photostatic copies made of the pages on which you have made entries?

Mr. CRAFARD. No objection whatsoever.

Mr. HUBERT. Do you wish to retain the original of this yourself?

Mr. CRAFARD. Unless it is of some use to you.

Mr. HUBERT. Well, it may be, but on the other hand, I don't want to take it away from you unless you feel that you don't want to keep it or have no use for it yourself.

Mr. CRAFARD. Well, I would like to have the book because it comes in handy for a lot of things.

Mr. HUBERT. Mr. Crafard, who were your parents?

Mr. CRAFARD. Mr. Hugh Crafard, Mrs. Alice Irene Crafard.

Mr. HUBERT. Are they still living?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Are they living together?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Where do they live?

Mr. CRAFARD. At 1219 Birch Street, Dallas, Oreg.

Mr. HUBERT. Have you any brothers or sisters?

Mr. CRAFARD. I have one brother living. He is in the Army stationed in Los Angeles, Calif.

Mr. HUBERT. What is his name?

Mr. CRAFARD. Edward D. Crafard.

Mr. HUBERT. Is he married?

Mr. CRAFARD. Yes.

Mr. HUBERT. Does he have children?

Mr. CRAFARD. Two.

Mr. HUBERT. You don't have any other address for him than that which you have given us?

Mr. CRAFARD. I can't give you the address. All I know he is stationed there in the Army.

Mr. HUBERT. You don't know what organization in the Army?

Mr. CRAFARD. The Missile Corps, antiaircraft.

I have three sisters.

Mr. HUBERT. All right, will you state their names, please, and whether they are married?

Mr. CRAFARD. Corabelle Crafard, she is married.

Mr. HUBERT. To whom?

Mr. CRAFARD. [Deleted].

Mr. HUBERT. Where does she live?

Mr. CRAFARD. She is residing in Clare, Mich.

Mr. HUBERT. Are they living together?

Mr. CRAFARD. He is in the "pen" right now.

Mr. HUBERT. Penitentiary?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Which one?

Mr. CRAFARD. New Ionia State Penitentiary.

Mr. HUBERT. What State is that in?

Mr. CRAFARD. Michigan.

Mr. HUBERT. Do you know what offense he has been convicted of?

Mr. CRAFARD. As far as I know, B and E, breaking and entering at night.

Mr. HUBERT. How long has he been in the penitentiary?

Mr. CRAFARD. About 7 months, I believe, now.

Mr. HUBERT. What term is he serving?

Mr. CRAFARD. Two-and-a-half to fifteen.

Mr. HUBERT. All right. Go on to the next sister.

Mr. CRAFARD. Norma Lee Crafard.

Mr. HUBERT. Who is she married to?

Mr. CRAFARD. Owen Neal.

Mr. HUBERT. N-e-a-l?

Mr. CRAFARD. N-e-a-l.

Mr. HUBERT. Where do they live?

Mr. CRAFARD. Dallas, Oreg.

Mr. HUBERT. Do they live together?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Do they have children?

Mr. CRAFARD. They have two children.

Mr. HUBERT. All right. What is——

Mr. CRAFARD. Alice LaLaine Crafard.

Mr. HUBERT. What is her husband's name?

Mr. CRAFARD. She is not married. She lives with my parents.

Mr. HUBERT. How old is she?

Mr. CRAFARD. She is 17.

Mr. HUBERT. Have you had any brothers or sisters who have died?

Mr. CRAFARD. I have one brother that died.

Mr. HUBERT. What was his name?

Mr. CRAFARD. Gary Harold Crafard.

Mr. HUBERT. How old was he when he died?

Mr. CRAFARD. Nine years old.

Mr. HUBERT. When did he die?

Mr. CRAFARD. 1954, I believe it was.

Mr. HUBERT. Now, you have told us where and when you were born.  
Now, I ask you where you were born?

Mr. CRAFARD. Farwell, Mich.

Mr. HUBERT. How long did you live there after your birth?

Mr. CRAFARD. I am not sure of the length of time we lived right there. We lived around Farwell for 4 years, right around there.

Mr. HUBERT. After those 4 years where did you go?

Mr. CRAFARD. Went to California.

Mr. HUBERT. What part?

Mr. CRAFARD. San Joaquin Valley.

Mr. HUBERT. How long did you stay there?

Mr. CRAFARD. Approximately 6 years.

Mr. HUBERT. That is until you were about 10 years old?

Mr. CRAFARD. Ten years old.

Mr. HUBERT. Did you go to school there?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. How much schooling did you finish there?

Mr. CRAFARD. First four grades.

Mr. HUBERT. Do you remember the particular place in San Joaquin Valley that you lived?

Mr. CRAFARD. Well, I went to school at Woody, Calif., and Fairfax, Calif.

Mr. HUBERT. All right. After leaving those places, and particularly the San Joaquin Valley, where did you and your parents move to?

Mr. CRAFARD. We moved back to Michigan.

Mr. HUBERT. What place, in Michigan?

Mr. CRAFARD. Clare.

Mr. HUBERT. C-l-a-i-r-e?

Mr. CRAFARD. C-l-a-r-e.

Mr. HUBERT. That is when you were 10 years old?

Mr. CRAFARD. Yes.

Mr. HUBERT. Do you remember it?

Mr. CRAFARD. I can remember going back; yes, sir.

Mr. HUBERT. How long did you live there?

Mr. CRAFARD. We lived in the vicinity of Clare then for about 4 years.

Mr. HUBERT. Did you go to school there?

Mr. CRAFARD. Yes; until I graduated from eighth grade.

Mr. HUBERT. Then what happened?

Mr. CRAFARD. We moved to Port Huron, Mich.

Mr. HUBERT. H-u-r-o-n, Mich.?

Mr. CRAFARD. I attended school at Yale, Mich., Yale High School for 2 years, and then we moved back to California to the San Joaquin Valley again.

Mr. HUBERT. Same place as before?

Mr. CRAFARD. No; we moved to a little place called Plainview where I attended school for a year, Stratmore High School and from there we went to Oregon. I dropped out of school and enlisted in the U.S. Army, September 18, 1958.

Mr. HUBERT. Now, do I understand you to say then that you had 3 years of high school education?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Was that—were those satisfactory years?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. I mean you have credit for those?

Mr. CRAFARD. Yes.

Mr. HUBERT. You lack 1 year to graduate?

Mr. CRAFARD. I lack about 6 months of finishing high school.

Mr. HUBERT. Where did you enlist?



Mr. CRAFARD. I enlisted in Salem, Oreg.

Mr. HUBERT. And what assignments were you given?

Mr. CRAFARD. I enlisted in the antiaircraft.

Mr. HUBERT. That is U.S. Army?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Where did you get basic training?

Mr. CRAFARD. Fort Ord.

Mr. HUBERT. How long did you stay there?

Mr. CRAFARD. I was in Fort Ord for 2 months and then I went to Presidio, San Francisco, where I was stationed at an air defense school for a period of 2 months and then I was assigned to D Battery, 2d Missile Battalion, San Francisco Defense Organization.

From there I went to Germany in April of 1959. I was transferred to Germany to Deisley Kersne, and I was stationed with the D Battery, 2d Missile Battalion there. I stayed there until November of 1959 then I was transferred back to the United States where I was discharged November 10, 1959.

Mr. HUBERT. How long did you serve altogether?

Mr. CRAFARD. Thirteen months.

Mr. HUBERT. Is that the usual tour?

Mr. CRAFARD. No, sir. The usual tour is 3 to 4 years.

Mr. HUBERT. Well now, what caused you to get out sooner?

Mr. CRAFARD. As far as I understand it is the next thing to a medical discharge.

Mr. HUBERT. What was it based upon, do you know?

Mr. CRAFARD. General, under honorable conditions.

Mr. HUBERT. You have a discharge reading general, under honorable conditions and you are now taking from your pocket a document which is a photostatic copy, I take it?

Mr. CRAFARD. Yes; DD214.

Mr. HUBERT. Of Defense Department Form 14.

Mr. CRAFARD. 214.

Mr. HUBERT. 214. May I have a look at it?

Do you have any objection, Mr. Crafard if we have a photostatic copy of this document that you have just shown me?

Mr. CRAFARD. No objection.

Mr. HUBERT. So that it can be part of the record and we will give you back the original.

Mr. CRAFARD. No objection.

Mr. HUBERT. Now, what was the place of your discharge from the Army in the United States?

Mr. CRAFARD. Fort Sheridan, Ill.

Mr. HUBERT. When you were discharged, where did you go?

Mr. CRAFARD. I went to Kalkaska, Mich., where I resided with my brother-in-law and my sister.

Mr. HUBERT. Which one was that?

Mr. CRAFARD. At the present time it is Mrs. Ingersol. At that time it was Mrs. Richard Clair Tenniswood.

Mr. HUBERT. She had been married twice then?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Well, then we had better get that information about her. Who was her first husband?

Mr. CRAFARD. Richard Clair Tenniswood. She had two children, two girls by him.

Mr. HUBERT. How was that marriage dissolved?

Mr. CRAFARD. By divorce.

Mr. HUBERT. Do you know the grounds?

Mr. CRAFARD. I am not sure of the grounds, sir.

Mr. HUBERT. Did she divorce him or did he divorce her?

Mr. CRAFARD. I believe she divorced him. I am not positive about that.

Mr. HUBERT. Did you know him?

Mr. CRAFARD. Yes, sir; I knew him very well.

Mr. HUBERT. Do you know where he is?

Mr. CRAFARD. He lives at Port Huron, Mich., just out of Port Huron, Mich.

Mr. HUBERT. What business is he in?

Mr. CRAFARD. Farmer.

Mr. HUBERT. Has he remarried?

Mr. CRAFARD. He plans to remarry this summer.

Mr. HUBERT. Have you seen him recently?

Mr. CRAFARD. Last time I saw him was about 2 months ago. A little over that.

Mr. HUBERT. About how long did you stay there?

Mr. CRAFARD. I stayed there for about, let's see, I stayed there until the following spring, in April.

Mr. HUBERT. That would have been April of 1960?

Mr. CRAFARD. April of 1960. Then I went back out home to Oregon.

Mr. HUBERT. When you left the U.S. Army, did you have any money?

Mr. CRAFARD. How is that?

Mr. HUBERT. When you left the U.S. Army did you have any money?

Mr. CRAFARD. Just what I got from my discharge pay.

Mr. HUBERT. How much was that?

Mr. CRAFARD. I believe I had right around \$400 all together.

Mr. HUBERT. Is that all you had?

Mr. CRAFARD. That is all I had; yes, sir.

Mr. HUBERT. I mean is that all the property you had of any sort whatsoever?

Mr. CRAFARD. I had a few items of personal clothing.

Mr. HUBERT. I mean you had no items such as rings or jewelry or things of that kind?

Mr. CRAFARD. No, sir; I never wear jewelry, rings.

Mr. HUBERT. Did you have an automobile?

Mr. CRAFARD. No, sir; not at that time.

Mr. HUBERT. You didn't own any real estate, I take it?

Mr. CRAFARD. No, sir.

Mr. HUBERT. You didn't have any cash but what you said?

Mr. CRAFARD. That is right.

Mr. HUBERT. Would it be correct to estimate that your total worth other than the cash you just mentioned at that time was less than a hundred dollars?

Mr. CRAFARD. I would say so; yes.

Mr. HUBERT. Now, how long did you stay with your sister?

Mr. CRAFARD. I stayed with them for about 6 or 7 months.

Mr. HUBERT. Did you work?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Where?

Mr. CRAFARD. In the pulpwoods.

Mr. HUBERT. What does that mean?

Mr. CRAFARD. We were cutting pulpwood.

Mr. HUBERT. What did that pay?

Mr. CRAFARD. It was piece work. We was making about \$8 a cord.

Mr. HUBERT. About how much would that amount to a month?

Mr. CRAFARD. Oh, man.

Mr. HUBERT. Just an estimate?

Mr. CRAFARD. Probably right around \$400.

Mr. HUBERT. That would be net before taxes, wouldn't it?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you assist your sister financially for board and so forth?

Mr. CRAFARD. Yes, sir; we was working together, my brother-in-law and I.

Mr. HUBERT. What I mean was were you able to save any money?

Mr. CRAFARD. No; I didn't save any money there.

Mr. HUBERT. You did not. You stayed there about 7 months?

Mr. CRAFARD. About 7 months.

Mr. HUBERT. Where did you go then?

Mr. CRAFARD. Then I went back out home.

Mr. HUBERT. That is to say where?

Mr. CRAFARD. To Dallas, Oreg.

Mr. HUBERT. At the time you made the move then from the home of your sister to Dallas, Oreg., how much money did you have then?

Mr. CRAFARD. About \$150, enough to go out there.

Mr. HUBERT. Is it fair to state that you had spent all the money you had earned by working plus a good part of the savings or the money you had received from the Army?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. So that upon arrival at your parent's home in Dallas, Oreg., you had approximately \$150.

Mr. CRAFARD. I was almost broke when I arrived home.

Mr. HUBERT. Did you have any other type of property?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Can you fix the time of your arrival back in Dallas, Oreg.?

Mr. CRAFARD. It would have been in March of 1960.

Mr. HUBERT. All right. How long did you stay there?

Mr. CRAFARD. My main residence then up until this last fall has been Dallas, Oreg. I have done a lot of traveling around.

Mr. HUBERT. What did you do to support yourself from the time you returned to your parents in March 1960?

Mr. CRAFARD. I went to work in the fruit——

Mr. HUBERT. In the fruit what?

Mr. CRAFARD. In the fruit, picking fruit. Then I went to work in a cannery. Then I was gone for a while and I worked with the carnivals when I was gone.

Mr. HUBERT. I think we had better get some details about that. How long did you work with the fruit industry?

Mr. CRAFARD. Probably right around a month.

Mr. HUBERT. That would have been in the spring of 1960?

Mr. CRAFARD. Yes.

Mr. HUBERT. Then you went to the cannery?

Mr. CRAFARD. Yes.

Mr. HUBERT. How long did you work there?

Mr. CRAFARD. I worked there for about 6 months.

Mr. HUBERT. What did you make there?

Mr. CRAFARD. I was making a \$1.15 an hour.

Mr. HUBERT. What did it net you before taxes by the month about?

Mr. CRAFARD. I would say probably right around \$400 for the month.

Mr. HUBERT. When did you leave your parent's home?

Mr. CRAFARD. I couldn't give you an exact date on this, sir.

Mr. HUBERT. Well, would it be fair to say it was about 7 months after you arrived there from Michigan?

Mr. CRAFARD. It was in the spring of 1961. I believe, probably in April of 1961.

Mr. HUBERT. So that in fact you were with your parents after you moved from Michigan to Dallas, Oreg., for approximately 1 year?

Mr. CRAFARD. Yes.

Mr. HUBERT. Of which time you say you worked about 7 months?

Mr. CRAFARD. I went to school for about 6 months out of it, about 5 or 6 months out of the year, I attended high school.

Mr. HUBERT. Did you finish?

Mr. CRAFARD. No, sir.

Mr. HUBERT. What high school was that?

Mr. CRAFARD. Dallas High.

Mr. HUBERT. Oregon?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. You were not earning anything then?

Mr. CRAFARD. No, sir.

Mr. HUBERT. I take it that you left Dallas, Oreg., about April in 1961, is that correct?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Where did you go next?

Mr. CRAFARD. I went to California where I joined the carnival.

Mr. HUBERT. What part of California?

Mr. CRAFARD. Let's see, in Oroville, Calif., where I joined the carnival.

Mr. HUBERT. Oroville?

Mr. CRAFARD. Yes.

Mr. HUBERT. What carnival was it?

Mr. CRAFARD. Royal West Golden Gate combined.

Mr. HUBERT. Royal West Golden Gate combined?

Mr. CRAFARD. Yes.

Mr. HUBERT. What type of carnival was it?

Mr. CRAFARD. It was more or less about the general run of the mill for a carnival. Mostly rides.

Mr. HUBERT. When you say "carnival" you are talking about a place where they have these rides for children and so forth?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. How big a carnival was it, I mean, how many people were involved?

Mr. CRAFARD. It is pretty hard to say exactly.

Mr. HUBERT. What did you do with it?

Mr. CRAFARD. I was working with the circus that was attached to the carnival.

Mr. HUBERT. Animal circus?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. They all traveled as a group?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. How long were you with that, in that sort of a group?

Mr. CRAFARD. I worked that for about 3 or 4 weeks.

Mr. HUBERT. That is all, 3 or 4 weeks?

Mr. CRAFARD. Yes.

Mr. HUBERT. All right, where did you go to next?



Mr. CRAFARD. I traveled through Georgia where I joined another carnival in Georgia, Jerry Lepke Ten in One.

Mr. HUBERT. What sort of a side show was it?

Mr. CRAFARD. He had the sword box, ladder of swords, fire eater, two-headed baby show, and a snake girl show.

Mr. HUBERT. What did you do at that carnival?

Mr. CRAFARD. Roustabout and barker.

Mr. HUBERT. How long were you with them?

Mr. CRAFARD. I was with Lepke for about a week.

Mr. HUBERT. All right. After that?

Mr. CRAFARD. Then I went to Michigan.

Mr. HUBERT. Where did you stay there?

Mr. CRAFARD. I visited with my sister and my brother-in-law again for a little while for about 2 weeks.

Mr. HUBERT. Which one?

Mr. CRAFARD. Tenniswood. Then I went to Detroit where I joined a kiddyland setup.

Mr. HUBERT. That is sort of a carnival strictly for children?

Mr. CRAFARD. Yes; parking lot carnival.

Mr. HUBERT. About what time was that then?

Mr. CRAFARD. I believe that was in the fall of 1961.

Mr. HUBERT. How long did you stay with that organization?

Mr. CRAFARD. I was with him for about 2 weeks.

Mr. HUBERT. Then what did you do?

Mr. CRAFARD. I went back to Dallas, Oreg.

Mr. HUBERT. When you got to Dallas what did you do? Oregon, I mean.

Mr. CRAFARD. I went to work part time at the Muir and McDonald Leather Tannery and then I went to work for Boise Cascade Valzets Division for the Boise Cascade Plywood. I worked for them until in June of 1962, June 10th, 1962.

Mr. HUBERT. How long then did you work for them?

Mr. CRAFARD. For about 6 months, I believe it was.

Mr. HUBERT. What were you making there?

Mr. CRAFARD. I was making, I believe, \$2.25 an hour.

Mr. HUBERT. About what did it amount to by the month before taxes?

Mr. CRAFARD. About \$400, \$450.

Mr. HUBERT. You were not married at this time?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Were you able to save money?

Mr. CRAFARD. I was spending my money just about as fast as I made it. I was traveling, paying for transportation back and forth to work, buying clothes. By that time I had bought a motorcycle or a motorbike, and I bought a few items, I bought a refrigerator for my mother or a dryer for my mother at that time.

Mr. HUBERT. Now, we have some information that you worked for Federal Aviation Agency through July and October of 1960 in Los Angeles?

Mr. CRAFARD. Yes; in Los Angeles—I believe they were out of Los Angeles, where I worked for them that was over in Nevada.

Mr. HUBERT. What kind of work did you do?

Mr. CRAFARD. Surveyor's assistant. I had forgotten I had worked for them.

Mr. HUBERT. Can you tell us anything about your employment with Stewart-Hill in Berkeley, Calif., 1052 Dwight Way, Berkeley, Calif?

Mr. CRAFARD. I don't remember even.

Mr. HUBERT. That would have been between July and September of 1960?

Mr. CRAFARD. I don't remember.

Mr. HUBERT. Do you remember working for the Teer Plating Co., Dallas, Tex.

Mr. CRAFARD. Yes.

Mr. HUBERT. Tell us about it, please.

Mr. CRAFARD. I believe I worked for them 2 or 3 weeks, something like that.

Mr. HUBERT. How much did you make with them?

Mr. CRAFARD. I was making a dollar and a quarter an hour while I worked for them. I believe when I left there my last check was either \$65 or \$85.

Mr. HUBERT. Is that the first time you had ever been in Dallas, Tex.?

Mr. CRAFARD. Let's see, I believe it was, I am not certain of that.

Mr. HUBERT. That was between April and June of 1961, was it not?

Mr. CRAFARD. I believe so. The way I have traveled around, I had a lot of jobs I even forgot about almost.

Mr. HUBERT. What was this Muir Co. you were talking about?

Mr. CRAFARD. It was a leather tannery.

Mr. HUBERT. In Dallas, Oreg.?

Mr. CRAFARD. Yes.

Mr. HUBERT. Muir McDonald?

Mr. CRAFARD. Yes.

Mr. HUBERT. At 111 Street. Is that Dallas, Tex., or Dallas, Oreg.?

Mr. CRAFARD. Dallas, Oreg.

Mr. HUBERT. You worked for them for about almost year, with a couple of time outs, didn't you?

Mr. CRAFARD. Altogether I worked for them about 18 months. But including the time I worked part time and I worked part time for them for a

while while I was working for J. C. Tracy.

Mr. HUBERT. What was J. C. Tracy?

Mr. CRAFARD. That is a cannery in Dallas, Oreg.

Mr. HUBERT. So that during one period you were working two jobs—with Muir McDonald and with J. C. Tracy?

Mr. CRAFARD. Yes, sir; I worked for Muir and McDonald an hour and a half, 2 hours, maybe 3 hours a week.

Mr. HUBERT. Did you ever work for Ablon Poultry Co.?

Mr. CRAFARD. Yes, sir; that was after I was married.

Mr. HUBERT. That was where?

Mr. CRAFARD. In Dallas, Tex. At that time I was residing at the Letot Trailer Park with my wife and family.

Mr. HUBERT. When did you leave Dallas, Oreg., then?

Mr. CRAFARD. When I went to work there, you mean?

Mr. HUBERT. You had gone to Dallas, Oreg., I think it was in the spring of 1961, wasn't it?

Mr. CRAFARD. Yes.

Mr. HUBERT. And you stayed there really about 18 months, right, working for Muir McDonald?

Mr. CRAFARD. All together.

Mr. HUBERT. When you left Dallas, Oreg., you were not married, were you?

Mr. CRAFARD. The last time I left Dallas——

Mr. HUBERT. No; I am talking about the time you left in the latter part of 1962 or early 1963.

Mr. CRAFARD. I was married June of 1962.

Mr. HUBERT. So your wife lived with you for some time in Dallas, Oreg.?

Mr. CRAFARD. For about 6 months we was living in Dallas, Oreg., from June 10 until I believe in December.

Mr. HUBERT. Where were you married?

Mr. CRAFARD. I was married in Dallas, Oreg.

Mr. HUBERT. Where was your wife from?

Mr. CRAFARD. Originally from Texas.

Mr. HUBERT. What was her name?

Mr. CRAFARD. Her maiden name was Wilma Jean Case.

Mr. HUBERT. C-a-s-e?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had she been married before?

Mr. CRAFARD. Yes.

Mr. HUBERT. What was her husband's name?

Mr. CRAFARD. Donald Johnson.

Mr. HUBERT. How many times was she married before she married you?

Mr. CRAFARD. Just the one time.

Mr. HUBERT. Where did you meet her?

Mr. CRAFARD. I met her in Amarillo, Tex.

Mr. HUBERT. When? How long before you married?

Mr. CRAFARD. I believe it was in 1961.

Mr. HUBERT. What part of 1961?

Mr. CRAFARD. In the spring, I believe, it would have been in March of 1961.

Mr. HUBERT. You knew her about 15 months then before you got married?

Mr. CRAFARD. All told; yes.

Mr. HUBERT. Were you working in Dallas at the time you met her?

Mr. CRAFARD. I wasn't employed at the time I met my wife.

Mr. HUBERT. How did you meet her?

Mr. CRAFARD. I met her at the Salvation Army in Amarillo, Tex.

Mr. HUBERT. What was she doing?

Mr. CRAFARD. She was there with her husband Donald Johnson at that time.

Mr. HUBERT. She was living with him?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. When was she divorced from her husband?

Mr. CRAFARD. She was divorced in 1962, I believe, in April, I am not sure.

Mr. HUBERT. All the time you were living up in Oregon with your parents, did you see her or correspond with her?

Mr. CRAFARD. No; I hadn't saw her for a year.

Mr. HUBERT. You had not seen her for a year when you married her?

Mr. CRAFARD. No, sir; I had—I went to Dallas, Tex., trying to find her. From Dallas, Tex., I went to Las Vegas, Nev., where I got in touch with her and where we corresponded for a period of about 5 months.

Mr. HUBERT. I gather from what you say that your interest in her as a person to be your wife grew up during this period?

Mr. CRAFARD. Mostly, yes, sir.

Mr. HUBERT. And she agreed to marry you and came up to Dallas, Oreg., to do so?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did she work while you were living in Dallas, Oreg.?

Mr. CRAFARD. No, sir; she lived with my parents.

Mr. HUBERT. And so did you?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Do you have any children?

Mr. CRAFARD. I have one child by her. She has a stepson, I have a stepson, her son.

Mr. HUBERT. She had a son by the first marriage?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. What is that son's name?

Mr. CRAFARD. Don Johnson, Billy Don Johnson.

Mr. HUBERT. How old is he?

Mr. CRAFARD. He is 2 years old approximately.

Mr. HUBERT. He is 2 years old now?

Mr. CRAFARD. He was 2 years old in December. He will be 2½.

Mr. HUBERT. And you have a child by her?

Mr. CRAFARD. Yes, sir; Robert Johnson.

Mr. HUBERT. When was that child born?

Mr. CRAFARD. He was born March 10, 1963—March 2, excuse me.

Mr. HUBERT. When did you move to Dallas, Tex.—let's take it chronologically. What happened after you left, where did you go after you left Dallas, Oreg.?

Mr. CRAFARD. I went to California, I left Dallas, Oreg., the first day of March 1963. I went to California where I spent the month, spent about 3 or 4 weeks, then I went to Dallas, Tex., where my wife was living. We had a reconciliation.

Mr. HUBERT. Before you tell us about the reconciliation, you had better tell us about the breakup because I don't think that is in the record yet.

Mr. CRAFARD. We—she had left me about 6 months after we married, and I stayed in Dallas, Oreg.

Mr. HUBERT. So she left you about December 1962?

Mr. CRAFARD. Yes; I stayed in Dallas, Oreg., for about 6 months after that.

Mr. HUBERT. She was pregnant then, was she not?

Mr. CRAFARD. To my knowledge, as far as I know; yes.

Mr. HUBERT. The child was born in March of 1963.

Mr. CRAFARD. Well, I will tell you the truth, the doctor has some doubts himself so I couldn't say.

Mr. HUBERT. I mean she was pregnant when she left is what I mean in December. I think we are thinking about two different things.

Mr. CRAFARD. No. I believe we are thinking about the same thing.

Mr. HUBERT. I am not asking you whether she was pregnant when you married her.

Mr. CRAFARD. No; I know that.

Mr. HUBERT. I am asking you whether she was pregnant when she left you in December of 1962, because you have just told us that the child was born in March of 1963.

Mr. CRAFARD. I will put it this way. When the doctor was informed she had a child, her doctor was then informed she had a child, he was very shocked and surprised that she had had a child, and she was his patient in May of 1962. He operated on her in May of 1962. So in other words, there is some doubt as to the fact that the child was mine and actually there is a little doubt as to the child is actually hers.

Mr. HUBERT. Well, I wish you would explain that latter part. How can there be some doubt that the child is hers?

Mr. CRAFARD. I don't really understand it entirely myself. But the doctor that performed the operation when he was informed she had had the child he was very shocked and very surprised that she had had a child. He wouldn't say any reason for being so but he was. But I took him—I had understood from him that she wouldn't be able to have a child for about 2 years after the operation.

Mr. HUBERT. What was the cause of your breakup?

Mr. CRAFARD. That, I do not know.

Mr. HUBERT. You mean she just left?



Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did she leave any notes or anything?

Mr. CRAFARD. She didn't leave anything. I went to work on Tuesday morning and come home Tuesday and she was gone.

Mr. HUBERT. With her child?

Mr. CRAFARD. With the boy; yes.

Mr. HUBERT. Did you attempt to find her?

Mr. CRAFARD. I put a tracer on her.

Mr. HUBERT. Well now, when you say you put a tracer, what do you mean?

Mr. CRAFARD. I had the law put a tracer out on her.

Mr. HUBERT. As a missing person?

Mr. CRAFARD. As a missing person; yes, sir.

Mr. HUBERT. Did you get any reports?

Mr. CRAFARD. No, sir; I didn't.

Mr. HUBERT. When did you next see her or hear from her?

Mr. CRAFARD. I heard from her in February of 1963. The latter part.

Mr. HUBERT. In what way?

Mr. CRAFARD. She wrote to me and told me that she was going to have the baby, and then in March of 1963 I received a letter in California, my folks had sent down to me, from her saying that she had had the baby and would love for me to come see the baby if I wanted to. And I went to Dallas, Tex. And we had a reconciliation.

Mr. HUBERT. What date did you arrive in Dallas, do you know?

Mr. CRAFARD. Let's see, right around the 14th, I believe.

Mr. HUBERT. Of March?

Mr. CRAFARD. Of March.

Mr. HUBERT. Did you have any money then?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Have any other kind of property?

Mr. CRAFARD. No, sir; just a few clothes.

Mr. HUBERT. Is it fair to say you were, pretty broke?

Mr. CRAFARD. Yes, sir; I was.

Mr. HUBERT. Where was she living?

Mr Crafard. She was at that time staying with her mother and father in Dallas, Tex.

Mr. HUBERT. At what location?

Mr. CRAFARD. At Letot Trailer Park.

Mr. HUBERT. How do you spell that?

Mr. CRAFARD. L-e-t-o-t.

Mr. HUBERT. Where is that located?

Mr Crafard. On Lombardy Lane.

Mr. HUBERT. Did you live with her then?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. What did you do, get another trailer?

Mr. CRAFARD. For about a week I lived there with her and her parents. I went to work at the Ablon Poultry and her parents moved away and then for a while her brother and her sister-in-law lived with us; we lived together for a while.

Mr. HUBERT. At Letot's?

Mr. CRAFARD. Yes.

Mr. HUBERT. What is their name?

Mr Crafard. It is John Case, Mr. and Mrs. John Case.

Mr. HUBERT. Where do they live now?

Mr. CRAFARD. I have no idea of their present address.

Mr. HUBERT. When did you go to work in Dallas, Tex?

Mr. CRAFARD. About a week after I arrived there.

Mr. HUBERT. Where?

Mr. CRAFARD. At Ablon Poultry.

Mr. HUBERT. What kind of work were you doing there?

Mr. CRAFARD. I was working in the hanging racks, hanging chickens.

Mr. HUBERT. How much were you making there?

Mr. CRAFARD. \$1.10 an hour.

Mr. HUBERT. How much did that amount to by the month?

Mr. Crafard. Probably right around \$200, \$225, right around there; I am not sure.

Mr. HUBERT. You were still living with your wife then?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. What happened after that?

Mr. CRAFARD. I went to work at the Porter Building Co. in Dallas, Tex.

Mr. HUBERT. Where is that located?

Mr. CRAFARD. Harry Heinz Circle.

Mr. HUBERT. Is that the outfit called the Valley Office and School Equipment Co?

Mr. CRAFARD. No.

Mr. HUBERT. Did you work for that company?

Mr. CRAFARD. I believe I did for a little while. It wasn't very long.

Mr. HUBERT. What about the Office Building Co. that you were talking about, how long did you work for them?

Mr. CRAFARD. I don't remember, I don't even remember working for the company actually.

Mr. HUBERT. I am talking about the first one you mentioned yourself.

Mr. CRAFARD. The Porter Building Co.?

Mr. HUBERT. Yes.

Mr. CRAFARD. I worked for them for about a month or a month and a half.

Mr. HUBERT. After that who did you work for?

Mr. CRAFARD. We went to Washington, the State of Washington, to Mount Angeles or Port Angeles in the State of Washington.

Mr. HUBERT. About when was that?

Mr. CRAFARD. I believe that was in May or—it was in June, I believe it was.

Mr. HUBERT. When you say “we” you mean you and your wife and your two children?

Mr. CRAFARD. And my two boys.

Mr. HUBERT. How did you travel?

Mr. CRAFARD. We went up by bus.

Mr. HUBERT. Had you been able to save any money then?

Mr. CRAFARD. I had money when we left there, I had been able to save some then. We stopped in California and I worked for a while 2 or 3 weeks in California.

Mr. HUBERT. Where did you work?

Mr. CRAFARD. With a carnival. Then we went on up to Port Angeles, Wash.

Mr. HUBERT. Port Angeles?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. How long did you stay there?

Mr. CRAFARD. We was there for about 6 weeks.

Mr. HUBERT. Until what date?

Mr. CRAFARD. I don't remember the date.

Mr. HUBERT. Well, it was the summer of 1963, wasn't it?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Was your wife still with you?

Mr. CRAFARD. Yes, sir; we were together at that time.

Mr. HUBERT. All right. What was your next move?

Mr. CRAFARD. The next thing happened she left me again.

Mr. HUBERT. On what date was that?

Mr. CRAFARD. I couldn't give you a date on that either.

Mr. HUBERT. Well——

Mr. CRAFARD. I can't remember the dates too well.

Mr. HUBERT. Well, it was the summer time?

Mr. CRAFARD. Yes, sir; it was in the summer. I believe it was in the latter part of August or the middle of August, I am not sure.

Mr. HUBERT. Did she leave any note this time when she left?

Mr. CRAFARD. She left a note with some friends of ours in Port Angeles, Wash.

Mr. HUBERT. What was the cause of her leaving, did she say?

Mr. CRAFARD. She didn't say.

Mr. HUBERT. Did she leave any forwarding address?

Mr. CRAFARD. She had went to my brother's in Los Angeles, Calif.

Mr. HUBERT. Which brother was that, that is the one in the Army?

Mr. CRAFARD. Crafard, yes, sir; Edward D.

Mr. HUBERT. How long did she stay with him?

Mr. CRAFARD. She was there about 2 weeks.

Mr. HUBERT. Where did she go?

Mr. CRAFARD. He brought her up to my folk's place, I went from Washington down to my folk's place.

Mr. HUBERT. That is Dallas, Oreg.?

Mr. CRAFARD. He brought her up to my folk's there, in Dallas, Oreg.

Mr. HUBERT. Did you have a reconciliation again?

Mr. CRAFARD. We tried a reconciliation. It didn't work out.

Mr. HUBERT. So what happened?

Mr. CRAFARD. So subsequently, about 3 weeks later, I left home, my folk's place.

Mr. HUBERT. You left her there?

Mr. CRAFARD. No, sir.

Mr. HUBERT. She had already gone?

Mr. CRAFARD. No; she was still there over at my folk's place.

Mr. HUBERT. That is what I mean, you left her there?

Mr. CRAFARD. Yes; I left her there.

Mr. HUBERT. Judging by the time schedule you had mentioned that would have been around the middle of September, is that correct?

Mr. CRAFARD. I believe so; I am not sure.

Mr. HUBERT. Where did you go?

Mr. CRAFARD. Let's see, I went to California. I went down on the coast and I worked for a Chinese man down there raising strawberries.

Mr. HUBERT. How long did you stay there?

Mr. CRAFARD. I was there for about a week. And from there I went to Long Beach, Calif. I went to work on the new Playland down on Long Beach. I was there for about a month, I believe it was. Then I went to Barstow, Calif., where I went to work for produce out there.

Mr. HUBERT. What was the name of that?

Mr. CRAFARD. I don't remember the name of that outfit.

Mr. HUBERT. How long did you stay there?

Mr. CRAFARD. I was with him for about 3 or 4 weeks, I believe it was.

Mr. HUBERT. I take it that these jobs simply gave you enough money to live on and save up a little so you could move to the next place?

Mr. CRAFT. That is right.

Mr. HUBERT. All right. After that where did you go?

Mr. CRAFT. I went to Michigan.

Mr. HUBERT. What place there?

Mr. CRAFT. Fife Lake, Mich.

Mr. HUBERT. Where did you live there?

Mr. CRAFT. I was there overnight. My sister and brother-in-law, Ingersol lived there, and——

Mr. HUBERT. And you stayed with them?

Mr. CRAFT. I stayed overnight there.

Mr. HUBERT. Then where did you go?

Mr. CRAFT. Then I went to—down into the southern part of Michigan, I joined another carnival down there.

Mr. HUBERT. What was the name of the carnival.

Mr. CRAFT. Happyland Amusements.

Mr. HUBERT. Who was the owner of it?

Mr. CRAFT. I am just trying to think of the name. I can think of the first name but I can't think of his last name.

Mr. HUBERT. Suppose you give us that.

Mr. CRAFT. His first name was Bob. There were two brothers owned it.

Mr. HUBERT. How long did you stay with them?

Mr. CRAFT. I was with them for about 3 weeks. We traveled from Michigan to Memphis, Tenn. We played the Memphis Fair.

Mr. HUBERT. How long did you stay in Memphis?

Mr. CRAFT. We was there for 2 weeks.

Mr. HUBERT. What was your next move?

Mr. CRAFARD. My next move was, while I was in Memphis I quit them and went to work for Leonard Wood who owned a trabant.

Mr. HUBERT. What is that?

Mr. CRAFARD. It is one of the newest owned rides out, it is a German-made ride.

Mr. HUBERT. Leonard Wood was his name?

Mr. CRAFARD. Yes, sir; that was in Memphis, Tenn.

Mr. HUBERT. And you joined him really to move, is that right?

Mr. CRAFARD. No. I made the move with a friend of mine.

Mr. HUBERT. I understood that you were working with the circus or carnival operated by a man named Bob and his brother?

Mr. CRAFARD. Yes.

Mr. HUBERT. And you quit them to join Leonard Wood's outfit.

Mr. CRAFARD. Yes; it was better pay.

Mr. HUBERT. How long did you stay with Wood?

Mr. CRAFARD. I was with them for, I think it was the last 4 days of the fair, about 4 days.

Mr. HUBERT. Then you quit him?

Mr. CRAFARD. Actually I got fired from him. There was a girl there that kept hanging around the ride and we couldn't get rid of her and everybody tried to get rid of her. She thought she was in love with me or something.

Mr. HUBERT. So Leonard Wood fired you?

Mr. CRAFARD. Yes.

Mr. HUBERT. And what did you do next?

Mr. CRAFARD. I traveled to Dallas, Tex.

Mr. HUBERT. How did you travel?

Mr. CRAFARD. With a friend of mine, Mickey Spillane.



Mr. HUBERT. Mickey who?

Mr. CRAFARD. Mickey Corday.

Mr. HUBERT. How do you spell the last name?

Mr. CRAFARD. C-o-r-d-a-y.

Mr. HUBERT. How did you travel?

Mr. CRAFARD. Traveled down in his car.

Mr. HUBERT. Where is he from, do you know?

Mr. CRAFARD. I don't know where his home is.

Mr. HUBERT. Did you know him prior to this time?

Mr. CRAFARD. I had seen him prior to this time and heard of him prior to this time.

Mr. HUBERT. I mean it wasn't a hitchhike?

Mr. CRAFARD. No, sir; I met him at the fairgrounds in Dallas, Tex., or in Memphis.

Mr. HUBERT. Did you drive straight to Dallas?

Mr. CRAFARD. We drove straight to Dallas, Tex.

Mr. HUBERT. Now when you arrived in Dallas, what did you do?

Mr. CRAFARD. I went to work with an outfit "How Hollywood Makes Movies" setup in the Dallas, Tex., State Fair.

Mr. HUBERT. Who was that?

Mr. CRAFARD. Deke Miles and Bob Craven.

Mr. HUBERT. Had you known them before?

Mr. CRAFARD. No.

Mr. HUBERT. What date was that?

Mr. CRAFARD. I don't remember the date on that. It was the first day of the fair.

Mr. HUBERT. It was the first day of what fair?

Mr. CRAFT. The Dallas, Tex., State Fair.

Mr. GRIFFIN. This was in the fall of 1963?

Mr. CRAFT. Yes.

Mr. HUBERT. How much money did you make with them?

Mr. CRAFT. I made \$5 a day.

Mr. HUBERT. Where did you live?

Mr. CRAFT. I stayed in the tent. I was night watchman in the tent. They had a lot of props and equipment in the tent.

Mr. HUBERT. In the meantime what happened to your wife?

Mr. CRAFT. I had no idea.

Mr. HUBERT. To this day?

Mr. CRAFT. To this day, I found out what had happened later but right now I have no idea where she is at.

Mr. HUBERT. How long did she stay with your parents after you left?

Mr. CRAFT. She was there with my parents for about 2 or 3 weeks and then she took a job babysitting. She stayed there for about a week and then she took sick I understand and was in the hospital for about 3 days. Was back with my parents for about a week and then they went to Dallas, Tex. She left the boys with my parents, was in Dallas, Tex., for 2 or 3 weeks, then she went back up home and picked the boys up and the last I had heard of she had went to Cuba, Mo., and left the boys with a woman there in Cuba, Mo., and was paying her to take care of the boys.

Mr. HUBERT. How did you find out all this?

Mr. CRAFT. This woman in Missouri wrote to my mother, that is how I found out she had been there and my mother told me what had happened when she was still with them.

Mr. HUBERT. What is the last word you heard from your wife?

Mr. CRAFT. How is that?

Mr. HUBERT. What is the last time you heard anything about her?

Mr. CRAFARD. The last time I heard anything about her, had any news or had any knowledge of her whatsoever was about, on Saturday the 7th, March 7 of this year.

Mr. HUBERT. You don't know where she is now?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Has she the children?

Mr. CRAFARD. Yes, sir; she has got the children.

Mr. HUBERT. When did you first meet Jack Ruby?

Mr. CRAFARD. I met Jack Ruby about the third day of the Dallas, Tex., State Fair, at the fairgrounds.

Mr. HUBERT. Tell us about how you met him.

Mr. CRAFARD. He was backing the—Mr. Craven and Mr. Miles, and he come out there to talk to them.

Mr. HUBERT. Were you present when they spoke?

Mr. CRAFARD. I was out front when he come out there.

Mr. HUBERT. Did he seem to know them or——

Mr. CRAFARD. He knew them. They were acquainted.

Mr. HUBERT. They were acquainted?

Mr. CRAFARD. Yes.

Mr. HUBERT. You could tell that from the conversation?

Mr. CRAFARD. Yes, they just walked up to each other and shook hands and called each other by the first name.

Mr. HUBERT. Do you remember the substance of the conversation?

Mr. CRAFARD. Mostly the conversation had to do with a twistboard exerciser that Ruby was trying to promote.

Mr. HUBERT. Well, go ahead.

Mr. CRAFARD. And he was there for about a half, 45 minutes that evening, and it was 2 or 3 days later before I saw him again.

Mr. HUBERT. Before you go on, would you tell us how long after you joined the fair did you first see this man Ruby?

Mr. CRAFARD. About 2 or 3 days, about 2 days after I joined the fair.

Mr. HUBERT. That would be about 2 days after the fair opened.

Mr. CRAFARD. Yes.

Mr. HUBERT. And the second time you saw him was about 3 days after that?

Mr. CRAFARD. I believe so, yes.

Mr. HUBERT. What was the occasion of seeing him the second time?

Mr. CRAFARD. He came out there to talk to Mr. Miles and Mr. Craven.

Mr. HUBERT. Did you overhear that conversation?

Mr. CRAFARD. No, sir; I did not.

Mr. HUBERT. Do you know what was the purpose of the conversation?

Mr. CRAFARD. I believe Mr. Miles—he had brought some props, a couple of prop chairs, some chairs used for props and a mirror used for a prop to be used.

Mr. HUBERT. Jack Ruby brought that out to them?

Mr. CRAFARD. Yes.

Mr. HUBERT. What was his interest in this fair?

Mr. CRAFARD. I had no idea.

Mr. HUBERT. Did he have any financial interest?

Mr. CRAFARD. He had some financial interest there.

Mr. HUBERT. How do you know that?

Mr. CRAFARD. Mr. Craven had told me, we had been talking and he told me that Ruby had some financial interest in it.

Mr. HUBERT. Did he indicate what it was about, how much?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Well, did Ruby put up money?

Mr. CRAFARD. From what I understood he had put up some money.

Mr. HUBERT. How much?

Mr. CRAFARD. I have no idea.

Mr. HUBERT. Did you hear Mr. Craven or Mr. Miles talk about what percentage he might have in the interests of the project?

Mr. CRAFARD. No, sir; whenever I was around Mr. Craven and Mr. Miles I was pretty busy working most of the time.

Mr. HUBERT. And you lived in the tent all the time?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did you have any friends in Dallas?

Mr. CRAFARD. There was a few people that I know there.

Mr. HUBERT. Would you name them?

Mr. CRAFARD. Well, at that time there was as far as I knew my brother-in-law, John Case, lived in Dallas.

Mr. HUBERT. He still did?

Mr. CRAFARD. And there was a few members of the church my wife and I went to still in Dallas there.

Mr. HUBERT. Who were they?

Mr. CRAFARD. Brother Lee Cooksey and Robert Roskydall I believe it is.

Mr. HUBERT. Who else?

Mr. CRAFARD. And that was about the only ones I knew around there right then. I met some people during that fair.

Mr. HUBERT. As to these people you have named, how close a relationship did you develop?

Mr. CRAFARD. Just church members together.

Mr. HUBERT. What church was that?

Mr. CRAFARD. General Assembly and Church of the First Born.

Mr. HUBERT. Where is it located?

Mr. CRAFARD. Out North Dallas is all I can give you.

Mr. HUBERT. Was this State fair project called, "How Hollywood Makes Movies," a success financially?

Mr. CRAFARD. No; it was an absolute failure.

Mr. HUBERT. You mean people didn't flock to it?

Mr. CRAFARD. We went bankrupt, they went broke.

Mr. HUBERT. You mean they closed before the fair closed?

Mr. CRAFARD. Yes, sir; it was only open for about a week. I had heard rumors to the effect that Mr. Craven had wrote a lot of bad checks to start with.

Mr. HUBERT. Were you paid any salary by them?

Mr. CRAFARD. Mostly about all I got from them was expenses. It was supposed to be \$5 a day but about all I got was my meals and cigarettes furnished.

Mr. HUBERT. You got money from them?

Mr. CRAFARD. Yes.

Mr. HUBERT. Well, did it actually close its doors and stop operating before the fair closed?

Mr. CRAFARD. Yes; about a week, it only ran about a week.

Mr. HUBERT. And the fair lasted how long?

Mr. CRAFARD. 2 weeks. When they left it was another outfit come in there with a dance band.

Mr. HUBERT. When you say, "come in there," you mean took over the space?

Mr. CRAFARD. Took over the space in the same tent.

Mr. HUBERT. Did you stay with that outfit?

Mr. CRAFARD. Yes; I stayed with that outfit.

Mr. HUBERT. What was the name of it?

Mr. CRAFARD. I don't believe they even had a real name for it.

Mr. HUBERT. Tell us some of the people who were connected with it.

Mr. CRAFARD. Let's see. I can't even—there was Big Jess, he was one of the big shots around the State fair there.

Mr. HUBERT. Was he a musician?

Mr. CRAFARD. No; he owns two or three rides on the fair grounds, permanent rides on the Dallas Texas State Fair Grounds.

Mr. HUBERT. How was he connected with the organization that took the place of the other one?

Mr. CRAFARD. He took up the lease, the rent on the tent, on the space, and had this other outfit come in.

Mr. HUBERT. The other outfit I take it was a band?

Mr. CRAFARD. Yes; musical band.

Mr. HUBERT. How many pieces were there?

Mr. CRAFARD. Let's see, I believe it was three- and four-piece band.

Mr. HUBERT. How was it supposed to make money?

Mr. CRAFARD. Charged 50 cents to get in.

Mr. HUBERT. You mean to listen to the music?

Mr. CRAFARD. Mostly listen to the music.

Mr. HUBERT. What else?

Mr. CRAFARD. They had some couples on stage dancing.

Mr. HUBERT. They had some what?

Mr. CRAFARD. They had some couples on stage dancing.

Mr. HUBERT. You mean couples from the audience?

Mr. CRAFARD. At first and then they wouldn't allow them to have couples on the stage from the audience any more so they hired a couple of dancers.

Mr. HUBERT. Where did they hire them from?

Mr. CRAFARD. Girls around the fairgrounds.

Mr. HUBERT. Did they get any from Ruby's place?

Mr. CRAFARD. One of the girls came out from Ruby's place.

Mr. HUBERT. What was her name?

Mr. CRAFARD. Joy Dale.

Mr. GRIFFIN. Dale?

Mr. CRAFARD. Dale. I don't know her real name. Her first name was Joyce from what I understood.

Mr. GRIFFIN. Would you recognize the name Joyce McDonald?

Mr. CRAFARD. I believe that was her last name, yes.

Mr. GRIFFIN. But her stage name was Joy, not Joyce?

Mr. CRAFARD. Joy Dale.

Mr. HUBERT. What kind of a dance did she do?

Mr. CRAFARD. About all she done was worked out front. She would get out front and more than anything just stand around out there. She would come out originally to help this "How Hollywood Makes Movies" setup. They used her as an attraction piece.

Mr. HUBERT. Did Ruby bring her out there then?

Mr. CRAFARD. I believe the first time she came out there I believe Jack brought her out there and introduced her to Miles and Craven.

Mr. HUBERT. Did Jack have any interest in the second organization?

Mr. CRAFARD. To my knowledge, no. Except that he knew the man who was managing the setup there.

Mr. HUBERT. And you have given us his name, I think already.



Mr. CRAFARD. Dusty was the name of the guy who was managing it. He was another carnival, carnie. He was managing it, Jess was backing it but Dusty was managing it.

Mr. GRIFFIN. Do you know Dusty's last name?

Mr. CRAFARD. I can't recall it.

Mr. HUBERT. Where did he live?

Mr. CRAFARD. I don't know—let's see, I think his home was somewhere in Ohio.

Mr. HUBERT. Did he stay with the organization until the end of it?

Mr. CRAFARD. He stayed with the organization until the law closed them down.

Mr. HUBERT. Tell us about that.

Mr. CRAFARD. The stage dancers got, the last day they was getting, pretty wild.

Mr. HUBERT. You mean the last day of the fair?

Mr. CRAFARD. No; the last day they was open. It was 2 or 3 days before the fair closed, they were getting pretty wild.

Mr. HUBERT. What do you mean by that?

Mr. CRAFARD. With their dancing; it was getting real sexy.

Mr. HUBERT. It wasn't a striptease, was it?

Mr. CRAFARD. No; more than anything they were using the "Dirty Dog," and it can be made so filthy that it will almost turn a person's stomach if they do it right.

Mr. HUBERT. Do they actually use dogs in this dance?

Mr. CRAFARD. No; it is a dance called, "The Dog," but they have got what they call, "The Dirty Dog," too.

Mr. HUBERT. How many girls were involved in that?

Mr. CRAFARD. There were two girls and one guy.

Mr. HUBERT. One of those girls was the girl called Joy Dale?

Mr. CRAFARD. No.

Mr. HUBERT. What was she doing at that time?

Mr. CRAFARD. As far as I know Joy was just working at the club, Carousel Club at that time.

Mr. HUBERT. She wasn't connected with the show at the fair?

Mr. CRAFARD. She hadn't been out there but about one time after the dance outfit took over.

Mr. HUBERT. Do you know the names of the girls on the stage?

Mr. CRAFARD. I don't remember their names.

Mr. HUBERT. Had they come from Jack Ruby?

Mr. CRAFARD. No.

Mr. HUBERT. How do you know that?

Mr. CRAFARD. They met them on the fairgrounds. They put an ad and the girls contacted them.

Mr. HUBERT. Did Ruby come around to that second thing?

Mr. CRAFARD. He was around a couple of times.

Mr. HUBERT. A couple of times?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did he stay very long?

Mr. CRAFARD. Not that I could notice.

Mr. HUBERT. Who was he with?

Mr. CRAFARD. Mostly by himself when he came out there.

Mr. HUBERT. How did you get to know him?

Mr. CRAFARD. Well, just a couple of times talking to him around the fairgrounds there and he gave me a free pass into his club any time I wanted to go in.

Mr. HUBERT. Did you go in?

Mr. CRAFARD. Not until after the fair closed when I went to work for Ruby.

Mr. HUBERT. How much money did you make at the fair altogether?

Mr. CRAFARD. Altogether at the fair all I made was expenses.

Mr. HUBERT. As I understood you had very little when you got there.

Mr. CRAFARD. That is right.

Mr. HUBERT. So that when the fair closed you were just about flat broke.

Mr. CRAFARD. I was flat broke.

Mr. HUBERT. What happened after the fair closed?

Mr. CRAFARD. Ruby hired me then to tear some lumber down, a stage he had had there at the tent. He brought the lumber out of it and he had me tear that down and clean it up.

Mr. HUBERT. Of course, the thing had been closed for 2 days before the fair closed itself?

Mr. CRAFARD. Yes.

Mr. HUBERT. And I don't suppose it reopened in any other fashion?

Mr. CRAFARD. No.

Mr. HUBERT. How long did it take you to do the job that Ruby hired you for?

Mr. CRAFARD. About 4 hours all told.

Mr. HUBERT. And this stuff was moved?

Mr. CRAFARD. Moved to the Carousel Club, downstairs in the Carousel Club where it was stored.

Mr. HUBERT. Did you have anything to do with the moving?

Mr. CRAFARD. Yes; helped move the lumber and clean it up.

Mr. HUBERT. Then your original employment by Ruby was for that job alone?

Mr. CRAFARD. When he hired me he said he had that for me that I could do and then he said I could stay, he wanted me to stay at the club that night, and the next day he talked to me and he had me stay with him.

Mr. HUBERT. Tell us about your arrangement with Ruby?

Mr. CRAFARD. Mostly, there was no set salary, any time I needed salary I put a draw slip in the till and take it out of the till.

Mr. HUBERT. What were you supposed to do?

Mr. CRAFARD. Help clean the club up, work the lights on the girls on stage, answer the phone calls, answer the phone when he wasn't there. Work on the bar if they needed me or anything like that.

Mr. HUBERT. In other words, you did almost anything you were asked to do?

Mr. CRAFARD. That is right.

Mr. HUBERT. Where did you live at that time?

Mr. CRAFARD. I stayed at the Carousel Club.

Mr. HUBERT. What accommodations did they have for sleeping and so on?

Mr. CRAFARD. We had a room with a cot in it.

Mr. HUBERT. Whose room was it?

Mr. CRAFARD. It had been at one time a dressing room for one of the stars he had in there, Jada, a stripper by the name of Jada.

Mr. HUBERT. Was she there when you first went there?

Mr. CRAFARD. When I first went there; yes. At that time I slept in Jack's office.

Mr. HUBERT. Then when you first went to the Carousel you slept in Jack's office?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Was there a cot there, too?

Mr. CRAFARD. He had a couch in his office.

Mr. HUBERT. When you first went there it was the day the fair closed or the day after?

Mr. CRAFARD. The day after the fair closed.

Mr. HUBERT. Do you remember the date of that?

Mr. CRAFARD. No; I don't remember the date.

Mr. HUBERT. How long did you stay—strike that.

How long did you sleep in Jack's office?

Mr. CRAFARD. For about a week.

Mr. HUBERT. And then you moved into Jada's room?

Mr. CRAFARD. Yes.

Mr. HUBERT. Or dressing room, that is after she had gone?

Mr. CRAFARD. Yes, after she had gone.

Mr. HUBERT. And you stayed there until you left finally?

Mr. CRAFARD. I left the 23d of November, I believe it was.

Mr. HUBERT. What were your hours there?

Mr. CRAFARD. Any hours. I would just get up, I usually got up about 8 o'clock in the morning and I would be lucky if I would get to bed before 3:30, 4 o'clock.

Mr. HUBERT. How come you would get up so early?

Mr. CRAFARD. Get the club cleaned up.

Mr. HUBERT. Wasn't there a man to help?

Mr. CRAFARD. I took care of that mostly myself.

Mr. HUBERT. Do you know a man by the name of Howard who used to do that stuff?

Mr. CRAFARD. Howard was a maintenance man.

Mr. HUBERT. What did he do?

Mr. CRAFARD. Just maintenance, upkeep of the building.

Mr. HUBERT. He didn't do the actual janitorial work?

Mr. CRAFARD. No.

Mr. HUBERT. Cleaning up the cigarettes and that sort of thing?

Mr. CRAFARD. He had a young fellow by the name of Andrew who was his assistant manager.

Mr. HUBERT. Is that Andrew Armstrong?

Mr. CRAFARD. Yes. When I first went there, Andrew was doing the cleaning up and then I started helping him, and then I had been there for about 2 weeks and I was doing all the cleaning up by myself.

Mr. HUBERT. The club usually closed you say about 2 or 3 in the morning?

Mr. CRAFARD. No; the club usually closed, I believe it was 1:30 or 2 o'clock in the morning the club closed.

Mr. HUBERT. You would get to bed about 2:30 or 3 o'clock?

Mr. CRAFARD. Before everybody got out of there it would be 2:30, 3 o'clock.

Mr. HUBERT. Then you went to bed?

Mr. CRAFARD. Then I went to bed.

Mr. HUBERT. How long did the cleaning up job usually take?

Mr. CRAFARD. If I started cleaning up at 9 o'clock I would be finished by 11:30.

Mr. HUBERT. In other words, you had 2½ hours?

Mr. CRAFARD. Yes.

Mr. HUBERT. Were you then usually free?

Mr. CRAFARD. No. Jack would come in about 11:30 and be there 2 or 3 hours. After he left I had to stay there and answer the phone.

Mr. HUBERT. The club wasn't open then, was it?

Mr. CRAFARD. No, the club didn't open until 7:30 at night.

Mr. HUBERT. So your duties were to clean up as soon as you got up and that took 2½ or 3 hours and then just to stay there answering phone calls?

Mr. CRAFARD. Yes.

Mr. HUBERT. Where did you go to eat?

Mr. CRAFARD. Most of the time I eat at the Walgreen drugstore catercornered across the street.

Mr. HUBERT. And you say you just took some money out of the cash register for that purpose?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did Jack permit you to do that?

Mr. CRAFARD. Yes, he told me; otherwise, I wouldn't have done so.

Mr. HUBERT. Did he have any limitation on how much to take?

Mr. CRAFARD. No.

Mr. HUBERT. How much did it amount to?

Mr. CRAFARD. It usually amounted to \$4, \$5, maybe \$6 a day, what with my cigarettes and what I ate.

Mr. HUBERT. Did you have any time off for yourself at all?

Mr. CRAFARD. A couple of nights after the club closed we went out to, he took us out to, the Vegas Club. We were out there until about 3 o'clock in the morning. And I had a couple of times I could, Andy was around the club and I could take off in the afternoon if Andy was around the club.

Mr. HUBERT. What was the purpose of keeping you around the club after your cleanup job was over?

Mr. CRAFARD. So far as I understand just mostly answer the phone.

Mr. HUBERT. Were there many phone calls to be answered?

Mr. CRAFARD. There was quite a few that would come in—generally, usually, people calling in, would start calling in about 1 o'clock for reservations.

Mr. HUBERT. Did Jack give you any instructions as to how you could handle the phone calls?

Mr. CRAFARD. He told me to answer the phone and ask them what they wanted, and if they had a message for Jack so they could give me a number for him to call back. If they had a reservation, how to take a reservation.

Mr. HUBERT. Did you have to make notations about it?

Mr. CRAFARD. Yes, I had a notebook there at the club.

Mr. HUBERT. So that when he called in you would just tell him who had called?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did he sometimes give you instructions as to things you were to do?

Mr. CRAFARD. Not unless it was—a couple of times he told me to feed the dogs or something like that—when he would call in, he would ask me if I fed the dogs.

Mr. HUBERT. Where were they kept?

Mr. CRAFARD. They were kept in a room behind the kitchen area, a storeroom.

Mr. HUBERT. How many were there?

Mr. CRAFARD. When I first went there he had two dogs at the club and then his Sheba that he kept with him all the time.

Mr. HUBERT. You say when you first went he had that many dogs, did that change during the time you were there?

Mr. CRAFARD. About a week before the assassination, a man that he had given the dog to brought the dog back and Jack gave me instructions to check the freight prices to California, a friend of his out there had wanted the dog, and he was going to send it out there. So he gave me instructions to check the freight, how to ship it, and about the crate and food and everything for the dog—to ship it.

Mr. HUBERT. For a period then there were three dogs there?



Mr. CRAFARD. Yes.

Mr. HUBERT. Was that dog ever shipped to California?

Mr. CRAFARD. Not while I was there; no, sir.

Mr. HUBERT. Do you know what the man's name was who the dog was to be shipped to in California?

Mr. CRAFARD. No, sir; I don't.

Mr. HUBERT. Do you know what place in California?

Mr. CRAFARD. Los Angeles, I believe it was.

Mr. HUBERT. You had to check that to get the rates?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Had you ever seen that man to whom it was to be shipped?

Mr. CRAFARD. Not as far as I—I am not positive I had seen him.

Mr. GRIFFIN. Do you have some idea you might have seen him?

Mr. CRAFARD. There was a couple of friends of Jack's there from California while I was there and it might have been one of them.

Mr. HUBERT. You don't know their names?

Mr. CRAFARD. No; I don't remember their names.

Mr. GRIFFIN. Do you remember when they were at Jack's place?

Mr. CRAFARD. As I say, I believe it was about the second or third week I was there with him.

Mr. GRIFFIN. Were there—you say there were a couple of fellows?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Two or three or how many?

Mr. CRAFARD. I think they come at different times, I believe there was one guy come in one time and then about a week—3 or 4 days later another guy.

Mr. GRIFFIN. But they were both there together for a while?

Mr. CRAFT. No; I don't believe so.

Mr. GRIFFIN. I see. Do you remember anything about the first man who came?

Mr. CRAFT. No, sir; I couldn't even identify him if he was to stand in front of me.

Mr. GRIFFIN. Did he spend a lot of time around the club?

Mr. CRAFT. He wasn't there too much during the day.

Mr. GRIFFIN. Would he come as a patron or was he working when he was there?

Mr. CRAFT. I believe he came in as a guest of Jack's, a house guest.

Mr. GRIFFIN. Were you introduced to him, ever introduced to him?

Mr. CRAFT. Jack introduced me to him the day he came in. I don't remember his name.

Mr. GRIFFIN. Did you ever learn anything about what he did for a living?

Mr. CRAFT. Not that I can recall.

Mr. GRIFFIN. The second man who came, were you introduced to him?

Mr. CRAFT. More likely I was, but I don't recall him.

Mr. GRIFFIN. Do you recall at all what he looked like, the second man?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. Do you recall at all what the first man looked like?

Mr. CRAFT. No, I don't; I saw so many people around the club.

Mr. GRIFFIN. The second man who came, how long did he stay?

Mr. CRAFT. Saw him around, I think, two different days, two days in a row that he was in the club with Jack.

Mr. GRIFFIN. Did he come at night or during the day?

Mr. CRAFT. During the day that I saw him. He might have been there at night but I didn't notice him if he was.

Mr. GRIFFIN. What did you pick up that his business might have been there?

Mr. CRAFARD. All I figured, all I knew, was that he had come to see Jack.

Mr. HUBERT. You never heard them conversing?

Mr. CRAFARD. When Jack was talking to somebody I pretty much made it a habit to step back where I couldn't hear the conversation.

Mr. HUBERT. Why did you do that?

Mr. CRAFARD. I have done that every since I can recall. When I was younger I worked for a fellow and he started talking to somebody and I would stay right there and he got kind of angry a couple of times; so, since then, I have made it a habit to step back where I can't hear the conversation that is being held.

Mr. GRIFFIN. Did you ever hear from Andy Armstrong or anybody else anything about either of these two men?

Mr. CRAFARD. Not that I can recall.

Mr. HUBERT. What makes the visit of these two men a part of your memory now?

Mr. CRAFARD. Just that it was shortly before he had the dogs brought back to him, and he asked me to make arrangements to ship them to California. I believe they were from Los Angeles.

Mr. HUBERT. In other words, the fact that you were making preparations to ship the dogs to California, and that they were from California, is the fact that causes you to associate the two, and to remember those two men?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Is that all?

Mr. CRAFARD. That is all I can think of causing the association.

Mr. GRIFFIN. Do you recall, Larry, if at any time Jack had a photographer at the club?

Mr. CRAFARD. Yes; he did for publicity purposes.

Mr. GRIFFIN. Do you recall where that photographer was from?

Mr. CRAFARD. No; I don't sir.

Mr. GRIFFIN. Do you recall any—how long was this photographer there?

Mr. CRAFARD. He was around there for 3 or 4 days in the evening before the show was going on. I believe he was from a magazine.

Mr. HUBERT. Was his name Eddie Rocco?

Mr. CRAFARD. I believe so.

Mr. GRIFFIN. Was this one of the two men you have been talking about from California or were these two men different, from California?

Mr. CRAFARD. I don't recall; it might have been. He might have been from California. But these two men were not photographers. They come in, it looked to me, it appeared to me to be businessmen, fellows——

Mr. HUBERT. Did they have long conversations with Ruby?

Mr. CRAFARD. Not in my presence. Not when they were around the club. They was never in the club with him more than 5 or 10 minutes when they were there.

Mr. HUBERT. What would happen, they would come in and talk to him?

Mr. CRAFARD. They would come in and he might have some phone calls to make or something and they would stay there while he made the phone calls and then they would leave.

Mr. HUBERT. Do you know where they went?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Jack would go out with them?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did you notice how long they stayed?

Mr. CRAFARD. I wouldn't know how long they would stay with Jack. He might take off at 11 o'clock in the morning and wouldn't be back all day.

Mr. HUBERT. What I mean is, do you have any recollection of seeing him leave with one of those men or either of them and then come back with

them?

Mr. CRAFARD. I don't recall him doing so. He might have.

Mr. HUBERT. Have you any recollection that having left with one of those men he came back alone and particularly at what time or how much longer did he come back alone, how much later did he come back alone?

Mr. CRAFARD. I have no recollection of that either. He was—people would come to the club to see him, he would go downstairs, leave with them, and sometimes he would be gone the rest of the afternoon or sometimes he would come back.

Mr. HUBERT. What we would like you to tell us is, what there was about these two men from California that makes their visits there still a part of your memory.

Mr. CRAFARD. Just the fact that shipping the dogs to California, I kind of more or less associated the fact and that they were from Los Angeles.

Mr. HUBERT. Did you ever gather where they were staying while they were in Dallas?

Mr. CRAFARD. I don't know.

Mr. HUBERT. Who usually woke you up in the morning over there?

Mr. CRAFARD. Jack would usually call me in the morning.

Mr. HUBERT. About what time?

Mr. CRAFARD. Anywhere from 8 o'clock on.

Mr. HUBERT. Did you have any other way of waking up?

Mr. CRAFARD. Not unless Andrew would come by.

Mr. HUBERT. Was there an arrangement that one of them would wake you so you might commence your work?

Mr. CRAFARD. Jack would usually call me in the morning as soon as he got up.

Mr. HUBERT. Did Armstrong call you sometimes?

Mr. CRAFARD. A couple of times Andy would call me.

Mr. HUBERT. Do you know a man by the name of Ralph Paul?

Mr. CRAFARD. Yes.

Mr. HUBERT. How did you come to know him?

Mr. CRAFARD. Jack introduced me to him at the club.

Mr. HUBERT. Was he there often?

Mr. CRAFARD. He was there about six or seven times that I can recall. I believe he was a business associate of Jack's.

Mr. HUBERT. Where did you find that out?

Mr. CRAFARD. He had a drive-in setup, drive-in cafe.

Mr. HUBERT. Where?

Mr. CRAFARD. I believe it was out northeastern Texas, somewhere, Dallas, northeastern part of Dallas.

Mr. HUBERT. And you say Jack told you he had an interest in it?

Mr. CRAFARD. Jack said they were associated. He called him his partner all the time.

Mr. HUBERT. Did the man come on particular days of the week or just at random?

Mr. CRAFARD. No. Never knew when he was going to come.

Mr. HUBERT. Did you ever see Jack give him any money?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. Is it correct to state then that all you know about whether Paul was or was not an associate is what Jack told you?

Mr. CRAFARD. That is right.

Mr. HUBERT. You observed nothing of your own that would indicate that the man had some property interest in that club or some financial interest?

Mr. CRAFARD. Other than the fact that when he did come Jack and him would go into the office, almost every time he would come they would be in the office, from a half hour to 2 or 3 hours at a time talking.

Mr. HUBERT. But you didn't know about what?

Mr. CRAFARD. No, I didn't know about what.

Mr. GRIFFIN. Did Jack keep any books?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What kind of books did he keep?

Mr. CRAFARD. As far as I know it was just his receipts and regular tax, regular books, business books.

Mr. HUBERT. You mean ledgers?

Mr. CRAFARD. Yes.

Mr. HUBERT. Who made the entries in them?

Mr. CRAFARD. It was either Jack Ruby or Andrew. He had an accountant do all his bookkeeping.

Mr. HUBERT. Who was that?

Mr. CRAFARD. I don't remember who he was.

Mr. HUBERT. Did you see him?

Mr. CRAFARD. I believe he was over the place one time while I was there during the day.

Mr. HUBERT. But you don't know his name?

Mr. CRAFARD. No.

Mr. HUBERT. He asked for the books?

Mr. CRAFARD. Andy give him some papers.

Mr. HUBERT. Papers or books?

Mr. CRAFARD. Some of the receipts, bar receipts and door receipts.

Mr. GRIFFIN. Did you ever see Jack and Ralph Paul go over any books together?

Mr. CRAFARD. No. I just says whenever they was together like that they would be together in the office, the office door would be locked and they

would do talking. It was usually during when—during the evening when the club was in operation and I would be out front.

Mr. HUBERT. Do you know Eva Grant?

Mr. CRAFARD. Yes.

Mr. HUBERT. Who is she?

Mr. CRAFARD. She was Jack Ruby's sister.

Mr. HUBERT. How did you come to meet her?

Mr. CRAFARD. I first met her at the fairgrounds, Jack first introduced me at the fairgrounds and then later I met her at the club.

Mr. HUBERT. How often did you see her?

Mr. CRAFARD. I believe I saw Eva about four times.

Mr. HUBERT. Did you get to know her as a person?

Mr. CRAFARD. Not too well.

Mr. HUBERT. On those four occasions how long were you in her company?

Mr. CRAFARD. Just for a few minutes at a time.

Mr. HUBERT. Did she have any interest in Ruby's affairs?

Mr. CRAFARD. She managed the Vegas Club for Jack.

Mr. HUBERT. Did she have an interest in the Carousel so far as you know?

Mr. CRAFARD. So far as I know; no.

Mr. HUBERT. Jack never told you that she did?

Mr. CRAFARD. No; as far as I knew the Carousel Club was Jack's as far as I knew.

Mr. GRIFFIN. Can you give us a physical description of her, how tall was she, how heavy was she?

Mr. CRAFARD. She is an oldish woman, probably weighs maybe 130, 135 pounds, stands probably right around 5'6", I would say.



Mr. GRIFFIN. So she is not a heavy woman?

Mr. CRAFARD. Not exceptionally heavy, no. For her age she is a real nice-looking woman.

Mr. HUBERT. Do you know her age?

Mr. CRAFARD. How is that?

Mr. HUBERT. Do you know her age?

Mr. CRAFARD. No, but I believe she is Jack's older sister.

Mr. HUBERT. How did you get that information, from Jack?

Mr. CRAFARD. Well, from the way he talked. He had one older sister and a younger sister, and I met the family, the rest of his family at the trial and the other sister was younger than Jack, I knew that.

Mr. HUBERT. You have been to the Vegas, haven't you?

Mr. CRAFARD. Oh, yes; I was in the Vegas Club on several occasions.

Mr. HUBERT. You worked there?

Mr. CRAFARD. Two nights that I run the Vegas Club myself. One night I was the only one there. The next night I had a waitress there with me.

Mr. HUBERT. You stated that she was the manager of the Vegas Club for Jack?

Mr. CRAFARD. Yes.

Mr. HUBERT. How did you get that information?

Mr. CRAFARD. Jack said she was managing the club for him.

Mr. HUBERT. Were you there when she was there?

Mr. CRAFARD. I was there a couple of evenings after the Carousel Club closed we went over there to Vegas Club and she was there.

Mr. HUBERT. Do you know a man by the name of George Senator?

Mr. CRAFARD. Yes.

Mr. HUBERT. Who was he?

Mr. CRAFARD. He was a friend of Jack's he was with Jack quite often.

Mr. HUBERT. Well, how often?

Mr. CRAFARD. He would come into the club with Jack three or four times a week anyway.

Mr. HUBERT. You mean when they would come in at night or in the afternoon this man Senator would be with him?

Mr. CRAFARD. It would be maybe during the day or maybe in the evenings.

Mr. HUBERT. Can you give us a description of him?

Mr. CRAFARD. He is a kind of heavy-set fellow about 5'4", 5'5".

Mr. HUBERT. A very short man?

Mr. CRAFARD. Fairly short. Wasn't much taller than Jack. He probably would, I would say, probably would weigh about 180, 185.

Mr. HUBERT. Fat or husky?

Mr. CRAFARD. Kind of on the fat side.

Mr. HUBERT. Did he have a limp?

Mr. CRAFARD. I believe he did, I am not sure.

Mr. HUBERT. Do you know anything else about the relationship between him and Jack?

Mr. CRAFARD. I believe him and Jack, he was rooming with Jack, I believe.

Mr. HUBERT. Were you ever at Jack's apartment?

Mr. CRAFARD. I was over to Jack's apartment on two different occasions.

Mr. HUBERT. Did you see then any evidence that they were living together?

Mr. CRAFARD. The only thing I knew for certain when I was over there there was a two-bedroom apartment living room, kitchen and two bedrooms and he told me that one bedroom was George's room.

Mr. HUBERT. Ruby told you that?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you ever see George at the apartment?

Mr. CRAFARD. Not that I can recall.

Mr. HUBERT. You only went there twice?

Mr. CRAFARD. I believe I was there three times all told. I was there for a few minutes and then leave.

Mr. HUBERT. And you never saw Senator at the club—at the apartment?

Mr. CRAFARD. Not that I can recall.

Mr. HUBERT. Do you know if Senator had any financial interest in Jack's affairs?

Mr. Crafard. Not that I know of.

Mr. HUBERT. Did he work for Jack?

Mr. CRAFARD. I believe he was on the door a little bit, several times.

Mr. HUBERT. What does working on the door mean?

Mr. CRAFARD. He took the door price, he took the cover charge at the door.

Mr. HUBERT. How about a man named Bill DeMar, do you know him?

Mr. CRAFARD. Bill DeMar was a comedian.

Mr. HUBERT. Was he there when you were there?

Mr. CRAFARD. He came in while I was there, Jack hired him to come in.

Mr. HUBERT. How long did he stay?

Mr. CRAFARD. I think he was there yet when the club was closed, I believe.

Mr. HUBERT. What sort of a fellow was he?

Mr. CRAFARD. He was kind of an easygoing guy. Like most of your real good comedians, he was cracking a joke all the time.

Mr. HUBERT. Well, I gather from what you have told us about your life you can size these people up pretty well.

Mr. CRAFARD. I haven't only been wrong with my opinion once. I formed an opinion of a person with the first six or seven words they say and I have never been wrong in my life but once.

Mr. HUBERT. What do you think of Bill DeMar as to his truthfulness?

Mr. CRAFARD. He was a kind of a likable guy but to me he just didn't strike me, I didn't like him. I got along with him, I associated with him at the club but I wouldn't want to associate with him as a close friend.

Mr. HUBERT. What was there about him——

Mr. CRAFARD. He didn't strike me just right.

Mr. HUBERT. Do you think he is a fake?

Mr. CRAFARD. Well, I think 90 percent of him was fake, I would say. He was a fairly decent comedian but his way was "Big me and little you. I am everything and nobody else is anything," was the way he struck me.

Mr. HUBERT. He was there about how long?

Mr. CRAFARD. I believe he was there for about 2 weeks, I am not sure, between 2 and 3 weeks.

Mr. HUBERT. Did you ever get to converse with him?

Mr. CRAFARD. While he was there in the club I would speak with him, talk with him a little bit.

Mr. HUBERT. There was never any trouble between you, was there?

Mr. CRAFARD. No, there was never any trouble between us. I say he was an easy-going person.

Mr. HUBERT. Did you ever see Joyce McDonald around there, the girl you previously identified?

Mr. CRAFARD. Joy was working on the stage.

Mr. HUBERT. What was she doing?

Mr. CRAFARD. She was a stripper.

Mr. HUBERT. What was the relationship between her and Jack, do you know?

Mr. CRAFARD. That of boss and employee.

Mr. HUBERT. You never observed anything else?

Mr. CRAFARD. No, sir.

Mr. HUBERT. She was with him a lot, though, personally?

Mr. CRAFARD. She would talk with him around the club that I could see. She would talk with Jack.

Mr. HUBERT. Didn't she go out to dinner with him?

Mr. CRAFARD. To my knowledge, no.

Mr. HUBERT. Some time?

Mr. CRAFARD. She might have. I heard Jack make the remark at one time that he had been involved with every one of the girls that worked for him at one time.

Mr. HUBERT. You heard him say that?

Mr. CRAFARD. He made the remark to me because of one of the waitresses worked for him was a real sweet-looking girl and she had a real wonderful personality.

Mr. HUBERT. Who was that?

Mr. CRAFARD. Marge, that is the only name I know her by, I don't know her last name.

Mr. HUBERT. She was a stripper?

Mr. CRAFARD. She was a waitress.

Mr. HUBERT. So what about Marge?

Mr. CRAFARD. How is that?

Mr. HUBERT. What about Marge?

Mr. CRAFARD. I said something, going out with her or something and he made the statement that he had had a relationship with everyone of the girls who worked for him.

Mr. HUBERT. When you say relationship or when he said it, you did understand him to refer to sexual relationship?

Mr. CRAFARD. Sexual relationship.

Mr. HUBERT. There can be no doubt about that?

Mr. CRAFARD. No, sir.

Mr. HUBERT. What did you infer from that remark of his relative to the remark you had made about your interest in Marge?

Mr. CRAFARD. Well, it would—my remark had been on the sexual basis.

Mr. HUBERT. Well, did you regard that as sort of a consent on his part for you to go ahead?

Mr. CRAFARD. No. He didn't want me to go, to have anything to do with any of the girls that worked for him.

Mr. HUBERT. So that in effect he was telling you that he was the one who was to have the sexual relationships with the girls and not anyone else?

Mr. CRAFARD. That is about the effect of it.

Mr. HUBERT. Did he say it as clearly as that?

Mr. CRAFARD. No; he didn't say it in so many words, but just an implied statement.

Mr. HUBERT. That is the meaning you got out of that colloquy, is that right?

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. Can you tell us as best you can remember what the conversation was?

Mr. CRAFARD. I don't know. I said something about I would like to get ahold of that or something, and Jack said, he said, he had already gotten into it or something like that, and something said about his girls, and I said so far as I am concerned—at that time it was a little later after I went to work for him—I said, "As far as I am concerned you haven't got a stripper I am interested in," and he said, "I have had a relationship with every one of them."

Mr. GRIFFIN. Did you think Jack was puffing on that or did you believe him?

Mr. CRAFT. I don't know. As far as the strippers went I can very well believe that but the waitresses it was pretty hard to believe because little Marge, she ended up marrying a guy, and she was pretty stiff on him, and in fact, so much that I have tried everything I could to get her even to go out with me and she wouldn't do it. And the other girls didn't seem too much to me like the type that would do so.

Mr. HUBERT. You did have a girl you went out with you used to meet at the Eatwell?

Mr. CRAFT. One of the girls who worked for Jack.

Mr. GRIFFIN. What was her name?

Mr. CRAFT. She went to work for him later, I can't even remember her name now. The only one of the bunch I can remember, there were three girls there roomed together, the only one I can remember is Norma, and I first got acquainted with her was over the telephone and we had quite a conversation, and we became rather friendly over the telephone and when we met we was fairly friendly.

Mr. HUBERT. Did she work for Jack?

Mr. CRAFT. No; Jack tried to get her to work as a stripper which he would do with every female, every nice-looking girl, that he met. She would have nothing to do with it.

Mr. HUBERT. So you had this conversation with her on the telephone? Did you get to meet her?

Mr. CRAFT. I met her at the club; yes. I met her in person and then I got to know her fairly well. We was together several times.

Mr. HUBERT. You mean on private dates?

Mr. CRAFT. Well, it would be her and these other two girls. I was with the other girl mostly, and we would go over together and three of us sit together while we eat, and I would walk the girls home, something like that. They would come to the club and the club would close and I would walk this other girl home.

Mr. HUBERT. In other words, there were two girls who worked for the club?

Mr. CRAFARD. No; only one worked for the club.

Mr. HUBERT. Which one was that, it was not Norma?

Mr. CRAFARD. Norma——

Mr. HUBERT. What was her name?

Mr. CRAFARD. I can't remember that girl's name. I can't remember the girl's name. She was a woman of about 29 years old, she had a real nice personality and was a wonderful person to talk to, all it was, just nice person to talk to and relax and just have an enjoyable time away from the club.

Mr. HUBERT. That was the one who was the waitress?

Mr. CRAFARD. Yes, sir; she was a cocktail waitress at the club. I knew her and her one girl friend were from back east somewhere and I met Norma back at the club.

Mr. HUBERT. Had Norma ever worked for the club?

Mr. CRAFARD. No. Jack was trying to get her to work for the club, was trying to get her to work as a stripper.

Mr. GRIFFIN. Is Norma the girl you dated or saw quite a bit of?

Mr. CRAFARD. I saw her on two or three occasions before this other girl went to work for Jack.

Mr. GRIFFIN. And Norma is not a native of Dallas?

Mr. CRAFARD. She is a native of the Dallas area. Her home is about 20 miles north of Dallas, Carrollton, Tex.

Mr. HUBERT. Did you ever go out there?

Mr. CRAFARD. No; I never went out there.

Mr. HUBERT. How did you know it was out there? How did you find out?

Mr. CRAFARD. She give me her address, address and phone number.

Mr. GRIFFIN. Did you have that in the book you maintained for Jack?



Mr. CRAFARD. That was the reason for getting the phone and address. She called and inquired for a job, and I got her address and phone number which I do with all girls who come for a job.

Mr. GRIFFIN. How do you know Jack tried to get her to be a stripper?

Mr. CRAFARD. He had her at the club on several occasions talking her into being a stripper. He got her a job with Ralph Paul and he give her clothes and he gave her money and I went over with her to one store where to buy clothes.

Mr. GRIFFIN. Jack bought her the clothes?

Mr. CRAFARD. He give me the money to buy the clothes.

Mr. HUBERT. How much was the amount?

Mr. CRAFARD. \$10 bill, I believe, at that time. Two or three times he bought clothes for the girl.

Mr. GRIFFIN. Ten dollar bill?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. She couldn't buy much with a \$10 bill.

Mr. CRAFARD. She needed certain kinds of clothes, slacks and a blouse to work in when she went to work for Ralph Paul.

Mr. GRIFFIN. Do you know what work she had been doing before she came to work for Paul?

Mr. CRAFARD. No; all I know she had been on several occasions in the club with Jack. They were pretty thick for a while, and then something happened between them to where she wouldn't have anything to do with Jack.

Mr. HUBERT. But you don't know what it was that happened?

Mr. CRAFARD. No, sir; I have no definite knowledge.

Mr. GRIFFIN. Do you have some idea?

Mr. CRAFARD. I have an opinion; yes.

Mr. GRIFFIN. Can you give us an idea?

Mr. CRAFT. He was making a big play for her, and my opinion is he got out of hand and she put a stop to it.

Mr. GRIFFIN. Was there anything else said by someone else that led you to believe it?

Mr. CRAFT. Mostly she referred to it. She inferred it happened.

Mr. GRIFFIN. What would be getting out of hand in that situation, would it be simply Jack wanting to go to bed with her or would it be some unusual kind of sexual relations?

Mr. CRAFT. No; I would say wanting to go to bed with her as far as my knowledge. From what I knew of Norma she was a pretty decent girl. She was a little wild but she was a fairly decent girl.

Mr. GRIFFIN. How old a girl would you say she was?

Mr. CRAFT. I believe Norma was 18. She was a very friendly person, easy to like.

Mr. HUBERT. Did you have a girl who worked at the Eatwell Restaurant that you dated?

Mr. CRAFT. No, sir.

Mr. HUBERT. But you did go to the Eatwell Restaurant on Main Street, I think it was?

Mr. CRAFT. It was on Commerce.

Mr. HUBERT. Commerce.

Mr. CRAFT. I went there most of the time for my meals. It was, meals were cheap, nice place to go to, it was close, and I sat around there and joked with the girls and the one guy who worked in there I got acquainted with him a little bit.

Mr. HUBERT. How many girls in the club went there?

Mr. CRAFT. I don't believe the girls in the club went there to eat often.

Mr. HUBERT. Do you know a man by the name of Huey Reeves?

Mr. CRAFT. The name isn't familiar to me.

Mr. HUBERT. Would it help you if I suggested that he worked at the Nichol's Garage next door?

Mr. CRAFARD. That would be the colored boy, I believe.

Mr. HUBERT. No; this was a white man.

Mr. CRAFARD. On a couple of occasions I sat in there and talked to him a couple of nights. We would sit in there and talk, maybe have a beer or two.

Mr. HUBERT. Beer or two where? At the Eatwell?

Mr. CRAFARD. No; the garage. In the office.

Mr. HUBERT. While you were there, who do you think were Ruby's best friends other than his business acquaintances?

Mr. CRAFARD. Oh, man, the man I seen him with mostly was Senator, that I know of him being was Senator, and Ralph Paul.

Mr. HUBERT. What about girl friends?

Mr. CRAFARD. He had one girl, I believe her name was Linda or something, she was a blond, she was a real nice looking girl that he went with quite a few times.

Mr. HUBERT. Was she a stripper?

Mr. CRAFARD. No; she didn't work for him.

Mr. HUBERT. You don't know her first name?

Mr. CRAFARD. I am not positive of her name. I don't recall her name. Names is something to me that doesn't mean much. I meet so many people.

Mr. GRIFFIN. Do you remember the two fellows who ran the Eatwell Restaurant?

Mr. CRAFARD. Not too well.

Mr. GRIFFIN. Were there a couple of older men?

Mr. CRAFARD. One older man that worked behind the counter in the evenings.

Mr. GRIFFIN. Did Jack also eat at the Eatwell?

Mr. CRAFARD. He didn't eat there when I was there with him, after I went to work for him. I understood the guy knew Jack real well, in fact he got in the habit of calling me Jack Ruby, Jr., or Little Ruby, in a kind of teasing manner. He was a very friendly person.

Mr. GRIFFIN. Was that the older man?

Mr. CRAFARD. He was an older man; I believe the oldest man that I saw there.

Mr. GRIFFIN. You don't recall his name, first name, do you?

Mr. CRAFARD. No; I don't recall his first name.

Mr. GRIFFIN. Was one of the fellows in there called Jimmy, that you recall?

Mr. CRAFARD. Not that I recall. There is one of those messes of pictures I would like to get hold of. There is one side of them I would just as soon get ahold of and tear up.

(Brief recess.)

Mr. HUBERT. You previously mentioned that there was a girl that Jack went out with socially.

Mr. CRAFARD. Yes.

Mr. HUBERT. Did I understand you correctly that you said she did not work at the club?

Mr. CRAFARD. That is right.

Mr. HUBERT. How often did he go out with her, to your knowledge?

Mr. CRAFARD. I don't know how often. It was quite often.

Mr. HUBERT. How would it come to your attention that he was going out with her?

Mr. CRAFARD. Well, usually he would bring her in to the club with him before they would go, and after his club closed he would take her out to dinner.

Mr. HUBERT. Did you go out to dinner with them?

Mr. CRAFARD. On one occasion, I was at the Vegas, we went over to the Vegas Club, and then the three of us went afterwards and had dinner.

Mr. HUBERT. How do you know other than that one occasion when he went out with her that he took her to dinner?

Mr. CRAFARD. He would say that they was going to be taking her out to dinner.

Mr. HUBERT. Did you ever see her at his apartment?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Did he ever indicate in any way that she did go to his apartment?

Mr. CRAFARD. No, sir; not to my knowledge.

Mr. HUBERT. I am going to show you what I am marking five photographs on which I am writing as follows: "Washington, D.C., April 8, 1964, Exhibit 5200-A, Deposition of C. L. Crafard." And I am signing my name below there. On the next picture I am also marking, "Washington, D.C., April 8, 1964, Exhibit 5200-B, Deposition of C. L. Crafard," and I am placing my name below that. The third picture I am marking "Washington, D.C., April 8, 1964, Exhibit 5200-C, Deposition of C. L. Crafard," and signing my name below that. On the fourth picture I am marking "Washington, D.C., April 8, 1964, Exhibit 5200-D, Deposition of C. L. Crafard," and marking my name down on that; and on the fifth picture I am marking "Washington, D.C., April 8, 1964, Exhibit 5200-E, Deposition of C. L. Crafard" and signing my name.

(The pictures referred to were marked Exhibits Nos. 5200-A through E for identification.)

Mr. HUBERT. Now, I ask you to look at the pictures which have been marked for identification as follows: Exhibits 5200-A, 5200-B, 5200-C, 5200-D, and 5200-E, and I ask you if in any one or all of those pictures you can see the girl we have just been talking about, to wit, the girl that Jack took out to dinner and otherwise met socially?

Mr. CRAFARD. Her picture is in every one.

Mr. HUBERT. Her picture is in every one?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Can you identify the one that you are talking about by referring to her dress?

Mr. CRAFARD. In Exhibit A it would be the middle girl wearing a red and white striped dress.

Mr. HUBERT. Do you remember if it was red and white?

Mr. CRAFARD. No; I don't remember the color, but it seems to me it would be a stripe, something that people would wear.

Mr. HUBERT. Well, do you remember ever seeing that girl in a red and white dress similar to that dress?

Mr. CRAFARD. I believe she was in the club one time with a red and white checkered dress on.

Mr. HUBERT. Not stripes like that?

Mr. CRAFARD. No. It was a softer——

Mr. HUBERT. So your remark that it was red and white was inadvertent, or do you really have any recollection?

Mr. CRAFARD. It would be an inadvertent remark.

Mr. HUBERT. All right. Go on to the next picture and call off the identification mark when you speak of it.

Mr. CRAFARD. Exhibit B, it would be the girl in the middle in the striped dress.

Mr. HUBERT. Yes.

Mr. CRAFARD. In Exhibit C it would be the girl behind Ruby looking over his shoulder in the striped dress. Exhibit D it would be the girl behind Ruby looking over his shoulder with the striped dress. Exhibit E would be the girl in the middle with the striped dress.

Mr. HUBERT. Do you recognize Ruby in all of these pictures, too?

Mr. CRAFARD. Yes; I do.

Mr. HUBERT. Who is the other girl?

Mr. CRAFARD. The other girl was one of the strippers in his club.

Mr. HUBERT. What was her name?

Mr. CRAFARD. I believe it is Tammi True.

Mr. HUBERT. That girl you have identified in all those pictures as having the striped dress, that is the girl you are talking about whom Ruby used to take out socially?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. And you don't know her name?

Mr. CRAFARD. Could I say that other girl is Kathy Kay, I am definite of that after looking at her picture closer.

Mr. HUBERT. The blond girl is Kathy Kay?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. So you want to change your opinion expressed a moment ago that it was Tammi True, is that correct?

Mr. CRAFARD. Yes.

Mr. HUBERT. Prior to the taking of this segment of the deposition dealing with the identification of these photos, I think you had looked at at least one of these photos and could not recognize the girl that you have now recognized as being the companion of Ruby.

Mr. CRAFARD. Yes.

Mr. HUBERT. As being such. Then later you have come to the conclusion that it is the girl. Can you tell us why you have now come to the conclusion that it is the same girl?

Mr. CRAFARD. After looking at the whole group of pictures and the different angles of her head where you can see her features better, I came to the conclusion that is the girl.

Mr. HUBERT. In other words, when you first expressed doubt as to whether it was, you were looking at one picture only?

Mr. CRAFARD. Yes.

Mr. HUBERT. And after having looked at all of those pictures, that is to say five of them as identified, you now are positive that that is the girl?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. I understand you to say you had at least one occasion on which you actually had dinner with Jack and this girl is that correct?

Mr. CRAFARD. That is right.

Mr. HUBERT. Would it be fair to say you were in her company therefore and could see her at close range for a period of at least an hour on that occasion?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. But you don't know who she is?

Mr. CRAFARD. I cannot recall her name, sir.

Mr. HUBERT. I wish you would give some thought to what her name is before you leave so perhaps we can——

Mr. GRIFFIN. Did you ever have occasion to write her name down any place for Jack?

Mr. CRAFARD. I believe her name was wrote down, I believe her name was wrote down in the notebook.

Mr. GRIFFIN. In the little notebook you were keeping for him?

Mr. CRAFARD. Yes; I am not sure.

Mr. HUBERT. All right. Now, what other friends did you note that Ruby had? You mentioned George Senator, and you have mentioned this girl who was in the striped dress in the Exhibits 5200-A, -B, -C, -D, and -E. Who else do you know?

Mr. CRAFARD. Ralph Paul.

Mr. HUBERT. I think you have told us something about him.

Mr. CRAFARD. Yes.

Mr. HUBERT. Who else?



Mr. CRAFARD. There was a couple of the comedians from some of the other clubs that came up to the club quite often.

Mr. HUBERT. Who were they?

Mr. CRAFARD. I wouldn't know their names.

Mr. HUBERT. Were there any others than those you have already mentioned?

Mr. CRAFARD. Not that I can name; no, sir.

Mr. HUBERT. How long were you at the club from the time you first went there until the time you left?

Mr. CRAFARD. Approximately 6 weeks to a month or 2 months.

Mr. HUBERT. Did you ever see any members of the Dallas police force there?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Tell us something about that.

Mr. CRAFARD. Well, the uniformed patrolman would come up every once in awhile in the evening and have coffee on the club.

Mr. HUBERT. When you say on the club, you mean without paying for it?

Mr. CRAFARD. That is right.

Mr. HUBERT. How do you know that?

Mr. CRAFARD. I on several occasions—I on several occasions served the coffee for them.

Mr. HUBERT. Normally you would collect for that?

Mr. CRAFARD. No, sir.

Mr. HUBERT. I mean normally you would collect from another patron.

Mr. CRAFARD. Yes.

Mr. HUBERT. But you didn't collect from the police?

Mr. CRAFARD. No.

Mr. HUBERT. Why?

Mr. CRAFARD. Jack told me to go ahead and they could have coffee whenever they wanted.

Mr. HUBERT. In other words, you did not ask any money for the coffee because you had been instructed not to by Jack?

Mr. CRAFARD. The girls had told me that they was allowed to do so.

Mr. HUBERT. Do you remember which girl?

Mr. CRAFARD. The waitresses.

Mr. HUBERT. The waitresses?

Mr. CRAFARD. Yes.

Mr. HUBERT. Jack never did mention the subject to you?

Mr. CRAFARD. The only thing he ever mentioned was that the policemen went off duty, would come in there when they were off duty, got their drinks at a cut price.

Mr. HUBERT. What was the cut price?

Mr. CRAFARD. The normal price was 60 cents, and they got them for 40 cents.

Mr. HUBERT. That you say is when they were off duty?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did he give you any instructions as to what the price was to be when they came in on duty?

Mr. CRAFARD. There was no charge for the coffee, and none would drink anything other than coffee, to my knowledge, when they were on duty or maybe a Coke or—a glass of Coke or a glass of 7-Up.

Mr. HUBERT. How did they identify themselves when they were off duty so that they got the cut rate?

Mr. CRAFARD. Well, most of them when they come in there, when they come to the door they got in the door free so they showed a card at the door, their identification at the door. And then it usually would be at the bar, the girls knew most of them that did come in there when they were off duty.

Evidently I took it that Jack had introduced them as officers, and we had occasion one night to serve one of the gentlemen, we was talking, and one of the girls when I took over the bar from Andy, he had to leave early, and he told me this gentleman was a police officer. He said he only charged him 40 cents. So I had occasion to talk with them.

Mr. HUBERT. Did you get to know any by sight?

Mr. CRAFARD. No; not that I could—just when he walked in the door and say he was a police officer.

Mr. HUBERT. Did you know any by name?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Did you see any of those policemen at the Ruby trial?

Mr. CRAFARD. I don't recall it, sir.

Mr. GRIFFIN. How many different policemen would you say came in to Ruby's place during the period you were there?

Mr. CRAFARD. When they were off duty, to my knowledge, there was only about 4 or 5 of them would come in there, off duty, and it was usually the same ones that were on duty that would come in to have coffee, patrolmen. The others were usually plainclothesmen, detectives.

Mr. GRIFFIN. Do you know what bureau any of them were attached to?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Do you know whether there were any of them attached to the juvenile bureau?

Mr. CRAFARD. No; not definitely.

Mr. GRIFFIN. You have some thought that they were?

Mr. CRAFARD. You mentioned the juvenile bureau, it seems to me there was something mentioned about one of them being from the juvenile bureau or something.

Mr. GRIFFIN. Is this something you read in the paper, or something that was mentioned at the club.

Mr. CRAFARD. No, something that was mentioned at the club.

Mr. HUBERT. Did Ruby follow a pretty close routine of life insofar as his activities were concerned?

Mr. CRAFARD. For him, yes. His routine was for myself, or for any ordinary businessmen that I have known, any businessmen that I have known, would have been a real rough, hurry-scurry routine.

Mr. HUBERT. Well, let's take it timewise. For instance, you say he usually called you in the morning. Was that pretty routine?

Mr. CRAFARD. No; that varied.

Mr. HUBERT. And I think you said that he came in usually sometime before noon.

Mr. CRAFARD. Yes.

Mr. HUBERT. Was that pretty regular?

Mr. CRAFARD. Most of the time he would be in before noon, between 10:30 and 12 o'clock.

Mr. HUBERT. Then what would he do with the rest of the day?

Mr. CRAFARD. Well, he would be around the club for maybe anywhere from a half hour to 2 hours, then he would leave the club and I might not see him again until midnight.

Mr. HUBERT. And then he stayed until the club closed?

Air. Crafard. When he came back to the club after the club opened he generally stayed until the club closed. On three or four occasions he stayed until the club closed and then he went over to the Vegas Club.

Mr. HUBERT. Normally what would he do?

Mr. CRAFARD. He would go over to the Vegas Club and pick up the receipts for the day.

Mr. HUBERT. And then what?

Mr. CRAFARD. As far as I know, go home maybe stop for a bite to eat.

Mr. GRIFFIN. What would he do with the receipts?

Mr. CRAFARD. He would carry them home with him and the next day bring them back to the Carousel.

Mr. GRIFFIN. Did he have a safe?

Mr. CRAFARD. No, sir; he bought a safe while I was with him.

Mr. GRIFFIN. When was that?

Mr. CRAFARD. It was about 2 weeks prior to the assassination of President Kennedy.

Mr. GRIFFIN. How did he happen to come to buy that safe?

Mr. CRAFARD. Well, he was always carrying quite a bit of cash and he was always worried about having somebody rob him or something, and I guess he wanted, he finally made up his mind to buy a safe and he went down to buy a safe.

Mr. GRIFFIN. Were you with him?

Mr. CRAFARD. Yes, sir; I was with him when he purchased the safe.

Mr. GRIFFIN. Do you recall where he went?

Mr. CRAFARD. I don't recall the name of the company.

Mr. GRIFFIN. Whereabouts was it located?

Mr. CRAFARD. Let's see, it was a block and a half right straight behind the Carousel Club, but I can't recall the name of the street.

Mr. GRIFFIN. It would have been on Field?

Mr. CRAFARD. No, Commerce—Field is next to Commerce, I believe.

Mr. GRIFFIN. Yes.

Mr. CRAFARD. It was the next block back.

Mr. GRIFFIN. Was it a——

Mr. CRAFARD. It was a furniture, office furniture supply house.

Mr. GRIFFIN. I see. Now, how big a safe was it that he bought?

Mr. CRAFARD. It was a wall safe, a floor safe.

Mr. GRIFFIN. About how high would you say that it stood off the floor?

Mr. CRAFARD. About 18 inches tall. The common type that is poured in the cement in the floor.

Mr. GRIFFIN. Was this poured in the cement?

Mr. CRAFT. No, sir.

Mr. GRIFFIN. Could somebody, if somebody had broken into the building, could they have carried this safe away?

Mr. CRAFT. Yes, sir. The safe was in his office and the office was always locked and I was there all the time.

Mr. GRIFFIN. But when you weren't there, if somebody had gotten into the building, and had broken into the office, why they could have carried this out?

Mr. CRAFT. Yes, sir; they could have carried this out.

Mr. HUBERT. Did you have the combination of the safe?

Mr. CRAFT. No, sir; Mr. Ruby and Andy was the only ones who had the combination.

Mr. GRIFFIN. After he bought this safe did he use it to keep his money in?

Mr. CRAFT. To my knowledge he only used it for the night receipts from the Carousel Club and Andy when he checked out if Jack wasn't there, the safe had a compartment in the bottom they claimed was a burglarproof compartment in the bottom, had an envelope slot in it and he, would drop an envelope with the money in it.

Mr. GRIFFIN. What would be done with the money at the end of the night? What would he do with the money?

Mr. CRAFT. The next day Jack would take the money out and count it up.

Mr. GRIFFIN. What would he do with it?

Mr. CRAFT. He would put it in his pocket and go to the bank.

Mr. GRIFFIN. Did he bank some place?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. Where did he bank?

Mr. CRAFT. I believe, it was the First National, but I am not positive of that.

Mr. GRIFFIN. Did you actually go with him to the bank when he——

Mr. CRAFT. No, sir; not when he was banking the deposits.

Mr. GRIFFIN. At the end of, on a typical week night, about how much money would he have left, would he have at the end of the night?

Mr. CRAFT. Oh, a typical night would maybe be anywhere from a \$100 to \$500 or \$600.

Mr. GRIFFIN. Of course, he had more business on the weekends than he had during the week, didn't he?

Mr. CRAFT. Usually; yes.

Mr. GRIFFIN. Just taking the nights Monday through Thursday, how much would he typically have on one of those nights?

Mr. CRAFT. Between \$100 and \$300, I would say.

Mr. HUBERT. That is gross, isn't it?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. On a weekend night, on a Friday, Saturday or Sunday night how much would he take in?

Mr. CRAFT. Anywhere from \$100 to maybe \$1,000. Depending on the type of what was doing there.

Mr. GRIFFIN. Were you there any nights that he took in \$1,000?

Mr. CRAFT. The most I have ever known him to take in was one weekend, Friday and Saturday night, I believe it was \$1,400 for the 2 nights.

Mr. GRIFFIN. How did you happen to know that?

Mr. CRAFT. I would usually be around when they counted the money up, and that weekend, I believe Sunday we was talking and Andy said something about that is the most money they took in any weekend for the last year or something like that.

Mr. GRIFFIN. Did he deal with any particular distributor of beer?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. What was the company that——

Mr. CRAFT. He dealt with the different companies, one being the Pearl Beer, each different brand of beer had different distributors.

Mr. GRIFFIN. Had its own distributors?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. How about liquor, did he buy hard liquor?

Mr. CRAFT. No, there was no hard liquor sold in the club.

Mr. GRIFFIN. So his only purchases were beer?

Mr. CRAFT. Beer, coke and champagne.

Mr. GRIFFIN. Who did he buy that from?

Mr. CRAFT. Most of that was bought to my knowledge from the liquor store on the corner. I believe it was Segalis.

Mr. GRIFFIN. How much champagne would he stock any one time?

Mr. CRAFT. When he bought champagne he would usually buy a case of 12 bottles and it would usually average about two cases a week.

Mr. GRIFFIN. Now, did they serve food?

Mr. CRAFT. The only food we served was pizzas.

Mr. GRIFFIN. Was pizzas?

Mr. CRAFT. Pizzas.

Mr. GRIFFIN. Were those made at the Carousel or were they sent out from those——

Mr. CRAFT. We got those from Palumbo's Pizza House. All you had to do was stick them in a warmer and warm them up.

Mr. GRIFFIN. So his only expenses—tell me if you can think of any other expenses besides the one I recite here. He had the expenses of his entertainers, he had expenses for you and Andy Armstrong, he had rent and heat and light, and he had beer and pizza. Did he have any other expenses that you can think of?



Mr. CRAFT. Not that I would say would be Carousel business expenses, no. He had a lot of sinking money into things all the time.

Mr. GRIFFIN. What sort of things were those?

Mr. CRAFT. Well, he was putting quite a bit of money into this twist board exerciser that he was promoting.

Mr. GRIFFIN. Did he have any other promotions besides the twist board while you were with him?

Mr. CRAFT. Not that I recall. He would buy records and he had to buy flashbulbs and film for the camera. He took Polaroid pictures every night, three of them each night.

Mr. GRIFFIN. Three Polaroid pictures each night?

Mr. CRAFT. Yes; we had one girl who was, I believe it was Tammi True, would get on the stage and she would get a guy up there with her on the stage and take a picture of them and give the picture of the man, that was the only photograph taken and that would go right to the man.

Mr. GRIFFIN. Well, what other business, you say he was always sinking money into things.

Mr. CRAFT. Well, he had the Vegas Club and from what I understand he was taking money from the Vegas Club to keep the Carousel Club from what I understood which I never could figure out.

Mr. GRIFFIN. Why couldn't you figure that out?

Mr. CRAFT. Well, we always made enough to clear our bills, the Carousel made enough to clear the bills.

Mr. GRIFFIN. By the bills you include the salaries of the entertainers?

Mr. CRAFT. Most of that, yes. He was paying pretty good salaries. These girls got anywhere from \$300 to \$400, maybe \$400, \$500 a week for their entertaining.

Mr. GRIFFIN. They all didn't get that much.

Mr. CRAFT. The entertainers, got anywhere from \$300 to \$500, \$600 average, different.

Mr. GRIFFIN. Was that just the featured stripper or was that each stripper?

Mr. CRAFARD. Jada was there, I believe, she was drawing \$700 a month and the other girls I think was drawing between \$300 and \$500, somewhere between \$300 and \$500.

Mr. GRIFFIN. A month?

Mr. CRAFARD. A month.

Mr. GRIFFIN. A month. How about "Little" Lynn when she came to work there, was she getting paid the same as the rest of them?

Mr. CRAFARD. I believe so, I am not sure. I don't know what her wages were, I am not sure, positive about it.

Mr. GRIFFIN. Other than the twist boards and the Carousel and the Vegas Club what other things was Jack putting money into?

Mr. CRAFARD. To my knowledge that is all he had. He never seemed to have any. He always claimed he was going broke all the time.

Mr. GRIFFIN. Was he actually selling these twist boards?

Mr. CRAFARD. He had never had made any sales while I was with him.

Mr. HUBERT. Before you get into this, let me finish up this financial operation. I don't think you have mentioned what the waitresses got.

Mr. CRAFARD. The waitresses worked on tips.

Mr. HUBERT. Purely? There was no expense in connection with that?

Mr. CRAFARD. To my knowledge, no.

Mr. HUBERT. Do you know if Armstrong got any salary?

Mr. CRAFARD. He got a salary.

Mr. HUBERT. How much was it?

Mr. CRAFARD. I am not sure. I think he was drawing about \$300 a month, I am not sure.

Mr. HUBERT. Then there was a man Howard, the maintenance man.

Mr. CRAFT. Howard just got paid, whenever he worked he would get paid, I think a dollar an hour. He didn't work all the time. He might only get 4 or 5 hours a week.

Mr. GRIFFIN. How much would you estimate in a typical week Ruby took in?

Mr. CRAFT. In a typical week it would be anywhere from one to three thousand.

Mr. GRIFFIN. Do you know where these twist boards were manufactured?

Mr. CRAFT. They were manufactured in Houston—Fort Worth, I mean.

Mr. GRIFFIN. What was the name of the company?

Mr. CRAFT. I don't recall the name of the company. I had it wrote down in my notebook but I don't recall the name of it.

Mr. GRIFFIN. Do you remember the name of a company called Plastolite Engineering?

Mr. CRAFT. I remember something about it.

Mr. GRIFFIN. But that wasn't the name of the company that was manufacturing the twist boards?

Mr. CRAFT. It might have been, I am not sure.

Mr. GRIFFIN. How was Jack trying to sell these twist boards?

Mr. CRAFT. Like I say, he promoted them out at the fair—State Fair, and he had a couple of different stores promoting them, and he had——

Mr. GRIFFIN. You mean they would be on display some place?

Mr. CRAFT. Yes. And there was some set up, where some of the strippers went out to one place and done the twist on these twist exercisers.

Mr. GRIFFIN. But to your knowledge he never made a sale on one?

Mr. CRAFT. Not to my knowledge.

Mr. GRIFFIN. How much would one cost, if you wanted to buy it?

Mr. CRAFT. The way he was selling them I believe it was two something. They were selling them in Texas but it was Penney's, I believe it was Penney's store was selling them.

Mr. GRIFFIN. In Texas, you mean in Dallas?

Mr. CRAFT. In Dallas. They were selling them for \$3.95 apiece, I think it was and he was selling his for \$2.95 apiece.

Mr. GRIFFIN. Did Jack have anybody else associated with him in these twist boards?

Mr. CRAFT. He was trying to get his one brother to do something with them, and I believe it was in Chicago.

Mr. GRIFFIN. That would have been Hyman?

Mr. CRAFT. How is that?

Mr. GRIFFIN. That would have been Hyman in Chicago?

Mr. CRAFT. I believe it was "Hy," yes.

Mr. GRIFFIN. How do you know he was trying to get "Hy" interested in it?

Mr. CRAFT. He had me send some to him.

Mr. HUBERT. I gather from what you have testified to that you have been around carnivals and you have met a lot of people, and also I think you said that you form an impression of an individual pretty quickly and have found in your own experience you have only been wrong once, I think.

Mr. CRAFT. I have been wrong twice that I can recall.

Mr. HUBERT. I would like you to tell us what your impression was of Ruby, and if you can, give us some factual examples and reasons, you know.

Mr. CRAFT. Well, first he was a kind of a likable person. He was kind of impressable. I mean he impressed me somewhat. I had one instant feeling, I can't recollect, more or less the way he talked and his actions that the man might be somewhat queer.

Mr. HUBERT. When you say "queer" you mean what?

Mr. CRAFARD. As the general usage of the term.

Mr. HUBERT. You mean homosexual?

Mr. CRAFARD. Yes.

Mr. HUBERT. What caused you to feel that?

Mr. CRAFARD. The way he talked and his general action.

Mr. HUBERT. Was he effeminate in his method of speaking?

Mr. CRAFARD. More or less.

Mr. HUBERT. Did he have a lisp?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. What other physical actions that you observed that you think support or supported your view that he might be homosexual?

Mr. CRAFARD. Well, mostly just the way he talked and mostly the way he walked.

Mr. HUBERT. Did he have any activity——

Mr. CRAFARD. When I first met him.

Mr. HUBERT. Did he have any activity with his hands or walk or dress?

Mr. CRAFARD. That is it, the way a person walks or moves or uses his hands, involve the appearance of this type of person which I have been in contact with quite a few of them in the type of things I have been doing.

Mr. HUBERT. So the overall impression that you had from his speech and from his movement of hands and his walk gave you the impression that he would fit into the category of people who in your experience were homosexuals?

Mr. CRAFARD. That is right.

Mr. HUBERT. Did you have occasion to change that view?

Mr. CRAFARD. Oh, at the same time I kind of liked him, and I never really went as far as changing that opinion I never really changed it although he had never made any overtures toward me.

Mr. HUBERT. Did you see him make any overtures toward any man?

Mr. CRAFARD. Not to my knowledge, not that I ever saw.

Mr. HUBERT. You heard about some, I suppose?

Mr. CRAFARD. No; I didn't. I never heard about any cases where he had.

Mr. HUBERT. Did you hear people express the view that he was homosexual?

Mr. CRAFARD. Not people that I met after I went to work for him. But this friend of mine that met him the same night I did, him and I were pretty well agreed on the subject that he seemed to be quite that type.

Mr. HUBERT. What was the name of that friend?

Mr. CRAFARD. I don't even remember his name. He was a carnival worker, he worked at the carnival.

Mr. HUBERT. It was not one of the owners?

Mr. CRAFARD. Just a worker.

Mr. HUBERT. And he was not homosexual himself?

Mr. CRAFARD. No, sir; he was a pretty straight kid.

Mr. HUBERT. How do you square that off, that opinion of him, with the fact that he was going out with a girl that you have identified in that Exhibit 5200 A, B, C, D, and E?

Mr. CRAFARD. I have known several people of this type that were married and had families.

Mr. HUBERT. In other words, you didn't think that was inconsistent with your former view, your earlier view?

Mr. CRAFARD. No; as far as being inconsistent with my knowledge of that type of person it isn't.

Mr. HUBERT. Is it fair to say that your original impression of Ruby that he might be homosexual still persists to this day?

Mr. CRAFARD. That is right. Although he was a likable person and I liked him, and I have got one opinion, I don't care, I know for sure if a man is that way if he leaves me alone I can get along fine with him.

Mr. GRIFFIN. Did he have any friends or acquaintances whom you also thought were homosexuals?

Mr. CRAFARD. Yes; he did.

Mr. GRIFFIN. Which would those people be?

Mr. CRAFARD. George Senator, for one. He was the only one of his friends that I met that I really felt that way about.

Mr. GRIFFIN. Would you describe Senator so that we can understand why you felt he was a homosexual?

Mr. CRAFARD. More or less from the way he talked more than anything. It is kind of hard for me to explain it because I haven't got the education to use the words.

Mr. GRIFFIN. We don't want it—we, the only reason we are taking it this way is because we don't want to put words in your mouth.

Mr. CRAFARD. Well, mostly because of the way he talked, his actions.

Mr. GRIFFIN. Well now, when you went into Jack's apartment, did you see anything in that apartment which would lead you to think that he and George were having homosexual relationships?

Mr. CRAFARD. No; just general bachelor apartment more than anything.

Mr. GRIFFIN. Did you notice that one of the beds had been slept in and the other hadn't, for example?

Mr. CRAFARD. I only saw the bed in Jack's room. The other bedroom the door was closed.

Mr. GRIFFIN. Did Senator have feminine mannerisms?

Mr. CRAFARD. Mostly in his speech, at times. It wasn't all the time but at times he would have the mannerisms in his speech, the way he uses his hands.

Mr. GRIFFIN. Was he giggling or what sort of manners?

Mr. CRAFARD. Oh, a lot about the way he laughed. He would get to talking about different things and the way his voice would sound more than anything.

Mr. GRIFFIN. How about the topics that you heard Jack and Senator talk about. Was there anything about the subjects of conversation that they had which would indicate that they were homosexual or had some sort of——

Mr. CRAFARD. No. The only thing I could say along that line was that they was always together, they were together an awful lot.

Mr. GRIFFIN. All right. Were you able to tell from their relationship whether one of them was performing services for the other whether in the maintenance of the household, for example, one of them was assuming responsibilities or the other wasn't or taking care of clothes or things like that?

Mr. CRAFARD. Well, most of the cooking Jack done 90 percent, most of the cooking that was done in the apartment to my knowledge was done by Jack.

Mr. HUBERT. How do you know that?

Mr. CRAFARD. Well, on a couple of occasions Senator—Jack was billing Senator out because he had cooked something that he shouldn't have cooked or something, that—and it was something he didn't do very often was cook. I can't remember the name, what, everything what was said or everything. But it was to the fact that he didn't cook anything around the place and when he did cook it, the few times he did cook he would cook it wrong or something.

Mr. HUBERT. And you heard that from having heard Jack remonstrate with him?

Mr. CRAFARD. Yes.

Mr. HUBERT. Is it fair to state that except for the specific examples you have given here your impression of both these men, Ruby and Senator concerning their homosexual tendencies, is based upon your experience with other people of that same type.

Mr. CRAFARD. That is right.

Mr. HUBERT. Have you any other specifics to mention?

Mr. CRAFARD. That would be about the only thing I could think of.



Mr. HUBERT. What would you say of Jack concerning his temper, and his reaction to situations?

Mr. CRAFARD. He had an erratic temper.

Mr. HUBERT. What do you mean, give us examples, you know.

Mr. CRAFARD. You never knew something that you thought would blow him up might not bother him, something that you thought would not bother him a bit he would blow up about.

Mr. HUBERT. Like what? I mean that must be based upon something that happened.

Mr. CRAFARD. Like Andy making a goof with regards to the girls were supposed to work. They took nights off.

Mr. HUBERT. Well, tell us about that so we have it in the record.

Mr. CRAFARD. Well, the first time it happened Jack got pretty mad about it. The next time it happened, one of the girls was supposed to be there and didn't show up, Jack never said a word.

Mr. HUBERT. When you say he got mad about it, how did he manifest his anger?

Mr. CRAFARD. Raising his voice, shouting and calling Andy some "stupid."

Mr. GRIFFIN. Did Jack swear, use profanity?

Mr. CRAFARD. Very seldom. When he usually did it was usually "hell" or "damn."

Mr. HUBERT. Have you any other examples to give us that would throw light upon his temper?

Mr. CRAFARD. One day, I was using a vacuum cleaner and it wouldn't work and something went wrong with it, something like that, the club has got to be clean, you would think the man would be kind of perturbed about it and he wasn't the least bit bothered about it. I would be cleaning the club and he would come in while I was cleaning the club, and he would get pretty perturbed because I was working the vacuum cleaner while he was there and he would yell at me and make me quit cleaning until he had left.

Mr. HUBERT. Had you ever seen him in arguments with other people?

Mr. CRAFARD. A couple of times with, he got pretty perturbed at the M.C.s, the one M.C. because of some of the jokes he was telling, some of the stories.

Mr. HUBERT. Tell us about that, please, start off with the name of the M.C., if you can.

Mr. CRAFARD. I don't remember the M.C.s name.

Mr. HUBERT. Do you remember what period of time it was?

Mr. CRAFARD. Working for Jack when I went to work for him. He was working for Jack.

Mr. HUBERT. How many M.C.s worked during that time?

Mr. CRAFARD. About three different M.C.s.

Mr. HUBERT. This was the one who was working when you first went to work with it?

Mr. CRAFARD. Yes.

Mr. HUBERT. Tell us about that?

Mr. CRAFARD. He had quite a habit of telling racial jokes and Jack was pretty much against this and on several occasions he got pretty perturbed with the M.C. for telling the racial jokes.

Mr. HUBERT. When you say pretty perturbed, you see that doesn't tell us about what he did.

Mr. CRAFARD. To the point where he went in among the chairs right by the stage and was yelling at the M.C.

Mr. HUBERT. So that he could be heard all over the club?

Mr. CRAFARD. Yes. Very definitely.

Mr. HUBERT. And yelling, by yelling you mean that his voice was raised above the normal?

Mr. CRAFARD. Very much so.

Mr. HUBERT. What was he saying?

Mr. CRAFARD. Telling him, you know, "I don't like that kind of jokes in here." He said, stuff like that.

Mr. HUBERT. What kind of jokes were they?

Mr. CRAFT. Racial jokes.

Mr. HUBERT. Well about what race?

Mr. CRAFT. Colored people.

Mr. HUBERT. About the colored people?

Mr. CRAFT. Yes; Jack was against a racial joke of any type, very much so.

Mr. HUBERT. Did you find that out from him or just from this occasion?

Mr. CRAFT. From these different occasions like that.

Mr. HUBERT. Did he ever tell you himself that he was?

Mr. CRAFT. No; not personally, but from the way he acted on different occasions like that that would happen he would chew the M.C. out pretty good for telling the racial jokes and for some pretty vulgar jokes he told, on occasions.

Mr. HUBERT. You mean he objected to vulgar jokes?

Mr. CRAFT. Yes; he said that his objection was the club was no place for that real vulgar type of joke.

Mr. HUBERT. By vulgar you mean a joke that dealt with sex?

Mr. CRAFT. Yes; joke that would leave no doubt in a person's mind that it was a sexual joke. Some of them that he told were just that type of joke.

Mr. HUBERT. You mean abnormal sex?

Mr. CRAFT. Yes.

Mr. HUBERT. So what he objected to were jokes that had to do with abnormal sex, is that correct?

Mr. CRAFT. Well, there was, I think on one or two occasions there was, the M.C. told jokes of an abnormal sex, but there was things that were real vulgar jokes where he was cussing a lot or something in a joke he didn't care for too much. He don't like the foul language used in the club very much.

Mr. GRIFFIN. How about—these comedians must have told sexual jokes, didn't they?

Mr. CRAFARD. Oh, yes; that is one of the things that put a comedian over in that kind of a club; they are there to sell sex, and if they don't tell a sexual joke the comedian is nothing.

Mr. GRIFFIN. How do you distinguish for us between the kind of sexual jokes that Jack would be upset about and those he accepted?

Mr. CRAFARD. [Deleted.]

Mr. HUBERT. Is that the type of joke that Ruby objected to?

Mr. CRAFARD. That type of joke would be acceptable because it leaves a person to figure out in his own mind what the deal is.

Mr. GRIFFIN. What kind would be objectionable?

Mr. CRAFARD. [Deleted.]

Mr. HUBERT. That would be an objectionable joke?

Mr. CRAFARD. Yes; because there would be no question in anybody's mind.

Mr. HUBERT. Is that a specific example, or one that you were using?

Mr. CRAFARD. An example; the joke was not told in the club.

Mr. HUBERT. From what you have told us as a generalization it would seem to be this, that any joke that left it to the imagination of the listener would be all right with Jack, but if it was specific he objected to it.

Mr. CRAFARD. That is right. It was pretty well acceptable all over the country that way. You take even with a party joke. If a party joke leaves in a person's mind in most places, leaves it to a person to imagine it themselves, it is acceptable. But if there isn't any doubt it doesn't make it acceptable in a mixed party.

Mr. GRIFFIN. Larry, did you learn anything that would indicate whether Jack's attitude about these jokes was based on any concern about what the local law-enforcement people would feel about having such jokes told in his club?

Mr. CRAFARD. No; I don't—I can't think of anything that would make me feel that way.

Mr. HUBERT. Was it your impression of his being perturbed, as the way you put it, was sincere or possibly just part of the act?

Mr. CRAFARD. It seemed pretty sincere to me.

Mr. HUBERT. He never did tell you, man to man, that he objected to these?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did Jack tell any jokes himself?

Mr. CRAFARD. I don't recall of any. I think a couple of times he got on the stage and tried to M.C. and fell sort of flat.

Mr. GRIFFIN. How about privately; was Jack the kind of person who would joke and tell jokes?

Mr. CRAFARD. He never did that I know of.

Mr. GRIFFIN. Was Jack the kind of person who would sit around with the comedians and talk with them in between acts and so forth?

Mr. CRAFARD. No; Jack was the kind that the only time he would say anything to the comedians was if he done something he didn't like, and if Jack wanted the comedian to do something he would say something to him.

Mr. HUBERT. Did you ever notice any traits of physical violence in Ruby?

Mr. CRAFARD. The one time I noticed any traits of physical violence at all, there was a guy came to the club who was pretty well polluted, and I think Ralph Paul was sitting right near the door, and he started giving the doorman a bad time.

Mr. HUBERT. Who started——

Mr. CRAFARD. This drunk fellow did.

Mr. HUBERT. Ralph had to get him to leave?

Mr. CRAFARD. Ralph was sitting right there and he asked the gentleman to leave and he wouldn't do it, and Jack went over there and the gentleman

struck Ralph Paul and when he did Jack just pushed his arm down and pushed him out the door.

Mr. HUBERT. He didn't hit him?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you form any impression about Ralph Paul, as to whether Ralph Paul was a homosexual?

Mr. CRAFARD. No; Ralph was a pretty good, decent guy. I liked him, what little I did know of him. I like him. He was kind of a stuffed shirt, but he was a fair, likable guy.

Mr. GRIFFIN. Did you notice if Jack's club was visited by any people who would appear to you to be homosexuals?

Mr. CRAFARD. No; I didn't notice that. I can't recall of any specific people coming in that would appear to be this way.

Mr. GRIFFIN. Did Jack ever talk to you about sex?

Mr. CRAFARD. No; very seldom; one or two occasions when I said something about a girl or something, when I said something about a girl or something.

Mr. GRIFFIN. What was his interest in his dogs?

Mr. CRAFARD. Sheba was the only one that really meant a lot to him. He was like a lot of people who are alone, and get with animals.

Mr. GRIFFIN. You mean he was attached to them?

Mr. CRAFARD. Really attached.

Mr. GRIFFIN. To Sheba?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did he breed Sheba?

Mr. CRAFARD. Yes. Sheba had been bred.

Mr. GRIFFIN. Was this something that he did, or did he send her some place to be bred?

Mr. CRAFT. I believe he took her to another place, another place to be bred; I am not sure.

Mr. GRIFFIN. Was there anything, any experience you had which indicated he had any sexual interest in these dogs?

Mr. CRAFT. No; I wouldn't say so.

Mr. GRIFFIN. Did you ever see him try to sexually stimulate these dogs?

Mr. CRAFT. Not that I ever saw.

Mr. GRIFFIN. Did you ever hear anything in that regard?

Mr. CRAFT. No.

Mr. HUBERT. Now the example you gave us about Ruby putting the man out at the club is the only one that you ever perceived as an act of physical violence?

Mr. CRAFT. Where he actually used physical violence. I have seen him where he was close to it at another M.C. at one time. Threatened for him to go out or he would throw him out, which was something which occurred every 2 or 3 months with other M.C.'s.

Mr. HUBERT. Were there any occasions when you say that Jack handled a situation that could have involved violence but did not?

Mr. CRAFT. Well, the situation where he told that M.C. to get out. It could have really involved violence, Jack's just; he was about ready to grab the guy, and he just turned and walked away from him.

Mr. HUBERT. Jack walked away from that man?

Mr. CRAFT. Yes.

Mr. HUBERT. You never saw him hit anybody?

Mr. CRAFT. No. The only time I even saw him touch anybody was when he got the man's hand and knocked it down.

Mr. HUBERT. Was the comedian bigger than Jack?

Mr. CRAFT. Yes; bigger than Jack.

Mr. HUBERT. Quite a bit bigger?



Mr. CRAFARD. Yes.

Mr. HUBERT. How about the patron that he handled?

Mr. CRAFARD. He was a bigger fellow. He stood about 6 foot. He is quite a bit bigger than I am, even. He was taller and heavier.

Mr. HUBERT. Do you know anything about what Ruby did to keep in physical condition?

Mr. CRAFARD. I knew he worked with barbells quite a lot.

Mr. HUBERT. How did you know that?

Mr. CRAFARD. He told me about his barbells a couple of times and he was dieting, and I had heard that he went to a gymnasium quite often.

Mr. HUBERT. Did he seem to you to be a powerful man, considering his build and weight and size?

Mr. CRAFARD. For his type of build and flabbiness as he was, he had quite a bit of strength.

Mr. HUBERT. How did you know that?

Mr. CRAFARD. Well——

Mr. HUBERT. Well, I mean did you observe him in a situation which demonstrated the use of strength?

Mr. CRAFARD. No; not really where it would be a real test of strength or anything. I have never seen anything of that sort.

Mr. HUBERT. I was just wondering how you formed the impression that he was a pretty strong man, considering his size.

Mr. CRAFARD. Well, for as heavy a man as he was, he was pretty solid for one thing; he was fairly solid.

Mr. HUBERT. You could tell that by looking at him?

Mr. CRAFARD. Yes.

Mr. HUBERT. I suppose you have seen him with his coat off or something.

Mr. CRAFARD. I saw him with just his pants and a T-shirt on, or an undershirt and pants, on one occasion when I went to his house. He shaved and he said something and I stepped over to the bathroom door; I couldn't hear. He repeated it and I stepped back and sat down and watched television and then he went ahead and got cleaned up.

Mr. HUBERT. Did he carry a gun?

Mr. CRAFARD. He had one in the car. He very seldom carried it on his person.

Mr. HUBERT. Where did he keep it in the car?

Mr. CRAFARD. Usually in the trunk; it was in a money pouch, a money sack, which usually stayed in the trunk.

Mr. HUBERT. You say he didn't carry it on his person?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Did you ever see it on his person or know it was there in some way?

Mr. CRAFARD. Yes, sir; one night that I knew for sure it was there.

Mr. HUBERT. What night was that?

Mr. CRAFARD. I don't recall the date, but something happened, and Jack sent me down to the car to get the gun and bring it up to him.

Mr. GRIFFIN. Was there some trouble in the Carousel?

Mr. CRAFARD. I don't remember whether it was right in the Carousel or whether it was a phone call or what it was, really. There was something there——

Mr. HUBERT. He told you something that indicated he ought to have the gun, and he asked you to go get it?

Mr. CRAFARD. He sent me down after the gun.

Mr. HUBERT. Did he just simply send you down after the gun, or did he tell you that there was something that had happened?

Mr. CRAFARD. He sent me down after the gun. Something happened right there at the club. I can't——

Mr. HUBERT. Was it some sort of a disturbance?

Mr. CRAFARD. I can't recall just what it was.

Mr. GRIFFIN. Was this an incident that other people would have been aware of; Andy Armstrong might have been aware of?

Mr. CRAFARD. I believe Andy Armstrong was right there at the time. I believe most any of the girls who worked for him were aware of it at the time.

Mr. HUBERT. Did I misunderstand you? Did you say this incident where you were sent for the gun was preceded by a phone call?

Mr. CRAFARD. I am not sure. He had been on the phone and then he went outside and then something happened at the club; he had an argument or something.

Mr. GRIFFIN. What did he do after you brought the gun?

Mr. CRAFARD. He was right there and the club was closed and I didn't see him until the next day. He seemed pretty angry.

Mr. GRIFFIN. He didn't try to throw anybody out?

Mr. CRAFARD. No.

Mr. GRIFFIN. Was George Senator there at the time?

Mr. CRAFARD. I don't recall.

Mr. HUBERT. Do you remember how close this incident was to the death of the President?

Mr. CRAFARD. It was either a week before or the same week, earlier the same week, that President Kennedy was assassinated.

Mr. HUBERT. Was it a weekday?

Mr. CRAFARD. No. It was during the week.

Mr. HUBERT. It was not on a weekend?

Mr. CRAFARD. No; it was during the week.

Mr. HUBERT. So it would have been sometime between the 17th, say, of November and prior to the 22d, or it would have been sometime between

the 11th and the 15th of November; is that correct?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Have you ever noticed any incidents of Ruby that would throw some light on whether he was a person who had a trait of kindness or benevolence toward other people?

Mr. CRAFARD. He was quite kindhearted.

Mr. HUBERT. Give us an example of that.

Mr. CRAFARD. One example was the way he took me in. He had no reason for doing it. He wasn't obligated to do it in any way.

Mr. HUBERT. You think you earned your pay?

Mr. CRAFARD. What is that?

Mr. HUBERT. Do you think you earned your pay?

Mr. CRAFARD. I think I earned everything I got.

Mr. HUBERT. Do you still think it was an act of kindness on his part to take you in?

Mr. CRAFARD. I think he was doing me a favor, and still in all he was getting some pretty cheap work, labor.

Mr. GRIFFIN. Did you ask him for the job or did he ask you?

Mr. CRAFARD. He asked me. And then I know of another occasion where I was told about of this young fellow he took in didn't do a thing around the club and he had him around there for 3 or 4 months.

Mr. GRIFFIN. Did it seem to you that Jack felt it was important that he have somebody at the club all the time?

Mr. CRAFARD. After I was there for a while he seemed to feel that way. At first, when I first got to know him, he didn't seem to feel that way.

Mr. HUBERT. This boy that had been there more or less doing the job that you did, but was there prior to you; did you know this fellow?

Mr. CRAFARD. No; I didn't know him. I had heard—Andy had told me about him.

Mr. HUBERT. Isn't it a fact that you heard from Andy or otherwise there had been some trouble between Ruby and that man?

Mr. CRAFARD. I believe there was something said about trouble.

Mr. HUBERT. Isn't it a fact that you heard that Ruby pistol-whipped him?

Mr. CRAFARD. No; I can't recall of ever hearing that statement.

Mr. HUBERT. Did you hear that this boy was Jewish?

Mr. CRAFARD. No, sir. I had no idea; no knowledge of him.

Mr. HUBERT. You never met him?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. I understand that there came a time when you asked Jack to put you on a different pay basis than you originally were.

Mr. CRAFARD. When I went to work it was on the understanding that I eventually would be with him a Little while and then I would start being on a salary.

Mr. GRIFFIN. How long were you with him? Well, let me put it this way: Did there come a time when you began to ask to be put on salary?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How long after?

Mr. CRAFARD. Because I felt that the way things were, I didn't have any private life of my own. He wanted to tell me what I could do, who I could talk to, and who I couldn't talk to if he put me on a salary where I was maybe making \$35 or \$40 a week I could live on my own, which I would much prefer to do.

Mr. GRIFFIN. \$35 or \$40 plus the opportunity to live at the club?

Mr. CRAFARD. As long as it was \$35 or \$40, period. I could live on my own; for the work I done at the club, I could live on my own.

Mr. GRIFFIN. All right. How long had you been with Jack before you started to ask him about this?

Mr. CRAFARD. I probably had been with him about 4 or 5 weeks. That was about 2 weeks before President Kennedy was assassinated.

Mr. GRIFFIN. What did Jack say when you mentioned that to him?

Mr. CRAFARD. He said he would see what he could do.

Mr. GRIFFIN. What do you mean by that? What did you understand by that?

Mr. CRAFARD. Well, he said what he could do; he would figure his bookwork out and see what he could do.

Mr. GRIFFIN. Did you remind him of the fact that he had told you that at the beginning?

Mr. CRAFARD. Yes.

(Whereupon, at 12:10 p.m., the proceeding recessed.)

## **TESTIMONY OF CURTIS L. CRAFARD RESUMED**

The proceeding reconvened at 1:30 p.m.

Mr. HUBERT. Now, Mr. Crafard, this is a continuation of the deposition which was recessed for the lunch hour. You understand that we are continuing this deposition by the same authority that we commenced it with, and likewise that you are under the same oath that you were under and that you took at the beginning of that deposition?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Is that agreeable to you?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Now, when did you first hear that the President was going to visit Dallas?

Mr. CRAFARD. I believe it was about 3 or 4 weeks before he came to Dallas. It was advertised in the paper.

Mr. HUBERT. Were you working for Ruby at that time?

Mr. CRAFARD. Yes, sir; it came out in the papers that showed the proposed route and the proposed secondary route of this trip through the city.

Mr. HUBERT. Are you saying that the first time you found out that he, President Kennedy, was going to visit the city, was when you read it in the newspapers?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. And that in that account that you read in the newspapers, the proposed route and an alternate route was given?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. That would have been just a very few days before he actually came, wouldn't it?

Mr. CRAFARD. I believe that was at least a week before he came that that came out.

Mr. HUBERT. At any rate, whatever day the proposed route came out in the papers that was the first day that you found out that the President was coming to Dallas at all?

Mr. CRAFARD. They had been thinking he was going to come to Dallas. They said something about it, but there was nothing definite at that time, I didn't know anything definite about it until I read it in the paper.

Mr. HUBERT. You had read something in the paper about his coming prior to the time that the route was set out?

Mr. CRAFARD. There was something in the paper about it figured he would come or something but so far as I can recall there was nothing definite until that same issue.

Mr. HUBERT. Now, did you ever talk to Ruby about it?

Mr. CRAFARD. No. There wasn't much said about it in the club.

Mr. HUBERT. Was anything said about it?

Mr. CRAFARD. Something the day the paper came out with the proposed route, we all said something about the fact that he was coming to town, Dallas, that it would probably help Dallas a little bit.

Mr. HUBERT. Help in what way?

Mr. CRAFARD. Maybe bring a few more conventions or something.

Mr. HUBERT. Who said that?

Mr. CRAFARD. We all discussed it, Andy and Jack and I.

Mr. HUBERT. Including Ruby?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Do you remember specifically a conference, or conversation, rather, of which there were three, at least, Jack Ruby and Andy Armstrong, at which it was mentioned that it was a good thing for Dallas because it would bring more conventions?

Mr. CRAFARD. It was in the paper, when Jack came to the club we already had the paper there and Jack came to the club and he read the paper and said something about it and then he said something to the effect that it might help Dallas a little bit because it might bring more conventions to Dallas, or something to that effect.

Mr. HUBERT. That was the day that the paper came out with the route?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had you talked to Ruby about the President's visit prior to that day.

Mr. CRAFARD. Not that I can recall.

Mr. HUBERT. Had you talked to anyone else?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. You didn't let me finish my question. Had you talked to anyone else about the fact that the President might be coming to Dallas?

Mr. CRAFARD. I don't recall anything about it, sir.

Mr. HUBERT. When you say there was no conversation in the club about it other than what you have testified to——

Mr. CRAFARD. None that I can recall.



Mr. HUBERT. Was any mention made of the fact that in any conversation between you and Jack or anybody else about the fact that the parade would pass near the club?

Mr. CRAFARD. There was something said that we only have to walk a block, I think, or something like that, up where we could see the parade.

Mr. HUBERT. Who said that?

Mr. CRAFARD. I don't remember whether it was Andy or myself.

Mr. HUBERT. Could it have been Ruby?

Mr. CRAFARD. It might have been. I don't know.

Mr. HUBERT. In any case, either you or Andy made such a remark, and was Jack present when it was made?

Mr. CRAFARD. I believe he was; yes.

Mr. HUBERT. You have a distinct recollection of that?

Mr. CRAFARD. I don't have a distinct recollection; no.

Mr. HUBERT. Was it on the same occasion that you mentioned earlier that he came in and said about how it would improve the business?

Mr. CRAFARD. I believe it was the day before the President's trip, arrival in Dallas, Andy and I had been saying something about wanting to see it and some one of us said something about it was only about a block or something like that to go to see it.

Mr. HUBERT. Did you ask Jack's permission to leave to go watch it?

Mr. CRAFARD. I think we both told Jack that we was going to go watch it.

Mr. HUBERT. You and Andy did?

Mr. CRAFARD. Yes; I believe so.

Mr. HUBERT. Together?

Mr. CRAFARD. No; we didn't figure on going. Andy was taking the day off so he could go and I told Jack I was figuring going on up and watching the parade.

Mr. HUBERT. What did he say about it?

Mr. CRAFARD. He didn't say anything.

Mr. HUBERT. What?

Mr. CRAFARD. I don't recall him saying anything.

Mr. HUBERT. You were asking him——

Mr. CRAFARD. Other than maybe telling me it was all right to go or something.

Mr. HUBERT. That is what I was wondering. Did he express any consent or disapproval?

Mr. CRAFARD. I don't recall what he said.

Mr. HUBERT. Did he mention what he was going to do about watching it?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. Did you tell him where you were going to watch it, yourself?

Mr. CRAFARD. No, sir.

(Discussion off the record.)

Mr. HUBERT. You recall, of course, the day that the President was shot.

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Do you recall the night before that, which would have been Thursday night?

Mr. CRAFARD. As far as I can recall it was more or less a general night for the club.

Mr. HUBERT. Were there any special preparations by way of preparing for a larger crowd or for some program in connection with the President's visit?

Mr. CRAFARD. Not that I can recall.

Mr. HUBERT. In other words, the night prior to the President's visit was a routine night?

Mr. CRAFARD. As far as I can recall.

Mr. HUBERT. I suppose you have put your mind to it since, particularly at the time it happened, because most people did, you know. They relate that historic event to their own lives and reconstruct what they were doing before and afterwards.

Did you do that? Have you ever done that?

Mr. CRAFARD. I have tried to think of what I was doing before, the night before, a couple nights before, or something like that. I don't recall anything out of the ordinary.

Mr. HUBERT. If it was the ordinary, then I suppose it would have been that the club were closed up at its usual hour.

Mr. CRAFARD. As far as I recall, yes.

Mr. HUBERT. And you were still sleeping there?

Mr. CRAFARD. Yes; I was still sleeping there.

Mr. HUBERT. So you would have gone to sleep?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. And then I suppose Ruby would have wakened you?

Mr. CRAFARD. Andy woke me that morning. He come in early. Andy always put the beer in and he come in early to do that so that he could have the rest of the day off.

Mr. HUBERT. What time did Andy come in?

Mr. CRAFARD. I think it was about 9:30 or something like that.

Mr. HUBERT. Came in personally?

Mr. CRAFARD. Yes. He was there when the President was shot.

Mr. HUBERT. Were you asleep when he came in?

Mr. CRAFARD. I was asleep when he came in.

Mr. HUBERT. Did you waken up when he came in?

Mr. CRAFARD. I didn't wake up—Andy woke me up and told me that the President had been shot.

Mr. HUBERT. That was much later in the day, wasn't it?

Mr. CRAFARD. I believe so.

Mr. HUBERT. About 12:30?

Mr. CRAFARD. Yes.

Mr. HUBERT. Weren't you suppose to be doing your cleaning-up job?

Mr. CRAFARD. Ordinarily if I had been up, I would have been cleaning up; yes, sir.

Mr. HUBERT. Ordinarily he would have awakened you when he came in, wouldn't he?

Mr. CRAFARD. Andy, when he came in he should have woke me up. I guess he said he had called me or something and I hadn't woke up, I hadn't got up or something.

Mr. HUBERT. Didn't he know you wanted to go and see the parade?

Mr. CRAFARD. He knew I said something about it. I don't know, I think maybe he had been down and saw us—down to see some of it or something and then come back to the club or something.

Mr. HUBERT. You didn't leave word for anyone to call you to see the parade?

Mr. CRAFARD. No.

Mr. HUBERT. Wasn't it unusual for you to sleep that length of time?

Mr. CRAFARD. Not if I was tired and they didn't call me, I'd sleep if they didn't call me.

Mr. HUBERT. Have you ever done that before?

Mr. CRAFARD. I've seen the time when I went to sleep and slept 14 or 15 hours.

Mr. HUBERT. No, I am talking about while you were at the club.

Mr. CRAFARD. At the club a couple times I slept until 1:30 or 2 o'clock in the afternoon before somebody woke me up.

Mr. HUBERT. You had made no plans yourself to anticipate going to see the President?

Mr. CRAFARD. Not definite plans except if I got up I figured I'd go down and see it.

Mr. HUBERT. And you intended to get up?

Mr. CRAFARD. I figured I'd wake up. I didn't wake up.

Mr. HUBERT. What time did you go to bed, do you know?

Mr. CRAFARD. I don't know, about 2:30 or 3 o'clock, or something.

Mr. HUBERT. You slept clean around until 12:30 or after?

Mr. CRAFARD. Yes.

Mr. HUBERT. How do you know Andy came in earlier?

Mr. CRAFARD. The beer was all taken care of, so I figured he had been in the club.

Mr. HUBERT. You are not sure It was Andy that did that, then?

Mr. CRAFARD. No.

Mr. HUBERT. Put the beer on?

Mr. CRAFARD. Andy said something about doing it, he had done it earlier, or something.

Mr. HUBERT. Was the beer normally delivered at a regular time?

Mr. CRAFARD. We had the beer delivered 2 days a week. Andy come in every day and put the beer in the cooler.

Mr. HUBERT. Where was the beer delivered?

Mr. CRAFARD. It was delivered upstairs when it was delivered.

Mr. HUBERT. Did somebody have to receive it?

Mr. CRAFARD. Yes.

Mr. HUBERT. When was it delivered that day, do you know?

Mr. CRAFARD. It was delivered on Tuesdays and Saturdays, I believe it was.

Mr. HUBERT. It wasn't delivered on this day, then?

Mr. CRAFARD. No, but he come up to put more beer in the cooler.

Mr. HUBERT. That was his job?

Mr. CRAFARD. Yes. He done that all the time.

Mr. HUBERT. You didn't have anything to do with it?

Mr. CRAFARD. No.

Mr. GRIFFIN. Where would he carry the beer from, from what place to where?

Mr. CRAFARD. It would come in the front door of the club, there was a hallway off to the side here and come on over here and made an L. My room was here and he'd get the beer over here and take it out.

Mr. HUBERT. He had to pass your room?

Mr. CRAFARD. No.

Mr. HUBERT. He had to pass by it?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. He would come in the back of the club where the beer was stored?

Mr. CRAFARD. Probably he'd come in the front door and go up here and get the beer. My room was down here on this corner, and he would get the beer here.

Mr. HUBERT. Did you leave the door open or closed?

Mr. CRAFARD. My door was closed.

Mr. HUBERT. Why was it closed?

Mr. CRAFARD. I closed it all the time.

Mr. HUBERT. Weren't you supposed to be sort of on guard, as it were, in addition to doing the job around there, that is part of your job having someone on the premises?

Mr. CRAFARD. I just figured having me sleep there, I guess. He never said anything to me about it.

Mr. HUBERT. Did he ever awaken you oh other days when he brought the beer?

Mr. CRAFARD. If Andy came in when I was still in bed he'd usually wake me up, yes.

Mr. HUBERT. But he did not this morning?

Mr. CRAFARD. He said he called me but I hadn't woke up.

Mr. HUBERT. He called you by telephone or in person?

Mr. CRAFARD. I don't know whether he called me by telephone, he said he tried to call me by telephone or called me when he come to the club or what.

Mr. HUBERT. If he called you by telephone where would the telephone have been in reference to your room?

Mr. CRAFARD. In the room next to my room.

Mr. HUBERT. Could you hear it?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had you ever been awakened before by it?

Mr. CRAFARD. Yes, several times.

Mr. HUBERT. There is no doubt then that if he had called you by telephone it would have awakened you?

Mr. CRAFARD. More likely I figured it would have, yes.

Mr. HUBERT. Of course if he had tried to wake you by calling you, just through the door, that would have awakened you, I assume.

Mr. CRAFARD. I might have roused up, spoke to him and answered him and then got back down without even knowing it.

Mr. HUBERT. Do you remember that?

Mr. CRAFARD. I don't remember it. I say I might have.

Mr. GRIFFIN. When did he tell you that he called you?

Mr. CRAFARD. It was shortly after he did wake me up.

Mr. HUBERT. How did he wake you up?

Mr. CRAFARD. He come in there and he had his radio up real loud when he come in there and he told me the President had been shot.

Mr. HUBERT. And that was at what time?

Mr. CRAFARD. He called me two or three times. It was just after the President had been shot.

Mr. HUBERT. How many times did he call you? You said two or three times?

Mr. CRAFARD. He called me two or three times at that time when he woke me up there he called me two or three times.

Mr. HUBERT. How do you know that?

Mr. CRAFARD. He said so.

Mr. HUBERT. You don't recall it two or three times?

Mr. CRAFARD. I recall hearing him call me twice that I know of right then.

Mr. HUBERT. And then that aroused you?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had you been drinking the night before?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. What I am trying to get at, Larry, is why it was so difficult to wake you that morning.

Mr. CRAFARD. Yes; I can understand that.

Mr. HUBERT. Have you any explanation for it?

Mr. CRAFARD. None that I can think of except that I probably was a little tired, except a little tired from the night before when I went to bed.

Mr. HUBERT. You do recall that?

Mr. CRAFARD. Yes; I went to bed and went right to sleep. I didn't lie awake very long.



Mr. HUBERT. Do you normally lay awake sometimes?

Mr. CRAFARD. I normally lay awake anywhere from an hour and a half to 2 hours.

Mr. HUBERT. But this particular night you did not?

Mr. CRAFARD. No.

Mr. HUBERT. You weren't drinking?

Mr. CRAFARD. No, not that I can recall.

Mr. HUBERT. Do you drink much?

Mr. CRAFARD. Very seldom. I drank, I think, three or four different times while I was there that I drank a beer or two, that was all.

Mr. HUBERT. So that your heavy sleep on the morning of the 22d couldn't be attributed to the fact that you had a hangover?

Mr. CRAFARD. No.

Mr. HUBERT. Or that you were suffering from any overindulgence in alcohol?

Mr. CRAFARD. No, sir.

Mr. HUBERT. You don't take any kind of sleeping pills or anything like that?

Mr. CRAFARD. No, sir.

Mr. HUBERT. So this was just normal sleep?

Mr. CRAFARD. Yes.

Mr. HUBERT. And his call failed to wake you?

Mr. CRAFARD. That is right.

Mr. HUBERT. What did he tell you when he first came in?

Mr. CRAFARD. The first thing he said was President Kennedy had been shot. He said, "The President has been shot." I wouldn't hardly believe him.

Mr. HUBERT. What did you do?

Mr. CRAFARD. Immediately we went in and turned the television on. He had his radio going and I turned the television on and listened to his radio and then we had to turn the television up real loud where we could hear it. We were more interested in what was said than the pictures they was showing or anything like that.

Mr. HUBERT. Do you remember what time it was?

Mr. CRAFARD. It was something like——

Mr. HUBERT. I mean first of all when he woke you up.

Mr. CRAFARD. 20 or 25 to 12.

Mr. HUBERT. To 12?

Mr. CRAFARD. Or after 12, to 1, I mean. I think it was something like that. I'm not sure. I didn't have a watch on. I didn't have a watch at that time.

Mr. HUBERT. You began looking at the television. I suppose from the time that you woke up plus the time it took you to get dressed, or did you get dressed?

Mr. CRAFARD. As soon as he woke me up he went in and turned the television on while I was putting my pants on, putting my clothes on.

Mr. HUBERT. Do you remember what was the first thing you saw on television?

Mr. CRAFARD. I don't remember, sir.

Mr. HUBERT. Was it a news commentator?

Mr. CRAFARD. I believe it was.

Mr. HUBERT. Do you remember which one?

Mr. CRAFARD. No, sir; I don't.

Mr. HUBERT. Do you remember the station it was on?

Mr. CRAFARD. No; I don't remember what station it was on, either.

It was one of the local—I believe it was 12 that Dallas-Fort Worth—I believe that was the station.

Mr. HUBERT. It was a Dallas station or a Fort Worth station?

Mr. CRAFARD. It is one there they call the Dallas-Fort Worth, WWTV12, I think it is.

Mr. HUBERT. KLRD, is that what it is?

Mr. CRAFARD. I don't know what station it is. I am not sure whether it was WWTV.

Mr. HUBERT. How long did you stay there watching?

Mr. CRAFARD. We turned it up real loud where we could hear it and then listened to his radio, too, where we would hear both of them.

Mr. HUBERT. Go ahead, what happened next?

Mr. CRAFARD. I don't recall exactly what was said except the fact that the President had been shot.

Mr. HUBERT. How long did you continue to watch it?

Mr. CRAFARD. We watched it right up until—most of the day, I think, we had the television on there, then, most of the day.

Mr. HUBERT. Did you do any of your work?

Mr. CRAFARD. Oh, I started to clean up. When Jack come in he said not to. He said, "We're going to close the club for the weekend."

Mr. HUBERT. What time did he come in?

Mr. CRAFARD. It was about 2 or 2:30, something like that.

Mr. HUBERT. About 2 hours after, do you think?

Mr. CRAFARD. About that; yes.

Mr. HUBERT. Tell us what happened, how he looked, what he said and all that, when he came in?

Mr. CRAFARD. He was like everybody else, shocked.

Mr. HUBERT. How did he manifest that shock?

Mr. CRAFARD. How is that?

Mr. HUBERT. How did he manifest the shock? What did he do or say that gave you the impression that he was suffering from shock like everybody else?

Mr. CRAFARD. About the same thing as any of us said. We couldn't really believe it.

Mr. HUBERT. Was he crying, for example?

Mr. CRAFARD. He seemed to be very nervous. As far as really being crying, I couldn't say for sure he had been crying. He wasn't crying at the time, anyway.

Mr. HUBERT. Was his nervousness, or his shock greater than, say, that which you could observe in Armstrong?

Mr. CRAFARD. Yes; I believe it was. He was much nervouser than Andy or I, either one was.

Mr. HUBERT. Now, how did that come across to you, by what he said or did?

Mr. CRAFARD. It come across that it struck him pretty deep that Kennedy had been assassinated, had been shot.

Mr. HUBERT. You see you have to get that impression from him in one of two ways. Either he said something or he did things, and that is what I want to find out, what he said or he did that creates an impression that now remains in your mind as being one of more shock than anybody else, and as you put it, extreme nervousness. You don't get that impression except what you saw or you heard.

Mr. CRAFARD. Yes.

Mr. HUBERT. Now that is what I want to find out, because it is one thing to have your impression but it is another thing to have what caused your impression.

Mr. CRAFARD. Yes. He couldn't believe it had happened.

Mr. HUBERT. He said so?

Mr. CRAFARD. Yes.

Mr. HUBERT. What else did he do that was out of the ordinary?

Mr. CRAFARD. I was trying to think.

Mr. HUBERT. Did he cry? You said a moment ago he did not.

Mr. CRAFARD. He said it was an outrageous crime, that it would ruin the city of Dallas.

Mr. HUBERT. Did he say why, in what way it would ruin it?

Mr. CRAFARD. The fact that the President had been shot there in Dallas.

Mr. HUBERT. Would ruin it how?

Mr. CRAFARD. As far as nightclubs, nightclub activity was concerned, for all nightclubs concerned, it would pretty well pull a lot of the conventions away, and such as that.

Mr. HUBERT. So that when Ruby came back and expressed his concern about the shooting of the President, he adverted to the fact that that crime would hurt Dallas?

Mr. CRAFARD. Yes.

Mr. HUBERT. Would hurt the convention business and would hurt his business?

Mr. CRAFARD. He just said all nightclubs. He said the nightclub business in general, I believe, more than his personal business.

Mr. HUBERT. Did he specifically advert to how that would affect the Carousel and the Vegas?

Mr. CRAFARD. Not that I can recall.

Andy and I both, I believe it was myself that made the statement that the guy, whoever had done that, had ought to hang, or something to that effect, and we was all pretty much in agreement on that subject. Our agreement on that was about the same.

Mr. HUBERT. In other words, in this conference, I call it conference, I mean meeting that you and Andy and Jack had together, which commenced about 2 hours after the President's assassination, you discussed the fact that it was a terrible crime, that it would hurt the city and the nightclub business and that the man who did it ought to be punished?

Mr. CRAFARD. Yes.

Mr. HUBERT. And Jack was a part of that?

Mr. CRAFARD. Yes; we was all pretty much in agreement on that. We agreed to the fact it would——

Mr. HUBERT. Did you know at that time who had done it or who was suspected of having done it?

Mr. CRAFARD. I believe that earlier on the news, or something, I believe they suspected Oswald.

Mr. HUBERT. Had he been mentioned by name?

Mr. CRAFARD. I believe he had; yes.

Mr. HUBERT. That was prior to the time Ruby came in?

Mr. CRAFARD. I believe so, I'm not definite on that, but I believe so.

Mr. HUBERT. Well, Ruby came in, you are quite sure, about 2 hours after you heard of it?

Mr. CRAFARD. About 2 hours, yes.

Mr. HUBERT. And you heard of it at a little after 12:30?

Mr. CRAFARD. Yes; just shortly after it happened.

Mr. HUBERT. So Jack told you that there is no use cleaning up?

Mr. CRAFARD. Yes. He said, "We're going to close the club for the weekend."

Mr. HUBERT. What did he propose to do about the cleaning up job as to the club?

Mr. CRAFARD. Just leave it go until Monday.

Mr. HUBERT. Just let it stay as it was until Monday?

Mr. CRAFARD. Yes.

Mr. HUBERT. And he so told you?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had he made up his mind at that time to close the club for the entire weekend?

Mr. CRAFARD. I believe he just said for Friday and Saturday night at that time. He said something about cleaning up later on, or something, and then he come back later and he left.

Mr. HUBERT. Let's see, how long did he stay, before we get to this point?

Mr. CRAFARD. He was there maybe a half hour or 45 minutes.

Mr. HUBERT. What else did he do there besides converse with you as you have already testified?

Mr. CRAFARD. That was about it right there, I guess.

Mr. HUBERT. Did he make any phone calls?

Mr. CRAFARD. I believe he called his sister. I'm not sure.

Mr. HUBERT. Do you remember that, yourself, or do you think perhaps you picked that up from reading about it somewhere?

Mr. CRAFARD. No; I believe that he called his sister on the phone right by the front door.

Mr. HUBERT. You mean that is the public phone?

Mr. CRAFARD. No. We had three business phones on the same line in the club.

Mr. HUBERT. The same number, you mean?

Mr. CRAFARD. Yes, with the same number.

Mr. HUBERT. But there were different lines, you could make different calls from them?

Mr. CRAFARD. No.

Mr. HUBERT. There was one phone with three extensions then?

Mr. CRAFARD. Yes.

Mr. HUBERT. Two extensions?

Mr. CRAFARD. Two extensions.

Mr. HUBERT. Was there a public phone there, too?

Mr. CRAFARD. The public phone was in the back in the hallway. I believe he called his sister from the front door phone there and talked to her and he told her he was coming over, or something.

Mr. HUBERT. You overheard that?

Mr. CRAFARD. It was either at that time or later in the afternoon when he come back.

Mr. HUBERT. On that first time that he was there, which was from 2:30 to about 3:15—would that be a fair estimate?

Mr. CRAFARD. About 3:15 or 3:30, or something.

Mr. HUBERT. Let's do this. You mentioned a moment ago that he came in about 2:30 and stayed about a half hour to three-quarters of an hour. He came at 2:30 and left at about 3:30.

Then there is a possibility he stayed there an hour on his first visit.

Mr. CRAFARD. He might have been there anywhere between a half hour and three-quarters of an hour.

Mr. HUBERT. Anyway, roughly between 3 and 3:30 is when he left?

Mr. CRAFARD. Yes.

Mr. HUBERT. And during that period he made one phone call, or you are not sure of that?

Mr. CRAFARD. I am not positive. I think he did, but I am not positive.

Mr. HUBERT. If it should turn out that he did not call his sister on that occasion, do you recall any other phone calls that he made during the first visit?

Mr. CRAFARD. I'm not sure. It seems like there was a phone call to his brother or something that he called long distance either then or later in the day or something.

Mr. HUBERT. How did you know he had called long distance?

Mr. CRAFARD. Because he had me get the address, get the number or something. He had me give him the phone number.



Mr. HUBERT. Of which brother?

Mr. CRAFARD. I believe it was the brother in Chicago—in Detroit, the Cobo Laundry.

Mr. HUBERT. You are talking about Earl, aren't you?

Mr. CRAFARD. I believe that is right.

Mr. HUBERT. He did not have Earl's number?

Mr. CRAFARD. He had it, he had it in his book at home, and I had it wrote down in the book of phone numbers there in the office.

Mr. HUBERT. And you then gave him the number, or dialed for him?

Mr. CRAFARD. I gave it to him, I believe, and he dialed it.

Mr. HUBERT. You were present when he dialed?

Mr. CRAFARD. Andy and I were both there in the main part of the club where he was at.

Mr. HUBERT. There was no one else in the club at that time?

Mr. CRAFARD. No; just Andy and I.

Mr. HUBERT. Do you know why he didn't use his office phone?

Mr. CRAFARD. No; I have no idea, except that during the day when there was nobody else there he would more frequently use the front phone than he would the office phone. We'd been out there talking. We could all three—he'd have the table space to work and everything, count his money out, figure out the papers, and everything.

Mr. HUBERT. You are unable to fix the time of that call to his brother, is that right?

Mr. CRAFARD. That is correct, sir.

Mr. HUBERT. When did he come back after having left at, roughly, between 3 and 3:30?

Mr. CRAFARD. He come back about, I believe, about 4:30 or 5 o'clock.

Mr. HUBERT. Is it fair to say that he was gone about an hour to an hour and a half?

Mr. CRAFARD. Yes; I would say so. He asked me if I wanted to go to his sister's with him. He made quite a point of it, and I told him I'd prefer to stay at the club.

Mr. HUBERT. What do you mean by making quite a point of it?

Mr. CRAFARD. He asked me two or three times about it.

Mr. HUBERT. Did it strike you as odd?

Mr. CRAFARD. No; it just struck me as if he kind of wanted me to go. He thought it wouldn't be—didn't think it would be very good for me to stay there at the club by myself.

Mr. HUBERT. Why not?

Mr. CRAFARD. I have no idea.

Mr. HUBERT. Did he tell you that he thought——

Mr. CRAFARD. He said he thought it would be better for me to go with him than to stay at the club.

Mr. HUBERT. Did you ask him why he had such thought?

Mr. CRAFARD. No; I didn't. I didn't think about it.

Mr. HUBERT. What did you think of the nature of that remark to you?

Mr. CRAFARD. It didn't have no effect on me whatsoever at the time.

Mr. HUBERT. You had stayed at the club alone before, hadn't you?

Mr. CRAFARD. Yes.

Mr. HUBERT. Didn't you think it rather odd that he would suggest in some way that it wouldn't be proper for you to stay at the club?

Mr. CRAFARD. At that time it didn't strike me at all. I didn't even think about it. I was still pretty shook up, myself.

Mr. HUBERT. Had you been doing any work in the interval when he was gone?

Mr. CRAFARD. No; not that I can recall.

Mr. HUBERT. Did he make any phone calls when he came back?

Mr. CRAFARD. I believe he called his sister at that time. I'm not positive, but I believe he called her at that time and told her he'd be right over.

Mr. HUBERT. When did he leave after having returned?

Mr. CRAFARD. He was only there for about 10 or 15, maybe 20 minutes.

Mr. HUBERT. Did he call his sister twice?

Mr. CRAFARD. He called her then, I'm almost positive that he called her that time and told her he'd be right over.

I told him that I'd prefer to stay at the club because, well, I knew his sister was highly emotional from what little I had talked to her on the telephone a couple of times, she called for Jack and she always seemed very nervous on the phone and everything.

Mr. HUBERT. As I understand you now, it is quite clear that he did call his sister Eva?

Mr. CRAFARD. Yes.

Mr. HUBERT. When he came back the second time?

Mr. CRAFARD. Yes; I'm almost positive.

Mr. HUBERT. That is when he stayed about 10 minutes?

Mr. CRAFARD. Yes.

Mr. HUBERT. He left about 4:30 or 5, right?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Having stayed there only 10 minutes, whatever time he did come?

Mr. CRAFARD. He stayed only 10 or 15 minutes. He hadn't been there very long.

Mr. HUBERT. From the time that you first heard of the President's death until he left that second time to go to his sister's, had he called his sister once or twice?

Mr. CRAFARD. I believe, that was the second time he called her that day, I'm not positive.

Mr. HUBERT. So that the first call must have been through the first, during the first visit, mustn't it?

Mr. CRAFARD. Yes; I believe so, because he only made the one phone call when he came back the last time.

Mr. HUBERT. Now, with relation to the call to his brother, is your memory fresh now as to whether that call was made during his first visit between 2:30 and 3 o'clock, 2:30 and 3:30, or on his second visit when he stayed 10 minutes?

Mr. CRAFARD. That was made on the first visit, I'm almost positive of that. I can only recall of one phone call he made and that was to his sister when he come back the second time.

Mr. HUBERT. He was there only 10 minutes, he called her and he asked you several times?

Mr. CRAFARD. He asked me two or three times to go with him and I told him I'd rather not because she was highly nervous and I didn't care to be around her. I hardly never——

Mr. HUBERT. What did he say to you about being worried about your staying at the club?

Mr. CRAFARD. He just thought it would be better for me to be with somebody than to be by myself, I guess, because I was shook up, kind of shook up about what had happened.

Mr. HUBERT. How were you showing that? I mean, what manifestations.

Mr. CRAFARD. I guess more or less a look in my face, or something.

Mr. HUBERT. Did he seem to indicate that he feared for your safety?

Mr. CRAFARD. No; not that I can recall.

Mr. HUBERT. But what you are telling us is that at the time you had no reaction whatsoever to that suggestion of his that it would be better for you not to stay at the club?

Mr. CRAFARD. I had no reaction at all to it.

Mr. HUBERT. You don't know whether he meant your safety or your own personal feelings or really what he meant?

Mr. CRAFARD. That is right.

Mr. HUBERT. You didn't ask him what he meant?

Mr. CRAFARD. No.

Mr. HUBERT. So he just then openly allowed you to stay on?

Mr. CRAFARD. Yes.

Mr. HUBERT. Was Armstrong still there during that time?

Mr. CRAFARD. No; Andy—I was alone at the club.

Mr. HUBERT. When did Andy leave?

Mr. CRAFARD. Andy left just shortly after Jack had left the first time.

Mr. HUBERT. About what, 5 or 10 minutes after?

Mr. CRAFARD. About maybe 10 or 15 minutes later. When Jack was there the second time before he left, he give me a sign, he told me to make up a sign that said we'd be closed Friday and Saturday, put it downstairs about 6:30.

Mr. HUBERT. Did you do so?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did you do it in pencil or pen?

Mr. CRAFARD. I made it with pencil and put it downstairs.

Mr. HUBERT. Was that before or after he asked you to——

Mr. CRAFARD. That was after he left the second time.

Mr. HUBERT. No; you misunderstood my question. Did he ask you to make that sign before or after he asked you to go to Eva's with him?

Mr. CRAFARD. I believe, that was afterwards, after the first stay there at the club.

Mr. HUBERT. Did he give you any instructions as to what to do?

Mr. CRAFARD. Make up a sign that we'd be closed. He had a closed sign. He said, "Take it down there and put it downstairs about 7:30 or quarter to eight", and he said, "Wait until the other clubs open. Let them"—he said, I

think it was, “Let them damn guys stay open”, or something to that effect, quite similar to the wording there, I’m not sure what the wording was, that wording was.

Mr. HUBERT. He got over to you, though, that he was going to close, that he wanted you to prepare and put up a sign, but to do it in such a way that his competitors wouldn’t know he was anticipating that?

Mr. CRAFARD. That is right.

Mr. HUBERT. Did he tell you so in so many words?

Mr. CRAFARD. He said, wait until they opened before I put it up. He said something like “Let those damn fools open if they want”, or something to that effect, or “Stay open”, or something like that.

Mr. HUBERT. Did he give you any other instructions?

Mr. CRAFARD. That was about it. He asked me where I was going to eat and I told him and he said something about he’d call me in about an hour. He said to go ahead and eat then and he said “I’ll call you in about an hour.”

So he called me—I don’t even remember what he said then. It was just I guess he asked me if there had been any phone calls or something. It wasn’t much. The conversation wasn’t but about a dozen words at most.

Mr. HUBERT. Had there been any phone calls?

Mr. CRAFARD. No; not while I was at the club. I waited until about 30 minutes after he left and then I went to eat.

Mr. HUBERT. Where did you eat?

Mr. CRAFARD. To the drugstore, Walgreen Drugstore.

Mr. HUBERT. You ate alone?

Mr. CRAFARD. Yes.

Mr. HUBERT. You came back to the club?

Mr. CRAFARD. Yes; that’s right.

Mr. HUBERT. What time was it when you got back?

Mr. CRAFARD. It must have been about 6:20 or 6:30, something like that, I guess—a little later.

Mr. HUBERT. When did you next hear from Ruby or see him?

Mr. CRAFARD. I never saw him again until the next morning. He called me from Eva's, talked with me for a few minutes, about an hour after he left. I just got back from eating.

Mr. HUBERT. How do you know he was at Eva's?

Mr. CRAFARD. He said he was at Eva's, and then I could hear her voice. They was watching on television.

Mr. HUBERT. What was the subject of that conversation?

Mr. CRAFARD. So far as I can recall, he just asked me if there had been any calls, as far as I can recall.

Mr. HUBERT. And you simply told him no?

Mr. CRAFARD. That is right.

Mr. HUBERT. Did he ask you about the sign?

Mr. CRAFARD. Yes; I told him I had it ready and he made sure, he told me again what time—not to put it up until after about 7:30 or a quarter to eight.

Mr. HUBERT. How long did that conversation last?

Mr. CRAFARD. It was just a very few minutes. It couldn't have been more than two dozen words spoken at the most.

Mr. HUBERT. Did he give you any indication as to what his plans were?

Mr. CRAFARD. No.

Mr. HUBERT. Did he say anything about going to church?

Mr. CRAFARD. Not that I can recall. I think he said something about I could reach him at Eva's if I needed him for anything, I think he said.

Mr. HUBERT. And this you think was between 6:15 and 6:30, or long in there?

Mr. CRAFARD. I prefer to say between 6:30 and 7.

Mr. HUBERT. What did you do with the rest of the day?

Mr. CRAFARD. I stayed at the club and watched it on television.

Mr. HUBERT. You were alone?

Mr. CRAFARD. Yes.

Mr. HUBERT. Nobody else came at all?

Mr. CRAFARD. No. The door was locked downstairs, nobody could get up.

Mr. HUBERT. Did you put up the sign?

Mr. CRAFARD. I waited until about a quarter to eight before I put up the sign.

Mr. HUBERT. Were the other clubs open?

Mr. CRAFARD. I believe they were closed too. I am not sure. I am not positive about that.

Mr. HUBERT. Any phone calls come at all the rest of the evening?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. You were there alone that night?

Mr. CRAFARD. Yes.

Mr. HUBERT. You just watched television until you went to bed?

Mr. CRAFARD. I watched television for quite a while. I watched television most of the afternoon. It seemed like the more I watched it, the worse it made me feel, in a way, so I just quit watching it. I had a couple of books there and I read most of the afternoon and the evening.

Mr. HUBERT. What time did you go to bed?

Mr. CRAFARD. I must have went to bed probably about 9 or 9:30, something like that.

Mr. HUBERT. And there were no phone calls?

Mr. CRAFARD. Not that I can recall. I believe there was—about midnight I believe it was, there was a call. I don't even know why this girl called. I don't even know why she called. I talked to her for a few minutes and then I took the phone out of the office. It had a big long cord on it and I carried it in by my bed. I stretched out on the bed and we talked for quite a long time.



Mr. HUBERT. Who was the girl?

Mr. CRAFARD. I don't even remember her name. I had never met her before or ever heard from her again.

Mr. HUBERT. Who did she say she was?

Mr. CRAFARD. She give me her name. I don't remember what her name was.

Mr. HUBERT. What did she say her business was, why did she call?

Mr. CRAFARD. I think she said something about wanting a job with the club or something.

Mr. HUBERT. It was not a girl that worked at the club in any way?

Mr. CRAFARD. No; she was not connected with the club.

Mr. HUBERT. Do you think she did identify herself?

Mr. CRAFARD. Yes; I know she identified herself.

Mr. HUBERT. But you don't remember who she was?

Mr. CRAFARD. No.

Mr. HUBERT. You had never seen her before?

Mr. CRAFARD. No. I had never met the girl.

Mr. HUBERT. You didn't recognize the name?

Mr. CRAFARD. No.

Mr. HUBERT. Did you recognize the voice?

Mr. CRAFARD. No.

Mr. HUBERT. As far as you could say then this was a complete stranger to you?

Mr. CRAFARD. Yes.

Mr. HUBERT. How long did you speak to her?

Mr. CRAFARD. Oh, we must have talked altogether for about an hour, an hour and a half, and then hung up, and about 15 or 20 minutes she called back and talked for a couple of hours.

Mr. HUBERT. Now you talked to this girl for a total of about 3 hours that night?

Mr. CRAFARD. That's right.

Mr. HUBERT. What was it all about?

Mr. CRAFARD. Just more or less talking, getting acquainted. More than anything over the phone, the best I could.

Mr. HUBERT. Did she indicate where she was?

Mr. CRAFARD. She was baby sitting for a friend of hers. She give me to understand she was to catch a bus out of town the next morning, about 5:30.

Mr. HUBERT. In the course of the conversation did you try to find out why she had called the Carousel?

Mr. CRAFARD. She called, she said, to start with, when we first started talking, she had called to find out about a job in the club. I don't know why she done it that way—that is what she said, as far as I can recall.

Mr. HUBERT. Was she aware that the President was dead?

Mr. CRAFARD. Yes; I believe we discussed that a little bit too. T don't recall what was said.

Mr. HUBERT. The first time you spoke to her, you said it was about midnight—right?

Mr. CRAFARD. Yes.

Mr. HUBERT. You had been asleep?

Mr. CRAFARD. I believe I had just started dozing off when the phone rang.

Mr. HUBERT. And you spoke to her then about an hour?

Mr. CRAFARD. Yes; I believe—I'm not sure—I think Little Lynn called.

Mr. HUBERT. What time did she call?

Mr. CRAFARD. Just the one time that I can recall.

Mr. HUBERT. What time?

Mr. CRAFARD. I believe that was about 9:30 or 10 o'clock.

Mr. HUBERT. What did she say?

Mr. CRAFARD. After I laid down.

Mr. HUBERT. What did she want?

Mr. CRAFARD. She wanted to talk to Jack.

Mr. HUBERT. Did she tell you what about?

Mr. CRAFARD. No; she just said it was urgent. I believe I told her Jack was at Eva's and give her Eva's number.

Mr. HUBERT. Where was she?

Mr. CRAFARD. She was at her home in Fort Worth, as I understood.

Mr. HUBERT. Is that a long-distance call?

Mr. CRAFARD. Yes.

Mr. HUBERT. Any other workers, waitresses or girls come in that night?

Mr. CRAFARD. No, none. Jack had had Andy call all of them to tell them not to come in.

Mr. HUBERT. Now when you ended the conversation with this girl that began about midnight, was there an arrangement for one or the other of you to call up again in a few minutes?

Mr. CRAFARD. No; I told her I'd like to talk to her again. I told her I'd like to meet her. I told her I'd like to get acquainted with her. I tried to get her to talk a little longer. She said she had to hang up. And then she called me back 15 or 20 minutes later.

Mr. HUBERT. And then you continued to talk for a couple of hours?

Mr. CRAFARD. Yes.

Mr. HUBERT. How did that end up?

Mr. CRAFARD. Some one of the younger kids there woke up or something.

Mr. HUBERT. Had you made any arrangement to meet her, to see her?

Mr. CRAFARD. No; no definite arrangements. I tried to get her to tell me what bus station she was leaving out of. She wouldn't even tell me what bus

station she was leaving out of. I told her I'd meet her before she caught the bus, but she wouldn't tell me where she was leaving.

Mr. HUBERT. This conversation in fact, Larry, was kind of a love making on the phone deal, wasn't it?

Mr. CRAFARD. More or less what you might say an attempt.

Mr. HUBERT. And part of that attempt of course would be trying to find out who she was and where you could meet her, wouldn't it?

Mr. CRAFARD. Who she was and where I could meet her at her likes and her dislikes, such as that.

Mr. HUBERT. She wouldn't tell you any of that?

Mr. CRAFARD. No, she wouldn't tell me where I could meet her at or anything, but other than we really talked as if we known each other for months, actually.

Mr. HUBERT. You didn't write down her name, Larry?

Mr. CRAFARD. I think I wrote her name down, but I never could get her phone number.

Mr. HUBERT. Where did you write it down?

Mr. CRAFARD. I believe I wrote it down in that notebook I had. I'm not sure. I don't have her name now. I never had her name after I left Texas, I know that.

Mr. GRIFFIN. Would you recognize that name in the notebook?

Mr. CRAFARD. I'm not even sure of that.

Mr. HUBERT. We will have an opportunity.

Mr. GRIFFIN. Did she sound like a young girl? How old a person was she?

Mr. CRAFARD. I believe she said she was 19, 18 or 19 years old.

Mr. HUBERT. She told you, didn't she, that she had to be at the bus station at 5 o'clock?

Mr. CRAFARD. I believe it was 5, 5:30 or 6 o'clock.

Mr. HUBERT. There is only one bus station there, isn't there?

Mr. CRAFARD. Two bus stations, Trailways and Greyhound.

Mr. HUBERT. Did you find out which one?

Mr. CRAFARD. No.

Mr. HUBERT. She wouldn't tell you that?

Mr. CRAFARD. No.

Mr. HUBERT. Did she tell you what time the bus was going to leave?

Mr. CRAFARD. I think she said something about she had to leave where she was at 5:30 or 6 o'clock to catch the bus.

Mr. HUBERT. To catch the bus?

Mr. CRAFARD. To catch the bus.

Mr. HUBERT. To go where?

Mr. CRAFARD. I think she said she was going to Chicago.

Mr. HUBERT. Did you try to find out what buses from either station were leaving around that time?

Mr. CRAFARD. No; I didn't call the bus depots or anything. I wasn't that interested in it.

Mr. HUBERT. Well, you were interested enough in her to talk with her for 3 hours. I wondered if you weren't interested enough to find out if you couldn't meet her by going to one of the bus stations.

Mr. CRAFARD. She talked—she was leaving town and didn't figure on being back for quite a little while.

Mr. HUBERT. When did she tell you that?

Mr. CRAFARD. Shortly after we started—I believe just shortly before we finished the conversation I started to find out where to meet her at.

Mr. HUBERT. Which was it? What killed your interest? Is that what you are trying to tell us?

Mr. CRAFARD. I figured she was leaving town, there wasn't no sense in going to too much trouble to try and meet her if she was leaving town and

wasn't figuring on being back.

First, she talked like she was going to be gone for the weekend, and then just shortly before we finished the conversation, she give me to understand that she would be gone on a prolonged, for a prolonged period of time.

Mr. HUBERT. So this girl then, who was going for a long period of time, you suggest was willing to talk with you for 3 hours and the conversation, the general tenor of which was sort of love making on the phone, as it were?

Mr. CRAFARD. As you would put it; yes.

Mr. HUBERT. Did you find out or try to find out her phone number?

Mr. CRAFARD. I asked for her—I tried to get her phone number where she was at. I tried to get her home phone number. I tried to get her address. She wouldn't.

Mr. HUBERT. She wouldn't give you any of that?

Mr. CRAFARD. No.

Mr. HUBERT. Can you give us any idea what subject you could possibly have talked about for that length of time?

Mr. CRAFARD. Mostly we discussed our different hobbies, our likes and dislikes. Like I say, the conversation was more as if we had known each other for 2 or 3 weeks or better.

Mr. HUBERT. You must have made more than one effort to try to get her phone number and her address.

Mr. CRAFARD. Several times I tried.

Mr. HUBERT. What reason did she ascribe for not giving it to you?

Mr. CRAFARD. She said she was at a neighbor's place. She was babysitting for some friends of hers.

Mr. HUBERT. Yes; but you had asked her for her home address as well?

Mr. CRAFARD. Yes.

Mr. HUBERT. Her home phone?

Mr. CRAFARD. She just wouldn't give me any reason for not giving me her home phone number that I can recall.

Mr. HUBERT. Let's see, that means that she was a person who was going out of town and did not want to talk to you any more, and didn't want to give you her number.

Mr. CRAFARD. That is right.

Mr. HUBERT. Or where you could reach her?

Mr. CRAFARD. That's right.

Mr. HUBERT. But she spoke to you for 3 hours?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Larry, when she called did she ask for anyone in particular?

Mr. CRAFARD. She asked if it was the Carousel.

Mr. GRIFFIN. And then what did she say?

Mr. CRAFARD. And I said yes, and I asked her if there was something I could do for her. I believe she said she had called in answer to an ad in the paper.

Mr. GRIFFIN. Was there an ad in the paper?

Mr. CRAFARD. Ruby continuously run an ad for girls. After I got to talking to her—it's kind of funny as all get-out—getting ready to leave town the next morning and then calling in in response to this ad.

Mr. GRIFFIN. I take it you got the impression after talking with her for a while that she really hadn't called in response to that ad.

Mr. CRAFARD. I got the impression she was kind of a kook, in a way. I have known of girls to do this, call up strange people and talk to them as long as the person will talk to them.

Mr. HUBERT. Do you do that too?

Mr. CRAFARD. No; I have never done that, not that way.

Mr. HUBERT. So it was not your normal way of doing?

Mr. CRAFARD. No.

Mr. HUBERT. And it was the middle of the night, Larry?

Mr. CRAFARD. That is right.

Mr. HUBERT. Why do you think you did that?

Mr. CRAFARD. Just talked to her, somebody to talk to. I wasn't sleepy. Somebody to talk to more than anything.

Mr. HUBERT. You see the point—that that would be a story that would be much easier to accept if the time element was not present.

Mr. CRAFARD. Yes; I understand.

Mr. HUBERT. You must admit it is rather extraordinary for two strangers to speak as long as you did on two separate occasions when apparently there was no particular purpose about it, and no particular future to it.

Mr. CRAFARD. I can't explain it.

Mr. HUBERT. Did she indicate that she was somebody with the Carousel operation, what it was like?

Mr. CRAFARD. No; not that I can recall.

Mr. HUBERT. Did she say what she wanted to do there, what kind of a job she wanted?

Mr. CRAFARD. It was a job for waitresses was what he run all the time.

Mr. HUBERT. Did she mention that is what she was applying for?

Mr. CRAFARD. She mentioned the fact that she was calling in connection with the ad.

Mr. HUBERT. Well, you must have asked her what she looked like.

Mr. CRAFARD. Oh, yes; I asked her for a general description of herself, measurements and weight.

Mr. HUBERT. Can you tell us what she said?

Mr. CRAFARD. As far as I can recall, she give me her general height and weight, color of her eyes, her hair.

Mr. HUBERT. What was all that?



Mr. CRAFARD. I don't recall.

Mr. HUBERT. You mean you don't remember whether she was a blonde or a brunette?

Mr. CRAFARD. I believe she said she had brown hair.

Mr. HUBERT. Then you do recall about that?

Mr. CRAFARD. I think that is what she said. I am not sure.

Mr. HUBERT. What about her height? What mental impression did you form as to what sort of a person she must look like?

Mr. CRAFARD. From the description she give me, I figured she must be a fairly nice looking girl.

Mr. HUBERT. I judged that you had that impression. Did she have a good figure?

Mr. CRAFARD. If I recall right, she more than likely must have had. That is about 90 percent of a girl's looks anyway.

Mr. HUBERT. What is that?

Mr. CRAFARD. I figure that is about 90 percent of a girl's looks, physical looks, is her figure.

Mr. HUBERT. You mean you are attentive to that sort of thing?

Mr. CRAFARD. Yes; like any other man.

Mr. HUBERT. I am not critical. It brings me back to the point that you said you didn't remember what she looked like. I suggest perhaps that you do. It is a little bit more than you are telling us.

Mr. CRAFARD. I figured that she must have been a pretty nice—had a pretty decent figure from her description and everything, or I wouldn't have thought she was a fairly good looking girl if she hadn't give a pretty good description of her figure. But as far as the measurements, I can't remember the exact measurements or anything like that.

Mr. HUBERT. But she was a brunette and she had a good figure. Did she say anything about her weight?

Mr. CRAFARD. She must have been fairly light. It seemed attractive to me because I like a smaller female. It must have been about 100 or 105, something like that. But I don't remember the exact weight or anything.

Mr. HUBERT. But you do remember that the weight was attractive to you?

Mr. CRAFARD. It must have been light.

Mr. HUBERT. And therefore it was light. Are there any other preferences of yours that would help us to determine that she told you?

Mr. CRAFARD. Not that I can think of, other than a good figure and a fairly decent height.

Mr. HUBERT. How did she describe her face?

Mr. CRAFARD. I don't really remember how she described her face, it has been so blasted long ago.

Mr. HUBERT. When the first part of this conversation ended, did she tell you she was going to call you back?

Mr. CRAFARD. I believe I said something to her about calling me back if she got the chance, or something.

Mr. HUBERT. Did she say why she had to end the conversation, the first conversation?

Mr. CRAFARD. I think she said something about the kids she was babysitting with, or something.

Mr. HUBERT. You mean that she had to attend to them?

Mr. CRAFARD. Yes.

Mr. HUBERT. And that she had to end the conversation?

Mr. CRAFARD. To tell you the truth what I thought, I kind of had the idea all the way through it sounded to me like it was a bunch of older guys and gals in the background giggling all the time. It seems to me like it was a dare they had put her up to just to see how long a person would talk to her, or something.

Mr. HUBERT. Then there were people?

Mr. CRAFARD. It sounded like.

Mr. HUBERT. Other than babies?

Mr. CRAFARD. She kept saying she was babysitting with these kids and that was all that was there was these young kids.

Mr. HUBERT. But you heard adults in the background?

Mr. CRAFARD. It sounded to me like it was at least teenagers, kids at least in their midteens, if not older, and I kind of had the idea that they had probably put her up to a dare.

Mr. HUBERT. And you were willing to go along with that?

Mr. CRAFARD. Sure; why not? I would probably never see her.

Mr. HUBERT. And you haven't?

Mr. CRAFARD. No; not that I know of.

Mr. HUBERT. Let's put it this way: You may have met some girls since then, but in any case those that you have met have not identified themselves or become identified with that girl?

Mr. CRAFARD. No.

Mr. HUBERT. That would take us until about 3 o'clock in the morning wouldn't it?

Mr. CRAFARD. Right about that; yes.

Mr. HUBERT. Were you asleep?

Mr. CRAFARD. I think I dozed off about then, and by then this call came from Jack.

Mr. HUBERT. What time was that?

Mr. CRAFARD. That must have been between 3:30 and 3:45, I guess.

Mr. HUBERT. How long after the call with the girl?

Mr. CRAFARD. It wasn't but about—it couldn't have been more than a half hour.

Mr. HUBERT. Did Jack indicate that he had been trying to get you but the line had been busy?

Mr. CRAFARD. No.

Mr. HUBERT. What did he want?

Mr. CRAFARD. He wanted me to get dressed to meet him downstairs with the camera, Polaroid Land camera, with extra films and extra bulbs.

Mr. HUBERT. That is the camera you told us was previously used for taking the pictures of customers?

Mr. CRAFARD. Taking the pictures of what?

Mr. HUBERT. Of customers.

Mr. CRAFARD. Yes.

Mr. HUBERT. Did he ask you whether you knew how to operate that camera?

Mr. CRAFARD. I think there had been some discussion about the camera on a couple—on a previous occasion about it.

Mr. HUBERT. As a matter of fact, you had operated it?

Mr. CRAFARD. Yes; I had operated it at the club a couple of times.

Mr. HUBERT. He knew you had?

Mr. CRAFARD. Yes; I think there was something said a couple of nights before, something about it.

Mr. HUBERT. You had taken pictures of the customers, as you frequently did, to give them as they danced with the girls? And he knew that you had done that?

Mr. CRAFARD. Yes, see; yea, he knew that I had done it.

Mr. HUBERT. Did he ask you if you knew how to operate one?

Mr. CRAFARD. He asked me if I knew how to change the film, that is what it was. I told him yes.

Mr. HUBERT. So what happened then?

Mr. CRAFARD. So I went ahead and got dressed. I had just got dressed and got the film and bulbs and was starting to get the camera when this guy

from the garage called up and told me Jack was downstairs and wanted me to hurry. So I went out downstairs and got in the car.

Mr. HUBERT. Who was the guy from the garage?

Mr. CRAFARD. I don't remember what his name was.

Mr. HUBERT. A white man?

Mr. CRAFARD. I believe it was a white boy.

Mr. HUBERT. White woman?

Mr. CRAFARD. White man.

Mr. HUBERT. White man. Did he telephone you or come up?

Mr. CRAFARD. He telephoned up. He couldn't have come up. The door was locked.

Mr. HUBERT. So Jack was there?

Mr. CRAFARD. Outside in the car when I went down, Jack and George Senator.

Mr. HUBERT. How long was that after you had spoken to Jack?

Mr. CRAFARD. It couldn't have been more than a half hour at the most, because I hadn't much more than got dressed when he called from upstairs.

Mr. HUBERT. As I understood it, about a half hour after you finished talking to the girl you were just about dozing when Jack called?

Mr. CRAFARD. Yes.

Mr. HUBERT. And said he would be right down?

Mr. CRAFARD. Yes.

Mr. HUBERT. You got up and dressed?

Mr. CRAFARD. That is right.

Mr. HUBERT. You fetched the camera?

Mr. CRAFARD. That is right.

Mr. HUBERT. And the bulbs and the film?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. Did you load the camera then?

Mr. CRAFARD. The camera was loaded.

Mr. HUBERT. It was already loaded?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did he know that?

Mr. CRAFARD. He knew it was loaded but nobody had any idea exactly how many—we didn't know for sure how many pictures were left in it.

Mr. HUBERT. Did you take some extra film?

Mr. CRAFARD. Yes.

Mr. HUBERT. It was all there?

Mr. CRAFARD. A roll of extra film.

Mr. HUBERT. All of that wouldn't take a half hour, would it?

Mr. CRAFARD. I washed up, I imagine, before I got dressed. I usually did.

Mr. HUBERT. Did he tell you where you were going?

Mr. CRAFARD. Not until after we went out there. We took off and I said, "Where are we going?" He didn't say anything. He went on out there.

Mr. HUBERT. When he called by telephone the first time did he tell you where he was?

Mr. CRAFARD. I don't know for sure. I don't remember whether he did or not.

Mr. HUBERT. Do you know where he was?

Mr. CRAFARD. I took it for granted he was at the home as far as I figured.

Mr. HUBERT. Was there anything that you now recall that would help you remember as to whether he was calling from home or not?

Mr. CRAFARD. No; not that I can recall.

Mr. HUBERT. So in fact you really don't know where he was?

Mr. CRAFARD. That is right.

Mr. HUBERT. Did you think it was as much as a half hour after he called that you got the call from the garageman to come down?

Mr. CRAFARD. Yes.

Mr. HUBERT. And he and Senator were in the car?

Mr. CRAFARD. That is right.

Mr. HUBERT. Senator was in front?

Mr. CRAFARD. Yes; Jack and Senator were both in front.

Mr. HUBERT. You got in the back?

Mr. CRAFARD. That's right.

Mr. HUBERT. And you drove off?

Mr. CRAFARD. That's right.

Mr. HUBERT. It is at that time I think you said you asked him what this was all about?

Mr. CRAFARD. I think I said something about where are we going.

Mr. HUBERT. What did he say?

Mr. CRAFARD. He said "I want you to take some pictures."

Mr. HUBERT. And did you ask him where?

Mr. CRAFARD. He was driving then.

Mr. HUBERT. Did you ask him of what?

Mr. CRAFARD. I don't recall if I asked him about what or not. I think him and Senator were talking.

Mr. HUBERT. Do you remember what they were talking about?

Mr. CRAFARD. Something about an ad, I think an ad, a sign or something like that. When we got out there, it was "Impeach Earl Warren" sign at the corner of the North Central Expressway.

Mr. HUBERT. And what?

Mr. CRAFARD. North Central and Hall, I believe it is.

Mr. GRIFFIN. Would you describe this intersection that you think that you took this sign—

Mr. CRAFARD. It was just like most of the expressway intersections are. Around—come around under this bridge under an overcrossing and a road into the side here, and another one comes square into it here over the other side of the bridge. It was a building set in here.

Mr. HUBERT. Let me ask you this: How do you know it was the North Expressway and Hall?

Mr. CRAFARD. The sign on the corner.

Mr. HUBERT. You saw the sign that said that?

Mr. CRAFARD. Yes. We parked right beside the sign.

Mr. HUBERT. And you have no questions about your memory on that? It was next to a sign saying North Expressway?

Mr. CRAFARD. It was on the North Central Expressway. I believe it was the North Central and Hall.

Mr. HUBERT. You parked by the sign which designated both streets?

Mr. CRAFARD. I believe—yes; I believe that was the name of the streets. I am not sure of the side street, but I believe it was Hall.

Mr. GRIFFIN. You drove out of town from the Carousel Club. Did you drive north on the North Central Expressway?

Mr. CRAFARD. I don't know which way. I don't even know exactly which way the North Central Expressway runs.

Mr. GRIFFIN. Let me ask you this: This overpass that was near the intersection, did you go under the overpass before you got to the sign?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Now the sign, was that located facing traffic that comes into town or traffic that goes out of town?



Mr. CRAFARD. I believe it was facing traffic coming into town; I am not sure.

Mr. GRIFFIN. And was there a place to park near that sign?

Mr. CRAFARD. On a side street that I believe is Hall.

Mr. GRIFFIN. Could you pull off what you believe to be Hall Street, could you pull off the road at that point and drive right up next to the sign?

Mr. CRAFARD. There was a curb up—you would have to go over the curb to do so, I believe. I think we parked along the curb here and got out and walked across this open, small open space to the building the sign was on.

Mr. GRIFFIN. How large was the sign?

Mr. CRAFARD. It was I think about 3-foot long and about the same height, 3 or 4 foot.

Mr. GRIFFIN. And what kind of a standard or support was it on?

Mr. CRAFARD. It was on a building.

Mr. GRIFFIN. It was actually plastered on a building?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. About how high up on the building was it?

Mr. CRAFARD. I'd say about 5 or 6 foot.

Mr. HUBERT. How many pictures did you take?

Mr. CRAFARD. I took three photographs.

Mr. HUBERT. Were those instantaneous print pictures?

Mr. CRAFARD. Yes; 10-second Polaroid.

Mr. HUBERT. After you had finished taking them, what happened?

Mr. CRAFARD. We got back in the car and went back into town to one of those cafes and had coffee.

Mr. HUBERT. What is the name of the cafe?

Mr. CRAFARD. I don't remember the name of the cafe. I could take a person right to it, but I can't tell you the name.

Mr. HUBERT. How far away was it from the Carousel?

Mr. CRAFARD. About 2½ blocks.

Mr. HUBERT. Which way?

Mr. CRAFARD. I believe it would be south.

Mr. HUBERT. What was it, on Commerce Street?

Mr. CRAFARD. It was half a block off Commerce, two blocks down Commerce and half a block off.

Mr. HUBERT. Was Senator with you then?

Mr. CRAFARD. Yes, the three of us were together. We went in and had coffee, and I believe Jack showed the pictures to the man there in the cafe.

Mr. HUBERT. What did Jack say about the pictures at any time, commencing from the time you took them till——

Mr. CRAFARD. There was some reference made between the address on the pictures and the address on an ad he had saw in the paper.

Mr. HUBERT. Who made that reference?

Mr. CRAFARD. Ruby made the reference.

Mr. HUBERT. Do you remember the context of the reference, what the idea was contained in his reference?

Mr. CRAFARD. The fact that there was quite a similarity—he said something about the numbers were the same when turned around a little bit.

Mr. HUBERT. You mean that the numbers——

Mr. CRAFARD. In the address.

Mr. HUBERT. The numbers in the address of the sign of which you had taken a picture were similar to those in an advertisement of some sort?

Mr. CRAFARD. As far as I could understand, a hate advertisement that he had saw in the paper.

Mr. HUBERT. Did he have that hate advertisement with him?

Mr. CRAFARD. Not that I know of.

Mr. HUBERT. Did he express his thoughts as to what he proposed to do with those pictures?

Mr. CRAFARD. He said something about going down to the post office and checking this box number to see who had a box number, a certain box, or something.

Mr. HUBERT. Other than that, did he mention what he wanted the pictures for?

Mr. CRAFARD. Not that I recall, sir.

Mr. HUBERT. How long did you stay in the cafe?

Mr. CRAFARD. We was there long enough to drink coffee, and that is about it.

Mr. HUBERT. That would be about how many minutes?

Mr. CRAFARD. Oh, maybe 20 or 25 minutes.

Mr. HUBERT. Where did you go next?

Mr. CRAFARD. Then they took me over to the Carousel Club and dropped me off at the Carousel Club.

Mr. HUBERT. What time was that?

Mr. CRAFARD. This was about 5, maybe 5:20. I'd say between 5 and 5:30.

Mr. HUBERT. What did you do next?

Mr. CRAFARD. I went back upstairs and put the camera up.

Mr. HUBERT. And then what?

Mr. CRAFARD. I think I picked up a book and read another book or something.

Mr. HUBERT. Did you go to sleep?

Mr. CRAFARD. Read a book or something.

Mr. HUBERT. Did you go to sleep?

Mr. CRAFARD. I wasn't sleepy at that time.

Mr. HUBERT. I said did you go to sleep?

Mr. CRAFARD. No; not that I can recall.

Mr. HUBERT. What is the next thing that happened?

Mr. CRAFARD. About 8:30, I think it was, I called Jack. When I had been with them I said something about dogfood, and Jack had said he'd bring some back, so I called him about 8:30 and said—I guess I woke him up or something. He was fairly shook up over the phone and chewed me out a little bit about waking him up at that time in the morning.

Mr. HUBERT. Had you ever wakened him up at that time before?

Mr. CRAFARD. No; I had never called him before in the morning, like that.

Mr. HUBERT. What made you do so on this occasion?

Mr. CRAFARD. He wanted me to be sure and feed the dogs, and I didn't have any dogfood to feed them. He was usually up by that time in the morning, the way he talked. He said he always got up at 7 o'clock every morning, and I called him, figured when he did come down he could bring dogfood down.

Mr. HUBERT. You expressed two thoughts a little while ago. I want to, there again, get the factual basis for those thoughts or impressions. One, that he was shook up, and the other that he chewed you out. Those are both impressions that are based upon facts. What were the facts?

Mr. CRAFARD. Well, the way he answered the phone, he was kind of teed off, you know, sort of teed off. He answered the phone in a grumpy way. He had never spoke to me on the phone that way before.

Mr. HUBERT. What did he say?

Mr. CRAFARD. He just give me the daylights for calling him.

Mr. HUBERT. How did he give you the daylights?

Mr. CRAFARD. I don't remember what he said exactly.

Mr. HUBERT. Did he curse?

Mr. CRAFARD. I don't believe so.

Mr. HUBERT. Did he say that you were stupid? Did he use some words that you didn't like, that gave you the impression he was mad at you?

Mr. CRAFARD. I don't remember what he said, sir.

Mr. HUBERT. But, in any case, whatever words they were, they were not polite?

Mr. CRAFARD. No.

Mr. HUBERT. Shall I put it that way?

Mr. CRAFARD. It was his general way of speaking to me, more like—he talked to me more like he always did with Andy, when he was mad with Andy, when he was bawling Andy out for something.

Mr. HUBERT. Was it the tone of voice more than the actual words?

Mr. CRAFARD. I believe it was both. One thing his voice was very loud, and he knew how that grated on me.

Mr. HUBERT. He had talked to you like that before?

Mr. CRAFARD. On one occasion, and I had stopped him. I told him I didn't like it. I told him if he wanted to talk to me, to talk to me, not to yell at me.

Mr. HUBERT. How long ago had that been before?

Mr. CRAFARD. Just shortly after I went to work for him.

Mr. HUBERT. And he had never done it since?

Mr. CRAFARD. No.

Mr. HUBERT. But he did do it on this occasion?

Mr. CRAFARD. That is right.

Mr. HUBERT. You also said that he seemed shook up, I think, or what were the words you used there?

Mr. GRIFFIN. That are used?

Mr. HUBERT. No; that he used.

Mr. GRIFFIN. I think he said “shook up.”

Mr. CRAFARD. I believe I did.

Mr. HUBERT. And that he had chewed you out. I had asked you for a separate basis of facts for both of those, both of those mental impressions you got. Is your explanation intended to cover both of them?

Mr. CRAFARD. About the only thing I could figure, it would be the same for the other.

Mr. HUBERT. As I gather it then——

Mr. CRAFARD. He was shook up, mad.

Mr. HUBERT. He was mad at you?

Mr. CRAFARD. That is what I believe I was using the term “shook up” to mean.

Mr. HUBERT. He was mad at you and he chewed you out.

Mr. CRAFARD. That’s right.

Mr. HUBERT. Did he mention anything about the President?

Mr. CRAFARD. I don’t recall.

Mr. HUBERT. Was it simply that here was a man who had been asleep and who had been wakened and he was mad because somebody had wakened him up?

Mr. CRAFARD. It could have been. That is what I took it as.

Mr. HUBERT. That is what you took it as?

Mr. CRAFARD. Yes.

Mr. HUBERT. He used the tone of voice with you that he had used once before which you didn’t like, and you told him about?

Mr. CRAFARD. He said something else. I don’t remember what it was he said.

Mr. HUBERT. What was it like?

Mr. CRAFARD. How’s that?

Mr. HUBERT. What was it like in addition to this? Was it something particularly more aggravating to you?

Mr. CRAFARD. I would think it was pertaining to the President or something there. I don't remember what it was.

Mr. HUBERT. Well, pass it. Perhaps we will come back to it in a little while. How long did that conversation last, about?

Mr. CRAFARD. Maybe 5 minutes at the most.

Mr. HUBERT. What did he say about the dogs?

Mr. CRAFARD. He said he would bring some dog food down.

Mr. HUBERT. Did he tell you when?

Mr. CRAFARD. No; he said, "When you come."

Mr. HUBERT. Did he tell you when to come?

Mr. CRAFARD. No.

Mr. HUBERT. This you say was about 8:30?

Mr. CRAFARD. About 8:30.

Mr. HUBERT. It lasted 5 minutes?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had Andy come yet?

Mr. CRAFARD. How's that?

Mr. HUBERT. Had Andy come yet?

Mr. CRAFARD. No; Andy wasn't coming in. The club was closed.

Mr. HUBERT. The club still hadn't been cleaned up?

Mr. CRAFARD. No.

Mr. HUBERT. What happened next?

Mr. CRAFARD. I think I went over and had breakfast.

Mr. HUBERT. Right away?

Mr. CRAFARD. Shortly after that. Within 10 or 15 minutes, it was.

Mr. HUBERT. You were still dressed, I take it, because you had never undressed?

Mr. CRAFARD. That's right.

Mr. HUBERT. You hadn't been to sleep at all?

Mr. CRAFARD. No.

Mr. HUBERT. You hadn't been to sleep at all that night?

Mr. CRAFARD. Not very much, dozed off a couple of times or so, I guess.

Mr. HUBERT. I mean what with reading the book after you went to bed and the telephone conversation, or both of them, with the girl?

Mr. CRAFARD. That is right.

Mr. HUBERT. And then the visit outside with Jack and then going back and reading some more, and then the call at 8:30, as I understand you, correct me if I am wrong, you didn't really sleep at all that night?

Mr. CRAFARD. No; that's right.

Mr. HUBERT. Where did you go to breakfast?

Mr. CRAFARD. I went over to the Walgreen drugstore.

Mr. HUBERT. What time did you get back?

Mr. CRAFARD. I was gone about a half hour, approximately—probably 9:15 or 9:30.

Mr. HUBERT. All right. What happened then?

Mr. CRAFARD. I sat around the club there for quite a while. Then I decided to leave, so I took off.

Mr. HUBERT. When did you reach your decision to leave?

Mr. CRAFARD. I don't know. It must have been about 11 or 11:15, something like that.

Mr. HUBERT. Did you have any money?

Mr. CRAFARD. I had \$5, and that was it.



Mr. HUBERT. Were you owed any money?

Mr. CRAFARD. Like I say, there was no—he had come to an agreement to give me some money, but I didn't know how much he had figured on giving me, or anything. I think I took \$5 out of the till, if I remember correct, and left a draw slip in the till.

Mr. HUBERT. Did you have any money other than the \$5?

Mr. CRAFARD. I think I had \$2 in my pocket.

Mr. HUBERT. So you had \$7, all together?

Mr. CRAFARD. That's right.

Mr. HUBERT. Where were you going?

Mr. CRAFARD. I went to Michigan.

Mr. HUBERT. Had you determined at that time that you were going to Michigan?

Mr. CRAFARD. Yes; I had wrote to my sister quite a while before that, and I had got no answer, and I had been worrying, wondering what the devil was wrong there because she never failed to answer me right away.

Mr. HUBERT. Was that the reason that you decided to go, to find out?

Mr. CRAFARD. It was the only reason that I know of I was going.

Mr. HUBERT. What I want to get at is what was your motivation for leaving.

Mr. CRAFARD. Well, I had been wanting to go up to Michigan to see my sister and find out what was wrong.

Mr. HUBERT. And that was the reason you went?

Mr. CRAFARD. That's right.

Mr. HUBERT. Well, then, this little rhubarb you had with Jack wasn't the real cause of it?

Mr. CRAFARD. No.

Mr. HUBERT. That had nothing to do with your decision?

Mr. CRAFARD. That's right.

Mr. HUBERT. Did you leave any note to say what you were doing?

Mr. CRAFARD. No; I left the key down with the boy at the garage, and told him to give it to Jack when Jack come in.

Mr. HUBERT. Did you leave any verbal message that you were leaving?

Mr. CRAFARD. I think I told him to tell Jack I said goodbye.

Mr. HUBERT. Don't you think you owed him more than that?

Mr. CRAFARD. I never stopped to give it a thought.

Mr. HUBERT. Why didn't you call him and tell him that you wanted to go and see your sister?

Mr. CRAFARD. I don't know. I haven't got any idea.

Mr. HUBERT. Why didn't you wait until he came in and tell him?

Mr. CRAFARD. I made up my mind to go, and that was it.

Mr. HUBERT. How did you propose to travel that distance with \$7?

Mr. CRAFARD. Hitchhike.

Mr. HUBERT. Have you done that before in your life?

Mr. CRAFARD. That's right.

Mr. HUBERT. You told absolutely nobody but the garageman that you were leaving; is that right?

Mr. CRAFARD. That's right. He is the only one I spoke to. I gave him the key and told him to tell Jack I said goodbye.

Mr. HUBERT. You did not tell him where you were going?

Mr. CRAFARD. No.

Mr. HUBERT. Where did you in fact go? What route did you take?

Mr. CRAFARD. I went out and took, I think it is 77, I believe it is—right outside of Dallas.

Mr. HUBERT. Did you walk there?

Mr. CRAFARD. I walked out about 15 or 18 blocks, I think it is, and a guy I had met out at the fair picked me up. He saw me.

Mr. HUBERT. Did you arrange for him to pick you up?

Mr. CRAFARD. No; he was going by, he saw me, and he recognized me.

Mr. HUBERT. What is his name?

Mr. CRAFARD. How's that?

Mr. HUBERT. What is his name?

Mr. CRAFARD. I don't remember what his name is. He worked out there for a while. I never did know his name. I don't think he knew my name. He recognized me as having worked out there.

Mr. HUBERT. You were on the highway hitchhiking at that time?

Mr. CRAFARD. That's right.

Mr. HUBERT. Did you have a bag?

Mr. CRAFARD. Yes.

Mr. HUBERT. How large was it?

Mr. CRAFARD. It was a regular satchel and I had another bag.

Mr. HUBERT. What kind of a car was he driving?

Mr. CRAFARD. I think he had a 1934 or 1935 Chevy, I believe it was.

Mr. HUBERT. He was alone?

Mr. CRAFARD. He had his son with him.

Mr. HUBERT. How old is his son?

Mr. CRAFARD. Nine or ten years old, I believe.

Mr. HUBERT. How far did you go with him?

Mr. CRAFARD. He took me about 20 or 25 or 30 miles out. It wasn't in Dallas.

Mr. HUBERT. Did you tell him where you were heading?

Mr. CRAFARD. Yes; I told him I was going up to Michigan.

Mr. HUBERT. Did you discuss the route to go to Michigan?

Mr. CRAFARD. No; I knew the route I wanted.

Mr. HUBERT. Had you looked it up?

Mr. CRAFARD. I had been across that route previously and knew.

Mr. HUBERT. Hitchhiking?

Mr. CRAFARD. Yes.

Mr. HUBERT. How long before?

Mr. CRAFARD. My wife and I left Dallas in 1963. We went up 77 to 66.

Mr. HUBERT. But you weren't hitchhiking then, were you?

Mr. CRAFARD. Yes; we hitchhiked. She wouldn't take the bus. I had money for her to take the bus with her and the kids, and she refused to do so.

Mr. HUBERT. You told us earlier you had gone by bus.

Mr. CRAFARD. We went part way by bus.

Mr. HUBERT. Which part did you go by bus?

Mr. CRAFARD. We went I think from Sacramento, took the bus out.

Mr. HUBERT. You hitchhiked to Sacramento?

Mr. CRAFARD. We hitchhiked to Bakersfield, and picked up a motorcycle I had there and went on the motorcycle. I worked in California there for about 3 weeks.

Mr. HUBERT. When did you go by bus?

Mr. CRAFARD. From Sacramento we took the bus on up to Washington.

Mr. HUBERT. But you hitchhiked the previous time?

Mr. CRAFARD. To Bakersfield.

Mr. HUBERT. With your wife?

Mr. CRAFARD. Yes.

Mr. HUBERT. And it was at her request? She wanted to hitchhike?

Mr. CRAFARD. Yes.

Mr. HUBERT. Rather than go by bus?

Mr. CRAFARD. That's right.

Mr. HUBERT. Did she give any reason for that?

Mr. CRAFARD. She didn't want to leave me.

Mr. HUBERT. Didn't want to what?

Mr. CRAFARD. She didn't want to leave, let me go by myself or something.

Mr. HUBERT. But you said you offered to take her by bus.

Mr. CRAFARD. I offered to send her by bus and I'd hitchhike. That is what I figured on doing. I had the money to send her and the two boys, but I didn't have money enough to take the bus myself.

Mr. HUBERT. So the three of you hitchhiked—the four of you hitchhiked?

Mr. CRAFARD. That's right.

Mr. HUBERT. There were two young babies and you and your wife?

Mr. CRAFARD. That's right.

Mr. HUBERT. Did you have any difficulty with that?

Mr. CRAFARD. None whatsoever.

Mr. HUBERT. Now you have hitchhiked a lot, Larry— isn't it true that it is much harder for a group of people to hitchhike than an individual?

Mr. CRAFARD. It depends on the group. You take a group like that and it is much easier for a family group like that to get a hitchhike than it is for a single person.

Mr. HUBERT. Why?

Mr. CRAFARD. Oh, people seem to stop a lot faster for a family group like that than they would for a single person.

Mr. HUBERT. But you had never hitchhiked north, had you?

Mr. CRAFARD. I figured to myself that we would take a route across from Dallas to Amarillo, that that was a pretty hard route to hitchhike under

any circumstances, and figured that would be a lot easier, to go up 77 to hit 66, than it would be to go through to Amarillo.

Mr. HUBERT. Did you consult a map at all in planning this trip?

Mr. CRAFT. Yes.

Mr. HUBERT. Where?

Mr. CRAFT. We picked it up at the gas station.

Mr. HUBERT. You mean after you started out?

Mr. CRAFT. No; I picked up a map right there.

Mr. HUBERT. Where?

Mr. CRAFT. In Dallas, Tex., about a block from where my wife and I had been living.

Mr. HUBERT. I am talking about consulting a map with reference to going to see your sister when you left Ruby's place.

Mr. CRAFT. I knew that 77 would carry me right into 66, and 66 would carry me almost in to Chicago.

Mr. HUBERT. You didn't have to consult a map then?

Mr. CRAFT. That's right.

Mr. HUBERT. Is that what you are telling us?

Mr. CRAFT. That's right.

Mr. HUBERT. All right. This boy picked you up then and carried you about 30 miles, you say?

Mr. CRAFT. That's right.

Mr. HUBERT. To what place?

Mr. CRAFT. Out the other side of Carrollton a little ways.

Mr. HUBERT. What State?

Mr. CRAFT. Texas.

Mr. HUBERT. Did he live there?

Mr. CRAFARD. He had a place there on the lake he was working on, he was going out there.

Mr. HUBERT. What lake was that?

Mr. CRAFARD. I don't remember the name of the lake.

Mr. HUBERT. But it was at Carrollton?

Mr. CRAFARD. Out the other side of Carrollton.

Mr. HUBERT. How far beyond Carrollton?

Mr. CRAFARD. I don't know. He went out and turned off on a country road.

Mr. HUBERT. But he left you on the highway?

Mr. CRAFARD. Yes.

Mr. HUBERT. Was it a country road that went east or west of the highway you were on?

Mr. CRAFARD. I believe he went to the west, I am not sure.

Mr. HUBERT. Did he tell you how far he had to go up the road?

Mr. CRAFARD. No.

Mr. HUBERT. He was going to work, is that it?

Mr. CRAFARD. How's that?

Mr. HUBERT. He was going to work?

Mr. CRAFARD. He was going to go up and do some work on his cabin.

Mr. HUBERT. On his cabin on the lake?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did this man know Ruby?

Mr. CRAFARD. Not that I know of.

Mr. HUBERT. Could he have met Ruby as you did out at the fair?

Mr. CRAFARD. He could have, yes.

Mr. HUBERT. You don't know that he did?

Mr. CRAFARD. Not that I know of.

Mr. HUBERT. Did you speak to him about what you had been doing in the interim since you had last seen him?

Mr. CRAFARD. I told him that I had been working in Dallas at the Carousel.

Mr. HUBERT. Did you mention that you had been working for Ruby?

Mr. CRAFARD. I probably told him that Ruby ran the Carousel Club.

Mr. HUBERT. Did he show any signs of recognizing he had seen Ruby out at the State Fair?

Mr. CRAFARD. No.

Mr. HUBERT. Or that he knew him in any other way?

Mr. CRAFARD. No.

Mr. HUBERT. So far as you know then, the man didn't know Ruby?

Mr. CRAFARD. That's right.

Mr. HUBERT. He gave no manifestations of knowing him at all?

Mr. CRAFARD. That's right.

Mr. HUBERT. All right, then. What happened next?

Mr. CRAFARD. I hitchhiked on up to Michigan.

Mr. HUBERT. How long did you wait for your next hitch?

Mr. CRAFARD. Oh, barely about 10 or 15 minutes.

Mr. HUBERT. The same spot or were you walking along?

Mr. CRAFARD. I stayed right there, walked about a hundred yards, maybe, up to an entryway where the cars came into the freeway.

Mr. HUBERT. Then you got another ride?

Mr. CRAFARD. Got another ride, right there.

Mr. HUBERT. Who was that with?

Mr. CRAFARD. I don't remember.



Mr. HUBERT. Tell us something about him, what kind of a car it was, was it a man, a woman?

Mr. CRAFARD. Oh, man; I believe it was a ride with a man.

Mr. HUBERT. How far did you go with this second driver?

Mr. CRAFARD. Wait a minute, it was a man and his wife that picked me up, carried me on up across the line, up to where he hit 66.

Mr. HUBERT. What kind of a car was it, do you know?

Mr. CRAFARD. I believe they had an old Chevy, or an old Ford.

Mr. HUBERT. What license car?

Mr. CRAFARD. It was a Texas car.

Mr. HUBERT. And they carried you across the Texas line?

Mr. CRAFARD. Yes. They was going up to visit some relatives of his up there.

Mr. HUBERT. Where? Is there a town at the Texas line that he dropped you off?

Mr. CRAFARD. No; it was on up about 50 or 60 miles across the other side of the line.

Mr. HUBERT. Oh, I thought from what you said that he had dropped you off at the line. In fact he had brought you about 60 miles beyond the line.

Mr. CRAFARD. Yes.

Mr. HUBERT. And into what State?

Mr. CRAFARD. I believe it was Oklahoma.

Mr. HUBERT. How long did you ride with him?

Mr. CRAFARD. We was together for about 5 or 6 hours.

Mr. HUBERT. What time of day was it when he dropped you off?

Mr. CRAFARD. It was night when I got off there.

Mr. HUBERT. What time had he picked you up?

Mr. CRAFARD. He picked me up about between 12:30 and a quarter to 1.

Mr. HUBERT. Do you remember the town it was in?

Mr. CRAFARD. It was one of the big towns there, if I can think of it.

Mr. HUBERT. Tulsa, Oklahoma City?

Mr. CRAFARD. Oklahoma City, I think it was.

Mr. HUBERT. You rode in the back?

Mr. CRAFARD. I rode in the front seat with them. They were driving the car.

Mr. HUBERT. What?

Mr. CRAFARD. I rode in the front seat with them.

Mr. HUBERT. The three of you in the front?

Mr. CRAFARD. Yes, they had stuff in the back seat.

Mr. HUBERT. And I understood you to say that they didn't tell you their names at all?

Mr. CRAFARD. They give me their name, but I don't remember it.

Mr. HUBERT. But that they were going to visit some relatives in Oklahoma City?

Mr. CRAFARD. Yes. They was visiting his dad.

Mr. HUBERT. His father. And that would have been around 6:30 or 7 at night?

Mr. CRAFARD. Right around there; yes.

Mr. HUBERT. Where did you have lunch?

Mr. CRAFARD. We stopped along the road at a cafe and had lunch.

Mr. HUBERT. Did you stop on the road with the couple or with that friend?

Mr. CRAFARD. With the couple.

Mr. HUBERT. You paid for your own lunch?

Mr. CRAFARD. That's right.

Mr. HUBERT. That I think was your first expenditure on the trip?

Mr. CRAFARD. That's right.

Mr. HUBERT. How much did that cost you?

Mr. CRAFARD. Maybe \$1, a dollar and a half.

Mr. HUBERT. Did you pay for their lunch?

Mr. CRAFARD. No; they paid for their own.

Mr. HUBERT. All right, what did you do then?

Mr. CRAFARD. They let me out. I hitchhiked on up to Michigan.

Mr. HUBERT. Did they leave you in downtown?

Mr. CRAFARD. No; they took me out to the edge of town to hitch a ride.

Mr. HUBERT. Was it in the direction they were going?

Mr. CRAFARD. They dropped by there, by his dad's place, and we sat there and we each had a cup of coffee and he took me out to the edge of town.

Mr. HUBERT. So you met his dad too?

Mr. CRAFARD. Yes.

Mr. HUBERT. You don't know what street that was on?

Mr. CRAFARD. No; I don't.

Mr. HUBERT. You don't know the name of the people?

Mr. CRAFARD. No.

Mr. HUBERT. Was there anybody else there besides the father?

Mr. CRAFARD. There was the father and one son that was at home.

Mr. HUBERT. An adult son?

Mr. CRAFARD. He was in school I understand.

Mr. HUBERT. How old a boy was he?

Mr. CRAFARD. He must have been about 16 or 17.

Mr. HUBERT. How long did you stay there?

Mr. CRAFARD. We was there maybe a half an hour.

Mr. HUBERT. And had coffee?

Mr. CRAFARD. Yes.

Mr. HUBERT. No supper?

Mr. CRAFARD. No.

Mr. HUBERT. Then they took you from there to a spot on the highway on the other side of Oklahoma City—that is, on the north side—did they?

Mr. CRAFARD. That is right.

Mr. HUBERT. And dropped you off for your next hitch?

Mr. CRAFARD. That's right.

Mr. HUBERT. How long a drive was it to get you there?

Mr. CRAFARD. Oh, maybe about 4 or 5 miles.

Mr. HUBERT. Miles you say?

Mr. CRAFARD. Yes.

Mr. HUBERT. The man and his wife or just the man?

Mr. CRAFARD. Him and his wife, and I think his brother was with him, him and his wife and his brother.

Mr. HUBERT. They dropped you off?

Mr. CRAFARD. Yes.

Mr. HUBERT. Any suggestions made that you might rest overnight there?

Mr. CRAFARD. No.

Mr. HUBERT. And you did not?

Mr. CRAFARD. No.

Mr. HUBERT. Did you get a hitch?

Mr. CRAFARD. Yes.

Mr. HUBERT. Right away?

Mr. CRAFARD. Oh, I stood there maybe a half hour, 45 minutes, I was standing under a street light.

Mr. HUBERT. Did you get supper?

Mr. CRAFARD. I think I ate about 10 or 11 o'clock that night.

Mr. HUBERT. Tell us about your third hitch, how long it was, and so forth.

Mr. CRAFARD. I believe it carried me through most of the night, through the rest of the night I believe.

Mr. HUBERT. Was it a man, woman?

Mr. CRAFARD. It was a man.

Mr. HUBERT. Alone?

Mr. CRAFARD. As far as I can figure.

Mr. HUBERT. How old?

Mr. CRAFARD. Maybe in his late thirties.

Mr. HUBERT. What sort of an automobile?

Mr. CRAFARD. I think he had a Buick.

Mr. HUBERT. Do you remember the color?

Mr. CRAFARD. No; I don't.

Mr. HUBERT. Do you remember the license, what State license?

Mr. CRAFARD. Oklahoma.

Mr. HUBERT. Did you sit in the back or in the front?

Mr. CRAFARD. I sat in the front.

Mr. HUBERT. And he carried you how far?

Mr. CRAFARD. We traveled most of the night. He was traveling back east.

Mr. HUBERT. What time did he drop you off and where?

Mr. CRAFARD. I think he dropped me off just the other side of Missouri, in Missouri, just outside of St. Louis on 66.

Mr. HUBERT. Which side of St. Louis?

Mr. CRAFARD. The south side.

Mr. HUBERT. Which way was he going?

Mr. CRAFARD. That would be the west side of 66, of St. Louis, on 66. He was going into St. Louis.

Mr. HUBERT. Where was he going after that?

Mr. CRAFARD. As far as I know, he was going back home.

Mr. HUBERT. East?

Mr. CRAFARD. I was going up on 66. So far as I know he was stopping in St. Louis.

Mr. HUBERT. I thought you said he was going east.

Mr. CRAFARD. From where he picked me up it was east, from where he picked me up.

Mr. HUBERT. What I mean, was St. Louis his final destination?

Mr. CRAFARD. Yes.

Mr. HUBERT. That was it as far as he was concerned?

Mr. CRAFARD. Yes.

Mr. HUBERT. You say you had supper with him?

Mr. CRAFARD. We stopped at about 10 or 10:30 and had a bite to eat.

Mr. HUBERT. Where?

Mr. CRAFARD. I think we stopped at a truck stop.

Mr. HUBERT. You don't know what place?

Mr. CRAFARD. No.

Mr. HUBERT. How long after you had been riding with him did you stop?

Mr. CRAFARD. He picked me up, it must have been about 8 o'clock, or 8:30. We didn't stop until about 10 or 10:30 for lunch, for a bite to eat.

Mr. HUBERT. Two and a half hours?

Mr. CRAFARD. About that.

Mr. HUBERT. Do you think you could have run a hundred miles or so?

Mr. CRAFARD. Easily.

Mr. HUBERT. It wasn't a city which you stopped at?

Mr. CRAFARD. No, it was just a little truck stop on the highway.

Mr. HUBERT. On 66?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you fall asleep there?

Mr. CRAFARD. I believe I did, yes.

Mr. HUBERT. At what time, do you know?

Mr. CRAFARD. I have no idea.

Mr. HUBERT. You are not sure then that you did fall asleep?

Mr. CRAFARD. I fell asleep, but I have no idea when it was.

Mr. HUBERT. Do you know how long you slept?

Mr. CRAFARD. I slept until about a half hour out of St. Louis, when I woke up.

Mr. HUBERT. What time did you get to St. Louis?

Mr. CRAFARD. I don't remember.

Mr. HUBERT. Was it daylight?

Mr. CRAFARD. I believe so.

Mr. HUBERT. How much had you spent for supper?

Mr. CRAFARD. Maybe a dollar; a dollar and a half.

Mr. HUBERT. You were down to about \$4 then?

Mr. CRAFARD. That's right.

Mr. HUBERT. What happened next?

Mr. CRAFARD. Then I went on up. I got a ride there.

Mr. HUBERT. How long did you have to wait until you got that next hitch?

Mr. CRAFARD. Maybe a half hour.

Mr. HUBERT. Tell us about that one; what time it was, what kind of a car it was, the people in it.

Mr. CRAFARD. I imagine it was a man alone.

Mr. HUBERT. Don't imagine if you can help it. If you can't remember, but try to recollect.

Mr. CRAFARD. I can't recall.

Mr. HUBERT. How far did you go on that hitch?

Mr. CRAFARD. I believe he carried me clear up into Chicago.

Mr. HUBERT. How far a run would that be?

Mr. CRAFARD. How's that?

Mr. HUBERT. How much of a run would that be?

Mr. CRAFARD. That would be about a 7- or 8-hour ride, driving time, I believe.

Mr. HUBERT. It was daylight then?

Mr. CRAFARD. Yes.

Mr. HUBERT. So you were on that hitch about 7 hours?

Mr. CRAFARD. That's right.

Mr. HUBERT. Can you tell us whether it was a man or a woman?

Mr. CRAFARD. It was a man.

Mr. HUBERT. Was he alone?

Mr. CRAFARD. Yes; most of your rides are with men alone.



Mr. HUBERT. A little while ago you told us that you didn't know whether it was a man or a woman or anything; you didn't remember. Now you tell us it was a man.

Mr. CRAFARD. That's right.

Mr. HUBERT. And then you really do remember that it was a man?

Mr. CRAFARD. Yes.

Mr. HUBERT. As a matter of fact, I daresay you can describe him, can't you?

Mr. CRAFARD. No; I can't describe him.

Mr. HUBERT. Was he a young man or an old man?

Mr. CRAFARD. I believe he was in his late twenties.

Mr. HUBERT. Now, what about the automobile?

Mr. CRAFARD. It seems to me like it was a red and white Chevy.

Mr. HUBERT. You say you were with that person and in that automobile about 7 or 8 hours clean into Chicago. So you had a lot of opportunity to observe such things as who you were riding with.

Mr. CRAFARD. It has been quite a while back, too.

Mr. HUBERT. Is it your memory that you now say he was a man in his late twenties; about 29?

Mr. CRAFARD. I would say in his late twenties.

Mr. HUBERT. And that you don't remember the type of car?

Mr. CRAFARD. I believe it was a Chevy.

Mr. HUBERT. You don't remember the State license plate?

Mr. CRAFARD. No.

Mr. HUBERT. Did you do any stopping with him?

Mr. CRAFARD. I imagine we probably stopped a couple of times and gassed up; stopped and had a bite to eat.

Mr. HUBERT. Do you remember the cost of that meal?

Mr. CRAFARD. No; I don't. It couldn't have been more than about a dollar or a dollar and a half, at the most.

Mr. HUBERT. You didn't pay for his meal or buy the gas?

Mr. CRAFARD. No.

Mr. HUBERT. Is it customary for hitchhikers to help out that way?

Mr. CRAFARD. Not very often. A man usually figures if he picks up a hitchhiker he figures on feeding him when he picks him up.

Mr. HUBERT. What is that?

Mr. CRAFARD. A man who usually picks up somebody who is hitchhiking, they usually figure on feeding him.

Mr. HUBERT. These people didn't feed you?

Mr. CRAFARD. No. I try to have money in my pocket when I am hitchhiking.

Mr. HUBERT. What time did you get to Chicago?

Mr. CRAFARD. It was in the afternoon.

Mr. HUBERT. What part of the afternoon.

Mr. CRAFARD. I'm not sure.

Mr. HUBERT. Would it have been early afternoon or getting toward dark? This time of the year it gets dark early; it did at that time.

Mr. CRAFARD. Yes; I know.

Mr. HUBERT. You say you had been with him about 7½ hours?

Mr. CRAFARD. About that.

Mr. GRIFFIN. Let me get the time straight here a little bit.

Mr. HUBERT. I thought we did have it straight.

Mr. GRIFFIN. I am not straight.

Mr. HUBERT. Let me see if I can't get this straight. You rode through the night of the 23d?

Mr. CRAFARD. That's right.

Mr. HUBERT. Until the man left you off on the morning of the 24th on the west side of St. Louis on Highway 66; is that right?

Mr. CRAFARD. That's right.

Mr. HUBERT. It was daylight then, and you had been with that man since about 8 o'clock the night before. Now, do you remember the time that he left you off? I think you stated that, didn't you?

Mr. CRAFARD. I'm not exactly sure what the time was. Probably about 6 or 6:30; something like that.

Mr. HUBERT. And then you rode with this other man from that time or about a half hour after that time, you said; so that is about 7 o'clock on the morning of the 24th, you rode with him about 7½ hours to Chicago?

Mr. CRAFARD. About that; yes.

Mr. HUBERT. So then we can reconstruct that you must have reached Chicago or nearby Chicago at approximately half past 2 or 3 in the afternoon.

Mr. CRAFARD. It must have been in there somewhere.

Mr. HUBERT. But you had stopped a little while for lunch.

Mr. CRAFARD. Yes.

Mr. HUBERT. And gas and so forth. What do you think is the fair time to state, Larry?

Mr. CRAFARD. How's that?

Mr. HUBERT. What do you think is the fair time to state that the man let you off in Chicago, given the time schedule that we have been able to work out to the extent that it helps your memory? You were there. What we are trying to do is to get the facts.

Mr. CRAFARD. It must have been about 2:30, 3 o'clock, because I got through Chicago all right without any trouble.

Mr. HUBERT. He didn't take you through Chicago?

Mr. CRAFARD. No; I bypassed most of Chicago.

Mr. HUBERT. How did you do that?

Mr. CRAFARD. On a couple alternate routes.

Mr. HUBERT. With hitchhikers?

Mr. CRAFARD. Different rides.

Mr. HUBERT. Different rides?

Mr. CRAFARD. Yes.

Mr. HUBERT. How many?

Mr. CRAFARD. I got three or four different rides in Chicago.

Mr. HUBERT. With these several rides around Chicago, bypassing it, how long did it take you to get around Chicago?

Mr. CRAFARD. Probably 2 or 3 hours.

Mr. HUBERT. And these were all short ones?

Mr. CRAFARD. Yes.

Mr. HUBERT. Do you recall your next long one that really took you out of Chicago good?

Mr. CRAFARD. I believe I had a ride carried me over to Lansing.

Mr. HUBERT. What distance is that from Chicago?

Mr. CRAFARD. I'm not sure of the exact distance.

Mr. HUBERT. What time did that man pick you up, a woman, or whoever it was?

Mr. CRAFARD. It was a man. It must have been getting on toward night; it must have been.

Mr. HUBERT. Toward 9, or night?

Mr. CRAFARD. Night. It must have been getting toward dark. It was getting dark pretty quick at that time.

Mr. HUBERT. Was that man alone?

Mr. CRAFARD. As far as I can recall.

Mr. HUBERT. And you had that ride clean on from Chicago to Lansing, Mich.?

Mr. CRAFARD. I believe so; yes.

Mr. HUBERT. What time did you get to Lansing?

Mr. CRAFARD. I don't remember.

Mr. HUBERT. Of course, it was night?

Mr. CRAFARD. Yes.

Mr. HUBERT. You weren't at your destination yet, were you?

Mr. CRAFARD. No.

Mr. HUBERT. Did you stay in Lansing very long?

Mr. CRAFARD. No; not too long. I had to pretty well walk through quite a bit of Lansing; about an hour and a half walk, I guess it was.

Mr. HUBERT. Well——

Mr. GRIFFIN. You walked for an hour and a half?

Mr. CRAFARD. About that.

Mr. GRIFFIN. And you had two bags with you?

Mr. CRAFARD. Yes.

Mr. HUBERT. You didn't attempt to take any streetcars or buses?

Mr. CRAFARD. No city buses running when I got there.

Mr. HUBERT. Would you judge that it was too late for the buses?

Mr. CRAFARD. Yes; I think it was.

Mr. HUBERT. Was it after midnight?

Mr. CRAFARD. I think so; I'm not sure.

Mr. HUBERT. That was a man, too, you think?

Mr. CRAFARD. Yes.

Mr. HUBERT. Where did you have supper?

Mr. CRAFARD. I think we must have stopped; I think we stopped before we got to Lansing at a cafe to get supper.

Mr. HUBERT. How far out of Lansing? If you don't remember the miles, you might tell us about how long before he dropped you off.

Mr. CRAFARD. I don't know that, either.

Mr. HUBERT. You don't know?

Mr. CRAFARD. It must have been 3 or 4 hours. Probably about halfway between Chicago and Lansing.

Mr. HUBERT. Do you think you were with him about 8 hours, then?

Mr. CRAFARD. I think so; I'm not sure.

Mr. HUBERT. And he picked you up about dark?

Mr. CRAFARD. Yes; that is about a 400- or 500-mile ride.

Mr. HUBERT. He picked you up about dark in Chicago?

Mr. CRAFARD. Just about toward dark.

Mr. HUBERT. Five in the afternoon?

Mr. CRAFARD. It must have been 5 or 5:30.

Mr. HUBERT. So it was something like midnight or shortly after when you got to Lansing?

Mr. CRAFARD. Yes.

Mr. HUBERT. And you say about halfway between; that is when you had lunch or supper?

Mr. CRAFARD. That is right.

Mr. HUBERT. Or about 8 o'clock, do you think; 9 o'clock?

Mr. CRAFARD. It must have been about 8—8 or 8:30—something like that.

Mr. HUBERT. When did you first hear that Oswald had been shot?

Mr. CRAFARD. I had heard that Oswald had been shot Sunday evening.

Mr. HUBERT. Where?

Mr. CRAFARD. It must have been while I was getting through Chicago.

Mr. HUBERT. Where did you hear that?

Mr. CRAFARD. Over the radio.

Mr. HUBERT. What radio?

Mr. CRAFARD. The car radio.

Mr. HUBERT. Did you know that Ruby had done it?

Mr. CRAFARD. No; I didn't find out who had done it until the following Monday, the following morning, Monday.

Mr. HUBERT. Where did you find that out?

Mr. CRAFARD. I heard that over the radio.

Mr. HUBERT. As a matter of fact, Larry, I suppose all of those cars you were in had radios, didn't they?

Mr. CRAFARD. A lot of people don't listen to the radio when they are riding like that. That was the first I'd heard of it—was Sunday evening, the first I heard Oswald had been shot.

Mr. HUBERT. Sunday afternoon, wasn't it?

Mr. CRAFARD. How is that?

Mr. HUBERT. You said it was while you were working your way through Chicago.

Mr. CRAFARD. Yes.

Mr. HUBERT. Which took you two or three different cars; about 2 hours or so?

Mr. CRAFARD. Yes.

Mr. HUBERT. It was in one of those that you heard it?

Mr. CRAFARD. Yes.

Mr. HUBERT. There was no announcement that Ruby had done it?

Mr. CRAFARD. I don't believe so, because I didn't know Ruby had done it until Monday morning.

Mr. HUBERT. How did you find that out?

Mr. CRAFARD. I heard that over the news.

Mr. HUBERT. In a car?

Mr. CRAFARD. Yes.

Mr. HUBERT. During the night when you were driving from Chicago to Lansing, during the period from 5 in the afternoon to about midnight, didn't you hear any radio announcements about any of this matter?

Mr. CRAFARD. No.

Mr. HUBERT. Did that car have a radio in it?

Mr. CRAFARD. I believe so.

Mr. HUBERT. Wasn't it playing?

Mr. CRAFARD. Not that I recall.

Mr. HUBERT. Did you discuss the shooting?

Mr. CRAFARD. After I found out that Oswald had been shot we discussed it a little bit. We couldn't understand. Both of us, as far as I can recall—the gentleman I was riding with and myself—we both said we would like to have seen him come to trial.

Mr. HUBERT. Did you mention to the man that you were from Dallas?

Mr. CRAFARD. I don't recall.

Mr. HUBERT. Isn't it customary for hitchhikers to discuss what is a subject common to them, and that is where you have been and where you are going?

Mr. CRAFARD. Most of the time; yes.

Mr. HUBERT. Didn't you, in fact, do that with this man; tell him you were from Dallas?

Mr. CRAFARD. I don't recall whether I did or not.

Mr. HUBERT. There is a difference between telling us that you don't know and that you did not.

Mr. CRAFARD. That is what I say. I don't recall whether I did or not.



Mr. HUBERT. So, really, it is not that you are saying to us that you didn't, but just that you don't remember?

Mr. CRAFARD. That is right, I don't recall whether I had been doing so. I more than likely did, because it is usually something that they say; it is a subject that most people would discuss—where their destination is and where they have come from.

Mr. HUBERT. And I would think that if you did, if there was a possibility that you did, and you mentioned that you were from Dallas, that that would be another topic of conversation that might be interesting between two people riding along that way.

Mr. CRAFARD. Yes.

Mr. HUBERT. That is to say, that you had been in the city at which the President was killed.

Mr. CRAFARD. We would have discussed that.

Mr. HUBERT. Doesn't that refresh your memory on the subject?

Mr. CRAFARD. No; it doesn't, sir.

Mr. HUBERT. You still don't remember?

Mr. CRAFARD. No; I don't.

Mr. HUBERT. Talking to that man about the fact that you were in Dallas?

Mr. CRAFARD. No; I don't.

Mr. HUBERT. Do you remember having any indication that it was known who had shot Oswald?

Mr. CRAFARD. No, sir; I don't.

Mr. HUBERT. Did you talk to anyone about the fact that it was a nightclub owner?

Mr. CRAFARD. I don't recall, sir.

Mr. GRIFFIN. Did the radio remain on after you heard this announcement?

Mr. CRAFARD. I don't remember whether the radio stayed on, or whether he turned it off, or what.

Mr. HUBERT. In any case, what you are telling us—it is your best memory now that you heard it over the radio that Oswald had been shot. That is as much as you did hear?

Mr. CRAFT. That is right.

Mr. HUBERT. You did not hear who had done it or even the type of person who had done it, or what business the person was in who had done it, and that you never discussed it with anybody that you rode with in any one of those rides in Chicago and with the ride to Lansing?

Mr. CRAFT. So far as I recall, I don't recall—I imagine it was discussed, but I don't recall discussing it. I don't remember it.

Mr. HUBERT. Let's put it this way: If you had discussed with anybody the killing of Oswald, the man accused of killing Oswald, you would remember that now, wouldn't you, Larry?

Mr. CRAFT. Yes; I would, if I discussed anything about who had been accused of it, but, like I say, the first knowledge I had of who had shot Oswald was Monday morning.

Mr. HUBERT. We will get to that in a moment. Now, you had to go through Lansing, and you say it took but an hour and a half?

Mr. CRAFT. That is right.

Mr. HUBERT. What was your next hitch?

Mr. CRAFT. As far as I can remember, I had a series of short rides, 20 or 25 miles to a ride.

Mr. HUBERT. How far along did these series of short rides take you?

Mr. CRAFT. I think I probably traveled about 60 or 70 miles before I got a good ride.

Mr. HUBERT. That point, 60 or 75 miles beyond Lansing being the same point at which you got a good ride, was what place?

Mr. CRAFT. I don't remember.

Mr. HUBERT. Was it a large city, a small town?

Mr. CRAFT. It was a small place as far as I can remember.

Mr. HUBERT. Was that the last hitch you had?

Mr. CRAFTARD. I believe I got one more after that. I think that one carried me to Mount Pleasant.

Mr. HUBERT. To Mount Pleasant?

Mr. CRAFARD. Yes.

Mr. HUBERT. How far is Mount Pleasant from Lansing?

Mr. CRAFARD. I'm not sure.

Mr. HUBERT. Perhaps we can get it by approaching the times. Apparently you left Lansing about an hour and a half after you got there, after you got there about midnight or so, and correct me if I am wrong. We could assume that you left Lansing with a series of short rides which took you 60 miles, approximately 1:30 to 2 o'clock on the morning of the 25th, is that correct?

Mr. CRAFARD. Yes, it must have been about that.

Mr. HUBERT. And would you care to estimate for us as to how long it took you with the series of short rides to cover the 60 miles to which you have referred?

Mr. CRAFARD. It would be an hour and a half, 2 hours, 2 hours and a half.

Mr. HUBERT. Perhaps it would help if you look at it in this way. Do you remember whether the next long ride that took you into Mount Pleasant you got before or after daylight?

Mr. CRAFARD. It was before daylight.

Mr. HUBERT. It was still dark?

Mr. CRAFARD. I walked about—where this guy let me off at it was about 5 miles from where there was any light and I walked up where there was light to get a ride.

Mr. HUBERT. I didn't quite understand that.

The man who picked you up 60 miles on the other side of Lansing let you off before light?

Mr. CRAFARD. I walked about 5 miles before I got a ride with him.

Mr. HUBERT. Was it light when you got a ride with him?

Mr. CRAFARD. I don't believe so. I have lost some time somewhere between leaving Dallas and getting there because I didn't get into Clare until 9:30 at night. It was 9:30 at night when I got into Clare.

Mr. HUBERT. At the present time, you are telling us that you picked up this last long ride took you into Mount Pleasant. Let's find out what time you got into Mount Pleasant, because, you see, you told us you don't know what place it was where you picked up that ride, except that it was somewhat about 60 miles on the other side of Lansing.

Mr. CRAFARD. Yes, sir; I didn't get into Clare until, I think it was 9 or 9:30 at night. I've lost at least 8 hours of time.

Mr. HUBERT. Of course I don't know that you have because I don't know what geography or distance we are talking about.

Mr. CRAFARD. The distance isn't that great. It only is 15 miles from Mount Pleasant to Clare.

Mr. HUBERT. Let's start this way. What time did you get to Mount Pleasant?

Mr. CRAFARD. I think it was about 8:30 at night when I got to Mount Pleasant because it was 9:30, I'm almost positive it was 9 or 9:30 when I got into Clare, because I went over to my cousin's house in Clare. I remember that.

Mr. HUBERT. It was before dark and before dawn when you picked up the driver somewhere approximately 6 miles on the other side of Lansing who took you into Mount Pleasant. Now, how long did you ride with him, and how far is it between the two?

Mr. CRAFARD. That is what I mean. I have lost some time earlier somewhere, because it is not that long a ride. I could have made it from Lansing to Clare and back again during the day.

Mr. HUBERT. Larry, we want to get it straight.

Mr. CRAFARD. That is what I am trying to do, myself.

Mr. HUBERT. If you want to figure out any place where you have made any mistake about the time——

Mr. CRAFARD. That is what I was trying to do.

Mr. HUBERT. We can start all over again. It seemed to fit as I went along, but I wasn't aware of the distances.

Mr. GRIFFIN. Let me ask him this question: I understand you said that you walked through Lansing.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How long did it take you to walk through Lansing?

Mr. CRAFARD. About an hour, hour and a half, something like that.

Mr. GRIFFIN. And at that time the cars were not running, the transit, the public transportation was not running, or were you out of money at that time?

Mr. CRAFARD. I still had money I have to eat on.

Mr. GRIFFIN. Lansing is how far from Clare?

Mr. CRAFARD. Lansing isn't over, I don't believe it is over 225 miles from Clare to Lansing.

Mr. HUBERT. It may be that you are making a mistake, Larry. Let's see if we can't refresh your memory from the time you got that last long hitch that took you to Mount Pleasant because you remember getting to Mount Pleasant at night, about 8:30.

Mr. CRAFARD. Yes.

Mr. HUBERT. And that, you say, is a run of what—about 5 hours, 6 hours?

Mr. CRAFARD. I don't believe it would take that long.

Mr. HUBERT. So if you got there at about 8:30 at night, then either you didn't get any hitches for a long period of time, or else something else happened.

Mr. CRAFARD. I'm just trying to——

Mr. HUBERT. Because you told us, and if it is not so, why we want you to correct it. Everybody can make mistakes.

Mr. CRAFARD. That is what I was trying to do.

Mr. HUBERT. You said that you picked up this ride at a point 60 miles outside of Lansing and into Mount Pleasant prior to dawn on the 25th. Now, maybe that is wrong. Maybe you got that ride late in the day. Let's put it this way. Was that a continuous ride straight on?

Mr. CRAFARD. It carried me straight on through to Mount Pleasant.

Mr. HUBERT. Did you stop at all?

Mr. CRAFARD. Not that I can recall. It isn't that long a run across there.

Mr. HUBERT. Did you stop for lunch or anything of that sort?

Mr. CRAFARD. I don't believe so.

Mr. HUBERT. And it is about a 6-hour run?

Mr. CRAFARD. No; I don't believe it is that long a run across there.

Mr. HUBERT. If you got there at 8:30 at night, and if you are firm about that——

Mr. CRAFARD. I'm positive it was 8:30 or 9 o'clock when I got into Clare.

Mr. HUBERT. I am talking about Mount Pleasant. You had no difficulty getting from Mount Pleasant to Clare, did you?

Mr. CRAFARD. No.

Mr. HUBERT. Would you say an hour would suffice for that?

Mr. CRAFARD. Plenty, plenty of time.

Mr. HUBERT. You got there between 8:30 and 9, that is into Clare, right?

Mr. CRAFARD. Yes.

Mr. HUBERT. Let's back off from there, then. Did you spend any time in Mount Pleasant before leaving for Clare?

Mr. CRAFARD. No.

Mr. HUBERT. So that you must have left Clare about 7:30.

Mr. CRAFARD. I got into Clare about——

Mr. HUBERT. I mean left Mount Pleasant about 7:30, right?

Mr. CRAFARD. No; I left Clare—Mount Pleasant about 8 or 8:30. It was about 9 o'clock when I got into Clare.

Mr. HUBERT. Did you start on your way to Clare immediately after this man left you off at Mount Pleasant?

Mr. CRAFARD. Yes.

Mr. HUBERT. And had you run directly through without stopping from the time the man picked you up and dropped you off in Mount Pleasant?

Mr. CRAFARD. That is right, 15 miles.

Mr. HUBERT. 15 miles? No; I am talking about the run from——

Mr. CRAFARD. From Mount Pleasant to Clare.

Mr. HUBERT. No; I'm talking about the run to Mount Pleasant.

Mr. GRIFFIN. From Lansing to Mount Pleasant.

Mr. HUBERT. A point outside of Lansing to Mount Pleasant. That is about a 4-hour run, you say.

Mr. CRAFARD. At the most, from Lansing to Clare.

Mr. HUBERT. That last long hitch was about a 4-hour hitch?

Mr. CRAFARD. No; the last long ride was maybe 2½ hours.

Mr. HUBERT. 2½ hours?

Mr. CRAFARD. Or 3 hours.

Mr. HUBERT. And that was the man who brought you into Mount Pleasant?

Mr. CRAFARD. Mount Pleasant.

Mr. HUBERT. Therefore, if you got to Mount Pleasant about 8, he must have picked you up about 5 in the afternoon.

Mr. CRAFARD. It must have been.

Mr. HUBERT. Then there is some mistake in timing of about 12 hours.

Mr. CRAFARD. That is what I was saying. I've lost some time there.



Mr. HUBERT. Perhaps it needs a little clarifying. Let me touch on another point.

Mr. CRAFARD. It seems to me I got mixed up on my routes going out of Oklahoma City.

Mr. HUBERT. Think about it a moment and let me touch upon something else before we go back to it. I think you said that you heard that Ruby had done this on the morning of the 25th.

Mr. CRAFARD. That is right.

Mr. HUBERT. Now, could you tell us how you heard it? Did you hear it by newspaper, radio, television, or what?

Mr. CRAFARD. I'm not sure whether it was over the radio or whether I saw it in the newspaper.

Mr. HUBERT. Now, that must have made a terrific impact on you, because, after all, that was your boss.

Mr. CRAFARD. Yes.

Mr. HUBERT. So I suggest that if you will just put your mind to it, you can tell us pretty well how it was and where it was. Was it in a restaurant or an automobile?

Mr. CRAFARD. I think I saw it in the newspaper, saw something about Oswald and then the assassination or something like that, and then I read the rest of it.

Mr. HUBERT. You bought a newspaper?

Mr. CRAFARD. I think so. I must have.

Mr. HUBERT. Didn't you keep it?

Mr. CRAFARD. No; I don't believe so because I didn't have one with me when I got into Clare.

Mr. HUBERT. And it was morning?

Mr. CRAFARD. Yes; it must have been. It was about 8 in the morning.

Mr. HUBERT. 8 in the morning?

Mr. CRAFARD. About that, somewhere.

Mr. HUBERT. Were you with anybody, do you know?

Mr. CRAFARD. I believe I was walking through a small town.

Mr. HUBERT. What was your reaction to it?

Mr. CRAFARD. It was pretty hard to believe.

Mr. HUBERT. Did you tell anybody about it?

Mr. CRAFARD. I think something was said to somebody I was riding with about it or something. Somebody picked me up shortly after I saw it, somebody I was riding with, and we had stopped in a cafe or something. I am pretty sure I discussed it with the person I was riding with.

Mr. HUBERT. You are pretty sure now?

Mr. CRAFARD. The fact that I stated to him that it seemed almost impossible to believe. It seemed to be awfully hard to believe it.

Mr. HUBERT. Did you tell that person that you knew him?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you tell that person that you had started to hitchhike up?

Mr. CRAFARD. I told him I had worked for him, that I had left the day after Kennedy was shot, coming up from Texas.

Mr. GRIFFIN. What did he say?

Mr. CRAFARD. I don't recall.

Mr. HUBERT. Were you with that person very long? Was he the one, for example, who took you into Mount Pleasant?

Mr. CRAFARD. No; I don't believe so.

Mr. HUBERT. Now, let me see. I think you have refreshed your memory to some extent. You tell us now you are quite sure it was a newspaper.

Mr. CRAFARD. I am pretty sure it was.

Mr. HUBERT. That gave you the first information.

Mr. CRAFARD. I still think that—I'm almost positive I got mixed up on my routes in Oklahoma City somewhere, or just out of Oklahoma City.

Mr. HUBERT. We will try to straighten out that route business a little later. You are quite clear that you arrived at Clare, Mich., about 9 o'clock?

Mr. CRAFARD. That is right.

Mr. HUBERT. Was that your destination from the start?

Mr. CRAFARD. My main destination was about Kalkaska, Mich.

Mr. HUBERT. How far is that from Clare?

Mr. CRAFARD. It is about 3 hours running.

Mr. HUBERT. Where did you stop on the night of the 25th, about 9 o'clock, at Clare?

Mr. CRAFARD. I stayed at my cousin's at Clare.

Mr. HUBERT. What is your cousin's name?

Mr. CRAFARD. Clifford Roberts.

Mr. HUBERT. Do you remember the address?

Mr. CRAFARD. 307 East Seventh Street.

Mr. HUBERT. Were they expecting you?

Mr. CRAFARD. No.

Mr. HUBERT. How long since you last saw them?

Mr. CRAFARD. At the time it had been, I think it had been, several years since I saw him at that time.

Mr. HUBERT. How did you know they were there?

Mr. CRAFARD. They wrote to my folks while I was living in Dallas, Oreg.

Mr. HUBERT. Was it——

Mr. CRAFARD. Wait a minute; excuse me. I saw him before I went to work, before I went to work with the carnival. My sister told me where they was living at there.

Mr. HUBERT. Did you intend to stop with him that night or just to visit?

Mr. CRAFARD. Well, I figured when I got in there at that time of night, I knew what the road to Kalkaska was—it was pretty rough overnight, so I figured I would stop. I would be perfectly welcome.

Mr. HUBERT. Were you?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did they recognize you?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did you talk to them about the Ruby matter?

Mr. CRAFARD. Yes. We talked quite a bit of it that night.

Mr. HUBERT. What was the nature of the conversation?

Mr. CRAFARD. About the fact that I told them I had worked for him. It was kind of a surprise to them to know somebody who worked for him; asked me what kind of a guy he was, and everything.

Mr. HUBERT. Did you tell them?

Mr. CRAFARD. What I could, the best I could, what kind of a guy he was.

Mr. HUBERT. Did you tell them under what circumstances—did you tell them the circumstances under which you had left?

Mr. CRAFARD. Yes; told them how I had left.

Mr. HUBERT. Did they express any surprise about that?

Mr. CRAFARD. No; because they knew me.

Mr. HUBERT. They didn't seem to be concerned about it?

Mr. CRAFARD. No.

Mr. HUBERT. Who was there?

Mr. CRAFARD. There was my cousin and his wife.

Mr. HUBERT. Just the two?

Mr. CRAFARD. And their children.

Mr. HUBERT. How old are their children?

Mr. CRAFARD. The oldest one, I think, is 7 or 8, something like that.

Mr. HUBERT. No friends came over?

Mr. CRAFARD. I don't believe there was anybody over that night.

Mr. HUBERT. You did stay there that night?

Mr. CRAFARD. That is right.

Mr. HUBERT. What time did you go to bed?

Mr. CRAFARD. It must have been about an hour and a half after I got there, 2 hours.

Mr. HUBERT. And you slept through the night?

Mr. CRAFARD. That is right.

Mr. HUBERT. Did you remain there the next day?

Mr. CRAFARD. I believe I went on up to Harrison.

Mr. HUBERT. Was that in the direction of Kalkaska?

Mr. CRAFARD. Yes; along the best traveled road.

Mr. HUBERT. What time did you leave Clare?

Mr. CRAFARD. Probably about 9:30 or 10 o'clock.

Mr. HUBERT. Did your cousin Roberts know your destination?

Mr. CRAFARD. He knew where I was going to go on to my sister's.

Mr. HUBERT. He knew you were going to hitchhike?

Mr. CRAFARD. Yes.

Mr. HUBERT. Had he been in touch with your sister, do you know?

Mr. CRAFARD. I don't believe he had been in touch with her for quite a while.

Mr. HUBERT. I mean, did he know she was there?

Mr. CRAFARD. She might have told her that he was living up there—I think mother told my sister where he lived, or something.

Mr. HUBERT. What is the distance between Clare and your sister's place in Kalkaska, is it?

Mr. CRAFARD. Kalkaska, about 100, 120 miles.

Mr. HUBERT. Is that a rural community?

Mr. CRAFARD. Yes.

Mr. HUBERT. No cities along that route?

Mr. CRAFARD. Well, there is one about 60 miles from it.

Mr. HUBERT. What is the name of it?

Mr. CRAFARD. Cadillac. It is about 60 miles from Traverse City.

Mr. HUBERT. Did you have enough money at that time to get a bus ride in?

Mr. CRAFARD. No.

Mr. HUBERT. You had about \$4 or \$5 left, didn't you?

Mr. CRAFARD. I had a couple of dollars left.

Mr. HUBERT. \$2?

Mr. CRAFARD. \$2 or \$3.

Mr. HUBERT. Did you attempt to borrow any money from your cousin to take the trip?

Mr. CRAFARD. No.

Mr. HUBERT. Did he offer to give you any?

Mr. CRAFARD. No; he was in no position to. He had a large family.

Mr. HUBERT. Did you make inquiry as to how much it would cost?

Mr. CRAFARD. No.

Mr. HUBERT. I think you said that you knew that that was a bad road for hitchhikers.

Mr. CRAFARD. At night, I said.

Mr. HUBERT. It is all right in the day?

Mr. CRAFARD. Fairly decent road; yes.

Mr. HUBERT. Did you make it that day into Kalkaska?

Mr. CRAFARD. I went up to Harrison that day and spent a couple of hours with an aunt I have in Harrison, and then went to Kalkaska.

Mr. HUBERT. What is her name?

Mr. CRAFARD. Jean Eaton.

Mr. HUBERT. Is she married?

Mr. CRAFARD. Yes.

Mr. HUBERT. What is her married name?

Mr. CRAFARD. Eaton.

Mr. HUBERT. I see. Do you know her husband's first name?

Mr. CRAFARD. Ed.

Mr. HUBERT. Is he living with her so that it is Mrs. Ed Eaton?

Mr. CRAFARD. Yes.

Mr. HUBERT. Where does she live?

Mr. CRAFARD. I don't know the name of the street she lives on. They get their mail through a post office box.

Mr. HUBERT. You spent a couple of hours there?

Mr. CRAFARD. Yes.

Mr. HUBERT. And you hitchhiked there?

Mr. CRAFARD. Yes.

Mr. HUBERT. How far is Harrison from Kalkaska?

Mr. CRAFARD. About 90, 95 miles, I think.

Mr. HUBERT. Did you get to Kalkaska that night?

Mr. CRAFARD. I don't recall whether I went that night or whether I stayed with my aunt and uncle that night.

Mr. HUBERT. We are talking now about Tuesday, the 26th of November.

Mr. CRAFARD. Yes.

Mr. HUBERT. Do you remember whether you got there Tuesday or Wednesday?

Mr. CRAFARD. I don't remember, sir.

Mr. HUBERT. Do you remember sleeping at your aunt's house?

Mr. CRAFARD. I have spent on several occasions, I have spent the night with my aunt and uncle.

Mr. HUBERT. I mean on that occasion.

Mr. CRAFARD. I don't remember for sure whether I stayed with my aunt.

Mr. HUBERT. I thought you said for a couple of hours there, and I was wondering whether you had slept there that night. You said you visited a couple of hours.

Mr. CRAFARD. I went up there, I got up there before the kids come home for lunch.

Mr. HUBERT. Did you stay 2 hours or more?

Mr. CRAFARD. I believe I spent the rest of the day there.

Mr. HUBERT. And slept there?

Mr. CRAFARD. I believe so. Then I went up to my sister's the next day.

Mr. HUBERT. Did anybody—did your aunt and uncle have a car?

Mr. CRAFARD. Yes; he was working.

Mr. HUBERT. You weren't able to get a ride?

Mr. CRAFARD. No; not with them.

Mr. HUBERT. You had to hitchhike?

Mr. CRAFARD. That is right.

Mr. HUBERT. You didn't even at that point consider bus travel?

Mr. CRAFARD. No.

Mr. HUBERT. So then you got to your sister's house on Wednesday, then?



Mr. CRAFARD. That is right.

Mr. HUBERT. About what time of day?

Mr. CRAFARD. It must have been about 2:30 or 3 o'clock in the afternoon, I imagine.

Mr. HUBERT. She didn't know you were coming?

Mr. CRAFARD. No.

Mr. HUBERT. That is in Kalkaska?

Mr. CRAFARD. She lives about, I think about 20 miles out of Kalkaska, or she did at that time.

Mr. HUBERT. So that when you got to Kalkaska you still had to go another 20 miles?

Mr. CRAFARD. About that, yes.

Mr. HUBERT. That was a rural road?

Mr. CRAFARD. It was about—most of it was a well-traveled road, one of the main roads through the State.

Mr. HUBERT. From Kalkaska to where she lived?

Mr. CRAFARD. It was then about two miles off the road.

Mr. HUBERT. She lives off the main highway?

Mr. CRAFARD. She did at that time.

Mr. HUBERT. Did she live in a log cabin or something of that kind?

Mr. CRAFARD. She was living in a farm house.

Mr. HUBERT. Farm house. About 20 miles from Kalkaska?

Mr. CRAFARD. Yes; a little place called Mancelona.

Mr. HUBERT. Mancelona?

Mr. CRAFARD. Yes.

Mr. HUBERT. It is in County Antrim; isn't it?

Mr. CRAFARD. Yes; I believe so.

Mr. HUBERT. Did you tell her about your experience?

Mr. CRAFARD. Yes.

Mr. HUBERT. What was her reaction?

Mr. CRAFARD. Well, about the same as everybody else.

Mr. HUBERT. Did she know about Ruby?

Mr. CRAFARD. I am not sure whether she did or not. They didn't have their radio or TV either, so I don't know. I think they had heard about it, but I am not sure.

Mr. HUBERT. But, in any case, she didn't know you had been working for him?

Mr. CRAFARD. No.

Mr. HUBERT. Was it at that place that the FBI man interviewed you?

Mr. CRAFARD. Yes.

Mr. HUBERT. What day was that?

Mr. CRAFARD. That is where he picked me up. He picked me up there on Thanksgiving Day.

Mr. HUBERT. What time did he pick you up? Did he arrest you?

Mr. CRAFARD. No. They came out the house about 7 o'clock Thanksgiving Day.

Mr. HUBERT. 7 o'clock at night?

Mr. CRAFARD. In the morning, and he had me go for an interview.

Mr. HUBERT. Where did you go?

Mr. CRAFARD. It was about 10 miles from there. It is a little town where the police station was. I don't remember the name of the town.

Mr. HUBERT. Do you know how they located you?

Mr. CRAFARD. How is that?

Mr. HUBERT. Do you know how they located you?

Mr. CRAFARD. Well, they went to my aunt's.

Mr. HUBERT. How did they——

Mr. CRAFARD. That is one thing I know.

Mr. HUBERT. How did they come to go to your aunt's?

Mr. CRAFARD. When I was in Dallas, I had got a letter from my cousin, and I had left the envelope laying when I left there. They found her address.

Mr. HUBERT. You mean Roberts?

Mr. CRAFARD. No; my aunt's niece, Mickey—my aunt's daughter.

Mr. HUBERT. What is her name?

Mr. CRAFARD. Gail Eaton.

Mr. HUBERT. She is the one who lives in Harrison?

Mr. CRAFARD. Yes.

Mr. HUBERT. She had written you or you had written her?

Mr. CRAFARD. I had wrote her, and then she had wrote me.

Mr. HUBERT. The letter you wrote to her I don't think you mailed.

Mr. CRAFARD. I mailed a couple of them. One or two anyway.

Mr. HUBERT. I think you left one behind, didn't you?

Mr. CRAFARD. I might have; I am not sure.

Mr. HUBERT. Do you know what day they went to your aunt's house?

Mr. CRAFARD. From what I understood, it was the night before they talked to me.

Mr. HUBERT. And she told them, I suppose, that you were going up to your sister's house?

Mr. CRAFARD. Yes, sir.

Mr. HUBERT. And then the next morning they interviewed you?

Mr. CRAFARD. Yes.

Mr. HUBERT. How long did that interview take?

Mr. CRAFARD. About, I believe, 4½ to 5 hours I talked to the men there. That is when they took me back out to the house, and then he asked me to go into Kalkaska the following morning and meet him so he could take some pictures with a Polaroid camera.

Mr. HUBERT. And he did so?

Mr. CRAFARD. He took some pictures, and I talked to him between an hour and a half and 2 hours again that morning.

Mr. HUBERT. Did he go over with you the details of your trip up by hitchhiking?

Mr. CRAFARD. I don't believe he developed that too closely.

Mr. HUBERT. Have you ever been interviewed by the FBI since?

Mr. CRAFARD. I talked to an agent last Saturday at my home in Dallas, Oreg.

Mr. HUBERT. Other than that you have not talked——

Mr. CRAFARD. No.

Mr. HUBERT. I think this man who had interviewed you, this FBI man who interviewed you in Kalkaska, had asked you to keep in touch with them?

Mr. CRAFARD. Yes.

Mr. HUBERT. How was that to be done?

Mr. CRAFARD. Dropping him a card or line letting him know where I was at to get in touch with me.

Mr. HUBERT. That is if you moved?

Mr. CRAFARD. Yes.

Mr. HUBERT. How long did you stay with your sister?

Mr. CRAFARD. I was there a couple of days. Then I went back down to Clare. I think I spent the night there, and then I was going to go to Florida, and I was hitchhiking, and this guy picked me up, and he said it was pretty nasty out, and he said it was too cold and nasty out to hitchhike. He said, "I have got a room over here. I won't be using it tonight, and you'll be

welcome to use it, and then I will bring you back on the road in the morning.” I went out there with him, and he was working with an oil field drilling crew, and one of the men had quit, and they needed a man, so I went to work that night Then I worked up until, with them up until, about the 17th or 18th of February.

Mr. GRIFFIN. Where was that?

Mr. CRAFARD. The main office was out of Mount Pleasant, Michigan. We were moving over the southern portion of the State of Michigan.

Mr. HUBERT. Did you let the FBI know where you were?

Mr. CRAFARD. I wrote to them and told them they could contact me through the North American Drilling office in Mount Pleasant, Michigan. When I left there in February I went to Dallas, Tex. I was at the trial, and then I went out to——

Mr. HUBERT. How did you go to Dallas?

Mr. CRAFARD. I hitchhiked.

Mr. HUBERT. Why did you go to Dallas?

Mr. CRAFARD. It was on a personal matter.

Mr. GRIFFIN. I didn’t get that answer.

Mr. HUBERT. It was on a personal matter.

Mr. CRAFARD. I was trying to locate my wife and children.

Mr. HUBERT. That was in February?

Mr. CRAFARD. Let’s see——

Mr. HUBERT. I think you said you worked for them until—we may be able to clarify that. I just want to hit the highlights right now.

Mr. CRAFARD. I believe I left in March.

Mr. GRIFFIN. Let me ask this question. What is the name of the drilling company?

Mr. CRAFARD. North American Drilling Company. I spent a week or 2 weeks around Clare there before I left. I believe it was in March, the latter part of April.

Mr. GRIFFIN. You are sure you got that job by accident?

Mr. CRAFARD. Yes; it was purely accident.

Mr. HUBERT. You stayed with them until February, as I understand it?

Mr. CRAFARD. I worked with them until about the 18th of February.

Mr. HUBERT. Then you quit, or what happened?

Mr. CRAFARD. I had bought a rattletrap of a car, and we had moved locations, and I had car trouble. I was staying about 40 miles from where we was working, and I had car trouble and I missed out, I missed about five days of work, and in the meantime they got another man.

Mr. GRIFFIN. This drilling company was drilling for oil?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now, when did you get the subpoena to appear at Ruby's trial?

Mr. CRAFARD. I got that in Dallas, Tex., at the courthouse, at the county courthouse.

Mr. HUBERT. In other words, your trip to Dallas was not for the purpose of attending the trial?

Mr. CRAFARD. No; not—mostly no.

Mr. HUBERT. You say not mostly.

Mr. CRAFARD. That wasn't my main reason for going.

Mr. HUBERT. Had you been contacted by anybody to appear at the trial prior to the time you left the North American Drilling Company?

Mr. CRAFARD. Eva Grant's sister had wrote to my cousin, Mrs. Eaton, wanting information as to my whereabouts so they could locate me.

Mr. HUBERT. And she gave it to them?

Mr. CRAFARD. No; she refused to.

Mr. HUBERT. But your cousin let you know?

Mr. CRAFARD. They told me about it.

Mr. HUBERT. What did you do?

Mr. CRAFARD. Then when I arrived in Dallas, I went up to find out what it was all about. I didn't know for sure what it was about.

Mr. HUBERT. Who did you go to see?

Mr. CRAFARD. I went to the courthouse, and then I talked—the first one I saw was Andy. Then I talked to the lawyer, Mr. Phil Burleson, and he subpenaed me then.

Mr. HUBERT. About what date was that, do you know?

Mr. CRAFARD. March 10, I believe it was; yes; it was on my birthday.

Mr. HUBERT. Did it take you from the 18th of February or so to get to Dallas?

Mr. CRAFARD. I stayed around Clare for, I think, a couple—a week or two. It was, let's see, it must have been about the 7th of March because I was only 3 days going from Clare to Dallas.

Mr. HUBERT. Your purpose in going to Dallas was to try to find your wife?

Mr. CRAFARD. That is right.

Mr. HUBERT. Did you succeed in that, by the way?

Mr. CRAFARD. No.

Mr. HUBERT. You haven't yet?

Mr. CRAFARD. No.

Mr. HUBERT. When you saw Burleson then, he told you he wanted you to remain?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did he place you under that subpena?

Mr. CRAFARD. Yes.

Mr. HUBERT. Did they use you at the trial?

Mr. CRAFARD. Yes.

Mr. HUBERT. Can you tell us roughly what the substance of your testimony was at the trial?

Mr. CRAFARD. To the effect that I had took the pictures of the “Impeach Earl Warren” sign and to the effect that he had only planned on shipping one of his dogs to California.

Mr. HUBERT. That is all that was brought out?

Mr. CRAFARD. That was about the main gist of my testimony.

Mr. HUBERT. You were a witness for the defense, I take it?

Mr. CRAFARD. Yes.

Mr. HUBERT. Were you subjected to any cross-examination?

Mr. CRAFARD. I think there were two or three questions put to me on cross-examination.

Mr. HUBERT. Did you get to talk to Ruby then?

Mr. CRAFARD. No, sir.

Mr. HUBERT. Did you see Eva?

Mr. CRAFARD. Yes.

Mr. HUBERT. And Andy Armstrong?

Mr. CRAFARD. How is that?

Mr. HUBERT. Andy.

Mr. CRAFARD. I saw him before—I don’t believe I talked to him after I appeared on the witness stand.

Mr. HUBERT. He was the first one you contacted?

Mr. CRAFARD. Yes; he was the first one I saw.

Mr. HUBERT. In Dallas. Did you go over to the club?

Mr. CRAFARD. No. I went to the courthouse.

Mr. HUBERT. And you saw him at the courthouse?

Mr. CRAFARD. Andy saw me; I didn’t see him. Andy saw me and he recognized me.



Mr. HUBERT. I see. Who else did you talk to while you were in Dallas on this last occasion?

Mr. CRAFT. I talked to the Grants, to the Rubys—the brothers and sisters.

Mr. HUBERT. What about?

Mr. CRAFT. I talked to them after the trial was over, after I had appeared on the witness stand.

Mr. HUBERT. You didn't talk to them before?

Mr. CRAFT. No. I think I had saw Miss Grant one time, and at the time when I did Burleson was standing right beside me when I spoke to her, let her know I was there.

Mr. HUBERT. Did she know where you could be located?

Mr. CRAFT. She didn't know, but Burleson did. While I was in Dallas, you mean?

Mr. HUBERT. Yes.

Mr. CRAFT. Burleson knew.

Mr. HUBERT. Yes.

Mr. CRAFT. Burleson knew.

Mr. HUBERT. She didn't call you to locate you?

Mr. CRAFT. No.

Mr. HUBERT. How long were you in Dallas before you testified?

Mr. CRAFT. Let's see, I landed in Dallas on Sunday. I was in Dallas for about 4 days all together before I testified.

Mr. HUBERT. How long were you in Dallas before you contacted Burleson or met Burleson?

Mr. CRAFT. I arrived in Dallas Sunday, and I contacted Burleson Tuesday.

Mr. HUBERT. And you testified on Thursday?

Mr. CRAFT. Yes.

Mr. HUBERT. And you left on what day?

Mr. CRAFARD. I think it was, I think I spent—let's see, I left Dallas the following Wednesday, I believe it was. I went to California where I stopped and visited a very good friend of the family's. I spent—I arrived there Thursday night about 2 o'clock in the morning. He had just got home from work, and then I spent Thursday night, Friday, Saturday night there, and then I left there Sunday. They were making a trip up north, and they took me up north quite a ways with them, and then I hitchhiked up home.

Mr. GRIFFIN. When you were in Dallas, Tex., where did you stay?

Mr. CRAFARD. I stayed at the mission most of the time.

Mr. HUBERT. What mission is that?

Mr. CRAFARD. City mission.

Mr. HUBERT. Where is it located?

Mr. CRAFARD. I believe it is on Ervay Street.

Mr. HUBERT. You mean it is a religious organization?

Mr. CRAFARD. Yes.

Mr. HUBERT. Runs sort of a hostel or hotel for——

Mr. CRAFARD. Place for guys on the road to stay.

Mr. HUBERT. How did you manage for money on your trip from up north to Dallas, and Dallas on down west, and then again north to Washington?

Mr. CRAFARD. I had some money when I left Dallas, when I left Clare.

Mr. HUBERT. How much did you have.

Mr. CRAFARD. \$40, \$50, something like that.

Mr. HUBERT. Did you work at anytime after you left Clare?

Mr. CRAFARD. Oh, no; I didn't work after I left Clare.

Mr. HUBERT. You didn't earn any money during that period?

Mr. CRAFARD. No. I haven't worked since about the 18th of February, I think it is, at a job.

Mr. GRIFFIN. Who else did you see in Dallas beside the lawyers, Andy Armstrong, and the Ruby family?

Mr. CRAFARD. I saw the people around the mission, and I say, I did work 1 day in Dallas, sir.

Mr. HUBERT. Where, and how much did you make?

Mr. CRAFARD. I made about \$7; I think I got about \$7 out of it. It was out of the labor pool.

Mr. HUBERT. How much money did you have when you got to Dallas?

Mr. CRAFARD. I was just about broke when I got into Dallas.

Mr. HUBERT. How did you manage to live?

Mr. CRAFARD. That is why I said I stayed at the mission.

Mr. HUBERT. It still required money for food.

Mr. CRAFARD. It is a place where they feed you and they give you a place to sleep.

Mr. HUBERT. Did anybody in Dallas give you any money?

Mr. CRAFARD. After I had appeared, after I had appeared on the witness stand, Eva Grant gave me, her and her brother all together, I think gave me \$8.

Mr. HUBERT. \$8?

Mr. CRAFARD. That is right; all total.

Mr. HUBERT. What was the purpose of that?

Mr. CRAFARD. Money to eat on.

Mr. HUBERT. Did you ask them or they asked you?

Mr. CRAFARD. They asked me how I was living, and I told them, and I told them—they give me money to eat on, and I spent Monday, Tuesday—Sunday, I think Sunday, Monday and Tuesday night that I slept in the Carousel Club. They gave me the key to the club so I could stay there.

Mr. HUBERT. Who did; Eva?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Was the club in operation at that time?

Mr. CRAFARD. No.

Mr. HUBERT. That was after you testified?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Had it been changed from the time you had seen it before?

Mr. CRAFARD. There had been no redecoration or anything. I don't think they called it the Carousel. There was a Club de Copa or something, they had run it a little while, and then they revoked her liquor license.

Mr. HUBERT. Yes.

Mr. GRIFFIN. But the interior of the club, did you notice any changes?

Mr. CRAFARD. No.

Mr. GRIFFIN. Was the safe still there?

Mr. CRAFARD. Yes.

Mr. HUBERT. Where was Andy; was he still there?

Mr. CRAFARD. No; Andy was working some place else; I have no idea where.

Mr. HUBERT. When you left, did you return the key to her?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Did you see Ralph Paul or George Senator while you were there?

Mr. CRAFARD. I saw George Senator at the courthouse, that was all.

Mr. HUBERT. You didn't see Ralph Paul or talk to him?

Mr. CRAFARD. I don't remember seeing him. I know I never talked to him, and I don't remember seeing him.

Mr. HUBERT. Did you talk to any of the strippers or the waitresses who used to be there?

Mr. CRAFARD. No.

Mr. GRIFFIN. Think hard now. Was there anybody else that you talked to in Dallas outside of the people you saw in connection with the Ruby trial?

Mr. CRAFARD. These people that I saw around the mission there I talked to is all, and the police department. I asked them to put a tracer on my wife.

Mr. GRIFFIN. Did you see Mr. Case?

Air. Crafard. Case?

Mr. GRIFFIN. Bob Case.

Mr. CRAFARD. No.

Mr. HUBERT. You just arrived in Dallas from Oregon, I think when you were served with these papers to come here?

Mr. CRAFARD. No; I had been home for a little while.

Mr. HUBERT. How long?

Mr. CRAFARD. I had arrived there, I had been there, let's see, I got in Monday—it would have been 2 weeks this last Monday that I had been home. I spent my time looking for a job since I have been home.

Mr. HUBERT. You haven't found any yet?

Mr. CRAFARD. No.

Mr. HUBERT. Have you ever been in trouble in your life in the sense of being charged with any offense?

Mr. CRAFARD. No; sir, I have got two times that I have been picked up, picked up on a vag charge.

Mr. HUBERT. What?

Mr. CRAFARD. Vagrancy charge; Findlay, Ohio, and drunk in a public street in Dallas, Oreg. That is the only two times I have ever been charged.

Mr. HUBERT. Were you actually prosecuted on those two cases?

Mr. CRAFARD. I paid a fine on the drunk on public street, and the other one I was just—I spent 72 hours in the jail and was let go.

Mr. HUBERT. The police have not reported to you on the tracer on your wife?

Mr. CRAFT. No.

Mr. GRIFFIN. When was your wife last known to you to be in Dallas, Tex.?

Mr. CRAFT. I didn't know she was in Dallas. I had an idea she was around the Dallas area somewhere.

Mr. GRIFFIN. When you left Dallas on November 23, did you have an idea that your wife was around the area at that time?

Mr. CRAFT. No.

Mr. GRIFFIN. How did you come to believe that she was around the area?

Mr. CRAFT. Well, I had wrote to my folks asking them for information, if she had been in touch with them, if they knew where she was, and I had a cousin who had been back out west and visited my folks and they told me, they was telling me, they had gotten a letter from this woman in Cuba, Mo., where my wife had been, so when I left Michigan, I went to Cuba, Mo., and I talked to the woman there and, as far as she knew, my wife had went back to the Dallas area, the last she knew of her.

Mr. GRIFFIN. How long had that been?

Mr. CRAFT. It had been, this was Christmastime.

Mr. GRIFFIN. That is when the woman in Cuba, Mo., had seen her?

Mr. CRAFT. That was the last time.

Mr. GRIFFIN. Were the children still with the woman in Cuba, Mo.

Mr. CRAFT. No; the children was with my wife; she had the children.

Mr. GRIFFIN. But you didn't contact her brother?

Mr. CRAFT. No; I tried to, but I couldn't find out. Didn't know where he was living or had no way of getting in touch with him.

Mr. GRIFFIN. Had he moved from the last time?

Mr. CRAFT. The last I knew where he was at he was working on a ranch, and I never could get ahold of the ranch. Nobody had ever heard of it out around Carrollton, and nobody had ever heard of the place. I knew he

was there because I had been out there with him when he got the job, but I didn't have any transportation, so I had no way of going out there.

Mr. GRIFFIN. Well, you thought she was in the Dallas area. Where specifically in the Dallas area did you have in mind?

Mr. CRAFARD. There is a little place about 30 miles out of Dallas called, I think, Greenfield, or something like that, that I was told she was around. She had got a letter from her in that area in February.

Mr. GRIFFIN. Who had?

Mr. CRAFARD. This daughter of this woman in Missouri.

Mr. GRIFFIN. And did the woman, did she, show you the letter?

Mr. CRAFARD. She couldn't find the letter, she couldn't locate it. She put it up in some of her stuff and couldn't locate the letter at that time.

Mr. HUBERT. Did you check out around Greenville for her?

Mr. CRAFARD. No; I didn't get out to Greenville.

Mr. GRIFFIN. Did you contact the Greenville police?

Mr. CRAFARD. No.

Mr. HUBERT. Did you tell the Dallas tracer people?

Mr. CRAFARD. Yes.

Mr. HUBERT. That the last you had heard she was in Greenville?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. You didn't know until you arrived at Cuba, Mo., that your wife might be in Dallas, did you?

Mr. CRAFARD. That is right.

Mr. GRIFFIN. So when you left Michigan on your way to Dallas you really didn't have any idea that your wife would be in Dallas. You expected she might be in Cuba, Mo.

Mr. CRAFARD. When I left Michigan my destination was Cuba, Mo., as far as I knew. As far as I knew, my wife was in Cuba, Mo., or around there some place close.

Mr. GRIFFIN. When you left Cuba, Mo., the only information you had about your wife was that she was somewhere near, might be somewhere in the vicinity of Greenville, Tex.?

Mr. CRAFT. Around the Dallas area is what—she had got this letter from Greenville, and she was in the vicinity, as far as they knew, in the Greenville area of Dallas.

Mr. GRIFFIN. The letter was not written by your wife?

Mr. CRAFT. Yes; it had been written by my wife to this daughter of this woman in Cuba, Mo.

Mr. GRIFFIN. What were you told the letter said?

Mr. CRAFT. Just, she just said, she didn't say anything about what the letter said. She just said it had been wrote from Greenville, and that this girl had wrote back to my wife, and the letter had come back, nobody at that address, no forwarding address.

Mr. GRIFFIN. What direction is Greenville from Dallas?

Mr. CRAFT. That is out sort of the northeast of Dallas, about 35 miles.

Mr. GRIFFIN. What route is that on?

Mr. CRAFT. I am not sure. I don't think it is on a main route. It is, I think, on a smaller highway.

Mr. GRIFFIN. Had you ever heard of this place Greenville, Tex., before?

Mr. CRAFT. Yes; I knew approximately where it was.

Mr. GRIFFIN. How had you happened to hear of it?

Mr. CRAFT. When my wife and I were in Dallas, I had worked for this outfit that built these portable buildings and they built some over in that area.

Mr. GRIFFIN. Did you know of any friends your wife had in Greenville?

Mr. CRAFT. No.

Mr. GRIFFIN. This letter that the woman in Cuba, Mo., received, did it give any indication of how your wife was supporting herself or what her connection was with the party that she was staying with?



Mr. CRAFT. To my knowledge, it didn't.

Mr. GRIFFIN. The woman in Cuba, how did she happen to be friendly with your wife?

Mr. CRAFT. My wife was on the road hitchhiking when she picked her up with the boys. Her and her husband picked my wife up with the boys.

Mr. GRIFFIN. When was that?

Mr. CRAFT. That was about 6 months—it would have been in the middle of the summer last year.

Mr. GRIFFIN. I mean, did your wife keep in contact with this woman from time to time?

Mr. CRAFT. Yes. She left, the wife, the children with this woman for a while, and she was getting a child-support check for her oldest son, my stepson, and she turned the check over to the woman in Missouri.

Mr. GRIFFIN. How did the woman come to know about your mother in Dallas, Oreg.?

Mr. CRAFT. I guess my wife said something about it.

Mr. GRIFFIN. Well, had the woman in Cuba, Mo., written your mother to tell your mother that your wife had left, or something, or what was the occasion for that?

Mr. CRAFT. I believe she wrote trying to find out what kind of a person my wife was more than anything. I believe that was her main reason for writing my mother. From the information I got from her, when my wife would come back, my wife would be gone 2 to 3 weeks, she would come back at least once a month with the check, to sign the check and turn it over to the woman, and she said when my wife did come back she apparently did appear to have quite a bit of money, and always had new clothes and real good clothes, but she said she appeared—she did not appear to have a job of any kind, because of the fact she would come back maybe on a weekend or maybe it would be in the middle of the week.

Mr. GRIFFIN. What is the name of this woman in Cuba, Mo.?

Mr. CRAFARD. I can't even remember right now. I have got it wrote down in that little book, but I can't even remember right now.

Mr. GRIFFIN. When was it that the lady in Cuba last saw your wife?

Mr. CRAFARD. It was Christmas Day.

Mr. HUBERT. Cuba, Mo.?

Mr. GRIFFIN. She saw her Christmastime?

Mr. CRAFARD. Yes. My wife come back and got the children on Christmas Day.

Mr. GRIFFIN. She also got a letter from her about that time?

Mr. CRAFARD. The letter was received after that, I understand.

Mr. GRIFFIN. When the woman in Cuba, Mo., saw your wife at Christmastime, did your wife say where she was going?

Mr. CRAFARD. As far as the woman knew, she was going to Texas.

Mr. HUBERT. Did you know a girl by the name of Gloria that was with Ruby on November 20?

Mr. CRAFARD. I couldn't give you any particular dates, but I know a girl Gloria that he took out, that he went out with a couple of times.

Mr. HUBERT. Is she the same girl as you have identified in this exhibit which has been marked——

Mr. CRAFARD. That is right.

Mr. HUBERT. 5200-A, -B, -C, -D, and -E?

Mr. CRAFARD. That is right.

Mr. HUBERT. That is Gloria McDonald?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. The last name is McDonald.

Mr. CRAFARD. I didn't know what her last name was, I couldn't say, but her first name was Gloria.

Mr. GRIFFIN. Where did she live?

Mr. CRAFARD. It was either Oak Lawn, the Oak Lawn area, or the Oak Ridge area, I am not sure which.

Mr. HUBERT. Did she live alone or with someone?

Mr. CRAFARD. As far as I knew, she was living alone.

Mr. HUBERT. Let me ask when you say something like that, do you mean you don't know or you have some reason to believe she was living alone?

Mr. CRAFARD. I don't know, I will put it that way.

Mr. HUBERT. You really don't know?

Mr. CRAFARD. No.

Mr. HUBERT. Because the way you put it, you see, you infer she is living alone, and if you really have no knowledge about it then you don't know.

Mr. CRAFARD. Right.

Mr. HUBERT. She was the girl that you had breakfast with one morning at the Lucas B&B; isn't that correct?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. When, how long after you began to work for Jack Ruby, did you become aware that Gloria was somebody whom he saw from time to time?

Mr. CRAFARD. I believe Gloria come to the club in answer to an ad, I am not sure. But I believe that is where, how, I met her, when she come to the club in answer to one of the ads we put in the paper.

Mr. HUBERT. Along those lines now, is it your impression that Ruby didn't know this girl Gloria prior to the time she answered an ad?

Mr. CRAFARD. That is my impression, yes.

Mr. HUBERT. Do you remember when she came in?

Mr. CRAFARD. No, I don't.

Mr. HUBERT. But your thought is that Ruby did not know her prior to the time that you went to work for Ruby?

Mr. CRAFT. That is what I understood.

Mr. HUBERT. When we say Gloria we are talking about this girl with the striped dress you have identified in Exhibits 5200-A, -B, -C, -D, and -E; right?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. How many waitresses did Jack employ at any one time?

Mr. CRAFT. Counting the cocktail girls, there were about six or seven girls.

Mr. GRIFFIN. Now, of these six or seven girls did any of them—were any of them employed at the Carousel Club at the entire time you were there?

Mr. CRAFT. Most of them.

Mr. GRIFFIN. How many girls left his employ during the time you were there?

Mr. CRAFT. I believe there was two or three left his employ, not counting Jada, the stripper.

Mr. GRIFFIN. Do you remember which girls left his employ?

Mr. CRAFT. One I was with quite often there, we had meals together.

Mr. GRIFFIN. What was her name, again?

Mr. CRAFT. I don't remember her name. I believe there was one other one there. I would like to change one thing. The name you mentioned, the name of that girl, I never did remember the name, the name Gloria. She worked as a cocktail girl for 2 or 3 nights, and she never made anything at all, couldn't make enough money to buy cigarettes with, and she left.

Mr. HUBERT. The girl in Exhibit 5200-A, -B, -C, -D, and -E was Gloria, wasn't it?

Mr. CRAFT. Yes.

Mr. HUBERT. And she was there only 3 days?

Mr. CRAFT. She worked for him for 2 or 3 nights, and then she left. She couldn't even make enough money to buy cigarettes.

Mr. HUBERT. But then she continued to see him on a social basis?

Mr. CRAFARD. Yes.

Mr. HUBERT. Where was she working, do you know?

Mr. CRAFARD. How is that?

Mr. HUBERT. After she left him where did she go to work?

Mr. CRAFARD. I don't know.

Mr. HUBERT. Do you know whether she went to work or you just don't know anything about her?

Mr. CRAFARD. I don't know.

Mr. HUBERT. Have you any indication that Jack was supporting her in any way?

Mr. CRAFARD. I have no idea.

Mr. GRIFFIN. When Jack placed these ads for waitresses, was it that he needed help?

Mr. CRAFARD. He had to run a continuous ad for girls. I think mostly he was wanting to get girls to start them as strippers.

Mr. GRIFFIN. And he would sort of start them out as waitresses first, is that it, if they showed any prospects——

Mr. CRAFARD. He did with a couple of them, yes.

Mr. GRIFFIN. How about the waitresses, did he have some requirements for the waitresses as to their looks?

Mr. CRAFARD. I don't know. They were all fairly nice-looking girls, but I wouldn't say they were real beauties or anything.

Mr. GRIFFIN. Did he provide them with uniforms?

Mr. CRAFARD. About a week or 2 weeks before President Kennedy was assassinated, he bought uniforms for the girls. But prior to that they hadn't wore uniforms.

Mr. GRIFFIN. They had no uniforms?

Mr. CRAFARD. No.

Mr. GRIFFIN. But they did have a common style of dress?

Mr. CRAFARD. Most of them wore slacks and a blouse or a sweater.

Mr. GRIFFIN. I am going to mark this "Washington, D.C., Exhibit 5201, April 8, 1964, Deposition, C. L. Crafard," and I will sign my name to it.

(Photograph marked Crafard Exhibit No. 5201 for identification.)

Mr. GRIFFIN. Now, Larry, I am going to show you what I have marked as Exhibit 5201. You will notice the picture of a girl there, a brunette, scantily clad. Is she wearing the uniform that you referred to that Jack bought?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Do you recognize the girl in that photograph?

Mr. CRAFARD. I don't believe so.

Mr. GRIFFIN. Did you ever see anybody around the Carousel in an outfit like that?

Mr. CRAFARD. No, sir.

Mr. GRIFFIN. Does that appear to be a picture of the inside of the Carousel Club?

Mr. CRAFARD. Not as I know it, no. We didn't have all this back bar.

Mr. GRIFFIN. Do you recognize anybody in that photograph, 5201?

Mr. CRAFARD. This man looks familiar, but——

Mr. GRIFFIN. The man at the table looks familiar to you?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Can you probe your memory some and try to tell us why he looks familiar?

Mr. CRAFARD. He looks like somebody I saw in the Carousel Club.

Mr. GRIFFIN. Would he be one of the men from Los Angeles that you referred to?

Mr. CRAFARD. It could be. I wouldn't swear to it.

Mr. GRIFFIN. How often do you think that you saw that man around the Carousel Club?

Mr. CRAFT. It wasn't but a couple of times. It couldn't have been.

Mr. GRIFFIN. Is that a picture of any club that you recognize in Dallas?

Mr. CRAFT. None that I have ever been in. I was never in any of the other clubs except to the Carousel and the Vegas.

Mr. GRIFFIN. Would you be sure that that is not a picture of any part of the Vegas?

Mr. CRAFT. No, it is not a picture of the Vegas. They didn't have a back bar there.

Mr. GRIFFIN. Do you see the man who appears to be a bartender in that picture?

Mr. CRAFT. I should know him because it looks like—he looks like an older fellow who was around the club quite often with Jack, but I can't remember.

Mr. HUBERT. Let the record show that the witness was referring to the picture identified as Exhibit 5201.

Mr. GRIFFIN. Do you remember a fellow by the name of Ryan, who was friendly with Jack Ruby, and who also went by the name of Roy William Pike?

Mr. CRAFT. William Ryan is familiar, but this other man, it wouldn't be Mickey?

Mr. GRIFFIN. Mickey Ryan. Is that Mickey Ryan that worked the bar?

Mr. CRAFT. I couldn't say. The picture is really—if I would see the man and the picture together I might be able to——

Mr. HUBERT. When you say the man in the picture, which man are you talking about?

Mr. CRAFT. The man who appears to be a bartender.

Mr. GRIFFIN. Let me see if I understand. Do you make some association in your mind between the picture of the bartender here and the fellow you

remember as Mickey Ryan?

Mr. CRAFARD. Yes. There is quite a similarity.

Mr. GRIFFIN. But you are not——

Mr. CRAFARD. I am not positive.

Mr. GRIFFIN. Do you know of a place in Dallas called the Gun Club?

Mr. CRAFARD. I have heard mention of a place by that name, but I have never been there.

Mr. GRIFFIN. Did you ever meet any of Jack's friends from Chicago?

Mr. CRAFARD. Not that I know of.

Mr. HUBERT. Let me ask you a bit more about the man seated at the table in the foreground of the picture identified as Exhibit 5201. Did I understand you to say he bore a resemblance to someone you had seen before?

Mr. CRAFARD. Yes.

Mr. HUBERT. And that someone was who?

Mr. CRAFARD. I don't——

Mr. HUBERT. It was suggested to you that it might have been one of the people you identified as, earlier in this deposition as, having come from California and as having come in to see Ruby on several occasions, and to sit down and chat for a little while and then he would go off with them. Do you remember that testimony?

Mr. CRAFARD. Yes.

Mr. HUBERT. Now, is that man seated at the table as described by me a moment ago possibly one of those men?

Mr. CRAFARD. It could possibly be, yes.

Mr. HUBERT. What is it about him that refreshes your memory so that you are able to say that he could possibly be that man from California?

Mr. CRAFARD. Mostly his face; his facial features mostly.

Mr. GRIFFIN. Larry, did Jack Ruby know your full name?



Mr. CRAFARD. No.

Mr. GRIFFIN. How did he know you?

Mr. CRAFARD. As Larry.

Mr. GRIFFIN. Did he know your last name at all?

Mr. CRAFARD. I don't believe so. I don't recall telling him. I did—I told him my last name when that letter came in from my cousin in Michigan, and he gave it to me.

Mr. GRIFFIN. How did Eva Grant know where to look for you?

Mr. CRAFARD. I am not sure except for the fact, like I say, I had left an envelope with my cousin's address at the Carousel.

Mr. HUBERT. Andy knew your last name, didn't he?

Mr. CRAFARD. I believe so.

Mr. GRIFFIN. How did Andy come to learn your last name?

Mr. CRAFARD. I believe on this same occasion with the letter.

Mr. GRIFFIN. I asked you about the show "How Hollywood Makes Movies." What kind of a show was that?

Mr. CRAFARD. That was, it showed a few of the different tricks and stunts that was used in moviemaking process, such as shooting a mirror without breaking the mirror, or shooting a glass off the bar counter, and how they broke a chair over a man's head and how a chair or table broke when a man was knocked into it, such as that.

Mr. GRIFFIN. How many actors did they have in this show?

Mr. CRAFARD. There was, I believe, six Hollywood personnel all together.

Mr. GRIFFIN. How long did the show last in terms of each performance?

Mr. CRAFARD. The show was approximately about 45 minutes.

Mr. GRIFFIN. How much did they charge for admission?

Mr. CRAFARD. I believe they was charging 75 cents, if I remember.

Mr. GRIFFIN. Who conceived of the show?

Mr. CRAFT. As far as I know, from what I knew of it, it was Craven and Miles.

Mr. GRIFFIN. What do you know about Craven, what was his background?

Mr. CRAFT. All I know he come from Hollywood, was supposed to be some producer from Hollywood.

Mr. GRIFFIN. And how about the Miles fellow?

Mr. CRAFT. Deke Miles, as far as I know, was a director from Hollywood, a Hollywood director.

Mr. GRIFFIN. How did you happen to decide to go to Dallas, Tex., in the fall of 1963?

Mr. CRAFT. Because I knew there was one of the biggest fairs in the country held in Dallas, Tex., and I had some friends working over at Dallas, Tex., and I figured this would be as good a place to get a job with a carnival as anywhere.

Mr. GRIFFIN. How did you happen to go to Dallas the first time you moved there the year before?

Mr. CRAFT. I was going there to have a reconciliation with my wife.

Mr. GRIFFIN. And you stayed about 3 months; is that it?

Mr. CRAFT. Yes; about that.

Mr. GRIFFIN. Did you live with her at that time?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Where did you live?

Mr. CRAFT. Letot Trailer Park on Lombardy Lane.

Mr. GRIFFIN. Did one of you own a house trailer?

Mr. CRAFT. We rented a house trailer.

Mr. GRIFFIN. Do you drive an automobile?

Mr. CRAFT. Yes, sir.

Mr. GRIFFIN. When Ruby bought the lumber from the dance-band show that closed, what was he going to use that lumber for?

Mr. CRAFARD. Remodeling on the inside of his Carousel Club.

Mr. GRIFFIN. Did he use it for that purpose?

Mr. CRAFARD. No.

Mr. GRIFFIN. What did he do with the lumber?

Mr. CRAFARD. He stored it.

Mr. GRIFFIN. Where did he store it?

Mr. CRAFARD. Downstairs below the Carousel Club.

Mr. GRIFFIN. Did he make any effort to remodel?

Mr. CRAFARD. He was doing some remodelling while I was there, building a cloakroom. That was about all that was being done, building a cloakroom, while I was there.

Mr. GRIFFIN. Was Jack Ruby ever away from his Carousel all day?

Mr. CRAFARD. I don't remember a day that I didn't see him at least once during the day.

Mr. GRIFFIN. You do?

Mr. CRAFARD. I don't, I say. I don't remember a day.

Mr. GRIFFIN. But ordinarily Jack would come about 11:30 in the morning——

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Stay just a short while——

Mr. CRAFARD. That is right.

Mr. GRIFFIN. And would be gone all day until sometime in the late evening?

Mr. CRAFARD. Usually; sometimes he would come back in the middle of the afternoon for a little while, or maybe he wouldn't come back until after the club opened at 7:30.

Mr. GRIFFIN. What did Jack actually have to do to manage the Carousel?

Mr. CRAFT. That I couldn't really say.

Mr. GRIFFIN. Did it appear he had very much to do?

Mr. CRAFT. As far as the management of the club, to my knowledge, it shouldn't have took him more than 3 hours a day at the most, that is, including all the bookwork he would have to do.

Mr. GRIFFIN. Did he do the bookwork?

Mr. CRAFT. He kept a set of books, but he had a bookkeeper to keep his books, an accountant.

Mr. GRIFFIN. I mean—you mean he personally kept the books or somebody else made the entries?

Mr. CRAFT. Andrew made most of the entries.

Mr. GRIFFIN. Now, during the 6 weeks or 2 months that you were there, how many different strippers did he have?

Mr. CRAFT. It was mostly the same girls. He fired one and hired another one.

Mr. GRIFFIN. Who was the one that he fired?

Mr. CRAFT. It was Jada.

Mr. GRIFFIN. And who did he hire in her place?

Mr. CRAFT. Little Lynn.

Mr. GRIFFIN. How long after he fired Jada did Little Lynn come on?

Mr. CRAFT. I believe it was 2 or 3 days between them.

Mr. GRIFFIN. Could there have been more than that?

Mr. CRAFT. It might have been a week, I don't believe so—I don't believe it was much more than that.

Mr. GRIFFIN. Were you present during the incident that resulted in the firing of Jada?

Mr. CRAFT. I believe there were several different incidents that built up to that event.

Mr. GRIFFIN. What were they, as you recall?

Mr. CRAFARD. I don't know most of them, but the one instance I believe, Jack shut the lights out on her as she went too far with her disrobing.

Mr. GRIFFIN. And then did they have a fight of some sort afterwards?

Mr. CRAFARD. I believe there was; yes.

Mr. GRIFFIN. Were you present?

Mr. CRAFARD. I believe I was in the club, but I don't know—I didn't know what went on even.

Mr. GRIFFIN. How long had you known Little Lynn before she was hired as a stripper?

Mr. CRAFARD. I believe I met her one day and she was hired the next evening, something like that.

Mr. GRIFFIN. Had Jack known her before?

Mr. CRAFARD. I don't believe so.

Mr. GRIFFIN. How about her husband, Bruce Carlin, did you meet him?

Mr. CRAFARD. I met him at the same time I met Little Lynn.

Mr. GRIFFIN. How often did Bruce use to come to the club?

Mr. CRAFARD. When Little Lynn went to work for the club at first he was there almost every night—he was there every night.

Mr. GRIFFIN. How did he get along with Jack?

Mr. CRAFARD. I never seen any difficulty between them.

Mr. GRIFFIN. How would you describe Bruce Carlin?

Mr. CRAFARD. He seemed like a pretty likable young fellow to me.

Mr. GRIFFIN. Did you talk with him?

Mr. CRAFARD. Slightly; not very much.

Mr. GRIFFIN. What time would he generally come and what time would he leave?

Mr. CRAFT. He would usually, when he come in, he would be there when Little Lynn was on the stage, and he would leave, and she would go back in time for her to come back on the stage, and he would come back in again.

Mr. GRIFFIN. Did he and Little Lynn go out some place together?

Mr. CRAFT. I believe they went out a couple of times between her acts. I don't remember.

Mr. GRIFFIN. Did Little Lynn remain around the club while Bruce was out?

Mr. CRAFT. Yes; most of the time.

Mr. GRIFFIN. How long would you say Little Lynn worked for Jack?

Mr. CRAFT. Oh, man; I believe it was 2 or 3 weeks. I am not sure.

Mr. GRIFFIN. So he had the same group of strippers except that Little Lynn replaced Jada?

Mr. CRAFT. Yes.

Mr. GRIFFIN. He had three different M.C.'s?

Mr. CRAFT. Yes.

Mr. GRIFFIN. And Billy DeMar was one of them?

Mr. CRAFT. That is right.

Mr. GRIFFIN. And the M.C. is the same person as the comedian?

Mr. CRAFT. That is right.

Mr. GRIFFIN. How about the band? Did he have the same band all the way through?

Mr. CRAFT. Yes, yes.

Mr. GRIFFIN. So you would say that while you were there there wasn't any other turnover in personnel?

Mr. CRAFT. No.

Mr. GRIFFIN. That you knew of.

I think you mentioned on two nights you ran the Vegas Club all by yourself.

Mr. CRAFT. Yes.

Mr. GRIFFIN. When were those two nights?

Mr. CRAFT. I don't remember the dates. It was during the week, week nights. The one night I was the only one at the club, I didn't even have a band, all we had was the jukebox.

Mr. GRIFFIN. How about the bartender?

Mr. CRAFT. I was doing the bartending.

Mr. GRIFFIN. And taking the tickets also?

Mr. CRAFT. We didn't have any cover charge that night, just a jukebox and beer. The next night we had the band, and I had a waitress.

Mr. GRIFFIN. How long was that before the assassination of the President?

Mr. CRAFT. I believe that was the week before, but I am not sure.

Mr. GRIFFIN. What was the reason that Jack didn't have anybody to run the Vegas Club?

Mr. CRAFT. The club wasn't making any money. During the week it didn't make hardly any money, and that was the slowest night of the week for the club, and his sister was sick one night, so he had me go over and run the Vegas Club the first night, and the next night his sister was sick again, and I only had the band and a waitress with me at night.

Mr. GRIFFIN. Was his sister in the hospital or anything while you were employed there?

Mr. CRAFT. I believe she was. She was in the hospital—I think she was in the hospital, but when, I'm not sure. I'm not sure whether she was or not.

Mr. GRIFFIN. Did you see her after the two nights you worked in the Vegas Club?

Mr. CRAFARD. I think I saw her over at the Vegas Club two or three nights later, but I'm not sure.

Mr. GRIFFIN. Did you meet Pauline Hall?

Mr. CRAFARD. Who?

Mr. GRIFFIN. Did you meet a woman named Pauline Hall?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How many times did you see her, would you say?

Mr. CRAFARD. All together I believe I saw her about four different times.

Mr. GRIFFIN. Would you describe her physically?

Mr. CRAFARD. Fairly nice looking woman, I would say maybe in her mid-thirties—a little older, but a nice build, and what I saw of her, and when I talked to her, she had a fairly nice personality.

Mr. GRIFFIN. Was there any woman at the Vegas Club who was employed there who was noticeably heavy, who was fat?

Mr. CRAFARD. I don't recall of seeing one.

Mr. GRIFFIN. How about the Carousel, did he have anybody employed, any woman employed at the Carousel Club who was noticeably fat?

Mr. CRAFARD. There was a colored woman by the name of Alice who more or less took care of the coffee and the pizzas, was real heavy.

Mr. GRIFFIN. When you saw—do you know if Eva Grant worked at the Vegas any nights after the two nights that you worked there?

Mr. CRAFARD. No; I don't.

Mr. GRIFFIN. Do you know anything about the man who runs the Colony Club, Abe Weinstein?

Mr. CRAFARD. Not that I—I don't. I believe I met the man on one occasion.

Mr. GRIFFIN. Where did you meet him?

Mr. CRAFARD. I believe I met him at the Carousel Club. He was the one who got—Jack hired Little Lynn through him. I believe it was that.



Mr. GRIFFIN. Were Jack and Abe Weinstein friendly?

Mr. CRAFARD. No; I wouldn't say so.

Mr. GRIFFIN. How did Jack happen to hire Little Lynn through Abe?

Mr. CRAFARD. He needed a girl, and Abe had one that he didn't need, and he knew Jack needed girls through the union setup, so he told Jack about her, brought her over and introduced her.

Mr. GRIFFIN. Had Little Lynn been a stripper at Abe Weinstein's place?

Mr. CRAFARD. I understand she was an amateur.

Mr. GRIFFIN. Did you ever talk with Jack about the amateur nights that Weinstein had?

Mr. CRAFARD. There was some—I wouldn't say actually I discussed it with him. I should say he told me about it.

Mr. GRIFFIN. What did Jack tell you?

Mr. CRAFARD. Well, the fact that he—the unions had sent out an order for the clubs to stop the so-called amateur night, and Ruby had done so, but the other clubs in town hadn't, and they had failed to comply with the union order, and nothing had happened about it.

Mr. GRIFFIN. When did Jack talk with you about that?

Mr. CRAFARD. When I showed up and went to work for him.

Mr. GRIFFIN. And, to your knowledge, did Jack do—what was Jack doing about it?

Mr. CRAFARD. He was doing his best to get the union to force them to stop. He had stopped.

Mr. GRIFFIN. What was he doing that you know of?

Mr. CRAFARD. He was writing to some of the bigger, some of the higher officials in the union, and friends of his that he knew that had position or something.

Mr. GRIFFIN. Did you ever make any telephone calls for him or write any letters or mail any letters in connection with that?

Mr. CRAFARD. I might have mailed some letters, I don't recall it.

Mr. GRIFFIN. How about telephone calls?

Mr. CRAFARD. I don't recall it.

Mr. GRIFFIN. Did you ever drive Jack's car?

Mr. CRAFARD. No. At the time I was working for Ruby all I had, the only license I had, was a restricted motorcycle operator's license.

Mr. GRIFFIN. Other than that at that time that you—you had driven with Jack, hadn't you, in his car, a number of times?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And did Jack keep a lot of things in his car?

Mr. CRAFARD. His trunk was always full of stuff.

Mr. GRIFFIN. It was? How about the inside of the car?

Mr. CRAFARD. Not so much in the back.

Mr. GRIFFIN. What sort of things did he keep in the trunk?

Mr. CRAFARD. Pictures of girls, these twist boards he was pushing, and cards for advertisements, and cards with the picture——

Mr. GRIFFIN. How did you happen to see these things? These things in the trunk of the car.

Mr. CRAFARD. I straightened the trunk of his car up several times at his request.

Mr. GRIFFIN. Did he keep any keys in the car?

Mr. CRAFARD. I believe he had some in a box in the back.

Mr. GRIFFIN. What kind of keys were they?

Mr. CRAFARD. From what I could tell more or less house keys, keys for doors.

Mr. GRIFFIN. Were they loose or in a key chain?

Mr. CRAFARD. I believe there was a bunch of them on a keyring.

Mr. GRIFFIN. You say he kept them in a box of some sort?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. What kind of a box did he keep them in?

Mr. CRAFARD. Just a cardboard box he had in the back of his car.

Mr. GRIFFIN. Did he keep anything else in that cardboard box?

Mr. CRAFARD. There was vitamin pills he was taking, and some of his diet stuff he kept in that box. He always had a bunch of soap in the car, bar soap.

Mr. GRIFFIN. Did he travel out of town or something that would cause him to need that stuff?

Mr. CRAFARD. Not to my knowledge.

Mr. GRIFFIN. Why would he have kept those things in the trunk of the car?

Mr. CRAFARD. I don't know.

Mr. GRIFFIN. Did he keep clothes in the car?

Mr. CRAFARD. He sometimes would have clothes in the car. Maybe he would put clothes in the car that he would take to the cleaner and they would be in there 2 or 3 days before he would take them in the cleaners.

Mr. GRIFFIN. Where would they be in the trunk?

Mr. CRAFARD. Right in the trunk of the car.

Mr. GRIFFIN. How about in the glove compartment of the car, did you ever have any occasion to go into the glove compartment?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did he keep the trunk of his car locked?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And the times that you went into the trunk of the car, how did you get into the trunk?

Mr. CRAFARD. With the key.

Mr. GRIFFIN. Where would you get the key?

Mr. CRAFARD. He would give it to me.

Mr. GRIFFIN. Did he keep this key loose in his pocket or did he have it on a key chain?

Mr. CRAFARD. He had it on a key chain.

Mr. GRIFFIN. What else did he keep on that key chain?

Mr. CRAFARD. The keys for the car.

Mr. GRIFFIN. Anything else?

Mr. CRAFARD. I believe he had his apartment house key and the key to both clubs.

Mr. GRIFFIN. Was this actually a chain or a ring or what?

Mr. CRAFARD. A keyring.

Mr. GRIFFIN. To your knowledge did he keep—did he have any separate set of car keys that he kept on a separate ring or on a holder of any kind?

Mr. CRAFARD. Not to my knowledge.

Mr. GRIFFIN. You say at one time you went down to his car and got a gun out of the car?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Where did he keep the gun?

Mr. CRAFARD. He kept that locked in the trunk.

Mr. GRIFFIN. Did you ever see any political literature of any sort in Jack's car or in the apartment or in the Carousel Club or any place else?

Mr. CRAFARD. Not that I can recall seeing.

Mr. GRIFFIN. Did you ever see any radio scripts of any sort that Jack had?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did you have access to his office?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. How did he maintain his desk?

Mr. CRAFARD. It was pretty much of a mess most of the time.

Mr. GRIFFIN. Was this a desk that had drawers in it?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And how about the drawers, did he keep things in the drawers?

Mr. CRAFARD. Yes, they was always full of stuff.

Mr. GRIFFIN. Did you ever have occasion to go through any of these drawers?

Mr. CRAFARD. I went through, completely through the desk on different occasions.

Mr. GRIFFIN. Do you recall seeing any kinds of political literature of any sort in there, and by political I don't mean just partisan, but, oh, anything that might have to do with any kind of issue or political philosophy?

Mr. CRAFARD. I don't recall it, of seeing any.

Mr. GRIFFIN. Did you ever recall seeing anything from an organization called Lifeline or that was a piece of literature that was put out by an organization called Lifeline, or denominated Lifeline?

Mr. CRAFARD. I believe there was a Lifeline book or magazine around once or twice. I never paid no attention to it; saw the book and that was all.

Mr. GRIFFIN. Did you ever hear Jack talk about any public events?

Mr. CRAFARD. No. About all we would discuss would be the club.

Mr. GRIFFIN. What sort of person was Ruby as far as a person who talked about what he was doing?

Mr. CRAFARD. He didn't talk too much about things, things he was doing, other than the club itself. He talked about what had to be done about the club, but other than that he didn't talk too much.

Mr. GRIFFIN. He didn't tell you what he was doing outside the club?

Mr. CRAFARD. No.

Mr. GRIFFIN. So as I understand it, atypical for Ruby, he appeared at the club before noon, wouldn't come back until late evening, he would spend 8

or 10 or what would presumably be waking hours away from the club each day.

Mr. CRAFT. Yes.

Mr. GRIFFIN. Did he ever talk about what he was doing during that period of time?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you ever hear anything, or do you have any idea of what he was doing during that period of time?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you ever attempt to talk to him about what he was doing?

Mr. CRAFT. No.

Mr. GRIFFIN. About that time? Did you ever hear anybody else try to talk to him about it?

Mr. CRAFT. No.

Mr. GRIFFIN. Did you know Jack, or see Jack, or talk with him often enough so that you were able to form an opinion as to what Jack thought of his own sexual abilities?

Mr. CRAFT. No; I would have no opinion on that.

Mr. GRIFFIN. Did he ever talk to you about other than the incidents that you mentioned earlier about his sexual conquests of his girl friends or something like that?

Mr. CRAFT. No.

Mr. GRIFFIN. Mr. Griffin, how about his efforts to keep in shape physically, keep himself physically fit, and what not?

Mr. CRAFT. I never saw any talk toward that effect. The only thing I knew for sure was he was dieting and trying to lose weight.

Mr. GRIFFIN. This is because he told you?

Mr. CRAFT. I saw him take these diet pills.

Mr. GRIFFIN. Did he have some sort of a schedule that he would take this on?

Mr. CRAFT. He took it every morning.

Mr. GRIFFIN. About what time did he take them?

Mr. CRAFT. Well, the way I understood, about the first thing he got up he would take this.

Mr. GRIFFIN. Would he take it at the club or at home?

Mr. CRAFT. At home; or sometimes at the club.

Mr. GRIFFIN. Did you see him take it?

Mr. CRAFT. He was trying to take it—I guess he figured about noontime he would take his medicine, this diet stuff, instead of eating.

Mr. GRIFFIN. What did this come in?

Mr. CRAFT. It was in powder form, you use it in tea or coffee. It prevents you from getting hungry.

Mr. GRIFFIN. On the 22d when Jack came back after the President had been shot, the first time, did he make any telephone calls to any of his employees, to anybody, to people, to tell them not to come in?

Mr. CRAFT. No; he had Andrew make calls.

Mr. GRIFFIN. Did Andy make all the calls?

Mr. CRAFT. So far as I know; yes.

Mr. GRIFFIN. Did Jack—how about the newspapers, was anything done about notifying the newspapers that the club was not going to be open?

Mr. CRAFT. I don't know as it was Jack who done it—there was—he done so outside the club.

Mr. GRIFFIN. Did anybody come to the club during the afternoon of the 22d?

Mr. CRAFT. I don't remember of anybody coming to the club.

Mr. GRIFFIN. Did any of the strippers show up that day?

Mr. CRAFT. I don't remember, I don't recall any coming down.

Mr. GRIFFIN. How long did Andy stay at the club?

Mr. CRAFARD. He was there until about 15 or 20 minutes after Jack left.

Mr. GRIFFIN. The first time or the second?

Mr. CRAFARD. The first time.

Mr. GRIFFIN. Which means that he would have left sometime before 4 o'clock?

Mr. CRAFARD. Yes.

Mr. GRIFFIN. When you and Senator and Jack went out to take the picture of the Earl Warren sign, do you recall anything being in the car at that time?

Mr. CRAFARD. No.

Mr. GRIFFIN. Did he have any newspapers in the car?

Mr. CRAFARD. I couldn't remember any.

Mr. GRIFFIN. Where did you sit, in the front or back?

Mr. CRAFARD. I sat in the back seat.

Mr. GRIFFIN. Did Jack know how to use the Polaroid camera?

Mr. CRAFARD. No; I don't believe so.

Mr. GRIFFIN. It doesn't take anything to run that Polaroid camera.

Mr. CRAFARD. No; but I don't believe he had ever——

Mr. GRIFFIN. Was it his camera?

Mr. CRAFARD. It was his camera. I don't believe he had ever took any patience to learn how to reload it. They can be quite complicated to reload if you don't know how to do it.

Mr. GRIFFIN. Do you have to reload after every shot?

Mr. CRAFARD. No.

Mr. GRIFFIN. How much film did you have on there?

Mr. CRAFARD. I believe it was four pictures.



Mr. GRIFFIN. That you took?

Mr. CRAFARD. There was three pictures on it that I took. We thought there was four, and there was only three of them.

Mr. GRIFFIN. And you didn't have to reload then, did you?

Mr. CRAFARD. No; I didn't reload.

Mr. GRIFFIN. What did you all talk about when you drove out there?

Mr. CRAFARD. They were talking about this Earl Warren sign and a hate ad that Ruby had saw in the paper.

Mr. GRIFFIN. What was Jack saying about it?

Mr. CRAFARD. It was something about the similarity of the numbers and the addresses of the two.

Mr. GRIFFIN. What was Senator saying about it?

Mr. CRAFARD. I don't recall what Senator said.

Mr. GRIFFIN. Did you get some idea of what the purpose was, why Jack was concerned about this?

Mr. CRAFARD. No; I was completely in the dark about it. Something, I believe, was said about the sign of "Impeach Earl Warren," business being done by maybe the Birch Society or something like that.

Mr. GRIFFIN. What did Jack have to say about the Birch Society?

Mr. CRAFARD. I believe it was either Jack or Senator said something about this sign, the "Impeach Earl Warren" sign being—having something to do with the "Birchites," or something like that.

Mr. GRIFFIN. What were they going to do with this?

Mr. CRAFARD. I have no idea.

Mr. GRIFFIN. Did Jack say anything to you about what he had been doing the rest of the day?

Mr. CRAFARD. No; that was early in the morning when we took the pictures.

Mr. GRIFFIN. And you hadn't seen him for probably 12 hours?

Mr. CRAFT. Something like that.

Mr. GRIFFIN. Before that, and in the 12 hours that he had been gone, did he indicate or he or Senator indicate at all what had gone on?

Mr. CRAFT. Something had been said about Jack not having gotten any sleep.

Mr. GRIFFIN. Did Jack indicate that he was doing this for anybody else, taking these pictures?

Mr. CRAFT. No; he didn't give any indication about that fact.

Mr. GRIFFIN. Did Senator indicate what he had been doing that day?

Mr. CRAFT. No.

Mr. GRIFFIN. What was your attitude after you went out there on this picture-taking enterprise?

Mr. CRAFT. Well, it was just something he wanted done. It meant no more to me than taking a picture at the club, actually, except I was kind of curious as to what the devil it was all about.

Mr. GRIFFIN. Did you ask him?

Mr. CRAFT. Something, they were talking about the "Impeach Earl Warren" sign. I made some suggestion about a box number, "Write for free information"; I made some suggestion about maybe writing for free information and finding out what I had come back, as I can recall.

Mr. GRIFFIN. What happened?

Mr. CRAFT. Nothing more was said about that.

Mr. GRIFFIN. Was the box number written down or anything?

Mr. CRAFT. The box number was on the photograph, that is all.

Mr. GRIFFIN. Was there a name on this, in addition to the box number, was there a name to anybody that you should write to?

Mr. CRAFT. I think it was just "Impeach Earl Warren Committee" or something like that. I am not sure.

Mr. GRIFFIN. You don't remember?

Mr. CRAFARD. I don't remember.

Mr. GRIFFIN. Go ahead. You were going to say something else.

Mr. CRAFARD. I was going to say either that or it was an organization in Massachusetts somewhere or something that you had to write to. I know the sign had been printed in, I believe, Massachusetts.

Mr. GRIFFIN. What conversation did you have about this sign after you drove back?

Mr. CRAFARD. After going back in, we had coffee, and they said something about going down to the post office and checking this box number to see if they could find out who had the box or something, and they let me off at the Carousel. That was the last I saw of them.

Mr. GRIFFIN. You mentioned in connection with that telephone call that you had had, the 3-hour telephone conversation with that girl——

Mr. CRAFARD. Yes, sir.

Mr. GRIFFIN. You thought there were some people in the background.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. And you indicated you thought they might have been teenagers or something.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. Was there something particular about the voices and so forth that made you think it was teenagers?

Mr. CRAFARD. Well, some of the giggles I heard were kind of silly, like some silly giggle that some of the young teenage girls would do or make.

Mr. GRIFFIN. Was there anybody telling this girl to get off the phone?

Mr. CRAFARD. No.

Mr. GRIFFIN. You also said something about the conversation was almost like you had known this girl.

Mr. CRAFARD. Yes; it was. It was just the way we talked—I mean.

Mr. GRIFFIN. Did she sound like she knew things about you?

Mr. CRAFARD. No; but it was like people that has known each other for a little while trying to get to know each other when talking, talking about their hobbies and things they like and things they didn't like, and such as that. It wasn't like two people who had just started talking over the telephone.

Mr. GRIFFIN. Was the voice one that you had ever recognized at all?

Mr. CRAFARD. No; the voice meant nothing to me.

Mr. GRIFFIN. I think you mentioned that Little Lynn called on Friday night sometime.

Mr. CRAFARD. Yes.

Mr. GRIFFIN. When was it that you think she called?

Mr. CRAFARD. I believe—I said I believe it was 9 or 9:30, I believed it was.

Mr. GRIFFIN. What was it that she said when she called?

Mr. CRAFARD. She wanted to get ahold of Jack, it was urgent or something to that effect.

Mr. GRIFFIN. And did she indicate she knew the club had been closed?

Mr. CRAFARD. Yes; she knew the club had been closed.

Mr. GRIFFIN. And at that time did she know how long it was going to be closed?

Mr. CRAFARD. Not that I know of.

Mr. GRIFFIN. You mean that you just don't know or that you have the impression she didn't know?

Mr. CRAFARD. I had the impression she didn't know any more about it than I knew.

Mr. GRIFFIN. What was your impression?

Mr. CRAFARD. That we would be closed Friday and Saturday.

Mr. GRIFFIN. Friday and Saturday. So her—when was this decision to close Friday and Saturday, when was that made?

Mr. CRAFT. Friday afternoon.

Mr. GRIFFIN. And that was made before Andy began to make the telephone calls?

Mr. CRAFT. Yes.

Mr. GRIFFIN. So that anybody who had been called by Andy would have known that the club was going to be closed Friday and Saturday night?

Mr. CRAFT. Yes.

Mr. GRIFFIN. Do you remember closing the club on Thursday night?

Mr. CRAFT. On Thursday night?

Mr. GRIFFIN. Thursday night is the night before the assassination.

Mr. CRAFT. Yes; we closed at the regular time, the usual time, 2:30 or 3 o'clock.

Mr. GRIFFIN. What was done with the money that night?

Mr. CRAFT. I believe Jack had it with him.

Mr. GRIFFIN. Well, Friday morning was there any money in the safe when you woke up, Friday morning?

Mr. CRAFT. I don't know.

Mr. GRIFFIN. There was no money taken into the Carousel Club after Thursday night, was there?

Mr. CRAFT. No.

Mr. GRIFFIN. Now, you indicated before that Jack had the practice of depositing his money in the bank.

Mr. CRAFT. As far as I know; yes. That is what I figure he was doing anyway, was depositing.

Mr. GRIFFIN. Did you have any information he was doing that?

Mr. CRAFT. No; I did not know definite, but that was what I figured he was doing, keep it with him, and then every 2 or 3 days he said he would go to the bank or something.

Mr. GRIFFIN. This North American Drilling Co., do you know anything about the people who manage that?

Mr. CRAFT. No; all I know about it is originally it was the old McClure Drilling Co. and the old Union Drilling Co. combined together to form the North American Drilling Co.

Mr. GRIFFIN. Were those Michigan companies or were they people——

Mr. CRAFT. Michigan companies.

Mr. GRIFFIN. We will continue tomorrow morning at 9 o'clock.

## Transcriber's Notes

Punctuation and spelling variations were not changed.

Simple typographical errors were corrected; occasional unbalanced quotation marks were retained.

Occurrences of inconsistent hyphenation have not been changed.

Text uses "timeclock" and "time clock"; both forms retained.

Text mostly uses "Tammi" but occasionally uses "Tammy"; both spellings retained.

Several questions asked by the investigators end with periods instead of question marks. These were not changed.

Consecutive occurrences of "the" and "and" were changed to one occurrence; consecutive occurrences of other words were retained. Two that may have been Court Reporter transcription errors are noted below.

Page [10](#): "It could have been" was misprinted as "I could have been" and has been corrected here.

Page [100](#): "that that he had been shot" was printed that way.

Page [152](#): Testimony by Mr. McKinzie "That's right. So, your statement" appears to be Mr. McKinzie's answer, followed by another question by Mr. Hubert.

Page [233](#): "Well, I don't know know if he" was printed that way.

Page [235](#): ‘He says, “well—I didn’t seem to think that I would have to tell him that.’ was printed that way, with an unmatched double quote.

Page [420](#): “He brought the lumber out of it” was misprinted as “He bought the lumber out of it”; changed here.

Page [500](#): “Did you you ever make any telephone calls” was printed that way.

Page [502](#): The second “Griffin” should be “Crafard” in “Mr. GRIFFIN. Mr. Griffin, how about his efforts”.



\*\*\* END OF THE PROJECT GUTENBERG EBOOK WARREN  
COMMISSION (13 OF 26): HEARINGS VOL. XIII (OF 15) \*\*\*

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